PART FOUR | A HOUSE DIVIDED AND REBUILT

UNIT 4
A HOUSE DIVIDED AND REBUILT

Chapters 13, 14, and 15 · 1830–1877

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Consolidated Bibliography

See page 805.

PRIMARY SOURCE P13.1

Federal Constitution of the United Mexican States (1824): Preamble and Title I

Mexican Constituent Congress · October 4, 1824 (English translation)

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The federal charter that Texans claimed to defend also required the Catholic faith that many Anglo settlers resented.
TREATMENT	Full public-domain text (opening sections)

Historical Context

After independence from Spain and the brief empire of Agustín de Iturbide, Mexico adopted a federal constitution in 1824 modeled in part on that of the United States. It divided power between the national government and the states, including the combined state of Coahuila y Texas.

Anglo-American colonists in Texas later claimed to be defending this constitution when Santa Anna replaced it with a centralist regime in 1835. Its opening articles also made Roman Catholicism the nation's permanent religion.

Editorial note: The English translation was printed in H. P. N. Gammel, *The Laws of Texas* (1898); the text follows the Tarlton Law Library transcription, which keeps errors in the original.

Document Text

The Supreme Executive Power appointed provisionally by the Sovereign Congress of the Nation, to all to whom these presents shall come, greeting; KNOW ye that the said Sovereign Congress has decreed and sanctioned the following:

FEDERAL CONSTITUTION OF THE UNITED MEXICAN STATES.

In the name of almighty God, supreme author and legislator of society. The general constituent congress of the Mexican nation in discharge of the duties imposed upon it by its constituents in order to fix their political independence, to establish and consolidate their liberty and to promote their prosperity and glory decree as follows:

CONSTITUTION OF THE UNITED MEXICAN STATES.

TITLE I.

ONLY SECTION

Of the Mexican Nation, its Territory and Religion.

ARTICLE 1. The Mexican nation is for ever free and independent of the Spanish government and of every other power.

Article 2. Its territory comprehends the former vice-royalty of New Spain, the captain-generalship of Yucatan, the former commandancies of the internal provinces of the East and West and Upper and Lower California with the lands annexed and the adjacent islands in both oceans. A constitutional law will be made for designating the boundaries of the Federation as soon as circumstances will permit.

Article 3. The religion of the Mexican nation shall perpetually remain the Roman Catholic and Apostolic. The nation protects it by wise and just laws and prohibits the exercise of any other.

Chicago Citations

Bibliography entry:

Mexico. "Federal Constitution of the United Mexican States (1824)." English translation in H. P. N. Gammel, *The Laws of Texas, 1822–1897*, vol. 1. Austin: Gammel Book Company, 1898. Tarlton Law Library, University of Texas.

Footnote citation:

Federal Constitution of the United Mexican States (1824), title 1, in H. P. N. Gammel, *The Laws of Texas, 1822–1897* (Austin: Gammel Book Company, 1898), vol. 1, via Tarlton Law Library, https://tarlton.law.utexas.edu/constitutions/federal-mexican-1824-en/preamble-title-1.

Shortened citation:

Mexican Constitution of 1824, title 1.

PRIMARY SOURCE P13.2

Constitution of the State of Coahuila and Texas (1827): Preamble and Preliminary Provisions

Constituent Congress of Coahuila and Texas · March 11, 1827 (English translation)

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The state constitution's slavery and religion clauses show the legal pressures on Anglo colonists before the revolt.
TREATMENT	Public-domain text, selected articles

Historical Context

Under the Mexican federal system, Texas formed part of the state of Coahuila y Texas, governed from Saltillo. The state constitution of 1827 set out the rights of residents and the powers of the state.

Article 13 declared that no one would be born a slave in the state and limited the bringing in of enslaved people, a direct threat to Anglo colonists who brought slaves to grow cotton. Other articles confirmed the Catholic religion.

Editorial note: The English translation follows the Tarlton Law Library transcription, which keeps errors in the original.

Document Text

[. . .]

ART. 4. In all subjects relating to the Mexican confederacy the state delegates its powers and rights to the general congress of the same, but in all that belongs to the internal government and administration of said state, it retains its liberty, independence and sovereignty.

ART. 5. Wherefore, the right of establishing its fundamental laws through the medium of its representatives, in conformity to the basis established in the constitutive act and general constitution, belongs exclusively to the said state.

ART. 6. The territory of the state is the same as that embraced in the provinces formerly know by the names of Coahuila and Texas. A constitutional law shall mark out its limits, in respect to the adjoining states, of the Mexican Confederacy.

ART. 7. For the better administration thereof, the territory of the state shall for the present be divided into three departments as follows, --viz:

Bexar,--Embracing all the territory corresponding to what was called province of Texas, which shall form one sole district.

Monclova,--Consisting of the district of the same name, and that of Rio Grande.

Saltillo,--Comprehending the district of the same name, and that of Parras.

ART. 8. Hereafter congress may alter, vary, and modify this division of the territory of the state as it shall judge most conducive to the felicity of the people.

ART. 9. The Roman Catholic Apostolic Religion shall be the religion of the state. The state protects it by wise and just laws, and prohibits the exercise of any other.

ART. 10. The state shall regluate and pay all expense that should be necessary for the preservation of religious worship, agreeably to the concordates the nation should ratify with the Apostolic See, and to the laws that shall be

prescribed on the exercise of the patronato throughout the republic.

ART. 11. Every man who resides within the limits of the state, although but transiently, shall enjoy the imprescritible rights of liberty, security, property and equality; and it is the duty of said state to preserve and protect by wise and equitable laws, these universal rights of men.

ART. 12. The state is also obligated to protect all its inhabitants in the exercise of the right which they possess of writing, printing and freely publishing their sentiments and political opinions, without the necessity of any examination, or critical review previous to their publication, under the responsibility and restrictions that are now, or shall be hereafter established by the general laws on the subject.

ART. 13. From and after the promulgation of the constitution in the capital of each district, no one shall be born a slave in the state, and after six months the introduction of slaves under any pretext shall not be permitted.

ART. 14. In return, all men who inhabit the state shall obey its laws, respect its constituted authorities, and contribute to its support in the manner it requires.

ART. 15. All kinds of vacant property within its limits, and all intestate property without a legal successor, shall belong to the state.

ART. 16. The state shall be composed solely of two classes of persons,--viz. Coahuiltexanos, and citizens of Coahuila and Texas.

ART. 17. The following persons shall be Coahuiltexians:

First,--All men born and domiciled in the territory of the state, and the children of the same.

Second,--All those born in any other part of the territory of the republic, who shall fix their residence in the state.

Third,--Foreigners, of whatever nation, now legally established in the state.

Fourth,--Foreigners, who obtain from congress letters of citizenship, or become domiciliated in the state according to the law that shall be enacted as soon as the general congress issues the general Nuturalization Law, which, agreeably to the 27th prerogative conferred by the constitution of the republic, ought to be established.

ART. 18. The following shall be freemen of Coahuila and Texas.

First,--All men born in the state and domiciliated in any part of the territory thereof.

Second,--All citizens of the other states and territory of the republic, as soon as they are domiciliated in the state.

Third,--All sons of Mexican citizens, born without the territory of the republic, who establish their domicil in the state.

[. . .]

Chicago Citations

Bibliography entry:

Coahuila y Texas. "Constitution of the State of Coahuila and Texas (1827)." English translation in H. P. N. Gammel, *The Laws of Texas, 1822–1897*, vol. 1. Austin: Gammel Book Company, 1898. Tarlton Law Library, University of Texas.

Footnote citation:

Constitution of the State of Coahuila and Texas (1827), art. [number], via Tarlton Law Library, https://tarlton.law.utexas.edu/constitutions/coahuila-texas-1827-eng/preamble-preliminary-provisions.

Shortened citation:

Constitution of Coahuila and Texas, art. [number].

PRIMARY SOURCE P13.3

Second Annual Message (excerpt on Indian removal)

Andrew Jackson · December 6, 1830

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	Jackson's defense of removal shows land hunger and racial hierarchy working together at the start of the period.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In May 1830 Congress passed the Indian Removal Act, which authorized President Andrew Jackson (1767–1845) to exchange land west of the Mississippi for the homelands of Native nations in the East. The Cherokee, Creek, Choctaw, Chickasaw, and Seminole were the main targets.

In his annual message that December, Jackson defended removal as good for the nation, the states, and the Indians themselves. He contrasted Native land use with white farming and pictured removal as part of a westward movement of American families.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

The consequences of a speedy removal will be important to the United States, to individual States, and to the Indians themselves. The pecuniary advantages which it promises to the Government are the least of its recommendations. It puts an end to all possible danger of collision between the authorities of the General and State Governments on account of the Indians. It will place a dense and civilized population in large tracts of country now occupied by a few savage hunters. By opening the whole territory between Tennessee on the north and Louisiana on the south to the settlement of the whites it will incalculably strengthen the SW frontier and render the adjacent States strong enough to repel future invasions without remote aid. It will relieve the whole State of Mississippi and the western part of Alabama of Indian occupancy, and enable those States to advance rapidly in population, wealth, and power. It will separate the Indians from immediate contact with settlements of whites; free them from the power of the States; enable them to pursue happiness in their own way and under their own rude institutions; will retard the progress of decay, which is lessening their numbers, and perhaps cause them gradually, under the protection of the Government and through the influence of good counsels, to cast off their savage habits and become an interesting, civilized, and Christian community. These consequences, some of them so certain and the rest so probable, make the complete execution of the plan sanctioned by Congress at their last session an object of much solicitude.

Toward the aborigines of the country no one can indulge a more friendly feeling than myself, or would go further in attempting to reclaim them from their wandering habits and make them a happy, prosperous people. I have endeavored to impress upon them my own solemn convictions of the duties and powers of the General Government in relation to the State authorities. For the justice of the laws passed by the States within the scope of their reserved powers they are not responsible to this Government. As individuals we may entertain and express our opinions of their acts, but as a Government we have as little right to control them as we have to prescribe laws for other nations.

With a full understanding of the subject, the Choctaw and the Chickasaw tribes have with great unanimity determined to avail themselves of the liberal offers presented by the act of Congress, and have agreed to remove beyond the Mississippi River. Treaties have been made with them, which in due season will be submitted for consideration. In negotiating these treaties they were made to understand their true condition, and they have preferred maintaining their independence in the Western forests to submitting to the laws of the States in which they now reside. These treaties, being probably the last which will ever be made with them, are characterized by great liberality on the part of the Government. They give the Indians a liberal sum in consideration of their removal, and comfortable subsistence on their arrival at their new homes. If it be their real interest to maintain a separate existence, they will there be at liberty to do so without the inconveniences and vexations to which they would unavoidably have been subject in Alabama and Mississippi.

[. . .]

Doubtless it will be painful to leave the graves of their fathers; but what do they more than our ancestors did or than our children are now doing? To better their condition in an unknown land our forefathers left all that was dear in earthly objects. Our children by thousands yearly leave the land of their birth to seek new homes in distant regions. Does Humanity weep at these painful separations from every thing, animate and inanimate, with which the young heart has become entwined? Far from it. It is rather a source of joy that our country affords scope where our young population may range unconstrained in body or in mind, developing the power and faculties of man in their highest perfection.

These remove hundreds and almost thousands of miles at their own expense, purchase the lands they occupy, and support themselves at their new homes from the moment of their arrival. Can it be cruel in this Government when, by events which it can not control, the Indian is made discontented in his ancient home to purchase his lands, to give him a new and extensive territory, to pay the expense of his removal, and support him a year in his new abode? How many thousands of our own people would gladly embrace the opportunity of removing to the West on such conditions! If the offers made to the Indians were extended to them, they would be hailed with gratitude and joy.

And is it supposed that the wandering savage has a stronger attachment to his home than the settled, civilized Christian? Is it more afflicting to him to leave the graves of his fathers than it is to our brothers and children? Rightly considered, the policy of the General Government toward the red man is not only liberal, but generous. He is unwilling to submit to the laws of the States and mingle with their population. To save him from this alternative, or perhaps utter annihilation, the General Government kindly offers him a new home, and proposes to pay the whole expense of his removal and settlement.

[. . .]

Chicago Citations

Bibliography entry:

Jackson, Andrew. "Second Annual Message." December 6, 1830. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Andrew Jackson, "Second Annual Message," December 6, 1830, American Presidency Project, https://www.presidency.ucsb.edu/documents/second-annual-message-3.

Shortened citation:

Jackson, "Second Annual Message."

PRIMARY SOURCE P13.4

Turtle Bayou Resolutions and Address to Colonel José Antonio Mexía

Anglo-American colonists at Turtle Bayou · June 13, 1832

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	Early unrest in Texas is framed in the language of Mexican constitutional federalism.
TREATMENT	Full public-domain text

Historical Context

In 1832 colonists clashed with the commander of the Mexican garrison at Anahuac, on Galveston Bay, who had jailed several Anglo settlers. Gathered at Turtle Bayou, the rebels adopted resolutions explaining their actions.

They declared support for Santa Anna, then leading a revolt in the name of federalism, and condemned the "arbitrary" measures of President Anastasio Bustamante. Their address to Colonel José Antonio Mexía sought to persuade Mexican authorities that they were loyal federalists.

Editorial note: The text follows the Texas State Library and Archives Commission transcription from the Mirabeau B. Lamar Papers.

Document Text

Col Jose Antonio Mexia

Sir

Having understood that the causes which impelled us to take up arms have been misrepresented, or misunderstood, we therefore make you the following representation.

The Colonists of Texas have long since been convinced of the arbitrary, and unconstitutional measures, of the administration of Bustamente, as evidenced

First By Their repeated violations of the constitution, laws, and their total disregard of the civil & political rights of the people.

2 By their fixing and establishing among us, in time of peace, military posts, the object of which totally disregarding the local civil authorities of the state, and by committing various acts, which evinced, [oppositidity?] to the true interests of the people in the enjoyment of civil liberty.

3 By the arrest of Juan Francisco Madero, the commissioner on the part of the state Government to put the inhabitants east of the River Trinity, in possession of their lands in conformity with the laws of colonization.

4 By the interposition of a military force, preventing the Alcalde of the Jurisdiction of Liberty from the exercise of his constitutional functions.

5 By appointing to the revenue department of Galveston, a man whose character for infamy had been clearly established,

5 And made known to the Government, and whose principles were avowedly inimical to the true interest of the people of Texas.

6 By the military commandant of Anahuac, advising & procuring servants to exit the Service of their masters—offering them protection, causing them to labour for his individual benefit by force and refusing to compensate

master or Servant.

7 By the imprisonment of our citizens without lawful cause, and claiming the right of trying said citizens, by a military court, for offenses of a character alone cognizable by the civil authority, and by refusing to— deliver them over to the said authority when demanded

Such Colonel Mexia are the causes which impelled us to take up our arms, and the following declarations are the legitimate offspring of our deliberations and form the basis of all the acts [.]

At a large and respectable meeting of the citizens residents of the Jurisdiction of Austin & Liberty held at Turtle Bayou near Anahuac The following resolutions were reported by the committee appointed by the meeting and unanimously adopted[.]

over

Resolved That we view with feelings of the deepest regret the manner in which the Govt of the Republic of Mexico is administered by the present dinasty [sic] —The repeated violations of the constitution—the total disregard of the laws— the entire prostration of the civil authority; and the— substitution in its stead of a military despotism, are greivances [sic] of such character, as to arouse the feelings of every freeman, and impel him to resistance.

Resolved That we view with feelings of the deepest interest, and solicitude, the firm manly resistance, which is made by the highly talented and distinguished Cheiftan [sic] — General Santa Anna, to the numberless encroachments and infractions, which have been made by the present administration, upon the Constitution and laws of our adopted and beloved country.

Resolved That as freemen devoted to a correct interpretation, and enforcement of the constitution, and laws, according to their true Spirit—We pledge our lives and fortunes in support of the same, and of the distinguished leader who is now so gallantly fighting in defence of civil liberty.

Resolved That the people of Texas be invited to cooperate with us in support of the principles incorporated in—

13th June 1832

The foregoing resolutions.

Wyly Martin

John Austin

Luke Lessasier

William H. Jack

Hugh B. Johnston

Francis W. Johnson

Robert M. Williamson

Signed the following committee on behalf of the meeting

Chicago Citations

Bibliography entry:

Colonists of Texas. Address to Colonel José Antonio Mexía (Turtle Bayou Resolutions), June 13, 1832. Mirabeau B. Lamar Papers no. 157, Texas State Library and Archives Commission.

Footnote citation:

Colonists of Texas to Col. José Antonio Mexía, June 13, 1832, Mirabeau B. Lamar Papers no. 157, Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/republic/turtle/turtle-1.html.

Shortened citation:

Turtle Bayou Resolutions.

PRIMARY SOURCE P13.5

Opinion of Lorenzo de Zavala to the Citizens of Lynchburg

Lorenzo de Zavala · August 1835 (English translation)

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	A Mexican federalist and former cabinet minister makes the constitutional case for resistance to Santa Anna.
TREATMENT	Full public-domain text (translation)

Historical Context

Lorenzo de Zavala (1788–1836), a Yucatán-born liberal, helped write the Mexican Constitution of 1824 and served as a cabinet minister and as Mexico's minister to France. He broke with Santa Anna over the turn to centralism and moved to Texas in 1835.

In this letter to a meeting of citizens at Lynchburg, Zavala argued that military rule had replaced constitutional government in Mexico and urged Texans to call a convention. He later signed the Texas Declaration of Independence and became the Republic's first vice president.

Editorial note: The text follows the English translation transcribed by the Texas State Library and Archives Commission.

Document Text

Having been invited to attend the meeting of citizens to be held on the 8th inst. to take into consideration the important subjects which produce the present excitement, I regret that I am prevented from attending in person by an attack of the intermittent fever.

But as I consider that a simple manifestation of my opinions on the subject might be of much service in establishing those of the citizens, a majority of whom must declare the fate of the country, I submit to the examination of the meeting the following reflections.

In the first place, I must say of myself that in this I have no individual view or motion--that I have occupied in the Mexican nation the most honorable stations; that I have written a history of the revolutions of the country with such impartiality that even my enemies have acknowleged it the only monument of the kind worthy of attention.

In the second place, that, having received from General Santa Anna the appointment of minister plenipotentiary to the court of his majesty the king of France, I resigned this charge as soon as I learned that he had dissolved the congress and taken all authority into his own hands. Third, that having resigned this station, I have come to Texas to establish myself among free citizens, to cultive the lands which I had previously purchased.

Having made these preliminary remarks, I proceed to express my opinions respecting the nominal Mexican Republic.

First. The regulating power in Mexico is the military. Certain generals, at the head of whom Santa Anna happens now to be placed, and who have under their control from fifteen to twenty thousand hireling soldiers, have destroyed the federal constitution, of which General Santa Anna, in order to be promoted to the presidency of the republic, pretended to be the defender when with a show of patriotism, he alleged that it was attacked by General Bustamante.

Second. The present situation of the Mexican nation is that of the greatest confusion and disorder, because, all the constitutional authorities having ceased, their places have been supplied by military chiefs, who know no other law

than that of the sword and of violence, by which they have put down the civil authorities. The consternation which this had produced among the Mexican citizens has reduced them to a momentary silence, and this silence the military chiefs of Mexico call tranquility, peace and order in the republic.

Third. To pass over the acts of usurpation committed by General Santa Anna, such as the dissolution of the congress and council--the unconstitutional and violent disposition of the vice-president, Farias--the extension of the powers given to the electors to reform the constitution--the destruction of the civic militia--and others of equal magnitude which in the United States of the North would be sufficient to convict the president of treason--the final blow aimed at the institutions in the capital on the 12th day of June, the day on which was declared the destructions of all state legislatures, an act committed under the auspices and protection of the president, Santa Anna, and of the vice-president Barragan, would be sufficient to destroy all claims to obedience which exist, and which can only continue in virtue of the federal compacts.

Fourth. While in the capital they were thus destroying the institutions and issuing orders to the military commanders of the states that others should be established, the latter published official notes, swearing in their usual manner that they would sustain the constitution and laws, and that their own object was to punish certain functionaries who had transgressed them, thus availing themselves of the power of destroying the constitution under the pretext of punishing delinquents. This may be seen from the official notes of General Cos and Colonel Ugartechea, in which they seize upon the inexplicable sale of lands as a pretext to justify the imprisonment of the governor of this state, Viesca, proceeding immediately to put down the legislature and other authorities of the state, which the exception of those only established in San Felipe and Nacogdoches, which were out of the reach of their power. To make up for this, General Cos thought proper to make these authorities dependent on himself, and thus making those of popular origin subservient to the military.

Such is the actual relation in which Texas stands to the Mexican republic, I might make conjectures as to the development of this political labyrinth; but I propose to myself to speak only of facts.

The fundamental compact having been dissolved, and all the guarantees of the civil and political rights of citizens having been destroyed, it is inevitable that all the states of the confederation are left at liberty to act for themselves, and require Coahuila and Texas to provide for their security and preservation as circumstances may require. Coahuila and Texas formed a state of the republic, and as one part of this is occupied by an invading force, the free part of it should proceed to organize a power which would restore harmony, and establish order and uniformity in all branches of the public administration, which would be a rallying point for the citizens, whose hearts now tremble for liberty! But as this power can be organized only by means of a convention, which would represent the free will of the citizens of Texas, it is my opinion that this step should be taken, and I suggest the 15th day of October as a time sufficient to allow all the departments to send their representatives.

[To the colonists at Lynch's] [Lorenzo de Zavala]

[P.S.] As among the grounds on which the Mexican officers require the obedience of the inhabitants of Texas, there is one which might influence some by the gratitude occasioned by the recollection of the act, I cannot pass over it in silence. It is said that the inhabitants of Texas are indebted to the supreme government of Mexico and to those of the state for the laws given them the land which they cultivate. This is true: but it must be remembered that those governments were formed of the same men who are now persecuted, among whom I have the honor to count myself one. A party composed of the military, eccesiastics, and Spaniards, would never have thrown open their country to foreigners.

Chicago Citations

Bibliography entry:

Zavala, Lorenzo de. "Opinion of Lorenzo de Zavala to the Citizens of Lynchburg." 1835. English translation. Texas State Library and Archives Commission.

Footnote citation:

Lorenzo de Zavala, "Opinion of Lorenzo de Zavala to the Citizens of Lynchburg," 1835, Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/giants/zav-opinion.html.

Shortened citation:

Zavala, "Opinion to the Citizens of Lynchburg."

PRIMARY SOURCE P13.6

Circular from the Committee of Safety of the Jurisdiction of Austin

Stephen F. Austin and others, Committee of Safety, San Felipe · September 19, 1835

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	Committee leaders call Texans to arms in the name of the federal constitution.
TREATMENT	Full public-domain text

Historical Context

In September 1835 Stephen F. Austin returned from imprisonment in Mexico City and learned that General Martín Perfecto de Cos was marching troops into Texas. Committees of safety formed across the colonies.

This circular from the committee at San Felipe called on Texans to organize militia and to insist on their rights under the Constitution of 1824. Fighting began at Gonzales two weeks later.

Editorial note: The text follows the Texas State Library and Archives Commission transcription from the Mirabeau B. Lamar Papers.

Document Text

Circular from the Committee of Safety of the Jurisdiction of Austin

Information of the most important & decisive character has just been received from Texas, from unquestionable authority, which in the opinion of the Committee, calls for the prompt attention of the people.

The substance of the information is that Genl Cos was expected at Bexar on the 16th of this month with more troops, that he intended to make an immediate attack on the Colonies, that this was a plan to try and foment division & discord among the people, so as to use the part against the other, and prevent preparation, and that the real object is to destroy and break up the foreign settlements in Texas.

This Committee have no doubt of the correctness of this information and therefore recommend — That the people should maintain the position taken by them at the Primary Meeting to insist on their rights, under the Federal Constitution of 1824 and law of 7th May of that year, and union with the Mexican confederation.

That every district should send members to the Genl Consultation, with full powers to do whatever may be necessary for the good of the country.

That every district ought to organize its Militia , where it is not already done, & have frequent musters, and that the Capt of each Company make a return without delay to the Political Chief of this department of the force of his Company, of the arms and amunition [sic], in order that he may lay the same before the General Consultation of Texas.

Volunteer companies are also recommended[.] This Committee deem it a duty to say that, in its opinion, all kind of conciliatory measures with Genl Cos & the military at Bexar are hopeless and that nothing but ruin to Texas can be expected from any such measures. They have already and properly been resorted to without effect.

War is our only resource. There is no other remedy but to defend our rights our country & our selves by force of arms. To do this we must be united: and in order to unite the delegates of the people must meet in General Consultation and organize a system of defence and give organization to the country so as to produce concert.

Until some constitutional authority is established to direct, all that can be done is to recommend. The committees, therefore earnestly recommend this subject to the people and advise every man in Texas to prepare for war, and lay aside all hopes of consiliation [sic].

San Felipe de Austin Sept 19 1835
Signed S F Austin
Chairman of Com[ittee]

Chicago Citations

Bibliography entry:

Committee of Safety of the Jurisdiction of Austin. Circular, September 19, 1835. Mirabeau B. Lamar Papers, Texas State Library and Archives Commission.

Footnote citation:

Committee of Safety of the Jurisdiction of Austin, circular, September 19, 1835, Mirabeau B. Lamar Papers, Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/giants/austin/austin-safety-1.html.

Shortened citation:

Committee of Safety, circular, September 19, 1835.

PRIMARY SOURCE P13.7

Declaration of the People of Texas, in General Convention Assembled

Consultation of 1835 (Spanish translation by Lorenzo de Zavala) · November 7, 1835

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	Texans state that they fought to restore the federal constitution, not to leave Mexico.
TREATMENT	Full public-domain text

Historical Context

In November 1835, after fighting had begun at Gonzales, delegates met at San Felipe in a body known as the Consultation. They set up a provisional government but stopped short of independence.

Their declaration said Texans had taken up arms to defend the federal Constitution of 1824 against Santa Anna and promised loyalty to Mexico if it returned to constitutional rule. Lorenzo de Zavala translated it into Spanish for Tejano readers.

Editorial note: The text follows the Texas State Library and Archives Commission transcription.

Document Text

DECLARATION OF THE PEOPLE OF TEXAS

In General Convention Assembled.

Whereas, General Antonio Lopez de Santa Anna, and other military chieftains, have, by force of arms, overthrown the federal institutions of Mexico, and dissolved the social compact which existed between Texas and the other members of the Mexican confederacy; now the good people of Texas, availing themselves of their natural rights,

SOLEMNLY DECLARE,

1st. That they have taken up arms in defence of their rights and liberties, which were threatened by the encroachments of military despots, and in defence of the republican principles of the federal constitution of Mexico, of eighteen and twenty-four.

2d. That Texas is no longer morally or civilly bound by the compact of union; yet, stimulated by the generosity and sympathy common to a free people, they offer their support and assistance to such of the members of the Mexican confederacy as will take up arms against military despotism.

3d. That they do not acknowledge that the present authorities of the nominal Mexican republic have the right to govern within the limits of Texas.

4th. That they will not cease to carry on war against the said authorities whilst their troops are within the limits of Texas.

5th. That they hold it to be their right during the disorganization of the federal system, and the reign of despotism, to withdraw from the union, to establish an independent government, or to adopt such measures as they may deem best calculated to protect their rights and liberties, but that they will continue faithful to the Mexican government so long as that nation is governed by the constitution and laws that were formed for the government of the political association.

6th. That Texas is responsible for the expense of her armies now in the field.

7th. That the public faith of Texas is pledged for the payment of any debts contracted by her agents.

8th. That she will reward, by donations in lands, all who volunteer their services in her present struggle, and receive them as citizens.

These declarations we solemnly avow to the world, and call God to witness their truth and sincerity, and invoke defeat and disgrace upon our heads, should we prove guilty of duplicity.

Chicago Citations

Bibliography entry:

Consultation of 1835. "Declaration of the People of Texas, in General Convention Assembled." November 7, 1835. Texas State Library and Archives Commission.

Footnote citation:

"Declaration of the People of Texas, in General Convention Assembled," November 7, 1835, Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/giants/zav-declaration.html.

Shortened citation:

Declaration of the People of Texas, 1835.

PRIMARY SOURCE P13.8

Letter from the Alamo ("Victory or Death")

William Barret Travis · February 24, 1836

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The commander's appeal frames the fight as American liberty and character against Mexico.
TREATMENT	Full public-domain text

Historical Context

William Barret Travis (1809–1836), a lawyer from Alabama who had moved to Texas in 1831, commanded the Texan garrison at the Alamo mission in San Antonio de Béxar when Santa Anna's army arrived in February 1836.

On the second day of the siege Travis wrote this appeal for reinforcements. Couriers carried it to San Felipe, and it was printed and reprinted across Texas and the United States. Travis and the defenders died when the Alamo fell on March 6.

Editorial note: The text follows the Texas State Library and Archives Commission transcription of the manuscript, including the postscripts and notes added by the couriers.

Document Text

Send this to San Felipe by Express night & day

To The People of Texas and All Americans

Commandancy of the Alamo—
Bejar, Fby. 24th 1836—

To the People of Texas & all Americans in the world—

Fellow citizens & compatriots—

I am besieged, by a thousand or more of the Mexicans under Santa Anna—I have sustained a continual Bombardment & cannonade for 24 hours & have not lost a man—The enemy has demanded a surrender at discretion, otherwise, the garrison are to be put to the sword, if the fort is taken—I have answered the demand with a cannon shot, & our flag still waves proudly from the walls—I shall never surrender or retreat Then, I call on you in the name of Liberty, of patriotism & & every thing dear to the American character, to come to our aid, with all dispatch—The enemy is receiving reinforcements daily & will no doubt increase to three or four thousand in four or five days. If this call is neglected, I am determined to sustain myself as long as possible & die like a soldier who never forgets what is due to his own honor & that of his country—Victory or Death

William Barret Travis
Lt. Col. comdt

P.S. The Lord is on our side—When the enemy appeared in sight we had not three bushels of corn—We have since found in deserted houses 80 or 90 bushels & got into the walls 20 or 30 head of Beeves—

Travis

Since the above was written I heard a very heavy Cannonade during the whole day think there must have been an attack made upon the alamo We were short of ammunition when I left Hurry on all the men you can in haste

When I left there was but 150 determined to do or die tomorrow I leave for Bejar with what men I can raise [copy here illegible] at all events—

Col. Almonte is there the troops are under the Command of Gen. Seisma

Albert Martin

[printed sideways]

Nb I hope that Every One will Rondevu at gonzales as soon poseble as the Brave Solders are suffering do not neglect this powder is very scarce and should not be delad one moment

L. Smither

Chicago Citations

Bibliography entry:

Travis, William Barret. Letter from the Alamo, February 24, 1836. Texas State Library and Archives Commission.

Footnote citation:

William Barret Travis to "the People of Texas & all Americans in the world," February 24, 1836, Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/republic/alamo/travis-about.html.

Shortened citation:

Travis, letter from the Alamo.

PRIMARY SOURCE P13.9

The Texas Declaration of Independence

Convention at Washington-on-the-Brazos · March 2, 1836

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The declaration's grievances make the strongest case for the revolt as a federalist rebellion, and its silence on slavery is itself evidence.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Delegates elected by Texas municipalities met at Washington-on-the-Brazos in March 1836 while the Alamo was under siege. On March 2 they adopted a declaration drafted largely by George C. Childress.

Modeled on the American Declaration of 1776, it charged Santa Anna with overturning the Constitution of 1824 and listed grievances: no trial by jury, an established church, no public schools, and the disarming of citizens. It does not mention slavery.

Editorial note: The text follows the Avalon Project transcription. The plan's second listing of this document (the Texas State Library facsimile of the engrossed copy) is printed here as one entry.

Document Text

[. . .]

In this expectation they have been cruelly disappointed, inasmuch as the Mexican nation has acquiesced in the late changes made in the government by General Antonio Lopez de Santa Anna, who having overturned the constitution of his country, now offers us the cruel alternative, either to abandon our homes, acquired by so many privations, or submit to the most intolerable of all tyranny, the combined despotism of the sword and the priesthood.

It has sacrificed our welfare to the state of Coahuila, by which our interests have been continually depressed through a jealous and partial course of legislation, carried on at a far distant seat of government, by a hostile majority, in an unknown tongue, and this too, notwithstanding we have petitioned in the humblest terms for the establishment of a separate state government, and have, in accordance with the provisions of the national constitution, presented to the general Congress a republican constitution, which was, without just cause, contemptuously rejected.

It incarcerated in a dungeon, for a long time, one of our citizens, for no other cause but a zealous endeavor to procure the acceptance of our constitution, and the establishment of a state government.

It has failed and refused to secure, on a firm basis, the right of trial by jury, that palladium of civil liberty, and only safe guarantee for the life, liberty, and property of the citizen.

It has failed to establish any public system of education, although possessed of almost boundless resources, (the public domain,) and although it is an axiom in political science, that unless a people are educated and enlightened, it is idle to expect the continuance of civil liberty, or the capacity for self government.

It has suffered the military commandants, stationed among us, to exercise arbitrary acts of oppression and tyrrany, thus trampling upon the most sacred rights of the citizens, and rendering the military superior to the civil power.

It has dissolved, by force of arms, the state Congress of Coahuila and Texas, and obliged our representatives to fly for their lives from the seat of government, thus depriving us of the fundamental political right of representation.

It has demanded the surrender of a number of our citizens, and ordered military detachments to seize and carry them into the Interior for trial, in contempt of the civil authorities, and in defiance of the laws and the constitution.

It has made piratical attacks upon our commerce, by commissioning foreign desperadoes, and authorizing them to seize our vessels, and convey the property of our citizens to far distant ports for confiscation.

It denies us the right of worshipping the Almighty according to the dictates of our own conscience, by the support of a national religion, calculated to promote the temporal interest of its human functionaries, rather than the glory of the true and living God.

It has demanded us to deliver up our arms, which are essential to our defence, the rightful property of freemen, and formidable only to tyrannical governments.

It has invaded our country both by sea and by land, with intent to lay waste our territory, and drive us from our homes; and has now a large mercenary army advancing, to carry on against us a war of extermination.

It has, through its emissaries, incited the merciless savage, with the tomahawk and scalping knife, to massacre the inhabitants of our defenseless frontiers.

It hath been, during the whole time of our connection with it, the contemptible sport and victim of successive military revolutions, and hath continually exhibited every characteristic of a weak, corrupt, and tyrranical government.

These, and other grievances, were patiently borne by the people of Texas, untill they reached that point at which forbearance ceases to be a virtue. We then took up arms in defence of the national constitution. We appealed to our Mexican brethren for assistance. Our appeal has been made in vain. Though months have elapsed, no sympathetic response has yet been heard from the Interior. We are, therefore, forced to the melancholy conclusion, that the Mexican people have acquiesced in the destruction of their liberty, and the substitution therfor of a military government; that they are unfit to be free, and incapable of self government.

The necessity of self-preservation, therefore, now decrees our eternal political separation.

We, therefore, the delegates with plenary powers of the people of Texas, in solemn convention assembled, appealing to a candid world for the necessities of our condition, do hereby resolve and declare, that our political connection with the Mexican nation has forever ended, and that the people of Texas do now constitute a free, Sovereign, and independent republic, and are fully invested with all the rights and attributes which properly belong to independent nations; and, conscious of the rectitude of our intentions, we fearlessly and confidently commit the issue to the decision of the Supreme arbiter of the destinies of nations.

[. . .]

Chicago Citations

Bibliography entry:

Convention of 1836. "The Unanimous Declaration of Independence Made by the Delegates of the People of Texas." March 2, 1836. Avalon Project, Yale Law School.

Footnote citation:

Texas Declaration of Independence, March 2, 1836, Avalon Project, https://avalon.law.yale.edu/19th_century/texdec.asp.

Shortened citation:

Texas Declaration of Independence.

PRIMARY SOURCE P13.10

Address of the Honorable S. F. Austin, Delivered at Louisville, Kentucky (excerpt)

Stephen F. Austin · March 7, 1836

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	Texas's founder makes the federalist case to American audiences, while hinting at fears about slavery.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Stephen F. Austin (1793–1836) founded the largest Anglo-American colony in Mexican Texas and for years urged loyalty to Mexico. After Santa Anna's turn to centralism and his own imprisonment in Mexico City, Austin supported resistance.

Sent to the United States to raise money and volunteers, Austin delivered this address in Louisville. He described the war as a defense of the Constitution of 1824 and of liberty, while also warning of servile war stirred up by "fanatics."

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

When a people consider themselves compelled by circumstances or by oppression, to appeal to arms and resort to their natural rights, they necessarily submit their cause to the great tribunal of public opinion. The people of Texas, confident in the justice of their cause, fearlessly and cheerfully appeal to this tribunal. In doing this the first step is to show, as I trust I shall be able to do by a succinct statement of facts, that our cause is just, and is the cause of light and liberty:-the same holy cause for which our forefathers fought and bled:-the same that has an advocate in the bosom of every freeman, no matter in what country, or by what people it may be contended for.

But a few years back Texas was a wilderness, the home of the uncivilized and wandering Comanche and other tribes of Indians, who waged a constant warfare against the Spanish settlements. These settlements at that time were limited to the small towns of Bexar, (commonly called San Antonio) and Goliad, situated on the western limits. The incursions of the Indians also extended beyond the Rio Bravo del Norta, and desolated that part of the country.

In order to restrain these savages and bring them into subjection, the government opened Texas for settlement. Foreign emigrants were invited and called to that country. American enterprise accepted the invitation and promptly responded to the call. The first colony of Americans or foreigners ever settled in Texas was by myself. It was commenced in 1821, under a permission to my father, Moses Austin, from the Spanish government previous to the Independence of Mexico, and has succeeded by surmounting those difficulties and dangers incident to all new and wilderness countries infested with hostile Indians. These difficulties were many and at times appalling, and can only be appreciated by the hardy pioneers of this western country, who have passed through similar scenes.

[. . .]

It is worthy of particular attention that this declaration affords another and unanswerable proof of the forbearance of the Texans, and of their firm adherence, even to the last moment, to the constitution which they had sworn to support, and to their political obligations as Mexican citizens. For, although at this very time the federal system and constitution of 1824, had been overturned and trampled under foot by military usurpation, in all other parts of the republic, and although our country was actually invaded by the usurpers for the purpose of subjecting us to the military rule, the people of Texas still said to the Mexican nation- "restore the federal constitution and govern in conformity to the social compact, which we are all bound by our oaths to sustain, and we will continue to be a member of the Mexican Confederation." This noble and generous act, for such it certainly was, under the circumstances, is of itself sufficient to repel and silence the false charges which the priests and despots of Mexico have made of the ingratitude of the Texans. In what does this ingratitude consist? I cannot see, unless it be in our enterprise and perseverance, in giving value to a country that the Mexicans considered valueless, and thus exciting their jealousy and cupidity.

To show more strongly the absurdity of this charge of ingratitude made by the general government of Mexico, and of the pretended claims to liberality, which they set up, for having given fortunes in land to the settlers of Texas, it must be remembered, that with the exception of the first three hundred families, settled by myself, the general government have never granted or given one foot of land in Texas. The vacant land belonged to the state of Coahuila and Texas, so long as they remained united, and to Texas so soon as she was a state, separate from Coahuila. Since the adoption of the federal system in 1824, the general government have never had any power or authority whatever to grant, sell, or give any land in Texas, nor in any other state. This power was vested in the respective states. The lands of Texas have therefore been distributed by the state of Coahuila and Texas (with the exception of the three hundred families above mentioned) and not by the general government, and, consequently, it is truly absurd for that government to assume any credit for an act in which it had no participation, and more especially when it has for years past thrown every obstacle in the way, to impede the progress of Texas, as is evident from the 11th article of the law of the 6th April, 1830, which absolutely prohibited the emigration to Texas of citizens of the United States; and many other acts of a similar nature-such as vexatious custom-house regulations, passports, and garrisoning the settled parts of the country where troops were not needed to protect it from the Indians, nor from any other enemy. It is therefore clear that if any credit for liberality is due, it is to the state government, and how far it is entitled to this credit, men of judgment must decide, with the knowledge of the fact that it sold the lands of Texas, at from thirty to fifty dollars per square league, Mexican measure, which is four thousand four hundred and twenty-eight acres English, and considered they were getting a high price and full value for it.

[. . .]

But apart from these great principles of philanthropy, and narrowing down this question to the contracted limits of cold and prudent political calculation, a view may be taken of it, which doubtless has not escaped the penetration of the sagacious and cautious politicians of the United States. It is the great importance of Americanizing Texas,by filling it with a population from this country, who will harmonize in language, in political education, in common origin, in every thing, with their neighbours to the east and north. By this means, Texas will become a great outwork on the west, to protect the outlet of this western world, the mouths of the Mississippi, as Alabama and Florida are on the east; and to keep far away from the southwester frontier-the weakest and most vulnerable in the nation-all enemies who might make Texas a door for invasion, or use it as a theatre from which mistaken philanthropists and wild fanatics, might attempt a system of intervention in the domestic concerns of the south, which might lead to a servile war, or at least jeopardize the tranquility of Louisiana and the neighbouring states.

This view of the subject is a very important one, so much so that a bare allusion to it is sufficient to direct the mind to the various interests and results, immediate and remote, that are involved.

[. . .]

Chicago Citations

Bibliography entry:

Austin, Stephen F. "Address of the Honorable S. F. Austin, Delivered at Louisville, Kentucky, March 7, 1836." Avalon Project, Yale Law School.

Footnote citation:

Stephen F. Austin, "Address Delivered at Louisville, Kentucky," March 7, 1836, Avalon Project, https://avalon.law.yale.edu/19th_century/texind01.asp.

Shortened citation:

Austin, "Address at Louisville."

PRIMARY SOURCE P13.11

Constitution of the Republic of Texas (1836): General Provisions

Convention at Washington-on-the-Brazos · March 17, 1836

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The republic's founding charter protects slavery and racial exclusion in explicit terms.
TREATMENT	Public-domain text, selected sections

Historical Context

The same convention that declared independence in March 1836 wrote a constitution for the new Republic of Texas, finishing it as Santa Anna's army advanced.

Section 9 of the General Provisions kept enslaved people in bondage, barred Congress from freeing them, and forbade free people of African descent to live in Texas without consent. Section 10 granted citizenship but excluded Africans, their descendants, and Indians.

Editorial note: The text follows the Tarlton Law Library transcription, which keeps errors in the original.

Document Text

[. . .]

SEC. 7. So soon as convenience will permit, there shall be a penal code formed on principles of reformation, and not of vindictive justice; and the civil and criminal laws shall be revised, digested, and arranged under different heads; and all laws relating to land titles shall be translated, revised, and promulgated.

SEC. 8. All persons who shall leave the country for the purpose of evading a participation in the present struggle, or shall refuse to participate in it, or shall give aid or assistance to the present enemy, shall forfeit all rights of citizenship and such lands as they may hold in the Republic.

SEC. 9. All persons of color who were slaves for life previous to their emigration to Texas, and who are now held in bondage, shall remain in the like state of servitude, provide the said slave shall be the bona fide property of the person so holding said slave as aforesaid. Congress shall pass no laws to prohibit emigrants from the United States of America from bringing their slaves into the Republic with them, and holding them by the same tenure by which such slaves were held in the United States; nor shall Congress have power to emancipate slaves; nor shall any slave-holder be allowed to emancipate his or her slave or slaves, without the consent of Congress, unless he or she shall send his or her slave or slaves without the limits of the Republic. No free person of African descent, either in whole or in part, shall be permitted to reside permanently in the Republic, without the consent of Congress, and the importation or admission of Africans or negroes into this Republic, excepting from the United States of America, is forever prohibited, and declared to be piracy.

SEC. 10. All persons, (Africans, the descendants of Africans, and Indians excepted,) who were residing in Texas on the day of the Declaration of Independence, shall be considered citizens of the Republic, and entitled to all the privileges of such. All citizens now living in Texas, who have not received their portion of land, in like manner as colonists, shall be entitled to their land in the following proportion and manner: Every head of a family shall be entitled to one league and labor of land, and every single man of the age of seventeen and upwards, shall be entitled to the third part of one league of land. All citizens who may have, previously to the adoption of this Constitution, received their league of land as heads of families, and their quarter of a league of land as single

persons, shall receive such additional quantity as will make the quantity of land received by them equal to one league and "labor" and one-third of a league, unless by bargain, sale, or exchange, they have transferred, or may henceforth transfer their right to said land, or a portion thereof, to some other citizen of the Republic; and in such case the person to whom such right shall have been transferred, shall be entitled to the same, as fully and amply as the person making the transfer might or could have been. No alien shall hold land in Texas, except by titles emanating directly from the Government of this Republic. But if any citizen of this Republic should die intestate or otherwise, his children or heirs shall inherit his estate, and aliens shall have a reasonable time to take possession of and dispose of the same, in a manner hereafter to be pointed out by law. Orphan children, whose parents were entitled to land under the colonization law of Mexico, and who now reside in the Republic, shall be entitled to all the rights of which their parents were possessed at the time of their death. The citizens of the Republic shall not be compelled to reside on the land, but shall have their lines plainly marked.

All orders of survey legally obtained by any citizen of the Republic, from any legally authorized commissioner, prior to the act of the late consultation closing the land offices, shall be valid. In all cases the actual settler and occupant of the soil shall be entitled, in locating his land, to include his improvement, in preference to all other claims not acquired previous to his settlement, according to the law of the land and this Constitution: Provided, That nothing herein contained shall prejudice the rights of any citizen from whom a settler may hold land by rent or lease.

[. . .]

Chicago Citations

Bibliography entry:

Republic of Texas. "Constitution of the Republic of Texas (1836)." In H. P. N. Gammel, *The Laws of Texas, 1822–1897*, vol. 1. Austin: Gammel Book Company, 1898. Tarlton Law Library, University of Texas.

Footnote citation:

Constitution of the Republic of Texas (1836), General Provisions, sec. [number], via Tarlton Law Library, https://tarlton.law.utexas.edu/constitutions/republic-texas-1836/general-provisions.

Shortened citation:

Constitution of the Republic of Texas, General Provisions, sec. [number].

PRIMARY SOURCE P13.12

Treaty of Velasco (public treaty)

David G. Burnet and Antonio López de Santa Anna · May 14, 1836

TOC FIT	Chapter 13 · Essay prompts 13.2 (Why Did Texas Break from Mexico?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The peace terms treat the return of enslaved people as a war aim, and the Rio Grande withdrawal line became the basis of the later border dispute.
TREATMENT	Full public-domain text

Historical Context

After Texan forces captured Santa Anna at San Jacinto in April 1836, the interim president of Texas, David G. Burnet, made him sign two agreements at Velasco, one public and one secret.

The public treaty ended hostilities and required the Mexican army to withdraw south of the Rio Grande and to restore captured property, including enslaved people. The Mexican Congress rejected the treaty because Santa Anna signed it as a prisoner.

Editorial note: The text follows the Avalon Project transcription.

Document Text

Articles of an agreement entered into, between His Excellency David G. Burnet, President of the Republic of Texas, of the one part, and His Excellency General Antonio Lopez de Santa Anna, President General in Chief of the Mexican Army, of the other part.

Article 1st

General Antonio Lopez de Santa Anna agrees that he will not take up arms, nor will he exercise his influence to cause them to be taken up against the people of Texas, during the present war of Independence.

Article 2nd

All hostilities between the mexican and texian troops will cease immediately both on land and water.

Article 3rd

The mexican troops will evacuate the Territory of Texas, passing to the other side of the Rio Grande del Norte.

Article 4th

The mexican Army in its retreat shall not take the property of any person without his consent and just indemnification, using only such articles as may be necessary for its subsistence, in cases when the owner may not be present, and remitting to the commander of the army of Texas or to the commissioner to be appointed for the adjustment of such matters, an account of the value of the property consumed--the place where taken, and the name of the owner, if it can be ascertained.

Article 5th

That all private property including cattle, horses, negro slaves or indentured persons of whatever denomination, that may have been captured by any portion of the mexican army or may have taken refuge in the said army since the commencement of the late invasion, shall be restored to the Commander of the Texian army, or to such other persons as may be appointed by the Government of Texas to receive them.

Article 6th

The troops of both armies will refrain from coming into contact with each other, and to this end the Commander of the army of Texas will be careful not to approach within a shorter distance of the mexican army than five leagues.

Article 7th

The mexican army shall not make any other delay on its march, than that which is necessary to take up their hospitals, baggage [---] and to cross the rivers--any delay not necessary to these purposes to be considered an infraction of this agreement.

Article 8th

By express to be immediately dispatched, this agreement shall be sent to General Filisola and to General T. J. Rusk, commander of the texian Army, in order that they may be apprised of its stipulations, and to this and they will exchange engagements to comply with the same.

Article 9th

That all texian prisoners now in possession of the mexican Army or its authorities be forthwith released and furnished with free passports to return to their homes, in consideration of which a corresponding number of Mexican prisoners, rank and file, now in possession of the Government of Texas shall be immediately released. The remainder of the mexican prisoners that continue in possession of the Government of Texas to be treated with due humanity -- any extraordinary comforts that may be furnished them to be at the charge of the Government of Mexico.

Article 10th

General Antonio Lopez de Santa Anna will be sent to Veracruz as soon as it shall be deemed proper.

The contracting parties sign this Instrument for the above mentioned purposes, by duplicate, at the Port of Velasco this fourteenth day of May 1836.

David G Burnet
Ant. Lopez de Santa Anna
Jas Collinsworth, Sec of State
Bailey Hardeman, Secy of Treasury
T W Grayson, Atty General

Ant. Lopez de Santa Anna
David G Burnet
Jas Collinsworth, Secretary of State
Bailey Hardeman, Secy of Treasury
T W Grayson, Atty General

Chicago Citations

Bibliography entry:

Burnet, David G., and Antonio López de Santa Anna. "Treaty of Velasco." May 14, 1836. Avalon Project, Yale Law School.

Footnote citation:

Treaty of Velasco, May 14, 1836, art. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/velasco.asp.

Shortened citation:

Treaty of Velasco, art. [number].

PRIMARY SOURCE P13.13

Treaty of Velasco (secret treaty)

Antonio López de Santa Anna and David G. Burnet · May 14, 1836

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The secret article on the Rio Grande is the root of the boundary claim Polk later invoked; Mexico never accepted it.
TREATMENT	Full public-domain text

Historical Context

Alongside the public Treaty of Velasco, the captive Santa Anna signed a secret agreement with the Texas government. In it he promised to use his influence to have Mexico receive a Texas commission and recognize Texas independence.

Its fourth article stated that Texas territory would "not extend beyond the Rio Bravo del Norte" (the Rio Grande). Mexico repudiated both agreements, and the Rio Grande boundary claim later became the basis of Polk's position in 1846.

Editorial note: The text follows the Texas State Library and Archives Commission transcription, which keeps errors in the original.

Document Text

Secret Treaty

Antonio Lopez de Santa Anna, General in Chief of the Army of Operations and President of the Republic of Mexico, before the Government established in Texas, solemnly pledges himself to fulfill the stipulations contained in the following Articles, so far as concerns himself.

Art. 1.

He will not take up arms nor cause them to be taken up against the People of Texas during the present War of Independence.

Art. 2d.

He will give his Orders that in the shortest time the Mexican Troops may leave the Territory of Texas.

Art. 3d.

He will so prepare matters in the Cabinet of Mexico that the Mission that may be sent thither by the Government of Texas, may be well received, and that by means of negociations all differences may be settled and the Independence that has been declared by the Convention may be acknowledged

Art. 4.

A treaty of Commerce, Amity and limits will be established between Mexico and Texas. The territory of the latter not to extend beyond the Rio. Bravo del Norte.

Art. 5th

The prompt return of Genl. Santa Anna to Vera Cruz being indispensable for the purpose of effecting his solemn engagements, the Government of Texas will provide for his immediate embarkation for said port.

Art. 6th

This instrument being Obligatory on one part as well as on the other will be signed by duplicate, remaining folded and sealed untill the negociation shall have been concluded, when it will be restored to his Excellency General Santa Anna; no use of it to be made before that time unless there should be an infraction by either of the Contracting parties

Port of Velasco May 14. 1836

(Signed) David G. Burnet

Antonio Lopez de Santa Anna

James Collinsworth Sec. of State

Baily Hardiman Sec. of Treasury

P. H. Grayson Atty Genl.

Chicago Citations

Bibliography entry:

Santa Anna, Antonio López de, and David G. Burnet. "The Treaty of Velasco (Private)." May 14, 1836. Texas State Library and Archives Commission.

Footnote citation:

Treaty of Velasco (Private), May 14, 1836, art. [number], Texas State Library and Archives Commission, https://www.tsl.texas.gov/treasures/republic/velasco-private-1.html.

Shortened citation:

Treaty of Velasco (Private), art. [number].

PRIMARY SOURCE P13.14

The Origin and True Causes of the Texas Insurrection, Commenced in the Year 1835 (excerpt)

"Columbus" (pseudonym) · 1836 (Philadelphia)

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	An anonymous antislavery pamphlet traces the revolt to slavery, smuggling, and land speculation.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

This anonymous pamphlet, signed "Columbus," appeared in Philadelphia in 1836 as Americans debated whether to recognize and annex Texas. The writer is unknown.

Like Benjamin Lundy, the author argued that the Texas insurrection grew from land speculation, smuggling, and the determination of American settlers to hold slaves in defiance of Mexican law.

Editorial note: The text follows the Internet Archive scan. OCR spellings have been kept.

Document Text

[. . .]

did not fail to improve the opportunity ; and many foreigners took lands, professedly with the view of settlement, and engaged extensively in this illicit traffic. Contraband articles — such as arms, ammunition, &c. for the savage tribes — were also introduced in great quantities whenever the vigilance of the government revenue officers could be eluded. Slaves were likewise taken in and held, in violation of the constitution and laws of the State and the decrees of the General Government.

In this state of things, propositions were made by the government of the United States to that of Mexico, for the purchase of the Texas country, with the view of incorporating it into this Union. The overture was instantly rejected by the Mexican authorities, as they neither possessed the inclination nor the constitutional power to alienate any portion of the territory of the Republic. Many of the newspapers in the United States now teemed with essays and remarks, tending to urge the acquisition of Texas by any practicable means ; and the agent of the government was charged with intriguing for the purpose at the Mexican Capital. The idea was also held out by the colonists, that the laws prohibiting the introduction of slaves could be easily evaded, and that they would soon be strong enough to declare and enforce the perpetuation of slavery (although it was abolished by the general and state governments) in that part of the country. The emigration from the slave-holding States to Texas was thus accelerated, in the hope of eventually accomplishing this object. In order to counteract these efforts, the operations of the colonization system were suspended by law in the year 1830. A few troops were then sent to Texas, in addition to a small number previously stationed there, to prevent the illicit and contraband trade, the introduction of slaves, and enforce obedience to the laws generally ; but their number were insufficient for the purpose ; and the regulations of the government were daringly and continually violated with impunity.

About the beginning of the year 1832, a revolution commenced in the administration of the general government of Mexico. In the course of the ensuing summer, it was consummated so far as the state of Coahuila and Texas was immediately interested, and the government troops were all compelled to leave the colonies. The foreign settlers

and traders united with the party opposed to the administration, in this case ; and when the troops were expelled, the custom houses were all closed in that portion of Texas which was principally inhabited by foreigners. Nothing was then in their way, to hinder them from evading every law which they chose to disregard, and many of them expressed their determination to suffer no more government troops to be stationed there in future, if they should be enabled to prevent it, under any Mexican administration. For some length of time thereafter, the political affairs of the Republic were somewhat unsettled, and the colonists in Texas were permitted to pursue their own course, subject only to the civil authority of the State. This they heeded no further than it suited their whims or their interests ; and the laws, forbidding the introduction of slaves, the trade with the Indians in arms &c, and the swindling speculations in land, were considered by them as mere blank leaves in the statute book.

[. . .]

Such are the motives for action — such the combination of interests — such the organization, sources of influence, and foundation of authority, upon which the present Texas Insurrection rests. The resident colonists compose but a small fraction of the party concerned in it. The standard of revolt was raised as soon as it was clearly ascertained that slavery could not be perpetuated, nor the illegal speculations in land continued under the government of the Mexican Republic. The Mexican authorities were charged with acts of oppression, while the true causes of the revolt — the motives and designs of the insurgents — were studiously concealed from the public view. Influential slave-holders are contributing money, equipping troops, and marching to the scene of conflict. The land speculators are fitting out expeditions from New York and New Orleans, with men, munitions of war, provisions, &c, to promote the object. The Independence of Texas is declared, and the system of slavery, as well as the slave trade, (with the United States,) is fully recognised by constitutional regulation. Commissioners are sent from Texas to the United States, to make formal representations, enlist the sympathies of our citizens, and solicit aid in every way that it can be furnished. The subsidized presses are actively employed in magnifying the successes of the insurgents; misrepresenting the character and strength of the Mexican forces; and by inflammatory appeals urging forward the ignorant, the unsuspecting, the adventurous and the daring, to a participation in the struggle.

[. . .]

Chicago Citations

Bibliography entry:

"Columbus" [pseud.]. *The Origin and True Causes of the Texas Insurrection, Commenced in the Year 1835*. Philadelphia, 1836. Internet Archive.

Footnote citation:

"Columbus" [pseud.], *The Origin and True Causes of the Texas Insurrection* (Philadelphia, 1836), [page], https://archive.org/details/origintruecauses00colu.

Shortened citation:

"Columbus," *Origin and True Causes*, [page].

PRIMARY SOURCE P13.15

The War in Texas (excerpt)

Benjamin Lundy · 1836 (Philadelphia: Merrihew and Gunn)

TOC FIT	Chapter 13 · Essay prompt 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The abolitionist editor who knew Mexican Texas offers the earliest full statement of the slavery interpretation of the revolt.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Benjamin Lundy (1789–1839), a Quaker abolitionist and editor of the *Genius of Universal Emancipation*, traveled through Mexican Texas in the early 1830s hoping to found a colony for free Black settlers there.

In this pamphlet, published under a long descriptive title, Lundy argued that the Texas revolution was a long-planned plot by slaveholders and land speculators to reopen Texas to slavery. His argument shaped northern opposition to annexation, including John Quincy Adams's.

Editorial note: The pamphlet was printed in narrow columns; the OCR carries stray column marks such as "|" and "jj" at line ends, which have been kept as scanned. Lundy's argument is openly partisan.

Document Text

IT is "generally admitted, that the war j| in Texas has assumed a character which | must seriously affect both the interests jj and the honour of this nation. It implicates the conduct of a large number of our citizens, and even the policy and measures of the government are deeply involved in it. The subject, as now presented to our view, is indeed one of vital importance to the people of the United States ; and it particularly invites the attention— the most solemn and deliberate consideration — of all who profess to be guided by the true principles of justice and philanthropy. It is not only to be viewed as a matter of interest, at the present day. The great fundamental principles of universal liberty — the perpetuity of our free republican institutions— the prosperity, the welfare, and the happiness of future generations — are measurably connected with the prospective issue of this fierce and bloody conflict.

But the prime cause, and the real objects of this war, are not distinctly understood by a large portion of the honest, disinterested, and well-meaning citizens of the United States. Their means of obtaining correct information upon the subject have been necessarily limited ; and many of them have been deceived and misled, by the misrepresentations of those concerned in it, and especially by hireling writers for the newspaper press. They have been induced to believe that the inhabitants of Texas were engaged in a legitimate contest for the maintenance of the sacred principles of Liberty, and the natural, inalienable Rights of Man : — whereas, the motives of its instigators, and their chief incentives to action, have been, from the commencement, of a directly opposite character and tendency. It is susceptible of the clearest demonstration, that the immediate cause and the leading object of this contest originated in a settled de-

sign, among the slaveholders of this country, (with land-speculators and slave-traders,} to wrest the large and valuable territory of Texas from the Mexican Republic, in order to re-establish the SYSTEM OF SLAVERY; to open a vast and projitable SLAVE- MARKET therein ; and, ultimately, to annex it to the United States. And further, it is evident — nay, it is very generally acknowledged — that the insurrectionists are principally citizens of the United States, who have proceeded thitherybr the purpose of revolutionizing the country ; and that they are dependant upon this nation, for both the physical and pecuniary means, to carry the design into effect. We have a still more important view of the subject. The Slaveholding Interest is now paramount in the Executive branch of our national

government; and its influence operates, indirectly, yet powerfully, through that medium, in favour of this Grand Scheme of Oppression and Tyrannical Usurpation. Whether the national Legislature will join hands with the Executive, and lend its aid to this most unwarrantable, aofcrressive attempt, will depend on the VOICE OF THE PEO- PLE, expressed in their primary assemblies, by their petitions, and through the ballot-boxes.

The writer of this has long viewed, with intense anxiety, the clandestine operations of this unhallowed scheme, and frequently warned the public of the danger to be apprehended, in case of its success. He has carefully noted the preparatory arrangements for its consummation— the combination of influence — the concentration of physical power — the organization of various means — and, finally, the undissembled prosecution of it, by overt acts of violence and bloodshed : — and he now stands pledged to prove, by the exhibition of well attested

facts and documentary evidence, that the original cause, the principal object, and the nature of the contest, are what he has, above, represented them to be. As a preliminary to this exposition, the speech of John Quincy Adams, delivered in the House of Representatives ot the United States, December 25th, 1835, is commended to the notice of the reader. — Speaking of the constitutional powers of Congress, relative to the subject of slave emancipation, and supposing several cases that may be likely to occur, he proceed* as follows : —

[. . .]

Chicago Citations

Bibliography entry:

[Lundy, Benjamin.] *The War in Texas; A Review of Facts and Circumstances, Showing that This Contest Is the Result of a Long Premeditated Crusade against the Government, Set on Foot by Slaveholders, Land Speculators, &c.* Philadelphia: Merrihew and Gunn, 1836. Internet Archive.

Footnote citation:

[Benjamin Lundy], *The War in Texas* (Philadelphia: Merrihew and Gunn, 1836), [page], https://archive.org/details/warintexasreview00lund.

Shortened citation:

Lundy, *War in Texas*, [page].

PRIMARY SOURCE P13.16

A Letter to the Hon. Henry Clay, on the Annexation of Texas to the United States (excerpt)

William Ellery Channing · August 1, 1837 (Boston: James Munroe, 1837)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	An early antislavery critique of annexation explains the Texas revolt as a project of slaveholders and land-hungry settlers.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

William Ellery Channing (1780–1842) was the leading Unitarian minister in Boston and an influential moral voice in New England. He came late to the antislavery cause but wrote against slavery in the 1830s.

When the new Republic of Texas asked to join the United States in 1837, Channing addressed this public letter to Henry Clay, the Kentucky senator. He argued that the Texas revolt had been driven by American settlers and land speculators determined to bring slavery into Mexican territory, and that annexation would spread slavery and invite war with Mexico.

Editorial note: The text follows the Internet Archive scan of the 1837 Boston pamphlet. OCR spellings have been kept except where noted; words broken at line ends have been rejoined.

Document Text

[. . .]

I proceed to another cause of the revolt, and this was the resolution to throw Texas open to slaveholders and slaves. Mexico, at the moment of throwing off the Spanish yoke, gave a noble testimony of her loyalty to free principles, by decreeing, " that no person thereafter should be born a slave or introduced as such into the Mexican States; that all slaves then held, shojald receive stipulated wages, and be subject to no punishment but on trial and judgment by the magistrate." The subsequent acts of the government carried out fully these constitutional provisions. It

is matter of deep grief and humiliation, that the emigrants from this country, whilst boasting of superior civilization, refused to second this honorable policy, intended to set limits to one of the greatest social evils. Slaves were brought into Texas with their masters from the neighboring States of this country. One mode of evading the laws was, to introduce slaves under formal indentures for long periods, in some cases it is said for ninety-nine years. By a decree of the State Legislature of Coahuila and Texas, all indentures for a longer period than ten years were annulled, and provision was made for the freedom of children born during this apprenticeship. This settled, invincible purpose of Mexico to exclude slavery from her limits created as strong a purpose to annihilate her authority in Texas. By this prohibition, Texas was virtually shut against emigration from the Southern and Western portions of this country ; and it is well known that the eyes of the South and West had for some time been turned to this province, as a new market for slaves, as a new field for slave labor, and as a vast accession of political power to the slaveholding States. That such views were prevalent, we know ; for, nefarious as they are, they found their way into the public prints. The project of dismembering a neighboring republic, that slaveholders and slaves might overspread a region which had been consecrated to a free population, was discussed in newspapers as coolly

as if it were a matter of obvious right and unquestionable humanity. A powerful interest was thus created for severing from Mexico her distant province. We have here a powerful incitement to the Texan revolt, and another explanation of the eagerness, with which men and money were thrown from the United States into that region to carry on the war of revolution.

I proceed to another circumstance, which helped to determine or at least to hasten the insurrection; and that was the disappointment of the Texans in their efforts to obtain for themselves an organization as a separate state. Texas and Coahuila had hitherto formed a single State. But the

colonists, being a minority in the joint legislature, found themselves thwarted in their plans. Impatient of this restraint, and probably suffering at times from a union which gave the superiority to others, they prepared for themselves a constitution, by which they were to be erected into a separate State, neglecting in their haste the forms prescribed by the Mexican law. This instrument they forwarded to the capital for the sanction of the General Congress, by whom it was immediately rejected. Its informality was a sufficient reason for its finding no better reception ; but the omission of all provision to secure the country against slavery was a more serious obstacle to its ratification. The irritation of the Texans was great. Once invested with the powers of a State, they would not have found it difficult, in their remoteness from the capital and in the unsettled state of the nation, to manage their affairs in their own

[. . .]

Chicago Citations

Bibliography entry:

Channing, William Ellery. *A Letter to the Hon. Henry Clay, on the Annexation of Texas to the United States*. Boston: James Munroe, 1837. Internet Archive.

Footnote citation:

William Ellery Channing, *A Letter to the Hon. Henry Clay, on the Annexation of Texas to the United States* (Boston: James Munroe, 1837), [page], https://archive.org/details/lettertohonhenry00chan.

Shortened citation:

Channing, *Letter to Clay*, [page].

PRIMARY SOURCE P13.17

Speech of John Quincy Adams on the Right to Petition and on the Annexation of Texas (excerpt)

John Quincy Adams · House of Representatives, June 16–July 7, 1838 (Washington: Gales and Seaton, 1838)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The leading antislavery voice in Congress attacks annexation as a slaveholders' project, showing that northern resistance made expansion anything but a consensus.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

After his presidency, John Quincy Adams (1767–1848) served in the House of Representatives from Massachusetts and led the fight against the "gag rule" that blocked antislavery petitions. In the summer of 1838 he used the morning hour, day after day, to present petitions against the annexation of Texas.

Adams argued that annexation was a plan to enlarge slavery's power and that the Texas revolution had been a slaveholders' project. Congress adjourned before he finished, and Texas withdrew its request for annexation later that year.

Editorial note: The text follows the Internet Archive scan of the 1838 pamphlet printing of the speech. OCR spellings have been kept.

Document Text

[. . .]

Petitions for the abolition of slavery and the slave trade in the District of Columbia and the Territories, for the prohibition of the internal traffic in slaves, and against the admission into the Union of any new slave State, to the number of about twenty thousand signers, had, at an early period of the session, been referred to the committee which reported this and two other congenial resolutions. The two others they had been instructed to report. Their motive for reporting the third was expressed by themselves to bo, that it was " extremely important and desirable that the agitation of this subject should be finally arrested, for the purpose of restoring tranquillity to the public mindy

This tranquillizing resolution was adopted at so late a period of the session, that, excepting the convulsive movement by which it was carried through the House, it had little effbct, and it expired with the session ; but so conspicuous were its sedative properties, that at the ensuing session (that of 1836-'37) it multiplied fivefold the anti-slavery petitions. After one or two abortive attempts to elicit from the House J? refusal to receive such petitions, they were, on the 19th of January, 1837, all disposed of by repeating the gag-resolution of the preceding session.

[. . .]

This measure, thus precipitated for the purpose of hastening and facilitating the annexation of Texas to this Union, was, in the wise and just decrees of Providence, destined to raise, perhaps, the most eft'ective obstacles to its consummation. Just before the warlike message of the 7ih of February, the captive Mexican President had been released by his Texian conqueror, and sent to Washington, to negotiate in person the cession by Mexico of Texas to the United States of the North. This negotiation, which commenced by correspondence in writing, apparently

failed only because the Mexican Congress had formally decreed and notified a total suspension of his official powers during his captivity. The acquisition of Texas by purchase from Mexico having thus become desperate, the next step towards obtaining it was b}' acknowledging the independence of Texas, and at the same time fretting the people of this Union into a war with Mexico, making with Texas a common cause against her, and thus extorting by conquest what it had been found impracticable to obtain by negotiation. And when once engaged with Texas against Mexico, the annexation of the new slave-ridden Republic to this Union was foreseen as bearing upon us with a pressure which nothing could resist.

But it was essential to the success of this system of policy, that it should continue to be pursued by indirect means and with a double face. Immediately after the formal recognition of Texas as an independent State, the Legislature of that Republic, instructed by the People, directed their President (Houston) to make application to the Government of the United States for admission to this Union. This application was accordingly made, by a Minister Plenipotentiary, Mr. Memucan Hunt, precisely at the time of the meeting of Congress at their special session in September, 1837. The proposal had been made by a note from Mr. Hunt dated the 4th of August, and declined by the answer of the Secretary of State, Mr. Forsyth, on the 25th of that month, only one week before the meeting of Congress. No notice whatever of this transaction was taken by President Van Buren in his message to Congress of tlie 1st of September ; nor would the nation have known thai such a negotiation existed, but for a call by the House of Representatives, on the 13th of September, upon the President, for information whether a proposition had been made, on the part of the Republic of Texas, for annexation ; and, if so, what answer had been returned thereto.

[. . .]

Chicago Citations

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Adams, John Quincy. *Speech of John Quincy Adams, of Massachusetts, upon the Right of the People, Men and Women, to Petition; on the Freedom of Speech and of Debate in the House of Representatives of the United States; on the Resolutions of Seven State Legislatures, and the Petitions of More than One Hundred Thousand Petitioners, Relating to the Annexation of Texas to This Union*. Washington, DC: Gales and Seaton, 1838. Internet Archive.

Footnote citation:

John Quincy Adams, *Speech . . . upon the Right of the People, Men and Women, to Petition . . . Relating to the Annexation of Texas to This Union* (Washington, DC: Gales and Seaton, 1838), [page], https://archive.org/details/speechofjohnquin00adam.

Shortened citation:

Adams, *Speech on the Right to Petition*, [page].

PRIMARY SOURCE P13.18

The Life and Adventures of James P. Beckwourth, Chapter XXXII (excerpt)

James P. Beckwourth, as told to T. D. Bonner · events of 1842–1844 (published New York, 1856)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A Black mountain man's own account of trade, marriage, and settlement on the Mexican frontier shows individuals moving west for profit and opportunity.
TREATMENT	Open-edition substitution, selected excerpt

Historical Context

James P. Beckwourth (c. 1798–1866) was born enslaved in Virginia, freed by his white father, and became a fur trapper, trader, and scout who lived for years among the Crow. In the 1850s he dictated his life story to T. D. Bonner, a California justice of the peace, who edited and published it in 1856.

This chapter covers Beckwourth's trading at Taos (St. Fernandez) in Mexican New Mexico, his founding of a trading post that became Pueblo on the Arkansas River, and his move to Mexican California in 1844. Because Bonner shaped the text, readers should treat its details with care.

Editorial note: The Norton collection prints a longer selection from a 1969 Arno Press reprint. This reader reproduces the public-domain 1856 first edition as transcribed on Wikisource, Chapter XXXII only. The book is an as-told-to narrative edited by T. D. Bonner.

Document Text

[. . .]

We passed on into St. Fernandez, and found quite a number of American traders there, established in business, and supplying both mountaineers and Indians with goods. Here I encountered an old acquaintance, named Lee, with whom I entered into partnership. We purchased one hundred gallons of alcohol, and a stock of fancy articles, to return to the Indian country, and trade for robes and other peltry. We visited the Cheyennes on the South Fork of the Platte. We passed Bent's fort on our way thither. He hailed us, and inquired where we were going. I informed him that we were on our way to the Cheyenne village. He begged me not to go, as I valued my safety. It was only the day previous, he said, that he had traded with them, and bought eighteen horses from their village. They came the next morning and took them forcibly back, and threatened him with their guns if he said a word about their proceedings. I replied to him that I anticipated no danger, and left him to pass on to their village.

[. . .]

We shot several buffalo on our way, enough to load all our horses with meat and tallow. We exchanged our effects in Santa Fé for goods, and carried them to St. Fernandez, a distance of sixty miles. Here we established a store as our headquarters for the Indian trade, where I resided some time, living very fast and happily, according to the manner of the inhabitants. Among other doings, I got. married to Senorita Louise Sandeville.

In the fall I returned to the Indian country, taking my wife with me. We reached the Arkansas about the first of October, 1842, where I erected a trading-post, and opened a successful business. In a very short time I was joined by from fifteen to twenty free trappers, with their families. We all united our labours, and constructed an adobe fort sixty yards square. By the following spring we had grown into quite a little settlement, and we gave it the name of Pueblo. Many of the company devoted themselves to agriculture, and raised very good crops the first season, such as wheat, corn, oats, potatoes, and abundance of almost all kinds of vegetables.

When the spring trade was over, I sent all my peltry to Independence, and bought with the proceeds three thousand dollars worth of articles, suitable for the trade in New Mexico. But, on the arrival of the goods, the whole country was in a ferment on account of Colonel Cook's expedition from Texas, which resulted so disastrously for the parties concerned. This affected the minds of the New Mexicans unfavourably for my interest, inasmuch as their former preference for United States novelties was now turned into strong repugnance for everything American. I therefore could obtain no sale for my goods, and determined to return to my Indian friends. I bought a load of whisky to trade for horses to pack my goods to California, where I intended removing. I succeeded in my adventure, and obtained forty horses and mules, upon which I packed my merchandize, and quickly found myself on the way to the "golden state."

I started with fifteen men, three of whom were Mexicans. When I reached the Utah country, I found that the Indians were waging exterminating war upon the Mexicans, but I did not learn it in time to save my three unhappy followers, who, lagging too far in the rear, were set upon by the Indians and slain. In passing through their country I did considerable trading, exchanging my merchandize for elk, deer, and antelope skins, very beautifully dressed.

I arrived in Pueblo de Angeles (California) in January, 1844. There I indulged my new passion for trade, and did a very profitable business for several months. At the breaking out of the revolution in 1845, I took an active part against the mother country, of which I will furnish some details in my next chapter.

[. . .]

Chicago Citations

Bibliography entry:

Beckwourth, James P. *The Life and Adventures of James P. Beckwourth, Mountaineer, Scout, and Pioneer, and Chief of the Crow Nation of Indians*. Edited by T. D. Bonner. New York: Harper & Brothers, 1856. Wikisource.

Footnote citation:

James P. Beckwourth, *The Life and Adventures of James P. Beckwourth*, ed. T. D. Bonner (New York: Harper & Brothers, 1856), chap. 32, https://en.wikisource.org/wiki/The_Life_and_Adventures_of_James_P._Beckwourth/Chapter_32.

Shortened citation:

Beckwourth, *Life and Adventures*, chap. 32.

PRIMARY SOURCE P13.19

Letter of Mr. Walker, of Mississippi, Relative to the Annexation of Texas (excerpt)

Robert J. Walker · January 8, 1844 (Washington: Globe Office, 1844)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The most influential annexation pamphlet mixes racial fears about free Black people with commercial and strategic arguments for taking Texas.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Robert J. Walker (1801–1869), a senator from Mississippi and later Polk's secretary of the treasury, wrote the most widely circulated case for annexing Texas. Democrats printed hundreds of thousands of copies in 1844.

Walker aimed his argument at northern readers. He claimed that Texas would act as a "safety valve": slavery and enslaved people would gradually drain south through Texas into Mexico and Central America, sparing the North a growing free Black population. He also stressed Texas's commercial and strategic value.

Editorial note: The text follows the Internet Archive scan of the 1844 pamphlet. OCR spellings such as "slaveholdlng" have been kept.

Document Text

[. . .]

the locality of the slaves, and of the slaveholdlng States, without augmenting their number. And is Texas to be lost to the Union, not by the question of the existence of slavery, but of its locality only? If slavery be considered by the States of the North as an evil, why should they prefer that its location should be continued in States on their border, rather than in the more distant)3ortions of the Union. It is clear that, as slavery advanced in Texas, it would recede from the States bordering on the free States of the North and West; and thus they would be released from actual contact with what they consider an evil, and also from all influx from those States of a large and constantly augmenting free black population. As regards the slaves, the African being from a tropical climate, and from the region of the burning sands and sun, his comfort and condition would be greatly improved, by a transfer from northern latitudes to the genial and most salubrious climate of Texas. There he would never suffer from that exposure to cold and frost, which he feels so much more severely than any other race; and there, also, from the great fertility of the soil, and exuberance of its products, his supply of food "would be abundant. If a desire to improve the condition and increase the comforts of the slave really animated the anti-slavery party, they would be the warmest advocates of the reannexation of Texas. Nor can it be disguised that, by the reannexation, as the number of free blacks augmented in the slaveholding States, they would be diffused gradually through Texas into Mexico, and Central and Southern America, where nine-tenths of their present population are already of the colored races, and where, from their vast preponderance in number, they are not a degraded caste, but upon a footing, not merely of legal, but what is far more important, of actual equality with the rest of the population. Here, then, if Texas isreannexed throughout the vast region and salubrious and delicious climate of Mexico, and of Centra] and Southern America, a large and rapidly increasing portion of the African race will disappear from the limits of the Union. The process will be gradual and progressive, without a shock, and without a con- Yulsion; whereas, by the loss of Texas, and the imprisonment of the slave population of the Union within its present limits, slavery would hvcrease in nearly all the slaveholdlng Slates, and a change in their condition would become impossible; or if it did take place by sudden or gradual abolition, the result would as certainly be the sudden or

gradual introduction of hundreds of thousands of free blacks into the States of the North; and if their condition there is already deplorable, how would it be when their number there should be augmented tenfold, and the burden become intolerable?" Then, indeed, by the loss of the markets of Texas — by the taxation imposed by an immense free black population, depressing the value of all property — then, also, from the competition for employment of the free black with the white laborer of the North, — his wages would be reduced until they would fall to ten or twenty cents a day, and starvation and misery would be introduced among the white laboring population. There is but one way in which tlie North can escape these evils; and that is the reannexation of Texas, which is the only safety-valve for the whole Union, and the only practicable outlet for the African population, through Texas, into Mexico and Central and Southern America. There is a congenial climaie for the African race. There

[. . .]

Chicago Citations

Bibliography entry:

Walker, Robert J. *Letter of Mr. Walker, of Mississippi, in Reply to the Call of the People of Carroll County, Kentucky, to Communicate His Views Relative to the Reannexation of Texas*. Washington, DC: Globe Office, 1844. Internet Archive.

Footnote citation:

Robert J. Walker, *Letter of Mr. Walker, of Mississippi, in Reply to the Call of the People of Carroll County, Kentucky . . . Relative to the Reannexation of Texas* (Washington, DC: Globe Office, 1844), [page], https://archive.org/details/letterofmrwalker00walk.

Shortened citation:

Walker, *Letter Relative to the Annexation of Texas*, [page].

PRIMARY SOURCE P13.20

Report of the Exploring Expedition to the Rocky Mountains (selected passages)

John C. Frémont · 1843–1844 expedition (report printed Washington, 1845)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A government explorer's widely read report shows families already on the trail and describes California's soil, harbors, and settlements for readers back east.
TREATMENT	Public-domain text, selected passages

Historical Context

John Charles Frémont (1813–1890), an officer of the U.S. Army's Corps of Topographical Engineers, led government expeditions across the West in 1842 and 1843–44. His second expedition crossed the Oregon Trail, the Sierra Nevada, and Mexican California, where he rested at John Sutter's fort on the Sacramento River.

Congress printed thousands of copies of the report, and emigrants carried it as a guidebook. Frémont's prose, polished with the help of his wife, Jessie Benton Frémont, made the trail look passable and California look inviting. The passages below follow emigrant families on the road and describe Sutter's settlement.

Editorial note: The text follows the 1845 congressional printing as transcribed by Project Gutenberg. The Norton collection prints these passages from a 1966 facsimile of the same report; the wording is the same report, but the reader's selection is narrower.

Document Text

We continued our road down the river, and at night encamped with a family of emigrants--two men, women, and several children--who appeared to be bringing up the rear of the great caravan. I was struck with the fine appearance of their cattle, some six or eight yoke of oxen, which really looked as well as if they had been all the summer at work on some good farm. It was strange to see one small family traveling along through such a country, so remote from civilization. Some nine years since, such a security might have been a fatal one, but since their disastrous defeats in the country a little north, the Blackfeet have ceased to visit these waters. Indians however, are very uncertain in their localities; and the friendly feelings, also, of those now inhabiting it may be changed.

According to barometrical observation at noon, the elevation Of the valley was 6,400 feet above the sea; and our encampment at night in latitude 42° 03' 47", and longitude 111° 10' 53", by observation--the day's journey having been 26 miles. This encampment was therefore within the territorial limit of the United States; our traveling, from the time we entered the valley of the Green river, on the 15th of August, having been south of the 42d degree of north latitude, and consequently on Mexican territory; and this is the route all the emigrants now travel to Oregon.

The temperature at sunset was 65°; and at evening there was a distant thunder-storm, with a light breeze from the north.

Antelope and elk were seen during the day on the opposite prairie; and there were ducks and geese in the river.

The next morning, in about three miles from our encampment, we reached Smith's fork, a stream of clear water, about 50 feet in breadth. It is timbered with cottonwood, willow, and aspen, and makes a beautiful debouchement through a pass about 600 yards wide, between remarkable mountain hills, rising abruptly on either side, and forming gigantic columns to the gate by which it enters Bear River valley. The bottoms, which below Smith's fork had been two miles wide, narrowed as we advanced to a gap 500 yards wide, and during the greater part of the day we had a winding route, the river making very sharp and sudden bends, the mountains steep and rocky, and the

valley occasionally so narrow as only to leave space for a passage through.

We made our halt at noon in a fertile bottom, where the common blue flax was growing abundantly, a few miles below the mouth of Thomas's fork, one of the larger tributaries of the river.

Crossing, in the afternoon, the point of a narrow spur, we descended into a beautiful bottom, formed by a lateral valley, which presented a picture of home beauty that went directly to our hearts. The edge of the wood, for several miles along the river, was dotted with the white covers of emigrant wagons, collected in groups at different camps, where the smoke was rising lazily from the fires, around which the women were occupied in preparing the evening meal, and the children playing in the grass; and herds of cattle, grazing about in the bottom, had an air of quiet security, and civilized comfort, that made a rare sight for the traveler in such a remote wilderness.

In common with all the emigration, they had been reposing for several days in this delightful valley, in order to recruit their animals on its luxuriant pasturage after their long journey, and prepare them for the hard travel along the comparatively sterile banks of the Upper Columbia. At the lower end of this extensive bottom, the river passes through an open canon, where there were high vertical rocks to the water's edge, and the road here turns up a broad valley to the right. It was already near sunset; but, hoping to reach the river again before night, we continued our march along the valley, finding the road tolerably good, until we arrived at a point where it crosses the ridge by an ascent of a mile in length, which was so very steep and difficult for the gun and carriage, that we did not reach the summit until dark.

It was absolutely necessary to descend into the valley for water and grass; and we were obliged to grope our way in the darkness down a very steep, bad mountain, reaching the river at about ten o'clock. It was late before our animals were gathered into the camp, several of those which were very weak being necessarily left to pass the night on the ridge; and we sat down again to a midnight supper. The road, in the morning, presented an animated appearance. We found that we had encamped near a large party of emigrants; and a few miles below, another party was already in motion. Here the valley had resumed its usual breadth, and the river swept off along the mountains on the western side, the road continuing directly on.

[. . .]

Chicago Citations

Bibliography entry:

Frémont, John Charles. *Report of the Exploring Expedition to the Rocky Mountains in the Year 1842, and to Oregon and North California in the Years 1843–'44*. Washington, DC: Gales and Seaton, 1845. Project Gutenberg eBook #9294.

Footnote citation:

John Charles Frémont, *Report of the Exploring Expedition to the Rocky Mountains in the Year 1842, and to Oregon and North California in the Years 1843–'44* (Washington, DC: Gales and Seaton, 1845), [page], Project Gutenberg eBook #9294.

Shortened citation:

Frémont, *Report of the Exploring Expedition*, [page].

PRIMARY SOURCE P13.21

Treaty of Annexation between the United States and the Republic of Texas

United States and the Republic of Texas · April 12, 1844

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	The treaty's terms and its defeat in the Senate show that annexation was contested, not automatic.
TREATMENT	Full public-domain text

Historical Context

Secretary of State John C. Calhoun negotiated this treaty with Texas commissioners in the spring of 1844. President John Tyler sent it to the Senate, which needed a two-thirds vote to ratify it.

The Senate rejected the treaty 35 to 16 in June 1844, after Calhoun's public letter defending annexation as a protection for slavery angered northern senators. Annexation came instead through a joint resolution of Congress in early 1845.

Editorial note: The text follows the Avalon Project transcription, which reproduces Hunter Miller's edition of U.S. treaties (1934).

Document Text

A Treaty of Annexation, concluded between the United States of America and the Republic of Texas.

The people of Texas having, at the time of adopting their constitution, expressed by an almost unanimous vote, their desire to be incorporated into the Union of the United States, and being still desirous of the same with equal unanimity, in order to provide more effectually for their security and prosperity; and the United States, actuated solely by the desire to add to their own security and prosperity, and to meet the wishes of the Government and people of Texas, have determined to accomplish, by treaty, objects so important to their mutual and permanent welfare:

For that purpose, the President of the United States has given full Powers to John C. Calhoun, Secretary of State of the said United States, and the President of the Republic of Texas has appointed, with like powers, Isaac Van Zandt and J. Pinckney Henderson, citizens of the said Republic: and the said plenipotentiaries, after exchanging their full powers, have agreed on and concluded the following articles:

ARTICLE I.

The Republic of Texas, acting in conformity with the wishes of the people and every department of its government, cedes to the United States all its territories, to be held by them in full property and sovereignty, and to be annexed to the said United States as one of their Territories, subject to the same constitutional provisions with their other Territories. This cession includes all public lots and squares, vacant lands, mines, minerals, salt lakes and springs, public edifices, fortifications, barracks, ports and harbours, navy and navy-yards, docks, magazines, arms, armaments and accoutrements, archives and public documents, public funds debts, taxes and dues unpaid at the time of the exchange of the ratifications of this treaty.

ARTICLE II.

The citizens of Texas shall be incorporated into the Union of the United States, maintained and protected in the free enjoyment of their liberty and property and admitted, as soon as may be consistent with the principles of the federal constitution, to the enjoyment of all the rights, privileges and immunities of citizens of the United States.

ARTICLE III.

All titles and claims to real estate, which are valid under the laws of Texas, shall be held to be so by the United States; and measures shall be adopted for the speedy adjudication of all unsettled claims to land, and patents shall be granted to those found to be valid.

ARTICLE IV.

The public lands hereby ceded shall be subject to the laws regulating the public lands in the other Territories of the United States, as far as they may be applicable; subject, however, to such alterations and changes as Congress may from time to time think proper to make. It is understood between the parties that if, in consequence of the mode in which lands have been surveyed in Texas, or from previous grants or locations, the sixteenth section cannot be applied to the purpose of education, Congress shall make equal provision by grant of land elsewhere. And it is also further understood, that, hereafter, the books, papers and documents of the General Land Office of Texas shall be deposited and kept at such place in Texas as the Congress of the United States shall direct.

ARTICLE V.

The United States assume and agree to pay the public debts and liabilities of Texas, however created, for which the faith or credit of her government may be bound at the time of the exchange of the ratifications of this treaty; which debts and liabilities are estimated not to exceed, in the whole, ten minions of dollars, to be ascertained and paid in the manner hereinafter stated.

The payment of the sum of three hundred and fifty thousand dollars shall be made at the Treasury of the United States within ninety days after the exchange of the ratifications of this treaty, as follows: Two hundred and fifty thousand dollars to Frederick Dawson, of Baltimore, or his Executors, on the delivery of that amount of ten per cent. bonds of Texas: One hundred thousand dollars, if so much be required, in the redemption of the Exchequer bills which may be in circulation at the time of the exchange of the ratifications of this treaty. For the payment of the remainder of the debts and liabilities of Texas, which, together with the amount already specified, shall not exceed ten millions of dollars, the public lands herein ceded and the nett revenue from the same are hereby pledged.

ARTICLE VI.

In order to ascertain the full amount of the debts and liabilities herein assumed, and the legality and validity thereof, four commissioners shall be appointed by the President of the United States, by and with the advice and consent of the Senate, who shall meet at Washington, Texas, within the period of six months after the exchange of the ratifications of this treaty, and may continue in session not exceeding twelve months, unless the Congress of the United States should prolong the time. They shall take an oath for the faithful discharge of their duties, and that they are not directly or indirectly interested in said claims at the time, and will not be during their continuance in office; and the said oath shall be recorded with their proceedings. In case of the death, sickness or resignation of any of the commissioners, his or their place or places may be supplied by the appointment as aforesaid or by the President of the United States during the recess of the Senate. They, or a majority of them, shall be authorized, under such regulations as the Congress of the United States may prescribe, to hear, examine and decide on all questions touching the legality and validity of said claims, and shall, when a claim is allowed, issue a certificate to the claimant, stating the amount, distinguishing principal from interest. The certificates so issued shall be numbered, and entry made of the number, the name of the person to whom issued, and the amount, in a book to be kept for that purpose. They shall transmit the records of their proceedings and the book in which the certificates are entered, with the vouchers and documents produced before them, relative to the claims allowed or rejected, to the Treasury Department of the United States, to be deposited therein, and the Secretary of the Treasury shall, as soon as practicable after the receipt of the same, ascertain the aggregate amount of the debts and liabilities allowed; and if the same, when added to the amount to be paid to Frederick Dawson and the sum which

may be paid in the redemption of the Exchequer bills, shall not exceed the estimated sum of ten millions of dollars, he shall, on the presentation of a certificate of the commissioners, issue, at the option of the holder, a new certificate for the amount, distinguishing principal from interest, and payable to him or order, out of the nett proceeds of the public lands, hereby ceded, or stock, of the United States, for the amount allowed, including principal and interest, and bearing an interest of three per cent. per annum from the date thereof; which stock, in addition to being made payable out of the nett proceeds of the public lands hereby ceded shall also be receivable in payment for the same. In case the amount of the debts end liabilities allowed, with the sums aforesaid to be paid to Frederick Dawson and which mav be paid in the redemption of the Exchequer bills, shall exceed the said sum of ten millions of dollars, the said Secretary, before issuing a new certificate, or stock, as the case may be, shall make in each case such proportionable and rateable reduction on its amount as to reduce the aggregate to the said sum of ten millions of doUars, and he shall have power to make an needful rules and regulations necessary to carry into effect the powers hereby vested in him.

[. . .]

Chicago Citations

Bibliography entry:

"The Treaty of Annexation—Texas; April 12, 1844." In *Treaties and Other International Acts of the United States of America*, edited by Hunter Miller, vol. 4. Washington, DC: Government Printing Office, 1934. Avalon Project, Yale Law School.

Footnote citation:

"The Treaty of Annexation—Texas; April 12, 1844," art. [number], in *Treaties and Other International Acts of the United States of America*, ed. Hunter Miller, vol. 4 (Washington, DC: Government Printing Office, 1934), Avalon Project, https://avalon.law.yale.edu/19th_century/texan05.asp.

Shortened citation:

"Treaty of Annexation," art. [number].

PRIMARY SOURCE P13.22

Message to the Senate Transmitting a Treaty of Annexation with the Republic of Texas (excerpt)

John Tyler · April 22, 1844

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	The president's case for annexation joins commercial benefits to the defense of slavery and the claim that Texans were Americans.
TREATMENT	Public-domain text, selected excerpts

Historical Context

John Tyler (1790–1862), a Virginia slaveholder who became president when William Henry Harrison died in 1841, made Texas annexation the central goal of his administration.

In this message sending the treaty to the Senate, Tyler stressed the American origins of the Texans, the value of Texas cotton, sugar, and rice, and the danger that Britain might gain influence in Texas and threaten its "domestic institutions"—that is, slavery.

Editorial note: The text follows the transcription at the American Presidency Project, which reproduces Richardson's *Messages and Papers of the Presidents*.

Document Text

[. . .]

The country thus proposed to be annexed has been settled principally by persons from the United States, who emigrated on the invitation of both Spain and Mexico, and who carried with them into the wilderness, which they have partially reclaimed, the laws, customs, and political and domestic institutions of their native land. They are deeply indoctrinated in all the principles of civil liberty, and will bring along with them, in the act of reassociation, devotion to our Union, and a firm and inflexible resolution to assist in maintaining the public liberty unimpaired—a consideration which, as it appears to me, is to be regarded as of no small moment. The country itself, thus obtained, is of incalculable value in an agricultural and commercial point of view. To a soil of inexhaustible fertility, it unites a genial and healthy climate, and is destined, at a day not distant, to make large contributions to the commerce of the world. Its territory is separated from the United States, in part, by an imaginary line, and by the river Sabine for a distance of 310 miles; and its productions are the same with those of many of the contiguous States of the Union. Such is the country, such are its inhabitants, and such its capacities to add to the general wealth of the Union. As to the latter, it may be safely asserted that, in the magnitude of its productions, it will equal, in a short time, under the protecting care of this Government, if it does not surpass, the combined production of many of the States of the confederacy. A new and powerful impulse will thus be given to the navigating interest of the country, which will be chiefly engrossed by our fellow-citizens of the eastern and middle States, who have already attained a remarkable degree of prosperity by the partial monopoly they have enjoyed of the carrying trade of the Union, particularly the coastwise trade, which this new acquisition is destined in time, and that not distant, to swell to a magnitude which cannot easily be computed ; while the addition made to the boundaries of the home market, thus secured to their mining, manufacturing, and mechanical skill and industry, will be of a character the most commanding and important. Such are some of the many advantages which will accrue to the eastern and middle States by the ratification of the treaty—advantages, the extent of which it is

impossible to estimate with accuracy, or properly to appreciate. Texas, being adapted to the culture of cotton, sugar, and rice, and devoting most of her energies to the raising of these productions, will open an extensive market to the western States, in the important articles of beef, pork, horses, mules, &c., as well as in breadstuffs. At the same time, the southern and southwestern States will find, in the fact of annexation, protection and security to their peace and tranquillity, as Well against all domestic as foreign efforts to disturb them; thus consecrating anew the Union of the States, and holding out the promise of its perpetual duration. Thus, at the same time that the tide of public prosperity is greatly swollen, an appeal, of what appears to the Executive to be of an imposing, if not of a resistless character, is made to the interests of every portion of the country. Agriculture, which would have a new and extensive market opened for its produce; commerce, whose ships would be freighted with the rich productions of an extensive and fertile region; and the mechanical arts, in all their various ramifications, would seem to unite in one universal demand for the ratification of the treaty. But, important as these considerations may appear, they are to be regarded as but secondary to others. Texas, for reasons deemed sufficient by herself, threw off her dependence on Mexico as far back as 1836, and consummated her independence by the battle of San Jacinto, in the same year; since which period, Mexico has attempted no serious invasion of her territory, but the contest has assumed features of a mere border war, characterized by acts revolting to humanity. In the year 1836 Texas adopted her constitution, under which she has existed as a sovereign power ever since, having been recognised as such by many of the principal powers of the world; and contemporaneously with its adoption, by a solemn vote of her people, embracing all her population but ninety-three persons, declared her anxious desire to be admitted into association with the United States, as a portion of their territory. This vote, thus solemnly taken, has never been reversed; and now, by the action of her constituted authorities, sustained as it is by popular sentiment, she reaffirms her desire for annexation. This course has been adopted by her, without the employment of any sinister measures on the part of this Government. No intrigue has been set on foot to accomplish it. Texas herself wills it; and the Executive of the United States, concurring with her, has seen no sufficient reason to avoid the consummation of an act esteemed to be so desirable by both. It cannot be denied that Texas is greatly depressed in her energies by her long-protracted war with Mexico. Under these circumstances, it is but natural that she should seek for safety and repose under the protection of some stronger power; and it is equally so that her people should turn to the United States, the land of their birth, in the first instance, in pursuit of such protection. She has often before made known her wishes; but her advances have, to this time, been repelled. The Executive of the United States sees no longer any cause for pursuing such a course. The hazard of now defeating her wishes may be of the most fatal tendency. It might lead, and most probably would, to such an entire alienation of sentiment and feeling, as would inevitably induce her to look elsewhere for aid, and force her either to enter into dangerous alliances with other nations, who, looking with more wisdom to their own interests, would, it is fairly to be presumed, readily adopt such expedients; or she would holdout the proffer of discriminating duties in trade and commerce, in order to secure the necessary assistance. Whatever step she might adopt, looking to this object, would prove disastrous, in the highest degree, to the interests of the whole Union. To say nothing of the impolicy of our pertaining the carrying trade and. home market of such a country to pass out of our hands into those of a commercial rival, the Government, in the first place, would be certain to suffer most disastrously in its revenue by the introduction of a system of smuggling, upon an extensive scale, which an army of custom-house officers could not prevent, and which would operate to affect injuriously the interests of all the industrial classes of this country. Hence would arise constant collisions between the inhabitants of the two countries, which would evermore endanger their peace. A large increase of the military force of the United States would inevitably follow, thus devolving upon the people new and extraordinary burdens, in order not only to protect them from the danger of daily collision with Texas herself, but to guard their border inhabitants against hostile inroads, so easily excited on the part of the numerous and warlike tribes of Indians dwelling in their neighborhood. Texas would undoubtedly be unable, for many years to come, if at any time, to resist, unaided and alone, the military power of the United States; but it is not extravagant to suppose that nations reaping a rich harvest from her trade, secured to them by advantageous treaties, would be induced to take part with her in any conflict with us, from the strongest considerations of public

policy. Such a state of things might subject to devastation the territory of contiguous States, and would cost the country, in a single campaign, more treasure, thrice told over, than is stipulated to be paid and reimbursed by the treaty now proposed for ratification. I will not permit myself to dwell on this view of the subject. Consequences of a fatal character to the peace of the Union, and even to. the preservation of the Union itself might be dwelt upon. They will not, however, fail to occur to the mind of the Senate and of the. country. Nor do I indulge in any vague conjectures of the future. The documents now transmitted along with the treaty lead to the conclusion, as inevitable, that if the boon now tendered be rejected, Texas will seek for the friendship of others. In contemplating such a contingency, it cannot be overlooked that the United States are already almost surrounded by the possessions of European powers. The Canadas, New Brunswick, and Nova Scotia, the islands in the American seas, with Texas trammelled by treaties of alliance, or of a commercial character, differing in policy from that of the United States, would complete the circle. Texas voluntarily steps forth, upon terms of perfect honor and good faith to all nations, to ask to be annexed to the Union. As an independent sovereignty, her right to do this is unquestionable. In doing so, she gives no cause of umbrage to any other power; her people desire it, and there is no slavish transfer of her sovereignty and independence. She has for eight years maintained her independence against all efforts to subdue her. She has been recognised as independent by many of the most prominent of the family of nations; and that recognition, so far as they are concerned, places her in a position, without giving any just cause of umbrage to them, to surrender her sovereignty at her own will and pleasure. The United States, actuated evermore by a spirit of justice, has desired, by the stipulations of the treaty, to render justice to all They have made provision for the payment of the public debt of Texas. We look to her ample and fertile domain as the certain means of accomplishing this; but this is a matter between the United Stales and Texas, and with which other governments have nothing to do. Our right to receive the rich grant tendered by Texas is perfect; and this Government should not, having due respect either to its own honor or its own interests, permit its course of policy to be interrupted by the interference of other powers, even if such interference was threatened. The question is one purely American. In the acquisition, while we abstain most carefully from all that could interrupt the public peace, we claim the right to exercise a due regard to our own. This Government cannot, consistently with its honor, permit any such interference. With equal, if not greater, propriety might the United States demand of other governments to surrender their numerous and valuable acquisitions, made in- past time, at numberless places on the surface of the globe, whereby they have added to their power and enlarged their resources.

[. . .]

Chicago Citations

Bibliography entry:

Tyler, John. "Message to the Senate Transmitting a Treaty of Annexation Concluded Between the United States of America and the Republic of Texas." April 22, 1844. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

John Tyler, "Message to the Senate Transmitting a Treaty of Annexation," April 22, 1844, American Presidency Project, https://www.presidency.ucsb.edu/documents/message-the-senate-transmitting-treaty-annexation-concluded-between-the-united-states.

Shortened citation:

Tyler, "Message Transmitting a Treaty of Annexation."

PRIMARY SOURCE P13.23

Commerce of the Prairies, Volume 1 (excerpt on Apache raids in Chihuahua)

Josiah Gregg · 1844 (New York: Henry G. Langley)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A trader's eyewitness account shows the commercial ties pulling Americans into northern Mexico and describes Indian raiding that left the region vulnerable.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Josiah Gregg (1806–1850) spent nearly a decade in the Santa Fe trade, carrying goods by wagon from Missouri into New Mexico and Chihuahua. His two-volume account, published in 1844, became the standard description of the trade and of northern Mexico.

In this passage Gregg describes Apache raids on Chihuahua, the weakness of Mexican defenses, and local officials who traded with the raiders. American readers took such accounts as evidence that Mexico could not govern its northern frontier.

Editorial note: The text follows the Internet Archive scan. OCR spellings such as "CaUfornia" and "Coalmila" (Coahuila) have been kept. Gregg's racial language reflects his time.

Document Text

[. . .]

The range of this marauding tribe extends over some portions of CaUfornia, most of Sonora, the frontiers of Durango, and at certain seasons it even reaches Coalmila : Chihuahua, however, has been the mournful theatre of their most constant depredations. Every nook and corner of this once flourishing state has])een subjected to their inroads. Such is the imbeciUty of the local governments, that tlie savages, in order to dispose of

their stolen property without even a shadow of molestation, frequently enter into partial treaties of peace with one department, while they continue to wage a war of extermination against the neighboring states. This arrangement supplies them with an ever-ready market, for the disposal of their booty and the purchase of munitions wherewith to , prosecute their work of destruction. In 1840, I witnessed the departure from Santa Fe of a large trading party freighted with engines of war and a great quantity of whiskey, intended for the Apaches in exchange for mules and other articles of plunder which they had stolen from the people of the south. This traffic was not only tolerated but openly encouraged by the civil authorities, as the highest pubUc functionaries were interested in its success — the governor liimself not excepted.

The Apaches, now and then, propose a truce to the government of Chihuahua, which is generally accepted very nearly upon their own terms. It has on some occasions been included that the marauders should have a bond fide right to all their stolen property. A venta or quit-claim brand, has actually been marked by the government upon large numbers of mules and horses which the Indians had robbed from the citizens. It is hardly necessary to add that these truces have rarely been observed bv the wily savages longer than the time necessary for the disposal of their plunder. As soon as more mules were needed for ser vice or for traffic — more cattle for beef — rnoie

scalps for the war-dance — they would invariably return to their deeds of ravage and murder. The depredations of the Apaches have been of such long duration, that, beyond the immediate purlieus of the towns, the whole country

from New Mexico to the borders of Durango is almost entirely depopulated. The haciendas and ranches have been mostly abandoned, and the people chiefly confined to towns and cities. To such a pitch has the temerity of those savages reached, that small bands of three or four warriors have been known to make their appearance within a mile of the city of Chihuahua in open day, kilhng the laborers and driving off whole herds of mules and horses without the sUghtest opposition. Occasionally a detachment of troops is sent in pursuit of the marauders, but for no other purpose, it would seem, than to illustrate the .imbecihty of the former, as they are always sure to make a precipitate retreat, generally without even obtaining a ghmpse of the enemy.^ And yet the columns of a httle weekly sheet pubhshed in Chiliuahua always teem with flaming accounts of prodigious feats of valor performed by the ' army of operations' against los bdrbaros : showing how "the enemy was pursued with all possible vigor" — how the soldiers " displayed the great-

[. . .]

Chicago Citations

Bibliography entry:

Gregg, Josiah. *Commerce of the Prairies: or, The Journal of a Santa Fé Trader*. 2 vols. New York: Henry G. Langley, 1844. Internet Archive.

Footnote citation:

Josiah Gregg, *Commerce of the Prairies: or, The Journal of a Santa Fé Trader* (New York: Henry G. Langley, 1844), 1:291–93, https://archive.org/details/commerceofprairi01greg.

Shortened citation:

Gregg, *Commerce of the Prairies*, 1:[page].

PRIMARY SOURCE P13.24

Commerce of the Prairies, Volume 2 (excerpt on the Comanches)

Josiah Gregg · 1844 (New York: Henry G. Langley)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Gregg's description of Comanche raids into Mexico supports the argument that Indian power, not only U.S. aggression, shaped the borderlands.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

In his second volume Josiah Gregg turned from trade to the peoples of the southern plains. He described the Comanches as the dominant mounted power of the region.

Gregg reports Comanche raids deep into Mexico's eastern frontier, the taking of horses, mules, and captives, and the place of captive women and boys in Comanche society. Historians now read such passages as evidence that Comanche power had weakened northern Mexico before the U.S. invasion.

Editorial note: The text follows the Internet Archive scan. OCR spellings have been kept. Gregg's language about Native peoples reflects the attitudes of his time.

Document Text

[. . .]

the opposite side of his charger, so as to be protected from the darts of the enemy ; and, while chnging there, he will discharge his arrows with extraordinary dexterity from underneath his horse's neck. Different from the ' prowhng ' tribes, they seldom attack at night, or in timbered or rough regions; for they would then be unable to manoeuvre their coursers to advantage.

Although not meriting the title of brave Indians, they are held by the Mexicans as the most valiant of their border : but when they come in contact with Americans or any of our frontier tribes, they generally appear timid and cowardly. Their predatory forays are therefore directed mostly westward. They make continual inroads upon the whole eastern frontier of Mexico, from Chihuahua to the coast ; driving off immense numbers of horses and mules, and killing the citizens they may encounter, or making them prisoners — particularly the females and boys. Of the latter they make slaves, to perform such menial service as usually pertams to the squaws, particularly the herding of the stock. It is perhaps this alleviation of their labor by slaves, that has contributed to elevate the Comanche women above those of many of the northern tribes. Of their female captives they often make wives ; a fate which has befallen some of those taken from Texas.

Strange as it may appear, their captives frequently become attached to their masters and to the savage life, and with difficulty are

[. . .]

Chicago Citations

Bibliography entry:

Gregg, Josiah. *Commerce of the Prairies: or, The Journal of a Santa Fé Trader*. 2 vols. New York: Henry G. Langley, 1844. Internet Archive.

Footnote citation:

Josiah Gregg, *Commerce of the Prairies* (New York: Henry G. Langley, 1844), 2:313–14, https://archive.org/details/commerceofpra02greg.

Shortened citation:

Gregg, *Commerce of the Prairies*, 2:[page].

PRIMARY SOURCE P13.25

Fourth Annual Message (excerpt)

John Tyler · December 3, 1844

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Tyler claims a popular mandate for annexation and reports rising tension with Mexico before Polk took office.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After the Senate rejected the annexation treaty in June 1844, James K. Polk won the presidency on an expansionist platform. In his last annual message, the lame-duck President John Tyler claimed that the election showed the people wanted Texas.

Tyler urged Congress to annex Texas by joint resolution, which needed only simple majorities, and reported Mexico's threats to renew war against Texas. Congress passed the resolution in February 1845.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Since your last session Mexico has threatened to renew the war, and has either made or proposes to make formidable preparations for invading Texas. She has issued decrees and proclamations, preparatory to the commencement of hostilities, full of threats revolting to humanity, and which if carried into effect would arouse the attention of all Christendom. This new demonstration of feeling, there is too much reason to believe, has been produced in consequence of the negotiation of the late treaty of annexation with Texas. The Executive, therefore, could not be indifferent to such proceedings, and it felt it to be due as well to itself as to the honor of the country that a strong representation should be made to the Mexican Government upon the subject. This was accordingly done, as will be seen by the copy of the accompanying dispatch from the Secretary of State to the United States envoy at Mexico. Mexico has no right to jeopard the peace of the world by urging any longer a useless and fruitless contest. Such a condition of things would not be tolerated on the European continent. Why should it be on this? A war of desolation, such as is now threatened by Mexico, can not be waged without involving our peace and tranquillity. It is idle to believe that such a war could be looked upon with indifference by our own citizens inhabiting adjoining States; and our neutrality would be violated in despite of all efforts on the part of the Government to prevent it. The country is settled by emigrants from the United States under invitations held out to them by Spain and Mexico. Those emigrants have left behind them friends and relatives, who would not fail to sympathize with them in their difficulties, and who would be led by those sympathies to participate in their struggles, however energetic the action of the Government to prevent it. Nor would the numerous and formidable bands of Indians -- the most warlike to be found in any land -- which occupy the extensive regions contiguous to the States of Arkansas and Missouri, and who are in possession of large tracts of country within the limits of Texas, be likely to remain passive. The inclinations of those numerous tribes lead them invariably to war whenever pretexts exist.

[. . .]

Other considerations of a controlling character influenced the course of the Executive. The treaty which had thus been negotiated had failed to receive the ratification of the Senate. One of the chief objections which was urged

against it was found to consist in the fact that the question of annexation had not been submitted to the ordeal of public opinion in the United States. However untenable such an objection was esteemed to be, in view of the unquestionable power of the Executive to negotiate the treaty and the great and lasting interests involved in the question, I felt it to be my duty to submit the whole subject to Congress as the best expounders of popular sentiment. No definitive action having been taken on the subject by Congress, the question referred itself directly to the decision of the States and people. The great popular election which has just terminated afforded the best opportunity of ascertaining the will of the States and the people upon it. Pending that issue it became the imperative duty of the Executive to inform Mexico that the question of annexation was still before the American people, and that until their decision was pronounced any serious invasion of Texas would be regarded as an attempt to forestall their judgment and could not be looked upon with indifference. I am most happy to inform you that no such invasion has taken place; and I trust that whatever your action may be upon it Mexico will see the importance of deciding the matter by a resort to peaceful expedients in preference to those of arms. The decision of the people and the States on this great and interesting subject has been decisively manifested. The question of annexation has been presented nakedly to their consideration. By the treaty itself all collateral and incidental issues which were calculated to divide and distract the public councils were carefully avoided. These were left to the wisdom of the future to determine. It presented, I repeat, the isolated question of annexation, and in that form it has been submitted to the ordeal of public sentiment. A controlling majority of the people and a large majority of the States have declared in favor of immediate annexation. Instructions have thus come up to both branches of Congress from their respective constituents in terms the most emphatic. It is the will of both the people and the States that Texas shall be annexed to the Union promptly and immediately. It may be hoped that in carrying into execution the public will thus declared all collateral issues may be avoided. Future Legislatures can best decide as to the number of States which should be formed out of the territory when the time has arrived for deciding that question. So with all others. By the treaty the United States assumed the payment of the debts of Texas to an amount not exceeding $10,000,000, to be paid, with the exception of a sum falling short of $400,000, exclusively out of the proceeds of the sales of her public lands. We could not with honor take the lands without assuming the full payment of all incumbencies upon them.

[. . .]

Chicago Citations

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Tyler, John. "Fourth Annual Message." December 3, 1844. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

John Tyler, "Fourth Annual Message," December 3, 1844, American Presidency Project, https://www.presidency.ucsb.edu/documents/fourth-annual-message-5.

Shortened citation:

Tyler, "Fourth Annual Message."

PRIMARY SOURCE P13.26

Joint Resolution for Annexing Texas to the United States

U.S. Congress · March 1, 1845

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The resolution shows annexation entangled with slavery and leaves the Texas border legally unsettled.
TREATMENT	Full public-domain text

Historical Context

After the Senate rejected the annexation treaty in 1844, annexationists turned to a joint resolution, which needed only simple majorities in both houses. Congress passed it in February 1845, and President Tyler signed it three days before leaving office.

The resolution let Texas enter as a state, allowed up to four more states to be carved from it, and extended the Missouri Compromise line of 36°30' across Texas. It left the boundary with Mexico to future adjustment.

Editorial note: The text follows the Avalon Project transcription from Hunter Miller's edition of U.S. treaties.

Document Text

Joint Resolution of the Congress of the United States, March 1, 1845

28th Congress Second Session

Begun and held at the city of Washington, in the District of Columbia, on Monday the second day of December, eighteen hundred and forty-four.

Joint Resolution for annexing Texas to the United States.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That Congress doth consent that the territory properly included within, and rightfully belonging to the Republic of Texas, may be erected into a new state, to be called the state of Texas, with a republican form of government, to be adopted by the people of said republic, by deputies in Convention assembled, with the consent of the existing government, in order that the same may be admitted as one of the states of this Union.

2. And be it further resolved, That the foregoing consent of Congress is given upon the following conditions, and with the following guarantees, to wit: First-said state to be formed, subject to the adjustment by this government of all questions of boundary that may arise with other governments; and the constitution thereof, with the proper evidence of its adoption by the people of said republic of Texas, shall be transmitted to the President of the United States, to be laid before Congress for its final action, on or before the first day of January, one thousand eight hundred and forty-six. Second-said state, when admitted into the Union, after ceding to the United States all public edifices, fortifications, barracks, ports and harbors, navy and navy-yards, docks, magazines, arms, armaments, and all other property and means pertaining to the public defence belonging to said republic of Texas, shall retain all the public funds, debts, taxes, and dues of every kind which may belong to or be due and owing said republic; and shall also retain all the vacant and unappropriated lands lying within its limits, to be applied to the payment of the debts and liabilities of said republic of Texas; and the residue of said lands, after discharging said debts and liabilities, to be disposed of as said state may direct; but in no event are said debts and liabilities to become a charge upon the government of the United States. Third- New states, of convenient size, not exceeding

four in number, in addition to said state of Texas, and having sufficient population, may hereafter, by the consent of said state, be formed out of the territory thereof, which shall be entitled to admission under the provisions of the federal constitution. And such states as may be formed out of that portion of said territory lying south of thirty-six degrees thirty minutes north latitude, commonly known as the Missouri compromise line, shall be admitted into the Union with or without slavery, as the people of each state asking admission may desire. And in such state or states as shall be formed out of said territory north of said Missouri compromise line, slavery, or involuntary servitude, (except for crime,) shall be prohibited.

3. And be it further resolved, That if the President of the United States shall in his judgment and discretion deem it most advisable, instead of proceeding to submit the foregoing resolution to the Republic of Texas, as an overture on the part of the United States for admission, to negotiate with that Republic; then, Be it resolved, that a state, to be formed out of the present Republic of Texas, with suitable extent and boundaries, and with two representatives in Congress, until the next apportionment of representation, shall be admitted into the Union, by virtue of this act, on an equal footing with the existing states, as soon as the terms and conditions of such admission, and the cession of the remaining Texan territory to the United States shall be agreed upon by the governments of Texas and the United States: And that the sum of one hundred thousand dollars be, and the same is hereby, appropriated to defray the expenses of missions and negotiations, to agree upon the terms of said admission and cession, either by treaty to be submitted to the Senate, or by articles to be submitted to the two Houses of Congress, as the President may direct.

J W JONES
Speaker of the House of Representatives.
WILLIE P. MANGUM
President, pro tempore, of the Senate.
Approv'd March 1. 1845
JOHN TYLER

Chicago Citations

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U.S. Congress. "Joint Resolution for Annexing Texas to the United States." March 1, 1845. In *Treaties and Other International Acts of the United States of America*, edited by Hunter Miller, vol. 4. Washington, DC: Government Printing Office, 1934. Avalon Project, Yale Law School.

Footnote citation:

Joint Resolution for Annexing Texas to the United States, March 1, 1845, Avalon Project, https://avalon.law.yale.edu/19th_century/texan01.asp.

Shortened citation:

Joint Resolution for Annexing Texas.

PRIMARY SOURCE P13.27

The Emigrants' Guide to Oregon and California (excerpt)

Lansford W. Hastings · 1845 (Cincinnati: George Conclin)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A promoter's guide shows how western land and wages were sold to ordinary families, and its comments on Mexican Californians can be tested for racial assumptions.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Lansford W. Hastings (1819–1870), an Ohio lawyer, traveled to Oregon and California in 1842–43 and returned east to promote settlement in California. His guide, published in 1845, described the routes, the land, the climate, wages, and the Mexican population.

Hastings hoped to bring enough Americans into California to detach it from Mexico. His recommended shortcut later led the Donner Party to disaster in 1846. In this passage he describes wages, labor, and the Californians.

Editorial note: The text follows the Internet Archive scan of the 1845 edition. The Norton collection includes a selection from the same guide; this reader prints one passage from the scan. OCR spellings have been kept.

Document Text

[. . .]

those of the former being from two to five dollars per day, and those of the latter, from one to three dollars per day. The cause of wages' being so very high, is attributable to the fact, of their being so very few mechanics in the country, and the great aversion to industrial pursuits, which has, heretofore existed, in that country. This aversion to industry, evidently arose, from the fact of their being no apparent necessity to labor, or, in other words, from the unparalleled facilities, which here exist for acquiring a competency, and even a superfluity, by the easy process of doing nothing. Indians are readily employed, and, in any numbers, at the trifling expense of merely furnisliing them such clothing, as a course tow shirt, and a pair of pantaloons of similar cloth, and with such food as meat alone, or whatever else you may feel disposed to furnish them ; for any thing, which you might feel disposed to provide for them, would be preferable to the crickets and grasshoppers, upon which they have formerly subsisted. There are several foreigners, who have from one, to four hundred of them employed upon these terms; and when thus employed, should they leave their employer, without just cause, he is authorized to retake them, wherever he may find them, in whosesoever service they may be engaged. It is usually understood, that slavery does not exist, in any form, in any portion of the Mexican dominions, yet the natives, both in California, and several other portion of that country, and in truth, in all portions of it, are in a state of absolute vassalage, even more degrading, and more oppressive than that of our slaves in the south. Whether slavery will, eventually, be tolerated in this country, in any form, I do not pretend to say, but it is quite certain, that the labor of Indians will, for many years, be as little expensive to the farmers of that cou:itry, as slave labor, being procured for a mere nominal consideration.

Considering the very short space of time, which has elapsed, since the different governments have turned their attentions to this country, and the very little which is, as yet, known in reference to it, its present commerce is scarcely paralleled ; some conception of which, may be drawn from what has been said upon a former page, in reference to its extensive imports and duties. Fifteen or twenty vessels are, not unfrequently, seen in many of the various ports at the same time, displaying the national flags of all the principal powers of the world. Merchant

vessels of the United States, England, France, Russia, and Mexico, as well as the ships of war, and the whale ships of the four former governments, are to be seen, at almost any time, in the different ports of this country, and of all of which, there are frequent arrivals and departures. The ships of war, which cruise in the Pacific, touch very frequently at the various ports of this country, for the purpose of obtaining fresh supplies of water, and provisions, and maintaining the rights of their respective governments, as well as for the purpose of capturing, now and then, a small town, or seizing, here and there, upon an island of the Pacific. The merchant vessels are much the most numerous, and are, chiefly, those of the United States, which arrive in that country each spring, and depart for the States every autumn or winter. Arriving in the spring, they are engaged in the coasting trade, until the latter part of the fall, or the early part of the winter, when they depart for the States, with cargoes of hides, tallow, or furs, which have been collected during the previous year. About one half of the merchant vessels, engaged in this trade, always remain in the country, engaged in the coasting trade, while the residue return to the States. Eng-

[. . .]

Chicago Citations

Bibliography entry:

Hastings, Lansford W. *The Emigrants' Guide to Oregon and California*. Cincinnati: George Conclin, 1845. Internet Archive.

Footnote citation:

Lansford W. Hastings, *The Emigrants' Guide to Oregon and California* (Cincinnati: George Conclin, 1845), 132–33, https://archive.org/details/emigrantsguideto04hast.

Shortened citation:

Hastings, *Emigrants' Guide*, [page].

PRIMARY SOURCE P13.28

Inaugural Address (excerpt)

James K. Polk · March 4, 1845

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk's inaugural sets out the expansionist program he brought into office, linking settlers to government protection.
TREATMENT	Public-domain text, selected excerpts

Historical Context

James K. Polk of Tennessee, the Democratic "dark horse" of 1844, won the presidency on a platform calling for the "reannexation" of Texas and the "reoccupation" of Oregon.

In his inaugural address Polk welcomed Texas, declared the American title to Oregon "clear and unquestionable," and argued that a federal republic could safely extend over a continent.

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

In the earlier stages of our national existence the opinion prevailed with some that our system of confederated States could not operate successfully over an extended territory, and serious objections have at different times been made to the enlargement of our boundaries. These objections were earnestly urged when we acquired Louisiana. Experience has shown that they were not well founded. The title of numerous Indian tribes to vast tracts of country has been extinguished; new States have been admitted into the Union; new Territories have been created and our jurisdiction and laws extended over them. As our population has expanded, the Union has been cemented and strengthened. AS our boundaries have been enlarged and our agricultural population has been spread over a large surface, our federative system has acquired additional strength and security. It may well be doubted whether it would not be in greater danger of overthrow if our present population were confined to the comparatively narrow limits of the original thirteen States than it is now that they are sparsely settled over a more expanded territory. It is confidently believed that our system may be safely extended to the utmost bounds of our territorial limits, and that as it shall be extended the bonds of our Union, so far from being weakened, will become stronger.

None can fail to see the danger to our safety and future peace if Texas remains an independent state or becomes an ally or dependency of some foreign nation more powerful than herself. Is there one among our citizens who would not prefer perpetual peace with Texas to occasional wars, which so often occur between bordering independent nations? Is there one who would not prefer free intercourse with her to high duties on all our products and manufactures which enter her ports or cross her frontiers? Is there one who would not prefer an unrestricted communication with her citizens to the frontier obstructions which must occur if she remains out of the Union? Whatever is good or evil in the local institutions of Texas will remain her own whether annexed to the United States or not. None of the present States will be responsible for them any more than they are for the local institutions of each other. They have confederated together for certain specified objects. Upon the same principle that they would refuse to form a perpetual union with Texas because of her local institutions our forefathers would have been prevented from forming our present Union. Perceiving no valid objection to the measure and many reasons for its adoption vitally affecting the peace, the safety, and the prosperity of both countries, I shall on the broad principle which formed the basis and produced the adoption of our Constitution, and not in any narrow

spirit of sectional policy, endeavor by all Constitutional, honorable, and appropriate means to consummate the expressed will of the people and Government of the United States by the reannexation of Texas to our Union at the earliest practicable period.

Nor will it become in a less degree my duty to assert and maintain by all Constitutional means the right of the United States to that portion of our territory which lies beyond the Rocky Mountains. Our title to the country of the Oregon is "clear and unquestionable," and already are our people preparing to perfect that title by occupying it with their wives and children. But eighty years ago our population was confined on the west by the ridge of the Alleghanies. Within that period--within the lifetime, I might say, of some of my hearers--our people, increasing to many millions, have filled the eastern valley of the Mississippi, adventurously ascended the Missouri to its headsprings, and are already engaged in establishing the blessings of self-government in valleys of which the rivers flow to the Pacific. The world beholds the peaceful triumphs of the industry of our emigrants. To us belongs the duty of protecting them adequately wherever they may be upon our soil. The jurisdiction of our laws and the benefits of our republican institutions should be extended over them in the distant regions which they have selected for their homes. The increasing facilities of intercourse will easily bring the States, of which the formation in that part of our territory can not be long delayed, within the sphere of our federative Union. In the meantime every obligation imposed by treaty or conventional stipulations should be sacredly respected.

In the management of our foreign relations it will be my aim to observe a careful respect for the rights of other nations, while our own will be the subject of constant watchfulness. Equal and exact justice should characterize all our intercourse with foreign countries. All alliances having a tendency to jeopard the welfare and honor of our country or sacrifice any one of the national interests will be studiously avoided, and yet no opportunity will be lost to cultivate a favorable understanding with foreign governments by which our navigation and commerce may be extended and the ample products of our fertile soil, as well as the manufactures of our skillful artisans, find a ready market and remunerating prices in foreign countries.

In taking "care that the laws be faithfully executed," a strict performance of duty will be exacted from all public officers. From those officers, especially, who are charged with the collection and disbursement of the public revenue will prompt and rigid accountability be required. Any culpable failure or delay on their part to account for the moneys intrusted to them at the times and in the manner required by law will in every instance terminate the official connection of such defaulting officer with the Government.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "Inaugural Address." March 4, 1845. Avalon Project, Yale Law School.

Footnote citation:

James K. Polk, "Inaugural Address," March 4, 1845, Avalon Project, https://avalon.law.yale.edu/19th_century/polk.asp.

Shortened citation:

Polk, "Inaugural Address."

PRIMARY SOURCE P13.29

Personal Memoirs of U. S. Grant, Chapter III (excerpt)

Ulysses S. Grant · written 1884–1885 (New York: Charles L. Webster, 1885)

TOC FIT	Chapter 13 · Essay prompts 13.2 (Why Did Texas Break from Mexico?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A veteran officer, writing later, judges the war an unjust act of conquest tied to slavery.
TREATMENT	Public-domain text, selected excerpt

Historical Context

Ulysses S. Grant (1822–1885) served as a young lieutenant in the war with Mexico. Forty years later, dying of cancer and nearly bankrupt, he wrote his memoirs, which were published by Mark Twain's firm and became a best-seller.

In this chapter Grant recalled his regiment's move to Louisiana and Texas in 1844–45. He wrote that he had opposed the annexation of Texas and considered the war "one of the most unjust ever waged by a stronger against a weaker nation."

Editorial note: Grant wrote nearly forty years after the events, after the Civil War had shaped his views. The text follows the Project Gutenberg edition. The plan's separate listing of this memoir is printed here as one entry.

Document Text

There was no intimation given that the removal of the 3d and 4th regiments of infantry to the western border of Louisiana was occasioned in any way by the prospective annexation of Texas, but it was generally understood that such was the case. Ostensibly we were intended to prevent filibustering into Texas, but really as a menace to Mexico in case she appeared to contemplate war. Generally the officers of the army were indifferent whether the annexation was consummated or not; but not so all of them. For myself, I was bitterly opposed to the measure, and to this day regard the war, which resulted, as one of the most unjust ever waged by a stronger against a weaker nation. It was an instance of a republic following the bad example of European monarchies, in not considering justice in their desire to acquire additional territory. Texas was originally a state belonging to the republic of Mexico. It extended from the Sabine River on the east to the Rio Grande on the west, and from the Gulf of Mexico on the south and east to the territory of the United States and New Mexico—another Mexican state at that time—on the north and west. An empire in territory, it had but a very sparse population, until settled by Americans who had received authority from Mexico to colonize. These colonists paid very little attention to the supreme government, and introduced slavery into the state almost from the start, though the constitution of Mexico did not, nor does it now, sanction that institution. Soon they set up an independent government of their own, and war existed, between Texas and Mexico, in name from that time until 1836, when active hostilities very nearly ceased upon the capture of Santa Anna, the Mexican President. Before long, however, the same people—who with permission of Mexico had colonized Texas, and afterwards set up slavery there, and then seceded as soon as they felt strong enough to do so—offered themselves and the State to the United States, and in 1845 their offer was accepted. The occupation, separation and annexation were, from the inception of the movement to its final consummation, a conspiracy to acquire territory out of which slave states might be formed for the American Union.

Even if the annexation itself could be justified, the manner in which the subsequent war was forced upon Mexico cannot. The fact is, annexationists wanted more territory than they could possibly lay any claim to, as part of the

new acquisition. Texas, as an independent State, never had exercised jurisdiction over the territory between the Nueces River and the Rio Grande. Mexico had never recognized the independence of Texas, and maintained that, even if independent, the State had no claim south of the Nueces. I am aware that a treaty, made by the Texans with Santa Anna while he was under duress, ceded all the territory between the Nueces and the Rio Grande—, but he was a prisoner of war when the treaty was made, and his life was in jeopardy. He knew, too, that he deserved execution at the hands of the Texans, if they should ever capture him. The Texans, if they had taken his life, would have only followed the example set by Santa Anna himself a few years before, when he executed the entire garrison of the Alamo and the villagers of Goliad.

In taking military possession of Texas after annexation, the army of occupation, under General Taylor, was directed to occupy the disputed territory. The army did not stop at the Nueces and offer to negotiate for a settlement of the boundary question, but went beyond, apparently in order to force Mexico to initiate war. It is to the credit of the American nation, however, that after conquering Mexico, and while practically holding the country in our possession, so that we could have retained the whole of it, or made any terms we chose, we paid a round sum for the additional territory taken; more than it was worth, or was likely to be, to Mexico. To us it was an empire and of incalculable value; but it might have been obtained by other means. The Southern rebellion was largely the outgrowth of the Mexican war. Nations, like individuals, are punished for their transgressions. We got our punishment in the most sanguinary and expensive war of modern times.

Chicago Citations

Bibliography entry:

Grant, Ulysses S. *Personal Memoirs of U. S. Grant*. 2 vols. New York: Charles L. Webster, 1885–86. Project Gutenberg eBook #4367.

Footnote citation:

Ulysses S. Grant, *Personal Memoirs of U. S. Grant* (New York: Charles L. Webster, 1885), 1: chap. 3, Project Gutenberg eBook #4367.

Shortened citation:

Grant, *Personal Memoirs*, 1: chap. 3.

PRIMARY SOURCE P13.30

Annexation

John L. O'Sullivan · July–August 1845 (United States Magazine and Democratic Review)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The essay that named manifest destiny combines providence, racial confidence in "Anglo-Saxon emigration," and the claim that settlers, not governments, were driving expansion.
TREATMENT	Public-domain text, selected excerpts

Historical Context

John L. O'Sullivan (1813–1895) edited the *United States Magazine and Democratic Review*, a New York journal of Jacksonian politics and literature. In the summer of 1845, as Texas accepted annexation, he published this essay.

The essay coined the phrase "manifest destiny," declaring that the United States had a providential right "to overspread the continent." O'Sullivan also predicted that American settlers would soon carry California away from a Mexico he called "imbecile and distracted."

Editorial note: The text follows the excerpt in The American Yawp Reader, which reproduces the 1845 magazine text; the ellipses are the Yawp editors' cuts.

Document Text

Texas is now ours... Her star and her stripe may already be said to have taken their place in the glorious blazon of our common nationality; and the sweep of our eagle's wing already includes within its circuit the wide extent of her fair and fertile land. She is no longer to us a mere geographical space–a certain combination of coast, plain, mountain, valley, forest and stream. She is no longer to us a mere country on the map. She comes within the dear and sacred designation of Our Country... other nations have undertaken to intrude themselves ... in a spirit of hostile interference against us, for the avowed object of thwarting our policy and hampering our power, limiting our greatness and checking the fulfillment of our manifest destiny to overspread the continent allotted by Providence for the free development of our yearly multiplying millions. This we have seen done by England, our old rival and enemy; and by France, strangely coupled with her against us....

The independence of Texas was complete and absolute. It was an independence, not only in fact, but of right. No obligation of duty towards Mexico tended in the least degree to restrain our right to effect the desired recovery of the fair province once our own–whatever motives of policy might have prompted a more deferential consideration of her feelings and her pride, as involved in the question. If Texas became peopled with an American population; it was by no contrivance of our government, but on the express invitation of that of Mexico herself...

California will, probably, next fall away from the loose adhesion which, in such a country as Mexico, holds a remote province in a slight equivocal kind of dependence on the metropolis. Imbecile and distracted, Mexico never can exert any real governmental authority over such a country. The impotence of the one and the distance of the other, must make the relation one of virtual independence; unless, by stunting the province of all natural growth, and forbidding that immigration which can alone develop its capabilities and fulfil the purposes of its creation, tyranny may retain a military dominion, which is no government in the, legitimate sense of the term. In the case of California this is now impossible. The Anglo-Saxon foot is already on its borders. Already the advance guard of the irresistible army of Anglo-Saxon emigration has begun to pour down upon it, armed with the plough and the rifle, and marking its trail with schools and colleges, courts and representative halls, mills and meeting-houses. A population will soon be in actual occupation of California, over which it will be idle for Mexico to dream of

dominion. They will necessarily become independent. All this without agency of our government, without responsibility of our people–in the natural flow of events, the spontaneous working of principles, and the adaptation of the tendencies and wants of the human race to the elemental circumstances in the midst of which they find themselves placed. And they will have a right to independence–to self-government–to the possession of the homes conquered from the wilderness by their own labors and dangers, sufferings and sacrifices-a better and a truer right than the artificial tide of sovereignty in Mexico, a thousand miles distant, inheriting from Spain a title good only against those who have none better. Their right to independence will be the natural right of self-government belonging to any community strong enough to maintain it–distinct in position, origin and character, and free from any mutual obligations of membership of a common political body, binding it to others by the duty of loyalty and compact of public faith. This will be their title to independence; and by this title, there can be no doubt that the population now fast streaming down upon California win both assert and maintain that independence. Whether they will then attach themselves to our Union or not, is not to be predicted with any certainty. Unless the projected railroad across the continent to the Pacific be carried into effect, perhaps they may not; though even in that case, the day is not distant when the Empires of the Atlantic and Pacific would again flow together into one, as soon as their inland border should approach each other. But that great work, colossal as appears the plan on its first suggestion, cannot remain long unbuilt. Its necessity for this very purpose of binding and holding together in its iron clasp our fast-settling Pacific region with that of the Mississippi valley–the natural facility of the route–the ease with which any amount of labor for the construction can be drawn in from the overcrowded populations of Europe, to be paid in die lands made valuable by the progress of the work itself–and its immense utility to the commerce of the world with the whole eastern Asia, alone almost sufficient for the support of such a road–these coast of considerations give assurance that the day cannot be distant which shall witness the conveyance of the representatives from Oregon and California to Washington within less time than a few years ago was devoted to a similar journey by those from Ohio; while the magnetic telegraph will enable the editors of the “San Francisco Union,” the “Astoria Evening Post,” or the “Nootka Morning News,” to set up in type the first half of the President’s Inaugural before the echoes of the latter half shall have died away beneath the lofty porch of the Capitol, as spoken from his lips.

Away, then, with all idle French talk of balances of power on the American Continent. There is no growth in Spanish America! Whatever progress of population there may be in the British Canadas, is only for their own early severance of their present colonial relation to the little island three thousand miles across the Atlantic; soon to be followed by Annexation, and destined to swell the still accumulating momentum of our progress. And whosoever may hold the balance, though they should cast into the opposite scale all the bayonets and cannon, not only of France and England, but of Europe entire, how would it kick the beam against the simple, solid weight of the two hundred and fifty, or three hundred millions–and American millions–destined to gather beneath the flutter of the stripes and stars, in the fast hastening year of the Lord 1945!

Chicago Citations

Bibliography entry:

O'Sullivan, John L. "Annexation." *United States Magazine and Democratic Review* 17 (July–August 1845): 5–10. The American Yawp Reader.

Footnote citation:

John L. O'Sullivan, "Annexation," *United States Magazine and Democratic Review* 17 (July–August 1845): [page], via The American Yawp Reader, https://www.americanyawp.com/reader/manifest-destiny/john-osullivan-declares-americas-manifest-destiny-1845/.

Shortened citation:

O'Sullivan, "Annexation," [page].

PRIMARY SOURCE P13.31

Report of the Massachusetts Committee to Prevent the Admission of Texas as a Slave State (excerpt)

Massachusetts State Texas Committee (Charles Francis Adams and others) · 1845 (Boston, 1846)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.2 (Why Did Texas Break from Mexico?)
WHY HERE	Northern opponents tie Texas to slavery's expansion, showing how contemporaries read the Texas project and the resistance it met.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

In 1845 antislavery Whigs and abolitionists in Massachusetts formed a committee to stop Texas from entering the Union as a slave state. Its leaders included Charles Francis Adams, Charles Sumner, and John Gorham Palfrey, men who later helped found the Free Soil and Republican parties.

After Congress admitted Texas in December 1845, the committee issued this report explaining its campaign. It argued that annexation had been engineered to expand slavery's political power.

Editorial note: The text follows the Internet Archive scan. OCR spellings have been kept.

Document Text

[. . .]

The Massachusetts State Anti-Texas Committee, having accomplished the purpose intended by its organization, so far as its own action is concerned, now desires, before it be dissolved, most respectfully to submit to the public, and particularly to those who have favored the enterprise, a brief account of its proceedings, together with some views of the present aspect of public affairs, in connection with the great question which it has been its duty to consider.

At a meeting of citizens called without regard to party, and held at Cambridge on the 21st day of October, 1845., it was decided, after a deliberate interchange of sentiment concerning the state of the Texas question, that a large Committee, drawn from all parties of the Commonwealth, should at once be organized, whose duty it should be to procure as general an expression of the voice of the people as possible, in season to remonstrate against the sanction, by the Congress of the United States, of certain odious features of a Constitution about to be submitted by Texas, prior to her admission as a State into the Union. The features referred to were deemed objectionable, because they established the institution of domestic slavery on a permanent foundation, in a vast territory, where as yet it exists only to a limited extent, and because, by being presented to the Congress of the Union for approbation, its consent to accept them, made the whole people of the Union responsible now and forever, for the evil consequences, as well as the disgrace that would ensue.

Although it was a very late moment for action, scarcely five weeks remaining before the assembly of the bodies by which the matter was to be decided, the individuals pointed out by the vote of this meeting lost no time in entering upon the duties assigned to them. They had as few doubts of the propriety of the proposed effort as they had of their own obligations to perform it, aside from any considerations of its probable success. They at once sent forth a form of remonstrance, unexceptionable in its language, and remarkable for the simple expression of its purpose. They published in connection with it an address, setting forth the reasons why it should be signed. They solicited the aid of all

who felt an interest in the subject, to promote the circulation of the paper, and to procure signatures among their friends and neighbors^ They addressed the reverend clergy in the most respectful manner, deeming the point at issue not unworthy of regard as a moral question of deep importance to the welfare of the nation. They applied for assistance to those known to be gifted in a high degree with the power of persuasion over their fellow citizens. They asked of others, whose influence was supposed to be extensive, both within and without the limits of the State, such an exercise of it as might usefully further the enterprise in which they were engaged. In short, upon a review of the whole ground, the Committee are not conscious of having omitted any act which, in the brief interval of time allotted to them, could in their judgement have been adopted with a reasonable prospect of securing a compensating result. Of the precise extent to which these exertions have been successful in swelling the number of remonstrants it is difficult for the Committee to judge. The number coming within their own observation, exceeds thirty-six thousand, but in addition to these, many names were sent from the towns in which they were collected directly to the Representatives at Washington. A ~ery considerable array of signatures has also been procured in New York, Pennsylvania, Ohio, and Indiana, as well as in other parts of New England. The aggregate will not fall short, in all probability, of one hundred thousand signatures, all gathered in the brief space of six or seven weeks. The attempt must then be regarded as having been highly successful, to record the voice of a multitude in support of the principles of free government, and in opposition to the spread of a most fatal error in American Institutions. The fact that it was made in a moment of overwhelming discouragement ; without adventitious aid of any kind ; with no personal or political ends to be served by forwarding the movement; and in the face of objections from the faint-hearted, the despairing, and the treacherous, is well calculated to show the depth of the feeling which lies at the bottom of it. It proves to all those who see in the future only darkness, that a profound regard for a principle of fundamental importance in morals and politics, is not every where among the people of the free States made to yield to the adversity of the hour; and that attachment to the interests of freedom, does not waver in their breasts with a single unfortunate issue, in a contest that must be eternal.

[. . .]

Chicago Citations

Bibliography entry:

Massachusetts State Texas Committee. *Report of the Massachusetts Committee to Prevent the Admission of Texas as a Slave State*. Boston, 1846. Internet Archive.

Footnote citation:

Massachusetts State Texas Committee, *Report of the Massachusetts Committee to Prevent the Admission of Texas as a Slave State* (Boston, 1846), [page], https://archive.org/details/reportofmassachu00mass_3.

Shortened citation:

Massachusetts State Texas Committee, *Report*, [page].

PRIMARY SOURCE P13.32

First Annual Message (excerpt)

James K. Polk · December 2, 1845

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk ties expansion to commerce and hemispheric power and builds his case against Mexico months before the war.
TREATMENT	Public-domain text, selected excerpts

Historical Context

James K. Polk took office in March 1845 pledged to annex Texas and claim all of Oregon. His first annual message to Congress came as Texas entered the Union and as relations with Mexico and Britain grew tense.

Polk restated the Monroe Doctrine against new European colonies in North America, asked Congress to end joint occupation of Oregon with Britain, and listed American claims against Mexico that Mexico had not paid.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

The American continents, by the free and independent condition which they have assumed and maintain, are henceforth not to be considered as subjects for colonization by any European powers.

This principle will apply with greatly increased force should any European power attempt to establish any new colony in North America. In the existing circumstances of the world the present is deemed a proper occasion to reiterate and reaffirm the principle avowed by Mr. Monroe and to state my cordial concurrence in its wisdom and sound policy. The reassertion of this principle, especially in reference to North America, is at this day but the promulgation of a policy which no European power should cherish the disposition to resist. Existing rights of every European nation should be respected, but it is due alike to our safety and our interests that the efficient protection of our laws should be extended over our whole territorial limits, and that it should be distinctly announced to the world as our settled policy that no future European colony or dominion shall with our consent be planted or established on any part of the North American continent.

A question has recently arisen under the tenth article of the subsisting treaty between the United States and Prussia. By this article the consuls of the two countries have the right to sit as judges and arbitrators "in such differences as may arise between the captains and crews of the vessels belonging to the nation whose interests are committed to their charge without the interference of the local authorities, unless the conduct of the crews or of the captain should disturb the order or tranquillity of the country, or the said consuls should require their assistance to cause their decisions to be carried into effect or supported."

The Prussian consul at New Bedford in June, 1844, applied to Mr. Justice Story to carry into effect a decision made by him between the captain and crew of the Prussian ship Borussia, but the request was refused on the ground that without previous legislation by Congress the judiciary did not possess the power to give effect to this article of the treaty. The Prussian Government, through their minister here, have complained of this violation of the treaty, and have asked the Government of the United States to adopt the necessary measures to prevent similar violations hereafter. Good faith to Prussia, as well as to other nations with whom we have similar treaty stipulations, requires that these should be faithfully observed. I have deemed it proper, therefore, to lay the subject before Congress and to recommend such legislation as may be necessary to give effect to these treaty obligations.

[. . .]

The commerce of the United States, and with it the navigating interests, have steadily and rapidly increased since the organization of our Government, until, it is believed, we are now second to but one power in the world, and at no distant day we shall probably be inferior to none. Exposed as they must be, it has been a wise policy to afford to these important interests protection with our ships of war distributed in the great highways of trade throughout the world. For more than thirty years appropriations have been made and annually expended for the gradual increase of our naval forces. In peace our Navy performs the important duty of protecting our commerce, and in the event of war will be, as it has been, a most efficient means of defense.

The successful use of steam navigation on the ocean has been followed by the introduction of war steamers in great and increasing numbers into the navies of the principal maritime powers of the world. A due regard to our own safety and to an efficient protection to our large and increasing commerce demands a corresponding increase on our part. No country has greater facilities for the construction of vessels of this description than ours, or can promise itself greater advantages from their employment. They are admirably adapted to the protection of our commerce, to the rapid transmission of intelligence, and to the coast defense. In pursuahce of the wise policy of a gradual increase of our Navy, large supplies of live-oak timber and other materials for shipbuilding have been collected and are now under shelter and in a state of good preservation, while iron steamers can be built with great facility in various parts of the Union. The use of iron as a material, especially in the construction of steamers which can enter with safety many of the harbors along our coast now inaccessible to vessels of greater draft, and the practicability of constructing them in the interior, strongly recommend that liberal appropriations should be made for this important object. Whatever may have been our policy in the earlier stages of the Government, when the nation was in its infancy, our shipping interests and commerce comparatively small, our resources limited, our population sparse and scarcely extending beyond the limits of the original thirteen States, that policy must be essentially different now that we have grown from three to more than twenty millions of people, that our commerce, carried in our own ships, is found in every sea, and that our territorial boundaries and settlements have been so greatly expanded. Neither our commerce nor our long line of coast on the ocean and on the Lakes can be successfully defended against foreign aggression by means of fortifications alone. These are essential at important commercial and military points, but our chief reliance for this object must be on a well-organized, efficient navy. The benefits resulting from such a navy are not confined to the Atlantic States. The productions of the interior which seek a market abroad are directly dependent on the safety and freedom of our commerce. The occupation of the Balize below New Orleans by a hostile force would embarrass, if not stagnate, the whole export trade of the Mississippi and affect the value of the agricultural products of the entire valley of that mighty river and its tributaries.

It has never been our policy to maintain large standing armies in time of peace. They are contrary to the genius of our free institutions, would impose heavy burdens on the people and be dangerous to public liberty. Our reliance for protection and defense on the land must be mainly on our citizen soldiers, who will be ever ready, as they ever have been ready in times past, to rush with alacrity, at the call of their country, to her defense. This description of force, however, can not defend our coast, harbors, and inland seas, nor protect our commerce on the ocean or the Lakes. These must be protected by our Navy.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "First Annual Message." December 2, 1845. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "First Annual Message," December 2, 1845, American Presidency Project, https://www.presidency.ucsb.edu/documents/first-annual-message-6.

Shortened citation:

Polk, "First Annual Message."

PRIMARY SOURCE P13.33

Speech of Mr. Winthrop, of Massachusetts, on the Oregon Question (excerpt)

Robert C. Winthrop · House of Representatives, January 3, 1846 (Washington: J. & G. S. Gideon, 1846)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A Whig ridicules manifest destiny as a legal title, showing that expansion was openly contested in Congress.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

In late 1845 President Polk asked Congress to end the 1818 agreement under which the United States and Britain jointly occupied the Oregon Country. Democrats who demanded all of Oregon to latitude 54°40' clashed with Whigs who wanted a negotiated division.

Robert C. Winthrop (1809–1894), a Massachusetts Whig, argued that a distant, sparsely settled territory was no cause for war with Britain. His speech ridiculed "the right of our manifest destiny" as a claim to land, one of the earliest public uses of the phrase.

Editorial note: The text follows the Internet Archive scan of the 1846 pamphlet. OCR spellings such as "levelation of riglit" have been kept as scanned.

Document Text

[. . .]

I perceive, sir, that the brief time allowed us in debate will compel me to deal in the most summary way with these propositions, and that I must look to other opportunities for doing full justice either to them or to myself. Let me hasten, however, to do them what justice I may.

There are three distinct views in which this question may be presented, as one peculiarly for negotiation and compromise. In the first place, there is the character of the subject matter of the controversy. Unquestionably there may be rights and claims not of a nature to admit of compromise, and as to which there must be absolute and unconditional relinquishment on one side or the other, or a conflict is inevitable. I may allude to the impressment of our seamen as an example — a practice which could not be renewed by Great Britain at any moment, or under any circumstances, without producing immediate hostilities. But here we have as the bone of our contention, a vast and vacant territory, thousands of miles distant from both countries, entirely capable of division, and the loss of any part, 1 had almost said of the whole, of which, would not be of the smallest practical moment to either of them — a territory the sovereignty of which might remain in abeyance for a half century longer without serious inconvenience or detriment to anybody, and in reference to which there is certainly not the slightest pretence of a necessity for summary or precipitate action. We need ports on the Pacific. As to land, we have millions of acres of better land still unoccupied on this side of the mountains. What a spectacle it would be, in the sight of men and angels, for the two countries which claim to have made the greatest advances in civilization and Christianity, and which are bound together by so many ties of nature and art, of kindred and of commerce, each of them with possessions so vast and various, to be seen engaging in a conflict of brute force for the immediate and exclusive occupation of the whole of Oregon ! The annals of barbarism would afford no parallel to such a scene ! ' la the second place; sij; there is the character of the title to this territory

«oa both sides. I shall attempt no analysis or history of this title. lam certainly not disposed to vindicate the British title; and as to the American, there is nothing to be added to the successive expositions of the eminent statesmen

and diplomatists by whom it has been illustrated. But, after all, what a title it is to fight about ! Who can pretend that it is free from all difficulty or doubt? Who would take an acre of land upon such a title as an investment, without the warranty of something more than the two regiments of riflemen for which your bill provides? Of what is the title made up? Vague traditions of settlement, musty records of old voyages, conflicting claims of discovery, disputed principles of public law, acknowledged violations of the rights of aboriginal occupants — these are the elements — I had almost said the beggarly elements — out of which our clear and indisputable title is compounded. I declare to you, sir, that as often as I thread the mazes of this controversy, it seems to me to be a dispute as to the relative rights of two parties to a territory , .to which neither of them has any real right whatever; and I should hardly blame the other nations of the world foi' insisting on coming in for scot and lot in the partition of it. Certainly, if we should be so false to our character as civilized nations as to fight about it, the rest of Christendom would be justified, if they had the power, in treating us as we have always treated the savage tribes of our own continent, and turning us both out altogether.

[. . .]

There is one element in our title, however, which I confess that I have aiot named, and to which I may not have done entire justice. I mean that new levelation of riglit whi'-h has been designated as tlie right of our inanifest destiny to spread over tins vJiole continent. It has been openly avowed m a leading administration journal that this, after all, is our best and strongest title; one so clear, so pre-eminent, and so indisputable, that if Great Britain had all our other titles in addition to her own, they would weigh nothing against it. The right of our manifest destiny ! There is a right for a nev«^ •chapter in the law of nations; or rather in the special laws of our own coun-

tiy ; for I suppose the right of a manifest destiny to spread, will not be admitted to exist in any nation except the universal Yankee nation ! This right of our manifest destiny, Mr. Speaker, reminds me of another source of title which is worthy of being placed beside it. Spain and Portugal, we all know, in the early part of the sixteenth century laid claim to the jurisdiction of this whole northern continent of America. Francis I. is related to have replied to this pretension, that he should like to see the clause in Adanis Will in which their exclusive title was found. Now, sir, I look for an early reproduction of this idea. I have no doubt that if due search be made, a copy of this primeval instrument, with a clause giving us the whole of Oregon , can be somewhere hunted up. Perhaps it may be found in that same Illinois cave in which the Mormon Testament has been discovered. I conmiend the subject to the attention of those in that neighborhood, and will promise to withdraw all my opposition to giving notice or taking possession , whenever the right of our manifest destiny can be fortified by the provisions of our great first parent's Will !

[. . .]

Chicago Citations

Bibliography entry:

Winthrop, Robert C. *Speech of Mr. Winthrop, of Massachusetts, on the Oregon Question, Delivered in the House of Representatives of the United States, January 3, 1846*. Washington, DC: J. & G. S. Gideon, 1846. Internet Archive.

Footnote citation:

Robert C. Winthrop, *Speech of Mr. Winthrop, of Massachusetts, on the Oregon Question* (Washington, DC: J. & G. S. Gideon, 1846), [page], https://archive.org/details/speechofmrwinthr01wint.

Shortened citation:

Winthrop, *Speech on the Oregon Question*, [page].

PRIMARY SOURCE P13.34

Fifty Years in Camp and Field: Diary of Major-General Ethan Allen Hitchcock (excerpt)

Ethan Allen Hitchcock · diary entries of March 1846 (ed. W. A. Croffut, 1909)

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	An officer in Taylor's army records his private doubts about the advance to the Rio Grande as it happened.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Ethan Allen Hitchcock (1798–1870), grandson of the Revolutionary leader Ethan Allen, served as a lieutenant colonel under General Zachary Taylor when Polk ordered Taylor's army from Corpus Christi to the Rio Grande in early 1846.

Hitchcock kept a private diary throughout his career. In the months before the war he wrote that the United States had no right to the disputed land and that the advance was meant to provoke Mexico. His diary was edited and published long after his death.

Editorial note: The diary was edited for publication in 1909, more than sixty years after it was written. The text follows the Internet Archive scan; OCR spellings such as "Granrle" have been kept.

Document Text

[. . .]

"Since crossing the Colorado we hear a multitude of reports of the most contradictory character. At one moment we hear of a large force crossing the Rio Granrle at Matamoras to destroy us; then we hear that the people are in favor of our approach and ever)'thing is quiet. We hear that 700 men are on our rear and have been following us for several days. They have not been anxious to overtake us, for we have moved slowly. I have been very much prostrated in strength — never was so weak and now I can scarcely hold my pencil to write legibly.

"As to the right of this movement, I have said from the first that the United States are the aggressors. We have outraged the Mexican government and people by an arrogance and presumption that deser\'e to be punished. For ten years we have been encroaching on Mexico and insulting her. The Mexicans have in the whole of this time done but two wrong things: one was the destruction of the Constitution f)f 1824, which would have converted Texas into a mere dejiartment of Mexico ; this gave Texas the right of revolution, and she established her independence as far west as the Nueces, — no further; the other was the cold-blooded and savage murder of Fannin's men at Goliad — an indi\'idual piece of l)arl)arity which has deprived the Mexican army of all respect among civilized people. Beyond these. I know of nothing Mexico has done to deserve censure. Her people I consider a simple, well disposed, pastoral race, no way inclined to savage usages. "

[. . .]

"26th March, We yesterday broke camp at 3 p.m. and advanced three miles to better water and we are now within ten miles of Matamoras. Last evening General Worth sent me a letter from General Taylor stating that on his way to Point Isabel he was overtaken by the prefect of the department of Tamaulipas, who presented a protest against his advance into the department. The General had just come in sight of Point Isabel and saw that the buildings

were afire, burnt by the Mexicans, and he told the prefect that he would give him an answer when he had established himself opposite Matamoras. The prefect left him. This civil functionary travelled in a carriage with attendants in another. Certainly everything looks like opposition just now, and we ought to expect it. Indeed, I have expected it from the first. We have not one particle of right to be here.

"Our force is altogether too small for the accomplishment of its errand. It looks as if the government sent a small force on purpose to bring on a war, so as to have a pretext for taking California and as much of this country as it chooses; for, whatever becomes of this army, there is no doubt of a war between the United States and Mexico.

"My heart is not in this business; I am against it from the bottom of my soul as a most unholy and unrighteous proceeding; but, as a military man, I am bound to execute orders.

[. . .]

Chicago Citations

Bibliography entry:

Hitchcock, Ethan Allen. *Fifty Years in Camp and Field: Diary of Major-General Ethan Allen Hitchcock, U.S.A*. Edited by W. A. Croffut. New York: G. P. Putnam's Sons, 1909. Internet Archive.

Footnote citation:

Ethan Allen Hitchcock, *Fifty Years in Camp and Field*, ed. W. A. Croffut (New York: G. P. Putnam's Sons, 1909), 212–14, https://archive.org/details/fiftyyearsincamp00hitcuoft.

Shortened citation:

Hitchcock, *Fifty Years in Camp and Field*, [page].

PRIMARY SOURCE P13.35

Speech of Hon. Lewis Cass, of Michigan, on the Oregon Question (excerpt)

Lewis Cass · Senate, March 30, 1846 (Washington: Union Office, 1846)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A leading Democrat presses the claim to all of Oregon and accepts the risk of war, showing politicians leading rather than following.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Lewis Cass (1782–1866), a Michigan Democrat and former secretary of war, led the senators who demanded all of Oregon to 54°40'. He later became the Democratic nominee for president in 1848.

In this speech Cass answered a senator who accused the all-Oregon men of extremism. He quoted his own earlier address declaring the American claim "as undeniable as our right to Bunker's Hill" and accepting war if it came.

Editorial note: The text follows the Internet Archive scan of the 1846 pamphlet. OCR spellings such as "tlie" have been kept as scanned.

Document Text

[. . .]

I did not understand the precise object of some of the remarks of the Senator from North Caroiina,thnugh I had less difficulty respecting tlie remarks themselves. He told us the President nowhere claimed 54° 40'; and I presume he thus contended in order to show that the President might consistently accept any boundary south of that parallel. I again disclaim all interference with the President in the execution of his duties. I do not think, that what he will do in a gratuitous case, should furnish the subject ol' speculation upon this floor. I know what I will do, and that is enough for me ; and as I took the opportunity, three years ago, in a public and printed address, at Fort Wa} ne, to define my position in this matter, before I became a member of this body, my allusion to it here cannot be deemed the premature expression of my opinion. I then said :

" Our claim to the country west of the Rocky mountains ' is as undeniable as our right to Bunker's Hill and New ' Orleans ; and who will call in question our title to these ' blood-stained fields ? And I ti ust it will be maintained ' with a vigor and promptitude equal to its justice. War is ' a great evil, but not so great as national dishonor. Little ' is gained by yielding to insolent and unjust pretensions. ' It is better to defend the first inch of territory than thejast. ' Far better, in dealing with England, to resist aggression, 'whether of impressment, of search, or of territory, when ' first attempted, than to yield in the hope, that forbearance ' will be met in a just spirit, and will lead to an amicable ' compromise. Let us have no red lines upon tlie map of ' Oregon. Let us hold on to the integrity of our just claim. 'And if war come, be it so ; I do not believe it will be long ' avoided, unless prevented by intestine difliculties in tlie ' Britii^h Empire. And wo be to us, if we flatter ourtelves it ' can be arre-ted by any system of concession. Of all delu- ' sions, this would be the most fatal, and we should awake ' from it a dishonored, if not a ruined people."

Now the Oregon I claim, is all Oregon, and no vote of mine in this Senate will surrender one inch of it to England. But tlie Senator from North Carolina says, that the Oregon the President claims is an Oregon of his own, and not tlie country, which now excites the anxious solicitude of the American people. And if it were so, is it the duty of a friend, I may almost say claiming to be an exclusive one, to hold up to his countrymen the W'ord of promise of

their Chief Magristrate, thus kept to the ear, but not to the hope ? But it is not so. The honorable Senator has been led uito an error — ;i palpable error. The Preside«t says the British pretensions could not be maintained to any 'portion of the Oregon territory. He says, also, tliat our title to the whole of the Oregon territory is maintained by irrefragable facts and arguments. He says British laws have been extended throughout the whole of Oregon. Now, sir, has any man a right to s!iy, tliat the President falters in his purpose, by talking of the whole of a country, when he does not mean the whole of it.' No, sir ; the idea never occurred to him, never crossed his mind. VVhen he said Oregon, he meant so ; and I have no more doubt, than I have of my existence, that be believes as firmly in the American title to it, as he believes he is now the Chief Magistrate of the United States.

[. . .]

Chicago Citations

Bibliography entry:

Cass, Lewis. *Speech of Hon. Lewis Cass, of Michigan, on the Oregon Question, Delivered in the Senate of the United States, March 30, 1846*. Washington, DC: Union Office, 1846. Internet Archive.

Footnote citation:

Lewis Cass, *Speech of Hon. Lewis Cass, of Michigan, on the Oregon Question* (Washington, DC: Union Office, 1846), [page], https://archive.org/details/speechofhonlewis01cass.

Shortened citation:

Cass, *Speech on the Oregon Question*, [page].

PRIMARY SOURCE P13.36

The Oregon Trail, Chapter I: The Frontier

Francis Parkman · events of 1846 (published 1849)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	An eyewitness account of the 1846 emigration lets readers weigh the motives of ordinary settlers and the racial attitudes of an eastern observer.
TREATMENT	Public-domain text, one chapter

Historical Context

Francis Parkman (1823–1893), a young Harvard graduate from a wealthy Boston family, traveled the Oregon Trail in 1846 to see the plains and the Lakota. His account ran as magazine sketches and appeared as a book in 1849. Parkman later became a major historian.

The opening chapter describes St. Louis and the Missouri border in the spring of 1846, crowded with emigrants bound for Oregon and California and traders bound for Santa Fe. Parkman's sharp judgments of emigrants, Native peoples, and Mexicans reflect his class and his era.

Editorial note: The text follows the Project Gutenberg edition. Bracketed page markers have been removed.

Document Text

Last spring, 1846, was a busy season in the City of St. Louis. Not only were emigrants from every part of the country preparing for the journey to Oregon and California, but an unusual number of traders were making ready their wagons and outfits for Santa Fe. Many of the emigrants, especially of those bound for California, were persons of wealth and standing. The hotels were crowded, and the gunsmiths and saddlers were kept constantly at work in providing arms and equipments for the different parties of travelers. Almost every day steamboats were leaving the levee and passing up the Missouri, crowded with passengers on their way to the frontier.

In one of these, the Radnor, since snagged and lost, my friend and relative, Quincy A. Shaw, and myself, left St. Louis on the 28th of April, on a tour of curiosity and amusement to the Rocky Mountains. The boat was loaded until the water broke alternately over her guards. Her upper deck was covered with large weapons of a peculiar form, for the Santa Fe trade, and her hold was crammed with goods for the same destination. There were also the equipments and provisions of a party of Oregon emigrants, a band of mules and horses, piles of saddles and harness, and a multitude of nondescript articles, indispensable on the prairies. Almost hidden in this medley one might have seen a small French cart, of the sort very appropriately called a “mule-killer” beyond the frontiers, and not far distant a tent, together with a miscellaneous assortment of boxes and barrels. The whole equipage was far from prepossessing in its appearance; yet, such as it was, it was destined to a long and arduous journey, on which the persevering reader will accompany it.

The passengers on board the Radnor corresponded with her freight. In her cabin were Santa Fe traders, gamblers, speculators, and adventurers of various descriptions, and her steerage was crowded with Oregon emigrants, “mountain men,” negroes, and a party of Kansas Indians, who had been on a visit to St. Louis.

Thus laden, the boat struggled upward for seven or eight days against the rapid current of the Missouri, grating upon snags, and hanging for two or three hours at a time upon sand-bars. We entered the mouth of the Missouri in a drizzling rain, but the weather soon became clear, and showed distinctly the broad and turbid river, with its eddies, its sand-bars, its ragged islands, and forest-covered shores. The Missouri is constantly changing its course; wearing away its banks on one side, while it forms new ones on the other. Its channel is shifting continually.

Islands are formed, and then washed away; and while the old forests on one side are undermined and swept off, a young growth springs up from the new soil upon the other. With all these changes, the water is so charged with mud and sand that it is perfectly opaque, and in a few minutes deposits a sediment an inch thick in the bottom of a tumbler. The river was now high; but when we descended in the autumn it was fallen very low, and all the secrets of its treacherous shallows were exposed to view. It was frightful to see the dead and broken trees, thick-set as a military abatis, firmly imbedded in the sand, and all pointing down stream, ready to impale any unhappy steamboat that at high water should pass over that dangerous ground.

In five or six days we began to see signs of the great western movement that was then taking place. Parties of emigrants, with their tents and wagons, would be encamped on open spots near the bank, on their way to the common rendezvous at Independence. On a rainy day, near sunset, we reached the landing of this place, which is situated some miles from the river, on the extreme frontier of Missouri. The scene was characteristic, for here were represented at one view the most remarkable features of this wild and enterprising region. On the muddy shore stood some thirty or forty dark slavish-looking Spaniards, gazing stupidly out from beneath their broad hats. They were attached to one of the Santa Fe companies, whose wagons were crowded together on the banks above. In the midst of these, crouching over a smoldering fire, was a group of Indians, belonging to a remote Mexican tribe. One or two French hunters from the mountains with their long hair and buckskin dresses, were looking at the boat; and seated on a log close at hand were three men, with rifles lying across their knees. The foremost of these, a tall, strong figure, with a clear blue eye and an open, intelligent face, might very well represent that race of restless and intrepid pioneers whose axes and rifles have opened a path from the Alleghenies to the western prairies. He was on his way to Oregon, probably a more congenial field to him than any that now remained on this side the great plains.

Early on the next morning we reached Kansas, about five hundred miles from the mouth of the Missouri. Here we landed and leaving our equipments in charge of my good friend Colonel Chick, whose log-house was the substitute for a tavern, we set out in a wagon for Westport, where we hoped to procure mules and horses for the journey.

[. . .]

Chicago Citations

Bibliography entry:

Parkman, Francis. *The Oregon Trail: Sketches of Prairie and Rocky-Mountain Life*. 1849. Project Gutenberg eBook #1015.

Footnote citation:

Francis Parkman, *The Oregon Trail: Sketches of Prairie and Rocky-Mountain Life* (1849), chap. 1, Project Gutenberg eBook #1015.

Shortened citation:

Parkman, *Oregon Trail*, chap. 1.

PRIMARY SOURCE P13.37

Special Message to Congress on Mexican Relations (War Message) (excerpt)

James K. Polk · May 11, 1846

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk's war message is the official account of how the war began, the one his critics set out to refute.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In January 1846 Polk ordered General Zachary Taylor's army from the Nueces River to the Rio Grande, into land claimed by both Texas and Mexico. On April 25 Mexican cavalry attacked a U.S. patrol on the north bank of the river.

When the news reached Washington on May 9, Polk, who had already been preparing a war message, sent this one to Congress. He declared that Mexico had "invaded our territory and shed American blood upon the American soil." Congress voted for war two days later.

Editorial note: The text follows the transcription at the American Presidency Project. The Norton collection's excerpt of this message is printed here as one entry.

Document Text

[. . .]

In my message at the commencement of the present session I informed you that upon the earnest appeal both of the Congress and convention of Texas I had ordered an efficient military force to take a position "between the Nueces and the Del Norte." This had become necessary to meet a threatened invasion of Texas by the Mexican forces, for which extensive military preparations had been made. The invasion was threatened solely because Texas had determined, in accordance with a solemn resolution of the Congress of the United States, to annex herself to our Union, and under these circumstances it was plainly our duty to extend our protection over her citizens and soil.

[. . .]

Instead of this, however, we have been exerting our best efforts to propitiate her good will. Upon the pretext that Texas, a nation as independent as herself, thought proper to unite its destinies with our own she has affected to believe that we have severed her rightful territory, and in official proclamations and manifestoes has repeatedly threatened to make war upon us for the purpose of reconquering Texas. In the meantime we have tried every effort at reconciliation. The cup of forbearance had been exhausted even before the recent information from the frontier of the Del Norte. But now, after reiterated menaces, Mexico has passed the boundary of the United States, has invaded our territory and shed American blood upon the American soil. She has proclaimed that hostilities have commenced, and that the two nations are now at war.

As war exists, and, notwithstanding all our efforts to avoid it, exists by the act of Mexico herself, we are called upon by every consideration of duty and patriotism to vindicate with decision the honor, the rights, and the interests of our country.

Anticipating the possibility of a crisis like that which has arrived, instructions were given in August last, "as a precautionary measure" against invasion or threatened invasion, authorizing General Taylor, if the emergency required, to accept volunteers, not from Texas only, but from the States of Louisiana, Alabama, Mississippi, Tennessee, and Kentucky, and corresponding letters were addressed to the respective governors of those States. These instructions were repeated, and in January last, soon after the incorporation of "Texas into our Union of States," General Taylor was further "authorized by the President to make a requisition upon the executive of that State for such of its militia force as may be needed to repel invasion or to secure the country against apprehended invasion." On the 2d day of March he was again reminded, "in the event of the approach of any considerable Mexican force, promptly and efficiently to use the authority with which he was clothed to call to him such auxiliary force as he might need." War actually existing and our territory having been invaded, General Taylor, pursuant to authority vested in him by my direction, has called on the governor of Texas for four regiments of State troops, two to be mounted and two to serve on foot, and on the governor of Louisiana for four regiments of infantry to be sent to him as soon as practicable.

In further vindication of our rights and defense of our territory, I invoke the prompt action of Congress to recognize the existence of the war, and to place at the disposition of the Executive the means of prosecuting the war with vigor, and thus hastening the restoration of peace. To this end I recommend that authority should be given to call into the public service a large body of volunteers to serve for not less than six or twelve months unless sooner discharged. A volunteer force is beyond question more efficient than any other description of citizen soldiers, and it is not to be doubted that a number far beyond that required would readily rush to the field upon the call of their country. I further recommend that a liberal provision be made for sustaining our entire military force and furnishing it with supplies and munitions of war.

The most energetic and prompt measures and the immediate appearance in arms of a large and overpowering force are recommended to Congress as the most certain and efficient means of bringing the existing collision with Mexico to a speedy and successful termination.

In making these recommendations I deem it proper to declare that it is my anxious desire not only to terminate hostilities speedily, but to bring all matters in dispute between this Government and Mexico to an early and amicable adjustment; and in this view I shall be prepared to renew negotiations whenever Mexico shall be ready to receive propositions or to make propositions of her own.

I transmit herewith a copy of the correspondence between our envoy to Mexico and the Mexican minister for foreign affairs, and so much of the correspondence between that envoy and the Secretary of State and between the Secretary of War and the general in command on the Del Norte as is necessary to a full understanding of the subject.

JAMES K. POLK.

Chicago Citations

Bibliography entry:

Polk, James K. "Special Message to Congress on Mexican Relations." May 11, 1846. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Special Message to Congress on Mexican Relations," May 11, 1846, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-congress-mexican-relations.

Shortened citation:

Polk, "Special Message on Mexican Relations."

PRIMARY SOURCE P13.38

Proclamation 47: Announcement That a State of War Exists with the Republic of Mexico

James K. Polk · May 13, 1846

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The formal proclamation puts the government's claim that Mexico started the war into law.
TREATMENT	Full public-domain text

Historical Context

On May 13, 1846, Congress passed an act declaring that "by the act of the Republic of Mexico, a state of war exists" between the two nations. The House had voted 174 to 14 and the Senate 40 to 2, after limited debate.

The same day, Polk issued this proclamation announcing the war and calling on citizens and officials to support it. The act's preamble, which blamed Mexico, was itself a target of Whig objections.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

By the President of the United States of America
A Proclamation

Whereas the Congress of the United States, by virtue of the constitutional authority vested in them, have declared by their act bearing date this day that "by the act of the Republic of Mexico a state of war exists between that Government and the United States:"

Now, therefore, I, James K. Polk, President of the United States of America, do hereby proclaim the same to all whom it may concern; and I do specially enjoin on all persons holding offices, civil or military, under the authority of the United States that they be vigilant and zealous in discharging the duties respectively incident thereto; and I do, moreover, exhort all the good people of the United States, as they love their country, as they feel the wrongs which have forced on them the last resort of injured nations, and as they consult the best means, under the blessing of Divine Providence, of abridging its calamities, that they exert themselves in preserving order, in promoting concord, in maintaining the authority and the efficacy of the laws, and in supporting and invigorating all the measures which may be adopted by the constituted authorities for obtaining a speedy, a just, and an honorable peace.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed to these presents.

Done at the city of Washington, the 13th day of May, A. D. 1846, and of the Independence of the United States the seventieth.

JAMES K. POLK.

By the President:

JAMES BUCHANAN,

Secretary of State.

Chicago Citations

Bibliography entry:

Polk, James K. "Proclamation 47—Announcement That a State of War Exists With the Republic of Mexico." May 13, 1846. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Proclamation 47—Announcement That a State of War Exists With the Republic of Mexico," May 13, 1846, American Presidency Project, https://www.presidency.ucsb.edu/.

Shortened citation:

Polk, Proclamation 47.

PRIMARY SOURCE P13.39

Articles of a Treaty Made at Council Springs with the Comanche and Other Tribes (excerpt)

P. M. Butler and M. G. Lewis, U.S. Commissioners, with the Comanche and allied bands · May 15, 1846 (printed 1847)

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Signed in the war's first days, the treaty shows the United States negotiating with the Comanche power that dominated the borderlands.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

After annexation, the federal government took over Texas's relations with the Comanches, the dominant military power of the southern Plains and the Texas–Mexico borderlands.

U.S. commissioners Pierce M. Butler and M. G. Lewis met with Comanche, Wichita, Caddo, and other bands at Council Springs on the Brazos River. The treaty, concluded days after the war with Mexico began, placed the tribes under U.S. protection and promised trading posts and presents.

Editorial note: The text follows the Internet Archive scan of the 1847 printing. OCR errors such as "\vas" and "Ihe" have been kept as scanned.

Document Text

[. . .]

Whereas a treaty \vas made and concluded at Council Springs, in the county of Robinson, Texas, near Ihe Brazos river, on the fifteenth day of May, A. D. one thousand eight hundred and for ty-six, between P. M. Butler and M. G. Lewis, commissioners on the part cf the United States of America, of the one part, and the chiefs, counsellors, and warriors of the Comanche, I-on-i, Anada-ca, Cadoe, Lepan, Long-wha, Keechy, Tah-wah-carro, Wichi ta, and Wacoe tribes of Indians, and their associate bands, in be half of their said tribes, of the other part ; which treaty is word for word, as follows, viz :

Articles of a treaty made and con cluded at Council Springs, in the Bounty of Robinson, Texas, near the Brazos river, this 15th day of May, A. D. 1846, between P. M. Butler and M. G. Lewis, commissioners on the part of the United States of the one pail, and the undersigned chiefs, counsellors, and warriors of the Comanche, I-on-i, Ana-da-ca, Cadoe, Lepan, Long-wha, Keechy, Taliwa-carro, Wichita, and Wacoe tribes of Indians and their associate bands in behalf of their said tribes, on the other part.

ARTICLE I.

The undersigned, chiefs, warriors, and counsellors, for themselves and their said tribes or nations, do hereby acknowledge themselves to be under the protection of the United States, and of no other power. State, or sovereign ty whatever.

[. . .]

Chicago Citations

Bibliography entry:

United States. *Articles of a Treaty Made and Concluded at Council Springs, in the County of Robinson, Texas, near the Brazos River, May 15, 1846*. Washington, DC, 1847. Internet Archive.

Footnote citation:

Articles of a Treaty Made and Concluded at Council Springs (Washington, DC, 1847), [page], https://archive.org/details/articlesoftreaty00unitrich.

Shortened citation:

Treaty at Council Springs, [page].

PRIMARY SOURCE P13.40

Treaty with Great Britain, in Regard to Limits Westward of the Rocky Mountains (Oregon Treaty)

United States and Great Britain · June 15, 1846

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	The settlement trades the expansionist slogan for the harbors of Puget Sound.
TREATMENT	Full public-domain text

Historical Context

Despite the slogan "Fifty-four forty or fight," Polk accepted a compromise with Britain while the United States was going to war with Mexico. Secretary of State James Buchanan and British minister Richard Pakenham signed this treaty in June 1846.

The treaty extended the boundary along the 49th parallel to the Pacific, gave Britain all of Vancouver Island, and kept the channel and the Strait of Juan de Fuca open to both nations, securing Puget Sound for the United States.

Editorial note: The text follows the Avalon Project transcription from the *Statutes at Large*.

Document Text

Treaty with Great Britain, in Regard to Limits Westward of the Rocky Mountains

THE United States of America and her Majesty the Queen of the United Kingdom of Great Britain and Ireland, deeming it to be desirable for the future welfare of both countries that the state of doubt and uncertainty which has hitherto prevailed respecting the sovereignty and government of the territory on the northwest coast of America, lying westward of the Rocky or Stony Mountains, should be finally terminated by an amicable compromise of the rights mutually asserted by the two parties over the said territory, have respectively named plenipotentiaries to treat and agree concerning the terms of such settlement-that is to say: the President of the United States of America has, on his part, furnished with full powers James Buchanan, Secretary of State of the United States, and her Majesty the Queen of the United Kingdom of Great Britain and Ireland has, on her part, appointed the Right Honorable Richard Pakenham, a member of her Majesty's Most Honorable Privy Council, and her Majesty's Envoy Extraordinary and Minister Plenipotentiary to the United States; who, after having communicated to each other their respective full powers, found m good and due form, have agreed upon and concluded the following articles:----

ARTICLE I.

From the point on the forty-ninth parallel of north latitude, where the boundary laid down in existing treaties and conventions between the United States and Great Britain terminates, the line of boundary between the territories of the United States and those of her Britannic Majesty shall be continued westward along the said forty-ninth parallel of north latitude to the middle of the channel which separates the continent from Vancouver's Island, and thence southerly through the middle of the said channel, and of Fuca's Straits, to the Pacific Ocean: Provided, however, That the navigation of the whole of the said channel and straits, south of the forty-ninth parallel of north latitude, remain free and open to both parties.

ARTICLE II.

From the point at which the forty-ninth parallel of north latitude shall be found to intersect the great northern branch of the Columbia River, the navigation of the said branch shall be free and open to the Hudson's Bay Company, and to all British subjects trading with the same, to the point where the said branch meets the main stream of the Columbia, and thence down the said main stream to the ocean, with Fee access into and through the said river or rivers, it being understood that all the usual portages along the line thus described shall, in like manner, be free and open. In navigating the said river or rivers, British subjects, with their goods and produce, shall be treated on the same footing as citizens of the United States; it being, however, always understood that nothing in this article shall be construed as preventing, or intended to prevent, the government of the United States from making any regulations respecting the navigation of the said river or rivers not inconsistent with the present treaty.

ARTICLE III

In the future appropriation of the territory south of the forty-ninth parallel of north latitude, as provided in the first article of this treaty, the possessory rights of the Hudson's Bay Company, and of all British subjects who may be already in the occupation of land or other property lawfully acquired within the said territory, shall be respected.

ARTICLE IV.

The farms, lands, and other property of every description, belonging to the Puget's Sound Agricultural Company, on the north side of the Columbia River, shall be confirmed to the said company. In case, however, the situation of those farms and lands should be considered by the United States to be of public and political importance, and the United States government should signify a desire to obtain possession of the whole, or of any part thereof, the property so required shall be transferred to the said government, at a proper valuation, to be agreed upon between the parties.

ARTICLE V.

The present treaty shall be ratified by the President of the United States, by and with the advice and consent of the Senate thereof, and by her Britannic Majesty; and the ratifications shall be exchanged at London, at the expiration of six months from the date hereof, or sooner, if possible.

In witness whereof, the respective Plenipotentiaries have signed the same, and have affixed thereto the seals of their arms.

Done at Washington, the fifteenth day of June, in the year of our Lord one thousand eight hundred and forty-six.

JAMES BUCHANAN [L S.]

RICHARD PAKENHAM [L. S.]

Chicago Citations

Bibliography entry:

"Treaty with Great Britain, in Regard to Limits Westward of the Rocky Mountains." June 15, 1846. *United States Statutes at Large* 9:869. Avalon Project, Yale Law School.

Footnote citation:

Treaty with Great Britain, in Regard to Limits Westward of the Rocky Mountains, June 15, 1846, art. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/br-1846.asp.

Shortened citation:

Oregon Treaty, art. [number].

PRIMARY SOURCE P13.41

The Wilmot Proviso

David Wilmot · House of Representatives, August 8, 1846

TOC FIT	Chapter 13 · Essay prompts 13.3 (Who Caused the Mexican-American War?) and 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	A northern Democrat's amendment shows that the war's territorial aims raised the question of slavery's expansion at once.
TREATMENT	Full public-domain text

Historical Context

Two months into the war with Mexico, Polk asked Congress for $2 million to help negotiate peace, which everyone understood meant buying territory. David Wilmot (1814–1868), a Pennsylvania Democrat, moved an amendment to the appropriations bill.

The proviso would have barred slavery from any territory acquired from Mexico. It passed the House repeatedly on sectional votes but always failed in the Senate, and it made the status of slavery in the West the central political question of the next fifteen years.

Editorial note: The planned host, docsteach.org, was blocked by a bot check. The text follows the Teaching American History transcription of the amendment as printed in the *Congressional Globe*.

Document Text

[. . .]

Provided, That, as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty which may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall first be duly convicted.

[. . .]

Chicago Citations

Bibliography entry:

Wilmot, David. Amendment to H.R. 534 (Wilmot Proviso). August 8, 1846. *Congressional Globe*, 29th Cong., 1st Sess., 1217. Teaching American History.

Footnote citation:

David Wilmot, amendment to H.R. 534, August 8, 1846, *Congressional Globe*, 29th Cong., 1st Sess., 1217, via Teaching American History, https://teachingamericanhistory.org/document/wilmot-proviso/.

Shortened citation:

Wilmot Proviso.

PRIMARY SOURCE P13.42

Adventures in Mexico and the Rocky Mountains (excerpt)

George F. Ruxton · travels of 1846–1847 (London: John Murray, 1847)

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A British traveler describes a northern Mexico fortified against Comanche raids during the war.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

George Frederick Ruxton (1821–1848), a British army officer and adventurer, rode from Veracruz through Mexico City and northern Mexico to New Mexico and the Rocky Mountains in 1846–47, during the war.

His book describes northern Mexico's countryside and towns. In these passages he notes fortified haciendas built against Comanche raids and the fear of raiders in Durango. Ruxton wrote with open contempt for Mexicans.

Editorial note: The text follows the Internet Archive scan of the 1847 London edition. OCR spellings have been kept.

Document Text

[. . .]

On the 30th we left Fresnillo, having a journey of fifty- five miles before us to Zaina. The country is desolate and totally uncultivated, excepting here and there where a solitary hacienda or rancho is seen ; these are all fortified, for we were now entering the districts which are annually laid waste by the Comanches. The haciendas are all surrounded by walls, and flanked with towers loopholed for musketry. A man is always stationed on an eminence in the vicinity, mounted on a fleet horse, on the look-out for Indians; and on their approach a signal is given, and the peones, the labourers employed in the milpas, run with their families to the hacienda, and the gates are then closed and preparations made for defence.

[. . .]

Durango is the seat of a bishopric, and the worthy prelate lately undertook a journey to Santa Fe, in New Mexico, which progress created a furore amongst the devout ; and the good old man was glad to return with any hem to his garment, so great was the respect paid to him. That he escaped the Apaches and Comanches is attributed to a miracle : the unfaithful assign the glory to his numerous escort. — Quien sabe ?

[. . .]

Chicago Citations

Bibliography entry:

Ruxton, George Frederick. *Adventures in Mexico and the Rocky Mountains*. London: John Murray, 1847. Internet Archive.

Footnote citation:

George Frederick Ruxton, *Adventures in Mexico and the Rocky Mountains* (London: John Murray, 1847), [page], https://archive.org/details/adventuresinmexi00ruxtrich.

Shortened citation:

Ruxton, *Adventures in Mexico*, [page].

PRIMARY SOURCE P13.43

Second Annual Message (excerpt)

James K. Polk · December 8, 1846

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk answers his critics at length, laying out the official case that Mexico caused the war.
TREATMENT	Public-domain text, selected excerpts

Historical Context

By December 1846 American forces held California, New Mexico, and much of northern Mexico, but Whig critics in Congress were calling the war unjust and unnecessary.

Polk devoted much of his annual message to defending the war's origins. He listed decades of unpaid American claims against Mexico and Mexico's refusal to receive his envoy, John Slidell, and he insisted the war "was neither desired nor provoked by the United States."

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

The existing war with Mexico was neither desired nor provoked by the United States. On the contrary, all honorable means were resorted to to avert it. After years of endurance of aggravated and unredressed wrongs on our part, Mexico, in violation of solemn treaty stipulations and of every principle of justice recognized by civilized nations, commenced hostilities, and thus by her own act forced the war upon us. Long before the advance of our Army to the left bank of the Rio Grande we had ample cause of war against Mexico, and had the United States resorted to this extremity we might have appealed to the whole civilized world for the justice of our cause. I deem it to be my duty to present to you on the present occasion a condensed review of the injuries we had sustained, of the causes which led to the war, and of its progress since its commencement. This is rendered the more necessary because of the misapprehensions which have to some extent prevailed as to its origin and true character. The war has been represented as unjust and unnecessary and as one of aggression on our part upon a weak and injured enemy. Such erroneous views, though entertained by but few, have been widely and extensively circulated, not only at home, but have been spread throughout Mexico and the whole world. A more effectual means could not have been devised to encourage the enemy and protract the war than to advocate and adhere to their cause, and thus give them "aid and comfort." It is a source of national pride and exultation that the great body of our people have thrown no such obstacles in the way of the Government in prosecuting the war successfully, but have shown themselves to be eminently patriotic and ready to vindicate their country's honor and interests at any sacrifice. The alacrity and promptness with which our volunteer forces rushed to the field on their country's call prove not only their patriotism, but their deep conviction that our cause is just.

The wrongs which we have suffered from Mexico almost ever since she became an independent power and the patient endurance with which we have borne them are without a parallel in the history of modern civilized nations. There is reason to believe that if these wrongs had been resented and resisted in the first instance the present war might have been avoided. One outrage, however, permitted to pass with impunity almost necessarily encouraged the perpetration of another, until at last Mexico seemed to attribute to weakness and indecision on our part a forbearance which was the offspring of magnanimity and of a sincere desire to preserve friendly relations with a sister republic.

[. . .]

Had the United States at that time adopted compulsory measures and taken redress into their own hands, all our difficulties with Mexico would probably have been long since adjusted and the existing war have been averted. Magnanimity and moderation on our part only had the effect to complicate these difficulties and render an amicable settlement of them the more embarrassing. That such measures of redress under similar provocations committed by any of the powerful nations of Europe would have been promptly resorted to by the United States can not be doubted. The national honor and the preservation of the national character throughout the world, as well as our own self-respect and the protection due to our own citizens, would have rendered such a resort indispensable. The history of no civilized nation in modern times has presented within so brief a period so many wanton attacks upon the honor of its flag and upon the property and persons of its citizens as had at that time been borne by the United States from the Mexican authorities and people. But Mexico was a sister republic on the North American continent, occupying a territory contiguous to our own, and was in a feeble and distracted condition, and these considerations, it is presumed, induced Congress to forbear still longer.

Instead of taking redress into our own hands, a new negotiation was entered upon with fair promises on the part of Mexico, but with the real purpose, as the event has proved, of indefinitely postponing the reparation which we demanded, and which was so justly due. This negotiation, after more than a year's delay, resulted in the convention of the 11th of April, 1839, "for the adjustment of claims of citizens of the United States of America upon the Government of the Mexican Republic." The joint board of commissioners created by this convention to examine and decide upon these claims was not organized until the month of August, 1840, and under the terms of the convention they were to terminate their duties within eighteen months from that time. Four of the eighteen months were consumed in preliminary discussions on frivolous and dilatory points raised by the Mexican commissioners, and it was not until the month of December, 1840, that they commenced the examination of the claims of our citizens upon Mexico. Fourteen months only remained to examine and decide upon these numerous and complicated cases. In the month of February, 1842, the term of the commission expired, leaving many claims undisposed of for want of time. The claims which were allowed by the board and by the umpire authorized by the convention to decide in case of disagreement between the Mexican and American commissioners amounted to $2,026,139.68. There were pending before the umpire when the commission expired additional claims, which had been examined and awarded by the American commissioners and had not been allowed by the Mexican commissioners, amounting to $928,627.88, upon which he did not decide, alleging that his authority had ceased with the termination of the joint commission. Besides these claims, there were others of American citizens amounting to $3,336,837.05, which had been submitted to the board, and upon which they had not time to decide before their final adjournment.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "Second Annual Message." December 8, 1846. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Second Annual Message," December 8, 1846, American Presidency Project, https://www.presidency.ucsb.edu/documents/second-annual-message-6.

Shortened citation:

Polk, "Second Annual Message."

PRIMARY SOURCE P13.44

Mexican Soldier Standing Astride the American Invader

Unidentified Mexican artist · 1840s

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A Mexican print presents the war as a defense of the homeland against invasion.
TREATMENT	Public-domain image

Historical Context

Mexican printmakers produced patriotic images during the war of 1846–48, as American armies occupied northern Mexico and then marched on Mexico City.

This woodcut shows a Mexican soldier holding a flag inscribed "Patria," "Libertad," and "Independencia," standing over a fallen figure labeled "Invasion."

Editorial note: Image from the copy supplied by the instructor; the printmaker and exact date are not recorded.

Primary Source Image

Mexican soldier standing astride the American invader, woodcut, 1840s.

Chicago Citations

Bibliography entry:

Mexican Soldier Standing Astride the American Invader. Woodcut. Mexico, 1840s.

Footnote citation:

Mexican Soldier Standing Astride the American Invader, woodcut, Mexico, 1840s.

Shortened citation:

Mexican Soldier Astride the American Invader.

PRIMARY SOURCE P13.45

Speech of Mr. Calhoun on the Three Million Bill (excerpt)

John C. Calhoun · Senate, February 9, 1847 (Washington: John T. Towers, 1847)

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A southern critic of the war explains how he thought it began and how it should end.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

In early 1847 Polk asked Congress for $3 million to negotiate a peace with Mexico. The bill revived the Wilmot Proviso fight, and northern members tried again to attach a ban on slavery in any conquered territory.

John C. Calhoun, who had opposed the war, used this Senate speech to criticize how it had begun and to urge a defensive line rather than further conquest. Days later he offered resolutions declaring that Congress had no power to bar slavery from the territories.

Editorial note: The text follows the Internet Archive scan of the 1847 pamphlet. OCR spellings have been kept as scanned; words broken at line ends have been rejoined.

Document Text

[. . .]

The bill making further appropriation to bring the existing war with Mexico to a speedy and honorable conclusion, being under consideration

Mr, CALHOUN rose, and thus addressed the Senate. Never, Mr. President, since I have been on the stage of action, has our country been placed in a more critical situation than at present. We are not only in the midst of a very difficult and a very expensive war, but we are involved in a domestic question of the most irritating and dangerous character. They both claim our serious and deliberate consideration, and I do trust that before this session closes, late as it is, they will both receive a full discussion. It is due to our constituents that the actual state of things in reference to both should be fully understood. For the present, I propose to consider the queslion which is more immediately pressing — how shall the war be conducted to bring it most advantageously to a successful termination? Or, to express it a little more fully, how shall it be conducted to enable us most advantageously to effect all the objects for which it was made ? For it is only by effecting those objects that the war can be properly said to be successful.

There are two ways in which the war may be conducted. The one is, to pHsh on offensive operations until Mexico is compelled to yield to our terms. The other, to take a defensive position and to maintain and secure the possession of the country already in our military occupation. The question which I propose to consider is, which of these two plans of operation ought to be selected. It is a grave question ; in my opinion, next in importance only to the war itself I have given it my deliberate consideration, and the result to which I have come is, that we ought to choose the defensive position. I shall now proceed to state the reasons upon which that conclusion is founded.

I believe it is the policy best calculated to bring the war advantage ously to a successful termination ; or, to expres^nt more fully and explicitly— for I wish to be fully comprehended on this important question — to bring it with certainty to a successful termination, and that with the least sacrifice of men and money, and with the least hazard of disastrous consequences and loss of standing and reputation to the country. If I rightly understand the

objects for which the war was declared, I ^ee\ a deep conviction that, by assuming a defensive attitude, all of them may be effected. I say, if I rightly understand, for, strange as it may seem, those objects, even at this late day, are left to inference. There is no document

in which they are distinctly enumerated and set forth by the Government, and of course they can only be ascertained by viewing the messages of the President in relerence to the war, in connection with the acts of Congress recognizing its existence, or for carrying it on. I have examined them, and particularly the message of the President to Congress, recommending that Congress should make war, for the purpose of discovering the objects for whicii it was made, and the result is that they were threefold : first, to repel invasion ; next, to establish the Rio del Norte as the western boundary of Texas ; and thirdly, to obtain indemnity lor the claims of our citizens against Mexico. The first two appear to me to be the prim.ary, and the last only the secondary object oi the war. The President, in his messages, did not reconnnend Congress to declare war. No. He assumed that war already existed, and called upon Congress to recognise its existence. He affirmed that the country had been invaded, and Americrn blood spilt upon American soil. That assumption was based on th.e position that the Rio del Norte was the western boundary of Texas, and that the ?*Iexicans had crossed that boundary to the American side of the river. This he affirmed was an invasion of our territory.

The act of Congress reiterated the declaration that war had been made by the Republic of Mexico, and thus recognised the Rio del Norte as the western Ijoundary of Texas, and the crossing of that river by the Mexicans as an act of invasion. Hence, both the Executive and Legislative branches of this Government are committed to the fact that the Rio del Norte is the western boundary of Texas, and that crossing it Avas an invasion on the part of the Mexicans. To repel the invasion and establish the boundary were then clearly the primary objects of the war. But having got into the war, the President recommends it to be prosecuted for the other object I have mentioned — that is to say, indemnity for our citizens — a recommendation, in my opinion, proper ; lor while we are engaged in war all the differences between the two countries ought, if possible, to be settled. These appear to me to be the objects of the war. Conquest is expressly disavowed, and, therefore, constitutes none of its objects. The President, in addition, recommends that we shall prosecute the war in order to obtain indemnity for its expenses, but that in no sense can be considered as one of its objects, but a mere question of policy ; for it can never be supposed that a country would enter upon a war for the mere purpose of being indemnified for its cost.

[. . .]

Chicago Citations

Bibliography entry:

Calhoun, John C. *Speech of Mr. Calhoun, of South Carolina, on the Bill Making Further Appropriation to Bring the Existing War with Mexico to a Speedy and Honorable Conclusion, Delivered in the Senate of the United States, February 9, 1847.* Washington, DC: John T. Towers, 1847. Internet Archive.

Footnote citation:

John C. Calhoun, *Speech of Mr. Calhoun, of South Carolina, on the Bill Making Further Appropriation* (Washington, DC: John T. Towers, 1847), [page], https://archive.org/details/speechofmrcalhou00calh.

Shortened citation:

Calhoun, *Speech on the Three Million Bill*, [page].

PRIMARY SOURCE P13.46

Yankee Doodle, Volume Second, No. 30

Yankee Doodle (New York: W. H. Graham) · May 1, 1847

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A popular humor magazine shows how the war was mocked and celebrated in northern print culture.
TREATMENT	Public-domain image

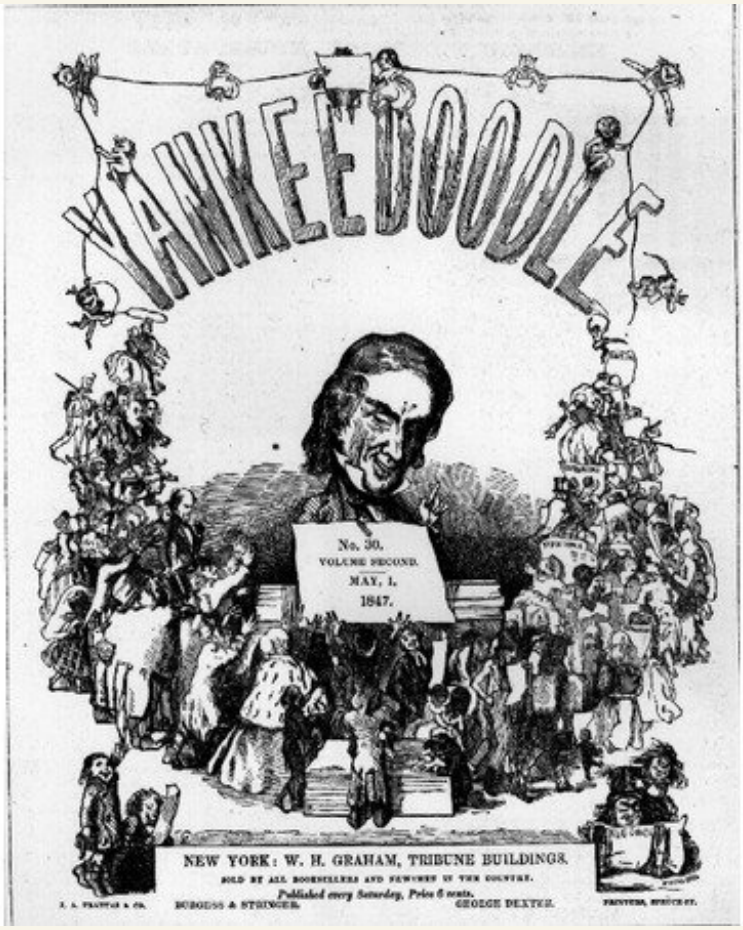
Historical Context

Yankee Doodle was a short-lived New York humor weekly (1846–47) modeled on London's *Punch*. Its cartoons often satirized the war with Mexico and the politicians behind it.

This cover for the May 1, 1847, number surrounds a grinning Yankee Doodle with crowds of caricatured figures.

Editorial note: Image from the copy supplied by the instructor. The cover art is decorative; read it alongside the magazine's war cartoons.

Primary Source Image



Yankee Doodle, vol. 2, no. 30, May 1, 1847, cover.

Chicago Citations

Bibliography entry:

Yankee Doodle 2, no. 30. Cover. New York: W. H. Graham, May 1, 1847.

Footnote citation:

Yankee Doodle 2, no. 30 (May 1, 1847), cover.

Shortened citation:

Yankee Doodle, May 1, 1847.

PRIMARY SOURCE P13.47

Third Annual Message (excerpt)

James K. Polk · December 7, 1847

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The president states the commercial motive for California and his case that Mexico owed land as indemnity.
TREATMENT	Public-domain text, selected excerpts

Historical Context

By December 1847 U.S. forces held Mexico City, but no peace treaty had been signed, and some Americans called for annexing all of Mexico. Polk's annual message explained why the United States should demand territory.

Polk argued that Mexico could pay its debts and the costs of the war only in land, praised San Francisco Bay as a harbor for Pacific commerce, and described Mexico as too weak to control Indian raids in its northern provinces.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

It is well known that the only indemnity which it is in the power of Mexico to make in satisfaction of the just and long-deferred claims of our citizens against her and the only means by which she can reimburse the United States for the expenses of the war is a cession to the United States of a portion of her territory. Mexico has no money to pay, and no other means of making the required indemnity. If we refuse this, we can obtain nothing else. To reject indemnity by refusing to accept a cession of territory would be to abandon all our just demands, and to wage the war, bearing all its expenses, without a purpose or definite object.

A state of war abrogates treaties previously existing between the belligerents and a treaty of peace puts an end to all claims for indemnity for tortious acts committed under the authority of one government against the citizens or subjects of another unless they are provided for in its stipulations. A treaty of peace which would terminate the existing war without providing for indemnity would enable Mexico, the acknowledged debtor and herself the aggressor in the war, to relieve herself from her just liabilities. By such a treaty our citizens who hold just demands against her would have no remedy either against Mexico or their own Government. Our duty to these citizens must forever prevent such a peace, and no treaty which does not provide ample means of discharging these demands can receive my sanction.

A treaty of peace should settle all existing differences between the two countries. If an adequate cession of territory should be made by such a treaty, the United States should release Mexico from all her liabilities and assume their payment to our own citizens. If instead of this the United States were to consent to a treaty by which Mexico should again engage to pay the heavy amount of indebtedness which a just indemnity to our Government and our citizens would impose on her, it is notorious that she does not possess the means to meet such an undertaking. From such a treaty no result could be anticipated but the same irritating disappointments which have heretofore attended the violations of similar treaty stipulations on the part of Mexico. Such a treaty would be but a temporary cessation of hostilities, without the restoration of the friendship and good understanding which should characterize the future intercourse between the two countries.

That Congress contemplated the acquisition of territorial indemnity when that body made provision for the prosecution of the war is obvious. Congress could not have meant when, in May, 1846, they appropriated

$10,000,000 and authorized the President to employ the militia and naval and military forces of the United States and to accept the services of 50,000 volunteers to enable him to prosecute the war, and when, at their last session, and after our Army had invaded Mexico, they made additional appropriations and authorized the raising of additional troops for the same purpose, that no indemnity was to be obtained from Mexico at the conclusion of the war; and yet it was certain that if no Mexican territory was acquired no indemnity could be obtained. It is further manifest that Congress contemplated territorial indemnity from the fact that at their last session an act was passed, upon the Executive recommendation, appropriating $3,000,000 with that express object. This appropriation was made "to enable the President to conclude a treaty of peace, limits, and boundaries with the Republic of Mexico, to be used by him in the event that said treaty, when signed by the authorized agents of the two Governments and duly ratified by Mexico, shall call for the expenditure of the same or any part thereof." The object of asking this appropriation was distinctly stated in the several messages on the subject which I communicated to Congress. Similar appropriations made in 1803 and 1806, which were referred to, were intended to be applied in part consideration for the cession of Louisiana and the Floridas. In like manner it was anticipated that in settling the terms of a treaty of "limits and boundaries" with Mexico a cession of territory estimated to be of greater value than the amount of our demands against her might be obtained, and that the prompt payment of this sum in part consideration for the territory ceded, on the conclusion of a treaty and its ratification on her part, might be an inducement with her to make such a cession of territory as would be satisfactory to the United States; and although the failure to conclude such a treaty has rendered it unnecessary to use any part of the $3,000,000 appropriated by that act, and the entire sum remains in the Treasury, it is still applicable to that object should the contingency occur making such application proper.

[. . .]

Upper California is bounded on the north by our Oregon possessions, and if held by the United States would soon be settled by a hardy, enterprising, and intelligent portion of our population. The Bay of San Francisco and other harbors along the Californian coast would afford shelter for our Navy, for our numerous whale ships, and other merchant vessels employed in the Pacific Ocean, and would in a short period become the marts of an extensive and profitable commerce with China and other countries of the East.

These advantages, in which the whole commercial world would participate, would at once be secured to the United States by the cession of this territory; while it is certain that as long as it remains a part of the Mexican dominions they can be enjoyed neither by Mexico herself nor by any other nation.

New Mexico is a frontier Province, and has never been of any considerable value to Mexico. From its locality it is naturally connected with our Western settlements. The territorial limits of the State of Texas, too, as defined by her laws before her admission into our Union, embrace all that portion of New Mexico lying east of the Rio Grande, while Mexico still claims to hold this territory as a part of her dominions. The adjustment of this question of boundary is important.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "Third Annual Message." December 7, 1847. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Third Annual Message," December 7, 1847, American Presidency Project, https://www.presidency.ucsb.edu/documents/third-annual-message-6.

Shortened citation:

Polk, "Third Annual Message."

PRIMARY SOURCE P13.48

Peace with Mexico

Albert Gallatin · December 1847 (New York: Bartlett & Welford)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A founding-era statesman calls the war an American aggression and attacks racial-destiny arguments by name, proving those arguments were in circulation.
TREATMENT	Full public-domain text

Historical Context

Albert Gallatin (1761–1849) had been Thomas Jefferson's secretary of the treasury and a diplomat. At eighty-six he wrote this pamphlet urging an end to the war with Mexico.

Gallatin argued that the United States had been the aggressor when Taylor's army entered the disputed land between the Nueces and the Rio Grande. He rejected the claim that Anglo-Saxon superiority gave Americans a right to Mexican land, calling it a pretext for usurpation.

Editorial note: The text follows the Project Gutenberg edition of the 1847 pamphlet.

Document Text

[. . .]

Yet, when Mexico refused to receive Mr. Slidell as an Envoy Extraordinary and Minister Plenipotentiary, the United States should have remembered, that we had been the aggressors, that we had committed an act acknowledged, as well by the practical law of nations, as by common sense and common justice, to be tantamount to a declaration of war; and they should have waited with patience, till the feelings excited by our own conduct had subsided.

General Taylor had been instructed by the War Department, as early as May 28, 1845, to cause the forces under his command to be put into a position where they might most promptly and efficiently act in defence of Texas, in the event that it should become necessary or proper to employ them for that purpose. By subsequent instructions, and after the people of Texas had accepted the proposition of annexation, he was directed to select and occupy a position adapted to repel invasion, as near the boundary line, the Rio Grande, as prudence would dictate; and that, with this view, a part of his forces at least should be west of the river Nueces. It was certainly the duty of the President to protect Texas against invasion, from the moment it had been annexed to the United States; and as that republic was in actual possession of Corpus Christi, which was the position selected by General Taylor, there was nothing, in the position he had taken, indicative of any danger of actual hostilities.

But our Government seems to have considered the refusal, on the part of Mexico, to receive Mr. Slidell as a resident Envoy of the United States, as necessarily leading to war. The Secretary of State, in his letter to Mr. Slidell of January 28, 1846, says:—"Should the Mexican Government finally refuse to receive you, the cup of forbearance will then have been exhausted. Nothing can remain but to take the redress of the injuries to our citizens, and the insults to our Government, into our own hands." And again, "Should the Mexican Government finally refuse to receive you, then demand passports from the proper authority, and return to the United States. It will then become the duty of the President to submit the whole case to Congress, and call upon the nation to assert its just rights, and avenge its injured honor."

With the same object in view, the Secretary of War did, by his letter dated January 13, 1846, instruct General Taylor "to advance and occupy, with the troops under his command, positions on or near the east bank of the Rio del Norte.... It is presumed Point Isabel will be considered by you an eligible position. This point, or some one near it, and points opposite Matamoras and Mier, and in the vicinity of Laredo, are suggested for your consideration.... Should you attempt to exercise the right, which the United States have in common with Mexico, to the free navigation of this river, it is probable that Mexico would interpose resistance. You will not attempt to enforce this right without further instructions.... It is not designed, in our present relations with Mexico, that you should treat her as an enemy; but, should she assume that character by a declaration of war, or any open act of hostility towards us, you will not act merely on the defensive if your relative means enable you to do otherwise."

[. . .]

In the total absence of any argument that can justify the war in which we are now involved, resort has been had to a most extraordinary assertion. It is said, that the people of the United States have an hereditary, superiority of race over the Mexicans, which gives them the right to subjugate and keep in bondage the inferior nation. This, it is also alleged, will be the means of enlightening the degraded Mexicans, of improving their social state, and of ultimately increasing the happiness of the masses.

Is it compatible with the principle of Democracy, which rejects every hereditary claim of individuals, to admit an hereditary superiority of races? You very properly deny, that the son can, independent of his own merit, derive any right or privilege whatever, from the merit or any other social superiority of his father. Can you for a moment suppose, that a very doubtful descent from men, who lived one thousand years ago, has transmitted to you a superiority over your fellow-men? But the Anglo-Saxons were inferior to the Goths, from whom the Spaniards claim to be descended; and they were in no respect superior to the Franks and to the Burgundians. It is not to their Anglo-Saxon descent, but to a variety of causes, among which the subsequent mixture of Frenchified Normans, Angevins and Gascons must not be forgotten, that the English are indebted for their superior institutions. In the progressive improvement of mankind, much more has been due to religious and political institutions, than to races. Whenever the European nations, which, from their language, are presumed to belong to the Latin or the Sclavonian race, shall have conquered institutions similar to those of England, there will be no trace left of the pretended superiority of one of those races above the other. At this time, the claim is but a pretext for covering and justifying unjust usurpation and unbounded ambition.

But admitting, with respect to Mexico, the superiority of race, this confers no superiority of rights. Among ourselves, the most ignorant, the most inferior, either in physical or mental faculties, is recognized as having equal rights, and he has an equal vote with any one, however superior to him in all those respects. This is founded on the immutable principle that no one man is born with the right of governing another man. He may, indeed, acquire a moral influence over others, and no other is legitimate. The same principle will apply to nations. However superior the Anglo-American race may be to that of Mexico, this gives the Americans no right to infringe upon the rights of the inferior race. The people of the United States may rightfully, and will, if they use the proper means, exercise a most beneficial moral influence over the Mexicans, and other less enlightened nations of America. Beyond this they have no right to go.

[. . .]

Chicago Citations

Bibliography entry:

Gallatin, Albert. *Peace with Mexico*. New York: Bartlett & Welford, 1847. Project Gutenberg eBook #32192.

Footnote citation:

Albert Gallatin, *Peace with Mexico* (New York: Bartlett & Welford, 1847), [section], Project Gutenberg eBook #32192.

Shortened citation:

Gallatin, *Peace with Mexico*, [section].

PRIMARY SOURCE P13.49

Spot Resolutions

Abraham Lincoln · House of Representatives, December 22, 1847

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A Whig congressman demands that Polk prove the first blood was shed on American soil.
TREATMENT	Full public-domain text

Historical Context

Polk's war message had declared that Mexico "shed American blood upon the American soil." Abraham Lincoln, a newly seated Whig congressman from Illinois, challenged that claim within weeks of taking his seat.

His eight resolutions asked the president to tell the House whether the "spot" where the first fighting took place had been Mexican territory and whether its settlers had submitted to Texas or U.S. authority. The House never acted on them, and Illinois Democrats mocked Lincoln as "Spotty."

Editorial note: The text follows the Teaching American History transcription.

Document Text

WHEREAS the President of the United States, in his message of May 11th. 1846, has declared that “The Mexican Government not only refused to receive him, [the envoy of the U.S.] or listen to his propositions, but, after a long continued series of menaces, HAS at last invaded our teritory and shed the blood of our fellow-citizens on our own soil:“

And again, in his message of December 8, 1846 that “We had ample cause of war against Mexico, long before the breaking out of hostilities. But even then we forbore to take redress into our own hands, until Mexico herself became the aggressor by invading our soil in hostile array, and shedding the blood of our citizens:”

And yet again, in his message of December 7, 1847, that “the Mexican Government refused even to hear the terms of adjustment which he [our minister of peace] was authorized to propose; and finally, under wholly unjustifiable pretexts, involved the two countries in war, by invading the territory of the State of Texas, striking the first blow, and shedding the blood of our citizens on our own soil“

And whereas this House is desirous to obtain a full knowledge of all the facts which go to establish whether the particular spot of soil on which the blood of our citizens was so shed was or was not our own soil, at that time; Therefore,

Resolved by the House of Representatives, That the President of the United States be respectfully requested to inform this House—

1st. Whether the spot of soil on which the blood of our citizens was shed, as in his message declared, was or was not within the territory of Spain, at least from the treaty of 1819, until the Mexican revolution.

2d. Whether that spot is or is not within the territory which was wrested from Spain by the revolutionary Government of Mexico.

3d. Whether that spot is or is not within a settlement of people, which settlement had existed ever since long before the Texas revolution, and until its inhabitants fled before the approach of the United States Army.

4th. Whether that settlement is or is not isolated from any and all other settlements by the Gulf and the Rio Grande on the south and west, and by wide uninhabited regions on the north and east.

5th. Whether the people of that settlement, or a majority of them, or any of them, have ever submitted themselves to the government or laws of Texas or of the United States, by consent or by compulsion, either by accepting office, or voting at elections, or paying tax, or serving on juries, or having process served upon them, or in any other way.

6th. Whether the People of that settlement did or did not flee from the approach of the United States Army, leaving unprotected their homes and their growing crops, before the blood was shed, as in the messages stated; and whether the first blood, so shed, was or was not shed within the enclosure of one of the people who had thus fled from it.

7th. Whether our citizens, whose blood was shed, as in his messages declared, were or were not at that time, armed officers, and soldiers, sent into that settlement by the military order of the President through the Secretary of War.

8th. Whether the military force of the United States was or was not so sent into that settlement after Genl. Taylor had more than once intimated to the War Department that, in his opinion, no such movement was necessary to the defence or protection of Texas.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. "Spot Resolutions." December 22, 1847. *Congressional Globe*, 30th Cong., 1st Sess., 64. Teaching American History.

Footnote citation:

Abraham Lincoln, "Spot Resolutions," December 22, 1847, via Teaching American History, https://teachingamericanhistory.org/document/spot-resolutions/.

Shortened citation:

Lincoln, "Spot Resolutions."

PRIMARY SOURCE P13.50

Speech on His Resolutions in Reference to the War with Mexico ("Conquest of Mexico") (excerpt)

John C. Calhoun · Senate, January 4, 1848 (Congressional Globe)

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A slaveholding senator uses racial ideology to limit conquest, which complicates any simple link between racism and expansion.
TREATMENT	Open-edition substitution, selected excerpts

Historical Context

John C. Calhoun (1782–1850) of South Carolina, the leading defender of slavery in the Senate, opposed the war with Mexico from its start. In late 1847, as some Democrats urged annexing all of Mexico, he offered resolutions against holding Mexico as a conquered province.

His speech argued that absorbing Mexico's population would endanger American institutions. He grounded the argument in race: the Union, he said, had never incorporated any but the "Caucasian race."

Editorial note: The planned source is the 1848 pamphlet printing of this speech (Internet Archive scan), but its OCR is too garbled at these passages to reproduce. The reader uses the *Congressional Globe* text of the same speech as transcribed by Teaching American History.

Document Text

[. . .]

“RESOLVED, That to conquer Mexico and to hold it, either as a province or to incorporate it into the Union, would be inconsistent with the avowed object for which the war has been prosecuted; a departure from the settled policy of the Government; in conflict with its character and genius; and in the end subversive of our free and popular institutions.”

“RESOLVED, That no line of policy in the further prosecution of the war should be adopted which may lead to consequences so disastrous.”

[. . .]

The next reason which my resolutions assign, is, that it is without example or precedent, wither to hold Mexico as a province, or to incorporate her into our Union. No example of such a line of policy can be found. We have conquered many of the neighboring tribes of Indians, but we have never thought of holding them in subjection—never of incorporating them into our Union. They have either been left as an independent people amongst us, or been driven into the forests.

I know further, sir, that we have never dreamt of incorporating into our Union any but the Caucasian race—the free white race. To incorporate Mexico, would be the very first instance of the kind of incorporating an Indian race; for more than half of the Mexicans are Indians, and the other is composed chiefly of mixed tribes. I protest against such a union as that! Ours, sir, is the Government of a white race. The greatest misfortunes of Spanish America are to be traced to the fatal error of placing these colored races on an equality with the white race. That error destroyed the social arrangement which formed the basis of society. The Portuguese and ourselves have escaped—the

Portuguese at least to some extent—and we are the only people on this continent which have made revolutions without being followed by anarchy. And yet it is professed and talked about to erect these Mexicans into a Territorial Government, and place them on an equality with the people of the United States. I protest utterly against such a project.

Sir, it is a remarkable fact, that in the whole history of man, as far as my knowledge extends, there is no instance whatever of any civilized colored races being found equal to the establishment of free popular government, although by far the largest portion of the human family is composed of these races. And even in the savage state we scarcely find them anywhere with such government, except it be our noble savages—for noble I will call them. They, for the most part, had free institutions, but they are easily sustained among a savage people. Are we to overlook this fact? Are we to associate with ourselves as equals, companions, and fellow-citizens, the Indians and mixed race of Mexico? Sir, I should consider such a thing as fatal to our institutions.

[. . .]

But, Mr. President, suppose all these difficulties removed; suppose these people attached to our Union, and desirous of incorporating with us, ought we to bring them in? Are they fit to be connected with us? Are they fit for self-government and for governing you? Are you, any of you, willing that your States should be governed by these twenty-odd Mexican States, with a population of about only one million of your blood, and two or three millions of mixed blood, better informed, all the rest pure Indians, a mixed blood equally ignorant and unfit for liberty, impure races, not as good as Cherokees or Choctaws?

We make a great mistake, sir, when we suppose that all people are capable of self-government. We are anxious to force free government on all; and I see that it has been urged in a very respectable quarter, that it is the mission of this country to spread civil and religious liberty over all the world, and especially over this continent. It is a great mistake. None but people advanced to a very high state of moral and intellectual improvement are capable, in a civilized state, of maintaining free government; and amongst those who are so purified, very few, indeed, have had the good fortune of forming a constitution capable of endurance. It is a remarkable fact in the history of man, that scarcely ever have free popular institutions been formed by wisdom alone that have endured.

[. . .]

Chicago Citations

Bibliography entry:

Calhoun, John C. Speech on His Resolutions in Reference to the War with Mexico. January 4, 1848. *Congressional Globe*, 30th Cong., 1st Sess., 96–100. Teaching American History.

Footnote citation:

John C. Calhoun, speech in the Senate, January 4, 1848, *Congressional Globe*, 30th Cong., 1st Sess., [page], via Teaching American History, https://teachingamericanhistory.org/document/conquest-of-mexico/.

Shortened citation:

Calhoun, speech, January 4, 1848.

PRIMARY SOURCE P13.51

Speech in the House of Representatives on the War with Mexico (excerpt)

Abraham Lincoln · January 12, 1848

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	A Whig congressman challenges the president's account of how the war began.
TREATMENT	Public-domain text, selected excerpt

Historical Context

Abraham Lincoln (1809–1865), a first-term Whig congressman from Illinois, arrived in Washington in December 1847. That month he introduced the "Spot Resolutions," asking Polk to name the exact spot where American blood had been shed "on American soil."

In this speech Lincoln examined Polk's claim that the land between the Nueces and the Rio Grande belonged to the United States. He argued that the president had not proved it and suspected Polk of starting the war to escape scrutiny.

Editorial note: The Norton collection prints four paragraphs of this speech from the *Congressional Globe* and dates it 1846; the speech was delivered January 12, 1848. The text follows the 1907 *Life and Works of Abraham Lincoln* as transcribed on Wikisource.

Document Text

[. . .]

I now proceed to examine the President's evidence as applicable to such an issue. When that evidence is analyzed, it is all included in the following propositions:

(1) That the Rio Grande was the western boundary of Louisiana as we purchased it of France in 1803.

(2) That the Republic of Texas always claimed the Rio Grande as her western boundary.

(3) That by various acts she had claimed it on paper.

(4) That Santa Anna in his treaty with Texas recognized the Rio Grande as her boundary.

(5) That Texas before, and the United States after, annexation had exercised jurisdiction beyond the Nueces—between the two rivers.

(6) That our Congress understood the boundary of Texas to extend beyond the Nueces.

Now for each of these in its turn. His first item is that the Rio Grande was the western boundary of Louisiana, as we purchased it of France in 1803; and seeming to expect this to be disputed, he argues over the amount of nearly a page to prove it true; at the end of which he lets us know that by the treaty of 1819 we sold to Spain the whole country from the Rio Grande eastward to the Sabine. Now, admitting for the present that the Rio Grande was the boundary of Louisiana, what, under heaven, had that to do with the present boundary between us and Mexico? How, Mr. Chairman, the line that once divided your land from mine can still be the boundary between us after I have sold my land to you is to me beyond all comprehension. And how any man, with an honest purpose only of proving the truth, could ever have thought of introducing such a fact to prove such an issue is equally incomprehensible. His next piece of evidence is that "the Republic of Texas always claimed this river (Rio Grande) as her western boundary." That is not true, in fact. Texas has claimed it, but she has not always claimed it. There is

at least one distinguished exception. Her State constitution—the republic's most solemn and well-considered act; that which may, without impropriety, be called her last will and testament, revoking all others—makes no such claim. But suppose she had always claimed it. Has not Mexico always claimed the contrary? So that there is but claim against claim, leaving nothing proved until we get back of the claims and find which has the better foundation. Though not in the order in which the President presents his evidence, I now consider that class of his statements which are in substance nothing more than that Texas has, by various acts of her Convention and Congress, claimed the Rio Grande as her boundary, on paper. I mean here what he says about the fixing of the Rio Grande as her boundary in her old constitution (not her State constitution), about forming congressional districts, counties, etc. Now all of this is but naked claim; and what I have already said about claims is strictly applicable to this. If I should claim your land by word of mouth, that certainly would not make it mine; and if I were to claim it by a deed which I had made myself, and with which you had had nothing to do, the claim would be quite the same in substance—or rather, in utter nothingness. I next consider the President's statement that Santa Anna in his treaty with Texas recognized the Rio Grande as the western boundary of Texas. Besides the position so often taken, that Santa Anna while a prisoner of war, a captive, could not bind Mexico by a treaty, which I deem conclusive—besides this, I wish to say something in relation to this treaty, so called by the President, with Santa Anna. If any man would like to be amused by a sight of that little thing which the President calls by that big name, he can have it by turning to "Niles's Register," Vol. L, p. 336. And if any one should suppose that "Niles's Register" is a curious repository of so mighty a document as a solemn treaty between nations, I can only say that I learned to a tolerable degree of certainty, by inquiry at the State Department, that the President himself never saw it anywhere else. By the way, I believe I should not err if I were to declare that during the first ten years of the existence of that document it was never by anybody called a treaty—that it was never so called till the President, in his extremity, attempted by so calling it to wring something from it in justification of himself in connection with the Mexican war. It has none of the distinguishing features of a treaty. It does not call itself a treaty. Santa Anna does not therein assume to bind Mexico; he assumes only to act as the President-Commander-in-Chief of the Mexican army and navy; stipulates that the then present hostilities should cease, and that he would not himself take up arms, nor influence the Mexican people to take up arms, against Texas during the existence of the war of independence. He did not recognize the independence of Texas; he did not assume to put an end to the war, but clearly indicated his expectation of its continuance; he did not say one word about boundary, and, most probably, never thought of it. It is stipulated therein that the Mexican forces should evacuate the territory of Texas, passing to the other side of the Rio Grande; and in another article it is stipulated that, to prevent collisions between the armies, the Texas army should not approach nearer than within five leagues—of what is not said, but clearly, from the object stated, it is of the Rio Grande. Now, if this is a treaty recognizing the Rio Grande as the boundary of Texas, it contains the singular features of stipulating that Texas shall not go within five leagues of her own boundary.

Next comes the evidence of Texas before annexation, and the United States afterward, exercising jurisdiction beyond the Nueces and between the two rivers. This actual exercise of jurisdiction is the very class or quality of evidence we want. It is excellent so far as it goes; but does it go far enough? He tells us it went beyond the Nueces, but he does not tell us it went to the Rio Grande. He tells us jurisdiction was exercised between the two rivers, but he does not tell us it was exercised over all the territory between them. Some simple-minded people think it is possible to cross one river and go beyond it without going all the way to the next, that jurisdiction may be exercised between two rivers without covering all the country between them. I know a man, not very unlike myself, who exercises jurisdiction over a piece of land between the Wabash and the Mississippi; and yet so far is this from being all there is between those rivers that it is just one hundred and fifty-two feet long by fifty feet wide, and no part of it much within a hundred miles of either. He has a neighbor between him and the Mississippi—that is, just across the street, in that direction—whom I am sure he could neither persuade nor force to give up his habitation; but which nevertheless he could certainly annex, if it were to be done by merely standing on his own side of the street and claiming it, or even sitting down and writing a deed for it.

[. . .]

Chicago Citations

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Lincoln, Abraham. Speech in the House of Representatives on the War with Mexico, January 12, 1848. In *Life and Works of Abraham Lincoln*, edited by Marion Mills Miller, vol. 3. New York: Current Literature, 1907. Wikisource.

Footnote citation:

Abraham Lincoln, speech in the House of Representatives, January 12, 1848, in *Life and Works of Abraham Lincoln*, ed. Marion Mills Miller (New York: Current Literature, 1907), 3:[page], via Wikisource.

Shortened citation:

Lincoln, speech, January 12, 1848.

PRIMARY SOURCE P13.52

California Gold: An Authentic History of the First Find (excerpt)

James S. Brown · Salt Lake City, January 24, 1894 (Oakland: Pacific Press, 1894)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A worker at Sutter's mill describes the discovery that set off the gold rush.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

James S. Brown (1828–1902) served in the Mormon Battalion during the war with Mexico. Discharged in California, he and other battalion veterans went to work for John Sutter building a sawmill on the American River at Coloma.

Brown was at the mill when James Marshall found gold in the tailrace in January 1848. On the anniversary forty-six years later he published this account, which also argues that the Mormon laborers deserved more credit than Sutter and Marshall.

Editorial note: Brown wrote from memory forty-six years after the events. The text is HathiTrust's OCR of the 1894 pamphlet as supplied by the instructor; letters restored in square brackets fill gaps in the scan, and [. . .] marks a line obscured by handwritten library notes. The letters printed at the end of the pamphlet are omitted.

Document Text

SALT LAKE CITY, Utah, Jan. 24, 1894.

Just forty-six (46) years ago to-day the great and memorable discovery of the California gold was made at Capt. John A. Sutter and James W. Marshall's sawmill, on American Fork River, California.

Now to give a clear conception of that most notable event, we must go back to the time when the project of building the mill was first conceived by Messrs. Sutter and Marshall, which was on or near the 1st of June, 1847. But, for want of skilled labor, the matter was delayed for a time, as the class of white men that was to be hired could not be trusted so as to justify a man in the undertaking of an enterprise of such importance as building a gristmill, which he already had under contemplation, and a sawmill forty miles away, in an Indian country; and again, the unsettled condition of the country as it was, so soon after the war, and considering the scarcity of money, caused Mr. Sutter to hesitate until a detachment of 150 men of the Mormon Battalion came up, August 26, and camped on the American Fork River about two miles from Sutter's Fort. After they had a short consultation it was decided that about one hundred of the party would remain over till the next year, and seek employment as best they could. Accordingly, a committee was appointed to wait upon Mr. Sutter, to learn from him what the prospect for employment was. The committee informed Mr. Sutter that we had carpenters, blacksmiths, wheelwrights, millwrights, farmers and common laborers, and that we should want horses, cattle, and a general outfit for crossing the plains early the next summer, and if we could not get all money, we could and would take a part of our pay in the above mentioned stock and supplies. This proposition seemed to meet with favor from the Captain, as he had an abundance of the above mentioned property, and, if my memory is not at fault, he told the committee to call again, or for the men to come in two or three days, and he would speak further with them.

I understood then that in two or three days he decided to construct the two mills above mentioned, for the greatest obstacle that confronted him had been removed by the propositions that our committee had made to him. I have not heard the foregoing statement denied, therefore it is confirmed in my mind that had it not been for this

opportunity the sawmill at least would not have been built, nor the discovery of gold been made at that time. The State of California would have waited indefinitely to have been developed and to be christened the "Golden State," and that entrance to San Francisco Bay might never have received the title of the "Golden Gate."

Quite a number, say from forty to sixty of us, called on Mr. Sutter between August 29th and September 5th. Some were employed to work on the gristmill, others took contracts on the mill race of that mill, the race was seven or eight miles long and was also designed for irrigation.

[Al]exander Stephens, Henry W. Bigler, James Berg[er], William Johnson, Asariah Smith, James S. Brown, [an]d Israel Evans, were hired to f[o]llow; James W. Marshall (Mr. Sutter's partner), millwright. Peter L. Wimmer and family and William Scott had preceded us two or three days. I think that they had only two wagons loaded with tools and provisions; the teams were oxen and were driven by [t]wo of Mr. Sutter's tame or civilized Indians.

It must have been between the 8th and 11th when we came up to the party who had already commenced the erection of a rough cabin, half a mile from the spot or site that Marshall had selected some time before for [. . .]

Now the work commenced in earnest; the cabin was pushed, and a second room put on in true frontier style. Some finished up the cabin, others worked at getting out timbers and preparing for the erection of the mill. The site chosen for the mill was at a point where the river made considerable of a bend, and just in the bank of what appeared to be the old bed of the river, which was lowered to carry the water from the mill.

Sometime between the 15th and 20th of January the mill was started up, and it was found that it had been set too low and the race would not carry off the water, but that it would drown or kill the flutter wheel. To avoid this difficulty several new pieces of timber had to be got out, and as there was found suitable timber within ten or fifteen rods from where the tale race entered the river, all hands were set to work getting out the timber at that place.

It had been customary to hoist the gates of the force bay when we quit work in the evening, letting the water through the race to wash away the loosened sand and gravel, then close them down early in the morning, and a gang of Digger Indians had been employed to dig and cast out the cable rock, such as was not moved by the water.

I, having picked up sufficient of the Indian dialect to direct the Indians in that labor, was set to look after that work, and as all hands were getting out timber so near the race, I had stepped away from them and was with the white men when Mr. Marshall came down to look after the work in general. Having talked a few moments, he stepped away to where the race entered the river. He discovered a bed of rock that had been exposed to view by the water the night before; the rock that was in sight was in the bottom of the race and was from three to six feet wide and fifteen to twenty feet long. It appeared to be granite, but so soft that it might be scaled up with a pick, yet too solid to be carried away by the water.

I, being an all-around worker, sometimes called from one thing to another, and the Indians did not require my whole attention, Mr. Marshall called me to come to him. I went, and found him examining the bed rock. He said, "This is a curious rock, I am afraid that it will give us trouble," and as he probed it a little further, he said, "I believe that it contains minerals of some kind, and I believe that there is gold in these hills." Said I to him, "What makes you think so?" He said he had seen the blossom of gold, and I asked what that was, and he told me that it was the white quartz scattered over the hills. I, being no better informed, asked what quartz was. He answered that it was the white flint-like rock that was so plentiful on the hills. I told him that it was flint rock, but he said no, that it was called quartz in some book that he had read, and that it was an indication of gold. He then sent me to the cabin to bring a pan so that we could wash some of the sand and gravel to see what we could find. (It is well to say here that Alexander Stephens, H. W. Bigler, James Berger, Asariah Smith, W. Johnson and the writer had built a cabin near the site of the mill and were doing our own cooking, and it was to this cabin I was sent.) On my return we washed some of the sand and gravel and also some of the bed rock that we scaled up with a pick. As we had no idea of the appearance of gold in its natural state, our search was unsuccessful. Then he said, "Well, we will hoist the gates

and turn in all the water that we can to-night, and to-morrow morning we will shut it off and come down here, and I believe we will find gold or some kind of mineral here."

As he was rather a notional kind of man, I had but little thought of what he said; do not think I even mentioned it to the other men. We each went our way and did not see each other till the next morning. We in the cabin, at a very unusually early hour, heard a pounding at the mill, and someone said, "Who is that pounding so early?" Some one of the party looked out and said it was Marshall shutting the gates of the fore bay down. This brought to my mind what he had said the evening before about finding gold, and I said, "Oh, he is going to find a gold mine, this morning."

Nothing but a smile of derision stole over the faces of the parties present. We ate our breakfast and went to work. James Berger and myself went to the whipsaw, and the rest of the men some eight or ten rods off from the mill. I was close to the mill and saw pit, but was also close to the tale race where I could direct the Indians that were there. This was January 24, 1848.

Just when we had got partly to work, here came Mr. Marshall with his old wool hat in hand, and stopped within six or eight yards of the saw pit, and exclaimed, "Boys, I have got her now." I, being the nearest to him, a[nd havi]ng more curiosity than the rest of the me[n, j]umped from the pit and stepped to him, and on [loo]k[i]ng in his hat discovered say ten or twelve pieces of small scales of what proved to be gold.

I picked up the largest piece, worth about fifty cents, and tested it with my teeth, and as it did not give, I held it aloft and exclaimed, "gold, boys, gold!" At that they all dropped their tools and gathered around Mr. Marshall. Now, having made the first test and proclamation of that very important fact, I stepped to the workbench and put it to the second with the hammer. While doing that it occurred to me that while in the Mormon Battalion in Mexico, we came to some timber called manzanita. Our guides and interpreters said that wood was what the Mexicans smelted their gold and silver ores with. It is a hard wood and makes a very hot fire and also lasts a long time. Remembering that we had left a very hot bed of these coals in the fireplace of the cabin, I hurried off and made the third test by placing it upon the point of an old shovel blade, and then inserted it in among the coals, and blew the coals until I was blind for the moment, in trying to burn or melt the particles; and although it was plated almost as thin as a sheet of note paper, the heat did not change its appearance in the least. I remembered hearing that gold could not be burned up, so I arose from this third test confident that it was gold. Then running out to the party who were grouped together, made the second proclamation, saying, "gold! gold!"

At this juncture all was excitement, and all repaired to the lower end of the tale race, where we found from three to six inches of water flowing over the bed of rock, in which there were crevices and little pockets, over which the water rippled in the glare of the sunlight as it shone over the mountain peaks. James Berger was the first man to spy a scale of the metal. He stooped to pick it up, but found some difficulty in getting hold of it as his fingers would blur the water, though he finally succeeded. The next man to find a piece was H. W. Bigler; he used his jackknife, getting it on the point of the blade, then, getting his forefinger over it, placed it in his left hand. And as we soon learned how to look for it, as it glittered under the water and in the rays of the sun, we were all rewarded with a few scales. Each put his mite into a small vial that was provided by Marshall, and we made him the custodian. We repeated our visits for three or four mornings to the tale race, each time collecting some more of the precious metal, until we had gathered somewhere between three and four ounces.

The next move was to step and stake off two quarter sections beginning at the mill, one running down the river and the other up. Then we cut and hauled logs and laid the foundation of a cabin on each of them; one was for Sutter, the other for Marshall. Now, this matter being finished, Mr. Marshall was prepared to dictate terms to us, for every tool and all the provisions in that part of the country belonged to Capt. Sutter and Mr. Marshall, and they had full control, and we were depending on the completion of the mill for our pay. He said if we would stay by him until the mill was completed and well stocked with logs, he would supply us with provisions and tools and the first right to work on their gold claims.

So we all agreed to his proposition, and also that we would not disclose our secret of the gold discovery until we learned more about it and had made good our claims. Not having the remotest idea of its extent, we pushed the mill as rapidly as possible, for as yet we had not received one dollar's pay for our four months' labor.

There came a rainy day, and it was too wet to work; H. W. Bigler thought it a good day to hunt ducks, so he got on an old coat, and was gone all day. When he returned, we said, "Where are your ducks?" He said, "Wait awhile, I will show you; I have got them all right." Finally he drew an old cotton handkerchief from his pocket, in a corner of which he had at least half an ounce of gold tied up. For a while all were excited, and he was asked a great many questions like the following: "Did you find it on Sutter's claim along the river?" "How far is it from here?" "All in one place?" "Is there any more?" "How did you get it, you had no pick nor shovel?" "Can you find the place again?" He said that he had found it down below Sutter's claim, along the river where the bed rock crops out along the bank, and in little rills that come down the hills to the river, and everywhere that he found the bed rock cropping out. "Then you found it in more than one place?"—"Yes, more than a dozen." It was now proposed that we keep this discovery a secret, as the discovery in the race had been kept. So the mill work was pushed with vigor to completion. But in the meantime Marshall felt it had become his duty to inform his partner of the discovery. Accordingly he wrote a letter stating the facts, and sent me out to find a strange Indian that would take it to Capt. Sutter, fearing that if he sent it by someone that was acquainted with the facts, the secret might leak out. Just about this time W. Johnson found that he had some urgent business below and he must go, and he did; he went to the gristmill and along the camps on that mill race. And somehow or other the bag came untied and our old cat and all the kittens ran out, and to the camps they went, until everybody heard them. But, like all great truths, people were slow to believe the story.

However, Sidney Willis and Wilford Hudson began to feel that they would like a little venison, and with that for an excuse took their guns and set out on foot, having been assured that by following up the river they would come to the sawmill, which they succeeded in doing the first day. I think that it was only thirty-five miles distant. I think that they stayed one day and two nights with us, then after a thorough examination of the bed rock, sand and gravel, and the surroundings, they gathered a few specimens, among which was one nugget worth about five dollars, the largest by odds that had been discovered up to that time.

As they passed down on their way home they discovered a small ravine or creek in which there was some of the same kind of bed rock that they had seen at the mill race, and by picking around in the sand and gravel they discovered quite a rich prospect that was just opposite what was afterwards called Mormon Island, about twelve or fifteen miles above the gristmill and about the same distance below the sawmill. Then they returned to the mill and told their story and showed the specimens to the boys. Then some went to Sutter's Fort, to a little grocery store kept by a Mormon by the name of Smith, that came around by the ship "Brooklyn." The story of the find was told to him and specimens exhibited to him, and he wrote to Saml. Brannen, who was publishing a paper in San Francisco at that time, and from that press the news went forth to the world. Brannen was a Mormon elder, and the press was owned by a company of Mormons that had come from New York around Cape Horn and were presided over by S. Brannen.

Having explained briefly the find and proclamation, we will return to the mill race, while from 100 to 150 Mormons flocked to Mormon Island, and then people from ever[y] part of the States followed, and the search for gold was commenced in earnest. With jack, butcher, and table knives the search was made in the crevices, after stripping the soil from the bed rock with pick and shovel. Next, we conceived the idea of washing the sand and small gravel in tin pans, but these were scarce and hard to get hold of. Alexander Stephens dug out a trough, leaving the bottom round like a log. Filling that with sand and gravel that we scraped off the bed rock, he would shake it, having arranged it so as to pour or run water in on the gravel; finally he commenced to rock the trough, which led to the idea of a rocker, which caused the gold to settle at the bottom, and he had it arranged on an incline so that it would naturally not only work to the bottom, but to the lower end of the trough, then at short intervals he

would turn it into a tub of water, and at night it would be cleaned and weighed on a pair of wooden scales that he also made, using silver coins for weights, counting the silver dollar equal to one ounce of gold. The rocker above mentioned led to the renowned gold rocker; I am under the impression that Stephens did make the first rocker ever used in California. We made buckskin pouches or wallets to carry the gold in; it was not dust, nor yet nuggets, but small scales.

The next and last process that we used in gathering was to spread a sheet on the sand beach of the river, placing some big rocks on the corners and sides to keep it well stretched, then fill the rich dirt on the upper edge, then throw water on to wash the dirt down in the river, leaving the gold on the sheet, occasionally taking up the sheet and dipping it in a tub of water, thus washing the gold off the sheet into the tub, and at night clean up our day's work, averaging from $12 to $15 per hand. Our best paying dirt was carried on our shoulders from Dry Gulch all the way from fifteen to sixty rods, to where we could find water to wash it with.

In the latter part of June, 1848, we left the gold fields of California to meet our fathers, mothers, brothers and sisters, and our dear friends in what was called the Great American Desert, now called Utah Territory.

To Sutter's capital and enterprise and Marshall's shrewd sagacity has been given the credit of the great gold discovery of California. The facts are that James W. Marshall discovered the first color, and in less than an hour six Mormons found color as well, and in less than six weeks had discovered it in hundreds of places that Mr. Marshall had never seen, the most notable of which was Mormon Island, to where the first rush was made, and from where the news was spread to the uttermost bounds of the everlasting hills and to all the nations of the earth.

As to Sutter's enterprise and capital, he did furnish the graham flour and mutton, wheat and peas, black coffee and brown sugar, teams and tools, while we, the members of the Mormon Battalion, did do the hard labor that discovered the metal, and it is also true that we were in Sutter's employ at that date, and that we did not get paid for our labor.

I worked 100 days for the firm, and never received one farthing for it. I heard a number of other men say that they never got their pay. Then it was our labor that developed the find, and not theirs, for many of them were never paid; and when we went for a settlement we were told by Capt. Sutter that he could not settle with us for his bookkeeper had gone to the mines and his books were not posted. He cursed Marshall and the mines, and declared that he was a ruined man, that the discovery was his ruin, for it had drawn off his laborers and left everything to go to rack, and he was being robbed.

I do not wish it to be understood that I charge them with being dishonorable, for I do not, but I charge it to the general confusion of the country. I think they were honorable men in a business way. But the facts are they were perfectly overrun with all classes of people, and confused, so that the people took advantage of them, and their business affairs were undermined, and there was a general collapse of every industry and business. The cry was "gold! gold! more gold! away for the gold fields!" Every other enterprise was sacrificed at the sight of gold.

With all due respect to Capt. John A. Sutter and James W. Marshall, to whom the world has given the credit of the great find, I do believe if they had been taken out and shot to death the day of the dis covery they would have suffered less, and would have met their Maker just as pure, if not more honored in this world, than to have lived and endured what they did.

As far as I am concerned, I say peace to their remains, for on this earth they have been greatly wronged, if I have read their history correctly. Like a lynching scrape where there is an outburst of the people, it is very difficult to find those who are responsible for the crime; so with the wrongs done these men, it seemed as if the whole country or people picked upon them.

The above has been written from memory, as it has been indelibly impressed upon the mind of the writer by the greatness of the results flowing therefrom, and the numerous inquiries that have been made of him, which have

been answered by reciting it so repeatedly—if not all at once, it has been at different times—so that after reading and revising it, I can testify from the best of my knowledge, it is strictly correct.

Chicago Citations

Bibliography entry:

Brown, James S. *California Gold: An Authentic History of the First Find, with the Names of Those Interested in the Discovery*. Oakland: Pacific Press Publishing, 1894. HathiTrust.

Footnote citation:

James S. Brown, *California Gold: An Authentic History of the First Find* (Oakland: Pacific Press, 1894), [page], https://babel.hathitrust.org/cgi/pt?id=njp.32101078165857.

Shortened citation:

Brown, *California Gold*, [page].

PRIMARY SOURCE P13.53

Treaty of Guadalupe Hidalgo (selected articles)

United States and Mexico · February 2, 1848

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	The treaty's boundary, citizenship, and Indian-raid articles show what the war won and how both governments treated raiding as a central problem.
TREATMENT	Public-domain text, selected articles

Historical Context

Nicholas Trist, a State Department official whom Polk had recalled, stayed in Mexico and negotiated this treaty with Mexican commissioners at Guadalupe Hidalgo, outside Mexico City. Polk accepted it, and the Senate ratified it in March 1848.

Mexico ceded California and New Mexico and accepted the Rio Grande as the Texas border, in return for $15 million and the U.S. assumption of claims against Mexico. Articles VIII and IX promised citizenship and property rights to Mexicans in the ceded lands, and Article XI bound the United States to restrain Indian raids into Mexico.

Editorial note: The text follows the Avalon Project transcription of the 1871 government printing. Article X, struck out by the U.S. Senate, is not reproduced.

Document Text

[. . .]

ARTICLE V

The boundary line between the two Republics shall commence in the Gulf of Mexico, three leagues from land, opposite the mouth of the Rio Grande, otherwise called Rio Bravo del Norte, or Opposite the mouth of its deepest branch, if it should have more than one branch emptying directly into the sea; from thence up the middle of that river, following the deepest channel, where it has more than one, to the point where it strikes the southern boundary of New Mexico; thence, westwardly, along the whole southern boundary of New Mexico (which runs north of the town called Paso) to its western termination; thence, northward, along the western line of New Mexico, until it intersects the first branch of the river Gila; (or if it should not intersect any branch of that river, then to the point on the said line nearest to such branch, and thence in a direct line to the same); thence down the middle of the said branch and of the said river, until it empties into the Rio Colorado; thence across the Rio Colorado, following the division line between Upper and Lower California, to the Pacific Ocean.

The southern and western limits of New Mexico, mentioned in the article, are those laid down in the map entitled "Map of the United Mexican States, as organized and defined by various acts of the Congress of said republic, and constructed according to the best authorities. Revised edition. Published at New York, in 1847, by J. Disturnell," of which map a copy is added to this treaty, bearing the signatures and seals of the undersigned Plenipotentiaries. And, in order to preclude all difficulty in tracing upon the ground the limit separating Upper from Lower California, it is agreed that the said limit shall consist of a straight line drawn from the middle of the Rio Gila, where it unites with the Colorado, to a point on the coast of the Pacific Ocean, distant one marine league due south of the southernmost point of the port of San Diego, according to the plan of said port made in the year 1782 by Don Juan Pantoja, second sailing-master of the Spanish fleet, and published at Madrid in the year 1802, in the atlas to the voyage of the schooners Sutil and Mexicana; of which plan a copy is hereunto added, signed and sealed by the respective Plenipotentiaries.

In order to designate the boundary line with due precision, upon authoritative maps, and to establish upon the ground land-marks which shall show the limits of both republics, as described in the present article, the two Governments shall each appoint a commissioner and a surveyor, who, before the expiration of one year from the date of the exchange of ratifications of this treaty, shall meet at the port of San Diego, and proceed to run and mark the said boundary in its whole course to the mouth of the Rio Bravo del Norte. They shall keep journals and make out plans of their operations; and the result agreed upon by them shall be deemed a part of this treaty, and shall have the same force as if it were inserted therein. The two Governments will amicably agree regarding what may be necessary to these persons, and also as to their respective escorts, should such be necessary.

[. . .]

Considering that a great part of the territories, which, by the present treaty, are to be comprehended for the future within the limits of the United States, is now occupied by savage tribes, who will hereafter be under the exclusive control of the Government of the United States, and whose incursions within the territory of Mexico would be prejudicial in the extreme, it is solemnly agreed that all such incursions shall be forcibly restrained by the Government of the United States whensoever this may be necessary; and that when they cannot be prevented, they shall be punished by the said Government, and satisfaction for the same shall be exactedall in the same way, and with equal diligence and energy, as if the same incursions were meditated or committed within its own territory, against its own citizens.

It shall not be lawful, under any pretext whatever, for any inhabitant of the United States to purchase or acquire any Mexican, or any foreigner residing in Mexico, who may have been captured by Indians inhabiting the territory of either of the two republics; nor to purchase or acquire horses, mules, cattle, or property of any kind, stolen within Mexican territory by such Indians.

And in the event of any person or persons, captured within Mexican territory by Indians, being carried into the territory of the United States, the Government of the latter engages and binds itself, in the most solemn manner, so soon as it shall know of such captives being within its territory, and shall be able so to do, through the faithful exercise of its influence and power, to rescue them and return them to their country. or deliver them to the agent or representative of the Mexican Government. The Mexican authorities will, as far as practicable, give to the Government of the United States notice of such captures; and its agents shall pay the expenses incurred in the maintenance and transmission of the rescued captives; who, in the mean time, shall be treated with the utmost hospitality by the American authorities at the place where they may be. But if the Government of the United States, before receiving such notice from Mexico, should obtain intelligence, through any other channel, of the existence of Mexican captives within its territory, it will proceed forthwith to effect their release and delivery to the Mexican agent, as above stipulated.

[. . .]

Chicago Citations

Bibliography entry:

"Treaty of Peace, Friendship, Limits, and Settlement with the Republic of Mexico (Treaty of Guadalupe Hidalgo)." February 2, 1848. In *Treaties and Conventions between the United States of America and Other Powers since July 4, 1776*. Washington, DC: Government Printing Office, 1871. Avalon Project, Yale Law School.

Footnote citation:

Treaty of Guadalupe Hidalgo, February 2, 1848, art. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/guadhida.asp.

Shortened citation:

Treaty of Guadalupe Hidalgo, art. [number].

PRIMARY SOURCE P13.54

Special Message on Yucatán

James K. Polk · April 29, 1848

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk's racial framing and Monroe Doctrine claims show how race and strategy shaped talk of further expansion, while Mexico faced Indigenous war on another front.
TREATMENT	Full public-domain text

Historical Context

While the treaty ending the war with Mexico awaited ratification, the government of Yucatán, a Mexican state that had declared itself neutral, asked the United States, Britain, and Spain for help against a Maya uprising known as the Caste War.

James K. Polk (1795–1849) asked Congress to consider military aid. He described a "war of extermination against the white race" and warned that Yucatán must not pass to a European power, invoking the Monroe Doctrine. Congress took no action after the Yucatán government reached a truce.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

To the Senate and House of Representatives of the United States:

I submit for the consideration of Congress several communications received at the Department of State from Mr. Justo Sierra, commissioner of Yucatan, and also a communication from the Governor of that State, representing the condition of extreme suffering to which their country has been reduced by an insurrection of the Indians within its limits, and asking the aid of the United States.

These communications present a case of human suffering and misery which can not fail to excite the sympathies of all civilized nations. From these and other sources of information it appears that the Indians of Yucatan are waging a war of extermination against the white race. In this civil war they spare neither age nor sex, but put to death, indiscriminately, all who fall within their power. The inhabitants, panic stricken and destitute of arms, are flying before their savage pursuers toward the coast, and their expulsion from their country or their extermination would seem to be inevitable unless they can obtain assistance from abroad.

In this condition they have, through their constituted authorities, implored the aid of this Government to save them from destruction, offering in case this should be granted to transfer the "dominion and sovereignty of the peninsula" to the United States. Similar appeals for aid and protection have been made to the Spanish and the English Governments.

Whilst it is not my purpose to recommend the adoption of any measure with a view to the acquisition of the "dominion and sovereignty" over Yucatan, yet, according to our established policy, we could not consent to a transfer of this "dominion and sovereignty" either to Spain, Great Britain, or any other European power. In the language of President Monroe in his message of December, 1823--

We should consider any attempt on their part to extend their system to any portion of this hemisphere as dangerous to our peace and safety.

In my annual message of December, 1845, I declared that--

Near a quarter of a century ago the principle was distinctly announced to the world, in the annual message of one of my predecessors, that "the American continents, by the free and independent condition which they have assumed and maintain, are henceforth not to be considered as subjects for future colonization by any European powers." This principle will apply with greatly increased force should any European power attempt to establish any new colony in North America. In the existing circumstances of the world, the present is deemed a proper occasion to reiterate and reaffirm the principle avowed by Mr. Monroe, and to state my cordial concurrence in its wisdom and sound policy. The reassertion of this principle, especially in reference to North America, is at this day but the promulgation of a policy which no European power should cherish the disposition to resist. Existing rights of every European nation should be respected, but it is due alike to our safety and our interests that the efficient protection of our laws should be extended over our whole territorial limits, and that it should be distinctly announced to the world as our settled policy that no future European colony or dominion shall with our consent be planted or established on any part of the North American continent.

Our own security requires that the established policy thus announced should guide our conduct, and this applies with great force to the peninsula of Yucatan. It is situate in the Gulf of Mexico, on the North American continent, and, from its vicinity to Cuba, to the capes of Florida, to New Orleans, and, indeed, to our whole southwestern toast, it would be dangerous to our peace and security if it should become a colony of any European nation.

We have now authentic information that if the aid asked from the United States be not granted such aid will probably be obtained from some European power, which may hereafter assert a claim to "dominion and sovereignty" over Yucatan.

Our existing relations with Yucatan are of a peculiar character, as will be perceived from the note of the Secretary of State to their commissioner dated on the 24th of December last, a copy of which is herewith transmitted. Yucatan has never declared her independence, and we treated her as a State of the Mexican Republic. For this reason we have never officially received her commissioner; but whilst this is the case, we have to a considerable extent recognized her as a neutral in our war with Mexico. Whilst still considering Yucatan as a portion of Mexico, if we had troops to spare for this purpose I would deem it proper, during the continuance of the war with Mexico, to occupy and hold military possession of her territory and to defend the white inhabitants against the incursions of the Indians, in the same way that we have employed our troops in other States of the Mexican Republic in our possession in repelling the attacks of savages upon the inhabitants who have maintained their neutrality in the war. But, unfortunately, we can not at the present time, without serious danger, withdraw our forces from other portions of the Mexican territory now in our occupation and send them to Yucatan. All that can be done under existing circumstances is to employ our naval forces in the Gulf not required at other points to afford them relief; but it is not to be expected that any adequate protection can thus be afforded, as the operations of such naval forces must of necessity be confined to the coast.

[. . .]

Chicago Citations

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Polk, James K. "Special Message." April 29, 1848. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Special Message," April 29, 1848, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-3672.

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Polk, "Special Message," April 29, 1848.

PRIMARY SOURCE P13.55

The Other Side: or Notes for the History of the War between Mexico and the United States (excerpt)

Ramón Alcaraz and others · 1848; translated by Albert C. Ramsey (New York: John Wiley, 1850)

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Mexican authors give their own account of the war's causes, blaming U.S. ambition while admitting Mexico's internal weakness.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Fifteen Mexican writers, among them politicians, soldiers, and journalists, compiled *Apuntes para la historia de la guerra entre México y los Estados Unidos* immediately after the war. Albert C. Ramsey, an American officer who had served in Mexico, translated it in 1850.

The opening chapter blames the war on "the insatiable ambition of the United States, favored by our weakness." The authors also acknowledge Mexico's own revolutions, empty treasury, and divisions.

Editorial note: This is an English translation. The text follows the Internet Archive scan; OCR spellings have been kept, and words broken at line ends have been rejoined.

Document Text

[. . .]

to be acquired while the reins of her destiny were in foreign hands, and involved for many years in the whirlwind of never ending revolutions, the country offered an easy conquest to any who might desire to employ against her a respectable force. The disadvantage of her position could not be concealed from the keen sight of the United States, who watched for the favorable moment for their project. For a long time this Avas carried on secretly, and with caution, until in des])air, tearing off the mask, they exposed the plans without disguise of their bold and overbearing policy.

To ex[])lain then in a few words the true origin of the war, it is sufficient to say that the insatiable ambition of the United States, favored by our weakness, caused it. But this assertion, however veracious and well founded, requires the confirmation which we will present, along with some former transactions, to the whole world. This evidence will leave no doubt of the correctness of our impressions.

In throwing off the yoke of the mother country, the United States of the North appeared at once as a powerfid nation. This was the result of their excellent elementary principles of government established while in colonial subjection. The Republic announced at its birth, that it was called upon to represent an important part in the world of Columbus. Its rapid advancement, its progressive increase, its wonderful territory, the uninterrupted augmentation of its inhabitants, and the formidable power it had gradually acquii-ed, were many proofs of its becoming a colossus, not only for the feeble nations of Spanish America, but even for the old populations of the ancient continent.

The United States did not hope for the assistance of time in their schemes of aggrandizement. From the days of their independence they adopted the project of extending their dominions, and since then, that line of policy has not deviated in the slightest degree. This conduct, nevertheless, was not perceptible to the most enlightened : but

reflecting men, who examined events, were not slow

[. . .]

Chicago Citations

Bibliography entry:

Alcaraz, Ramón, et al. *The Other Side: or Notes for the History of the War between Mexico and the United States*. Translated and edited by Albert C. Ramsey. New York: John Wiley, 1850. Internet Archive.

Footnote citation:

Ramón Alcaraz et al., *The Other Side: or Notes for the History of the War between Mexico and the United States*, trans. and ed. Albert C. Ramsey (New York: John Wiley, 1850), 1–3, https://archive.org/details/othersideornotes00alca.

Shortened citation:

Alcaraz et al., *The Other Side*, [page].

PRIMARY SOURCE P13.56

Special Message to Congress on the Treaty of Guadalupe Hidalgo (excerpt)

James K. Polk · July 6, 1848

TOC FIT	Chapter 13 · Essay prompts 13.1 (What Drove Manifest Destiny?) and 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Polk's own summary of the war's gains stresses Pacific ports and commerce.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After the Senate ratified the Treaty of Guadalupe Hidalgo and Mexico accepted the amendments, Polk sent the final treaty to Congress and asked it to organize governments for the new territories.

In this message Polk measured what the war had gained: New Mexico and Upper California, the ports of the Pacific coast, and the commerce of the Pacific.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

New Mexico and Upper California have been ceded by Mexico to the United States, and now constitute a part of our country. Embracing nearly ten degrees of latitude, lying adjacent to the Oregon Territory, and extending from the Pacific Ocean to the Rio Grande, a mean distance of nearly 1,000 miles, it would be difficult to estimate the value of these possessions to the United States. They constitute of themselves a country large enough for a great empire, and their acquisition is second only in importance to that of Louisiana in 1803. Rich in mineral and agricultural resources, with a climate of great salubrity, they embrace the most important ports on the whole Pacific coast of the continent of North America. The possession of the ports of San Diego and Monterey and the Bay of San Francisco will enable the United States to command the already valuable and rapidly increasing commerce of the Pacific. The number of our whale ships alone now employed in that sea exceeds 700, requiring more than 20,000 seamen to navigate them, while the capital invested in this particular branch of commerce is estimated at not less than $40,000,000. The excellent harbors of Upper California will under our flag afford security and repose to our commercial marine, and American mechanics will soon furnish ready means of shipbuilding and repair, which are now so much wanted in that distant sea.

By the acquisition of these possessions we are brought into immediate proximity with the west coast of America, from Cape Horn to the Russian possessions north of Oregon, with the islands of the Pacific Ocean, and by a direct voyage in steamers we will be in less than thirty days of Canton and other ports of China.

In this vast region, whose rich resources are soon to be developed by American energy and enterprise, great must be the augmentation of our commerce, and with it new and profitable demands for mechanic labor in all its branches and new and valuable markets for our manufactures and agricultural products.

While the war has been conducted with great humanity and forbearance and with complete success on our part, the peace has been concluded on terms the most liberal and magnanimous to Mexico. In her hands the territories now ceded had remained, and, it is believed, would have continued to remain, almost unoccupied, and of little value to her or to any other nation, whilst as a part of our Union they will be productive of vast benefits to the

United States, to the commercial world, and the general interests of mankind.

The immediate establishment of Territorial governments and the extension of our laws over these valuable possessions are deemed to be not only important, but indispensable to preserve order and the due administration of justice within their limits, to afford protection to the inhabitants, and to facilitate the development of the vast resources and wealth which their acquisition has added to our country.

The war with Mexico having terminated, the power of the Executive to establish or to continue temporary civil governments over these territories, which existed under the laws of nations whilst they were regarded as conquered provinces in our military occupation, has ceased. By their cession to the United States Mexico has no longer any power over them, and until Congress shall act the inhabitants will be without any organized government. Should they be left in this condition, confusion and anarchy will be likely to prevail.

Foreign commerce to a considerable amount is now carried on in the ports of Upper California, which will require to be regulated by our laws. As soon as our system shall be extended over this commerce, a revenue of considerable amount will be at once collected, and it is not doubted that it will be annually increased. For these and other obvious reasons I deem it to be my duty earnestly to recommend the action of Congress on the subject at the present session.

In organizing governments over these territories, fraught with such vast advantages to every portion of our Union, I invoke that spirit of concession, conciliation, and compromise in your deliberations in which the Constitution was framed, in which it should be administered, and which is so indispensable to preserve and perpetuate the harmony and union of the States. We should never forget that this Union of confederated States was established and cemented by kindred blood and by the common toils, sufferings, dangers, and triumphs of all its parts, and has been the ever-augmenting source of our national greatness and of all our blessings.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "Special Message." July 6, 1848. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Special Message," July 6, 1848, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-4369.

Shortened citation:

Polk, "Special Message," July 6, 1848.

PRIMARY SOURCE P13.57

Fourth Annual Message (excerpt on California)

James K. Polk · December 5, 1848

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	Polk's report on gold and emigration links individual opportunity to the commercial prize of the Pacific.
TREATMENT	Public-domain text, selected excerpts

Historical Context

By December 1848 the war with Mexico had ended, and reports of gold in California had reached the East. Polk's final annual message confirmed the discovery officially and set off the rush of 1849.

Polk described the value of the new territory, the emigrants already preparing to go, and California's future as the gateway to the commerce of Asia.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Upper California, irrespective of the vast mineral wealth recently developed there, holds at this day, in point of value and importance, to the rest of the Union the same relation that Louisiana did when that fine territory was acquired from France forty-five years ago. Extending nearly ten degrees of latitude along the Pacific, and embracing the only safe and commodious harbors on that coast for many hundred miles, with a temperate climate and an extensive interior of fertile lands, it is scarcely possible to estimate its wealth until it shall be brought under the government of our laws and its resources fully developed. From its position it must command the rich commerce of China, of Asia, of the islands of the Pacific, of western Mexico, of Central America, the South American States, and of the Russian possessions bordering on that ocean. A great emporium will doubtless speedily arise on the Californian coast which may be destined to rival in importance New Orleans itself. The depot of the vast commerce which must exist on the Pacific will probably be at some point on the Bay of San Francisco, and will occupy the same relation to the whole western coast of that ocean as New Orleans does to the valley of the Mississippi and the Gulf of Mexico. To this depot our numerous whale ships will resort with their cargoes to trade, refit, and obtain supplies. This of itself will largely contribute to build up a city, which would soon become the center of a great and rapidly increasing commerce. Situated on a safe harbor, sufficiently capacious for all the navies as well as the marine of the world, and convenient to excellent timber for shipbuilding, owned by the United States, it must become our great Western naval depot.

It was known that mines of the precious metals existed to a considerable extent in California at the time of its acquisition. Recent discoveries render it probable that these mines are more extensive and valuable than was anticipated. The accounts of the abundance of gold in that territory are of such an extraordinary character as would scarcely command belief were they not corroborated by the authentic reports of officers in the public service who have visited the mineral district and derived the facts which they detail from personal observation. Reluctant to credit the reports in general circulation as to the quantity of gold, the officer commanding our forces in California visited the mineral district in July last for the purpose of obtaining accurate information on the subject. His report to the War Department of the result of his examination and the facts obtained on the spot is herewith laid before Congress. When he visited the country there were about 4,000 persons engaged in collecting gold. There is every reason to believe that the number of persons so employed has since been augmented. The

explorations already made warrant the belief that the supply is very large and that gold is found at various places in an extensive district of country.

[. . .]

The immensely valuable possessions of New Mexico and California are already inhabited by a considerable population. Attracted by their great fertility, their mineral wealth, their commercial advantages, and the salubrity of the climate, emigrants from the older States in great numbers are already preparing to seek new homes in these inviting regions. Shall the dissimilarity of the domestic institutions in the different States prevent us from providing for them suitable governments? These institutions existed at the adoption of the Constitution, but the obstacles which they interposed were overcome by that spirit of compromise which is now invoked. In a conflict of opinions or of interests, real or imaginary, between different sections of our country, neither can justly demand all which it might desire to obtain. Each, in the true spirit of our institutions, should concede something to the other.

Our gallant forces in the Mexican war, by whose patriotism and unparalleled deeds of arms we obtained these possessions as an indemnity for our just demands against Mexico, were composed of citizens who belonged to no one State or section of our Union. They were men from slaveholding and nonslaveholding States, from the North and the South, from the East and the West. They were all companions in arms and fellow-citizens of the same common country, engaged in the same common cause. When prosecuting that war they were brethren and friends, and shared alike with each other common toils, dangers, and sufferings. Now, when their work is ended, when peace is restored, and they return again to their homes, put off the habiliments of war, take their places in society, and resume their pursuits in civil life, surely a spirit of harmony and concession and of equal regard for the rights of all and of all sections of the Union ought to prevail in providing governments for the acquired territories--the fruits of their common service. The whole people of the United States, and of every State, contributed to defray the expenses of that war, and it would not be just for any one section to exclude another from all participation in the acquired territory. This would not be in consonance with the just system of government which the framers of the Constitution adopted.

[. . .]

Chicago Citations

Bibliography entry:

Polk, James K. "Fourth Annual Message." December 5, 1848. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James K. Polk, "Fourth Annual Message," December 5, 1848, American Presidency Project, https://www.presidency.ucsb.edu/documents/fourth-annual-message-6.

Shortened citation:

Polk, "Fourth Annual Message," 1848.

PRIMARY SOURCE P13.58

A Project for a Railroad to the Pacific (excerpt)

Asa Whitney · 1849 (New York: George W. Wood)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A China-trade merchant's railroad plan states the commercial vision of a continental empire built on Pacific trade.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Asa Whitney (1797–1872), a New York merchant who made his fortune in the China trade, began petitioning Congress in 1845 for a land grant to build a railroad from Lake Michigan to the Pacific.

In this 1849 pamphlet Whitney argued that a transcontinental line would carry the commerce of Asia across North America, making the United States the center of world trade. Congress did not adopt his plan, but the idea shaped later railroad debates.

Editorial note: The text follows the Internet Archive scan. OCR spellings have been kept.

Document Text

[. . .]

The subject of a communication between the Atlantic and Pacific Oceans, by means of a Canal or Railway, at Panama, Nicaragua, and Tehuantepec, has occupied more or less of public attention for more than 200 years ; but no matured plan for a communication directly across our continent, by means of railroad or otherwise, was presented to the public before my pro¬ position for the construction of a railroad from Lake Michigan to the Paci¬ fic Ocean, to terminate either at the Columbia River, Puget Sound, or San Francisco, which latter was not then in our possession.

The explorations of Lewis and Clark, during the administration of Mr. Jefferson, were with a Anew to find a commercial route across this continent to Asia, long before railroads were in use, and no other means' than the im¬ provement of the navigation of the streams was then, or till my plan was matured, ever thought of, and no plan matured even for the improvement of the rivers.

Statesmen of high consideration and standing have, since my proposition, and even to within a very recent period, contended that the Missouri River, the Columbia and its affluents, were sufficient, and would be the route for the commerce of the world.

The Hon. Thomas H. Benton, in his able speech upon the Oregon ques¬ tion in May, 1846, says at pages 26, 27, and 28 : —

“ Lewis and Clark were sent out to discover a commercial route to the Pacific Ocean ; and so judiciously was their enterprise conducted that their return route must become, and forever remain, the route of commerce : the route further south, through the South Pass, near latitude 42, will be the travelling road ; but commerce will take the water line of their return, crossing the Rocky Mountains in latitude 47, through the North Pass.

[. . .]

Chicago Citations

Bibliography entry:

Whitney, Asa. *A Project for a Railroad to the Pacific*. New York: George W. Wood, 1849. Internet Archive.

Footnote citation:

Asa Whitney, *A Project for a Railroad to the Pacific* (New York: George W. Wood, 1849), [page], https://archive.org/details/projectforrailroo0whit.

Shortened citation:

Whitney, *Railroad to the Pacific*, [page].

PRIMARY SOURCE P13.59

A Woman's Trip Across the Plains in 1849 (excerpt)

Catherine Haun · journey of 1849 (published 1982)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A woman's account shows families, not only single men, moving west for land, gold, and a fresh start.
TREATMENT	Facsimile of supplied copy, selected passages (Norton selection)

Historical Context

Catherine Haun and her husband, a young lawyer, left Clinton, Iowa, in April 1849 with a small company of neighbors, hoping to find enough gold in California to pay their debts.

Haun later wrote this account of the six-month overland journey. It describes outfitting the wagons, the organization of the train, fear of Indians, buffalo, cholera, the Humboldt desert, and settling in Marysville.

Editorial note: Haun's manuscript was first published by Lillian Schlissel in 1982 and is still under copyright; the pages reproduced here are from a classroom copy supplied by the instructor, without its modern introduction. Bracketed words are Schlissel's insertions. Haun wrote the account after the journey, as a reminiscence.

Document Facsimile

who met the challenges with considerable strength and grace.

Early in January of 1849 we first thought of emigrating to California. It was a period of National hard times and we being financially involved in our business interests near Clinton, Iowa, longed to go to the new El Dorado and "pick up" gold enough with which to return and pay off our debts.

* * *

At that time the "gold fever" was contagious and few, old or young, escaped the malady. On the streets, in the fields, in the workshops and by the fireside, golden California was the chief topic of conversation. Who were going? How was best to "fix up" the "outfit"? What to take as food and clothing? Who would stay at home to care for the farm and womenfolks? Who would take wives and children along? Advice was handed out quite free of charge and often quite free of common sense. However, as two heads are better than one, all proffered ideas helped as a means to the end. The intended adventurers dilligently collected their belongings and after exchanging such articles as were not needed for others more suitable for the trip, begging, buying or borrowing what they could, with buoyant spirits started off.

Some half dozen families of our neighborhood joined us and probably about twenty-five persons constituted our little band.

* * *

. . . It was more than three months before we were thoroughly equipped and on April 24th, 1849 we left our comparatively comfortable homes—and the uncomfortable creditors—for the uncertain and dangerous trip, beyond which loomed up, in our mind's eye, castles of shining gold.

There was still snow upon the ground and the roads were bad, but in our eagerness to be off we ventured forth. This was a mistake as had we delayed for a couple of weeks the weather would have been more settled, the roads better and much of the discouragement and hardship of the first days of travel might have been avoided.

* * *

Facsimile, page 1 (excerpt begins).

At the end of the month we reached Council Bluffs, having only travelled across the state of Iowa, a distance of about 350 miles every mile of which was beautifully green and well watered. . . .

As Council Bluffs was the last settlement on the route we made ready for the final plunge into the wilderness by looking over our wagons and disposing of whatever we could spare. . . .

* * *

The canvas covered schooners were supposed to be, as nearly as possible, constructed upon the principle of the "wonderful one-horse shay." It was very essential that the animals be sturdy,whether oxen, mules or horses. Oxen were preferred as they were less liable to stampede or be stolen by Indians and for long hauls held out better and though slower they were steady and in the long run performed the journey in an equally brief time. Besides, in an emergency they could be used as beef. When possible the provisions and ammunition were protected from water and dust by heavy canvas or rubber sheets.

Good health, and above all, not too large a proportion of women and children was also taken into consideration. The morning starts had to be made early—always before six o'clock—and it would be hard to get children ready by that hour. Later on experience taught the mothers that in order not to delay the trains it was best to allow the smaller children to sleep in the wagons until after several hours of travel when they were taken up for the day.

Our caravan had a good many women and children and although we were probably longer on the journey owing to their presence—they exerted a good influence, as the men did not take such risks with Indians and thereby avoided conflict; were more alert about the care of the teams and seldom had accidents; more attention was paid to cleanliness and sanitation and, lastly but not of less importance, the meals were more regular and better cooked thus preventing much sickness and there was less waste of food.

* * *

After a sufficient number of wagons and people were collected at this rendezvous we proceeded to draw up and agree upon a code of general regulations for train government and mutual protection—a necessary precaution when so many were to travel together. Each family was to be independent yet a part of the grand unit and every man was expected to do his individual share of general work and picket duty.

John Brophy was selected as Colonel. He was particularly eligible having served in the Black Hawk War and as much of his life had been spent along the frontier his experience with Indians was quite exceptional.

Each week seven Captains were appointed to serve on "Grand Duty." They were to protect the camps and animals at night. One served each night and in case of danger gave the alarm.

When going into camp the "leader wagon" was turned from the road to the right, the next wagon turned to the left, the others following close after and always alternating to right and left. In this way a large circle, or corral, was formed within which the tents were pitched and the oxen herded. The horses were picketed near by until bed time when they were tethered to the tongues of the wagons.

Facsimile, page 2.

While the stock and wagons were being cared for, the tents erected and camp fires started by the side of the wagons outside the corral, the cooks busied themselves preparing the evening meal for the hungry, tired, impatient travelers.

When the camp ground was desirable enough to warrant it we did not travel on the Sabbath.

Although the men were generally busy mending wagons, harness, yokes, shoeing the animals etc., and the women washed clothes, boiled a big mess of beans, to be warmed over for several meals, or perhaps mended clothes or did other household straightening up, all felt somewhat rested on Monday morning, for the change of occupation had been refreshing.

* * *

During the entire trip Indians were a source of anxiety, we being never sure of their friendship. Secret dread and alert watchfulness seemed always necessary for after we left the prairies they were more treacherous and numerous being in the language of the pioneer trapper: "They wus the most onsartainest vermints alive."

One night after we had retired, some sleeping in blankets upon the ground, some in tents, a few under the wagons and others in the wagons, Colonel Brophy gave the men a practice drill. It was impromptu and a surprise. He called: "Indians, Indians!" We were thrown into great confusion and excitement but he was gratified at the promptness and courage with which the men responded. Each immediately seized his gun and made ready for the attack. The women had been instructed to seek shelter in the wagons at such times of danger, but some screamed, others fainted, a few crawled under the wagons and those sleeping in wagons generally followed their husbands out and all of us were nearly paralized with fear. Fortunately, we never had occasion to put into actual use this maneuver, but the drill was quite reassuring and certainly we womenfolk would have acted braver had the alarm ever again been sounded. . . .

* * *

Finally after a couple of weeks' travel the distant mountains of the west came into view.

This was the land of the buffalo. One day a herd came in our direction like a great black cloud, a threatening moving mountain, advancing towards us very swiftly and with wild snorts, noses almost to the ground and tails flying in midair. I haven't any idea how many there were but they seemed to be innumerable and made a deafening terrible noise. As is their habit, when stampeding, they did not turn out of their course for anything. Some of our wagons were within their line of advance and in consequence one was completely demolished and two were overturned. Several persons were hurt, one child's shoulder being dislocated, but fortunately no one was killed.

Two of these buffaloes were shot and the humps and tongues furnished us with fine fresh meat. They happened to be buffalo cows and, in consequence, the meat was particularly good flavor and tender. It is believed that the cow can run faster than the bull. The large bone of the hind leg, after being stripped of the flesh, was buried in coals of buffalo chips and in an hour the baked marrow was served. I have never tasted such a rich, delicious food!

* * *

Facsimile, page 3.

Buffalo chips, when dry, were very useful to us as fuel. On the barren plains when we were without wood we carried empty bags and each pedestrian "picked up chips" as he, or she, walked along. Indeed we could have hardly got along without thus useful animal, were always appropriating either his hump, tongue, marrowbone, tallow, skin or chips! . . .

* * *

Trudging along within the sight of the Platte, whose waters were now almost useless to us on account of the Alkali, we one day found a post with a cross board pointing to a branch road which seemed better than the one we were on. . . . We decided to take it but before many miles suddenly found ourselves in a desolate, rough country that proved to be the edge of the "Bad Lands" I shudder yet at the thought of the ugliness and danger of the territory. . . .

* * *

We saw nothing living but Indians, lizards and snakes. Trying, indeed, to feminine nerves. Surely Inferno can be no more horrible in formation. The pelting sun's rays reflected from the parched ground seemed a furnace heat by day and our campfires, as well as those of the Indians cast grotesque glares and terrifying shadows by night. The demen needed only horns and cloven feet to complete the soul stirring picture!

To add to the horrors of the surroundings one man was bitten on the ankle by a venemous snake. Although every available remidy was tried upon the wound, his limb had to be amputated with the aid of a common handsaw. Fortunately, for him, he had a good, brave wife along who helped and cheered him into health and usefulness; for it was not long before he found much that he could do and was not considered a burden, although the woman had to do a man's work as they were alone. He was of a mechanical turn, and later on helped mend wagons, yokes and harness; and when the train was "on the move" sat in the wagon, gun by his side, and repaired boots and shoes. He was one of the most cheery members of the company and told good stories and sang at the campfire, putting to shame some of the able bodied who were given to complaining or selfishness. . . .

Finally after several days we got back onto the road and were entering the Black Hills Country. . . .

* * *

We had not traveled many miles in the Black Hills—the beginning of the Rocky Mountains—before we realized that our loads would have to be lightened as the animals were not able to draw the heavily laden wagons over the slippery steep roads. We were obliged to sacrifice most of our merchandise that was intended for our stock in trade in California and left it by the wayside; burying the barrels of alcohol least the Indians should drink it and frenzied thereby might follow and attack us....

* * *

During the day we womenfolk visited from wagon to wagon or congenial friends spent an hour walking, ever westward, and talking over our home life back in "the states" telling of the loved ones left behind; voicing our hopes for the future in the far west and even whispering a little friendly gossip of emigrant life.

Facsimile, page 4.

High teas were not popular but tatting, knitting, crocheting, exchanging recipes for cooking beans or dried apples or swapping food for the sake of variety kept us in practice of feminine occupations and diversions.

We did not keep late hours but when not too engrossed with fear of the red enemy or dread of impending danger we enjoyed the hour around the campfire. The menfolk lolling and smoking their pipes and guessing or maybe betting how many miles we had covered the day. We listened to readings, story telling, music and songs and the day often ended in laughter and merrymaking.

It was the fourth of July when we reached the beautiful Laramie River. Its sparkling, pure waters were full of myriads of fish that could be caught with scarcely an effort. It was necessary to build barges to cross the river and during the enforced delay our animals rested and we had one of our periodical "house cleanings." This general systematic re-adjustment always freshened up our wagon train very much, for after a few weeks of travel things got mixed up and untidy and often wagons had to be abandoned if too worn for repairs, and generally one or more animals had died or been stolen.

* * *

Cholera was prevalent on the plains at this time; the train preceding as well as the one following ours had one or more deaths, but fortunately we had not a single case of the disease. Often several graves together stood as silent proof of smallpox or cholera epidemic. The Indians spread the disease among themselves by digging up the bodies of the victims for the clothing. The majority of the Indians were badly pock-marked. . . .

* * *

It was with considerable apprehension that we started to traverse the treeless, alkali region of the Great Basin or Sink of the Humboldt. Our wagons were badly worn, the animals much the worse for wear, food and stock feed was getting low with no chance of replenishing the supply. During the month of transit we, like other trains, experienced the greatest privations of the whole trip. It was no unusual sight to see graves, carcasses of animals and abandoned wagons. In fact the latter furnished us with wood for the campfires as the sagebrush was scarce and unsatisfactory and buffalo chips were not as plentiful as on the plains east of the Rocky Mountains.

* * *

Across this drear country I used to ride horseback several hours of the day which was a great relief from the continual jolting of even our spring wagon. I also walked a great deal and this lightened the wagon. One day I walked fourteen miles and was not very fatigued.

. . . The men seemed more tired and hungry than were the women. Our only death on the journey occurred in this desert. The Canadian woman, Mrs. Lamore, suddenly sickened [after childbirth] and died, leaving her two little girls and grief stricken husband. We halted a day to bury her and the infant that had lived but an hour, in this weird, lonely spot on God's footstool away apparently from everywhere and everybody.

* * *

. . . we reached Sacramento on November 4, 1849, just six months and ten days after leaving Clinton, Iowa, we were all in pretty good condition. . . .

Facsimile, page 5.

Although very tired of tent life many of us spent Thanksgiving and Christmas in our canvas houses. I do not remember ever having had happier holiday times. For Christmas dinner we had a grizzly bear steak for which we paid $2.50, one cabbage for $1.00 and—oh horrors—some *more* dried apples! And for a Christmas present the Sacramento river rose very high and flooded the whole town! . . . It was past the middle of January before we . . . reached Marysville—there were only a half dozen houses; all occupied at exorbitant prices. Some one was calling for the services of a lawyer to draw up a will and my husband offered to do it for which he charged $150.00.

This seemed a happy omen for success and he hung out his shingle, abandoning all thought of going to the mines. As we had lived in a tent and had been on the move for nine months, traveling 2400 miles we were glad to settle down and go housekeeping in a shed that was built in a day of lumber purchased with the first fee. . . .

* * *

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Facsimile, page 6 (excerpt ends).

Chicago Citations

Bibliography entry:

Haun, Catherine. "A Woman's Trip Across the Plains in 1849." In Lillian Schlissel, *Women's Diaries of the Westward Journey*, 166–85. New York: Schocken Books, 1982; repr. 1992.

Footnote citation:

Catherine Haun, "A Woman's Trip Across the Plains in 1849," in Lillian Schlissel, *Women's Diaries of the Westward Journey* (New York: Schocken Books, 1992), [page].

Shortened citation:

Haun, "Woman's Trip," [page].

PRIMARY SOURCE P13.60

Resistance to Civil Government

Henry David Thoreau · 1849

TOC FIT	Chapter 13 · Essay prompts 13.3 (Who Caused the Mexican-American War?) and 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	A Concord writer explains why he would not pay taxes to support a war he believed unjust and a government that protected slavery.
TREATMENT	Public-domain text, selected paragraphs

Historical Context

Henry David Thoreau (1817–1862) refused to pay his Massachusetts poll tax in protest against slavery and the war with Mexico, and in July 1846 he spent a night in the Concord jail.

He explained his act in a lecture and then in this essay, published in 1849 as "Resistance to Civil Government" and later known as "Civil Disobedience." Thoreau argued that individuals must refuse to support a government that commits injustice.

Editorial note: The Norton collection prints twenty paragraphs from a 1973 scholarly edition. This reader follows the Project Gutenberg text of the essay, which uses the later title "On the Duty of Civil Disobedience"; the wording is the same essay. The plan's separate listing of this essay is printed here as one entry.

Document Text

I heartily accept the motto,—"That government is best which governs least;" and I should like to see it acted up to more rapidly and systematically. Carried out, it finally amounts to this, which also I believe—"That government is best which governs not at all;" and when men are prepared for it, that will be the kind of government which they will have. Government is at best but an expedient; but most governments are usually, and all governments are sometimes, inexpedient. The objections which have been brought against a standing army, and they are many and weighty, and deserve to prevail, may also at last be brought against a standing government. The standing army is only an arm of the standing government. The government itself, which is only the mode which the people have chosen to execute their will, is equally liable to be abused and perverted before the people can act through it. Witness the present Mexican war, the work of comparatively a few individuals using the standing government as their tool; for, in the outset, the people would not have consented to this measure.

This American government,—what is it but a tradition, though a recent one, endeavoring to transmit itself unimpaired to posterity, but each instant losing some of its integrity? It has not the vitality and force of a single living man; for a single man can bend it to his will. It is a sort of wooden gun to the people themselves; and, if ever they should use it in earnest as a real one against each other, it will surely split. But it is not the less necessary for this; for the people must have some complicated machinery or other, and hear its din, to satisfy that idea of government which they have. Governments show thus how successfully men can be imposed on, even impose on themselves, for their own advantage. It is excellent, we must all allow; yet this government never of itself furthered any enterprise, but by the alacrity with which it got out of its way. It does not keep the country free. It does not settle the West. It does not educate. The character inherent in the American people has done all that has been accomplished; and it would have done somewhat more, if the government had not sometimes got in its way. For government is an expedient, by which men would fain succeed in letting one another alone; and, as has been said, when it is most expedient, the governed are most let alone by it. Trade and commerce, if they were not made of India rubber, would never manage to bounce over obstacles which legislators are continually putting in their way; and, if one were to judge these men wholly by the effects of their actions, and not partly by their intentions, they

would deserve to be classed and punished with those mischievous persons who put obstructions on the railroads.

[. . .]

Under a government which imprisons any unjustly, the true place for a just man is also a prison. The proper place today, the only place which Massachusetts has provided for her freer and less desponding spirits, is in her prisons, to be put out and locked out of the State by her own act, as they have already put themselves out by their principles. It is there that the fugitive slave, and the Mexican prisoner on parole, and the Indian come to plead the wrongs of his race, should find them; on that separate, but more free and honorable ground, where the State places those who are not with her but against her,—the only house in a slave-state in which a free man can abide with honor. If any think that their influence would be lost there, and their voices no longer afflict the ear of the State, that they would not be as an enemy within its walls, they do not know by how much truth is stronger than error, nor how much more eloquently and effectively he can combat injustice who has experienced a little in his own person. Cast your whole vote, not a strip of paper merely, but your whole influence. A minority is powerless while it conforms to the majority; it is not even a minority then; but it is irresistible when it clogs by its whole weight. If the alternative is to keep all just men in prison, or give up war and slavery, the State will not hesitate which to choose. If a thousand men were not to pay their tax-bills this year, that would not be a violent and bloody measure, as it would be to pay them, and enable the State to commit violence and shed innocent blood. This is, in fact, the definition of a peaceable revolution, if any such is possible. If the tax-gatherer, or any other public officer, asks me, as one has done, “But what shall I do?” my answer is, “If you really wish to do any thing, resign your office.” When the subject has refused allegiance, and the officer has resigned his office, then the revolution is accomplished. But even suppose blood should flow. Is there not a sort of blood shed when the conscience is wounded? Through this wound a man’s real manhood and immortality flow out, and he bleeds to an everlasting death. I see this blood flowing now.

I have contemplated the imprisonment of the offender, rather than the seizure of his goods,—though both will serve the same purpose,—because they who assert the purest right, and consequently are most dangerous to a corrupt State, commonly have not spent much time in accumulating property. To such the State renders comparatively small service, and a slight tax is wont to appear exorbitant, particularly if they are obliged to earn it by special labor with their hands. If there were one who lived wholly without the use of money, the State itself would hesitate to demand it of him. But the rich man—not to make any invidious comparison—is always sold to the institution which makes him rich. Absolutely speaking, the more money, the less virtue; for money comes between a man and his objects, and obtains them for him; it was certainly no great virtue to obtain it. It puts to rest many questions which he would otherwise be taxed to answer; while the only new question which it puts is the hard but superfluous one, how to spend it. Thus his moral ground is taken from under his feet. The opportunities of living are diminished in proportion as what are called the “means” are increased. The best thing a man can do for his culture when he is rich is to endeavor to carry out those schemes which he entertained when he was poor. Christ answered the Herodians according to their condition. “Show me the tribute-money,” said he;—and one took a penny out of his pocket;—if you use money which has the image of Cæsar on it, and which he has made current and valuable, that is, if you are men of the State, and gladly enjoy the advantages of Cæsar’s government, then pay him back some of his own when he demands it; “Render therefore to Cæsar that which is Cæsar’s and to God those things which are God’s,”—leaving them no wiser than before as to which was which; for they did not wish to know.

[. . .]

The authority of government, even such as I am willing to submit to,—for I will cheerfully obey those who know and can do better than I, and in many things even those who neither know nor can do so well,—is still an impure one: to be strictly just, it must have the sanction and consent of the governed. It can have no pure right over my person and property but what I concede to it. The progress from an absolute to a limited monarchy, from a limited monarchy to a democracy, is a progress toward a true respect for the individual. Even the Chinese philosopher was

wise enough to regard the individual as the basis of the empire. Is a democracy, such as we know it, the last improvement possible in government? Is it not possible to take a step further towards recognizing and organizing the rights of man? There will never be a really free and enlightened State, until the State comes to recognize the individual as a higher and independent power, from which all its own power and authority are derived, and treats him accordingly. I please myself with imagining a State at last which can afford to be just to all men, and to treat the individual with respect as a neighbor; which even would not think it inconsistent with its own repose, if a few were to live aloof from it, not meddling with it, nor embraced by it, who fulfilled all the duties of neighbors and fellow-men. A State which bore this kind of fruit, and suffered it to drop off as fast as it ripened, would prepare the way for a still more perfect and glorious State, which also I have imagined, but not yet anywhere seen.

Chicago Citations

Bibliography entry:

Thoreau, Henry David. "Resistance to Civil Government." In *Æsthetic Papers*, edited by Elizabeth P. Peabody. Boston: The Editor, 1849. Text from Project Gutenberg eBook #71.

Footnote citation:

Henry David Thoreau, "Resistance to Civil Government," in *Æsthetic Papers*, ed. Elizabeth P. Peabody (Boston, 1849), [paragraph], text from Project Gutenberg eBook #71.

Shortened citation:

Thoreau, "Resistance to Civil Government."

PRIMARY SOURCE P13.61

Personal Adventures in Upper and Lower California, in 1848–9 (appendix: a letter from San Francisco)

William Redmond Ryan · 1849 letter (published London, 1850)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A gold-rush letter shows ordinary migrants and speculators chasing land, wages, and quick fortunes in California.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

William Redmond Ryan, an English artist, enlisted in a New York volunteer regiment sent to California during the war with Mexico and stayed through the first months of the gold rush. His two-volume account appeared in London in 1850.

The appendix to the second volume reprints a correspondent's letter from San Francisco in 1849. It reports land speculation, fortunes made on town lots, imported Chinese houses, the flood of overland emigrants, and the wages and prices at the mines.

Editorial note: The OCR of this scan renders the dollar sign as "^" or ";^"; the reader restores "$" and otherwise reproduces the scan's wording, including OCR slips such as "Stocton" and "ooing." The Norton collection cites the 1852 London edition, pages 399–401; this reader uses the 1850 first edition, where the same passage falls on the same pages.

Document Text

[. . .]

" So much for the gold. In other respects, the country is tolerably quiet ; speculation in lots, though still ooing on, having assumed a more cautious character. San Francisco, Stocton, Sacramento city, and San Jose, still maintain their value. Benecia lots are rather dull, and have slightly fallen ; while Colonel Stevens's New York of the Pacific, with its awkward and absurd title, does not seem to be thought of. A town named Vernon, at the mouth of Feather River, is rising rapidly to notice, and another is said to be springing up on Trinity River. Many persons have made large fortunes by buying up lots at lucky times, and selling them still more luckily. A case was told me of a young man who, last fall, borrowed money to pay his passage from the Sandwich Islands to San Francisco, and who is now on his way home with $80,000 made in this manner. Throe or four gentlemen, who came up in the Panama, have already made $20,000 by similar operations. A friend of

mine, who shipped lumber from New York to the amount of $1000, sold it here for $14,000. Houses that cost $300, sell readilj for $3000 ; and the demand is constantly increasing. At least 75 houses have been imported from Canton, and are put up by Chinese carpenters. Nearly all the chairs in private families are of Chinese manufacture ; and there are two restaurants in the town kept by Kang-sung and Wangtong, where every palatable chow-chow, curry, and tarts, are served up by the Celestials. Washing is still $8 a dozen : and the consequence is, large quantities of soiled linen are sent to our antipodes to be purified. A vessel just in from Canton brought 250 dozen, which were sent out a few months ago ; another, from the Sandwich Islands, brought 100 dozen ; and the practice is now becoming general. San Francisco is, in fact, more metropolitan in its character than any port in the world. Its trade with all parts of the Pacific is rapidly increasing. The overland emigration is pouring into the country in a full tide. The reports that reached here of distress on the routes, and the certainty that many would need aid before

reaching the settlements, caused a public movement in favour of raising supplies to send out on the routes. Private individuals and companies contributed largely ; and General Riley, on being applied to, promptly gave a carte blanche to Major Cauley and Captain Kain, of the Q. M. department, to furnish all the assistance in their power. Several hundred pack-mules, under the charge of competent ofiicers, have been sent to Vallecitos, at the edge of the great desert, and to the sink of Ilumboklfs River, in the great basin, the places where emigrants will most require aid. Word has reached us that many waggons have stopped at the latter place, unable to proceed further. I have heard of no such distress on the northern route as the southern. The emigrants in the north, so far as I learn, have not been molested by the Indians ; while the hostilities of the Yumas and

Maricopas, at the Colorado crossing, have already cost the companies on the Gila the loss of several lives.

" As to prices, all mining tools are high, as are also all articles upon which labour has been performed here. Picks, $5 ; pans, $5 ; cradles for washing gold, three feet long, worth $2 in the States, sell here for $40 ; flour, from $8 to $10 per hundred ; pork, $50 per hundred; cottee, $18 ; board, $21 per week, or $1 50 cents per meal, with the privilege of sleeping under the nearest tree unoccupied. At the mines, sixty miles distant, the prices are doubled, and of some things trebled. Brandy, $2 per bottle. At the mines they are making, on an average, an ounce of gold per day. One man who arrived here this month, made in two weeks $25,000, and has gone to San Francisco to take passage for the States. Labour is in proportion to the produce of the mines, ranging from $8 to $18 per day.

[. . .]

Chicago Citations

Bibliography entry:

Ryan, William Redmond. *Personal Adventures in Upper and Lower California, in 1848–9*. Vol. 2. London: William Shoberl, 1850. Internet Archive.

Footnote citation:

William Redmond Ryan, *Personal Adventures in Upper and Lower California, in 1848–9* (London: William Shoberl, 1850), 2:[page], https://archive.org/details/personaladventur02ryan.

Shortened citation:

Ryan, *Personal Adventures*, 2:[page].

PRIMARY SOURCE P13.62

The Independent Gold Hunter on His Way to California

Lithograph, Kellogg & Comstock (New York) · c. 1850

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A popular print shows how easterners pictured the individual gold seeker heading west on his own initiative.
TREATMENT	Public-domain image (lithograph)

Historical Context

Lithograph publishers in New York and Hartford sold cheap hand-colored prints to a mass market. During the California gold rush they produced comic images of the "forty-niners" who left farms and shops for the diggings.

This print shows a lone prospector loaded with a pan, pick, shovel, kettle, and supplies, walking past a signpost that marks the distance to California. Its caption mocks his independence: he will neither borrow nor lend.

Editorial note: The image is reproduced from the Library of Congress copy as hosted on Wikimedia Commons. The Norton collection includes the same print. The printed caption reads "The Independent Gold Hunter on His Way to California. I neither borrow nor lend."

Primary Source Image

Chicago Citations

Bibliography entry:

Kellogg & Comstock. *The Independent Gold Hunter on His Way to California*. Lithograph, c. 1850. Library of Congress Prints and Photographs Division. Wikimedia Commons.

Footnote citation:

Kellogg & Comstock, *The Independent Gold Hunter on His Way to California*, lithograph, c. 1850, Library of Congress Prints and Photographs Division, via Wikimedia Commons.

Shortened citation:

Kellogg & Comstock, *Independent Gold Hunter*.

PRIMARY SOURCE P13.63

Compromise of 1850: Clay's Resolutions and the Act Admitting California

Henry Clay (January 29, 1850); U.S. Congress (September 9, 1850)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Clay's single package can be set beside the separate laws that actually passed.
TREATMENT	Full public-domain text (resolutions and first statute)

Historical Context

Clay's eight resolutions of January 1850 failed as a single "omnibus" bill in July. Senator Stephen A. Douglas then broke the package apart and passed each piece separately with shifting majorities.

The five laws signed in September 1850 admitted California as a free state, organized New Mexico and Utah without a ban on slavery, settled the Texas boundary and debt, ended the slave trade in the District of Columbia, and created a new fugitive slave law.

Editorial note: The text follows the National Archives Milestone Documents transcription.

Document Text

CLAY'S RESOLUTIONS January 29, 1850

It being desirable, for the peace, concord, and harmony of the Union of these States, to settle and adjust amicably all existing questions of controversy between them arising out of the institution of slavery upon a fair, equitable and just basis: therefore,

1. Resolved, That California, with suitable boundaries, ought, upon her application to be admitted as one of the States of this Union, without the imposition by Congress of any restriction in respect to the exclusion or introduction of slavery within those boundaries.

2. Resolved, That as slavery does not exist by law, and is not likely to be introduced into any of the territory acquired by the United States from the republic of Mexico, it is inexpedient for Congress to provide by law either for its introduction into, or exclusion from, any part of the said territory; and that appropriate territorial governments ought to be established by Congress in all of the said territory , not assigned as the boundaries of the proposed State of California, without the adoption of any restriction or condition on the subject of slavery.

3. Resolved, That the western boundary of the State of Texas ought to be fixed on the Rio del Norte, commencing one marine league from its mouth, and running up that river to the southern line of New Mexico; thence with that line eastwardly, and so continuing in the same direction to the line as established between the United States and Spain, excluding any portion of New Mexico, whether lying on the east or west of that river.

4. Resolved, That it be proposed to the State of Texas, that the United States will provide for the payment of all that portion of the legitimate and bona fide public debt of that State contracted prior to its annexation to the United States, and for which the duties on foreign imports were pledged by the said State to its creditors, not exceeding the sum of- dollars, in consideration of the said duties so pledged having been no longer applicable to that object after the said annexation, but having thenceforward become payable to the United States; and upon the condition, also, that the said State of Texas shall, by some solemn and authentic act of her legislature or of a convention, relinquish to the United States any claim which it has to any part of New Mexico.

5. Resolved, That it is inexpedient to abolish slavery in the District of Columbia whilst that institution continues to exist in the State of Maryland, without the consent of that State, without the consent of the people of the District, and without just compensation to the owners of slaves within the District.

6. But, resolved, That it is expedient to prohibit, within the District, the slave trade in slaves brought into it from States or places beyond the limits of the District, either to be sold therein as merchandise, or to be transported to other markets without the District of Columbia.

7. Resolved, That more effectual provision ought to be made by law, according to the requirement of the constitution, for the restitution and delivery of persons bound to service or labor in any State, who may escape into any other State or Territory in the Union. And,

8. Resolved, That Congress has no power to promote or obstruct the trade in slaves between the slaveholding States; but that the admission or exclusion of slaves brought from one into another of them, depends exclusively upon their own particular laws.

An Act proposing to the State of Texas the Establishment of her Northern and Western Boundaries, the Relinquishment by the said State of all Territory claimed by her exterior to said boundaries, and of all her Claims upon the United States, and to establish a territorial Government for New Mexico.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the following propositions shall be, and the same hereby are, offered to the State of Texas, which, when agreed to by the said State, in an act passed by the general assembly, shall be binding and obligatory upon the United States, and upon the said State of Texas: Provided, The said agreement by the said general assembly shall be given on or before the first day of December, eighteen hundred and fifty:

FIRST. The State of Texas will agree that her boundary on the north shall commence at the point at which the meridian of one hundred degrees west from Greenwich is intersected by the parallel of thirty-six degrees thirty minutes north latitude, and shall run from said point due west to the meridian of one hundred and three degrees west from Greenwich; thence her boundary shall run due south to the thirty-second degree of north latitude; thence on the said parallel of thirty-two degrees of north latitude to the Rio Bravo del Norte, and thence with the channel of said river to the Gulf of Mexico.

SECOND. The State of Texas cedes to the United States all her claim to territory exterior to the limits and boundaries which she agrees to establish by the first article of this agreement.

THIRD. The State of Texas relinquishes all claim upon the United States for liability of the debts of Texas, and for compensation or indemnity for the surrender to the United States of her ships, forts, arsenals, custom-houses, custom-house revenue, arms and munitions of war, and public buildings with their sites, which became the property of the United States at the time of the annexation.

FOURTH. The United States, in consideration of said establishment of boundaries, cession of claim--,to territory, and relinquishment of claims, will pay to the State of Texas the sum of ten millions of dollars in a stock bearing five per cent. interest, and redeemable at the end of fourteen years, the interest payable half-yearly at the treasury of the United States.

FIFTH. Immediately after the President of the United States shall have been furnished with an authentic copy of the act of the general assembly of Texas accepting these propositions, he shall cause the stock to be issued in favor of the State of Texas, as provided for in the fourth article of this agreement: Provided, also, That no more than five millions of said stock shall be issued until the creditors of the State holding bonds and other certificates of stock of Texas for which duties on imports were specially pledged, shall first file at the treasury of the United States releases of all claim against the United States for or on account of said bonds or certificates in such form as shall be prescribed by the Secretary of the Treasury and approved by the president of the United States: Provided, That nothing herein contained. shall be construed to impair or qualify any thing contained in the third article of the second section of the " joint resolution for annexing Texas to the United States," approved March first, eighteen

hundred and forty-five; either as regards the number of States that may here- after be formed out of the State of Texas, or otherwise.

[. . .]

Chicago Citations

Bibliography entry:

Clay, Henry. Resolutions, January 29, 1850; and "An Act for the Admission of the State of California into the Union," September 9, 1850. National Archives, Milestone Documents.

Footnote citation:

Henry Clay, resolutions, January 29, 1850, National Archives, Milestone Documents, "Compromise of 1850," https://www.archives.gov/milestone-documents/compromise-of-1850.

Shortened citation:

Clay, resolutions, January 29, 1850.

PRIMARY SOURCE P13.64

"Mr. Clay's Compromise on the Slavery Question"

New York Herald · January 31, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Contemporary press reaction shows how Clay's plan was received before anyone knew its fate.
TREATMENT	Full public-domain text

Historical Context

James Gordon Bennett's *New York Herald* had the largest circulation of any American newspaper and spoke for no party.

Two days after Clay introduced his resolutions, the *Herald* reported the sensation they caused and judged their prospects in Congress and in the country.

Editorial note: The text follows the House Divided (Dickinson College) transcription, which preserves spelling and typographical errors.

Document Text

The compromise proposed by Mr. Clay on the slavery question, as indicated in his resolutions and speech delivered on the floor of the Senate, on Tuesday last, has produced a more remarkable sensation in the public mind than even the message of General Taylor on the California question.—This sensation appears to have been as prevalent in the Senate at Washington as out of it—in the capitol as in this community; and we presume that the same sentiments will be felt throughout the whole country, as fast as those resolutions and speech travel to the extremities of the Union.

It appears that the principal opposition to Mr. Clay's remarkable compromise on this interesting question, at first came from the leading Southern members who have heretofore been identified with the democratic party. It is true that the great intellects of the Senate—Mr. Calhoun, Mr. Webster, Col. Benton, Gen. Case, and perhaps one of two others, were silent and speechless before the act of moral courage exemplified in the movement of Mr. Clay. The lesser lights of that body connected with Southern interests, each of them jumped up and made objections—some to one principle, others to another; but all combined in opposition to the general aspect and character of the compromise itself. The Northern Senators, of both parties, did not utter a word on the first impulse; but we have no doubt that their discontent will be elicited in due process of time.

What a singular spectacle of human nature in political action, is presented in the positions of Mr. Clay, and that of the compatriots in the Senate and out of it! Of all the leaders of the old parties, of all aspiring spirits of the new ones, including General Taylor and the whole of his cabinet, from head to tail, not a single soul, not a single mind, has dared to exhibit the moral courage of coming out with any plan for settling the whole question, except it is Henry Clay, who, solitary and alone, faces the crises with as much calmness and composure as General Taylor did the Mexicans at Buena Vista. Whatever may be the objections to Mr. Clay's plan on the one side, or its recommendations on the other, we think the moral courage he has exhibited is a spectacle of sublimity that ought to shame all the politicians at Washington, and the miserable drivellers of both parties, and all parties, there and elsewhere.

What, then, are the merits of this plan? We think they possess great and paramount merits, sufficient, on reflection and consideration, not perhaps to satisfy the ultras of either the North or the South, but certainly to calm and quiet

all those intelligent minds who have the courage to meet the question openly, and endeavor to settle it on the principles of equality, of compromise, of good sense, and practical discretion. Mr. Clay is truly the great intellect of the age. How weak and imbecile, in such a crisis, have been the good and amiable General Taylor, and his puerile and contempable cabinet at his back!

These are our first impressions on this great and remarkable movement of Mr. Clay; but our thoughts are crowding in multitudes upon us, and we shall take time to speed them to our readers, as we will find room in our columns.

Chicago Citations

Bibliography entry:

"Mr. Clay's Compromise on the Slavery Question." *New York Herald*, January 31, 1850, 2. House Divided Project, Dickinson College.

Footnote citation:

"Mr. Clay's Compromise on the Slavery Question," *New York Herald*, January 31, 1850, 2, via House Divided, https://hd.housedivided.dickinson.edu/node/2049.

Shortened citation:

"Mr. Clay's Compromise," *New York Herald*.

PRIMARY SOURCE P13.65

Speech of the Hon. Henry Clay, of Kentucky, on Taking Up His Compromise Resolutions on the Subject of Slavery (excerpt)

Henry Clay · Senate, February 5–6, 1850 (Washington: Gideon, 1850)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Clay presents his resolutions as a single act of mutual concession to save the Union.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Henry Clay (1777–1852), the Kentucky Whig who had shaped the Missouri Compromise and the tariff compromise of 1833, returned to the Senate in 1849 at seventy-two. In January 1850 he offered eight resolutions meant to settle every open question about slavery at once.

Over two days in February he defended the package before packed galleries, asking each section to give up something for the sake of the Union.

Editorial note: The text follows the Internet Archive scan of the 1850 pamphlet. OCR spellings such as "subjeet" have been kept as scanned. The plan's second listing of this speech is printed here as one entry.

Document Text

[. . .]

Sir, when I came to consider this subjeet, there were two or three general purposes which itseemed to me to be most desirable, if possible, to accomplish. The one was, to settle all the controverted questions arising out of the subject of slavery. It seemed to me to be doing very little if we settled one question and left other distracting questions unadjusted, it seemed to me to be doing but little if we stopped one leak only in the ship of State, and left other leaks capable of producing danger, if not destruction, to the vessel. I therefore, turned my attention to every subject connected with the institution of slavery, and out of which controverted questions had sprung, to see if it were possible or practicable to accommodate and adjust the whole of them. Another principal object which attracted my attention was, to endeavor to form such a scheme of accommodation that neither of the two classes of States into which our country is so unhappily divided should make any sacrifice of any great principle. I believe, «ir, the series of resolutions which I have had the honor to present to the Se tate accomplishes that object.

Sir, another purpose which I had in view was this : I was aware of the difference of opinion prevailing between these two classes of States. I was aware that, while one portion of the Union was pushing matters, as it seemed to me, to the greatest extremity, another portion of the Union was pushing them to an opposite, perhaps not less dangerous extremity. It appeared to me, then, that if any arrangement, any satisfactory adjustment could be made of the controverted questions between the two classes of States, that adjustment, that arrangement, could only be successful and effectual by extracting from both parties some concessions — not of principle, not of principle at all, but of fecliug, of opinion, in relation to matters in

controversy between them. Sir, I believe the resolutions which I have preparea fulfi Ithat object. I believe, sir, that you will find, upon that careful, rational, and attentive examination of them which I think they deserve, that neither party in some of them make any concession at all ; in others the concessions of forbearance are mutual ; and in the third place, in reference to the slaveholding States, there are resolutions making concessions to them by

the opposite class of States, without any compensation whatever being rendered by them to the non-slaveholding States. I think every one of these characteristics which I have assigned, and the measures which I proposed, is susceptible of clear and satisfactory demonstration by an attentive perusal and critical examination of the resolutions themselves. Let us take up the first resolution.

[. . .]

Sir, it is no concession, I repeat, from one class of States or from the other. It is an object in which both of them, it seems to me, should heartily unite, and which the one side as much as the other should rejoice in adopting, inasmuch as it lessens one of the causes of inquietude and dissatisfactio.i which are. connected with this District. Abolish the slave-trade in this district ; re-assert the doctrine of the resolution of 1838, that by an implied assent on the part of Congress slavery ought not to be abolished in the District of Columbia, while it remains in the State of Maryland ; re-assert the principle of that resolution, and adopt tho ether healing measures — or other similar or more healing measures — for I am not attached to any thing that is the production of my own hand, if any thing better should be offered by any body else — adopt the other healing measures which are proposed, and which are required by the distracted condition of the country, and I venture to say that, as we have had peace and quiet for the last twenty years, since the termination of the Missouri controversy, we shall have, in all human probability, peace for a longer period to come upon this unhappy subject of slavery.

[. . .]

Such, Mr. President, is the series of resolutions which in an earnest and anxious desire to present the olive branch to both parts of this distracted, and at the present moment unhappy country, I have thought it my duty to offer. Of all men upon earth I am the least attached to any productions of my own mind. No man upon earth is more ready than I am to surrender any thing which I have proposed, and to accept in lieu of it any thing thai is brtter; but I put it to the candor of honorable Senators on the. other side and upon all sides of the Hoi se, whether their duty will be perfornu d by simply limi;iug themselves to objections to any one or to all of the series of resolutons that I have offered. If my plan of peace, and accommodation, and harmony, is not right, present us your plan. Let us see the counter project. Let. ns see how all the qufBtions that have arisen out of this unhappy subject of slavery can be better settled, mire fairly and justly settled to all quarters of the Union, than on the plan proposed in the resolutions which I have offered. Present me such a scheme, and I will hail it wiih pleasure, and will accept it without the slightest feeling of regret th t my own was abandoned. Sir, while I was engaged in anxious consideration upon this subject, the idea of the Missouri compromise, as it has been termed, came under my review, was considered by me, and finally rejected as in my judgment less worthy of the common acceptance of both parts of this Union than the project which I have off-red for your consideration.

[. . .]

Chicago Citations

Bibliography entry:

Clay, Henry. *Speech of the Hon. Henry Clay, of Kentucky, on Taking Up His Compromise Resolutions on the Subject of Slavery, Delivered in Senate, Feb. 5th and 6th, 1850*. Washington, DC: Gideon, 1850. Internet Archive.

Footnote citation:

Henry Clay, *Speech on Taking Up His Compromise Resolutions on the Subject of Slavery* (Washington, DC: Gideon, 1850), [page], https://archive.org/details/speechofhonhenry00clay.

Shortened citation:

Clay, *Speech on His Compromise Resolutions*, [page].

PRIMARY SOURCE P13.66

The Clay Compromise Measures ("The Causes by Which the Union Is Endangered") (excerpt)

John C. Calhoun · Senate, March 4, 1850 (read by James M. Mason)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Calhoun demands guarantees the Compromise never gave the South, so for him it could be only a truce.
TREATMENT	Public-domain text, selected excerpts

Historical Context

John C. Calhoun was dying of tuberculosis when he answered Clay's proposals. Too weak to speak, he sat in the Senate chamber while Senator James M. Mason of Virginia read his speech. He died on March 31.

Calhoun argued that the balance between the sections had been destroyed by northern growth and federal policy. Only a "full and final settlement," including equal rights in the territories and a constitutional amendment restoring the South's power, could save the Union.

Editorial note: The text follows the civilwarcauses.org transcription from Richard K. Crallé's edition of Calhoun's works.

Document Text

[. . .]

Michigan was the first case in which there was any departure from the uniform rule of acting. Hers was a very slight departure from established usage. The ordinance of 1787 secured to her the right of becoming a State, when she should have 60,000 inhabitants. Owing to some neglect, Congress delayed taking the census. In the mean time her population increased, until it clearly exceeded more than twice the number which entitled her to admission. At this stage, she formed a constitution and government, without a census being taken by the United States, and Congress waived the omission, as there was no doubt she had more than a sufficient number to entitle her to admission. She was not admitted at the first session she applied, owing to some difficulty respecting the boundary between her and Ohio. The great irregularity, as to her admission, took place at the next session—but on a point which can have no possible connection with the case of California.

[. . .]

Having now shown what cannot save the Union, I return to the question with which I commenced, How can the Union be saved? There is but one way by which it can with any certainty; and that is, by a full and final settlement, on the principle of justice, of all the questions at issue between the two sections. The South asks for justice, simple justice, and less she ought not to take. She has no compromise to offer, but the constitution; and no concession or surrender to make. She has already surrendered so much that she has little left to surrender. Such a settlement would go to the root of the evil, and remove all cause of discontent, by satisfying the South, she could remain honorably and safely in the Union, and thereby restore the harmony and fraternal feelings between the sections which existed anterior to the Missouri agitation. Nothing else can, with any certainty, finally and for ever settle the questions at issue, terminate agitation, and save the Union.

But can this be done? Yes, easily; not by the weaker party, for it can of itself do nothing—not even protect itself—but by the stronger. The North has only to will it to accomplish it—to do justice by conceding to the South an equal right in the acquired territory, and to do her duty by causing the stipulations relative to fugitive slaves to be faithfully fulfilled—to cease the agitation of the slave question, and to provide for the insertion of a provision in

the constitution, by an amendment, which will restore to the South, in substance, the power she possessed of protecting herself, before the equilibrium between the sections was destroyed by the action of this Government. There will be no difficulty in devising such a provision—one that will protect the South, and which, at the same time, will improve and strengthen the Grovernment, instead of impairing and weakening it.

But will the North agree to this? It is for her to answer the question. But, I will say, she cannot refuse, if she has half the love of the Union which she professes to have, or without justly exposing herself to the charge that her love of power and aggrandizement is far greater than her love of the Union. At all events, the responsibility of saving the Union rests on the North, and not on the South. The South cannot save it by any act of hers, and the North may save it without any sacrifice whatever, unless to do justice, and to perform her duties under the constitution, should be regarded by her as a sacrifice.

It is time, Senators, that there should be an open and manly avowal on all sides, as to what is intended to be done. If the question is not now settled, it is uncertain whether it ever can hereafter be; and we, as the representatives of the States of this Union, regarded as governments, should come to a distinct understanding as to our respective views, in order to ascertain whether the great questions at issue can be settled or not. If you, who represent the stronger portion, cannot agree to settle them on the broad principle of justice and duty, say so; and let the States we both represent agree to separate and part in peace. If you are unwilling we should part in peace, tell us so, and we shall know what to do, when you reduce the question to submission or resistance. If you remain silent, you will compel us to infer by your acts what you intend. In that case, California will become the test question. If you admit her, under all the difficulties that oppose her admission, you compel us to infer that you intend to exclude us from the whole of the acquired territories, with the intention of destroying, irretrievably, the equilibrium between the two sections. We would be blind not to perceive in that case, that your real objects are power and aggrandizement, and infatuated not to act accordingly.

I have now, Senators, done my duty in expressing my opinions fully, freely, and candidly, on this solemn occasion. In doing so, I have been governed by the motives which have governed me in all the stages of the agitation of the slavery question since its commencement. I have exerted myself, during the whole period, to arrest it, with the intention of saving the Union, if it could be done; and if it could not, to save the section where it has pleased Providence to cast my lot, and which I sincerely believe has justice and the constitution on its side. Having faithfully done my duty to the best of my ability, both to the Union and my section, throughout this agitation, I shall have the consolation, let what will come, that I am free from all responsibility.

Chicago Citations

Bibliography entry:

Calhoun, John C. Speech on the Slavery Question, March 4, 1850. In *The Works of John C. Calhoun*, edited by Richard K. Crallé, vol. 4, 542–73. New York: D. Appleton, 1854. Transcription at civilwarcauses.org.

Footnote citation:

John C. Calhoun, speech in the Senate, March 4, 1850, in *The Works of John C. Calhoun*, ed. Richard K. Crallé (New York: D. Appleton, 1854), 4:542–73, via https://civilwarcauses.org/JCC-Last.htm.

Shortened citation:

Calhoun, speech, March 4, 1850.

PRIMARY SOURCE P13.67

The Constitution and the Union (Seventh of March Speech) (excerpt)

Daniel Webster · Senate, March 7, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Webster urges northerners to accept the Fugitive Slave Act for the Union's sake, and the reaction shows why the law enraged New England.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Daniel Webster (1782–1852) of Massachusetts, the North's most celebrated orator, opened this speech with the words "I wish to speak to-day, not as a Massachusetts man, nor as a Northern man, but as an American."

Webster backed Clay's compromise, argued that geography would keep slavery out of New Mexico and Utah anyway, and told northerners that they were bound to return fugitive slaves. Abolitionists and many former admirers in New England denounced him as a traitor.

Editorial note: The text follows the *Congressional Globe* appendix as transcribed at civilwarcauses.org. The plan's second listing of this speech is printed here as one entry.

Document Text

[. . .]

Mr. WEBSTER. I beg to express my obligations to my friend from Wisconsin (Mr. WALKER), as well as to my friend from New York (Mr. SEWARD), for their courtesy in allowing me to address the Senate this morning.

Mr. President, I wish to speak to-day, not as a Massachusetts man, nor as a Northern man, but as an American, and a member of the Senate of the United States.

It is fortunate that there is a Senate of the United States; a body, not yet moved from its propriety, not lost to a just sense of its own dignity, and its own high responsibilities, and a body to which the country looks, with confidence, for wise, moderate, patriotic, and healing counsels. It is not to be denied that we live in the midst of strong agitations, and are surrounded by very considerable dangers to our institutions and government. The imprisoned winds are let loose. The East, the North, and the stormy South, combine to throw the whole ocean into commotion, to toss its billows to the skies, and disclose its profoundest depths. I do not affect to regard myself, Mr. President, as holding, or as fit to hold, the helm in this combat with the political elements; but I have a duty to perform, and I mean to perform it with fidelity, not without a sense of existing dangers, but not without hope. I have a part to act, not for my own security or safety, for I am looking out for no fragment upon which to float away from the wreck, if wreck there must be, but for the good of the whole, and the preservation of all; and there is that which will keep me to my duty during this struggle, whether the sun and the stars shall appear, or shall not appear, for many days. I speak to-day for the preservation of the Union. "Hear me for my cause." I speak, to-day, out of a solicitous and anxious heart, for the restoration to the country of that quiet and that harmony which make the blessings of this Union so rich and so dear to us all. These are the topics that I propose to myself to discuss; these are the motives, and the sole motives, that influence me in the wish to communicate my opinions to the Senate and the country; and if I can do anything, however little, for the promotion of these ends, I shall have accomplished all that I expect.

[. . .]

The Constitution does not require that "fugitive slaves" shall be delivered up. It requires that "persons bound to service in one State, and escaping into another, shall be delivered up." Mr. Madison opposed the introduction of the term slave, or slavery, into the Constitution; for, he said that he did not wish to see it recognized by the Constitution of the United States of America, that there could be property in men. Now, sir, all this took place at the Convention in 1787; but, connected with this, concurrent and cotemporaneous, is another important transaction not sufficiently attended to. The Convention for framing this Constitution assembled in Philadelphia in May, and sat until September, 1787. During all that time, the Congress of the United States was in session at New York. It was a matter of design, as we know, that the Convention should not assemble in the same city where Congress was holding its sessions. Almost all the public men of the country, therefore, of distinction and eminence, were in one or the other of these two assemblies; and I think it happened, in some instances, that the same gentlemen were members of both. If I mistake not, such was the case of Mr. Rufus King, then a member of Congress from Massachusetts, and at the same time a member of the Convention to frame the Constitution. Now, it was in the summer of 1787, the very time when the Convention in Philadelphia was framing this Constitution, that the Congress in New York was framing the ordinance of 1787.

They passed that ordinance on the 13th July, 1787, at New York, the very month, perhaps the very day, on which these questions, about the importation of slaves and the character of slavery, were debated in the Convention at Philadelphia. And, so far as we can now learn, there was a perfect concurrence of opinion between these respective bodies; and it resulted in this ordinance of 1787, excluding slavery as to all the territory over which the Congress of the United States had jurisdiction, and that was, all the territory northwest of the Ohio. Three years before, Virginia and other States had made a cession of that great territory to the United States. And a most magnificent act it was. I never reflect upon it without a disposition to do honor and justice, and justice would be the highest honor, to Virginia, for the cession of her northwestern territory. I will say, sir, it is one of her fairest claims to the respect and gratitude of the United States, and that, perhaps, it is only second to that other claim which attaches to her; that, from her counsels, and from the intelligence and patriotism of her leading statesmen, proceeded the first idea put into practice of the formation of a general constitution of the United States. Now, sir, the ordinance of 1787 was applied thus to the whole territory over which the Congress of the United States had jurisdiction. It was adopted two years before the Constitution of the United States went into operation; because the ordinance took effect immediately on its passage, while the Constitution of the United States, having been framed, was to be sent to the States to be adopted by their Conventions; and then a government was to be organized under it. This ordinance, then, was in operation and force when the Constitution was adopted and the Government put in motion, in April, 1789.

[. . .]

Chicago Citations

Bibliography entry:

Webster, Daniel. "The Constitution and the Union." Speech in the U.S. Senate, March 7, 1850. *Congressional Globe*, 31st Cong., 1st Sess., Appendix, 269–76. Transcription at civilwarcauses.org.

Footnote citation:

Daniel Webster, speech in the Senate, March 7, 1850, *Congressional Globe*, 31st Cong., 1st Sess., Appendix, 269–76.

Shortened citation:

Webster, Seventh of March speech.

PRIMARY SOURCE P13.68

Freedom in the New Territories ("Higher Law" Speech) (excerpt)

William H. Seward · Senate, March 11, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Seward rejects any compromise with slavery and appeals to a higher law, showing that antislavery northerners never accepted the deal as final.
TREATMENT	Open-edition substitution, selected excerpts

Historical Context

William H. Seward (1801–1872), a first-term Whig senator and former governor of New York, spoke against Clay's compromise four days after Daniel Webster supported it.

Seward opposed any compromise that traded concessions on slavery for California's admission. He declared that "there is a higher law than the Constitution" governing the use of the national domain. Southerners never forgave the phrase.

Editorial note: The planned Senate page gives only a summary. This reader prints the speech as quoted at length in William O. Blake's 1860 history of slavery, transcribed on Wikisource; Blake's printing condenses some passages.

Document Text

[. . .]

"But it is insisted that the admission of California shall be attended by a compromise of questions which have arisen out of slavery!

I am opposed to any such compromise, in any and all the forms in which it has been proposed; because, while admitting the purity and the patriotism of all from whom it is my misfortune to differ, I think all legislative compromises, which are not absolutely necessary, radically wrong and essentially vicious. They involve the surrender of the exercise of judgment and conscience on distinct and separate questions, at distinct and separate times, with the indispensable advantages it affords for ascertaining truth. They involve a relinquishment of the right to reconsider in future the decisions of the present, on questions prematurely anticipated. And they are acts of usurpation as to future questions of the province of future legislators.

Sir, it seems to me as if slavery had laid its paralyzing hand upon myself, and the blood were coursing less freely than its wont through my veins, when I endeavor to suppose that such a compromise has been effected, and that my utterance for ever is arrested upon all the great questions — social, moral, and political — arising out of a subject so important, and yet so incomprehensible.

What am I to receive in this compromise? Freedom in California. It is well; it is a noble acquisition; it is worth a sacrifice. But what am I to give as an equivalent? A recognition of the claim to perpetuate slavery in the District of Columbia; forbearance toward more stringent laws concerning the arrest of persons suspected of being slaves found in the free states; forbearance from the proviso of freedom in the charters of new territories. None of the plans of compromise offered demand less than two, and most of them insist on all of these conditions. The equivalent, then, is some portion of liberty, some portion of human rights in one region for liberty in another region. But California brings gold and commerce as well as freedom. I am, then, to surrender some portion of human freedom in the District of Columbia, and in East California and New Mexico, for the mixed consideration of

liberty, gold, and power on the Pacific coast. But, sir, if I could overcome my repugnance to compromises in general, I should object to this one, on the ground of the inequality and incongruity of the interests to be compromised. Why, sir, according to the views I have submitted, California ought to come in, and and must come.in, whether slavery stand or fall in the District of Columbia; whether slavery stand or fall in New Mexico and Eastern California; and even whether slavery stand or fall in the slave states. California ought to come in, being a free state; and, under the circumstances of her conquest, her compact, her abandonment, her justifiable and necessary establishment of a constitution, and the inevitable dismemberment of the empire consequent upon her rejection, I should have voted for her admission even if she had come as a slave state. California ought to come in, and must come in at all events. It is, then, an independent, a paramount question. What, then, are these questions arising out of slavery, thus interposed, but collateral questions? They are unnecessary and incongruous, and therefore false issues, not introduced designedly, indeed, to defeat that great policy, yet unavoidably tending to that end.

[. . .]

But there is yet another aspect in which this principle must be examined. It regards the domain only as a possession, to be enjoyed either in common or by partition by the citizens of the old states. It is true, indeed, that the national domain is ours. It is true it was acquired by the valor and with the wealth of the whole nation. But we hold no arbitrary authority over it. We hi)ld no arbitrary authority over anything, whether acquired lawfully or seized by usurpation. The constitution regulates our stewardship; the constitution devotes the domain to union, to justice, to defense, to welfare, and to liberty

But there is a higher law than the constitution, which regulates our authority over the domain, and devotes it to the same noble purposes. The territory is a part, no inconsiderable part, of the common heritage of mankind, bestowed upon them by the Creator of the Universe. We are his stewards, and must so discharge our trust as to secure in the highest degree their happiness

[. . .]

Chicago Citations

Bibliography entry:

Seward, William H. Speech in the U.S. Senate, March 11, 1850. In William O. Blake, *The History of Slavery and the Slave Trade, Ancient and Modern*, chap. 30. Columbus, OH: J. & H. Miller, 1860. Wikisource.

Footnote citation:

William H. Seward, speech in the Senate, March 11, 1850, in William O. Blake, *The History of Slavery and the Slave Trade, Ancient and Modern* (Columbus, OH: J. & H. Miller, 1860), chap. 30, via Wikisource.

Shortened citation:

Seward, speech, March 11, 1850.

PRIMARY SOURCE P13.69

Resolutions Adopted by the Southern Convention, Nashville, June 1850 (excerpt)

Southern Convention · Nashville, Tennessee, June 8, 1850 (Nashville: Harvey M. Watterson, 1850)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Southern rights delegates state their terms while Congress debates, showing how close disunion seemed in 1850.
TREATMENT	Public-domain text, selected resolutions (from OCR transcription)

Historical Context

At John C. Calhoun's urging, delegates from nine slaveholding states met at Nashville in June 1850 while Congress debated Clay's proposals. Radicals hoped the meeting would prepare the South for secession; moderates kept it cautious.

The convention resolved that the territories were the common property of all the states and that slaveholders had an equal right to take their property there. As a last resort it would accept extending the Missouri Compromise line to the Pacific.

Editorial note: The text follows the Internet Archive scan of the 1850 pamphlet. OCR errors such as "Resoloed" have been kept as scanned. Where the scan reads "30 deg, 30 min.," the printed pamphlet refers to the line of 36° 30'.

Document Text

[. . .]

Nashville, June 8, 1850.

1. Resoloed, That the territories of the United States belong to the people of the several States of this Union as their common property. That the citizens of the several States have equal rights to migrate with their property to these territories, and are equally entitled to the protection of the federal government in the enjoyment of that property so long as the territories remain under the charge of that government.

2. Resolved, That Congress has no power to exclude from the territory of the United States any property lawfully held in the the States of the Union and any act which may be passed by Congress to effect this result is a plain violation of the Constitution of the United States.

[. . .]

11. Resolved, That in the event a dominant majority shall refuse to recognize the great constitutional rights we assert, and shall continue to deny the obligations of the Federal Government to maintain them, it is the sense of this convention that the territories should be treated as property, and divided between the sections of the Union, so that the rights of both sections be adequately secured in their respective shares. That we are aware this course is open to grave objections, but we are ready to acquiesce in the adoption ot the line of 30 deg, 30 min. north latitude, extending to the Pacific ocean, as an extreme concession, upon considerations of what is due to the stability of our institutions.

[. . .]

Chicago Citations

Bibliography entry:

Southern Convention. *Resolutions and Address, Adopted by the Southern Convention, Held at Nashville, Tennessee, June 3d to 12th, Inclusive, in the Year 1850*. Nashville: Harvey M. Watterson, 1850. Internet Archive.

Footnote citation:

Resolutions and Address, Adopted by the Southern Convention, Held at Nashville, Tennessee (Nashville: Harvey M. Watterson, 1850), [page], https://archive.org/details/resolutionsaddre00sout.

Shortened citation:

Resolutions of the Southern Convention, [page].

PRIMARY SOURCE P13.70

Fugitive Slave Act of 1850

U.S. Congress · September 18, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The law's own provisions explain why it radicalized northern opinion.
TREATMENT	Full public-domain text

Historical Context

The new fugitive slave law was part of the Compromise of 1850 and the concession that mattered most to the Deep South. It replaced the weak law of 1793.

It created federal commissioners to hear cases, denied alleged fugitives a jury trial or the right to testify, required citizens to help capture runaways when called on, and paid a commissioner ten dollars when he returned a person to slavery but only five when he set the person free.

Editorial note: The text follows the Avalon Project transcription from the *Statutes at Large*. The Norton collection's excerpt of this law is printed here as one entry.

Document Text

[. . .]

And be it further enacted, That it shall be the duty of all marshals and deputy marshals to obey and execute all warrants and precepts issued under the provisions of this act, when to them directed; and should any marshal or deputy marshal refuse to receive such warrant, or other process, when tendered, or to use all proper means diligently to execute the same, he shall, on conviction thereof, be fined in the sum of one thousand dollars, to the use of such claimant, on the motion of such claimant, by the Circuit or District Court for the district of such marshal; and after arrest of such fugitive, by such marshal or his deputy, or whilst at any time in his custody under the provisions of this act, should such fugitive escape, whether with or without the assent of such marshal or his deputy, such marshal shall be liable, on his official bond, to be prosecuted for the benefit of such claimant, for the full value of the service or labor of said fugitive in the State, Territory, or District whence he escaped: and the better to enable the said commissioners, when thus appointed, to execute their duties faithfully and efficiently, in conformity with the requirements of the Constitution of the United States and of this act, they are hereby authorized and empowered, within their counties respectively, to appoint, in writing under their hands, any one or more suitable persons, from time to time, to execute all such warrants and other process as may be issued by them in the lawful performance of their respective duties; with authority to such commissioners, or the persons to be appointed by them, to execute process as aforesaid, to summon and call to their aid the bystanders, or posse comitatus of the proper county, when necessary to ensure a faithful observance of the clause of the Constitution referred to, in conformity with the provisions of this act; and all good citizens are hereby commanded to aid and assist in the prompt and efficient execution of this law, whenever their services may be required, as aforesaid, for that purpose; and said warrants shall run, and be executed by said officers, any where in the State within which they are issued.

Section 6

And be it further enacted, That when a person held to service or labor in any State or Territory of the United States, has heretofore or shall hereafter escape into another State or Territory of the United States, the person or persons to whom such service or labor may be due, or his, her, or their agent or attorney, duly authorized, by power of

attorney, in writing, acknowledged and certified under the seal of some legal officer or court of the State or Territory in which the same may be executed, may pursue and reclaim such fugitive person, either by procuring a warrant from some one of the courts, judges, or commissioners aforesaid, of the proper circuit, district, or county, for the apprehension of such fugitive from service or labor, or by seizing and arresting such fugitive, where the same can be done without process, and by taking, or causing such person to be taken, forthwith before such court, judge, or commissioner, whose duty it shall be to hear and determine the case of such claimant in a summary manner; and upon satisfactory proof being made, by deposition or affidavit, in writing, to be taken and certified by such court, judge, or commissioner, or by other satisfactory testimony, duly taken and certified by some court, magistrate, justice of the peace, or other legal officer authorized to administer an oath and take depositions under the laws of the State or Territory from which such person owing service or labor may have escaped, with a certificate of such magistracy or other authority, as aforesaid, with the seal of the proper court or officer thereto attached, which seal shall be sufficient to establish the competency of the proof, and with proof, also by affidavit, of the identity of the person whose service or labor is claimed to be due as aforesaid, that the person so arrested does in fact owe service or labor to the person or persons claiming him or her, in the State or Territory from which such fugitive may have escaped as aforesaid, and that said person escaped, to make out and deliver to such claimant, his or her agent or attorney, a certificate setting forth the substantial facts as to the service or labor due from such fugitive to the claimant, and of his or her escape from the State or Territory in which he or she was arrested, with authority to such claimant, or his or her agent or attorney, to use such reasonable force and restraint as may be necessary, under the circumstances of the case, to take and remove such fugitive person back to the State or Territory whence he or she may have escaped as aforesaid. In no trial or hearing under this act shall the testimony of such alleged fugitive be admitted in evidence; and the certificates in this and the first [fourth] section mentioned, shall be conclusive of the right of the person or persons in whose favor granted, to remove such fugitive to the State or Territory from which he escaped, and shall prevent all molestation of such person or persons by any process issued by any court, judge, magistrate, or other person whomsoever.

Section 7

And be it further enacted, That any person who shall knowingly and willingly obstruct, hinder, or prevent such claimant, his agent or attorney, or any person or persons lawfully assisting him, her, or them, from arresting such a fugitive from service or labor, either with or without process as aforesaid, or shall rescue, or attempt to rescue, such fugitive from service or labor, from the custody of such claimant, his or her agent or attorney, or other person or persons lawfully assisting as aforesaid, when so arrested, pursuant to the authority herein given and declared; or shall aid, abet, or assist such person so owing service or labor as aforesaid, directly or indirectly, to escape from such claimant, his agent or attorney, or other person or persons legally authorized as aforesaid; or shall harbor or conceal such fugitive, so as to prevent the discovery and arrest of such person, after notice or knowledge of the fact that such person was a fugitive from service or labor as aforesaid, shall, for either of said offences, be subject to a fine not exceeding one thousand dollars, and imprisonment not exceeding six months, by indictment and conviction before the District Court of the United States for the district in which such offence may have been committed, or before the proper court of criminal jurisdiction, if committed within any one of the organized Territories of the United States; and shall moreover forfeit and pay, by way of civil damages to the party injured by such illegal conduct, the sum of one thousand dollars for each fugitive so lost as aforesaid, to be recovered by action of debt, in any of the District or Territorial Courts aforesaid, within whose jurisdiction the said offence may have been committed.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Amend, and Supplementary to, the Act Entitled 'An Act Respecting Fugitives from Justice, and Persons Escaping from the Service of Their Masters.'" September 18, 1850. *United States Statutes at Large* 9:462. Avalon Project, Yale Law School.

Footnote citation:

Fugitive Slave Act, September 18, 1850, sec. [number], *Statutes at Large* 9:462, via Avalon Project, https://avalon.law.yale.edu/19th_century/fugitive.asp.

Shortened citation:

Fugitive Slave Act, sec. [number].

PRIMARY SOURCE P13.71

Incidents in the Life of a Slave Girl, Chapter XL: "The Fugitive Slave Law"

Harriet A. Jacobs ("Linda Brent") · 1861

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	A fugitive living in New York describes how the 1850 law made the free states unsafe for anyone who had escaped.
TREATMENT	Public-domain text (full chapter)

Historical Context

Harriet Jacobs (1813–1897) escaped slavery in Edenton, North Carolina, after hiding for nearly seven years in a crawl space in her grandmother's house. She reached the North in 1842 and worked in New York as a nursemaid for the family of the writer Nathaniel Parker Willis.

Her narrative, published under the pseudonym Linda Brent and edited by Lydia Maria Child, appeared in 1861. This chapter describes the terror the Fugitive Slave Act brought to Black New Yorkers and her own flight to Massachusetts to avoid capture.

Editorial note: Jacobs changed names in her narrative; "Linda Brent" is Jacobs herself. The text follows the Wikisource transcription of the 1861 edition.

Document Text

XL.

THE FUGITIVE SLAVE LAW.

My brother, being disappointed in his project, concluded to go to California; and it was agreed that Benjamin should go with him. Ellen liked her school, and was a great favorite there. They did not know her history, and she did not tell it, because she had no desire to make capital out of their sympathy. But when it was accidentally discovered that her mother was a fugitive slave, every method was used to increase her advantages and diminish her expenses.

I was alone again. It was necessary for me to be earning money, and I preferred that it should be among those who knew me. On my return from Rochester, I called at the house of Mr. Bruce, to see Mary, the darling little babe that had thawed my heart, when it was freezing into a cheerless distrust of all my fellow-beings. She was growing a tall girl now, but I loved her always. Mr. Bruce had married again, and it was proposed that I should become nurse to a new infant. I had but one hesitation, and that was my feeling of insecurity in New York, now greatly increased by the passage of the Fugitive Slave Law. However, I resolved to try the experiment. I was again fortunate in my employer. The new Mrs. Bruce was an American, brought up under aristocratic influences, and still living in the midst of them; but if she had any prejudice against color, I was never made aware of it; and as for the system of slavery, she had a most hearty dislike of it. No sophistry of Southerners could blind her to its enormity. She was a person of excellent principles and a noble heart. To me, from that hour to the present, she has been a true and sympathizing friend. Blessings be with her and hers!

About the time that I reëntered the Bruce family, an event occurred of disastrous import to the colored people. The slave Hamlin, the first fugitive that came under the new law, was given up by the bloodhounds of the north to the bloodhounds of the south. It was the beginning of a reign of terror to the colored population. The great city rushed on in its whirl of excitement, taking no note of the "short and simple annals of the poor." But while fashionables

were listening to the thrilling voice of Jenny Lind in Metropolitan Hall, the thrilling voices of poor hunted colored people went up, in an agony of supplication, to the Lord, from Zion's church. Many families, who had lived in the city for twenty years, fled from it now. Many a poor washerwoman, who, by hard labor, had made herself a comfortable home, was obliged to sacrifice her furniture, bid a hurried farewell to friends, and seek her fortune among strangers in Canada. Many a wife discovered a secret she had never known before—that her husband was a fugitive, and must leave her to insure his own safety. Worse still, many a husband discovered that his wife had fled from slavery years ago, and as "the child follows the condition of its mother," the children of his love were liable to be seized and carried into slavery. Every where, in those humble homes, there was consternation and anguish. But what cared the legislators of the "dominant race" for the blood they were crushing out of trampled hearts?

When my brother William spent his last evening with me, before he went to California, we talked nearly all the time of the distress brought on our oppressed people by the passage of this iniquitous law; and never had I seen him manifest such bitterness of spirit, such stern hostility to our oppressors. He was himself free from the operation of the law; for he did not run from any Slaveholding State, being brought into the Free States by his master. But I was subject to it; and so were hundreds of intelligent and industrious people all around us. I seldom ventured into the streets; and when it was necessary to do an errand for Mrs. Bruce, or any of the family, I went as much as possible through back streets and by-ways. What a disgrace to a city calling itself free, that inhabitants, guiltless of offence, and seeking to perform their duties conscientiously, should be condemned to live in such incessant fear, and have nowhere to turn for protection! This state of things, of course, gave rise to many impromptu vigilance committees. Every colored person, and every friend of their persecuted race, kept their eyes wide open. Every evening I examined the newspapers carefully, to see what Southerners had put up at the hotels. I did this for my own sake, thinking my young mistress and her husband might be among the list; I wished also to give information to others, if necessary; for if many were "running to and fro," I resolved that "knowledge should be increased."

[. . .]

Chicago Citations

Bibliography entry:

Jacobs, Harriet A. [Linda Brent, pseud.]. *Incidents in the Life of a Slave Girl*. Edited by L. Maria Child. Boston: Published for the Author, 1861. Wikisource.

Footnote citation:

Harriet A. Jacobs, *Incidents in the Life of a Slave Girl*, ed. L. Maria Child (Boston, 1861), chap. 40, via Wikisource.

Shortened citation:

Jacobs, *Incidents*, chap. 40.

PRIMARY SOURCE P13.72

The Rev. J. W. Loguen, as a Slave and as a Freeman (excerpt: Loguen's speech at Syracuse, October 4, 1850)

Jermain Wesley Loguen · speech of October 4, 1850 (Syracuse: J. G. K. Truair, 1859)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	A fugitive minister vows open resistance to the 1850 law before a northern audience.
TREATMENT	Public-domain text, selected excerpt

Historical Context

Jermain Wesley Loguen (1813–1872) escaped slavery in Tennessee, became an African Methodist Episcopal Zion minister in Syracuse, New York, and ran a busy station on the Underground Railroad.

Days after the Fugitive Slave Act passed, Loguen told a public meeting in Syracuse that he would not be taken back and urged the city to resist. In October 1851 Syracuse residents broke a fugitive named William "Jerry" Henry out of federal custody. Loguen's 1859 narrative, written in the third person, reprints the speech.

Editorial note: The narrative was published anonymously in 1859, and some scholars think another writer helped prepare it. The text follows the Documenting the American South transcription.

Document Text

[. . .]

"He was a slave; he knew the dangers he was exposed to. He had made up his mind as to the course he was to take. On that score he needed no counsel, nor did the colored citizens generally. They had taken their stand--they would not be taken back to slavery. If to shoot down their assailants should forfeit their lives, such result was the least of the evil. They will have their liberties or die in their defence. What is life to me if I am to be a slave in Tennessee? My neighbors! I have lived with you many years, and you know me. My home is here, and my children were born here. I am bound to Syracuse by pecuniary interests, and social and family bonds. And do you think I can be taken away from you and from my wife and children, and be a slave in Tennessee? Has the President and his Secretary sent this enactment up here, to you, Mr. Chairman, to enforce on me in Syracuse?--and will you obey him? Did I think so meanly of you--did I suppose the people of Syracuse, strong as they are in numbers and love of liberty--or did I believe their love of liberty was so selfish, unmanly and unchristian--did I believe them so sunken and servile and degraded as to remain at their homes and labors, or, with none of that spirit which smites a tyrant down, to surround a United States Marshal to see me torn from my home and family, and hurled back to bondage--I say did I think so meanly of you, I could never come to live with you. Nor should I have stopped, on my return from Troy, twenty-four hours since, but to take my family and moveables to a neighborhood which would take fire, and arms, too, to resist the least attempt to execute this diobolical law among them. Some kind and good friends advise me to quit my country, and stay in Canada, until this tempest is passed. I doubt not the sincerity of such counsellors. But my conviction is strong, that their advice comes from a lack of knowledge of themselves and the case in hand. I believe that their own bosoms are charged to the brim with qualities that will smite to the earth the villains who may interfere to enslave any man in Syracuse. I apprehend the advice is suggested by the perturbation of the moment, and not by the tranquil spirit that rules above the storm, in the eternal home of truth and wisdom. Therefore have I hesitated to adopt this advice, at least until I have the opinion of this meeting. Those friends have not canvassed this subject. I have. They are called suddenly to look at it, I have looked at it steadily, calmly,

resolutely, and at length defiantly, for a long time. I tell you the people of Syracuse and of the whole North must meet this tyranny and crush it by force, or be crushed by it. This hellish enactment has precipitated the conclusion that white men must live in dishonorable submission, and colored men be slaves, or they must give their physical as well as intellectual powers to the defence of human rights. The time has come to change the tones of submission into tones of defiance,--and to tell Mr. Fillmore and Mr. Webster, if they propose to execute this measure upon us, to send on their bloodhounds. Mr. President, long ago I was beset by over prudent and good men and women to purchase my freedom. Nay, I was frequently importuned to consent that they purchase it, and present it as an evidence of their partiality to my person and character. Generous and kind as those friends were, my heart recoiled from the proposal. I owe my freedom to the God who made me, and who stirred me to claim it against all other beings in God's universe. I will not, nor will I consent, that, any body else shall countenance the claims of a vulgar despot to my soul and body. Were I in chains, and did these kind people come to buy me out of prison, I would acknowledge the boon with inexpressible thankfulness. But I feel no chains, and am in no prison. I received my freedom from Heaven, and with it came the command to defend my title to it. I have long since resolved to do nothing and suffer nothing that can, in any way, imply that I am indebted to any power but the Almighty for my manhood and personality.

Now, you are assembled here, the strength of this city is here to express their sense of this fugitive act, and to proclaim to the despots at Washington whether it shall be enforced here--whether you will permit the government to return me and other fugitives who have sought an asylum among you, to the Hell of slavery. The question is with you. If you will give us up, say so, and we will shake the dust from our feet and leave you. But we believe better things. We know you are taken by surprize. The immensity of this meeting testifies to the general consternation that has brought it together, necessarily, precipitately, to decide the most stirring question that can be presented, to wit, whether, the government having transgressed constitutional and natural limits, you will bravely resist its aggressions, and tell its soulless agents that no slave-holder shall make your city and county a hunting field for slaves.

"Whatever may be your decision, my ground is taken. I have declared it everywhere. It is known over the State and out of the State--over the line in the North, and over the line in the South. I don't respect this law--I don't fear it--I won't obey it! It outlaws me, and I outlaw it, and the men who attempt to enforce it on me. I place the governmental officials on the ground that they place me. I will not live a slave, and if force is employed to re-enslave me, I shall make preparations to meet the crisis as becomes a man. If you will stand by me--and I believe you will do it, for your freedom and honor are involved as well as mine--it requires no microscope to see that--I say if you will stand with us in resistance to this measure, you will be the saviours of your country. Your decision to-night in favor of resistance will give vent to the spirit of liberty, and it will break the bands of -party, and shout for joy all over the North. Your example only is needed to be the type of popular action in Auburn, and Rochester, and Utica, and Buffalo, and all the West, and eventually in the Atlantic cities. Heaven knows that this act of noble daring will break out somewhere--may God grant that Syracuse be the honored spot, whence it shall send an earthquake voice through the land!"

The words of a strong and brave man in the hour of peril fall like coals of fire on human hearts. The people knew Mr. Loguen and loved him. They knew he was a slave, and, trembled for him. They listened with keen sympathy and breathless attention to his brief speech. They knew it was no occasion for Buncomb for any body, and. least of all for him. His manliness and courage in a most trying crisis electrified them. He uncapped the volcano, and oppressed sympathy broke forth in a tempest of applause.

[. . .]

Chicago Citations

Bibliography entry:

[Loguen, Jermain Wesley.] *The Rev. J. W. Loguen, as a Slave and as a Freeman: A Narrative of Real Life*. Syracuse: J. G. K. Truair, 1859. Documenting the American South, University of North Carolina at Chapel Hill.

Footnote citation:

[Jermain Wesley Loguen], *The Rev. J. W. Loguen, as a Slave and as a Freeman* (Syracuse: J. G. K. Truair, 1859), 391–94, via Documenting the American South, https://docsouth.unc.edu/neh/loguen/loguen.html.

Shortened citation:

Loguen, *As a Slave and as a Freeman*, [page].

PRIMARY SOURCE P13.73

Effects of the Fugitive-Slave-Law

Theodor Kaufmann (artist); Hoffy (lithographer) · 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	An abolitionist print designed to make northern viewers see the new law as violence against free people.
TREATMENT	Public-domain image

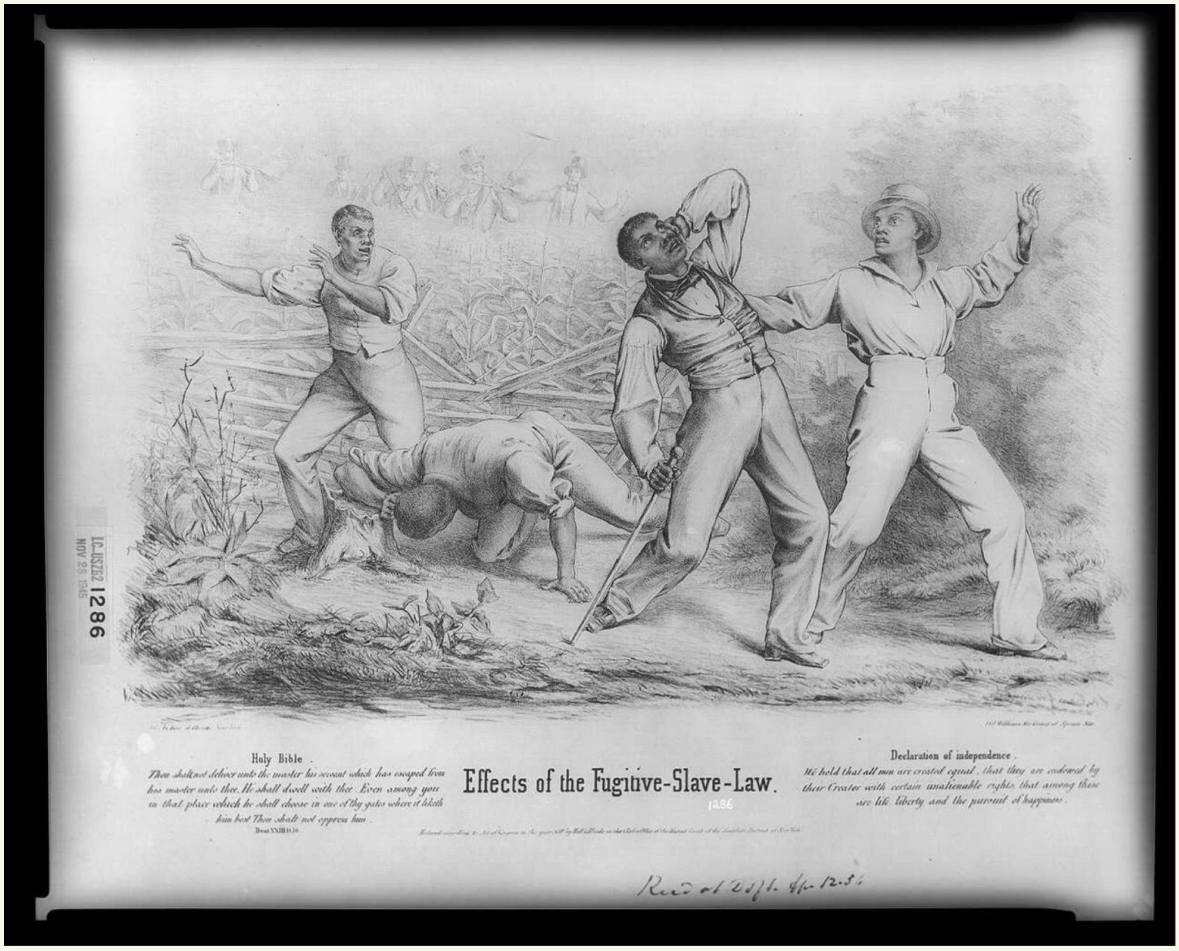
Historical Context

This lithograph was published in New York soon after the Fugitive Slave Act passed in September 1850. Theodor Kaufmann, a German immigrant painter who had taken part in the revolutions of 1848, drew it.

Four Black men are ambushed in a cornfield by a posse, two of whom fire at them. Below the image the printer added a verse from Deuteronomy forbidding the return of a fugitive servant and a passage from the Declaration of Independence.

Editorial note: Image reproduced from the Library of Congress print (via Wikimedia Commons). The print is a work of protest, not a record of an actual event; the caption text printed beneath the image is partly cut off in this reproduction.

Primary Source Image



Effects of the Fugitive-Slave-Law (1850). Library of Congress, Prints and Photographs Division.

Chicago Citations

Bibliography entry:

Kaufmann, Theodor. *Effects of the Fugitive-Slave-Law*. Lithograph. New York: Hoffy, 1850. Prints and Photographs Division, Library of Congress, LC-USZ62-1286.

Footnote citation:

Theodor Kaufmann, *Effects of the Fugitive-Slave-Law*, lithograph (New York: Hoffy, 1850), Library of Congress, https://www.loc.gov/pictures/item/2008661523/.

Shortened citation:

Kaufmann, *Effects of the Fugitive-Slave-Law*.

PRIMARY SOURCE P13.74

Speech of Hon. Stephen A. Douglas, on the "Measures of Adjustment" (excerpt)

Stephen A. Douglas · City Hall, Chicago, October 23, 1850 (Washington, 1851)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The bills' floor manager defends the settlement before a hostile northern crowd, showing both his case and the resistance.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Stephen A. Douglas (1813–1861), the Illinois Democrat who steered the separate compromise bills through the Senate, came home in October 1850 to find Chicago in an uproar. The city council had voted that the Fugitive Slave Act need not be obeyed.

Douglas spoke at City Hall to defend the measures, including the fugitive law, as constitutional duties. The next night the council reversed its resolution.

Editorial note: The text follows the Internet Archive scan of the 1851 pamphlet. One passage is damaged in the scan, and the OCR errors there (such as "thaKany" and "B^t") are reproduced as scanned.

Document Text

[. . .]

MR. DOUGLAS, said:

The agitation on the subject of Slavery now raging through the breadth of the land presents a most extraordinary spectacle. Congress, after a protracted session of nearly ten months, succeeded in passing a system of measures, which are believed to be just to all parts of the Republic, and ought to be satisfactory to the people. The South has not triumphed over the North, nor has the North achieved a victory over the South. Neither party has made any humiliating concessions to the other. Each has preserved its honor, while neither has surrendered an impoitant right, or sacrificed any substantial interest. The measures composing the scheme of adjustment are believed to be in harmony with the principles of justice and the Constitution.

, And yet we find that the agitation is re-opened in the two extremes of the Union with renewed vigor and increased violence. In some of the Southern States, special sessions of the Legislatures are being called for the purpose of organizing systematic and efficient measures of resistance to the execution of the laws of the land, and for the adoption of Disunion as the remedy. In the Northern States, municipal corporations, and other organized bodies of men, are nullifying the acts of Congress, and raising the standard of rebellion against the authority of the Federal Government.

At the South, the measures of adjustment are denounced as a disgraceful s irrender of Southern rights to Northern abolitionism.

At the North, the same 'measures are denounced with equal violence as a total abandonment of the rights of freemen to conciliate the slave power.

The Southern disunionists repudiate the authority of the highest judicial tribunal on earth, upon the ground that it is a pliant and corrupt instrument in the hands of Northern fanaticism.

The Northern nullifiers refuse to submit the points at issue to the same exalted tribunal, upon the ground that the Supreme Court of the United States is a corrupt and supple instrument in the hands of the Southern slave-ocracy.

For these contradictory reasons the people in both sections of the Union are called upon to resist the laws of the land, and the authority of the Federal Government, by violence, even unto death and disunion.

Strange and contradictory positions!

[. . .]

[A person present asked leave to propound another question to Mr. DOUGLAS, which was this: "If the new law is more favorable to freedom than the old one, why did the southern slaveholders vote for it, and desire its passage ?"]

Mr. DOUGLAS said he would answer that question with a great deal of pleasure. The southern members voted for it for the reason that it was a better law than the old one — better for them, better for us, and better for the free blacks. It places the execution of the iaw in the hands of responsible officers of the government, instead of leaving every man to take the law into his own hands and to execute it for himself. It affords personal security to the claimant while arresting his servant and taking him back, by providing him with the opportunity of establishing his legal rights by competent testimony before a tribunal duly authorized to try the case, and thus allay all apprehensions and suspicions, on the part of our citizens, that he is a villain, attempting to steal a free man for the purpose of selling him into slavery. The slaveholder has as strong a desire to protect the rights of the free black man as we have, and much more interest to do so; for he well knows, that if outrages should be tolerated under the law, and free men are seized and carried into slavery; from that moment the indignant outcry against it would be so strong here and everywhere, that even a fugitive from labor could not be returned, lest he also might happen to be free. The interest of the slaveholder, therefore, requires a law which shall protect the rights of all free men, black or white, from any invasion or violation whatever. I ask the question, therefore, whether this law is not better than the old one — better for the North and the South — better for the peace and quiet of the whole country ? Let it be remembered that this law is but an amendment to the act of '93, and that the old law still remains in force, except so far as it is modified by this. Every man who voted against this modification, thereby voted to leave the old law in force; for I am. not aware thaKany member of either House of Congress ever had the hardihood to propose to repe\J the law, and make no provisions for carrying the Constitution into effect. B^t the cry of repeal, as to the new law, has already gone forth. Well, suppo\it succeeds; what will those have gained who joined in the shout ? Have I not sho>n that all the material objections they urge against the new law, apply with ec|Vd force to the old one ? What do they gain, therefore, unless they propose t^peal the old law, also, and make no provision for performing our obligations\Ljer the Constitution ? This must be the object of all

men who take that position. To this it must come in the end. The real objection is not to the new law, nor to the old one, but to the Constitution itself. Those of you who hold these opinions, do not mean that the fugitive from labor shall be taken back. That is the real point of your objection. You would not care a farthing about the new law, or the old law, or any other law, or what provisions it contained, if there was a hole in it big enough for the fugitive to slip through and escape. Habeas corpuses — trials by jury — records from other States — pains and penalties — the whole catalogue of objections, would be all moonshine, if the negro was not required to go back to his master. Tell me, frankly, is not this the true character of your objection ?

[. . .]

This, said Mr. D., is the supreme law of the land, speaking to every citizen of the republic. The command is imperative. There is no avoiding — no escaping the obligation, so long as we live under, and claim the protection of, the Constitution. We must yield implicit obedience, or we must take the necessary steps to release ourselves from the obligation to obey. There is no other alternative. We must stand by the Constitution of the Union, with all its compromises, or we must abolish it, and resolve each State back into its original elements. It is, therefore, a

question of union or disunion. We cannot expect our brethren of other States to remain faithful to the compact, and permit us to be faithless. Are we prepared, therefore, to execute faithfully and honestly the compact our fathers have made for us?

[. . .]

Chicago Citations

Bibliography entry:

Douglas, Stephen A. *Speech of Hon. Stephen A. Douglas, on the "Measures of Adjustment," Delivered in the City Hall, Chicago, October 23, 1850*. Washington, DC, 1851. Internet Archive.

Footnote citation:

Stephen A. Douglas, *Speech on the "Measures of Adjustment," Delivered in the City Hall, Chicago, October 23, 1850* (Washington, DC, 1851), [page], https://archive.org/details/speechofhonsteph00douguoft.

Shortened citation:

Douglas, *Speech on the Measures of Adjustment*, [page].

PRIMARY SOURCE P13.75

First Annual Message (excerpt)

Millard Fillmore · December 2, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The president presents the 1850 measures as a final settlement and pledges to enforce them.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Millard Fillmore became president when Zachary Taylor died in July 1850. Unlike Taylor, he supported Henry Clay's compromise, and within weeks Congress passed it as five separate laws, which he signed.

In his first annual message Fillmore called the measures "a final settlement" of the dangerous questions that had divided the country and promised to enforce all of them, including the Fugitive Slave Act.

Editorial note: The text follows the Teaching American History transcription.

Document Text

[. . .]

The difficulties and delays incident to the settlement of private claims by Congress amount in many cases to a denial of justice. There is reason to apprehend that many unfortunate creditors of the Government have thereby been unavoidably ruined. Congress has so much business of a public character that it is impossible it should give much attention to mere private claims, and their accumulation is now so great that many claimants must despair of ever being able to obtain a hearing. It may well be doubted whether Congress, from the nature of its organization, is properly constituted to decide upon such cases. It is impossible that each member should examine the merits of every claim on which he is compelled to vote, and it is preposterous to ask a judge to decide a case which he has never heard. Such decisions may, and frequently must, do injustice either to the claimant or the Government, and I perceive no better remedy for this growing evil than the establishment of some tribunal to adjudicate upon such claims. I beg leave, therefore, most respectfully to recommend that provision be made by law for the appointment of a commission to settle all private claims against the United States; and as an ex parte hearing must in all contested cases be very unsatisfactory, I also recommend the appointment of a solicitor, whose duty it shall be to represent the Government before such commission and protect it against all illegal, fraudulent, or unjust claims which may be presented for their adjudication. This District, which has neither voice nor vote in your deliberations, looks to you for protection and aid, and I commend all its wants to your favorable consideration, with a full confidence that you will meet them not only with justice, but with liberality. It should be borne in mind that in this city, laid out by Washington and consecrated by his name, is located the Capitol of our nation, the emblem of our Union and the symbol of our greatness. Here also are situated all the public buildings necessary for the use of the Government, and all these are exempt from taxation. It should be the pride of Americans to render this place attractive to the people of the whole Republic and convenient and safe for the transaction of the public business and the preservation of the public records. The Government should therefore bear a liberal proportion of the burdens of all necessary and useful improvements. And as nothing could contribute more to the health, comfort, and safety of the city and the security of the public buildings and records than an abundant supply of pure water, I respectfully recommend that you make such provisions for obtaining the same as in your wisdom you may deem proper.

The act, passed at your last session, making certain propositions to Texas for settling the disputed boundary between that State and the Territory of New Mexico was, immediately on its passage, transmitted by express to the governor of Texas, to be laid by him before the general assembly for its agreement thereto. Its receipt was duly acknowledged, but no official information has yet been received of the action of the general assembly thereon. It may, however, be very soon expected, as, by the terms of the propositions submitted they were to have been acted upon on or before the first day of the present month.

It was hardly to have been expected that the series of measures passed at your last session with the view of healing the sectional differences which had sprung from the slavery and territorial questions should at once have realized their beneficent purpose. All mutual concession in the nature of a compromise must necessarily be unwelcome to men of extreme opinions. And though without such concessions our Constitution could not have been formed, and can not be permanently sustained, yet we have seen them made the subject of bitter controversy in both sections of the Republic. It required many months of discussion and deliberation to secure the concurrence of a majority of Congress in their favor. It would be strange if they had been received with immediate approbation by people and States prejudiced and heated by the exciting controversies of their representatives. I believe those measures to have been required by the circumstances and condition of the country. I believe they were necessary to allay asperities and animosities that were rapidly alienating one section of the country from another and destroying those fraternal sentiments which are the strongest supports of the Constitution. They were adopted in the spirit of conciliation and for the purpose of conciliation. I believe that a great majority of our fellow citizens sympathize in that spirit and that purpose, and in the main approve and are prepared in all respects to sustain these enactments. I can not doubt that the American people, bound together by kindred blood and common traditions, still cherish a paramount regard for the Union of their fathers, and that they are ready to rebuke any attempt to violate its integrity, to disturb the compromises on which it is based, or to resist the laws which have been enacted under its authority.

The series of measures to which I have alluded are regarded by me as a settlement in principle and substance—a final settlement of the dangerous and exciting subjects which they embraced. Most of these subjects, indeed, are beyond your reach, as the legislation which disposed of them was in its character final and irrevocable. It may be presumed from the opposition which they all encountered that none of those measures was free from imperfections, but in their mutual dependence and connection they formed a system of compromise the most conciliatory and best for the entire country that could be obtained from conflicting sectional interests and opinions.

For this reason I recommend your adherence to the adjustment established by those measures until time and experience shall demonstrate the necessity of further legislation to guard against evasion or abuse.

By that adjustment we have been rescued from the wide and boundless agitation that surrounded us, and have a firm, distinct, and legal ground to rest upon. And the occasion, I trust, will justify me in exhorting my countrymen to rally upon and maintain that ground as the best, if not the only, means of restoring peace and quiet to the country and maintaining inviolate the integrity of the Union.

And now, fellow-citizens, I can not bring this communication to a close without invoking you to join me in humble and devout thanks to the Great Ruler of Nations for the multiplied blessings which He has graciously bestowed upon us. His hand, so often visible in our preservation, has stayed the pestilence, saved us from foreign wars and domestic disturbances, and scattered plenty throughout the land.

[. . .]

Chicago Citations

Bibliography entry:

Fillmore, Millard. "First Annual Message." December 2, 1850. Teaching American History.

Footnote citation:

Millard Fillmore, "First Annual Message," December 2, 1850, via Teaching American History, https://teachingamericanhistory.org/document/state-of-the-union-address-57/.

Shortened citation:

Fillmore, "First Annual Message."

PRIMARY SOURCE P13.76

The Georgia Platform of 1850

Georgia State Convention · December 14, 1850

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Georgia accepts the Compromise but makes the Union's survival conditional on enforcing the Fugitive Slave Act.
TREATMENT	Full public-domain text

Historical Context

After the Compromise of 1850 passed, secessionists in several Deep South states called conventions to consider leaving the Union. In Georgia, Unionists led by Howell Cobb, Alexander Stephens, and Robert Toombs won control of the state convention.

The convention accepted the Compromise, but on conditions. It warned that Georgia would resist, even to disunion, any future act of Congress against slavery, and it tied the Union's survival to the faithful enforcement of the Fugitive Slave Act.

Editorial note: The text follows the civilwarcauses.org transcription from Herman V. Ames, *State Documents on Federal Relations.*

Document Text

To the end, therefore, that the position of this State may be clearly apprehended by her confederates of the South and of the North, and that she may be blameless of all future consequences.

Be it Resolved by the People of Georgia in Convention assembled,

First, That we hold the American Union, secondary in importance only to the rights and principles it was designed to perpetuate. That past associations, present fruition, and future prospects, will bind us to it so long as it continues to be the safeguard of those rights and principles.

Secondly, That if the thirteen original parties to the contract, bordering the Atlantic in a narrow belt, while their separate interests were in embryo their peculiar tendencies scarcely developed, their revolutionary trials and triumphs, still green in memory, found Union impossible without Compromise, the thirty-one of this day, may well yield somewhat, in the conflict of opinion and policy, to preserve that Union which has extended the sway of republican government over a vast wilderness to another ocean, and proportionally advanced their civilization and national greatness.

Thirdly, That in this spirit, the State of Georgia has maturely considered the action of Congress embracing a series of measures for the admission of California into the Union, the organization of territorial Governments for Utah and New Mexico, the establishment of a boundary between the latter and the State of Texas, the suppression of the slave trade in the District of Columbia, and the extradition of fugitive slaves, and (connected with them) the rejection of propositions to exclude slavery from the Mexican territories and to abolish it in the District of Columbia, and whilst she does not wholly approve, will abide by it as a permanent adjustment of this sectional controversy.

Fourthly, That the State of Georgia in the judgment of this Convention, will and ought to resist even (as a last resort,) to a disruption of every tie which binds her to the Union, any action of Congress upon the subject of slavery in the District of Columbia, or in any places subject to the jurisdiction of Congress incompatible with the safety, domestic tranquility, the rights and honor of the slave-holding States, or any refusal to admit as a State any territory hereafter, applying, because of the existence of slavery therein, or any act prohibiting the introduction of

slaves into the territories of New Mexico and Utah, or any act repealing or materially modifying the laws now in force for the recovery of fugitive slaves.

Fifthly, That it is the deliberate opinion of this Convention, that upon the faithful execution of the Fugitive Slave Bill by the proper authorities depends the preservation of our much loved Union.

Chicago Citations

Bibliography entry:

Georgia State Convention. "The Georgia Platform." December 14, 1850. In *State Documents on Federal Relations: The States and the United States*, edited by Herman V. Ames, 271–72. Philadelphia: University of Pennsylvania, 1906. Transcription at civilwarcauses.org.

Footnote citation:

Georgia Platform, December 14, 1850, in *State Documents on Federal Relations*, ed. Herman V. Ames (Philadelphia: University of Pennsylvania, 1906), 271–72, via https://civilwarcauses.org/ga-plat.htm.

Shortened citation:

Georgia Platform.

PRIMARY SOURCE P13.77

Caution!! Colored People of Boston, One & All

Anonymous broadside (attributed to Theodore Parker) · Boston, April 24, 1851

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	An abolitionist broadside shows how the 1850 law turned northern police into slave catchers in the eyes of its opponents.
TREATMENT	Public-domain image

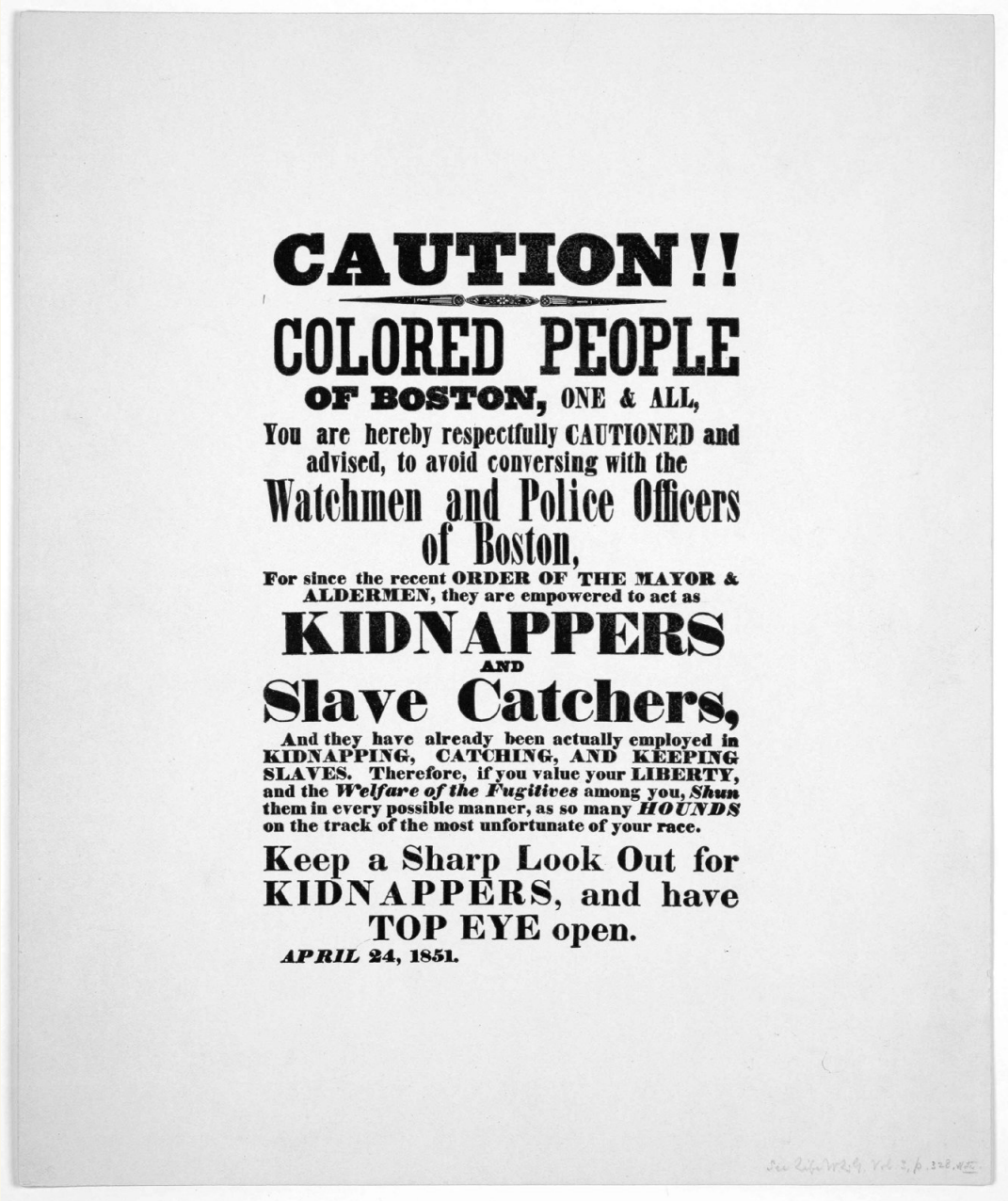
Historical Context

In April 1851 Boston authorities, enforcing the Fugitive Slave Act, seized Thomas Sims and returned him to slavery in Georgia under heavy guard.

Days later abolitionists posted this broadside warning Black Bostonians that the city's watchmen and police had been empowered to act as kidnappers and slave catchers.

Editorial note: Image from a copy supplied by the instructor. The broadside is often attributed to the minister Theodore Parker. The Norton collection's "Caution" image is the same broadside and is printed here as one entry.

Primary Source Image



CAUTION!!

COLORED PEOPLE

OF BOSTON, ONE & ALL,

You are hereby respectfully CAUTIONED and advised, to avoid conversing with the

Watchmen and Police Officers of Boston,

For since the recent ORDER OF THE MAYOR & ALDERMEN, they are empowered to act as

KIDNAPPERS

AND

Slave Catchers,

And they have already been actually employed in KIDNAPPING, CATCHING, AND KEEPING SLAVES. Therefore, if you value your LIBERTY, and the *Welfare of the Fugitives* among you, *Shun* them in every possible manner, as so many *HOUNDS* on the track of the most unfortunate of your race.

Keep a Sharp Look Out for KIDNAPPERS, and have TOP EYE open.

APRIL 24, 1851.

Caution!! Colored People of Boston, One & All, broadside, April 24, 1851.

Chicago Citations

Bibliography entry:

Caution!! Colored People of Boston, One & All. Broadside. Boston, April 24, 1851.

Footnote citation:

Caution!! Colored People of Boston, One & All, broadside (Boston, April 24, 1851).

Shortened citation:

Caution!! Colored People of Boston.

PRIMARY SOURCE P13.78

Address to the Citizens of Concord on the Fugitive Slave Law (excerpt)

Ralph Waldo Emerson · May 3, 1851 (Complete Works, Centenary ed., 1904)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	New England's leading intellectual publicly turns against the law, showing how it radicalized moderates.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Ralph Waldo Emerson (1803–1882), the essayist and lecturer, had long kept his distance from organized abolitionism. The Fugitive Slave Act and Daniel Webster's support for it changed that.

In early 1851 Boston authorities sent the fugitive Thomas Sims back to Georgia under heavy guard. Weeks later Emerson told his Concord neighbors that the law was a "filthy enactment" that no one could obey and keep his self-respect, and he denounced Webster by name.

Editorial note: The address was first printed long after Emerson delivered it. The text follows the Internet Archive scan of the 1904 Centenary Edition; words broken at line ends have been rejoined.

Document Text

[. . .]

FELLOW CITIZENS: I accepted your invitation to speak to you on the great question of these days, with very little consideration of what I might have to offer: for there seems to be no option. The last year has forced us all into politics, and made it a paramount duty to seek what it is often a duty to shun. We do not breathe well. There is infamy in the air. I have a new experience. I wake in the morning with a painful sensation^ which I carry about all day, and which, when traced home, is the odious remembrance of that ignominy which has fallen on Massachusetts, which robs the landscape of beauty, and takes the sunshine out of every hour. I have lived all my life in this state, and never had any experience of personal inconvenience from the laws, until now. They never came near me to any discomfort before. I find the like sensibility in my neighbors; and in that class who take no interest in the ordinary questions of party politics. There are men who are as sure indexes of the equity of legislation and of the same state of public feeling, as the barometer is of the weight

of the air, and it is a bad sign when these are discontented, for though they snuff oppression and dishonor at a distance, it is because they are more impressionable : the whole population will in a short time be as painfully affected.

Every hour brings us from distant quarters of the Union the expression of mortification at the late events in Massachusetts, and at the behavior of Boston. The tameness was indeed shocking. Boston, of whose fame for spirit and character we have all been so proud ; Boston, whose citizens, intelligent people in England told me they could always distinguish by their culture among Americans; the Boston of the American Revolution, which figures so proudly in John Adams's Diary, which the whole country has been reading; Boston, spoiled by prosperity, must bow its ancient honor in the dust, and make us irretrievably ashamed. In Boston, we have said with such lofty confidence, no fugitive slave can be arrested, and now, we must transfer our vaunt to the country, and say, with a little less confidence, no fugitive man can be arrested here ; at least we can brag thus until to-morrow, when the farmers also may be corrupted.

[. . .]

Let me remind you a little in detail how the natural retribution acts in reference to the statute which Congress passed a year ago. For these few months have shown very conspicuously its nature and impracticability. It is contravened:

I. By the sentiment of duty. An immoral law makes it a man's duty to break it, at every hazard. For virtue is the very self of every man. It is therefore a principle of law that an immoral contract is void, and that an immoral statute is void. For, as laws do not make right, and are simply declaratory of a right which already existed, it is not to be presumed

that they can so stultify themselves as to command injustice.

It is remarkable how rare in the history of tyrants is an immoral law. Some color, some indirection was always used. If you take up the volumes of the " Universal History," you will find it difficult searching. The precedents are few. It is not easy to parallel the wickedness of this American law. And that is the head and body of this discontent, that the law is immoral.

Here is a statute which enacts the crime of kidnapping, — a crime on one footing with arson and murder. A man's right to liberty is as inalienable as his right to life.

[. . .]

Chicago Citations

Bibliography entry:

Emerson, Ralph Waldo. "The Fugitive Slave Law: Address to the Citizens of Concord, 3 May, 1851." In *Miscellanies*, vol. 11 of *The Complete Works of Ralph Waldo Emerson*, Centenary ed., 179–214. Boston: Houghton Mifflin, 1904. Internet Archive.

Footnote citation:

Ralph Waldo Emerson, "The Fugitive Slave Law: Address to the Citizens of Concord," in *Miscellanies*, vol. 11 of *The Complete Works of Ralph Waldo Emerson* (Boston: Houghton Mifflin, 1904), 179–87, https://archive.org/details/miscellanies021emer.

Shortened citation:

Emerson, "Fugitive Slave Law," [page].

PRIMARY SOURCE P13.79

The Freedman's Story (excerpt)

William Parker · Atlantic Monthly, February–March 1866 (events of 1851)

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The Black leader of the Christiana resistance describes armed defense against slave catchers.
TREATMENT	Public-domain text, selected excerpts

Historical Context

William Parker (c. 1822–1891) escaped slavery in Maryland and settled near Christiana, Lancaster County, Pennsylvania, where he led a Black self-defense society that protected fugitives from kidnappers.

On September 11, 1851, Maryland slaveholder Edward Gorsuch and a deputy U.S. marshal came to Parker's house to seize men who had fled Gorsuch's farm. Armed Black residents resisted; Gorsuch was killed. Parker escaped to Canada. The federal government then tried dozens of men for treason, and all were acquitted.

Editorial note: Parker published this account fifteen years after the events, after the Civil War. The text follows the Documenting the American South transcription.

Document Text

[. . .]

At last this man's outrages became so notorious that six of our most reliable men resolved to shoot him, if they had to burn him out to do it. After I had sworn the men in the usual form, we went to his barn, took two bundles of wheat-straw, and, fastening them under the eaves with wisps, applied a lighted match to each. We then took our stations a few rods off, with rifles ready and in good condition,--mine was a smooth-bore, with a heavy charge.

The house burned beautifully; and half an hour after it ignited the walls fell in, but no betrayer showed himself. Instead of leaving the house by the rear door, as we had expected, just before the roof fell in, he broke out the front way, rushed to his next neighbor's, and left his place without an effort to save it. We had built the fire in the rear, and looked for him there; but he ran in the opposite direction, not only as if his life was in danger, but as if the spirit of his evil deeds was after him.

PART II.
[Vol. XVII, March, 1866.]

AS the Freedman relates only events which came under his own observation, it is necessary to preface the remaining portion of his narrative with a brief account of the Christiana riot. This I extract mainly from a statement made at the time by a member of the Philadelphia bar, making only a few alterations to give the account greater clearness and brevity.

On the 9th of September, 1851, Mr. Edward Gorsuch, a citizen of Maryland, residing near Baltimore, appeared before Edward D. Ingraham, Esquire, United States Commissioner at Philadelphia, and asked for warrants under the act of Congress of September 18, 1850, for the arrest of four of his slaves, whom he had heard were secreted somewhere in Lancaster County. Warrants were issued forthwith, directed to H. H. Kline, a deputy United States Marshal, authorizing him to arrest George Hammond, Joshua Hammond, Nelson Ford, and Noah Buley, persons held to service or labor in the State of Maryland, and to bring them before the said Commissioner.

Mr. Gorsuch then made arrangements with John Agin and Thompson Tully, residents of Philadelphia, and police officers, to assist Kline in making the arrests. They were to meet Mr. Gorsuch and some companions at

Penningtonville, a small place on the State Railroad, about fifty miles from Philadelphia. Kline, with the warrants, left Philadelphia on the same day, about 2 P. M., for West Chester. There he hired a conveyance and rode to Gallagherville, where he hired another conveyance to take him to Penningtonville. Before he had driven very far, the carriage breaking down, he returned to Gallagherville, procured another, and started again. Owing to this detention, he was prevented from meeting Mr. Gorsuch and his friends at the appointed time, and when he reached Penningtonville, about 2 A. M. on the 10th of September, they had gone.

[. . .]

Chicago Citations

Bibliography entry:

Parker, William. "The Freedman's Story." *Atlantic Monthly* 17 (February 1866): 152–66; (March 1866): 276–95. Documenting the American South, University of North Carolina at Chapel Hill.

Footnote citation:

William Parker, "The Freedman's Story," *Atlantic Monthly* 17 (February 1866): [page], via Documenting the American South, https://docsouth.unc.edu/neh/parker1/parker.html.

Shortened citation:

Parker, "Freedman's Story," [page].

PRIMARY SOURCE P13.80

Uncle Tom's Cabin, Chapter XXXIII: "Cassy" (excerpt)

Harriet Beecher Stowe · 1852

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The best-selling novel of the decade turned northern readers against slavery and the law that sent fugitives back to it.
TREATMENT	Public-domain text, selected excerpt

Historical Context

Harriet Beecher Stowe (1811–1896), daughter of the minister Lyman Beecher, wrote *Uncle Tom's Cabin* in response to the Fugitive Slave Act of 1850. Serialized in the antislavery *National Era* and published as a book in 1852, it sold some 300,000 copies in its first year.

In this chapter Tom, now owned by the brutal Simon Legree on a Louisiana cotton plantation, helps a weaker woman fill her basket and then refuses Legree's order to flog her.

Editorial note: This is fiction written as antislavery argument. The Norton collection prints pages 396–99 of an 1886 edition; this reader follows the Project Gutenberg text. The plan's other listings of this novel are printed here as one entry.

Document Text

The woman suddenly turned to her work, and labored with a despatch that was perfectly astonishing to Tom. She seemed to work by magic. Before the day was through, her basket was filled, crowded down, and piled, and she had several times put largely into Tom’s. Long after dusk, the whole weary train, with their baskets on their heads, defiled up to the building appropriated to the storing and weighing the cotton. Legree was there, busily conversing with the two drivers.

“Dat ar Tom’s gwine to make a powerful deal o’ trouble; kept a puttin’ into Lucy’s basket.—One o’ these yer dat will get all der niggers to feelin’ ’bused, if Masir don’t watch him!” said Sambo.

“Hey-dey! The black cuss!” said Legree. “He’ll have to get a breakin’ in, won’t he, boys?”

Both negroes grinned a horrid grin, at this intimation.

“Ay, ay! Let Mas’r Legree alone, for breakin’ in! De debil heself couldn’t beat Mas’r at dat!” said Quimbo.

“Wal, boys, the best way is to give him the flogging to do, till he gets over his notions. Break him in!”

“Lord, Mas’r’ll have hard work to get dat out o’ him!”

“It’ll have to come out of him, though!” said Legree, as he rolled his tobacco in his mouth.

“Now, dar’s Lucy,—de aggravatinest, ugliest wench on de place!” pursued Sambo.

“Take care, Sam; I shall begin to think what’s the reason for your spite agin Lucy.”

“Well, Mas’r knows she sot herself up agin Mas’r, and wouldn’t have me, when he telled her to.”

“I’d a flogged her into ’t,” said Legree, spitting, “only there’s such a press o’ work, it don’t seem wuth a while to upset her jist now. She’s slender; but these yer slender gals will bear half killin’ to get their own way!”

“Wal, Lucy was real aggravatin’ and lazy, sulkin’ round; wouldn’t do nothin,—and Tom he stuck up for her.”

“He did, eh! Wal, then, Tom shall have the pleasure of flogging her. It’ll be a good practice for him, and he won’t put it on to the gal like you devils, neither.”

“Ho, ho! haw! haw! haw!” laughed both the sooty wretches; and the diabolical sounds seemed, in truth, a not unapt expression of the fiendish character which Legree gave them.

“Wal, but, Mas’r, Tom and Misse Cassy, and dey among ’em, filled Lucy’s basket. I ruther guess der weight ’s in it, Mas’r!”

“I do the weighing!” said Legree, emphatically.

Both the drivers again laughed their diabolical laugh.

“So!” he added, “Misse Cassy did her day’s work.”

“She picks like de debil and all his angels!”

“She’s got ’em all in her, I believe!” said Legree; and, growling a brutal oath, he proceeded to the weighing-room.

Slowly the weary, dispirited creatures, wound their way into the room, and, with crouching reluctance, presented their baskets to be weighed.

Legree noted on a slate, on the side of which was pasted a list of names, the amount.

Tom’s basket was weighed and approved; and he looked, with an anxious glance, for the success of the woman he had befriended.

Tottering with weakness, she came forward, and delivered her basket. It was of full weight, as Legree well perceived; but, affecting anger, he said,

“What, you lazy beast! short again! stand aside, you’ll catch it, pretty soon!”

The woman gave a groan of utter despair, and sat down on a board.

The person who had been called Misse Cassy now came forward, and, with a haughty, negligent air, delivered her basket. As she delivered it, Legree looked in her eyes with a sneering yet inquiring glance.

She fixed her black eyes steadily on him, her lips moved slightly, and she said something in French. What it was, no one knew; but Legree’s face became perfectly demoniacal in its expression, as she spoke; he half raised his hand, as if to strike,—a gesture which she regarded with fierce disdain, as she turned and walked away.

“And now,” said Legree, “come here, you Tom. You see, I telled ye I didn’t buy ye jest for the common work; I mean to promote ye, and make a driver of ye; and tonight ye may jest as well begin to get yer hand in. Now, ye jest take this yer gal and flog her; ye’ve seen enough on’t to know how.”

“I beg Mas’r’s pardon,” said Tom; “hopes Mas’r won’t set me at that. It’s what I an’t used to,—never did,—and can’t do, no way possible.”

“Ye’ll larn a pretty smart chance of things ye never did know, before I’ve done with ye!” said Legree, taking up a cowhide, and striking Tom a heavy blow cross the cheek, and following up the infliction by a shower of blows.

“There!” he said, as he stopped to rest; “now, will ye tell me ye can’t do it?”

“Yes, Mas’r,” said Tom, putting up his hand, to wipe the blood, that trickled down his face. “I’m willin’ to work, night and day, and work while there’s life and breath in me; but this yer thing I can’t feel it right to do;—and, Mas’r, I never shall do it,—never!”

Tom had a remarkably smooth, soft voice, and a habitually respectful manner, that had given Legree an idea that he would be cowardly, and easily subdued. When he spoke these last words, a thrill of amazement went through

every one; the poor woman clasped her hands, and said, “O Lord!” and every one involuntarily looked at each other and drew in their breath, as if to prepare for the storm that was about to burst.

Legree looked stupefied and confounded; but at last burst forth,—“What! ye blasted black beast! tell me ye don’t think it right to do what I tell ye! What have any of you cussed cattle to do with thinking what’s right? I’ll put a stop to it! Why, what do ye think ye are? May be ye think ye’r a gentleman master, Tom, to be a telling your master what’s right, and what ain’t! So you pretend it’s wrong to flog the gal!”

“I think so, Mas’r,” said Tom; “the poor crittur’s sick and feeble; ’t would be downright cruel, and it’s what I never will do, nor begin to. Mas’r, if you mean to kill me, kill me; but, as to my raising my hand agin any one here, I never shall,—I’ll die first!”

Tom spoke in a mild voice, but with a decision that could not be mistaken. Legree shook with anger; his greenish eyes glared fiercely, and his very whiskers seemed to curl with passion; but, like some ferocious beast, that plays with its victim before he devours it, he kept back his strong impulse to proceed to immediate violence, and broke out into bitter raillery.

“Well, here’s a pious dog, at last, let down among us sinners!—a saint, a gentleman, and no less, to talk to us sinners about our sins! Powerful holy critter, he must be! Here, you rascal, you make believe to be so pious,—didn’t you never hear, out of yer Bible, ‘Servants, obey yer masters’? An’t I yer master? Didn’t I pay down twelve hundred dollars, cash, for all there is inside yer old cussed black shell? An’t yer mine, now, body and soul?” he said, giving Tom a violent kick with his heavy boot; “tell me!”

In the very depth of physical suffering, bowed by brutal oppression, this question shot a gleam of joy and triumph through Tom’s soul. He suddenly stretched himself up, and, looking earnestly to heaven, while the tears and blood that flowed down his face mingled, he exclaimed,

“No! no! no! my soul an’t yours, Mas’r! You haven’t bought it,—ye can’t buy it! It’s been bought and paid for, by one that is able to keep it;—no matter, no matter, you can’t harm me!”

“I can’t!” said Legree, with a sneer; “we’ll see,—we’ll see! Here, Sambo, Quimbo, give this dog such a breakin’ in as he won’t get over, this month!”

The two gigantic negroes that now laid hold of Tom, with fiendish exultation in their faces, might have formed no unapt personification of powers of darkness. The poor woman screamed with apprehension, and all rose, as by a general impulse, while they dragged him unresisting from the place.

Chicago Citations

Bibliography entry:

Stowe, Harriet Beecher. *Uncle Tom's Cabin; or, Life Among the Lowly*. Boston: John P. Jewett, 1852. Project Gutenberg eBook #203.

Footnote citation:

Harriet Beecher Stowe, *Uncle Tom's Cabin; or, Life Among the Lowly* (Boston: John P. Jewett, 1852), chap. 33, Project Gutenberg eBook #203.

Shortened citation:

Stowe, *Uncle Tom's Cabin*, chap. 33.

PRIMARY SOURCE P13.81

1852 Democratic Party Platform (excerpt)

Democratic National Convention, Baltimore · June 1, 1852

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The winning party pledges itself to the compromise measures as final, evidence that the settlement was accepted in 1852.
TREATMENT	Public-domain text, selected resolutions

Historical Context

Two years after the Compromise of 1850, both major parties pledged to treat it as final. The Democrats met in Baltimore and nominated Franklin Pierce of New Hampshire.

Their platform promised to abide by the compromise measures, including the Fugitive Slave Act, and to "resist all attempts at renewing, in Congress or out of it, the agitation of the slavery question." Pierce won the election in a landslide.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Resolved, therefore, That, entertaining these views, the democratic party of this Union, through their delegates assembled in a general convention, coming together in a spirit of concord, of devotion to the doctrines and faith of a free representative government, and appealing to their fellow-citizens for the rectitude of their intentions, renew and reassert before the American people the declaration of principles avowed by them when on former occasions, in general convention, they have presented their candidates for the popular suffrages.

1. That the federal government is one of limited powers, derived solely from the constitution, and the grants of power made therein ought to be strictly construed by all the departments and agents of the government; and that it is inexpedient and dangerous to exercise doubtful constitutional powers.

2. That the constitution does not confer upon the general government the power to commence and carry on a general system of internal improvements.

[. . .]

Resolved, That the foregoing proposition covers, and was intended to embrace, the whole subject of slavery agitation in Congress; and therefore the democratic party of the Union, standing on this national platform, will abide by and adhere to a faithful execution of the acts known as the compromise measures settled by the last Congress—"the act for reclaiming fugitives from service or labor" included; which act, being designed to carry out an express provision of the constitution, cannot, with fidelity thereto be repealed nor so changed as to destroy or impair its efficiency.

Resolved, That the democratic party will resist all attempts at renewing, in congress or out of it, the agitation of the slavery question, under whatever shape or color the attempt may be made.

Resolved, That the proceeds of the public lands ought to be sacredly applied to the national object specified in the Constitution; and that we are opposed to any law for the distribution of such proceeds among the states as, alike inexpedient in policy and repugnant to the constitution.

Resolved, That we are decidedly opposed to taking from the President the qualified veto power, by which he is enabled, under restrictions and responsibilities amply sufficient to guard the public interests, to suspend the passage of a bill whose merits cannot secure the approval of two-thirds of the Senate and House of Representatives, until the judgment of the people can be obtained thereon, and which has saved the American people from the corrupt and tyrannical domination of the Bank of the United States, and from a corrupting system of general internal improvements.

Resolved, That the democratic party will faithfully abide by and uphold the principles laid down in the Kentucky and Virginia resolutions of 1798, and in the report of Mr. Madison to the Virginia legislature in 1799; that it adopts those principles as constituting one of the main foundations of its political creed, and is resolved to carry them out in their obvious meaning and import.

Resolved, That the war with Mexico, upon all the principles of patriotism and the laws of nations was a just and necessary war on our part, in which every American citizen should have shown himself on the side of his country, and neither morally nor physically, by word or deed, have given "aid and comfort to the enemy."

Resolved, That we rejoice at the restoration of friendly relations with our sister republic of Mexico, and earnestly desire for her all the blessings and prosperity which we enjoy under republican institutions; and we congratulate the American people on the results of that war, which have so manifestly justified the policy and conduct of the democratic party, and insured to the United States, "indemnity for the past and security for the future."

Resolved, That, in view of the condition of popular institutions in the Old World, a high and sacred duty is devolved, with increased responsibility upon the democratic party of this country, as the party of the people, to uphold and maintain the rights of every State, and thereby the Union of the States, and to sustain and advance among us constitutional liberty, by continuing to resist all monopolies and exclusive legislation for the benefit of the few at the expense of the many, and by a vigilant and constant adherence to those principles and compromises of the constitution, which are broad enough and strong enough to embrace and uphold the Union as it was, the Union as it is, and the Union as it shall be, in the full expansion of the energies and capacity of this great and progressive people.

Chicago Citations

Bibliography entry:

Democratic Party. "1852 Democratic Party Platform." June 1, 1852. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

1852 Democratic Party Platform, June 1, 1852, American Presidency Project, https://www.presidency.ucsb.edu/documents/1852-democratic-party-platform.

Shortened citation:

1852 Democratic Platform.

PRIMARY SOURCE P13.82

What to the Slave Is the Fourth of July? (excerpt)

Frederick Douglass · Rochester, New York, July 5, 1852

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Douglass argues that the 1850 law brought slavery into every free state.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Frederick Douglass (1818–1895) escaped slavery in Maryland in 1838 and became the most prominent Black abolitionist in the country. He published his own newspaper in Rochester.

Invited by the Rochester Ladies' Anti-Slavery Society to speak for the Fourth of July, Douglass asked what the holiday meant to the enslaved. He denounced the Fugitive Slave Act for nationalizing slavery and making "mercy to them, a crime."

Editorial note: The host page dates the speech July 4; Douglass delivered it on July 5, 1852. The text follows the transcription on the American Battlefield Trust website.

Document Text

The fact is, ladies and gentlemen, the distance between this platform and the slave plantation, from which I escaped, is considerable—and the difficulties to be overcome in getting from the latter to the former, are by no means slight. That I am here to---day is, to me, a matter of astonishment as well as of gratitude. You will not, therefore, be surprised, if in what I have to say, I evince no elaborate preparation, nor grace my speech with any high sounding exordium. With little experience and with less learning, I have been able to throw my thoughts hastily and imperfectly together; and trusting to your patient and generous indulgence, I will proceed to lay them before you. This, for the purpose of this celebration, is the 4th of July. It is the birthday of your National Independence, and of your political freedom . . . There is consolation in the thought, that America is young. —Great streams are not easily turned from channels, worn deep in the course of ages. They may sometimes rise in quiet and stately majesty, and inundate the land, refreshing and fertilizing the earth with their mysterious properties. They may also rise in wrath and fury, and bear away, on their angry waves, the accumulated wealth of years of toil and hardship. They, however, gradually flow back to the same old channel, and flow on as serenely as ever. But, while the river may not be turned aside, it may dry up, and leave nothing behind but the withered branch, and the unsightly rock, to howl in the abyss---sweeping wind, the sad tale of departed glory. As with rivers so with nations. . . .

The simple story of it is, that, 76 years ago, the people of this country were British subjects . . . You were under the British Crown . . . But, your fathers . . . They went so far in their excitement as to pronounce the measures of government unjust, unreasonable, and oppressive, and altogether such as ought not to be quietly submitted to . . . To say now that America was right, and England wrong, is exceedingly easy . . . but there was a time when to pronounce against England, and in favor of the cause of the colonies, tried men’s souls . . . On the 2d of July, 1776, the old Continental Congress, to the dismay of the lovers of ease, and the worshippers of property . . . in the form of a resolution . . . it may refresh your minds and help my story if I read it. “Resolved, That these united colonies are, and of right, ought to be free and Independent States; that they are absolved from all allegiance to the British Crown; and that all political connection between them and the State of Great Britain is, and ought to be,

dissolved." Citizens, your fathers made good that resolution. They succeeded; and to---day you reap the fruits of their success. The freedom gained is yours; and you, therefore, may properly celebrate this anniversary. The 4th of July is the first great fact in your nation's history—the very ring---bolt in the chain of your yet undeveloped destiny . . .

What, to the American slave, is your 4th of July? I answer: a day that reveals to him, more than all other days in the year, the gross injustice and cruelty to which he is the constant victim. To him, your celebration is a sham; your boasted liberty, an unholy license; your national greatness, swelling vanity; your sounds of rejoicing are empty and heartless; your denunciations of tyrants, brass fronted impudence; your shouts of liberty and equality, hollow mockery; your prayers and hymns, your sermons and thanksgivings, with all your religious parade, and solemnity, are, to him, mere bombast, fraud, deception, impiety, and hypocrisy—a thin veil to cover up crimes which would disgrace a nation of savages. There is not a nation on the earth guilty of practices, more shocking and bloody, than are the people of these United States, at this very hour. Go where you may, search where you will, roam through all the monarchies and despotisms of the old world, travel through South America, search out every abuse, and when you have found the last, lay your facts by the side of the every day practices of this nation, and you will say with me, that, for revolting barbarity and shameless hypocrisy, America reigns without a rival . . .

Behold the practical operation of this internal slave---trade, the American slave---trade, sustained by American politics and American religion . . . Fellow---citizens, this murderous traffic is, to---day, in active operation in this boasted republic . . . I see the bleeding footsteps . . . on the way to the slave---markets, where the victims are to be sold like horses, sheep, and swine . . . My soul sickens at the sight . . . But a still more inhuman, disgraceful, and scandalous state of things remains to be presented. By an act of the American Congress . . . slavery has been nationalized in its most horrible and revolting form . . . The Fugitive Slave Law makes MERCY TO THEM, A CRIME; and bribes the judge who tries them. An American JUDGE GETS TEN DOLLARS FOR EVERY VICTIM HE CONSIGNS to slavery, and five, when he fails to do so . . . Let this damning fact be perpetually told . . . that, in tyrant---killing, king---hating, people---loving, democratic, Christian America, the seats of justice are filled with judges, who hold their offices under an open and palpable bribe . . . I take this law to be one of the grossest infringements of Christian Liberty, and, if the churches and ministers of our country were not stupidly blind, or most wickedly indifferent, they, too, would so regard it . . . they are utterly silent in respect to a law which robs religion of its chief significance, and makes it utterly worthless to a world lying in wickedness. . . Allow me to say, in conclusion . . . I do not despair of this country. There are forces in operation, which must inevitably, work the downfall of slavery. "The arm of the Lord is not shortened," and the doom of slavery is certain. I, therefore, leave off where I began, with hope.

Chicago Citations

Bibliography entry:

Douglass, Frederick. "What to the Slave Is the Fourth of July?" Speech at Rochester, New York, July 5, 1852. American Battlefield Trust.

Footnote citation:

Frederick Douglass, "What to the Slave Is the Fourth of July?" (speech, Rochester, NY, July 5, 1852), American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/what-slave-fourth-july.

Shortened citation:

Douglass, "What to the Slave Is the Fourth of July?"

PRIMARY SOURCE P13.83

Diary of Amelia Stewart Knight (selected entries)

Amelia Stewart Knight · April–September 1853 (published 1933)

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A mother's day-by-day record shows an ordinary family enduring the trail to gain land.
TREATMENT	Public-domain text, selected entries

Historical Context

Amelia Stewart Knight (1817–1896) left Iowa in April 1853 with her husband, Joel, and seven children, bound for Oregon. She was pregnant and gave birth on the trail shortly before the family arrived.

Her diary records weather, sickness, river crossings, lost cattle, and the daily labor of a mother on the trail. It ends with her husband trading for a claim of land in Oregon. The Oregon Pioneer Association published it in 1933.

Editorial note: The diary falls after the prompt's 1830–1848 range; read it as evidence of the continuing family migration that began in the 1840s. The text follows the excerpt in The American Yawp Reader; bracketed words are editorial.

Document Text

Saturday, April 9th, 1853 — STARTED FROM HOME [South-central Iowa) about 11 o'clock and traveled 8 miles and camped in an old house; night cold and frosty.

Thursday, April 14th — Quite cold. Little ewes crying with cold feet. Sixteen wagons all getting ready to cross the creek. Hurrah and bustle to get breakfast over. Feed the cattle. Hurrah boys, all ready, we will be the first to cross the creek this morning. Gee up Tip and Tyler, and away we go, the sun just rising. Evening — We have traveled 24 miles today and are about to camp in a large prairie without wood. Cold and chilly; east wind. The men have pitched the tent and are hunting something to make a fire to get supper. I have the sick headache and must leave to boys to get it themselves the best they can.

Saturday, April 16th — Camped last night three miles east of Chariton Point on the prairie. Made our beds down in the tent in the wet and mud. Bed clothes nearly spoiled. Cold and cloudy this morning, and every body out of humour. Seneca is half sick. Plutarch has broke his saddle girth. Husband is scolding and hurrying all hands (and the cook), and Almira says she wished she was home and I say ditto. "Home Sweet Home." Evening – We passed a small town this morning called Chariton Point. The sun shone a little this afternoon. Came 24 miles today, and have pitched our tent in the prairie again, and have some hay to put under our beds. Corn one dollar per bushel, feed for our stock cost 16 dol. to night.

Saturday, April 23rd — Still in camp, it rained hard all night, and blew a hurricane almost. All the tents were blown down, and some wagons capsized. Evening — It has been raining hard all day; everything is wet and muddy. One of the oxen missing; the boys have been hunting him all day. Dreary times, wet and muddy, and crowded in the tent, cold and wet and uncomfortable in the wagon. No place for the poor children. I have been busy cooking, roasting coffee, etc., today, and have come into the wagon to write this and make our bed.

Friday, April 29th — Cool and pleasant; saw the first Indians today. Lucy and Almira afraid and run into the wagon to hide. Done some washing and sewing.

Monday, May 2nd — Pleasant evening; have been cooking, and packing things away for an early start in the morning. Threw away several jars, some wooden buckets, and all our pickles. Too unhandy to carry. Indians came

to our camp every day, begging money and something to eat. Children are getting used to them.

Thursday, May 5th — We crossed the river this morning on a large steam boat called the Hindoo, after a great deal of Hurrahing and trouble to get the cattle all aboard. One ox jumped overboard and swam across the river, and came out like a drowned rat. The river is even with its banks, timber on it, which is mostly cottonwood, is quite green. Costs us 15 dollars to cross. After biding Iowa a kind farewell we travel about 8 miles and camp among the old ruins of the Mormon towns. We here join another company, which will make in all 24 men, 10 wagons, and a large drove of cattle. Have appointed a captain, and are now prepared to guard the stock, four men watch 2 hours and then call up four more to take their places, so by that means no person can sleep about the camp. Such a wild noisy set was never heard.

Friday, May 6th — Pleasant. We have just passed the Mormon graveyard. There is a great number of graves on it. The road is covered with wagons and cattle. Here we passed a train of wagons on their way back, the head man had drowned a few days before, in a river called Elkhorn, while getting some cattle across, and his wife was lying in the wagon quite sick, and children were mourning for a father gone. With sadness and pity I passed those who perhaps a few days before had been well and happy as ourselves. Came 20 miles today.

Sunday, May 8th — Sunday morning. Still in camp waiting to cross. There are three hundred or more wagons in sight and as far as the eye can reach, the bottom is covered, on each side of the river, with cattle and horses. There is not ferry here and the men will have to make one out of the tightest wagon-bed (every company should have a waterproof wagon-bed for this purpose).Everything must now be hauled out of the wagons head over heels (and he who knows where to find anything will be a smart fellow), then the wagons must be all taken to pieces, and then by means of a strong rope stretched across the river, with a tight wagon-bed attached to the middle of it, the rope must be long enough to pull from one side to the other, with men on each side of the river to pull it. In this way we have to cross everything a little at a time. Women and children last, and then swim the cattle and horses. There were three horses and some cattle drowned while crossing this place yesterday. It is quite lively and merry here this morning and the weather fine. We are camped on a large bottom, with the broad, deep river on one side of us and a high bluff on the other.

Tuesday, June 28th — Still in camp waiting to cross. Nothing for the stock to eat. As far as the eye can reach it is nothing but a sandy desert and the road is strewn with dead cattle, and the stench is awful. One of our best oxen is too lame to travel; have to sell him for what we can get, to a native for 15 dollars (all along this road we see white men living with Indians; many of them have trading posts; they are mostly French and have squaw wives). Have to yoke up our muley cow in the ox's place.

Monday, July 18th — Traveled 22 miles. Crossed one small creek and have camped on one called Rock Creek. It is here the Indians are so troublesome. This creek is covered with small timber and thick underbrush, a great hiding place; and while in this part of the country the men have to guard the stock all night. One man traveling ahead of us had all his horses stolen and never found them as we know of. (I was very much frightened while at this camp. I lay awake all night. I expected every minute we would be killed. However, we all found our scalps on in the morning.) There are people killed at this place every year.

Monday, July 25th — Bad luck this morning to start with. A calf took sick and died before breakfast. Soon after starting one of our best cows was taken sick and died in a short time. Presume they were both poisoned with water or weeds. Left our poor cow for the wolves and started on. Evening — It has been very warm today. Traveled 18 miles and have camped right on top of a high, round sand hill, a fine mark for the Indians. We have also got onto a place that is full of rattlesnakes. One of our oxen sick.

Wednesday, August 17th — Crossed the Grand Ronde Valley, which is 8 miles across, and have camped close to the foot of the mountains. Good water and feed plenty. There are 50 or more wagons camped around us. Lucy and Myra have their feet and legs poisoned, which gives me a good deal of trouble. Bought some fresh salmon from the

Indians this evening, which is quite a treat to us. It is the first we have seen.

Sunday, August 28th — Started last night about sun down and drove 5 miles and found tolerably good grass to turn cattle out to. Started very early this morning and drove as far as Willow Creek, 10 miles and camped again till evening. Plenty of willow to burn, but no running water. It is standing in holes along the creek and very poor. It will be 22 miles before we get water again.

Tuesday, September 13th — Ascended three steep, muddy hills this morning. Drove over some muddy, miry ground and through mud holes, and have just halted at the first farm to noon and rest awhile and buy feed for the stock. Paid $1.50 per hundred for hay. Price of fresh beef 16and 18 cts. per pound, butter ditto, 1 dollar, eggs 1 dollar a dozen, onions 4 and 5 dollars per bushel, all too dear for poor folks, so we have treated ourselves to some small turnips at the rate of 25 cents per dozen. Got rested and are now ready to travel again. Evening – Traveled 14miles today. Crossed Deep Creek and have encamped on the bank of it, a very dull looking place; grass very scarce. We may not call ourselves through they say; and there we are in Oregon, making our camp in a n ugly bottom, with no home, except our wagons and tent. It is drizzling and the weather looks dark and gloomy. Here old man Fuller left us and Wilson Carl remains.

Saturday, September 17th — In camp yet. Still raining. Noon – It has cleared off and we are all ready for a start again, for some place we don't know where. Evening – Came 6 miles and have encamped in a fence corner by a Mr. Lambert's, about 7 miles from Milwaukie. Turn our stock out to tolerable good feed. A few days later my eighth child was born. After this we picked up and ferried across the Columbia River, utilizing skiff, canoes and flatboat to get across, taking three days to complete. Here husband traded two yoke of oxen for a half section of land with one-half acre planted to potatoes and a small log cabin and lean-to with no windows. This is the journey's end.

Chicago Citations

Bibliography entry:

Knight, Amelia Stewart. "Diary of Mrs. Amelia Stewart Knight." *Transactions of the Fifty-Sixth Annual Reunion of the Oregon Pioneer Association* (1928). Portland, 1933. The American Yawp Reader.

Footnote citation:

Amelia Stewart Knight, diary entry, [date], 1853, in "Diary of Mrs. Amelia Stewart Knight," *Transactions of the Fifty-Sixth Annual Reunion of the Oregon Pioneer Association* (Portland, 1933), via The American Yawp Reader, https://www.americanyawp.com/reader/manifest-destiny/diary-of-a-woman-migrating-to-oregon-1853/.

Shortened citation:

Knight, diary, [date].

PRIMARY SOURCE P13.84

The Miner's Ten Commandments

James M. Hutchings ("Forty-Niner") · 1853

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	A popular satire shows the hopes, hardships, and moral worries of ordinary gold seekers.
TREATMENT	Facsimile of supplied copy, complete text

Historical Context

James M. Hutchings (1818–1902), an English immigrant who went to California in 1849, published this satire in 1853 as a pictorial letter sheet that miners could mail home. It sold tens of thousands of copies.

In mock-biblical language it lists the rules of the diggings, from claim-jumping and gambling to drinking and the wife or sweetheart left at home.

Editorial note: The pages reproduced are from a classroom copy supplied by the instructor, whose text follows the San Francisco Museum's online transcription; a few apparent typing errors there ("Though shalt," "cove") are reproduced as supplied. The copy's own citation misdates the letter sheet to 1843; it was published in 1853.

Document Facsimile

“The Miner's Ten Commandments” by James M. Hutchings

A man spake these words, and said: I am a miner, wandering "from away down east," to sojourn in a strange land. And behold I've seen the elephant, yea, verily, I saw him, and bear witness, that from the key of his trunk to the end of his tail, his whole body hath passed before me; and I followed him until his huge feet stood before a clapboard shanty; then with his trunk extended he pointed to a candle-card tacked upon a shingle, as though he would say Read, and I read the

MINERS' TEN COMMANDMENTS

I. Thou shalt have no other claim than one.

II. Thou shalt not make unto thyself any false claim, nor any likeness to a mean man, by jumping one: for I, a miner, am a just one, and will visit the miners around about, and they will judge thee; and when they shall decide, thou shalt take thy pick, thy pan, thy shovel and thy blankets with all thou hast and shall depart seeking other good diggings, but thou shalt find none. Then when thou hast paid out all thy dust, worn out thy boots and garments so that there is nothing good about them but the pockets, and thy patience is like unto thy garments, then in sorrow shall thou return to find thy claim worked out, and yet thou hath no pile to hide in the ground, or in the old boot beneath thy bunk, or in buckskin or in bottle beneath thy cabin, and at last thou shalt hire thy body out to make thy board and save thy bacon.

III. Thou shalt not go prospecting before thy claim gives out. Neither shalt thou take thy money, nor thy gold dust, nor thy good name, to the gaming table in vain; for monte, twenty-one, roulette, faro, lansquenet and poker, will prove to thee that the more thou puttest down the less thou shalt take up; and when thou thinkest of thy wife and children, thou shalt not hold thyself guiltless—but insane.

IV. Thou shalt not remember what thy friends do at home on the Sabbath day, lest the remembrance may not compare favorably with what thou doest here. Six days thou mayst dig or pick; but the other day is Sunday; yet thou washest all thy dirty shirts, darnest all thy stockings, tap thy boots, mend thy clothing, chop the whole week's firewood, make up and bake thy bread, and boil thy pork and beans, that thou wait not when thou returnest from thy long-tom weary. For in six days' labor only though canst do it in six months; and though, and thy morals and thy conscience, be none the better for it; but reproach thee, shouldst thou ever return with thy worn-out body to thy mother's fireside.

V. Though shalt not think more of all thy gold, and how thou canst make it fastest, than how thou will enjoy it after thou hast ridden rough-shod over thy good old parents' precepts and examples, that thou mayest have nothing to reproach thee, when left ALONE in the land where thy father's blessing and thy mother's love hath sent thee.

VI. Thou shalt not kill; neither thy body by working in the rain, even though thou shalt make enough to buy physic and attendance with; nor thy neighbor's body in a duel, or in anger, for by "keeping cool," thou canst save his life and thy conscience. Neither shalt thou destroy thyself by getting "tight," nor "stewed," nor "high," nor "corned," nor "half- seas over," nor "three sheets in the wind," by drinking smoothing down—"brandy slings," "gin cocktails," "whiskey punches," "rum toddies," nor "egg-noggs." Neither shalt thou suck "mint juleps," nor "sherry- cobblers," through a straw, nor gurgle from a bottle the "raw material," nor take "it straight" from a decanter; for, while thou art swallowing down thy purse, and the coat from off thy back thou art burning the coat from off thy stomach; and if thou couldst see the houses and lands, and gold dust, and home comforts already lying there—"a huge pile"—thou shouldst feel a choking in thy throat; and when to that thou addest thy crooked walkings thou wilt feel disgusted with thyself, and inquire "Is thy servant a dog that he doeth these things!" Verily, thou shalt say, "Farewell, old bottle, I will kiss thy gurgling lips no more; slings, cocktails, punches, smashes, cobblers, nogs, toddies, sangarees and juleps, forever farewell. Thy remembrance shames one; henceforth, I cut thy acquaintance, and headaches, tremblings, heart-burnings, blue devils, and all the unholy catalogue of

Facsimile, page 1.

evils that follow in thy train. My wife's smiles and my children's merry-hearted laugh, shall charm and reward me for having the manly firmness and courage to say NO. I wish thee an eternal farewell."

VII. Thou shalt not grow discouraged, nor think of going home before thou hast made thy "pile," because thou hast not "struck a lead," nor found a "rich crevice," nor sunk a hole upon a "pocket," lest in going home thou shalt leave four dollars a day, and going to work, ashamed, at fifty cents, and serve thee right; for thou knowest by staying here, thou mightst strike a lead and fifty dollars a day, and keep thy manly self-respect, and then go home with enough to make thyself and others happy.

VIII. Thou shalt not steal a pick, or a shovel, or a pan from thy fellow-miner; nor take away his tools without his leave; nor borrow those he cannot spare; nor return them broken, nor trouble him to fetch them back again, nor talk with him while his water rent is running on, nor remove his stake to enlarge thy claim, nor undermine his bank in following a lead, nor pan out gold from his "riffle box," nor wash the "tailings" from his sluice's mouth. Neither shalt thou pick out specimens from the company's pan to put them in thy mouth or pocket; nor cheat thy partner of his share; nor steal from thy cabin-mate his gold dust, to add to thine, for he will be sure to discover what thou hast done, and will straightaway call his fellow miners together, and if the law hinder them not, will hang thee, or give thy fifty lashes, or shave thy head and brand thee, like a horse thief, with "R" upon thy cheek, to be known and read of all men, Californians in particular.

IX. Thou shalt not tell any false tales about "good diggings in the mountains," to thy neighbor that thou mayest benefit a friend who had mules, and provisions, and tools and blankets he cannot sell,—lest in deceiving thy neighbor, when he returneth through the snow, with naught save his rifle, he present thee with the contents thereof, and like a dog, thou shalt fall down and die.

X. Thou shalt not commit unsuitable matrimony, nor covet "single blessedness;" nor forget absent maidens; nor neglect thy "first love;"—but thou shalt consider how faithfully and patiently she awaiteth thy return; yea and covereth each epistle that thou sendest with kisses of kindly welcome—until she hath thyself. Neither shalt thou cove thy neighbor's wife, nor trifle with the affections of his daughter; yet, if thy heart be free, and thou dost love and covet each other, thou shalt "pop the question" like a man.

A new Commandment give I unto thee—if thou has a wife and little ones, that thou lovest dearer than life,—that thou keep them continually before thee, to cheer and urge thee onward, until thou canst say, "I have enough—God bless them—I will return." Then from thy much-loved home, with open arms shall thy come forth to welcome thee, with weeping tears of unutterable joy that thou art come; then in the fullness of thy heart's gratitude, thou shalt kneel together before thy Heavenly Father, to thank him for thy safe return. AMEN—So mote it be.

-- FORTY-NINER

Facsimile, page 2 (text ends with the signature "Forty-Niner").

Chicago Citations

Bibliography entry:

Hutchings, James M. *The Miner's Ten Commandments*. Letter sheet. Placerville, CA, 1853. Text via Museum of the City of San Francisco.

Footnote citation:

James M. Hutchings, *The Miner's Ten Commandments* (letter sheet, 1853), commandment [number].

Shortened citation:

Hutchings, "Miner's Ten Commandments."

PRIMARY SOURCE P13.85

Treaty with the Comanche, Kiowa, and Apache (Fort Atkinson)

United States and the Comanche, Kiowa, and Apache · July 27, 1853

TOC FIT	Chapter 13 · Essay prompt 13.3 (Who Caused the Mexican-American War?)
WHY HERE	Years after the war, the United States is still trying to stop Comanche raids into Mexico.
TREATMENT	Public-domain text, selected articles

Historical Context

The Treaty of Guadalupe Hidalgo (Article 11) obligated the United States to stop Indian raids from its new territory into Mexico. For years the U.S. Army could not do so, and Comanche and Kiowa raiders continued to strike deep into northern Mexico.

At Fort Atkinson on the Arkansas River, U.S. agent Thomas Fitzpatrick negotiated this treaty. The tribes promised to let roads cross their lands, to stop raiding into the Mexican provinces, and to return Mexican captives, in return for annuities.

Editorial note: This treaty falls after the prompt's 1844–1848 range; use it as evidence of conditions that persisted. The text follows the Avalon Project transcription from Kappler.

Document Text

[. . .]

The Camanche, and Kiowa, and Apache tribes of Indians, parties to this treaty, do hereby solemnly covenant and agree to refrain in future from warlike incursions into the Mexican provinces, and from all depredations upon the inhabitants thereof; and they do likewise bind themselves to restore all captives that may hereafter be taken by any of the bands, war-parties, or individuals of the said several tribes, from the Mexican provinces aforesaid, and to make proper and just compensation for any wrongs that may be inflicted upon the people thereof by them, either to the United States or to the Republic of Mexico, as the President of the United States may direct and require.

ARTICLE 6.

In consideration of the foregoing agreements on the part of the Camanche, and Kiowa, and Apache tribes, parties to this treaty - of the losses which they may sustain by reason of the travel of the people of the United States through their territories - - and for the better support, and the improvement of the social condition of the said tribes - the United States do bind themselves, and by these presents stipulate to deliver to the Camanche, Kiowa, and Apache tribes aforesaid, the sum of eighteen thousand dollars per annum, for and during the term of ten years next ensuing from this date, and for the additional term of five years, if, in the opinion of the President of the United States, such extension shall be advisable; - the same to be given to them in goods, merchandise, provisions, or agricultural implements, or in such shape as may be best adapted to their wants, and as the President of the United States may designate, and to be distributed amongst the said several tribes in proportion to the respective numbers of each tribe.

ARTICLE 7.

The United States do moreover bind themselves, in consideration of the covenants contained in the preceding articles of this treaty, to protect and defend the Indian tribes, parties hereto, against the committal of any depredations upon them, and in their territories, by the people of the United States, for and during the term for

which this treaty shall be in force, and to compensate them for any injuries that may result therefrom.

ARTICLE 8.

It is also stipulated and provided, by and between the parties to this treaty, that should any of the Indian tribes aforesaid violate any of the conditions, provisions, or agreements herein contained, or fail to perform any of the obligations entered into on their part, then the United States may withhold the whole part or a part of the annuities mentioned in the sixth article of this treaty, from the tribe so offending, until, in the opinion of the President or the Congress of the United States, proper satisfaction shall have been made, or until persons amongst the said Indians offending against the laws of the United States shall have been delivered up to justice.

ARTICLE 9.

It is also consented to and determined between the parties hereto, that the annuities to be given on the part of the United States, as provided in the sixth article of this treaty, shall be delivered to the said Indian tribes collectively, at or in the vicinity of Beaver Creek, yearly, during the month of July in each year, until some other time and place shall have been designated by the President of the United States, in which event the said Indian tribes shall have due notice thereof, and the place of distribution which may be selected shall always be some point within the territories occupied by the said tribes.

ARTICLE 10.

It is agreed between the United States and the Camanche, Kiowa, and Apache tribes of Indians, that, should it at any time hereafter be considered by the United States as a proper policy to establish farms among and for the benefit of said Indians, it shall be discretionary with the President, by and with the advice and consent of the Senate, to change the annuities herein provided for, or any part thereof, into a fund for that purpose.

In witness whereof, the said Thomas Fitzpatrick, Indian Agent, and sole commissioner on the part of the United States, and the undersigned chiefs and headmen of the Camanche and Kiowa, and Apache tribes or nations, have hereunto set their hands, at Fort Atkinson, in the Indian Territory of the United States, this twenty-seventh day of July, A.D. eighteen hundred and fifty-three.

Thomas Fitzpatrick,
Indian Agent, and Commissioner on behalf of the United States.

B. Gratz Brown, Secretary.
R. H. Chilton.
B. T. Moylero.

Wulea-boo, his x mark (Shaved Head) chief Camanche
Wa-ya-ba-tos-a, his x mark (White Eagle) chief of band
Hai-nick-seu, his x mark (The Crow) chief of band
Paro-sa-wa-no, his x mark (Ten Sticks) chief of band
Wa-ra-kon-alta, his x mark (Poor Cayote Wolf) chief of band
Ka-na-re-tah, his x mark (One that Rides the Clouds) chief of the southern Camanches.
To-hau-sen, his x mark (Little Mountain) chief Kiowas
Si-tank-ki, his x mark (Sitting Bear) war chief
Tah-ka-eh-bool, his x mark (The Bad Smelling Saddle) headman
Che-koon-ki, his x mark (Black Horse) headman
On-ti-an-te, his x mark (The Snow Flake) headman
El-bo-in-ki, his x mark (Yellow Hair) headman
Si-tah-le, his x mark (Poor Wolf) chief Apache
Oh-ah-te-kah, his x mark (Poor Bear) headman

Ah-zaah, his x mark (Prairie Wolf) headman
Kootz-zah, his x mark (The Cigar) headman

[. . .]

Chicago Citations

Bibliography entry:

"Treaty with the Comanche, Kiowa, and Apache." July 27, 1853. In *Indian Affairs: Laws and Treaties*, compiled and edited by Charles J. Kappler, vol. 2. Washington, DC: Government Printing Office, 1904. Avalon Project, Yale Law School.

Footnote citation:

Treaty with the Comanche, Kiowa, and Apache, July 27, 1853, art. [number], in *Indian Affairs: Laws and Treaties*, ed. Charles J. Kappler (Washington, DC: Government Printing Office, 1904), 2:600, via Avalon Project, https://avalon.law.yale.edu/19th_century/cokiap53.asp.

Shortened citation:

Treaty with the Comanche, Kiowa, and Apache (1853), art. [number].

PRIMARY SOURCE P13.86

Appeal of the Independent Democrats in Congress to the People of the United States

Salmon P. Chase, Charles Sumner, Joshua R. Giddings, and others · January 19, 1854

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Antislavery congressmen charge that the Nebraska bill breaks a sacred pledge, showing how quickly the 1850 settlement came apart.
TREATMENT	Full public-domain text

Historical Context

In January 1854 Senator Stephen A. Douglas introduced a bill to organize Nebraska Territory that, as revised, would repeal the Missouri Compromise's ban on slavery north of 36°30'.

Six antislavery members of Congress answered with this appeal, published in newspapers across the North. They called the bill "a gross violation of a sacred pledge" and a plot to turn free territory into slave country. The appeal helped launch the movement that became the Republican Party.

Editorial note: The text follows the Teaching American History transcription of the *Congressional Globe*.

Document Text

As senators and representatives in the Congress of the United States it is our duty to warn our constituents, whenever imminent danger menaces the freedom of our institutions or the permanency of the Union.

Such danger, as we firmly believe, now impends, and we earnestly solicit your prompt attention to it.

At the last session of Congress a bill for the organization of the Territory of Nebraska passed the House of Representatives by an overwhelming majority. That bill was based on the principle of excluding slavery from the new Territory. It was not taken up for consideration in the Senate and consequently failed to become a law.

At the present session a new Nebraska bill has been reported by the Senate Committee on Territories, which, should it unhappily receive the sanction of Congress, will open all the unorganized territories of the Union to the ingress of slavery.

We arraign this bill as a gross violation of a sacred pledge; as a criminal betrayal of precious rights; as part and parcel of an atrocious plot to exclude from a vast unoccupied region immigrants from the Old World and free laborers from our own states, and convert it into a dreary region of despotism, inhabited by masters and slaves.

Take your maps, fellow citizens, we entreat you, and see what country it is which this bill gratuitously and recklessly proposes to open to slavery....

This immense region, occupying the very heart of the North American Continent, and larger, by thirty-three thousand square miles, than all the existing free states including California . . . the bill now before the Senate, without reason and without excuse, but in flagrant disregard of sound policy and sacred faith, purposes to open to slavery.

We beg your attention, fellow-citizens, to a few historical facts:

The original settled policy of the United States, clearly indicated by the Jefferson proviso of 1784 and the Ordinance of 1787, was non-extension of slavery. In 1803 Louisiana was acquired by purchase from France. . . .

Congress, instead of providing for the abolition of slavery in this new territory, permitted its continuance. In 1812, the state of Louisiana was organized and admitted into the Union with slavery.

In 1818, six years later, the inhabitants of the territory of Missouri applied to Congress for authority to form a state constitution, and for admission into the Union. There were, at that time, in the whole territory acquired from France, outside of the state of Louisiana, not three thousand slaves.

There was no apology, in the circumstances of the country, for the continuance of slavery. The original national policy was against it, and not less the plain language of the treaty under which the territory had been acquired from France.

It was proposed, therefore, to incorporate in the bill authorizing the formation of a state government, a provision requiring that the constitution of the new state should contain an article providing for the abolition of existing slavery, and prohibiting the further introduction of slaves.

This provision was vehemently and pertinaciously opposed, but finally prevailed in the House of Representatives by a decided vote. In the Senate it was rejected, and in consequence of the disagreement between the two Houses the bill was lost.

At the next session of Congress, the controversy was renewed with increased violence. It was terminated at length by a compromise. Missouri was allowed to come into the Union with slavery; but a section was inserted in the act authorizing her admission, excluding slavery forever from all the territory acquired from France, not included in the new state, lying north of 36° 30'. . . .

The question of the constitutionality of this prohibition was submitted by President Monroe to his cabinet. John Quincy Adams was then Secretary of State; John C. Calhoun was Secretary of War; William H. Crawford was Secretary of the Treasury; and William Wirt was Attorney-General. Each of these eminent men, three of them being from the slave states, gave a written opinion, affirming its constitutionality, and thereupon the act received the sanction of the president himself, also from a slave state.

Nothing is more certain in history than the fact that Missouri could not have been admitted as a slave state had not certain members from the free states been reconciled to the measure by the incorporation of this prohibition into the act of admission. Nothing is more certain than that this prohibition has been regarded and accepted by the whole country as a solemn compact against the extension of slavery into any part of the territory acquired from France lying north of 36° 30', and not included in the new state of Missouri. The same act—let it be ever remembered—which authorized the formation of a constitution by the state, without a clause forbidding slavery, consecrated, beyond question and beyond honest recall, the whole remainder of the territory to freedom and free institutions forever. For more than thirty years during more than half our national existence under our present Constitution—this compact has been universally regarded and acted upon as inviolable American law. In conformity with it, Iowa was admitted as a free state and Minnesota has been organized as a free territory.

It is a strange and ominous fact, well calculated to awaken the worst apprehensions and the most fearful forebodings of future calamities, that it is now deliberately proposed to repeal this prohibition, by implication or directly—the latter certainly the manlier way—and thus to subvert the compact, and allow slavery in all the yet unorganized territory. We cannot, in this address, review the various pretenses under which it is attempted to cloak this monstrous wrong, but we must not altogether omit to notice one.

It is said that Nebraska sustains the same relations to slavery as did the territory acquired from Mexico prior to 1850, and that the pro-slavery clauses of the bill are necessary to carry into effect the compromise of that year.

No assertion could be more groundless....

The compromise acts themselves refute this pretension. In the third article of the second section of the joint resolution for annexing Texas to the United States, it is expressly declared that “in such state or states as shall be formed out of said territory north of said Missouri compromise line, slavery or involuntary servitude, except for crime, shall be prohibited;” and in the act for organizing New Mexico and settling the boundary of Texas, a proviso was incorporated, . . . which distinctly preserves this prohibition, and flouts the barefaced pretension that all the territory of the United States, whether south or north of the Missouri compromise line, is to be open to slavery.

[. . .]

Chicago Citations

Bibliography entry:

Chase, Salmon P., et al. "Appeal of the Independent Democrats in Congress to the People of the United States." January 19, 1854. *Congressional Globe*, 33rd Cong., 1st Sess., 281–82. Teaching American History.

Footnote citation:

Salmon P. Chase et al., "Appeal of the Independent Democrats in Congress to the People of the United States," January 19, 1854, *Congressional Globe*, 33rd Cong., 1st Sess., 281–82, via Teaching American History, https://teachingamericanhistory.org/document/appeal-of-the-independent-democrats-in-congress-to-the-american-people/.

Shortened citation:

Chase et al., "Appeal of the Independent Democrats."

PRIMARY SOURCE P13.87

Treaty of Kanagawa

United States and Japan (Matthew C. Perry) · March 31, 1854

TOC FIT	Chapter 13 · Essay prompt 13.1 (What Drove Manifest Destiny?)
WHY HERE	The treaty shows the Pacific trade ambitions that followed the acquisition of California and Oregon.
TREATMENT	Full public-domain text

Historical Context

In 1853 Commodore Matthew C. Perry sailed a squadron of U.S. warships into Edo Bay to press Japan, which had limited foreign contact for two centuries, to open its ports. He returned in 1854 with a larger force.

The Treaty of Kanagawa opened two ports to American ships for supplies, promised care for shipwrecked sailors, and allowed a U.S. consul. It followed directly from the acquisition of a Pacific coast.

Editorial note: This treaty falls after the prompt's 1830–1848 range; use it only as evidence of what followed. The text follows the Avalon Project transcription from Hunter Miller's edition.

Document Text

The United States of American and the empire of Japan, desiring to establish firm, lasting and sincere friendship between the two nations, have resolved to fix, in a manner clear and positive by means of a treaty or general convention of peace and amity, the rules which shall in future be mutually observed in the intercourse of their respective countries; for which most desirable object the President of the United States has conferred full powers on his commissioner, Matthew Calbraith Perry, special ambassador of the United States to Japan and the august sovereign of Japan has given similar full powers to his commissioners, Hayashi-Daigaku-no-kami, Ido, Prince of Tsus-Sima; Izawa, Prince of Mmimasaki; and Udono, member of the Board of Revenue.

And the said commissioners after having exchanged their said full powers and duly considered the premises, have agreed to the following articles:

There shall be a perfect, permanent and universal peace, and a sincere and cordial amity, between the United States of American on the one part and between their people, respectfully, (respectively,) without exception of persons or places.

The port of Simoda, in the principality of Idzu and the port of Hakodadi, in the pricipality of Matsmai are granted by the Japanese as ports for he reception for American ships, where they can be supplied with wood, water, provisions and coal, and other articles their necessities may require, as far as the Japanese have them. The time for opening the first named port is immediately on signing this treaty; the last named port is to be opened immediately after the same day in the ensuing Japanese year.

Note- A tariff of prices shall be given by the Japanese officers of the things which they can furnish, payment for which shall be made in gold, and silver coin.

Whenever ships of the United States are thrown or wrecked on the coast of Japan, the Japanese vessels will assist them, and carry their crews to Simoda or Hakodadi and hand them over to their countrymen appointed to receive them. Whatever articles the shipwrecked men may have preserved shall likewise be restored and the expenses incurred in the rescue and support of Americans and Japanese who may thus be thrown up on the shores of either nation are not to be refunded.

Those shipwrecked persons and other citizens of the United States shall be free as in the other countries and not subjected to confinement but shall be amenable to just laws.

Shipwrecked men and other citizens of the United States, temporarily living at Simoda and Hakodadi, shall not be subject to such restrictions and confinement as the Dutch and Chinese are at Nagasakil but shall be free at Simoda to go where they please within the limits of seven Japanese miles from a small island in the harbor of Simoda, marked on the accompanying chart hereto appended; and shall in like manner be free to go where they please at Hakodadi, within limits to be defined after the visit of the United States squadron to that place.

If there be any other sort of goods wanted or any business which shall require to be arranged, there shall be careful deliberation between the particles in order to settle such matters.

It is agreed that ships of the United states resorting to the ports open to them, shall be permitted to exchange gold and silver coin and articles of goods for other articles of goods under such regulations as shall be temporarily established by the Japanese government for that purpose. It is stipulated, however that the ships of the United States shall be permitted to carry away whatever articles they are unwilling to exchange.

Wood, water provisions, coal and goods required shall only be procured through the agency of Japanese officers appointed for that purpose, and in no other manner.

It is agreed, that if, at any future day, the government of Japan shall grant to any other nation or nations privileges and advantages which are not herein granted to the United states and the citizens thereof, that these same privileges and advantages shall be granted likewise to the United States and to the citizens thereof without any consultation or delay.

[. . .]

Chicago Citations

Bibliography entry:

"Treaty of Kanagawa." March 31, 1854. In *Treaties and Other International Acts of the United States of America*, edited by Hunter Miller, vol. 6. Washington, DC: Government Printing Office, 1942. Avalon Project, Yale Law School.

Footnote citation:

Treaty of Kanagawa, March 31, 1854, art. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/japan002.asp.

Shortened citation:

Treaty of Kanagawa, art. [number].

PRIMARY SOURCE P13.88

An Act to Organize the Territories of Nebraska and Kansas (excerpt)

U.S. Congress · May 30, 1854

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The act uses the 1850 Compromise's own principle to reopen the whole territorial question four years later.
TREATMENT	Public-domain text, selected sections

Historical Context

Senator Stephen A. Douglas of Illinois wanted the Nebraska country organized so a transcontinental railroad could run west from Chicago. To win southern votes he agreed to repeal the Missouri Compromise's ban on slavery north of 36°30'.

The act created two territories, Kansas and Nebraska, and left the question of slavery to their settlers. Section 14 declared the Missouri restriction "inoperative and void" because it conflicted with the principle of non-intervention recognized in the 1850 measures.

Editorial note: The text follows the Avalon Project transcription from the *Statutes at Large*.

Document Text

[. . .]

SEC. 14. And be it further enacted, That a delegate to the House of Representatives of the United States, to serve for the term of two years, who shall be a citizen of the United States, may be elected by the voters qualified to elect members of the Legislative Assembly, who shall be entitled to the same rights and privileges as are exercised and enjoyed by the delegates from the several other Territories of the United States to the said House of Representatives, but the delegate first elected shall hold his seat only during the term of the Congress to which he shall be elected. The first election shall be held at such time and places, and be conducted in such manner, as the Governor shall appoint and direct; and at all subsequent elections the times, places, and manner of holding the elections, shall be prescribed by law. The person having the greatest number of votes shall be declared by the Governor to be duly elected; and a certificate thereof shall be given accordingly. That the Constitution, and all Laws of the United States which are not locally inapplicable, shall have the same force and effect within the said Territory of Nebraska as elsewhere within the United States, except the eighth section of the act preparatory to the admission of Missouri into the Union approved March sixth, eighteen hundred and twenty, which, being inconsistent with the principle of non-intervention by Congress with slaves in the States and Territories, as recognized by the legislation of eighteen hundred and fifty, commonly called the Compromise Measures, is hereby declared inoperative and void; it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States: Provided, That nothing herein contained shall be construed to revive or put in force any law or regulation which may have existed prior to the act of sixth March, eighteen hundred and twenty, either protecting, establishing, prohibiting, or abolishing slavery.

SEC. 15. And Be it further enacted, That there shall hereafter be appropriated, as has been customary for the Territorial governments, sufficient amount, to be expended under the direction of the said Governor of the Territory of Nebraska, not exceeding the sums heretofore appropriated for similar objects, for the erection of

suitable public buildings at the seat of government, and for the purchase of a library, to be kept at the seat of government for the use of the Governor, Legislative Assembly, Judges of the Supreme Court, Secretary, Marshal, and Attorney of said Territory, and such other persons, and under such regulations as shall be prescribed by law.

SEC. 16. And be it further enacted, That when the lands in the said Territory shall be surveyed under the direction of the government of the United States, preparatory to bringing the same into market, section; numbered sixteen and thirty-six in each township in said Territory shall be, and the same are hereby, reserved for the purpose of being applied to schools in said Territory, and in the States and Territories hereafter to be erected out of the same.

SEC. 17. And be it further enacted, That, until otherwise provided by law, the Governor of said Territory may define the Judicial Districts of said Territory, and assign the judges who may be appointed for said Territory to the several districts; and also appoint the times and places for holding courts in the several counties or subdivisions in each of said Judicial Districts by proclamation, to be issued by him; but the Legislative Assembly, at their first or any subsequent session, may organize, alter, or modify such Judicial Districts, and assign the judges, and alter the times and places of holding the courts, as to them shall seem proper and convenient.

SEC. 18. And be it further enacted, That all officers to be appointed by the President, by and with the advice and consent of the Senate, for the Territory of Nebraska, who, by virtue of the provisions of any law now existing, or which may be enacted during the present Congress, are required to give security for moneys that may be intrusted with them for disbursement, shall give such security, at such time and place, and in such manner, as the Secretary of the Treasury may prescribe.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Organize the Territories of Nebraska and Kansas." May 30, 1854. *United States Statutes at Large* 10:277. Avalon Project, Yale Law School.

Footnote citation:

An Act to Organize the Territories of Nebraska and Kansas, May 30, 1854, sec. 14, *Statutes at Large* 10:277, via Avalon Project, https://avalon.law.yale.edu/19th_century/kanneb.asp.

Shortened citation:

Kansas-Nebraska Act, sec. [number].

PRIMARY SOURCE P13.89

Speech at Peoria, Illinois, on the Repeal of the Missouri Compromise (excerpt)

Abraham Lincoln · October 16, 1854

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	Lincoln treats 1850 as a working bargain and argues that the 1854 act broke the peace.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The Kansas-Nebraska Act drew Abraham Lincoln, then a lawyer and former one-term congressman, back into politics. He followed Stephen Douglas around Illinois in the fall of 1854 and answered him at Peoria in a speech of some three hours.

Lincoln described the Compromise of 1850 as a sectional bargain that left the Missouri line standing, and argued that its repeal was wrong because it let slavery spread. He insisted he had no prejudice against southerners, who were "just what we would be in their situation."

Editorial note: The text follows the 1907 *Life and Works of Abraham Lincoln* as transcribed by Teaching American History; editors' footnote numbers have been removed.

Document Text

[. . .]

I think, and shall try to show, that it is wrong; wrong in its direct effect, letting slavery into Kansas and Nebraska—and wrong in its prospective principle, allowing it to spread to every other part of the wide world, where men can be found inclined to take it.

This declared indifference, but as I must think, covert real zeal for the spread of slavery, I cannot but hate. I hate it because of the monstrous injustice of slavery itself. I hate it because it deprives our republican example of its just influence in the world—enables the enemies of free institutions, with plausibility, to taunt us as hypocrites—causes the real friends of freedom to doubt our sincerity, and especially because it forces so many really good men amongst ourselves into an open war with the very fundamental principles of civil liberty—criticizing the Declaration of Independence, and insisting that there is no right principle of action but self-interest.

Before proceeding, let me say I think I have no prejudice against the southern people. They are just what we would be in their situation. If slavery did not now exist amongst them, they would not introduce it. If it did now exist amongst us, we should not instantly give it up. This I believe of the masses north and south. Doubtless there are individuals on both sides who would not hold slaves under any circumstances; and others who would gladly introduce slavery anew, if it were out of existence. We know that some southern men do free their slaves, go north, and become tip-top abolitionists; while some northern ones go south and become most cruel slave masters.

When southern people tell us they are no more responsible for the origin of slavery than we, I acknowledge the fact. When it is said that the institution exists; and that it is very difficult to get rid of it, in any satisfactory way, I can understand and appreciate the saying. I surely will not blame them for not doing what I should not know how to do myself. If all earthly power were given me, I should not know what to do, as to the existing institution. My first impulse would be to free all the slaves and send them to Liberia—to their own native land. But a moment's reflection would convince me, that whatever of high hope (as I think there is) there may be in this, in the long run,

its sudden execution is impossible. If they were all landed there in a day, they would all perish in the next ten days; and there are not surplus shipping and surplus money enough in the world to carry them there in many times ten days. What then? Free them all, and keep them among us as underlings? Is it quite certain that this betters their condition? I think I would not hold one in slavery, at any rate; yet the point is not clear enough for me to denounce people upon. What next? Free them, and make them politically and socially our equals? My own feelings will not admit of this; and if mine would, we well know that those of the great mass of white people will not. Whether this feeling accords with justice and sound judgment is not the sole question, if indeed, it is any part of it. A universal feeling, whether well or ill founded, cannot be safely disregarded. We cannot, then, make them equals. It does seem to me that systems of gradual emancipation might be adopted; but for their tardiness in this, I will not undertake to judge our brethren of the South.

When they remind us of their constitutional rights, I acknowledge them, not grudgingly, but fully, and fairly; and I would give them any legislation for the reclaiming of their fugitives, which should not, in its stringency, be more likely to carry a free man into slavery, than our ordinary criminal laws are to hang an innocent one.

But all this, to my judgment, furnishes no more excuse for permitting slavery to go into our own free territory, than it would for reviving the African slave trade by law. The law which forbids the bringing of slaves from Africa; and that which has so long forbid the taking them to Nebraska, can hardly be distinguished on any moral principle; and the repeal of the former could find quite as plausible excuses as that of the latter.

[. . .]

I trust I understand, and truly estimate the right of self-government. My faith in the proposition that each man should do precisely as he pleases with all which is exclusively his own, lies at the foundation of the sense of justice there is in me. I extend the principles to communities of men, as well as to individuals. I so extend it, because it is politically wise, as well as naturally just; politically wise, in saving us from broils about matters which do not concern us. Here, or at Washington, I would not trouble myself with the oyster laws of Virginia, or the cranberry laws of Indiana.

The doctrine of self-government is right—absolutely and eternally right— but it has no just application, as here attempted. Or perhaps I should rather say that whether it has such just application depends upon whether a Negro is not or is a man. If he is not a man, why, in that case he who is a man may, as a matter of self-government, do just as he pleases with him. But if the Negro is a man, is it not to that extent a total destruction of self-government to say that he too shall not govern himself? When the white man governs himself, that is self-government; but when he governs himself, and also governs another man, that is more than self-government—that is despotism. If the Negro is a man, why, then, my ancient faith teaches me that “all men are created equal”; and that there can be no moral right in connection with one man’s making a slave of another. Judge Douglas frequently, with bitter irony and sarcasm, paraphrases our argument by saying “The white people of Nebraska are good enough to govern themselves, but they are not good enough to govern a few miserable Negroes!!”

Well, I doubt not that the people of Nebraska are, and will continue to be as good as the average of people elsewhere. I do not say the contrary. What I do say is, that no man is good enough to govern another man, without that other’s consent. I say this is the leading principle—the sheet anchor of American republicanism. Our Declaration of Independence says:

We hold these truths to be self-evident: that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed.

I have quoted so much at this time merely to show that according to our ancient faith, the just powers of governments are derived from the consent of the governed. Now, the relation of masters and slaves is, pro tanto, a total violation of this principle. The master not only governs the slave without his consent; but he governs him by a

set of rules altogether different from those which he prescribes for himself. Allow ALL the governed an equal voice in the government, and that, and that only, is self-government.

Let it not be said I am contending for the establishment of political and social equality between the whites and blacks. I have already said the contrary. I am not now combating the argument of necessity, arising from the fact that the blacks are already amongst us; but I am combating what is set up as moral argument for allowing them to be taken where they have never yet been—arguing against the extension of a bad thing, which where it already exists we must of necessity manage as we best can.

[. . .]

Let no one be deceived. The spirit of seventy-six and the spirit of Nebraska are utter antagonisms; and the former is being rapidly displaced by the latter. Fellow countrymen—Americans south as well as north, shall we make no effort to arrest this? Already the liberal party throughout the world express the apprehension "that the one retrograde institution in America, is undermining the principles of progress, and fatally violating the noblest political system the world ever saw."12 This is not the taunt of enemies, but the warning of friends. Is it quite safe to disregard it—to despise it? Is there no danger to liberty itself, in discarding the earliest practice, and first precept of our ancient faith? In our greedy chase to make profit of the Negro, let us beware, lest we "cancel and tear to pieces" even the white man's charter of freedom.

Our republican robe is soiled, and trailed in the dust. Let us repurify it. Let us turn and wash it white, in the spirit, if not the blood, of the Revolution. Let us turn slavery from its claims of "moral right" back upon its existing legal rights, and its arguments of "necessity." Let us return it to the position our fathers gave it; and there let it rest in peace. Let us readopt the Declaration of Independence, and with it, the practices, and policy, which harmonize with it. Let North and South—let all Americans—let all lovers of liberty everywhere—join in the great and good work. If we do this, we shall not only have saved the Union; but we shall have so saved it, as to make, and to keep it, forever worthy of the saving. We shall have so saved it, that the succeeding millions of free happy people, the world over, shall rise up and call us blessed, to the latest generations.

[. . .]

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Speech on the Repeal of the Missouri Compromise, Peoria, Illinois, October 16, 1854. In *Life and Works of Abraham Lincoln*, Centenary ed., edited by Marion Mills Miller, vol. 2. New York: Current Literature, 1907. Teaching American History.

Footnote citation:

Abraham Lincoln, speech at Peoria, Illinois, October 16, 1854, in *Life and Works of Abraham Lincoln*, ed. Marion Mills Miller (New York: Current Literature, 1907), vol. 2, via Teaching American History, https://teachingamericanhistory.org/document/speech-on-the-repeal-of-the-missouri-compromise/.

Shortened citation:

Lincoln, Peoria speech.

PRIMARY SOURCE P13.90

The Crime against Kansas (excerpt)

Charles Sumner · Senate, May 19–20, 1856

TOC FIT	Chapter 13 · Essay prompts 13.4 (Settlement or Armistice? The Compromise of 1850) and 13.5 (Why Did the Lower South Secede?)
WHY HERE	A Republican senator charges the Slave Power with crimes in Kansas, in the speech that provoked the caning.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Charles Sumner (1811–1874), an antislavery senator from Massachusetts, spoke for two days in May 1856 against the proslavery forces in Kansas Territory and the Pierce administration that supported them.

Sumner called the effort to force slavery on Kansas a "crime" and personally insulted Senator Andrew Butler of South Carolina. Two days later Butler's relative, Representative Preston Brooks, beat Sumner unconscious with a cane at his Senate desk.

Editorial note: This speech falls after 1854; use it as evidence of what followed the Kansas-Nebraska Act. The text follows the Wikisource transcription of the 1856 pamphlet.

Document Text

[. . .]

You are now called to redress a great transgression. Seldom in the history of nations has such a question been presented. Tariffs, army bills, navy bills, land bills, are important, and justly occupy your care; but these all belong to the course of ordinary legislation. As means and instruments only, they are necessarily subordinate to the conservation of government itself. Grant them or deny them, in greater or less degree, and you will inflict no shock. The machinery of government will continue to move. The State will not cease to exist. Far otherwise is it with the eminent question now before you, involving, as it does, liberty in a broad Territory, and also involving the peace of the whole country, with our good name in history forevermore.

Take down your map, sir, and you will find that the Territory of Kansas, more than any other region, occupies the middle spot of North America, equally distant from the Atlantic on the east, and the Pacific on the west; from the frozen waters of Hudson's Bay on the north, and the tepid Gulf Stream on the south, constituting the precise territorial centre of the whole vast continent. To such advantages of situation, on the very highway between two oceans, are added a soil of unsurpassed richness, and a fascinating, undulating beauty of surface, with a health-giving climate, calculated to nurture a powerful and gene rous people, worthy to be a central pivot of American institutions. A few short months only have passed since this spacious mediterranean country was opened only to the savage, who ran wild in its woods and prairies; and now it has already drawn to its bosom a population of freemen larger than Athens crowded. within her historic gates, when her sons, under Miltiades, won liberty for mankind on the field of Marathon; more than Sparta contained, when she ruled Greece, and sent forth her devoted children, quickened by a mother's benediction, to return with their shields or on them; more than Rome gathered on her seven hills, when, under her kings, she commenced that sovereign sway, which afterwards embraced the whole earth; more than London held, when, on the fields of Crecy and Agincourt, the English banner was carried victoriously over the chivalrous hosts of France.

Against this territory, thus fortunate in position and population, a Crime has been committed which is without example in the records of the past. Not in plundered provinces, or in the cruelties of selfish governors, will you find

its parallel; and yet there is an ancient instance, which may show, at least, the path of justice. In the terrible impeachment by which the great Roman orator has blasted, through all time, the name of Verres, amidst charges of robbery and sacrilege, the "enormity which most aroused the indignant voice of his accuser, and which still stands forth with strongest distinctness, arresting the sympathetic indignation of all who read the story, is, that, away in Sicily, he had scourged a citizen of Rome—that the cry "I am a Roman citizen" had been interposed in vain against the lash of the tyrant governor. Other charges were, that he had carried away productions of art, and that he had violated the sacred shrines. It was in the presence of the Roman Senate that this arraignment proceeded; in a temple of the Forum; amidst crowds, such as no orator had ever before drawn together, thronging the porticos and colonnades, even clinging to the house-tops and neighboring slopes, and under the anxious gaze of witnesses summoned from the scene of crime. But an audience grander far, of higher dignity, of more various people and of wider intelligence,—the countless multitude of succeeding generations, in every land where eloquence has been studied, or where the Roman name has been recognized,—has listened to the accusation, and throbbed with condemnation of the criminal. Sir, speaking in an age of light and in a land of constitutional liberty, where the safeguards of elections are justly placed among the highest triumphs of civilization, I fearlessly assert that the wrongs of much-abused Sicily, thus memorable in history, were small by the side of the wrongs of Kansas, where the very shrines of popular institutions, more sacred than any heathen altar, have been desecrated; where the ballot-box, more precious than any work in ivory or marble, from the cunning hand of art, has been plundered; and where the cry "I am an American citizen" has been interposed in vain against outrage of every kind, even upon life itself. Are you against sacrilege?—I present it for your execration. Are you against robbery?—I hold it up for your scorn. Are you for the protection of American citizens?—I show I show you how their dearest rights have been cloven down, while a tyrannical usurpation has sought to install itself on their very necks!

[. . .]

The contest, which, beginning in Kansas, has reached us, will soon be transferred to a broader stage, where every citizen will be not only spectator, but actor; and to their judgment I confidently appeal. To the People, now on the eve of exercising the electoral franchise, in choosing a Chief Magistrate of the Republic, I appeal, to vindicate the electoral franchise in Kansas. Let the ballot-box of the Union, with multitudinous might, protect the ballot-box in that Territory. Let the voters everywhere, while rejoicing in their own rights, help to guard the equal rights of distant fellow-citizens; that the shrines of popular institutions, now desecrated, may be sanctified anew; that the ballot-box, now plundered, may be restored; and that the cry, "I am an American citizen," may not be sent forth in vain against outrage of every kind. In just regard for free labor in that Territory, which it is sought to blast by unwelcome association with slave labor; in Christian sympathy with the slave, whom it is proposed to task and to sell there; in stern condemnation of the Crime which has been consummated on that beautiful soil; in rescue of fellow-citizens, now subju gated to a tyrannical Usurpation; in dutiful respect for the early Fathers, whose aspirations are now ignobly thwarted; in the name of the Constitution, which has been outraged—of the Laws trampled down—of Justice banished—of Humanity degraded—of Peace destroyed—of Freedom crushed to earth; and in the name of the Heavenly Father, whose service is perfect Freedom, I make this last appeal.

[. . .]

Chicago Citations

Bibliography entry:

Sumner, Charles. *The Crime against Kansas: Speech of Hon. Charles Sumner in the Senate of the United States, 19th and 20th May, 1856*. Boston: John P. Jewett, 1856. Wikisource.

Footnote citation:

Charles Sumner, *The Crime against Kansas* (Boston: John P. Jewett, 1856), [page], via Wikisource.

Shortened citation:

Sumner, *Crime against Kansas*, [page].

PRIMARY SOURCE P13.91

Democratic Party Platform of 1856 (excerpt)

Democratic National Convention, Cincinnati · June 6, 1856

TOC FIT	Chapter 13 · Essay prompt 13.4 (Settlement or Armistice? The Compromise of 1850)
WHY HERE	The Democratic platform defends the 1850 and 1854 measures as the final settlement of the slavery question.
TREATMENT	Public-domain text, selected resolutions

Historical Context

Meeting at Cincinnati in June 1856, the Democrats nominated James Buchanan of Pennsylvania, who had been abroad as minister to Britain during the Kansas-Nebraska fight.

The platform endorsed the Compromise of 1850 and the Kansas-Nebraska Act as "the only sound and safe solution of the slavery question," defended popular sovereignty, and condemned both abolitionism and the nativist Know-Nothings.

Editorial note: The text follows the Wikisource transcription from a 1906 compilation of party platforms.

Document Text

Democratic Platform, adopted at Cincinnati, June 6.

Resolved, That the American democracy place their trust in the intelligence, the patriotism, and the discriminating justice of the American people.

Resolved, That we regard this as a distinctive feature of our political creed, which we are proud to maintain before the world as a great moral element in a form of government springing from and upheld by the popular will; and we contrast it with the creed and practice of federalism, under whatever name or form, which seeks to palsy the will of the constituent, and which conceives no imposture too monstrous for the popular credulity.

Resolved, therefore, That entertaining these views, the Democratic party of this Union, through their delegates, assembled in general convention, coming together in a spirit of concord, of devotion to the doctrines and faith of a free representative government, and appealing to their fellow citizens for the rectitude of their intentions, renew and reassert, before the American people, the declaration of principles avowed by them, when, on former occasions, in general convention, they have presented their candidates for the popular suffrage.

1. That the Federal government is one of limited power, derived solely from the constitution, and the grants of power made therein ought to be strictly construed by all the departments and agents of the government, and that it is inexpedient and dangerous to exercise doubtful constitutional powers.

[. . .]

10. That the liberal principles embodied by Jefferson in the Declaration of Independence, and sanctioned in the Constitution, which makes ours the land of liberty and the asylum of the oppressed of every nation, have ever been cardinal principles in the democratic faith; and every attempt to abridge the privilege of becoming citizens and owners of soil among us, ought to be resisted with the same spirit which swept the alien and sedition laws from our statute books.

And whereas, Since the foregoing declaration was uniformly adopted by our predecessors in national conventions, an adverse political and religious test has been secretly organized by a party claiming to be exclusively Americans, and it is proper that the American democracy should clearly define its relations thereto; and declare its determined

opposition to all secret political societies, by whatever name they may be called—

Resolved, That the foundation of this union of states having been laid in, and its prosperity, expansion, and pre-eminent example in free government built upon, entire freedom of matters of religious concernment, and no respect of persons in regard to rank or place of birth, no party can justly be deemed national, constitutional, or in accordance with American principles, which bases its exclusive organization upon religious opinions and accidental birth-place. And hence a political crusade in the nineteenth century, and in the United States of America, against Catholics and foreign-born, is neither justified by the past history or future prospects of the country, nor in unison with the spirit of toleration and enlightened freedom which peculiarly distinguishes the American system of popular government.

[. . .]

Chicago Citations

Bibliography entry:

Democratic Party. "Democratic Platform, Adopted at Cincinnati, June 6, 1856." In *Conspectus of the History of Political Parties and the Federal Government*. 1906. Wikisource.

Footnote citation:

Democratic Party Platform, June 6, 1856, in *Conspectus of the History of Political Parties and the Federal Government* (1906), via Wikisource.

Shortened citation:

Democratic Platform of 1856.

PRIMARY SOURCE P13.92

Republican Party Platform of 1856

Republican National Convention, Philadelphia · June 18, 1856

TOC FIT	Chapter 13 · Essay prompts 13.4 (Settlement or Armistice? The Compromise of 1850) and 13.5 (Why Did the Lower South Secede?)
WHY HERE	The new party's founding platform rejects popular sovereignty and calls on Congress to ban slavery in the territories.
TREATMENT	Full public-domain text

Historical Context

The Republican Party formed in 1854 in opposition to the Kansas-Nebraska Act, drawing antislavery Whigs, Free Soilers, and northern Democrats. Its first national convention met in Philadelphia in June 1856 and nominated John C. Frémont.

The platform declared it the right and duty of Congress to prohibit in the territories "those twin relics of barbarism—Polygamy, and Slavery," and demanded that Kansas be admitted as a free state.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

This Convention of Delegates, assembled in pursuance of a call addressed to the people of the United States, without regard to past political differences or divisions, who are opposed to the repeal of the Missouri Compromise; to the policy of the present Administration; to the extension of Slavery into Free Territory; in favor of the admission of Kansas as a Free State; of restoring the action of the Federal Government to the principles of Washington and Jefferson; and for the purpose of presenting candidates for the offices of President and Vice-President, do resolve as follows:

Resolved: That the maintenance of the principles promulgated in the Declaration of Independence, and embodied in the Federal Constitution are essential to the preservation of our Republican institutions, and that the Federal Constitution, the rights of the States, and the union of the States, must and shall be preserved.

Resolved: That, with our Republican fathers, we hold it to be a self-evident truth, that all men are endowed with the inalienable right to life, liberty, and the pursuit of happiness, and that the primary object and ulterior design of our Federal Government were to secure these rights to all persons under its exclusive jurisdiction; that, as our Republican fathers, when they had abolished Slavery in all our National Territory, ordained that no person shall be deprived of life, liberty, or property, without due process of law, it becomes our duty to maintain this provision of the Constitution against all attempts to violate it for the purpose of establishing Slavery in the Territories of the United States by positive legislation, prohibiting its existence or extension therein. That we deny the authority of Congress, of a Territorial Legislation, of any individual, or association of individuals, to give legal existence to Slavery in any Territory of the United States, while the present Constitution shall be maintained.

Resolved: That the Constitution confers upon Congress sovereign powers over the Territories of the United States for their government; and that in the exercise of this power, it is both the right and the imperative duty of Congress to prohibit in the Territories those twin relics of barbarism--Polygamy, and Slavery.

Resolved: That while the Constitution of the United States was ordained and established by the people, in order to "form a more perfect union, establish justice, insure domestic tranquility, provide for the common defense, promote the general welfare, and secure the blessings of liberty," and contain ample provision for the protection of the life, liberty, and property of every citizen, the dearest Constitutional rights of the people of Kansas have been

fraudulently and violently taken from them.

Their Territory has been invaded by an armed force;

Spurious and pretended legislative, judicial, and executive officers have been set over them, by whose usurped authority, sustained by the military power of the government, tyrannical and unconstitutional laws have been enacted and enforced;

The right of the people to keep and bear arms has been infringed.

Test oaths of an extraordinary and entangling nature have been imposed as a condition of exercising the right of suffrage and holding office.

The right of an accused person to a speedy and public trial by an impartial jury has been denied;

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, has been violated;

They have been deprived of life, liberty, and property without due process of law;

That the freedom of speech and of the press has been abridged;

The right to choose their representatives has been made of no effect;

Murders, robberies, and arsons have been instigated and encouraged, and the offenders have been allowed to go unpunished;

That all these things have been done with the knowledge, sanction, and procurement of the present National Administration; and that for this high crime against the Constitution, the Union, and humanity, we arraign that Administration, the President, his advisers, agents, supporters, apologists, and accessories, either before or after the fact, before the country and before the world; and that it is our fixed purpose to bring the actual perpetrators of these atrocious outrages and their accomplices to a sure and condign punishment thereafter.

Resolved, That Kansas should be immediately admitted as a state of this Union, with her present Free Constitution, as at once the most effectual way of securing to her citizens the enjoyment of the rights and privileges to which they are entitled, and of ending the civil strife now raging in her territory.

Resolved, That the highwayman's plea, that "might makes right," embodied in the Ostend Circular, was in every respect unworthy of American diplomacy, and would bring shame and dishonor upon any Government or people that gave it their sanction.

Resolved, That a railroad to the Pacific Ocean by the most central and practicable route is imperatively demanded by the interests of the whole country, and that the Federal Government ought to render immediate and efficient aid in its construction, and as an auxiliary thereto, to the immediate construction of an emigrant road on the line of the railroad.

Resolved, That appropriations by Congress for the improvement of rivers and harbors, of a national character, required for the accommodation and security of our existing commerce, are authorized by the Constitution, and justified by the obligation of the Government to protect the lives and property of its citizens.

Resolved, That we invite the affiliation and cooperation of the men of all parties, however differing from us in other respects, in support of the principles herein declared; and believing that the spirit of our institutions as well as the Constitution of our country, guarantees liberty of conscience and equality of rights among citizens, we oppose all legislation impairing their security.

Chicago Citations

Bibliography entry:

Republican Party. "Republican Party Platform of 1856." June 18, 1856. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Republican Party Platform of 1856, June 18, 1856, American Presidency Project, https://www.presidency.ucsb.edu/documents/republican-party-platform-1856.

Shortened citation:

Republican Platform of 1856.

PRIMARY SOURCE P13.93

Dred Scott v. Sandford, 60 U.S. 393 (1857) (excerpt)

Chief Justice Roger B. Taney, opinion of the Court · March 6, 1857

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The Court's ruling denied Black citizenship and swept away the Republican program of barring slavery from the territories.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Dred Scott, an enslaved man, had lived with his owner, an army surgeon, in Illinois and in the Wisconsin Territory, where slavery was barred. He sued for his freedom in Missouri, and the case reached the Supreme Court.

Chief Justice Roger B. Taney of Maryland ruled that Black Americans, free or enslaved, were not citizens and could not sue in federal court, and that Congress had no power to ban slavery from the territories. The Missouri Compromise, already repealed, was declared unconstitutional.

Editorial note: The text follows the Justia transcription of the official report.

Document Text

[. . .]

We think they are before us. The plea in abatement and the judgment of the court upon it are a part of the judicial proceedings in the Circuit Court and are there recorded as such, and a writ of error always brings up to the superior court the whole record of the proceedings in the court below. And in the case of the United States v. Smith, 11 Wheat. 171, this court said, that the case being brought up by writ of error, the whole record was under the consideration of this court. And this being the case in the present instance, the plea in abatement is necessarily under consideration, and it becomes, therefore, our duty to decide whether the facts stated in the plea are or are not sufficient to show that the plaintiff is not entitled to sue as a citizen in a court of the United States.

This is certainly a very serious question, and one that now for the first time has been brought for decision before this court. But it is brought here by those who have a right to bring it, and it is our duty to meet it and decide it.

The question is simply this: can a negro whose ancestors were imported into this country and sold as slaves become a member of the political community formed and brought into existence by the Constitution of the United States, and as such become entitled to all the rights, and privileges, and immunities, guarantied by that instrument to the citizen, one of which rights is the privilege of suing in a court of the United States in the cases specified in the Constitution?

It will be observed that the plea applies to that class of persons only whose ancestors were negroes of the African race, and imported into this country and sold and held as slaves. The only matter in issue before the court, therefore, is, whether the descendants of such slaves, when they shall be emancipated, or who are born of parents who had become free before their birth, are citizens of a State in the sense in which the word "citizen" is used in the Constitution of the United States. And this being the only matter in dispute on the pleadings, the court must be understood as speaking in this opinion of that class only, that is, of those persons who are the descendants of Africans who were imported into this country and sold as slaves.

The situation of this population was altogether unlike that of the Indian race. The latter, it is true, formed no part of the colonial communities, and never amalgamated with them in social connections or in government. But although they were uncivilized, they were yet a free and independent people, associated together in nations or tribes and governed by their own laws. Many of these political communities were situated in territories to which the white race claimed the ultimate right of dominion. But that claim was acknowledged to be subject to the right of the Indians to occupy it as long as they thought proper, and neither the English nor colonial Governments claimed or exercised any dominion over the tribe or nation by whom it was occupied, nor claimed the right to the possession of the territory, until the tribe or nation consented to cede it. These Indian Governments were regarded and treated as foreign Governments as much so as if an ocean had separated the red man from the white, and their freedom has constantly been acknowledged, from the time of the first emigration to the English colonies to the present day, by the different Governments which succeeded each other. Treaties have been negotiated with them, and their alliance sought for in war, and the people who compose these Indian political communities have always been treated as foreigners not living under our Government. It is true that the course of events has brought the Indian tribes within the limits of the United States under subjection to the white race, and it has been found necessary, for their sake as well as our own, to regard them as in a state of pupilage, and to legislate to a certain extent over them and the territory they occupy. But they may, without doubt, like the subjects of any other foreign Government, be naturalized by the authority of Congress, and become citizens of a State, and of the United States, and if an individual should leave his nation or tribe and take up his abode among the white population, he would be entitled to all the rights and privileges which would belong to an emigrant from any other foreign people.

[. . .]

It becomes necessary, therefore, to determine who were citizens of the several States when the Constitution was adopted. And in order to do this, we must recur to the Governments and institutions of the thirteen colonies when they separated from Great Britain and formed new sovereignties, and took their places in the family of independent nations. We must inquire who, at that time, were recognised as the people or citizens of a State whose rights and liberties had been outraged by the English Government, and who declared their independence and assumed the powers of Government to defend their rights by force of arms.

In the opinion of the court, the legislation and histories of the times, and the language used in the Declaration of Independence, show that neither the class of persons who had been imported as slaves nor their descendants, whether they had become free or not, were then acknowledged as a part of the people, nor intended to be included in the general words used in that memorable instrument.

It is difficult at this day to realize the state of public opinion in relation to that unfortunate race which prevailed in the civilized and enlightened portions of the world at the time of the Declaration of Independence and when the Constitution of the United States was framed and adopted. But the public history of every European nation displays it in a manner too plain to be mistaken.

They had for more than a century before been regarded as beings of an inferior order, and altogether unfit to associate with the white race either in social or political relations, and so far inferior that they had no rights which the white man was bound to respect, and that the negro might justly and lawfully be reduced to slavery for his benefit. He was bought and sold, and treated as an ordinary article of merchandise and traffic whenever a profit could be made by it. This opinion was at that time fixed and universal in the civilized portion of the white race. It was regarded as an axiom in morals as well as in politics which no one thought of disputing or supposed to be open to dispute, and men in every grade and position in society daily and habitually acted upon it in their private pursuits, as well as in matters of public concern, without doubting for a moment the correctness of this opinion.

And in no nation was this opinion more firmly fixed or more uniformly acted upon than by the English Government and English people. They not only seized them on the coast of Africa and sold them or held them in slavery for their own use, but they took them as ordinary articles of merchandise to every country where they could

make a profit on them, and were far more extensively engaged in this commerce than any other nation in the world.

[. . .]

Chicago Citations

Bibliography entry:

Dred Scott v. Sandford, 60 U.S. (19 How.) 393 (1857). Justia U.S. Supreme Court Center.

Footnote citation:

Dred Scott v. Sandford, 60 U.S. (19 How.) 393, [page] (1857).

Shortened citation:

Dred Scott, 60 U.S. at [page].

PRIMARY SOURCE P13.94

The "Mudsill" Speech (excerpt)

James Henry Hammond · Senate, March 4, 1858

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A southern senator defends slavery as the foundation of civilization and compares it to northern wage labor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

James Henry Hammond (1807–1864), a South Carolina planter and former governor, was one of the South's most aggressive defenders of slavery.

Speaking against the admission of Kansas as a free state, Hammond told northern senators that every society needed a "mud-sill" class to do its menial work. The South used enslaved people; the North, he said, used wage laborers who were slaves in all but name. He also declared that "Cotton is king."

Editorial note: The text follows the Wikisource transcription from the *Congressional Globe*.

Document Text

In all social systems there must be a class to do the menial duties, to perform the drudgery of life. That is, a class requiring but a low order of intellect and but little skill. Its requisites are vigor, docility, fidelity. Such a class you must have, or you would not have that other class which leads progress, civilization, and refinement. It constitutes the very mud-sill of society and of political government; and you might as well attempt to build a house in the air, as to build either the one or the other, except on this mud-sill. Fortunately for the South, she found a race adapted to that purpose to her hand. A race inferior to her own, but eminently qualified in temper, in vigor, in docility, in capacity to stand the climate, to answer all her purposes. We use them for our purpose, and call them slaves. We found them slaves by the common "consent of mankind," which, according to Cicero, "lex naturae est." The highest proof of what is Nature's law. We are old-fashioned at the South yet; slave is a word discarded now by "ears polite;" I will not characterize that class at the North by that term; but you have it; it is there; it is everywhere; it is eternal.

The Senator from New York said yesterday that the whole world had abolished slavery. Aye, the name, but not the thing; all the powers of the earth cannot abolish that. God only can do it when he repeals the fiat, "the poor ye always have with you;" for the man who lives by daily labor, and scarcely lives at that, and who has to put out his labor in the market, and take the best he can get for it; in short, your whole hireling class of manual laborers and "operatives," as you call them, are essentially slaves. The difference between us is, that our slaves are hired for life and well compensated; there is no starvation, no begging, no want of employment among our people, and not too much employment either. Yours are hired by the day, not cared for, and scantily compensated, which may be proved in the most painful manner, at any hour in any street in any of your large towns. Why, you meet more beggars in one day, in any single street of the city of New York, than you would meet in a lifetime in the whole South. We do not think that whites should be slaves either by law or necessity. Our slaves are black, of another and inferior race. The status in which we have placed them is an elevation. They are elevated from the condition in which God first created them, by being made our slaves. None of that race on the whole face of the globe can be compared with the slaves of the South. They are happy, content, unaspiring, and utterly incapable, from intellectual weakness, ever to give us any trouble by their aspirations. Yours are white, of your own race; you are brothers of one blood. They are your equals in natural endowment of intellect, and they feel galled by their degradation. Our slaves do not vote. We give them no political power. Yours do vote, and, being the majority, they are the depositories of all your political power. If they knew the tremendous secret, that the ballot-box is stronger

than "an army with banners," and could combine, where would you be? Your society would be reconstructed, your government overthrown, your property divided, not as they have mistakenly attempted to initiate such proceedings by meeting in parks, with arms in their hands, but by the quiet process of the ballot-box. You have been making war upon us to our very hearthstones. How would you like for us to send lecturers and agitators North, to teach these people this, to aid in combining, and to lead them?

Chicago Citations

Bibliography entry:

Hammond, James Henry. Speech in the U.S. Senate, March 4, 1858. *Congressional Globe*, 35th Cong., 1st Sess., Appendix, 68–71. Wikisource.

Footnote citation:

James Henry Hammond, speech in the Senate, March 4, 1858, *Congressional Globe*, 35th Cong., 1st Sess., Appendix, 71, via Wikisource.

Shortened citation:

Hammond, "Mudsill" speech.

PRIMARY SOURCE P13.95

Address of John Brown to the Virginia Court

John Brown · Charles Town, Virginia, November 2, 1859

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Brown's words in court made him a martyr in the North and a symbol of northern menace in the South.
TREATMENT	Full public-domain text

Historical Context

On October 16, 1859, the abolitionist John Brown (1800–1859) led twenty-one men in a raid on the federal armory at Harpers Ferry, Virginia, hoping to arm enslaved people and start an uprising. U.S. Marines under Robert E. Lee captured him two days later.

Convicted of treason against Virginia, murder, and inciting a slave insurrection, Brown spoke to the court before sentencing. He was hanged on December 2. Many northerners praised him as a martyr, and white southerners took the praise as proof of northern hostility.

Editorial note: The Norton collection prints a Boston broadside of 1859. This reader follows the text of the same address as printed in William O. Blake's 1860 history of slavery and transcribed on Wikisource.

Document Text

[. . .]

"I have, may it please the Court, a few words to say. In the first place, I deny everything but what I have all along admitted, the design on my part to free the slaves. I intended certainly to have made as clean a thing of that matter as I did last winter, when I went into Missouri, and took the slaves without the snapping of a gun, and moved them through the country, finally leaving them in Canada. I designed to have done the same thing again, on a larger scale. That was all I intended. I never did intend to committ murder or treason, or to destroy property, or to excite or incite the slaves to insurrection, and make an insurrection.

"I have another objection, and that is, that it is unjust that I should suffer such a penalty. Had I interfered in the manner which I admit—and which I admit has bean fairly proved—for I admire the truthfulness and candor of the greater portion of the witnesses who have testified in this case—had I so interfered in behalf of the rich, the powerful, the intelligent, the so-called great, or in behalf of their friends, either father or mother, brother or sister, wife or children, or any of that class, and suffered or sacrificed what I have in this interference, it would have been all right. Every man in this Court would have deemed it an act not worthy of punishment. This Court acknowledges, I suppose, the laws of God.

"I see a book kissed here which I suppose to be the Bible, or at least the New Testament, that teaches me that all things whatsoever I would that man should do to me, I should do even so to them. It teaches me, further, to remember them that are in bonds as bound with them. I endeavored to act after that instruction. I say I am yet too young to understand that God is any respecter of persons. I believe that to have interfered as I have done, as I have always freely admitted I have done, in behalf of his despised poor, was no wrong, but right. Now it is deemed necessary that I should forfeit my life for the furtherance of the ends of justice, and mingle my blood further with the blood of my children, and the blood of millions in this slave country, whose rights are disregarded by wicked, cruel, and unjust enactments.

"I am entirely satisfied with the treatment I have received on my trial. Considering all the circumstances, it has been more generous than I expected, but I feel no consciousness of guilt. I have stated from the first what were my

intentions, and what were not. I never had any design against the life of any person, nor any disposition to commit treason, or to excite slaves to rebel, or make any general insurrection. I never encouraged any man to do so, but always discouraged any idea of that kind. Let me say also, in regard to the statements made by some of those connected with me. I hear it has been stated by some of them that I have induced them to join me, but the contrary is true. I do not say this to injure them, but as regretting their weakness. Not one joined me but on his own accord, and the greater part at their own expense. A number of them I never saw, and never had a word of conversation with till the day they came to me, and that was for the purpose I have stated now. I have done."

[. . .]

Chicago Citations

Bibliography entry:

Brown, John. Address to the Court, Charles Town, Virginia, November 2, 1859. In William O. Blake, *The History of Slavery and the Slave Trade, Ancient and Modern*, chap. 36. Columbus, OH: J. & H. Miller, 1860. Wikisource.

Footnote citation:

John Brown, address to the court, November 2, 1859, in William O. Blake, *The History of Slavery and the Slave Trade, Ancient and Modern* (Columbus, OH: J. & H. Miller, 1860), chap. 36, via Wikisource.

Shortened citation:

Brown, address to the court.

PRIMARY SOURCE P13.96

Social Relations in Our Southern States: The Southern Yeoman (excerpt)

Daniel R. Hundley · 1860 (New York: Henry B. Price)

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A southern writer describes the non-slaveholding farmers whose loyalty secessionists needed.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Daniel R. Hundley (1832–1899), an Alabama-born lawyer educated at Harvard and the University of Virginia, wrote a guide to the social classes of the South for northern readers.

He separated the "Southern Yeomen," independent farmers who mostly owned no slaves, from the "Poor Whites," and praised the yeomen as the backbone of the South. His sketches show how slaveholders understood, and hoped to keep the loyalty of, the non-slaveholding white majority.

Editorial note: The text follows the Internet Archive scan of the 1860 edition. OCR spellings have been kept; words broken at line ends have been rejoined.

Document Text

[. . .]

Know, then, that the Poor Whites of the South constitute a separate class to themselves; the Southern Yeomen are as distinct from them as the Southern Gentleman is from the Cotton Snob. Certainly the Southern Yeomen are nearly always poor, at least so fir as this world's goods arc to be taken into the account. As a general thing they own no slaves ; and even in case they do, the wealthiest of them rarely possess more than from ten to fifteen. But even when they are slaveholders, they seem to exercise but few of the rights of ownership over their human chattels, making so little distinction between master and man, that their negroes invariably become spoiled, like so mauy

rude children who have been uawisely spared the rod by their foolish guardians. Such negroes are lazy as the day is long, saucy and impertinent, and besides are nearly as useless members of society as the free blacks of the North, or Jamaica, or the Central American States. Indulged from their infancy, never receiving a stripe unless some one of their young masters is stout enough to give them a lamming in a regular fisticuffs fight, and in all things treated more like equals than slaves, it is certainly no cause of wonder that they impudently call their masters by their proper names, and, when permitted, address all other white persons in the same ill-bred and familiar manner. Indeed, Senator Seward himself could not demand any greater show of equality, than what is often exhibited by the Yeomen of the South in the treatment of their negroes ; and we think it would cure even him of nis rabid mania on the subject of the ultimate extinction of the peculiar institution, could he be brought into personal contact with some of the free and easy specimens of poor downtrodden Africans we have had the luck to fall in with now and then in the Slave States. If he did not caiTy with him to his grave a very unflattering remembrance of his loutish, lazy, lousy, and foul-scented black " brothers," then he is not the dainty gentleman we have been accustomed to consider him. For, after all their demonstratioDS in behalf of the Negro, the people of the Free States are possessed of olfactories like the rest of mankind, and individually entertain a very wholesome dread of coming personally in contact with their down-trodden and much-abused iwotege^ however lustily they may bawl about his being both " a man and

a brother." We know, in some parts of the North, negroes are admitted to the society of a certain class of fanatical free-lovers and socialists — dine with them sleep with them, school with them, and even sometimes intermarry with them — while it does occasionally happen, that a big buck African will familiarly slap a white man on the back, with a "How ar' yer, Tom? gib a feller a treat," or, "Harry, my boy, how goes de Avedder ?" In a majority of cases, however, as we have already declared, decent people in all the Northern States entertain a very wholesome and sensible prejudice against affiliating on terms of equality with persons of color. In this regard, indeed, they are far more scrupulous and sensitive than any class of whites in the South.

[. . .]

Chicago Citations

Bibliography entry:

Hundley, Daniel R. *Social Relations in Our Southern States*. New York: Henry B. Price, 1860. Internet Archive.

Footnote citation:

Daniel R. Hundley, *Social Relations in Our Southern States* (New York: Henry B. Price, 1860), 193–95, https://archive.org/details/socialrelationsi00hund.

Shortened citation:

Hundley, *Social Relations*, [page].

PRIMARY SOURCE P13.97

Progressive Democracy: Prospect of a Smash Up

Currier & Ives (publisher) · 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A popular print shows the Democratic split of 1860 that cleared the way for Lincoln's election.
TREATMENT	Public-domain image

Historical Context

In 1860 the Democratic Party split. Northern Democrats nominated Stephen A. Douglas, and southern Democrats nominated Vice President John C. Breckinridge on a platform demanding federal protection of slavery in the territories.

This Currier & Ives cartoon shows the party as a wagon pulled in opposite directions by the two candidates, with the Democratic platform about to break apart.

Editorial note: Image reproduced from the Library of Congress print (via Wikimedia Commons). Political cartoons argue a point of view; read the labels and speech balloons as the artist's commentary.

Primary Source Image

Progressive Democracy—Prospect of a Smash Up (Currier & Ives, 1860). Library of Congress, Prints and Photographs Division.

Chicago Citations

Bibliography entry:

Currier & Ives. *Progressive Democracy—Prospect of a Smash Up*. Lithograph. New York: Currier & Ives, 1860. Prints and Photographs Division, Library of Congress, LCCN 2003674585.

Footnote citation:

Currier & Ives, *Progressive Democracy—Prospect of a Smash Up*, lithograph (New York, 1860), Library of Congress, https://www.loc.gov/pictures/item/2003674585/.

Shortened citation:

Currier & Ives, *Prospect of a Smash Up*.

PRIMARY SOURCE P13.98

The Railsplitter

Unidentified artist · oil painting, c. 1860 (Chicago History Museum)

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Campaign imagery presents Lincoln as a free-labor self-made man, the image white southerners feared.
TREATMENT	Public-domain image

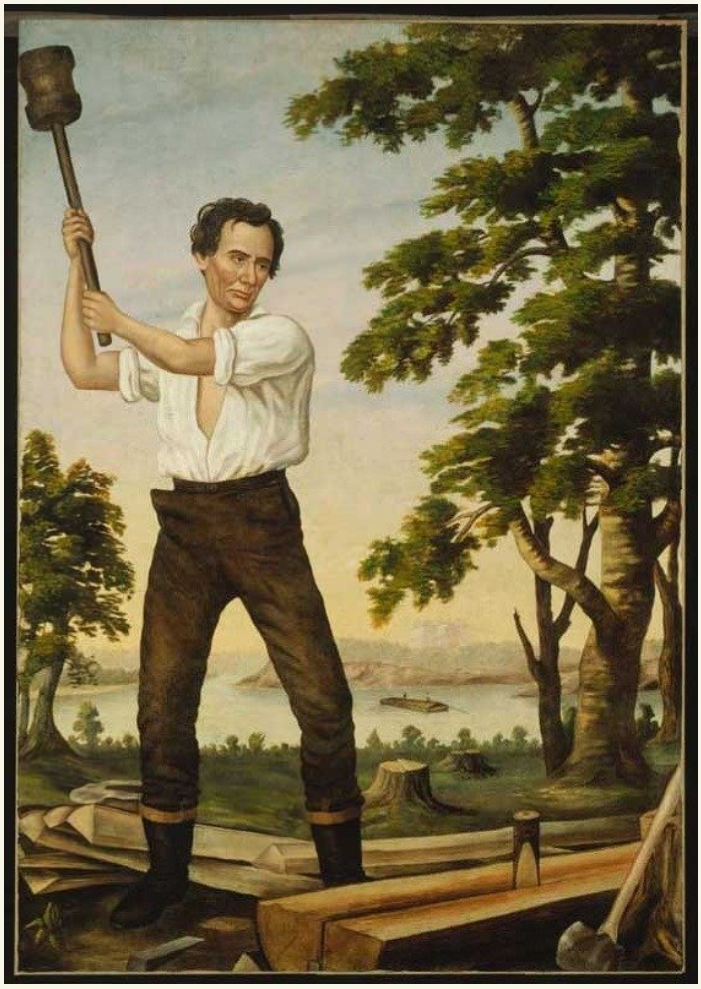
Historical Context

At the Illinois Republican convention in May 1860, Lincoln's supporters carried two fence rails said to have been split by him as a young man. The image of "Honest Abe, the Railsplitter" became central to his campaign.

This oil painting, probably made for a campaign rally, shows a young Lincoln in shirtsleeves swinging a maul beside a river.

Editorial note: Two images were supplied for this item. The one titled "railsplitter" shows a factory town, not Lincoln, so this reader prints the 1860 oil painting at the Chicago History Museum, the image usually reproduced under this title.

Primary Source Image



The Railsplitter, oil painting, c. 1860. Chicago History Museum.

Chicago Citations

Bibliography entry:

The Railsplitter. Oil on canvas, c. 1860. Chicago History Museum.

Footnote citation:

The Railsplitter, oil on canvas, c. 1860, Chicago History Museum.

Shortened citation:

The Railsplitter.

PRIMARY SOURCE P13.99

The Doom of Slavery in the Union: Its Safety Out of It (excerpt)

John Townsend · Charleston, October 29, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A planter's widely circulated pamphlet shows the slaveholding elite organizing for secession.
TREATMENT	Public-domain text, selected excerpts

Historical Context

John Townsend (1799–1881), a wealthy Sea Island cotton planter from Edisto Island, South Carolina, delivered this address to a local association just before the 1860 election. Its printed version circulated widely across the South.

Townsend argued that a Republican victory meant slavery's slow destruction inside the Union and that only a separate southern government could protect it. He attacked southerners who counseled patience as "submissionists" and questioned the loyalty of northern-born merchants in southern cities.

Editorial note: The address was delivered a week before the November 1860 election. The text follows the civilwarcauses.org transcription.

Document Text

[. . .]

We allude to none of such people among our merchants as being likely to be injured with us by the Abolition of slavery. They have no sympathies in common with us—no ties which bind them to the South except the most fragile threads of making money out of us. They are indifferent to the honor, the safety, the permanent welfare of the South. All that they concern themselves about is to prevent anything from being done which may interrupt their business of making money out of us. Accordingly,—upon every effort of the South to breast the dangers which beset us, and break the fetters with which we are bound, we find them at all elections banded with the submissionists, multiplying the alarms of the timid, and pulling the South down to nonresistance and dishonor. Abolition of slavery (if they do not at heart desire it) affects them very slightly. Whilst the merchant, the mechanic, the machinist whose home is the South, must sink into the common ruin which Abolition of slavery will bring upon the South, this Northern merchant has nothing to do but to gather up his profits, pack up his boxed, take himself to some steamer, and in five days, or less, he is at home among his Abolition friends, but our bitter enemies!

THE EFFECTS TO THE NON-SLAVEHOLDER.

We forbear to notice the effect of the abolition of slavery upon the Banks, Insurance Companies, Railroads, and al; other corporations, depending upon a rich a ad flourishing country for their own prosperity. But in noticing its effects upon the different classes and: interests in the South, we should not omit to notice its effects upon the non-slaveholding portion of our citizens.

Accompanied as that measure is to be, by reducing the two races to an equality—or, in other words, in elevating the negro slave to an equality with the white man—it will be to the non-slaveholder, equally with the largest slaveholder, the obliteration of caste and the deprivation of important privileges. The color of the white man is now, in the South, a title of nobility in his relations as to the negro; and although Cuffy or Sambo may be immensely his superior in wealth, may have his thousands deposited in bank, as some of them have, and may be the owner of many slaves, as some of them are, yet the poorest non-slaveholder, being a white man, is his superior

in the eye of the law; may serve and command in the militia; may sit upon juries, to decide upon the rights of the wealthiest in the land ; may give his testimony in Court, and may cast his vote, equally with the largest slaveholder, in the choice of his rulers. In no country in the world does—the poor white man, whether slaveholder or non-slaveholder, occupy so enviable a position as in the slaveholding States of the South. His color here admits him to social and civil privileges, which the white man enjoys nowhere else. In countries where negro slavery does not exist, (as in the Northern States of this Union and in Europe,) the most menial and degrading employments in society are filled by the white poor, who are hourly seen drudging in them. Poverty, then, in those countries, becomes the badge of inferiority, and wealth, or distinction. Hence the arrogant airs which wealth there puts on, in its intercourse with the poor man. But in the Southern slaveholding States, where these menial and degrading offices are turned over to be per formed exclusively by the negro slave, the status and color of the black race becomes the badge of inferiority, and the poorest non-slaveholder may rejoice with the richest of his brethren of the white race, in the distinction of his color. The poorest non-slaveholder, too, except as I have before said, he be debased by his vices or his crimes, thinks and feels and acts as if he was, and always intended to be, superior to the negro. He may be poor, it is true; but there is no point upon which he is so justly proud and sensitive as his privilege of caste; and there is nothing which he would resent with more fierce indignation than the attempt of the Abolitionist to emancipate the slaves and elevate the negros to an equality with himself and his family. The abolitionists have sent their emissaries among that class of our citizens, trying to debauch their minds by persuading them that they have no interest in preventing the abolition of slavery, But they cannot deceive any, except the most ignorant and worthless, the intelligent among them are too well aware of the degrading consequences of abolition upon themselves and their families (such as I have described them), to be entrapped by their arts. They know that, at the North and in Europe, where no slavery exists, where poverty is the mark of inferiority; where the negros have been put upon equality with the whites, and "money makes the man," although, —that man may be a negro;—they know, I say, that there the white man is seen waiting upon the negro;—there he is seen obeying the negro as his ostler, his coachman, his servant and his bootblack. Knowing, then, these things, and that the abolition of slavery, and the reign of negro equality here, may degrade the white man in the same way as it has done in those countries, there is no non-slaveholder with the spirit of the white race in his bosom, who would not spurn with contempt this scheme of Yankee cunning and malice.

[. . .]

Chicago Citations

Bibliography entry:

Townsend, John. *The Doom of Slavery in the Union: Its Safety Out of It*. Charleston: Evans & Cogswell, 1860. Transcription at civilwarcauses.org.

Footnote citation:

John Townsend, *The Doom of Slavery in the Union: Its Safety Out of It* (Charleston: Evans & Cogswell, 1860), via https://civilwarcauses.org/townsend.htm.

Shortened citation:

Townsend, *Doom of Slavery in the Union*.

PRIMARY SOURCE P13.100

"What Shall the South Carolina Legislature Do?" (editorial)

Charleston Mercury · November 3, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The fire-eaters' paper presses for action before the election results are even in.
TREATMENT	Full public-domain text

Historical Context

The *Charleston Mercury*, owned by Robert Barnwell Rhett's family, was the voice of the fire-eaters. Three days before the presidential election, it urged the legislature to prepare.

The editorial declared that "the issue before the country is the extinction of slavery" and urged South Carolina to act before Lincoln could take office, calling the evils of submission too terrible to risk.

Editorial note: The text follows the civilwarcauses.org transcription.

Document Text

The issue before the country is the extinction of slavery. No man of common sense, who has observed the progress of events, and who is not prepared to surrender the institution, with the safety and independence of the South, can doubt that the time for action has come—now or never. The Southern States are now in the crisis of their fate; and, if we read aright the signs of the times, nothing is needed for our deliverance, but that the ball of revolution be set in motion. There is sufficient readiness among the people to make it entirely successful. Co-operation will follow the action of any State. The example of a forward movement only is requisite to unite Southern States in a common cause. Under these circumstances the Legislature of South Carolina is about to meet. It happens to assemble in advance of the Legislature of any other State. Being in session at this momentous juncture—the Legislature of that State which is most united in the policy of freeing the South from Black Republican domination—the eyes of the whole country, and most especially of the resistance party of the Southern States, is intently turned upon the conduct of this body. We have innumerable assurances that the men of action in each and all of the Southern States, earnestly desire South Carolina to exhibit promptitude and decision in this conjuncture. Other states are torn and divided, to a greater or less extent, by old party issues. South Carolina alone is not. Any practical move would enable the people of other States to rise above their past divisions, and lock shields on the broad ground of Southern security. The course of our Legislature will either greatly stimulate and strengthen, or unnerve the resistance elements of the whole South. A Convention is the point to which their attention will be chiefly directed.

The question of calling a Convention by our Legislature does not necessarily involve the question of separate or co-operative action. That is a question for the Convention when it assembles, under the circumstances which shall exist when it assembles. All desire the action of as many Southern States as possible, for the formation of a Southern Confederacy. But each should not delay and wait on the other. As these States are separate sovereignties, each must act separately; and whether one or the other acts first or last, we suppose is of no sort of consequence. What is really essential is this—that by the action of one or more States, there shall be the reasonable probability that a Southern Confederacy will be formed. We say probability,—because there is no certainty in the future of human affairs; and in the position in which the South will be placed by the election of an Abolitionist white man as President of the United States, and an Abolitionist colored man as Vice President of the United States, we should not hesitate, somewhat to venture. The existence of slavery is at stake. The evils of submission are too terrible for

us to risk them, from vague fears of failure, or a jealous distrust of our sister Cotton States. We think, therefore, that the approaching Legislature should provide for the assembling of a Convention of the people of South Carolina, as soon as it is ascertained that Messrs. LINCOLN and HAMLIN will have a majority in the Electoral Colleges for President and Vice President of the United States. The only point of difficulty is as to the time when the Convention shall assemble. In our judgment, it should assemble at the earliest possible time consistent with the opportunity for co-operative action of other Southern States, which may, like ourselves, be determined not to submit to Black Republican domination at Washington. Delay is fatal, while our move will retard no willing State from co-operation. South Carolina, as a sovereign State, is bound to protect her people, but she should so act as to give the other Southern States the opportunity of joining in this policy. The Governors of Alabama, Mississippi and Georgia can act simultaneously. With this qualification, the earliest time is the best, for the following reasons:

1. Our great agricultural staples are going to market. The sooner we act, the more of these staples we will have on hand, to control the conduct of the people of the North and of foreign nations, to secure a peaceful result for our deliverance. Thousands at the North, and millions in Europe, need our Cotton to keep their looms in operation. Let us act, before we have parted with our agricultural productions for the season.2. The commercial and financial interests of the South require that we should act speedily in settling our relations towards the North. Suspense is embarrassment and loss. Decision, with separation, will speedily open new sources of wealth and prosperity, and relieve the finances of the South through the establishment of new channels. In all changes of Government, respect should be had to all classes of the people, and the least possible loss be inflicted on any.3. The moral effect of promptitude will be immense. Delay will dispirit our friends, and inspire confidence in our enemies. The evils against which we are to provide are not the growth of yesterday. They have been gathering head for thirty years. We have tried, again and again, to avert them by compromise and submission. Submission has failed to avert them; and wise, prompt and resolute action is our last and only course for safety.4. Black Republican rule at Washington will not commence until the 4th of March next—four short months. Before that time all that South Carolina or the other Southern States intend to do, should be done. The settlement of our relations towards the General Government, in consequence of our measures of protection, should be completed during the existing Administration.5. It is exceedingly important, also, that our measures should be laid as soon as possible before the present Congress. The secession of one or more States from the Union must be communicated to the President of the United States. He has done all he could to arrest the sectional madness of the North. He knows that we are wronged and endangered by Black Republican ascendancy, and he will not, we have a right to suppose, lend himself to carry out their bloody policy.6. By communication from the President of the United States, as well as by the withdrawal from Congress of the members of the seceding States, the question of the right of a State to secede from the Union, with the question of a Force Bill, must arise in Congress for action. The Representatives from the other Southern States will most probably be forced either to continue members of a body which orders the sword to be drawn against the seceding States, or they must leave it. They will most probably leave it; and thus the South will be brought together by action in Congress, even though they fail to co-operate at once by their State authorities. It will not be wise to pretermit either of these intrumentalities for the union and co-action of the Southern States; but, it is our opinion, that Congress is the best place to unite them. By prompt action, and through the question of secession in Congress, the agitations which must ensue, will not only tend to unite the Southern members of Congress, but to unite and stimulate State action in the States they represent.We conclude, therefore, by urging the Legislature about to assemble, to provide for the calling a Convention, as soon as it is ascertained that Messrs. LINCOLN and HAMLIN have the majority in the Electoral Colleges for President and Vice President of the United States; and that this Convention shall assemble at the earliest day practicable, consistent with the knowledge of our course by our sister Southern States. To this end we would respectfully suggest Nov. 22d and 23d as the day of election, and December 15th as the time of assembling the Convention of the people of South Carolina.

Chicago Citations

Bibliography entry:

"What Shall the South Carolina Legislature Do?" *Charleston Mercury*, November 3, 1860. Transcription at civilwarcauses.org.

Footnote citation:

"What Shall the South Carolina Legislature Do?" *Charleston Mercury*, November 3, 1860, via https://civilwarcauses.org/merc-11-3-60.htm.

Shortened citation:

"What Shall the South Carolina Legislature Do?"

PRIMARY SOURCE P13.101

Editorial on the Election (excerpt)

New Orleans Daily Picayune · November 4, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A major Lower South paper rejects secession for losing an election, showing division in Deep South opinion.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The *Daily Picayune* was one of the South's most widely read newspapers and leaned toward the Constitutional Union ticket of John Bell in 1860.

Writing on the eve of the election, the editors rejected secession merely for losing a presidential contest and argued that what was called secession was really revolution.

Editorial note: The text follows the civilwarcauses.org transcription from Dwight L. Dumond's *Southern Editorials on Secession*.

Document Text

[. . .]

But, it is said, the perpetual agitation of this question in and out of Congress has driven the South to unjust concessions, every one of which should have been made the cause of resistance to the Federal Government; and that each as it followed the other in the order of succession increased the intolerance and aggressions of the free North. The Missouri Compromise was the first in order. If it was wrong, the South has to blame only itself; for it came from a representative of a slave State, and was supported by the almost unanimous vote of Southern delegates in both Houses of Congress. It was ratified again and again by the popular vote of the slave States, until it came to be regarded to have almost as binding a character as the constitution itself.

The next great struggle on the question of slavery resulted in the compromise bill of 1850. Here again the South gave birth to the act, and it was sustained, not only by the Southern vote in Congress, but was ratified by the people themselves. Georgia and Mississippi and South Carolina made the issue of resistance against it, and the people, with majorities unprecedented in any political contest, sustained the work of the noble patriots of that gloomy day. The South is then precluded by its own action from reopening the issues then settled and making them living questions at this time. Right or wrong, they belong to the dead past. A golden era of peace and general accord followed, until the elements of sectional strife were again let loose from their sealed cavern by the repeal of the Missouri Compromise and the Kansas and Nebraska bill.

Whether the South originated this act or not, it united in almost solid phalanx to sustain it, while the North was almost alone in opposition to the measure.

This reopened the agitations happily set at rest, and again plunged the country into an excitement which has resulted in the birth of a party that now stands avowedly sectional, openly aggressive, and by its doctrines, insults and defies the South. But it has to make a forward step to present a tangible issue that can be met only by a revolution. Its principles are dangerous if an attempt be made to put them in practice. No man with a Southern heart will defend its fanatical fury, or excuse its menacing attitude towards those States coequal with the free commonwealths. But can we look back upon the history of the past and find serious reason to complain, except it be of our own blindness and folly? Can we hope to strengthen the issue now proposed by accumulating with it the series of acts, or any one of them, alluded to in this brief sketch?

The very agitation of which we complain has in one respect accrued to our benefit. It has evolved the true principles on which the institution of slavery is based. It has convinced all Southern men of the moral right, the civil, social and political benefit of slavery. It has done more; it has modified the opinion of a large number of men in the free States, on this subject, and is gradually changing the opinion of the world -- bringing it to regard slavery with more liberality.

[. . .]

These notes of history cannot be denied, and when we meet the crisis created by the ballot of the nation about to be cast, let it be remembered that we have no cause to resist, except the unconstitutional, the weak, the untenable one of having lost our choice for the President of the Republic. The movement of demagogues and politicians to make this election, if adverse to the South, an opportunity for secession -- which we have previously shown is but a word to mask the idea of revolution -- is full of imminent peril to the South, not to the Union as we have been supposed to have asserted. Upon an issue so weak, to go into a contest which involves all the consequences of treason, the South must fail, for she cannot hope for accord among the citizens of anyone State. The time may come when disunion, with all its consequences, must be chosen, but a failure now precludes future confidence in leaders or hope in resistance.

Let every Southern man feel it to be a duty he owes not simply to his country, but to his family and himself, to vote in the coming election so that he shall in no manner countenance the idea that his State or his parish is in favor of resisting the decision of the ballot. The home perils which a contrary course involve are of the most terrible character. Nations die a terrible death, just in proportion to their strength and vitality. If it be the destiny of the Union now to perish, none can estimate the throes of agony, the terrible scenes of distress, which will precede it. If the fires of civil war be kindled -- and kindled they must be by any formidable movement in hostility to the Federal Government -- they will burn until all is consumed that is perishable, and the land become a waste over which shall brood the silence of another and hopeless desolation.

Chicago Citations

Bibliography entry:

Editorial. *New Orleans Daily Picayune*, November 4, 1860. In *Southern Editorials on Secession*, edited by Dwight Lowell Dumond. New York: Century, 1931. Transcription at civilwarcauses.org.

Footnote citation:

New Orleans Daily Picayune, November 4, 1860, in *Southern Editorials on Secession*, ed. Dwight Lowell Dumond (New York: Century, 1931), via https://civilwarcauses.org/picune.htm.

Shortened citation:

New Orleans Daily Picayune, November 4, 1860.

PRIMARY SOURCE P13.102

"The Constitution—The Union—The Laws" (editorial)

New Orleans Daily Crescent · November 13, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A Louisiana paper frames Lincoln's victory as a threat to southern equality and honor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The *Daily Crescent* was one of New Orleans's major papers. Louisiana had voted for Breckinridge, and its leaders were divided over what to do after Lincoln's election.

The editorial argued that the South could not compromise further without giving up its character and political equality, and it called Lincoln's election a step toward the "subjugation of the South."

Editorial note: The text follows the civilwarcauses.org transcription from Kenneth Stampp, ed., *The Causes of the Civil War*.

Document Text

[. . .]

All these statements are not only true, but absolutely indisputable. The facts are well known and patent. Under these circumstances, in view of the dark record of the past, the threatening aspect of the present, and the very serious contingencies which the future holds forth, we submit and appeal to a candid and honorable world, whether the Southern people have not been astonishingly patient under gross provocation -- whether they have not exhibited remarkable forbearance -- whether they have not been long suffering, slow to anger and magnanimous, on numerous occasions where indignation was natural, and severe measures of retaliation justifiable? There can be no doubt on this point. For the sake of peace, for the sake of harmony, the South has compromised until she can compromise no farther, without she is willing to compromise away character, political equality, social and individual interest, and every right and franchise which freemen hold dear.

All the Northern States, with the exception of New Jersey, voted for Lincoln. As he is fully as odious to the South and just as dangerous to her institutions as William H. Seward would have been, the fact of his election, by an overwhelming majority, is full of portentous significance. It shows, beyond all question or peradventure, the unmixed sectional animosity with which an enormous majority of the Northern people regard us of the South. In connection with this, there is another fact, not as generally known as It ought to be, which we propose to lay before the Southern people. The Constitution of the country recognizes slaves as property; the laws of Congress recognize slaves as property; the decisions of the Supreme Court recognize slaves as property; and the constitution, the laws and the court declare that runaway slaves shall be restored to their owners. But how are the Constitution, the laws and the court regarded in nine great Northern States? Let an see. Here is a list of penalties prescribed by certain-Northern Legislatures to such Southerners as venture to make legal endeavors to reclaim their property in those States:

Fine
Imprisonment

In Maine
$1000

5 years

In Vermout
$2000 15 years

In Massachusetts $5000 5 years

In Connecticut $5000 5 years

In Pennsylvania $1000 3 months

In Indiana $5000 15 years

In Michigan $1000 10 years

In Wisconsin
$1000 2 years

In Iowa
$1000 10 years

Every one of the above States, when they passed those laws, placed themselves beyond the pale of the Constitution, and virtually dissolved their connection with the Union! Yet no attempts have been made to force them to abide by the laws, and compel them to yield obedience to the stipulations of the general compact. Nothing of the sort. The outraging section appears to enjoy especial immunity; but let the cruelly aggrieved, the wantonly outraged and the causelessly robbed section presume to discuss the necessity of securing their own safety by resorting to their reserved, inalienable rights, and these violators of all laws, constitutions, unions and compacts, lift up their hands in holy horror and say that the Union must be preserved, the Constitution obeyed, and the laws enforced! The Devil can quote Scripture when it suits his infernal purposes; and so do the Black Republicans refer to the Constitution, the Union and the laws, when they contemplate some other scheme of wrong, outrage and spoilation.

Thus much to-day, by way of keeping our readers accurately posted. We shall refer to the subject, on proper occasions, hereafter.

Chicago Citations

Bibliography entry:

"The Constitution—The Union—The Laws." *New Orleans Daily Crescent*, November 13, 1860. In *The Causes of the Civil War*, edited by Kenneth M. Stampp, 46–47. Transcription at civilwarcauses.org.

Footnote citation:

New Orleans Daily Crescent, November 13, 1860, in *The Causes of the Civil War*, ed. Kenneth M. Stampp, 46–47, via https://civilwarcauses.org/crescent.htm.

Shortened citation:

New Orleans Daily Crescent, November 13, 1860.

PRIMARY SOURCE P13.103

Speech to the Georgia Legislature (excerpt)

Robert Toombs · Milledgeville, November 13, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A fire-eater ties slavery's expansion to the language of equality and honor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

A week after Lincoln's election, the Georgia legislature invited leading men to speak on what the state should do. Senator Robert Toombs (1810–1885), a wealthy planter and former Whig, argued for immediate secession.

Toombs demanded for the South "equality of enjoyment, equal right to expansion," declared that "we must expand or perish," and condemned the long record of southern "submission" to the North.

Editorial note: The text follows the civilwarcauses.org transcription from William W. Freehling and Craig M. Simpson, eds., *Secession Debated* (1992).

Document Text

[. . .]

With these vast advantages, ordinary and extraordinary, one would have supposed the North would have been content, and would have at least respected the security and tranquility of such obedient and profitable brethren; but such is not human nature. They despised the patient victims of their avarice, and they very soon began a war upon our political rights and social institutions, marked by every act of perfidy and treachery which could add a darker hue to such a warfare. In 1820, the Northern party, (and I mean by that term now and whenever else it is used, or its equivalent, in these remarks, the Antislavery or Abolition party of the North,) endeavored to exclude the State of Missouri from admission into the Union, because she chose to protect African slavery in the new State. In the House, where they had a majority, they rejected her application, and a struggle ensued, when some half a dozen of Northern men gave way, and admitted the State, but upon condition of the exclusion of slavery from all that country, acquired from France by the treaty of 1802, lying north of thirty- six degrees thirty minutes, north latitude, and outside of the State of Missouri. This act of exclusion violated the express provisions of the treaty of 1802, to which the National faith was pledged; violated the well-settled policy of the Government, at least from Adams's administration to that day, and has, since slavery was adjudicated by the Supreme Court of the United States, violated the Constitution itself. When we acquired California and New- Mexico this party, scorning all compromises and all concessions, demanded that slavery should be forever excluded from them, and all other acquisitions of the Republic, either by purchase or conquest, forever. This position of this Northern party brought about the troubles of 1850, and the political excitement of 1854. The South at all times demanded nothing but equality in the common territories, equal enjoyment of them with their property, to that extended to Northern citizens and their property ~ nothing more. They said, we pay our part in all the blood and treasure expended in their acquisition. Give us equality of enjoyment, equal right to expansion - it is as necessary to our prosperity as yours. In 1790 we had less than eight hundred thousand slaves. Under our mild and humane administration of the system they have increased above four millions. The country has expanded to meet this growing want, and Florida, Alabama, Mississippi, Louisiana, Texas, Arkansas, Kentucky, Tennessee, and Missouri, have received this increasing tide of African labor; before the end of this century, at precisely the same rate of increase, the Africans among us in a subordinate condition will amount to eleven millions of persons. What shall be done with them? We must expand or perish. We are constrained by an inexorable necessity to accept expansion or extermination. Those who tell you that the territorial question is an abstraction, that you can never colonize another territory without the

African slavetrade, are both deaf and blind to the history of the last sixty years. All just reasoning, all past history, condemn the fallacy. The North understand it better - they have told us for twenty years that their object was to pen up slavery within its present limits - surround it with a border of free States, and like the scorpion surrounded with fire, they will make it sting itself to death. One thing at least is certain, that whatever may be the effect of your exclusion from the Territories, there is no dispute but that the North mean it, and adopt it as a measure hostile to slavery upon this point. They all agree, they are all unanimous in Congress, in the States, on the rostrum, in the sanctuary - everywhere they declare that slavery shall not go into the Territories. They took up arms to drive it out of Kansas; and Sharpe's rifles were put into the hands of assassins by Abolition preachers to do their work. Are they mistaken? No; they are not. The party put it into their platform at Philadelphia - they have it in the corner-stone of their Chicago platform; Lincoln is on it - pledged to it. Hamlin is on it, and pledged to it; every Abolitionist in the Union, in or out of place, is openly pledged, in some manner, to drive us from the common Territories. This conflict, at least, is irrepressible - it is easily understood -we demand the equal right with the North to go into the common Territories with all of our property, slaves included, and to be there protected in its peaceable enjoyment by the Federal Government, until such Territories may come into the Union as equal States-then we admit them with or without slavery, as the people themselves may decide for themselves. Will you surrender this principle? The day you do this base, unmanly deed, you embrace political degradation and death.

[. . .]

Chicago Citations

Bibliography entry:

Toombs, Robert. Speech to the Georgia Legislature, November 13, 1860. In *Secession Debated: Georgia's Showdown in 1860*, edited by William W. Freehling and Craig M. Simpson, 31–50. New York: Oxford University Press, 1992. Transcription at civilwarcauses.org.

Footnote citation:

Robert Toombs, speech to the Georgia Legislature, November 13, 1860, in *Secession Debated*, ed. William W. Freehling and Craig M. Simpson (New York: Oxford University Press, 1992), 31–50, via https://www.civilwarcauses.org/toombs.htm.

Shortened citation:

Toombs, speech, November 13, 1860.

PRIMARY SOURCE P13.104

Speech to the Georgia Legislature (excerpt)

Alexander H. Stephens · Milledgeville, November 14, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Georgia's leading cooperationist argues that secession was being rushed ahead of any real grievance.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The night after Toombs spoke, Alexander H. Stephens answered him before the same audience. Stephens was Georgia's leading cooperationist.

He argued that Lincoln's lawful election was no cause for secession, that the president would be checked by Congress and the courts, and that Georgia should wait for an overt act against its rights.

Editorial note: The text follows the civilwarcauses.org transcription from Allen D. Candler, comp., *Confederate Records of the State of Georgia* (1909).

Document Text

Fellow Citizens: I appear before you tonight at the request of Members of the Legislature and others, to speak of matters of the deepest interest that can possibly concern us all, of an earthly character. There is nothing, no question or subject connected with this life, that concerns a free people so intimately as that of the Government under which they live. We are now, indeed, surrounded by evils. Never since I entered upon the public stage, has the country been so environed with difficulties and dangers that threatened the public peace and the very existence of our Institutions as now, I do not appear before you at my own instance. It is not to gratify any desire of my own that I am here. Had I consulted my personal ease and pleasure, I should not be before you; but believing that it is the duty of every good citizen, when called on, to give his counsels and views whenever the country is in danger, as to the best policy to be pursued, I am here. For these reasons, and these only, do I bespeak a calm, patient, and attentive hearing.

My object is not to stir up strife, but to allay it; not to appeal to your passions, but to your reason. Let us, therefore, reason together. It is not my purpose to say aught to wound the feelings of any individual who may be present; and if in the ardency with which I shall express my opinions, I shall say anything which may be deemed too strong, let it be set down to the zeal with which I advocate my own convictions. There is with me no intention to irritate or offend.

I do not, on this occasion, intend to enter into the history of the reasons or causes of the embarassments which press so heavily upon us all at this time. In justice to myself, however, I must barely state upon this point that I do think much of it depended upon ourselves. The consternation that has come upon the people is the result of a sectional election of a President of the United States, one whose opinions and avowed principles are in antagonism to our interests and rights, and we believe, if carried out, would subvert the Constitution under which we now live. But are we entirely blameless in this matter, my countrymen? I give it to you as my opinion, that but for the policy the Southern people pursued, this fearful result would not have occurred.

The first question that presents itself is, shall the people of Georgia secede from the Union in consequence of the election of Mr. Lincoln to the Presidency of the United States? My countrymen, I tell you frankly, candidly, and earnestly, that I do not think that they ought. In my judgment, the election of no man, constitutionally chosen to that high office, is sufficient cause to justify any State to separate from the Union. It ought to stand by and aid still in maintaining the Constitution of the country. To make a point of resistance to the Government, to withdraw from

it because any man has been elected, would put us in the wrong. We are pledged to maintain the Constitution. Many of us have sworn to support it. Can we, therefore, for the mere election of any man to the Presidency, and that, too, in accordance with the prescribed forms of the Constitution, make a point of resistance to the Government, without becoming the breakers of that sacred instrument ourselves, by withdrawing ourselves from it? Would we not be in the wrong? Whatever fate is to befall this country, let it never be laid to the charge of the people of the South, and especially the people of Georgia, that we were untrue to our national engagements. Let the fault and the wrong rest upon others. If all our hopes are to be blasted, if the Republic is to go down, let us be found to the last moment standing on the deck with the Constitution of the United States waving over our heads. (Applause.) Let the fanatics of the North break the Constitution, if such is their fell purpose. Let the responsibility be upon them. I shall speak presently more of their acts; but let not the South, let us not be the ones to commit the aggression. We went into the election with this people. The result was different from what we wished; but the election has been constitutionally held. Were we to make a point of resistance to the Government and go out of the Union merely on that account, the record would be made up hereafter against us.

[. . .]

Chicago Citations

Bibliography entry:

Stephens, Alexander H. Speech to the Georgia Legislature, November 14, 1860. In *The Confederate Records of the State of Georgia*, compiled by Allen D. Candler, vol. 1, 183–205. Atlanta: C. P. Byrd, 1909. Transcription at civilwarcauses.org.

Footnote citation:

Alexander H. Stephens, speech to the Georgia Legislature, November 14, 1860, in *Confederate Records of the State of Georgia*, comp. Allen D. Candler (Atlanta: C. P. Byrd, 1909), 1:183–205.

Shortened citation:

Stephens, speech, November 14, 1860.

PRIMARY SOURCE P13.105

"What Should Georgia Do?" (editorial) (excerpt)

Augusta Daily Constitutionalist (Georgia) · November 16, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Even proslavery Georgians disputed the radicals' timing in the first weeks after the election.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In mid-November 1860 the Augusta *Constitutionalist* still favored a cautious course. Two weeks later it called for immediate secession.

This editorial agreed that slavery faced a "war of extermination" inside the Union but argued that the danger was years away and that hasty secession by one state would injure all.

Editorial note: The text follows the civilwarcauses.org transcription from Dwight L. Dumond's *Southern Editorials on Secession*.

Document Text

[. . .]

The most inveterate and sanguine Unionist in Georgia, if he is an observant man, must read, in the signs of the times, the hopelessness of the Union cause, and the feebleness of the Union sentiment in this State. The differences between North and South have been growing more marked for years, and the mutual repulsion more radical, until not a single sympathy is left between the dominant influences in each section. Not even the banner of the stars and stripes excites the same thrill of patriotic emotion, alike in the heart of the northern Republican and the southern Secessionist. The former looks upon that flag as blurred by the stain of African slavery, for which he feels responsible as long as that flag waves over it, and that it is his duty to humanity and religion to obliterate the stigma. The latter looks upon it as the emblem of a gigantic power, soon to pass into the hands of that sworn enemy, and knows that African slavery, though panoplied by the Federal Constitution, is doomed to a war of extermination. All the powers of a Government which has so long sheltered it will be turned to its destruction. The only hope for its preservation, therefore, is out of the Union. A few more years of unquiet peace may be spared to it, because Black Republicans cannot yet get full possession of every department of the Government. But this affords to the South no reason for a moment's delay in seeking new guards for its future safety.

Such is the reasoning of cool-headed men in Georgia, who were a few days ago among the most conservative of Unionists. To them, therefore, any line of policy will commend itself, which is in the direction of preparation for the coming change. In this view the policy of retaliatory measures, as advocated by Gov. BROWN [1, below], is entitled to consideration and approval. The particular measures, themselves, recommended by him, are not in all respects politic or right, and one of them is especially reprehensible. That one is the repeal of so much of the Penal Code as gives protection within our borders to the “lives, liberty, and property of citizens of other States which have, by their legislation, practically nullified the Fugitive Slave Law.”

[. . .]

Such results are not accomplished in a day, nor in a year. An individual involved in complicated business engagements cannot change his pursuits and his locality in that time without serious detriment. A man setting up in housekeeping requires time to make his arrangements, and to equip his establishment. A community, however

small and homogeneous, requires time for thought and preparation in inaugurating an enterprise, however peaceful and unopposed, which may involve outlay of money, interruption of business connections, and new schemes of polity. How much more important, then, is time, deliberation, and the amplest preparation, to an agricultural people like those of Geogria, in the contemplation of the question of change of Government. There is no goad of necessity urging them to precipitate themselves out of the Union. The necessities that will force Georgia out of the Union are plainly foreshadowed in the distance, and can be contemplated in all their bearings. But they are not immediately at hand. They are at least two years off. Until the Black Republicans obtain control of the legislative departments of the Government, which they cannot do earlier than two years from the 4th of next March, no encroachment on the Constitutional rights of Georgia, as specified in her platform of 1850, is possible. Therefore, her honor and her obligations to her sister States, and to her own fame, do not require her secession short of that period. The precipitate action of South Carolina might drag her unprepared into disunion, but such conduct would meet with deserved protest from the best citizens of both States.

If she were ready to go out at an earlier day, we would not question the wisdom of her acting more promptly. If she were in a condition to secede to-morrow, and could do so without very great injury to important interests and investments, we would, from the reluctant convictions of our judgment, be an advocate for immediate secession. The hopelessness of preserving the Union has made disunionists, since the election, of thousands of Conservative and Union men. The necessities of the times, not of their seeking, but in despite of their solemn warnings and protests, have made it imperative with prudent men in the South, to seek new guards for their future security.

[. . .]

Chicago Citations

Bibliography entry:

"What Should Georgia Do?" *Augusta (GA) Daily Constitutionalist*, November 16, 1860. In *Southern Editorials on Secession*, edited by Dwight Lowell Dumond, 242–47. New York: Century, 1931. Transcription at civilwarcauses.org.

Footnote citation:

"What Should Georgia Do?" *Augusta Daily Constitutionalist*, November 16, 1860, in *Southern Editorials on Secession*, ed. Dwight Lowell Dumond (New York: Century, 1931), 242–47.

Shortened citation:

"What Should Georgia Do?"

PRIMARY SOURCE P13.106

"The Argument Is Exhausted—Stand by Your Arms!" (excerpt)

Augusta Daily Constitutionalist (Georgia) · December 1, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A Georgia editorial ties secession to the defense of slavery and to southern honor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After Lincoln's election, newspapers across the Deep South debated whether to secede at once or wait. The *Constitutionalist* of Augusta, a Democratic paper, came down for immediate action.

The editorial reviewed the sectional fights since 1850, argued that compromise had been tried and failed, and called on Georgians to leave the Union before a "Black Republican" administration took power.

Editorial note: The text follows the civilwarcauses.org transcription from Dwight L. Dumond's 1931 collection *Southern Editorials on Secession*.

Document Text

[. . .]

In 1854, after four years of debate, Democracy brought up her battery of southern mind, and following the lead of DOUGLAS, overthrew the forces of Abolitionism in the great victory on the Kansas act. Then, as in 1850, great men told us what they honestly thought, that the slavery question was “forever banished from the halls of Congress.” But the throwing open [of] the Territories to the South upon the principles of popular sovereignty and non-intervention, was as impotent to lay the spirit of discord, as had been the bartering of an empire for a right; and the vexed question did not leave the Capitol for an hour. Victors indeed we were, but the scattered forces of Abolitionism, joined with kindred elements, and the Black Republican party sprang up from the sown teeth of the dragon we had slain.

Our next plan was to pledge the people to the principles of 1854, by a solemn endorsement at the ballot box, and BUCHANAN and BRECKINRIDGE were sent to Washington, as exponents of the great peace idea. It is needless to say that the power of a chosen Administration did not banish the question, but that the integrity of the party was shaken, by disagreements between its great leaders.

In 1860, we tried all sorts of plans, from a party with a universal platform, to one with a sectional one. We attacked the enemy in front and flank by three divisions, and were all defeated in squads.

We are perfectly satisfied that we have exhausted the argument! We have gained advantages, and have brought up the entire South to estimate the value of her rights; but we are wearied of the interminable debate. We are convinced by the vote, that the number of the converts North does not bear a proper proportion to the length and energy of the sermon. We are all bound, as Democrats, to stop now, for we stand pledged to our platform, and that tells us to stop. Every Democrat, in 1856 and 1860, endorsed the declaration by his vote, that the principle of non-intervention is “the ONLY ONE on which the heart of the people can rely, in its determined conservatism to the Union.”

That principle has been repudiated by the North, and voted down by the South, and the record of our votes declares that no principle now binds the popular heart to the Union.

Some persons desire to get up another National party, but we beg that our little wing be excused from the performance. Our party went into action with the old victorious banner of 1856 floating above them, and with its legions [sic] inscribed upon every door post in the land. The prestige of nationality, the power of name, the age and glory of its principles, the record of all great statesmen, save Mr. YANCEY, you who looked for protection to BRECKINRIDGE, in a State which some of you do not consider southern; remember only, that we are all defeated together, and drop the wordy argument, and let us ACT.

[. . .]

The resistance to which the State stands pledged, should be in exact proportion to the wrong complained of. If [we] resist at all, beyond remonstrance, we must get out of the Union to do it. We have heard of one county, a portion of whose citizens simply declare that the North has hurt our feelings, that we have no idea it intended to do it, and if we tell them of it they want [sic] to do it again. That position being impregnable, we will pass it by. We say that if we do not get all we desire by sending an ultimatum, (and it is rumored that one State has replied in the negative before it was sent,) then we must resist, and will have to secede before we can resist. The first thing to resist, is the influence, bribery and demoralising effect of a Black Republican Administration. It is not safe, as Mr. HILL has demonstrated, to trust eight hundred million of dollars worth of negroes in the hands of a power which says that we do not own the property, that the title under the Constitution is bad, and under the law of God still worse. So we must get out, to keep out or resist improper influence.

If we want retaliatory legislation to stop negro stealing, we must quit the Union to get it; for the Constitutional obligation of contracts and equality of citizenship, bars us while we remain with the North under it.

If we want a war of revenge, we must get out first, and get a Congress of our own, empowered to declare war and contract alliances.

If we want to raise an army and take possession of the Territories, we must first withdraw the delegated power to do so. If we are base enough to tie ourselves to England, the mother of Abolitionism, and wish to sit in her grand pow-wows side by side with a negro delegate from Canada, and be insulted, as Judge LONGSTREET was, we must first resume the power to make treaties.

The argument is exhausted, or has at least grown tiresome. Let us stand by our rights without fear or bravado.

Having failed to secure them in a Union where a controlling majority is against us, we must, as prudent men, seek new guards for future security.

Chicago Citations

Bibliography entry:

"The Argument Is Exhausted—Stand by Your Arms!" *Augusta (GA) Daily Constitutionalist*, December 1, 1860. In *Southern Editorials on Secession*, edited by Dwight Lowell Dumond, 279–84. New York: Century, 1931. Transcription at civilwarcauses.org.

Footnote citation:

"The Argument Is Exhausted—Stand by Your Arms!" *Augusta Daily Constitutionalist*, December 1, 1860, in *Southern Editorials on Secession*, ed. Dwight Lowell Dumond (New York: Century, 1931), 279–84.

Shortened citation:

"The Argument Is Exhausted," *Augusta Daily Constitutionalist*.

PRIMARY SOURCE P13.107

Fourth Annual Message to Congress (excerpt)

James Buchanan · December 3, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A northern Democratic president blames the crisis on northern antislavery agitation.
TREATMENT	Public-domain text, selected excerpts

Historical Context

James Buchanan (1791–1868), a Pennsylvania Democrat, was a lame-duck president when South Carolina prepared to secede. His last annual message went to Congress less than a month after Lincoln's election.

Buchanan blamed the crisis on "the long-continued and intemperate interference of the Northern people with the question of slavery." He declared secession unconstitutional but also said the federal government had no power to coerce a state to remain.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

I have long foreseen and often forewarned my countrymen of the now impending danger. This does not proceed solely from the claim on the part of Congress or the Territorial legislatures to exclude slavery from the Territories, nor from the efforts of different States to defeat the execution of the fugitive-slave law. All or any of these evils might have been endured by the South without danger to the Union (as others have been) in the hope that time and reflection might apply the remedy. The immediate peril arises not so much from these causes as from the fact that the incessant and violent agitation of the slavery question throughout the North for the last quarter of a century has at length produced its malign influence on the slaves and inspired them with vague notions of freedom. Hence a sense of security no longer exists around the family altar. This feeling of peace at home has given place to apprehensions of servile insurrections. Many a matron throughout the South retires at night in dread of what may befall herself and children before the morning. Should this apprehension of domestic danger, whether real or imaginary, extend and intensify itself until it shall pervade the masses of the Southern people, then disunion will become inevitable. Self-preservation is the first law of nature, and has been implanted in the heart of man by his Creator for the wisest purpose; and no political union, however fraught with blessings and benefits in all other respects, can long continue if the necessary consequence be to render the homes and the firesides of nearly half the parties to it habitually and hopelessly insecure. Sooner or later the bonds of such a union must be severed. It is my conviction that this fatal period has not yet arrived, and my prayer to God is that He would preserve the Constitution and the Union throughout all generations.

But let us take warning in time and remove the cause of danger. It can not be denied that for five and twenty years the agitation at the North against slavery has been incessant. In 1835 pictorial handbills and inflammatory appeals were circulated extensively throughout the South of a character to excite the passions of the slaves, and, in the language of General Jackson, "to stimulate them to insurrection and produce all the horrors of a servile war." This agitation has ever since been continued by the public press, by the proceedings of State and county conventions and by abolition sermons and lectures. The time of Congress has been occupied in violent speeches on this never-ending subject, and appeals, in pamphlet and other forms, indorsed by distinguished names, have been sent forth from this central point and spread broadcast over the Union.

How easy would it be for the American people to settle the slavery question forever and to restore peace and harmony to this distracted country!

They, and they alone, can do it. All that is necessary to accomplish the object, and all for which the slave States have ever contended, is to be let alone and permitted to manage their domestic institutions in their own way. As sovereign States, they, and they alone, are responsible before God and the world for the slavery existing among them. For this the people of the North are not more responsible and have no more right to interfere than with similar institutions in Russia or in Brazil.

Upon their good sense and patriotic forbearance I confess I still greatly rely. Without their aid it is beyond the power of any President, no matter what may be his own political proclivities, to restore peace and harmony among the States. Wisely limited and restrained as is his power under our Constitution and laws, he alone can accomplish but little for good or for evil on such a momentous question.

And this brings me to observe that the election of any one of our fellow-citizens to the office of President does not of itself afford just cause for dissolving the Union. This is more especially true if his election has been effected by a mere plurality, and not a majority of the people, and has resulted from transient and temporary causes, which may probably never again occur. In order to justify a resort to revolutionary resistance, the Federal Government must be guilty of "a deliberate, palpable, and dangerous exercise" of powers not granted by the Constitution.

The late Presidential election, however, has been held in strict conformity with its express provisions. How, then, can the result justify a revolution to destroy this very Constitution? Reason, justice, a regard for the Constitution, all require that we shall wait for some overt and dangerous act on the part of the President elect before resorting to such a remedy. It is said, however, that the antecedents of the President-elect have been sufficient to justify the fears of the South that he will attempt to invade their constitutional rights. But are such apprehensions of contingent danger in the future sufficient to justify the immediate destruction of the noblest system of government ever devised by mortals? From the very nature of his office and its high responsibilities he must necessarily be conservative. The stern duty of administering the vast and complicated concerns of this Government affords in itself a guaranty that he will not attempt any violation of a clear constitutional right.

After all, he is no more than the chief executive officer of the Government. His province is not to make but to execute the laws. And it is a remarkable fact in our history that, notwithstanding the repeated efforts of the antislavery party, no single act has ever passed Congress, unless we may possibly except the Missouri compromise, impairing in the slightest degree the rights of the South to their property in slaves; and it may also be observed, judging from present indications, that no probability exists of the passage of such an act by a majority of both Houses, either in the present or the next Congress. Surely under these circumstances we ought to be restrained from present action by the precept of Him who spake as man never spoke, that "sufficient unto the day is the evil thereof." The day of evil may never come unless we shall rashly bring it upon ourselves.

[. . .]

Chicago Citations

Bibliography entry:

Buchanan, James. "Fourth Annual Message to Congress on the State of the Union." December 3, 1860. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

James Buchanan, "Fourth Annual Message to Congress on the State of the Union," December 3, 1860, American Presidency Project, https://www.presidency.ucsb.edu/documents/fourth-annual-message-congress-the-state-the-union.

Shortened citation:

Buchanan, "Fourth Annual Message."

PRIMARY SOURCE P13.108

Open Letter on Secession to the Georgia Legislature and People (excerpt)

Joseph E. Brown, Governor of Georgia · December 7, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A governor tries to win over non-slaveholders by appealing to white supremacy.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Joseph E. Brown (1821–1894) grew up in the north Georgia hill country, where few white families owned slaves. As governor he became one of the strongest voices for immediate secession.

In this open letter Brown addressed non-slaveholding white Georgians directly. He argued that abolition would put freed Black people in competition with poor whites and bring social equality, so that the poor white man had as much at stake in slavery as the planter.

Editorial note: The text follows the civilwarcauses.org transcription from William W. Freehling and Craig M. Simpson, eds., *Secession Debated* (1992).

Document Text

[. . .]

Again, the poor white man wishes to rent land from the wealthy landlord-- this landlord asks him half the crop of common upland or two thirds or even three fourths, for the best bottom land. The poor man says this seems very hard. I cannot make a decent support for my family at these rates. The landlord replies, here are negroes all around me anxious to take it at these rates; I can let you have it for no less. The negro therefore, comes into competition with the poor white man, when he seeks to rent land on which to make his bread, or a shelter to protect his wife and his little ones, from the cold and from the rain; and when he seeks employment as a day laborer. In every such case if the negro will do the work the cheapest, he must be preferred. It is sickening to contemplate the miseries of our poor white people under these circumstances. They now get higher wages for their labor than the poor of any other country on the globe. Most of them are land owners, and they are now respected. They are in no sense placed down upon a level with the negro. They are a superior race, and they feel and know it. Abolish slavery, and you make the negroes their equals, legally and socially (not naturally, for no human law can change God's law) and you very soon make them all tenants, and reduce their wages for daily labor to the smallest pittance that will sustain life. Then the negro and the white man, and their families, must labor in the field together as equals. Their children must go to the same poor school together, if they are educated at all. They must go to church as equals; enter the Courts of justice as equals, sue and be sued as equals, sit on juries together as equals, have the right to give evidence in Court as equals, stand side by side in our military corps as equals, enter each others' houses in social intercourse as equals; and very soon their children must marry together as equals. May our kind Heavenly Father avert the evil, and deliver the poor from such a fate. So soon as the slaves were at liberty, thousands of them would leave the cotton and rice fields in the lower parts of our State, and make their way to the healthier climate in the mountain region. We should have them plundering and stealing, robbing and killing, in all the lovely vallies of the mountains. This I can never consent to see. The mountains contain the place of my nativity, the home of my manhood, and the theatre of most of the acts of my life; and I can never forget the condition and interest of the people who reside there. It is true, the people there are generally poor; but they are brave, honest, patriotic, and pure hearted. Some who do not know them, have doubted their capacity to understand these questions, and their

patriotism and valor to defend their rights when invaded. I know them well, and I know that no greater mistake could be made. They love the Union of our fathers, and would never consent to dissolve it so long as the constitution is not violated, and so long as it protects their rights; but they love liberty and justice more; and they will never consent to submit to abolition rule, and permit the evils to come upon them, which must result from a continuance in the Union when the government is in the hands of our enemies, who will use all its power for our destruction. When it becomes necessary to defend our rights against so foul a domination, I would call upon the mountain boys as well as the people of the lowlands, and they would come down like an avalanche and swarm around the flag of Georgia with a resolution that would strike terror into the ranks of the abolition cohorts of the North. Wealth is timid, and wealthy men may cry for peace, and submit to wrong for fear they may lose their money: but the poor, honest laborers of Georgia, can never consent to see slavery abolished, and submit to all the taxation, vassalage, low wages and downright degradation, which must follow. They will never take the negro's place; God forbid.

I know that some contemptible demagogues have attempted to deceive them by appealing to their prejudices, and asking them what interest they have in maintaining the rights of the wealthy slaveholder. They cannot be deceived in this way. They know that the government of our State protects their lives, their families and their property; and that every dollar the wealthy slaveholder has, may be taken by the government of the State, if need be, to protect the rights and liberties of all. One man, in a large neighborhood, has a mill. Not one in fifty has a mill. What would be thought of the public speaker who would appeal to the fifty, and ask them what interest they have in defending their neighbor's mill, if an abolition mob were trying to burn it down? Another has a store. Not one in fifty has a store. Who would say the fifty should not help the one if an invader is about to burn his store? Another has a blacksmith shop. Not one in fifty has a blacksmith shop. Shall the shop be destroyed by the common enemy and no one protect the owner because no one near, has the same peculiar kind of property? It may be that I have no horse, and you have a horse; or that I have a cow, and you have no cow. In such case, if our rights of property are assailed by a common enemy, shall we not help each other? Or I have a wife and children, and a house, and another has neither wife and children, nor house. Will he, therefore, stand by and see my house burned and my wife and children butchered, because he has none? The slaveholder has honestly invested the money, which it has cost him years of toil to make, in slaves, which are guaranteed to him by the laws of our State. The common enemy of the South seeks to take the property from him. Shall all who do not own slaves, stand by and permit it to be done? If so, they have no right to call on the slaveholder, by taxation, or otherwise, to help protect their property or their liberties. Such a doctrine is monstrous; and he who would advocate it, deserves to be rode upon the sharpest edge of one of Lincoln's rails. The doctrine strikes at the very foundation of society, and if carried out, would destroy all property, and all protection to life, liberty and happiness.

[. . .]

Chicago Citations

Bibliography entry:

Brown, Joseph E. Open Letter to the Georgia Legislature and People, December 7, 1860. In *Secession Debated: Georgia's Showdown in 1860*, edited by William W. Freehling and Craig M. Simpson, 145–59. New York: Oxford University Press, 1992. Transcription at civilwarcauses.org.

Footnote citation:

Joseph E. Brown, open letter, December 7, 1860, in *Secession Debated*, ed. William W. Freehling and Craig M. Simpson (New York: Oxford University Press, 1992), 145–59, via https://civilwarcauses.org/jbrown.htm.

Shortened citation:

Brown, open letter, December 7, 1860.

PRIMARY SOURCE P13.109

Address of William L. Harris, Commissioner from Mississippi, to the Georgia General Assembly (excerpt)

William L. Harris · Milledgeville, Georgia, December 17, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A commissioner from Mississippi makes the case for secession to another state in explicitly racial terms.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After Lincoln's election, the Deep South states sent "secession commissioners" to the other slave states to urge them to leave the Union together. William L. Harris, a justice of the Mississippi Supreme Court, went to Georgia.

Harris told the Georgia legislature that the new Republican administration meant "equality between the white and negro races" and urged Georgia to secede rather than accept that degradation.

Editorial note: The text follows the civilwarcauses.org transcription.

Document Text

[. . .]

To-day our government stands totally revolutionized in its main features, and our Constitution broken and overturned. The new administration, which has effected this revolution, only awaits the 4th of March for the inauguration of the new government, the new principles, and the new policy, upon the success of which they have proclaimed freedom to the slave, but eternal degradation for you and for us.

No revolution was ever more complete, though bloodless, if you will tamely submit to the destruction of that constitution and that Union our fathers made.

Our fathers made this a government for the white man, rejecting the negro, as an ignorant, inferior, barbarian race, incapable of self-government, and not, therefore, entitled to be associated with the white man upon terms of civil, political, or social equality.

This new administration comes into power, under the solemn pledge to overturn and strike down this great feature of our Union, without which it would never have been formed, and to substitute in its stead their new theory of the universal equality of the black and white races.

Our fathers secured to us, by our Constitutional Union, now being overturned by this Black Republican rule, protection to life, liberty and property, all over the Union, and wherever its flag was unfurled, whether on land or sea.

Under this wretched, lawless spirit and policy, now usurping the control of that government, citizens of the South have been deprived of their property, and for attempting to seek the redress promised by the compromise laws, have lost their liberty and their lives.

Equality of rights secured to white men, in equal sovereign States, is among the most prominent features of the Constitution under which we have so long lived.

This equality has been denied us in the South for years in the common territories, while the North has virtually distributed them as bounties to abolition fanatics and foreigners, for their brigand service in aiding in our exclusion.

Our Constitution, in unmistakable language, guarantees the return of our fugitive slaves. Congress has recognized her duty in this respect, by enacting proper laws for the enforcement of this right.

And yet these laws have been continually nullified, and the solemn pledge of the Compromise of 1850, by which the North came under renewed obligations to enforce them, has been faithlessly disregarded, and the government and its officers set at defiance.

Who now expects these rebels against the laws passed by their own consent and procurement --- rebels against justice and common honesty --- to become pious patriots by the acquisition of power? Who now expects Mr. Lincoln to become conservative, when the only secret of his success, and the only foundation of his authority, is the will and command of that robber clan, whose mere instrument he is, who have achieved this revolution in our government by treading under their unhallowed feet our Constitution and laws and the Union of our fathers, and by openly defying high heaven by willful and corrupt perjury?

And, above all, who is it in the South, born or descended of Revolutionary sires, who so loves such company, as that he will long hesitate before he can obtain the consent of a virtuous and patriotic heart and conscience to separate from them forever?

Mississippi is firmly convinced that there is but one alternative:

This new union with Lincoln Black Republicans and free negroes, without slavery, or, slavery under our old constitutional bond of union, without Lincoln Black Republicans, or free negroes either, to molest us.

If we take the former, then submission to negro equality is our fate. if the latter, then secession is inevitable --- each State for itself and by itself, but with a view to the immediate formation of a Southern Confederacy, under our present Constitution, by such of the slave-holding States as shall agree in their conventions to unite with us.

Mississippi seeks no delay --- the issue is not new to her people. They have long and anxiously watched its approach they think it too late, now, to negotiate more compromises with bankrupts in political integrity whose recreancy to justice, good faith and constitutional obligations is the most cherished feature of their political organization.

She has exhausted her rights in sacrificial offerings to save the Union, until nearly all is lost but her honor and the courage to defend it. She has tried conventions until they have become the ridicule of both our friends and our enemies --- mere instruments of fraudulent evasion and delay, to wear out the spirit of our people and encourage the hopes of our common enemy. In short, she is sick and tired of the North, and pants for some respite from eternal disturbance and disquiet.

She comes now to you, --- our glorious old mother, --- the land of Baldwin, who first defiantly asserted and preserved your rights as to slavery, in the federal convention, in opposition to Messrs. Madison, Mason, and Randolph, and the whole Union except the two Carolinas, --- the land of Jackson, who immortalized himself by his bold exposure and successful overthrow of a legislative fraud and usurpation upon the rights of the people, --- the land of Troup, the sternest Roman of them all, who, single-handed and alone, without cooperation, without consultation, but with truth and justice, and the courage of freemen at home on his side, defied this National Government in its usurpations on the rights of Georgia, and executed your laws in spite of the threats of Federal coercion. It is to you we come, --- the brightest exemplar among the advocates and defenders of State rights and State remedies, --- to take counsel and solicit sympathy in this hour of our common trial.

[. . .]

Chicago Citations

Bibliography entry:

Harris, William L. Address to the Georgia General Assembly, December 17, 1860. Transcription at civilwarcauses.org.

Footnote citation:

William L. Harris, address to the Georgia General Assembly, December 17, 1860, https://civilwarcauses.org/wharris.htm.

Shortened citation:

Harris, address to the Georgia General Assembly.

PRIMARY SOURCE P13.110

Amendments Proposed in Congress by Senator John J. Crittenden (Crittenden Compromise)

John J. Crittenden · December 18, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A sweeping proslavery compromise backed by Upper South moderates shows what keeping the Union would have required.
TREATMENT	Full public-domain text

Historical Context

John J. Crittenden (1787–1863), a Kentucky Unionist who had inherited Henry Clay's seat and his role as compromiser, offered a set of constitutional amendments as the Lower South began to secede.

The plan would have restored the 36°30' line and extended it to California, protected slavery south of it in present and future territories, and made these guarantees permanent. Lincoln told Republicans to reject any extension of slavery, and the plan failed in committee.

Editorial note: The text follows the Avalon Project transcription.

Document Text

Whereas, serious and alarming dissensions have arisen between the Northern and Southern States, concerning the rights and security of the rights of the slaveholding States, and especially their rights in the common territory of the United States; and whereas it is eminently desirable and proper that these dissensions, which now threaten the very existence of this Union, should be permanently quieted and settled by constitutional provisions, which shall do equal justice to all sections, and thereby restore to the people that peace and good will which ought to prevail between all the citizens of the United States: Therefore,

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled (two-thirds of both Houses concurring), That the following articles be, and are hereby, proposed and submitted as amendments to the Constitution of the United States, which shall be valid to all intents and purposes, as part of said Constitution, when ratified by conventions of three-fourths of the several States:

ARTICLE I.

In all the territory of the United States now held, or hereafter acquired, situated north of latitude 36° 30', slavery or involuntary servitude, except as a punishment for crime, is prohibited while such territory shall remain under territorial government. In all the territory south of said line of latitude, slavery of the African race is hereby recognized as existing, and shall not be interfered with by Congress, but shall be protected as property by all the departments of the territorial government during its continuance. And when any Territory, north or south of said line, within such boundaries as Congress may prescribe, shall contain the population requisite for a member of Congress according to the then Federal ratio of representation of the people of the United States, it shall, if its form of government be republican, be admitted into the Union, on an equal footing with the original States, with or without slavery, as the constitution of such new State may provide.

ARTICLE II.

Congress shall have no power to abolish slavery in places under its exclusive jurisdiction, and situate within the limits of States that permit the holding of slaves.

ARTICLE III.

Congress shall have no power to abolish slavery within the District of Columbia, so long as it exists in the adjoining States of Virginia and Maryland, or either, nor without the consent of the inhabitants, nor without just compensation first made to such owners of slaves as do not consent to such abolishment. Nor shall Congress at any time prohibit officers of the Federal Government, or members of Congress, whose duties require them to be in said District, from bringing with them their slaves, and holding them as such, during the time their duties may require them to remain there, and afterward taking them from the District.

ARTICLE IV.

Congress shall have no power to prohibit or hinder the transportation of slaves from one State to another, or to a Territory in which slaves are by law permitted to be held, whether that transportation be by land, navigable rivers, or by the sea.

ARTICLE V.

That in addition to the provisions of the third paragraph of the second section of the fourth article of the Constitution of the United States, Congress shall have power to provide by law, and it shall be its duty so to provide, that the United States shall pay to the owner who shall apply for it, the full value of his fugitive slave in all cases when the marshal or other officer whose duty it was to arrest said fugitive was prevented from so doing by violence or intimidation, or when, after arrest, said fugitive was rescued by force, the owner thereby prevented and obstructed in the pursuit of his remedy for the recovery of his fugitive slave under the said clause of the Constitution and the laws made in pursuance thereof. And in all such cases, when the United States shall pay for such fugitive, they shall have the right, in their own name, to sue the county in which said violence, intimidation, or rescue was committed, and to recover from it, with interest and damages, the amount paid by them for said fugitive slave. And the said county, after it has paid said amount to the United States may, for its indemnity, sue and recover from the wrongdoers or rescuers by whom the owner was prevented from the recovery of his fugitive slave, in like manner as the owner himself might have sued and recovered.

ARTICLE VI.

No future amendment of the Constitution shall affect the five preceding articles; nor the third paragraph of the second section of the first article of the Constitution, nor the third paragraph of the second section of the fourth article of said Constitution and no amendment shall be made to the Constitution which shall authorize or give to Congress any power to abolish or interfere with slavery in any of the States by whose laws it is, or may be allowed or permitted.

[. . .]

Chicago Citations

Bibliography entry:

Crittenden, John J. "Amendments Proposed in Congress by Senator John J. Crittenden." December 18, 1860. Avalon Project, Yale Law School.

Footnote citation:

John J. Crittenden, amendments proposed in Congress, December 18, 1860, Avalon Project, https://avalon.law.yale.edu/19th_century/critten.asp.

Shortened citation:

Crittenden Compromise.

PRIMARY SOURCE P13.111

"The Union Is Dissolved!"

Charleston Mercury Extra · December 20, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The first secession announcement shows the radicals' eagerness to make the break public at once.
TREATMENT	Public-domain image (CC0)

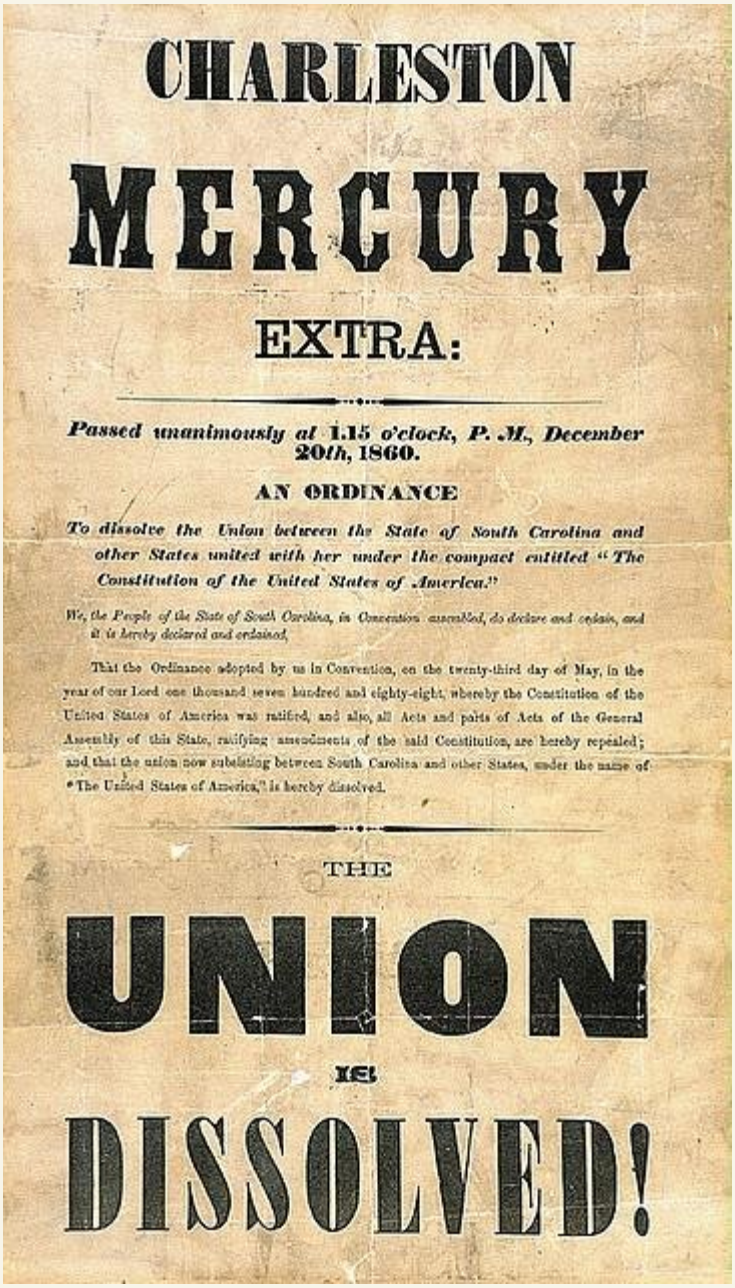
Historical Context

South Carolina's convention adopted its ordinance of secession at 1:15 p.m. on December 20, 1860. The *Charleston Mercury*, the fire-eaters' paper, had this extra on the streets within fifteen minutes.

The broadside prints the one-sentence ordinance repealing South Carolina's 1788 ratification of the Constitution under the headline "The Union Is Dissolved!"

Editorial note: Image from the Smithsonian's National Museum of American History (record supplied by the instructor). The reproduction is low resolution; the ordinance text is the same as the South Carolina ordinance of secession.

Primary Source Image



CHARLESTON

MERCURY

EXTRA:

Passed unanimously at 1.15 o'clock, P. M., December 20th, 1860.

AN ORDINANCE

To dissolve the Union between the State of South Carolina and other States united with her under the compact entitled "The Constitution of the United States of America."

We, the People of the State of South Carolina, in Convention assembled, do declare and ordain, and it is hereby declared and ordained,

That the Ordinance adopted by us in Convention, on the twenty-third day of May, in the year of our Lord one thousand seven hundred and eighty-eight, whereby the Constitution of the United States of America was ratified, and also, all Acts and parts of Acts of the General Assembly of this State, ratifying amendments of the said Constitution, are hereby repealed; and that the union now subsisting between South Carolina and other States, under the name of "The United States of America," is hereby dissolved.

THE

UNION

IS

DISSOLVED!

Charleston Mercury Extra, December 20, 1860. National Museum of American History.

Chicago Citations

Bibliography entry:

Charleston Mercury Extra. "The Union Is Dissolved!" Broadside. Charleston, December 20, 1860. National Museum of American History, Smithsonian Institution, AF.32960.

Footnote citation:

"The Union Is Dissolved!" *Charleston Mercury* Extra, December 20, 1860, broadside, National Museum of American History, AF.32960, https://www.si.edu/object/union-dissolved-broadside:nmah_1301337.

Shortened citation:

"The Union Is Dissolved!"

PRIMARY SOURCE P13.112

Letter from Mississippi's Commissioner to North Carolina

Jacob Thompson to Governor John W. Ellis · December 1860 (Raleigh State Journal, December 22, 1860)

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A sitting cabinet member lobbies a hesitant Upper South state to join the Deep South.
TREATMENT	Full public-domain text

Historical Context

Jacob Thompson (1810–1885) of Mississippi was still serving as President Buchanan's secretary of the interior when his state named him its commissioner to North Carolina.

His letter to North Carolina's governor argued that the North had broken faith with the South and that a Republican government would become "an engine for the destruction of our domestic institutions." North Carolina did not secede until May 1861, after Fort Sumter.

Editorial note: The text follows the civilwarcauses.org transcription from the *Raleigh State Journal*.

Document Text

Raleigh, N.C., Dec. 1860.

To His Excellency, John W. Ellis,

Governor of the State of North Carolina:

Sir: I have the honor to inform you that I have been duly appointed a Commissioner from the State of Mississippi to the State of North Carolina. I have been instructed by the Governor of Mississippi, to report myself, in person, to your Excellency and through your kind offices, to inform the people of this Commonwealth "that the Legislature of Mississippi has passed an act calling a Convention of the people of the State, to consider the threatening relations of the Northern and Southern sections of the United States; aggravated by the recent election of a President upon principles of hostility to the States of the South, and to express the earnest hope of Mississippi that North Carolina will co-operate with her, in the adoption of efficient measures for the common defence and safety of the South."

It affords me great pleasure to accept this appointment, and to obey these instructions; yet I most sincerely regret the public necessity which impels my adopted State to ask for the counsel and co-operation of my native State. Common dangers threaten the peace, honor, and safety of both; and it is certain that an unresisting submission to the aggressive and hostile policy of the Northern States will inevitably involve both in a common humiliation and ruin. The crisis demands action. It is unbecoming a free people to close their eyes to the issue forced upon them, and to cry peace, peace, when there is no peace. The antagonism of opinion, upon the questions growing out of the recognition by the Constitution of the right of property in slaves, so long and angrily discussed, has at last culminated, in the adoption, by a majority of the Northern people of the doctrine of the "Irrepressible Conflict." The leading idea of this creed is that the Union of these States cannot endure, half of them slave-holding, and the other half non-slave-holding. This conflict is to be inaugurated under the forms of the Constitution on the 4th of March next, and if adhered to and carried out, the assertions of its most violent advocates that "Freedom is triumphant" and "that slavery is overthrown," are self evident propositions.

It is admitted that each State must decide for herself, both the mode and measure of redress for present and prospective grievances. One destiny, however, awaits all the slave-holding States of this Union, and fate has indissolubly linked their fortunes together: Therefore, it is meet, and wise, and proper and expedient, that they should consult and advise together, for their common defence and general welfare. Thus the hasty and precipitate will be checked, the laggard and spiritless aroused to action, and a universal confidence will be felt, that our rights will be secure, and our government placed on the safest and surest foundation.

Mississippi is content with the compact which our fathers formed. The Constitution of the United States already affords guarantees which are ample for our security. But they are found on parchment only. The people of the Northern States have not kept faith with us. Not only have a majority of the non-slaveholding States rendered all legislation for our protection nugatory and inoperative by State enactments, but on the 6th of November last, a majority of the people of all the free States endorsed a platform of principles in direct conflict with the Constitution and the decisions of the Supreme Court, and thus the will of a numerical majority --- a majority trained from infancy to hate our people and institutions, are to be substituted in their stead.

The Executive and Judicial departments of the government, and the Senate of the United States have always held that property in slaves was recognized by the Constitution, and therefore, under a common flag was entitled to protection. The dominant party denying this proposition, and thus, by their construction, the Constitution will be changed, this common Government will be revolutionized, and instead of throwing its broad shield over all the citizens of all the States, protecting each and all equally in the possession and enjoyment of their rights of property, it will be perverted into an engine for the destruction of our domestic institutions, and the subjugation of our people.

[. . .]

Chicago Citations

Bibliography entry:

Thompson, Jacob. Letter to Governor John W. Ellis of North Carolina, December 1860. *Raleigh State Journal*, December 22, 1860. Transcription at civilwarcauses.org.

Footnote citation:

Jacob Thompson to John W. Ellis, December 1860, *Raleigh State Journal*, December 22, 1860, via https://civilwarcauses.org/thompson.htm.

Shortened citation:

Thompson to Ellis, December 1860.

PRIMARY SOURCE P13.113

Letter to Alexander H. Stephens

Abraham Lincoln · December 22, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Lincoln names slavery's expansion as the one real difference between the sections; useful as a Counter-Argument about southern fears.
TREATMENT	Full public-domain text

Historical Context

Alexander H. Stephens of Georgia had served with Lincoln in Congress as a fellow Whig and opposed immediate secession in late 1860. Lincoln, now president-elect, wrote to him privately.

Lincoln assured Stephens that his administration would not interfere with slavery in the states. The real difference between them, he wrote, was that the South thought slavery right and ought to be extended, while Republicans thought it wrong and ought to be restricted. Stephens became the Confederacy's vice president.

Editorial note: The text follows the Teaching American History transcription.

Document Text

For your own eye only

Hon. A. H. Stephens-

My dear Sir

Your obliging answer to my short note is just received, and for which please accept my thanks. I fully appreciate the present peril the country is in, and the weight of responsibility on me.

Do the people of the South really entertain fears that a Republican administration would, directly, or indirectly, interfere with their slaves, or with them, about their slaves? If they do, I wish to assure you, as once a friend, and still, I hope, not an enemy, that there is no cause for such fears.

The South would be in no more danger in this respect, than it was in the days of Washington. I suppose, however, this does not meet the case. You think slavery is right and ought to be extended; while we think it is wrong and ought to be restricted. That I suppose is the rub. It certainly is the only substantial difference between us.

Yours very truly

A. LINCOLN

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Letter to Alexander H. Stephens, December 22, 1860. Teaching American History.

Footnote citation:

Abraham Lincoln to Alexander H. Stephens, December 22, 1860, via Teaching American History, https://teachingamericanhistory.org/document/letter-to-alexander-h-stephens/.

Shortened citation:

Lincoln to Stephens, December 22, 1860.

PRIMARY SOURCE P13.114

Address of the People of South Carolina to the People of the Slaveholding States (excerpt)

Robert Barnwell Rhett for the South Carolina Convention · December 24, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A fire-eater rests the case for secession on southern power and honor, while still grounding it in slavery.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Robert Barnwell Rhett (1800–1876), a longtime "fire-eater" and editor of the *Charleston Mercury*, wrote this address for the convention that took South Carolina out of the Union on December 20.

Directed at the other slave states, the address compared the South's grievances to those of the colonists against Britain. It argued that the South was a permanent minority, ruled and taxed by a northern majority, and that slavery could not be safe in such a Union.

Editorial note: The text follows the Teaching American History transcription.

Document Text

[. . .]

There is another evil, in the condition of the Southern towards the Northern States, which our ancestors refused to bear towards Great Britain. Our ancestors not only taxed themselves, but all the taxes collected from them, were expended amongst them. Had they submitted to the pretensions of the British Government, the taxes collected from them, would have been expended in other parts of the British Empire. They were fully aware of the effect of such a policy in impoverishing the people from whom taxes are collected, and in enriching those who receive the benefit of their expenditure. To prevent the evils of such a policy, was one of the motives which drove them on to Revolution. Yet this British policy, has been fully realized towards the Southern States, by the Northern States. The people of the Southern States are not only taxed for the benefit of the Northern States, but after the taxes are collected, three-fourths, of them are expended at the North. This cause, with others, connected with the operation of the General Government, has made the cities of the South provincial. Their growth is paralyzed; they are mere suburbs of Northern cities. The agricultural productions of the South are the basis of the foreign commerce of the United States; yet Southern cities do not carry it on. Our foreign trade, is almost annihilated. In 1740, there were five ship yards in South Carolina, to build ships to carry on our direct trade with Europe. Between 1740 and 1779, there were built in these yards, twenty-five square rigged vessels, besides a great number of sloops and schooners, to carry on our coast and West India trade. In the half century immediately preceding the Revolution, from 1725 to 1775, the population of South Carolina, increased seven-fold.

No man can for a moment believe, that our ancestors intended to establish over their posterity, exactly the same sort of Government they had overthrown. The great object of the Constitution of the United States, in its internal operation, was, doubtless, to secure the great end of the Revolution–a limited free Government–a Government limited to those matters only, which were general and common to all portions of the United States. All sectional or local interests, were to be left to the States. By no other arrangement, would they obtain free Government, by a Constitution common to so vast a Confederacy. Yet by gradual and steady encroachments on the part of the people of the North, and acquiescence on the part of the South, the limitations in the Constitution have been swept away; and the Government of the United States has become consolidated, with a claim of limitless powers in its

operations.

It is not at all surprising, such being the character of the Government of the United States, that it should assume to possess power over all the institutions of the country. The agitations on the subject of slavery, are the natural results of the consolidation of the Government. Responsibility, follows power; and if the people of the North, have the power by Congress–"to promote the general welfare of the United States," by any means they deem expedient–why should they not assail and overthrow the institution of slavery in the South? They are responsible for its continuance or existence, in proportion to their power. A majority in Congress, according to their interested and perverted views, is omnipotent. The inducements to act upon the subject of slavery, under such circumstances, were so imperious, as to amount almost to a moral necessity. To make, however, their numerical power available to rule the Union, the North must consolidate their power. It would not be united, on any matter common to the whole Union–in other words, on any constitutional subject–for on such subjects divisions are as likely to exist in the North as in the South. Slavery was strictly, a sectional interest. If this could be made the criterion of parties at the North, the North could be united in its power; and thus carry out its measures of sectional ambition, encroachment, and aggrandizement. To build up their sectional predominance in the Union, the Constitution must be first abolished by constructions; but that being done, the consolidation of the North, to rule the South, by the tariff and slavery issues, was in the obvious course things.

The Constitution of the United States, was an experiment. The experiment consisted, in uniting under one Government, peoples living in different climates, and having different pursuits and institutions. It matters not, how carefully the limitations of such a Government be laid down in the Constitution,–its success must at least depend, upon the good faith of the parties to the constitutional compact, in enforcing them. It is not in the power of human language to exclude false inferences, constructions and perversions in any Constitution; and when vast sectional interests are to be subserved, involving the appropriation of countless millions of money, it has not been the usual experience of mankind, that words on parchments can arrest power. The Constitution of the United States, irrespective of the interposition of the States, rested on the assumption, that power would yield to faith,–that integrity would be stronger than interest; and that thus, the limitations of the Constitution would be observed. The experiment, has fairly made. The Southern States, from the commencement of the Government, have striven to keep it, within the orbit prescribed by the Constitution. The experiment, has failed. The whole Constitution, by the constructions of the Northern people, has been absorbed by its preamble. In their reckless lust for power, they seem unable to comprehend that seeming paradox–that the more power is given to the General Government, the weaker it becomes. Its strength, consists in the limitation of its agency to objects of common interest to all sections. To extend the scope of its power over sectional or local interests, is to raise up against it, opposition and resistance. In all such matters, the General Government must necessarily be a despotism, because all sectional or local interests must ever be represented by a minority in the councils of the General Government–having no power to protect itself against the rule of the majority. The majority, constituted from those who do not represent these sectional or local interests, will control and govern them. A free people, cannot submit to such a Government. And the more it enlarges the sphere of its power, the greater must be the dissatisfaction it must produce, and the weaker it must become. On the contrary, the more it abstains from usurped powers, and the more faithfully it adheres to the limitations of the Constitution, the stronger it is made. The Northern people have had neither the wisdom nor the faith to perceive, that to observe the limitations of the Constitution was the only way to its perpetuity.

Under such a Government, there must, of course; be many and endless "irrepressible conflicts," between the two great sections of the Union. The same faithlessness which has abolished the Constitution of the United States, will not fail to carry out the sectional purposes for which it has been abolished. There must be conflict; and the weaker section of the Union can only find peace and liberty, in an independence of the North. The repeated efforts made by South Carolina, in a wise conservatism, to arrest the progress of the General Government in its fatal progress to consolidation, have been unsupported, and she has been denounced as faithless to the obligations of the

Constitution, by the very men and States, who were destroying it by their usurpations. It is now too late, to reform or restore the Government of the United States. All confidence in the North, is lost by the South. The faithlessness of the North for a half century, has opened a gulf of separation between the North and the South which no promises nor engagements can fill.

[. . .]

Chicago Citations

Bibliography entry:

Rhett, Robert Barnwell. "The Address of the People of South Carolina, Assembled in Convention, to the People of the Slaveholding States of the United States." December 24, 1860. Teaching American History.

Footnote citation:

Robert Barnwell Rhett, "Address of the People of South Carolina to the People of the Slaveholding States," December 24, 1860, via Teaching American History, https://teachingamericanhistory.org/document/the-address-of-the-people-of-south-carolina-assembled-in-convention-to-the-people-of-the-slaveholding-states-of-the-united-states/.

Shortened citation:

Rhett, "Address of the People of South Carolina."

PRIMARY SOURCE P13.115

Declaration of the Immediate Causes Which Induce and Justify the Secession of South Carolina from the Federal Union

South Carolina Secession Convention · December 24, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The first state to secede names northern hostility to slavery as its cause.
TREATMENT	Full public-domain text

Historical Context

Four days after voting to secede, the South Carolina convention adopted this declaration, drafted chiefly by Christopher G. Memminger, to explain its action to the world.

It argued that the Constitution was a compact among sovereign states, that the northern states had broken it by refusing to enforce the fugitive slave clause, and that a sectional party had elected a president "whose opinions and purposes are hostile to slavery."

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

In 1787, Deputies were appointed by the States to revise the Articles of Confederation, and on 17th September, 1787, these Deputies recommended for the adoption of the States, the Articles of Union, known as the Constitution of the United States.

The parties to whom this Constitution was submitted, were the several sovereign States; they were to agree or disagree, and when nine of them agreed the compact was to take effect among those concurring; and the General Government, as the common agent, was then invested with their authority.

If only nine of the thirteen States had concurred, the other four would have remained as they then were-- separate, sovereign States, independent of any of the provisions of the Constitution. In fact, two of the States did not accede to the Constitution until long after it had gone into operation among the other eleven; and during that interval, they each exercised the functions of an independent nation.

By this Constitution, certain duties were imposed upon the several States, and the exercise of certain of their powers was restrained, which necessarily implied their continued existence as sovereign States. But to remove all doubt, an amendment was added, which declared that the powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States, respectively, or to the people. On the 23d May , 1788, South Carolina, by a Convention of her People, passed an Ordinance assenting to this Constitution, and afterwards altered her own Constitution, to conform herself to the obligations she had undertaken.

Thus was established, by compact between the States, a Government with definite objects and powers, limited to the express words of the grant. This limitation left the whole remaining mass of power subject to the clause reserving it to the States or to the people, and rendered unnecessary any specification of reserved rights.

We hold that the Government thus established is subject to the two great principles asserted in the Declaration of Independence; and we hold further, that the mode of its formation subjects it to a third fundamental principle, namely: the law of compact. We maintain that in every compact between two or more parties, the obligation is mutual; that the failure of one of the contracting parties to perform a material part of the agreement, entirely releases the obligation of the other; and that where no arbiter is provided, each party is remitted to his own judgment to determine the fact of failure, with all its consequences.

In the present case, that fact is established with certainty. We assert that fourteen of the States have deliberately refused, for years past, to fulfill their constitutional obligations, and we refer to their own Statutes for the proof.

The Constitution of the United States, in its fourth Article, provides as follows: "No person held to service or labor in one State, under the laws thereof, escaping into another, shall, in consequence of any law or regulation therein, be discharged from such service or labor, but shall be delivered up, on claim of the party to whom such service or labor may be due."

[. . .]

For twenty-five years this agitation has been steadily increasing, until it has now secured to its aid the power of the common Government. Observing the forms of the Constitution, a sectional party has found within that Article establishing the Executive Department, the means of subverting the Constitution itself. A geographical line has been drawn across the Union, and all the States north of that line have united in the election of a man to the high office of President of the United States, whose opinions and purposes are hostile to slavery. He is to be entrusted with the administration of the common Government, because he has declared that that "Government cannot endure permanently half slave, half free," and that the public mind must rest in the belief that slavery is in the course of ultimate extinction.

This sectional combination for the submersion of the Constitution, has been aided in some of the States by elevating to citizenship, persons who, by the supreme law of the land, are incapable of becoming citizens; and their votes have been used to inaugurate a new policy, hostile to the South, and destructive of its beliefs and safety.

On the 4th day of March next, this party will take possession of the Government. It has announced that the South shall be excluded from the common territory, that the judicial tribunals shall be made sectional, and that a war must be waged against slavery until it shall cease throughout the United States.

The guaranties of the Constitution will then no longer exist; the equal rights of the States will be lost. The slaveholding States will no longer have the power of self-government, or self-protection, and the Federal Government will have become their enemy.

Sectional interest and animosity will deepen the irritation, and all hope of remedy is rendered vain, by the fact that public opinion at the North has invested a great political error with the sanction of more erroneous religious belief.

We, therefore, the People of South Carolina, by our delegates in Convention assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, have solemnly declared that the Union heretofore existing between this State and the other States of North America, is dissolved, and that the State of South Carolina has resumed her position among the nations of the world, as a separate and independent State; with full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent States may of right do.

Adopted December 24, 1860

Chicago Citations

Bibliography entry:

South Carolina Convention. "Declaration of the Immediate Causes Which Induce and Justify the Secession of South Carolina from the Federal Union." December 24, 1860. Avalon Project, Yale Law School.

Footnote citation:

"Declaration of the Immediate Causes Which Induce and Justify the Secession of South Carolina," December 24, 1860, Avalon Project, https://avalon.law.yale.edu/19th_century/csa_scarsec.asp.

Shortened citation:

South Carolina Declaration of Causes.

PRIMARY SOURCE P13.116

Stephen F. Hale to Governor Beriah Magoffin of Kentucky (excerpt)

Stephen F. Hale, Alabama commissioner · December 27, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	An Alabama envoy lobbies the hesitant Upper South, joining the defense of slavery to appeals to honor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Stephen F. Hale (1816–1862), a Kentucky-born Alabama lawyer and legislator, was Alabama's secession commissioner to his native state. Kentucky's governor was Beriah Magoffin, a southern-rights Democrat.

Hale's long letter listed the South's grievances: northern defiance of the fugitive slave law, the Republican plan to bar slavery from the territories, and the election of a president committed to "the equality of the races." He appealed to the honor of southern citizens and urged Kentucky to join a southern confederacy.

Editorial note: The original is printed in the *Official Records*, ser. 4, vol. 1. The text follows the Teaching American History transcription.

Document Text

[. . .]

The law of Congress for the rendition of fugitive slaves, passed in pursuance of an express provision of the Constitution, remains almost a dead letter upon the Statute Book. A majority of the Northern States, through their legislative enactments, have openly nullified it, and impose heavy fines and penalties upon all persons who aid in enforcing this law; and some of those States declare the Southern slave-holder, who goes within their jurisdiction to assert his legal rights under the Constitution, guilty of a high crime, and affix imprisonment in the penitentiary as the penalty. The Federal officers who attempt to discharge their duties under the law, as well as the owner of the slave, are set upon by mobs, and are fortunate if they escape without serious injury to life or limb; and the State authorities, instead of aiding in the enforcement of this law, refuse the use of their jails, and by every means which unprincipled fanaticism can devise, give countenance to the mob, and aid the fugitive to escape. Thus, there are annually large amounts of property actually stolen away from the Southern States, harbored and protected in Northern States, and by their citizens. And when a requisition is made for the thief by the Governor of a Southern State upon the Executive of a Northern State, in pursuance of the express conditions of the Federal Constitution, he is insultingly told that the felon has committed no crime– and thus the criminal escapes, the property of the citizen is lost, the sovereignty of the State is insulted– and there is no redress, for the Federal Courts have no jurisdiction to award a mandamus to the Governor of a sovereign State, to compel him to do an official Executive act, and Congress, if disposed, under the Constitution has no power to afford a remedy. These are wrongs under which the Southern people have long suffered, and to which they have patiently submitted, in the hope that a returning sense of justice would prompt the people of the Northern States to discharge their Constitutional obligations, and save our common country. Recent events, however, have not justified their hopes; the more daring and restless fanatics have banded themselves together, have put in practice the terrible lessons taught by the timid, by making an armed incursion upon the sovereign State of Virginia, slaughtering her citizens, for the purpose of exciting a servile insurrection among her slave population, and arming them for the destruction of their own masters. During the past summer, the

Abolition incendiary has lit up the prairies of Texas, fired the dwellings of the inhabitants, burned down whole towns and laid poison for her citizens — thus literally executing the terrible denunciations of fanaticism against the slave-holder — ” Alarm to their sleep, fire to their dwellings, and poison to their food. ”

The same fell spirit, like an unchained demon, has for years swept over the plains of Kansas, leaving death, desolation and ruin in its track. Nor is this the mere ebullition of a few half-crazy fanatics, as is abundantly apparent from the sympathy manifested all over the North, where, in many places, the tragic death of John Brown, the leader of the raid upon Virginia, who died upon the gallows a condemned felon, is celebrated with public honors, and his name canonized as a martyr to liberty; and many, even of the more conservative papers of the Black Republican school, were accustomed to speak of his murderous attack upon the lives of the unsuspecting citizens of Virginia, in a half-sneering and half-apologetic tone. And what has the Federal Government done in the meantime to protect slave property upon the common Territories of the Union? Whilst a whole squadron of the American Navy is maintained on the coast of Africa, at an enormous expense, to enforce the execution of the laws against the slave trade — and properly, too — and the whole navy is kept afloat to protect the lives and property of American citizens upon the high seas, not a law has been passed by Congress, or an arm raised by the Federal Government, to protect the slave property of citizens from the Southern States upon the soil of Kansas — the common Territory and common property of the citizens of all the States — purchased alike by their common treasure, and held by the Federal Government, as declared by the Supreme Court of the United States, as the trustee for all their citizens; but, upon the contrary, a Territorial Government, created by Congress, and supported out of the common treasury, under the influence and control of Emigrant Aid Societies and Abolition emissaries, is permitted to pass laws excluding and destroying all that species of property within her limits — thus ignoring, on the part of the Federal Government, one of the fundamental principles of all good Governments, the duty to protect the property of the citizen, and wholly refusing to maintain the equal rights of the States and the citizens of the States upon their common Territories.

As the last and crowning act of insult and outrage upon the people of the South, the citizens of the Northern States, by overwhelming majorities, on the 6th day of November last, elected Abraham Lincoln and Hannibal Hamlin, President and Vice President of the United States. Whilst it may be admitted that the mere election of any man to the Presidency, is not, per se, a sufficient cause for a dissolution of the Union; yet, when the issues upon, and circumstances under which he was elected, are properly appreciated and understood, the question arises whether a due regard to the interest, honor, and safety of their citizens, in view of this and all the other antecedent wrongs and outrages, do not render it the imperative duty of the Southern States to resume the powers they have delegated to the Federal Government, and interpose their sovereignty for the protection of their citizens.

What, then are the circumstances under which, and the issues upon which he was elected? His own declarations, and the current history of the times, but too plainly indicate he was elected by a Northern sectional vote, against the most solemn warnings and protestations of the whole South. He stands forth as the representative of the fanaticism of the North, which, for the last quarter of a century, has been making war upon the South, her property, her civilization, her institutions, and her interests; as the representative of that party which overrides all Constitutional barriers, ignores the obligations of official oaths, and acknowledges allegiance to a higher law than the Constitution, striking down the sovereignty and equality of the States, and resting its claims to popular favor upon the one dogma, the Equality of the Races, white and black.

It was upon this acknowledgment of allegiance to a higher law, that Mr. Seward rested his claim to the Presidency, in a speech made by him in Boston, before the election. He is the exponent, if not the author, of the doctrine of the Irrepressible Conflict between freedom and slavery, and proposes that the opponents of slavery shall arrest its further expansion, and by Congressional Legislation exclude it from the common Territories of the Federal Government, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction.

He claims for free negroes the right of suffrage, and an equal voice in the Government– in a word, all the rights of citizenship, although the Federal Constitution, as construed by the highest judicial tribunal in the world, does not recognize Africans imported into this country as slaves, or their descendants, whether free or slaves, as citizens.

These were the issues presented in the last Presidential canvass, and upon these the American people passed at the ballot-box.

Upon the principles then announced by Mr. Lincoln and his leading friends, we are bound to expect his administration to be conducted. Hence it is, that in high places, among the Republican party, the election of Mr. Lincoln is hailed, not simply as a change of Administration, but as the inauguration of new principles, and a new theory of Government, and even as the downfall of slavery. Therefore it is that the election of Mr. Lincoln cannot be regarded otherwise than a solemn declaration, on the part of a great majority of the Northern people, of hostility to the South, her property and her institutions — nothing less than an open declaration of war — for the triumph of this new theory of Government destroys the property of the South, lays waste her fields, and inaugurates all the horrors of a San Domingo servile insurrection, consigning her citizens to assassinations, and her wives and daughters to pollution and violation, to gratify the lust of half-civilized Africans. Especially is this true in the cotton-growing States, where, in many localities, the slave outnumbers the white population ten to one.

[. . .]

Chicago Citations

Bibliography entry:

Hale, Stephen F. Letter to Governor Beriah Magoffin, December 27, 1860. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 4, vol. 1, 4–11. Washington, DC: Government Printing Office, 1900. Teaching American History.

Footnote citation:

Stephen F. Hale to Beriah Magoffin, December 27, 1860, in *Official Records*, ser. 4, vol. 1, 4–11, via Teaching American History, https://teachingamericanhistory.org/document/stephen-f-hale-to-governor-beriah-magoffin/.

Shortened citation:

Hale to Magoffin, December 27, 1860.

PRIMARY SOURCE P13.117

Governor Magoffin's Reply to Alabama's Commissioner

Beriah Magoffin, Governor of Kentucky · December 28, 1860

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A sympathetic border-state governor prefers a negotiated settlement to immediate secession.
TREATMENT	Full public-domain text

Historical Context

Beriah Magoffin (1815–1885) sympathized with the South but governed a border state with strong Union loyalties and deep ties to the Ohio Valley.

In his reply to Stephen Hale he agreed that the South had real grievances but proposed a convention of the slave states and constitutional amendments rather than separate secession by each state. Kentucky declared neutrality in May 1861 and stayed in the Union.

Editorial note: The text follows the civilwarcauses.org transcription from the *Official Records*.

Document Text

EXECUTIVE DEPARTMENT,
Frankfort, Ky., December 28, 1860.

Hon. S. F. HALE,
Commissioner from the State of Alabama:

Your communication of the 27th instant, addressed to me by authority of the State of Alabama, has been attentively read. I concur with you in the opinion that the grave political issues yet pending and undetermined between the slave-holding and non-slave-holding States of the Confederacy are of a character to render eminently proper and highly important a full and frank conference on the part of the Southern members, identified, as they undoubtedly are, by a common interest, bound together by mutual sympathies, and with the whole social fabric resting on homogeneous institutions. And coming as you do in a spirit of fraternity, by virtue of a commission from a sister Southern State, to confer with the authorities of this State in reference to the measures necessary to be adopted to protect the interests and maintain the honor and safety of the States and their citizens, I extend you a cordial welcome to Kentucky.

You have not exaggerated the grievous wrongs, injuries, and indignities to which the slave-holding States and their citizens have long submitted with a degree of patience and forbearance justly attributable alone to that elevated patriotism and devotion to the Union which would lead them to sacrifice well-nigh all save honor to recover the Government to its original integrity of administration and perpetuate the Union upon the basis of equality established by the founders of the Republic. I may even add that the people of Kentucky, by reason of their geographical position and nearer proximity to those who seem so madly bent upon the destruction of our constitutional guarantees, realize yet more fully than our friends farther south the intolerable wrongs and menacing dangers you have so elaborately recounted. Nor are you, in my opinion, more keenly alive than are the people of this State to the importance of arresting the insane crusade so long waged against our institutions and our society by measures which shall be certainly effective. The rights of African slavery in the United States and the relations of the Federal Government to it, as an institution in the States and Territories, most assuredly demand at

this time explicit definition and final recognition by the North. The slave-holding States are now impelled by the very highest law of self-preservation to demand that this settlement should be concluded upon such a basis as shall not only conserve the institution in localities where it is now recognized, but secure its expansion, under no other restrictions than those which the laws of nature may throw around it. That unnecessary conflict between free labor and slave labor, but recently inaugurated by the Republican party as an element in our political struggles, must end, and the influence of soil, of climate, and local interests left unaided and unrestricted save by constitutional limitations to control the extension of slavery over the public domain. The war upon our social institutions and their guaranteed immunities waged through the Northern press, religious and secular, and now threatened to be conducted by a dominant political organization through the agency of State Legislatures and the Federal Government must be ended. Our safety, our honor, and our self-preservation alike demand that our interests be placed beyond the reach of further assault.

The people of Kentucky may differ variously touching the nature and theory of our complex system of government, but when called upon to pass upon these questions at the polls I think such an expression would develop no material variance of sentiment touching the wrongs you recite and the necessity of their prompt adjustment. They fully realize the fatal result of longer forbearance, and appreciate the peril of submission at this juncture. Kentucky would leave no effort untried to preserve the union of the States upon the basis of the Constitution as we construe it, but Kentucky will never submit to wrong and dishonor, let resistance cost what it may. Unqualified acquiescence in the administration of the Government upon the Chicago platform, in view of the movements already inaugurated at the South and the avowed purposes of the representative men of the Republican party, would, I feel assured, receive no favor in this State. Whether her citizens shall, in the last resort, throw themselves upon the right of revolution as the inherent right of a free people never surrendered, or shall assert the doctrine of secession, can be of little practical import. When the time of action comes (and it is now fearfully near at hand) our people will be found rallied as a unit under the flag of resistance to intolerable wrong, and being thus consolidated in feeling and action, I may well forego any discussion of the abstract theories to which one party or another may hold to cover their resistance.

[. . .]

Chicago Citations

Bibliography entry:

Magoffin, Beriah. Letter to S. F. Hale, December 28, 1860. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 4, vol. 1, 11–15. Washington, DC: Government Printing Office, 1900. Transcription at civilwarcauses.org.

Footnote citation:

Beriah Magoffin to S. F. Hale, December 28, 1860, in *Official Records*, ser. 4, vol. 1, 11–15, via https://civilwarcauses-org.jfepperson.org/magoffin.htm.

Shortened citation:

Magoffin to Hale, December 28, 1860.

PRIMARY SOURCE P13.118

The Interest in Slavery of the Southern Non-Slaveholder (excerpt)

J. D. B. De Bow · De Bow's Review, January 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A leading editor argues that white supremacy binds non-slaveholders to slavery.
TREATMENT	Public-domain text, selected excerpts

Historical Context

James D. B. De Bow (1820–1867) edited *De Bow's Review* in New Orleans, the South's leading commercial and economic journal and a strong advocate of southern independence.

Written as a pamphlet for the 1860 campaign and reprinted in the *Review*, this essay listed reasons why white men who owned no slaves should defend slavery. Among them, slavery kept the poorest white man from being "regarded as an inferior."

Editorial note: The text follows the civilwarcauses.org transcription.

Document Text

[. . .]

4. The non-slaveholder of the South preserves the status of the white man, and is not regarded as an inferior or a dependant. He is not told that the Declaration of Independence, when it says that all men are born free and equal, refers to the negro equally with himself. It is not proposed to him that the free negro's vote shall weigh equally with his own at the ballot-box, and that the little children of both colors shall be mixed in the classes and benches of the schoolhouse, and embrace each other filially in its outside sports. It never occurs to him that a white man could be degraded enough to boast in a public assembly, as was recently done in New-York, of having actually slept with a negro. And his patriotic ire would crush with a blow the free negro who would dare, in his presence, as is done in the free States, to characterize the father of the country as a "scoundrel." No white man at the South serves another as a body-servant, to clean his boots, wait on his table, and perform the menial services of his household! His blood revolts against this, and his necessities never drive him to it. He is a companion and an equal. When in the employ of the slaveholder, or in intercourse with him, he enters his hall, and has a seat at his table. If a distinction exists, it is only that which education and refinement may give, and this is so courteously exhibited as scarcely to strike attention. The poor white laborer at the North is at the bottom of the social ladder, while his brother here has ascended several steps, and can look down upon those who are beneath him at an infinite remove!

5. The non-slaveholder knows that as soon as his savings will admit, he can become a slaveholder, and thus relieve his wife from the necessities of the kitchen and the laundry, and his children from the labors of the field. This, with ordinary frugality, can in general be accomplished in a few years, and is a process continually going on. Perhaps twice the number of poor men at the South own a slave, to what owned a slave ten years ago. The universal disposition is to purchase. It is the first use for savings, and the negro purchased is the last possession to be parted with. If a woman, her children become heirlooms, and make the nucleus of an estate. It is within the knowledge of the writer that a plantation of fifty or sixty persons has been established from the descendants of a single female, in the course of the lifetime of the original purchaser.

6. The large slaveholders and proprietors of the South begin life in great part as non-slaveholders. It is the nature of property to change hands. Luxury, liberality, extravagance, depreciated land, low prices, debt, distribution among children, are continually breaking up estates. All over the new States of the Southwest enormous estates are in the hands of men who began life as overseers or city clerks, traders and merchants. Often the overseer marries the widow. Cheap lands, abundant harvests, high prices, give the poor man soon a negro. His ten bales of cotton bring him another, a second crop increases his purchases, and so he goes on, opening land and adding labor, until in a few years his draft for $20,000 upon his merchant becomes a very marketable commodity.

7. But, should such fortune not be in reserve for the non-slaveholder, he will understand that by honesty and industry it may be realized to his children. More than one generation of poverty in a family is scarcely to be expected at the South, and is against the general experience. It is more unusual here for poverty than wealth to be preserved through several generations in the same family.

8. The sons of the non-slaveholder are and have always been among the leading and ruling spirits of the South, in industry as well as in politics. Every man's experience in his own neighborhood will evince this. He has but to task his memory. In this class are the McDuffies, Langdon Cheeves, Andrew Jacksons, Henry Clays, and Rusks, of the past; the Hammonds, Yanceys, Orrs, Memmingers, Benjamins, Stephens, Soules, Browns of Mississippi, Simms, Porters, Magraths, Aikens, Maunsel Whites, and an innumerable host of the present, and what is to be noted, these men have not been made demagogues for that reason, as in other quarters, but are among the most conservative among us. Nowhere else have intelligence and virtue, disconnected from ancestral estates, the same opportunities for advancement, and nowhere else is their triumph more speedy and signal.

9. Without the institution of slavery the great staple products of the South would cease to be grown, and the immense annual results which are distributed among every class of the community, and which give life to every branch of industry, would cease. The world furnishes no instances of these products being grown upon a large scale by free labor. The English now acknowledge their failure in the East Indies. Brazil, whose slave population nearly equals our own, is the only South American state which has prospered. Cuba, by her slave labor, showers wealth upon old Spain, while the British West India colonies have now ceased to be a source of revenue, and from opulence have been, by emancipation, reduced to beggary. St. Domingo shared the same fate, and the poor whites have been massacred equally with the rich.

[. . .]

Chicago Citations

Bibliography entry:

De Bow, J. D. B. "The Interest in Slavery of the Southern Non-Slaveholder." *De Bow's Review*, January 1861. Transcription at civilwarcauses.org.

Footnote citation:

J. D. B. De Bow, "The Interest in Slavery of the Southern Non-Slaveholder," *De Bow's Review*, January 1861, via https://civilwarcauses.org/debow.htm.

Shortened citation:

De Bow, "Interest in Slavery of the Southern Non-Slaveholder."

PRIMARY SOURCE P13.119

Report of Alabama's Commissioner to Louisiana

John A. Winston to Governor A. B. Moore · January 2, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A commissioner reports that slavery endangered the South's rights and honor.
TREATMENT	Full public-domain text

Historical Context

John A. Winston (1812–1871), a former governor of Alabama, was the state's commissioner to Louisiana.

His report to Governor Andrew B. Moore described his meetings in Baton Rouge and his argument that questions about "African slavery" threatened the rights and honor of the slaveholding states, which could find safety only in separation. Louisiana seceded on January 26.

Editorial note: The text follows the civilwarcauses.org transcription from the *Official Records*.

Document Text

JANUARY 2, 1861.
His Excellency A. B. MOORE:

SIR: In obedience to your instructions I repaired to the seat of government of the State of Louisiana to confer with the Governor of that State and with the legislative department on the grave and important state of our political relations with the Federal Government, and the duty of the slave-holding States in the matter of their rights and honor, so menacingly involved in matters connected with the institution of African slavery. Owing to the fact that the Legislature was in session only three days, and other unavoidable causes, I did not arrive at Baton Rouge until after the Legislature had adjourned. But I met many members of the legislative corps, and communicated with them and with His Excellency Governor T. O. Moore on the purposes of my embassy, and have the pleasure to report that the legislative mind appeared fully alive to the importance and the absolute necessity of the action of the Southern States in resistance of that settled purpose of aggression on our constitutional and inherent natural rights by the majority of the people of the non-slave-holding States of the Federal Union, which purpose and intention has culminated in the election of a man to the Presidency of the United States whose opinions and constructions of constitutional duty are wholly incompatible with our safety in a longer union with them. In evidence of such a conclusion the Legislature of Louisiana have provided for a convention of the people to consider and take action on the matter, the election of delegates to which takes place on the 7th instant, and the convention assembles on the 23d instant. I was rejoiced to find the Governor fully up to the conclusion that the time had come when the enjoyment of peace and our rights as coequals in this confederacy were no longer to be expected or hoped for, and that the solemn duty now devolved upon us of separating from all political connection with the States so disregarding their constitutional obligations, and of forming such a government as a high sense of our rights, honor, and future peace and safety shall indicate. And that, although the sense of the necessity of such a course may not yet be so nearly general and unanimous in Louisiana as in some other States, he was of the opinion that the conclusion was hourly gaining ground that there was no hope of justice or safety to us except in a separation, and that the State of Louisiana would not hesitate to co-operate with those Southern States who might prove equal to the emergency of decided action.

The State of Louisiana, from the fact that the Mississippi River flows through its extent and debouches through her borders, and that the great commercial depot of that river and its tributaries is the city of New Orleans, occupies a position somewhat more complicated than any other of the Southern States, and may present some cause of delay in the consummation and execution of the purpose of a separation from the Northwestern States and the adoption of a new political status. In consideration of these facts, more time may be required for reflection than might otherwise appear necessary, and as the convention does not assemble for some weeks, that may prevent action on the question until some time in February. As a point of policy it might be advisable for the State of Alabama to announce her intention as a foregone conclusion, a fixed fact, that on a day appointed our relations as a member of the political association known as the United States had ceased, and that Alabama, acting as a sovereign for herself in the act of separation, was prepared to form such political relations with States having a community of interest and sympathies as to them may seem just and proper. I feel assured that by such a course of respectful delay on our part other States would more promptly respond to whatever action Alabama may take, and that there is little or no doubt but that Louisiana will co-operate with the States taking action, and so add dignity and importance to the movement which is so essential to secure the respect and recognition of foreign nations and the support of hesitating States. Should it be considered advisable by Your Excellency to communicate further with the authorities of the State of Louisiana after her convention shall have assembled, I will be in Mobile, and can receive readily by mail or telegraph any instructions you may deem it advisable to make, and I will without delay endeavor to discharge them.

Trusting that the time has come when not only Alabama but the entire South will prove prepared to vindicate her honor by a fearless assertion of her rights and her determination to enjoy them,

Most respectfully, your obedient servant, &c.,

JOHN A. WINSTON.

Chicago Citations

Bibliography entry:

Winston, John A. Report to Governor A. B. Moore, January 2, 1861. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 4, vol. 1, 1–2. Washington, DC: Government Printing Office, 1900. Transcription at civilwarcauses.org.

Footnote citation:

John A. Winston to A. B. Moore, January 2, 1861, in *Official Records*, ser. 4, vol. 1, 1–2.

Shortened citation:

Winston to Moore, January 2, 1861.

PRIMARY SOURCE P13.120

The History and Debates of the Convention of the People of Alabama (excerpt)

William R. Smith, reporter · convention of January 1861 (Montgomery: White, Pfister & Co., 1861)

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Records of the debate show cooperationists resisting immediate secession and a majority refusing to put the question to the people.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Alabama's secession convention met in Montgomery on January 7, 1861. Immediate secessionists from the plantation counties held a majority, but "cooperationists," mostly from the hill country of north Alabama, wanted to wait and act together with other southern states.

William R. Smith, a cooperationist delegate, published the debates, including those held in secret session. The convention passed the ordinance of secession 61 to 39 on January 11 and refused to submit it to the voters.

Editorial note: Smith was himself a cooperationist, and his reporting reflects that position. The text follows the Documenting the American South transcription.

Document Text

[. . .]

2d, Be it further resolved, That in the absence of any preparation for a systematic co-operation of the Southern States, in resisting the aggressions of their enemies, Alabama, acting for herself, has solemnly declared that under no circumstances will she submit to the foul domination of a sectional Northern party, has provided for the call of a Convention in the event of the triumph of such a faction in the approaching Presidential election, and to maintain the position thus deliberately assumed, has appropriated the sum of $200,000 for the military contingencies which such a course may involve.

3d, Be it further resolved, That the State of Alabama having endeavored to prepare for the exigencies of the future, has not deemed it necessary to propose a meeting of Deputies from the slave-holding States, but anxiously desiring their coöperation in a struggle which perils all they hold most dear, hereby pledges herself to a cordial participation in any and every effort, which in her judgment will protect the common safety, advance the common interest, and serve the common cause.

[. . .]

MR. CLARKE, of Laurence, said:

Mr. President--Shall the Constitution of the Confederate States of America be submitted to the people, for their ratification or rejection? In other language, shall the people govern themselves? What a singular interrogatory to be propounded, in a deliberative assembly of the 19th Century! If a similar question had been asked in the bloody days when Robespierre murdered, it would have excited little surprise; but, sir, that the delegates of a people, whose freedom is their proudest boast, should even entertain a question of this character, is a political phenomenon--a significant paradox. Sir, are mildew and decay about to fall upon the principles established by the conflicts and consecrated by the blood of the revolution? Is the great fundamental law of all free governments, about to be repealed? Has experience demonstrated that the patriotic people of Alabama are incapable of

self-government? Has the mere act of secession wrought such a wonderful change in their capacity? Is it possible that such things shall be "and overcome us like a summer cloud without our special wonder?" The solemn matter for the arbitrament of this Convention, is not what degree of responsibility each delegate is willing to assume. The self-complacent and defiant air with which members flippantly declare that it is our duty to lead, and not to follow the people, is a specious argumentum ad hominum addressed to personal vanity, and can only affect those who are afflicted with this most contemptible of human frailties. If considerations of individual responsibility alone were involved, I would dare as much as any other member in the right direction. The true question is, how far is this Convention willing to aggress upon the clearly defined rights of the people! Sir, the refusal to refer the Constitution to the people, whom it is to govern, for their ratification or rejection is a bold, unauthorized and dangerous advance in the wrong direction, and can only be justified by the reasons which tyrants have always quoted in defence of their usurpations. I am not willing, at least, without the excuse of some overruling necessity, to assume the responsibility of doing wrong. We assembled here for the patriotic purpose of protecting, and not of infringing, popular rights. To establish more firmly the great principles of civil liberty, and not to subvert them--to preserve, and not to abolish, the land-marks of our fathers. That this Convention does not possess the unlimited power, asserted by those who are opposed to the reference, is perfectly manifest. The painest principles of construction, when applied to the warrant of our commission, sufficiently demonstrate the truth of this proposition. "We are convinced," in the language of the resolutions of the General Assembly of the State, passed at the session of 1859-60, "to consider, determine and do whatever in our opinion, the rights, interests and honor of the State requires to be done," on account of the election of a Black Republican President to the Chief Magistracy of the Federal Union. The power hereby conferred creates nothing more than a general agency for a special purpose. In consonance with the mandate of these resolutions the Convention determined on the 11th day of January, ultimo, that the "rights, interests and honor" of the State required that the Ordinance of Secession should be passed, and acted in harmony with that decision.

[. . .]

Chicago Citations

Bibliography entry:

Smith, William R. *The History and Debates of the Convention of the People of Alabama*. Montgomery: White, Pfister & Co., 1861. Documenting the American South, University of North Carolina at Chapel Hill.

Footnote citation:

William R. Smith, *The History and Debates of the Convention of the People of Alabama* (Montgomery: White, Pfister & Co., 1861), [page], via Documenting the American South, https://docsouth.unc.edu/imls/smithwr/menu.html.

Shortened citation:

Smith, *History and Debates of the Convention of Alabama*, [page].

PRIMARY SOURCE P13.121

Address of L. W. Spratt to the Florida Secession Convention (excerpt)

Leonidas W. Spratt, South Carolina commissioner · January 1861 (Charleston Mercury, January 12, 1861)

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A South Carolina envoy argues that a slave society requires its own nation.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Leonidas W. Spratt (1818–1903), a Charleston lawyer and editor, was best known for demanding that the African slave trade be reopened. South Carolina sent him to Florida's secession convention.

Spratt told the Floridians that the North and South were two societies, one based on free labor and the other on slave labor, locked in an "irrepressible conflict," and that slavery needed a government of its own. Florida seceded on January 10.

Editorial note: The text follows the civilwarcauses.org transcription from the *Charleston Mercury*.

Document Text

[. . .]

In other sections of the South, however, it is urged, we should have waited for an overt act. It was assumed that the administration of Mr. Lincoln might be less perilous in fact than it seemed to be in promise, and it is contended, therefore, that we should have waited its results; but of this suggestion we could not see the force. The question was not as to the ills of despotism, but as to the fact of despotism. To slaves it may be a question whether the repetition of the lash can be endured, but to freemen the only question is as to the assumption to inflict the lash, and that determined, it could little matter whether there should be one lash more or less. But there could be no motive for waiting, except in the hope that aggression might turn back, and of that, in our conception, there was not the slightest possibility. There has, I fear, been a misconception as to the nature of this controversy. There seems to be the impression that aggression has been voluntary, and that with a better conception of the merits of our cause, the people of the North could forego their movements to encroach upon us---but it is not so. It is a great fact, important to be understood, that, properly considered, the contest is not between the North and the South, or between the people of the North and the people of the South, but it is between the forms of society that has become established—the one at the South and the other at the North. Within this government two societies have become developed, as distinct in form and constitution as any two beings in animated nature. The one is the society of one race, the other of two races. The one is based on free labor, the other on slave labor. The one is braced together by but the two great relations of life—the relations of husband and wife, and parent and child; the other by the three relations of husband and wife, parent and child, and master and slave. The one embodies the social principle that equality is the right of man; the other, the social principle that equality is not the right of man, but the right of equals only. The one, embodying the social principle that equality is the right of man, has expanded upon the horizontal plane of a democracy; the other, embodying the social principle, that equality is not the right of man, but the right of equals only, has assumed to itself the rounded form of a social aristocracy. In the one there is universal suffrage; in the other the suffrage only of the ruling race. In the one, therefore, the power of government is in the lower strata of society; in the other it is in only the upper. In the one, when pressure comes to be intense, the mass must surely rise, and so the ship of State be turned bottom upwards. In the other the ship of State,

ballasted by a disfranchised class, must ever sail erect and onward. Such are some of the differences that distinguish the two societies which have been formed within the limits of this Union, and the contest was inevitable. It was not of option, but of necessity. There is and must be an irrepressible conflict between them, and it were best to realize the truth. Each had the right to a government expressive of its nature. Each was forced to struggle for such a government, and under a common government each must strive for its appropriation. Of two lobsters in a single shell, the natural expansion of the one becomes inconsistent with the existence of the other. An eagle and a fish, held together by an indissoluble bond of union, can never, for any reason of its propriety, concur in any common course of movement. The eagle, however minded to do so, could not share the element suited to the fish, and live. The fish, however minded to do so, could not share the element suited to the bird, and live. Each, in the natural assertion of itself, must war upon the other, and one must perish that the other may survive, unless the bonds of an unnatural union shall be cut between them. And so the North must war upon the South. Having the power to do so, it must assert itself through the forms of a common government, and dis-affirm the nature of an antagonist society. The orator, to be heard, must speak against slavery. The preacher, to preserve his congregation, must preach against slavery. The candidate, to be elected, must promise to act against slavery. The officer, to retain his office, must redeem the pledges of the candidate. All must yield to the tendencies of an antagonist society, and aggression must roll on. The leaders, so called, are but the exponents of the movement, and are as powerless to control it as the reeds that float upon the current; and in the face of facts like these, when the purpose of aggression is declared—when the revolution is accomplished—when despotism is become established and when it is urged on by a social power, which is no more able to restrain itself than waters can forbear to flow to lower levels; it were simplicity to wait for "overt acts" and in such momentous exigency it were madness to forego a moment longer the action necessary to emancipation.

[. . .]

Chicago Citations

Bibliography entry:

Spratt, Leonidas W. Address to the Florida Secession Convention, January 1861. *Charleston Mercury*, January 12, 1861. Transcription at civilwarcauses.org.

Footnote citation:

L. W. Spratt, address to the Florida Convention, *Charleston Mercury*, January 12, 1861, via https://civilwarcauses.org/spratt-fl.htm.

Shortened citation:

Spratt, address to the Florida Convention.

PRIMARY SOURCE P13.122

A Declaration of the Immediate Causes Which Induce and Justify the Secession of the State of Mississippi

Mississippi Secession Convention · January 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The plainest official statement that slavery drove secession.
TREATMENT	Full public-domain text

Historical Context

Mississippi became the second state to secede, on January 9, 1861. Its convention adopted this declaration of causes soon afterward.

The declaration opens with the statement "Our position is thoroughly identified with the institution of slavery" and goes on to list northern actions against slavery since the Missouri Compromise.

Editorial note: The text follows the Avalon Project transcription.

Document Text

A Declaration of the Immediate Causes which Induce and Justify the Secession of the State of Mississippi from the Federal Union.

In the momentous step which our State has taken of dissolving its connection with the government of which we so long formed a part, it is but just that we should declare the prominent reasons which have induced our course.

Our position is thoroughly identified with the institution of slavery-- the greatest material interest of the world. Its labor supplies the product which constitutes by far the largest and most important portions of commerce of the earth. These products are peculiar to the climate verging on the tropical regions, and by an imperious law of nature, none but the black race can bear exposure to the tropical sun. These products have become necessities of the world, and a blow at slavery is a blow at commerce and civilization. That blow has been long aimed at the institution, and was at the point of reaching its consummation. There was no choice left us but submission to the mandates of abolition, or a dissolution of the Union, whose principles had been subverted to work out our ruin.

That we do not overstate the dangers to our institution, a reference to a few facts will sufficiently prove.

The hostility to this institution commenced before the adoption of the Constitution, and was manifested in the well-known Ordinance of 1787, in regard to the Northwestern Territory.

The feeling increased, until, in 1819-20, it deprived the South of more than half the vast territory acquired from France.

The same hostility dismembered Texas and seized upon all the territory acquired from Mexico.

It has grown until it denies the right of property in slaves, and refuses protection to that right on the high seas, in the Territories, and wherever the government of the United States had jurisdiction.

It refuses the admission of new slave States into the Union, and seeks to extinguish it by confining it within its present limits, denying the power of expansion.

It tramples the original equality of the South under foot.

It has nullified the Fugitive Slave Law in almost every free State in the Union, and has utterly broken the compact which our fathers pledged their faith to maintain.

It advocates negro equality, socially and politically, and promotes insurrection and incendiarism in our midst.

It has enlisted its press, its pulpit and its schools against us, until the whole popular mind of the North is excited and inflamed with prejudice.

It has made combinations and formed associations to carry out its schemes of emancipation in the States and wherever else slavery exists.

It seeks not to elevate or to support the slave, but to destroy his present condition without providing a better.

It has invaded a State, and invested with the honors of martyrdom the wretch whose purpose was to apply flames to our dwellings, and the weapons of destruction to our lives.

It has broken every compact into which it has entered for our security.

It has given indubitable evidence of its design to ruin our agriculture, to prostrate our industrial pursuits and to destroy our social system.

It knows no relenting or hesitation in its purposes; it stops not in its march of aggression, and leaves us no room to hope for cessation or for pause.

It has recently obtained control of the Government, by the prosecution of its unhallowed schemes, and destroyed the last expectation of living together in friendship and brotherhood.

Utter subjugation awaits us in the Union, if we should consent longer to remain in it. It is not a matter of choice, but of necessity. We must either submit to degradation, and to the loss of property worth four billions of money, or we must secede from the Union framed by our fathers, to secure this as well as every other species of property. For far less cause than this, our fathers separated from the Crown of England.

Our decision is made. We follow their footsteps. We embrace the alternative of separation; and for the reasons here stated, we resolve to maintain our rights with the full consciousness of the justice of our course, and the undoubting belief of our ability to maintain it.

Chicago Citations

Bibliography entry:

Mississippi Secession Convention. "A Declaration of the Immediate Causes Which Induce and Justify the Secession of the State of Mississippi from the Federal Union." January 1861. Avalon Project, Yale Law School.

Footnote citation:

"A Declaration of the Immediate Causes Which Induce and Justify the Secession of the State of Mississippi," January 1861, Avalon Project, https://avalon.law.yale.edu/19th_century/csa_missec.asp.

Shortened citation:

Mississippi Declaration of Causes.

PRIMARY SOURCE P13.123

Speech of E. S. Dargan in the Alabama Convention

Edmund S. Dargan · Montgomery, January 11, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A delegate explains his vote for secession entirely through slavery and its racial consequences.
TREATMENT	Full public-domain text

Historical Context

Edmund S. Dargan (1805–1879), a former congressman and chief justice of Alabama, represented Mobile at the state's secession convention.

Speaking as he cast his vote for the ordinance, Dargan said that remaining in the Union would eventually force Alabama to abolish slavery, and asked what would become of four million freed people living among whites.

Editorial note: The text follows the civilwarcauses.org transcription from William R. Smith's 1861 record of the convention.

Document Text

I wish, Mr. President, to express the feelings with which I vote for the secession of Alabama from the Government of the United States; and to state, in a few words, the reasons that impel me to this act.

I feel impelled, Mr. President, to vote for this Ordinance by an overruling necessity. Years ago I was convinced that the Southern States would be compelled either to separate from the North, by dissolving the Federal Government, or they would be compelled to abolish the institution of African Slavery. This, in my judgment, was the only alternative; and I foresaw that the South would be compelled, at some day, to make her selection. The day is now come, and Alabama must make her selection, either to secede from the Union, and assume the position of a sovereign, independent State, or she must submit to a system of policy on the part of the Federal Government that, in a short time, will compel her to abolish African Slavery.

Mr. President, if pecuniary loss alone were involved in the abolition of slavery, I should hesitate long before I would give the vote I now intend to give. If the destruction of slavery entailed on us poverty alone, I could bear it, for I have seen poverty and felt its sting. But poverty, Mr. President, would be one of the least of the evils that would befall us from the abolition of African slavery. There are now in the slaveholding States over four millions of slaves; dissolve the relation of master and slave, and what, I ask, would become of that race? To remove them from amongst us is impossible. History gives us no account of the exodus of such a number of persons. We neither have a place to which to remove them, nor the means of such removal. They therefore must remain with us; and if the relation of master and slave be dissolved, and our slaves turned loose amongst us without restraint, they would either be destroyed by our own hands-- the hands to which they look, and look with confidence, for protection-- or we ourselves would become demoralized and degraded. The former result would take place, and we ourselves would become the executioners of our own slaves. To this extent would the policy of our Northern enemies drive us; and thus would we not only be reduced to poverty, but what is still worse, we should be driven to crime, to the commission of sin; and we must, therefore, this day elect between the Government formed by our fathers (the whole spirit of which has been perverted), and POVERTY AND CRIME! This being the alternative, I cannot hesitate for a moment what my duty is. I must separate from the Government of my fathers, the one under which I have lived, and under which I wished to die. But I must do my duty to my country and my fellow beings; and humanity, in my judgment, demands that Alabama should separate herself from the Government of the United

States.

If I am wrong in this responsible act, I hope my God may forgive me; for I am not actuated, as I think, from any motive save that of justice and philanthropy!

Chicago Citations

Bibliography entry:

Dargan, Edmund S. Speech in the Alabama Convention, January 11, 1861. In William R. Smith, *The History and Debates of the Convention of the People of Alabama*, 93–94. Montgomery: White, Pfister & Co., 1861. Transcription at civilwarcauses.org.

Footnote citation:

E. S. Dargan, speech, January 11, 1861, in William R. Smith, *The History and Debates of the Convention of the People of Alabama* (Montgomery: White, Pfister & Co., 1861), 93–94.

Shortened citation:

Dargan, speech, January 11, 1861.

PRIMARY SOURCE P13.124

The "Secession Movement"

Currier & Ives (publisher) · 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	A northern cartoon pictures secession as a rush led by South Carolina's radicals.
TREATMENT	Public-domain image

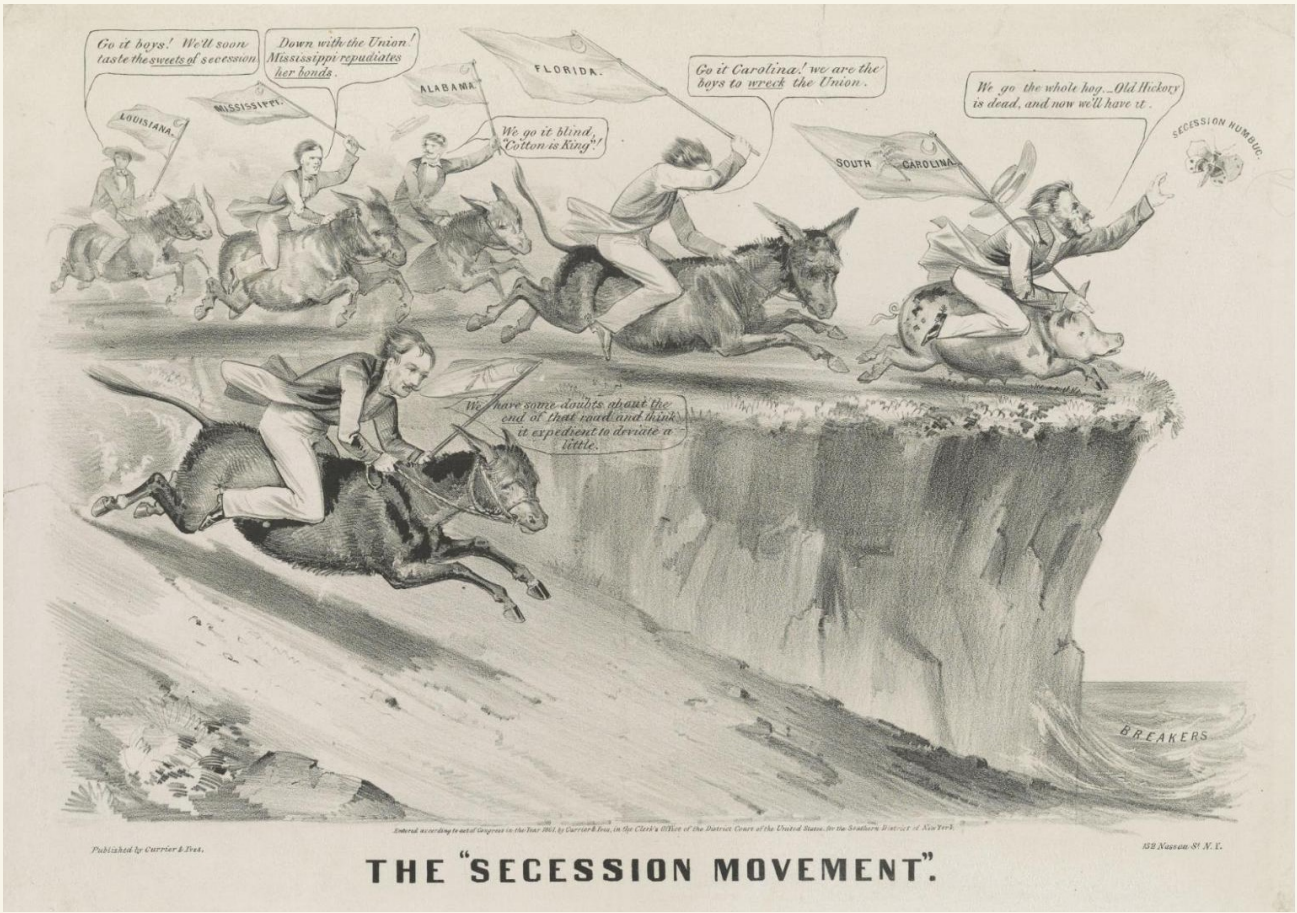
Historical Context

Currier & Ives, the New York printmaking firm, sold inexpensive lithographs, including political cartoons, to a mass northern audience.

This cartoon shows South Carolina riding a pig toward a cliff, followed by Florida, Alabama, Mississippi, and Louisiana on other animals, each chasing a hopeful illusion, while Georgia hesitates. The artist pictures secession as a reckless stampede led by one state.

Editorial note: Image reproduced from the Library of Congress print (via Wikimedia Commons). Political cartoons argue a point of view; read the labels and speech balloons as the artist's commentary, from a northern perspective.

Primary Source Image



The "Secession Movement" (Currier & Ives, 1861). Library of Congress, Prints and Photographs Division.

Chicago Citations

Bibliography entry:

Currier & Ives. *The "Secession Movement."* Lithograph. New York: Currier & Ives, 1861. Prints and Photographs Division, Library of Congress, LCCN 2003674576.

Footnote citation:

Currier & Ives, *The "Secession Movement,"* lithograph (New York, 1861), Library of Congress, https://www.loc.gov/item/2003674576.

Shortened citation:

Currier & Ives, *Secession Movement*.

PRIMARY SOURCE P13.125

Farewell Address to the U.S. Senate (excerpt)

Jefferson Davis · January 21, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Davis presents departure as a matter of rights and honor while naming racial equality as the threat.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Jefferson Davis (1808–1889) of Mississippi learned of his state's secession while serving in the Senate. On January 21, 1861, he and four other southern senators announced their withdrawal.

Davis said he concurred in Mississippi's action. He argued that the Declaration of Independence was being "invoked to maintain the position of the equality of the races," and he spoke of departing in peace and with regret.

Editorial note: The text follows the version Davis printed in his 1881 memoir, as transcribed at civilwarcauses.org.

Document Text

[. . .]

I, therefore, say I concur in the action of the people of Mississippi, believing it to be necessary and proper, and should have been bound by their action if my belief had been otherwise; and this brings me to the important point which I wish, on this last occasion, to present to the Senate. It is by this confounding of nullification and secession that the name of a great man whose ashes now mingle with his mother earth has been invoked to justify coercion against a seceded State. The phrase, "to execute the laws," was an expression which General Jackson applied to the case of a State refusing to obey the laws while yet a member of the Union. That is not the case which is now presented. The laws are to be executed over the United States, and upon the people of the United States. They have no relation to any foreign country. It is a perversion of terms -- at least, it is a great mis-apprehension of the case -- which cites that expression for application to a State which has withdrawn from the Union. You may make war on a foreign state. If it be the purpose of gentlemen, they may make war against a State which has withdrawn from the Union; but there are no laws of the United States to be executed within the limits of a seceded State. A State, finding herself in the condition in which Mississippi has judged she is -- in which her safety requires that she should provide for the maintenance of her rights out of the Union -- surrenders all the benefits (and they are known to be many), deprives herself of the advantages (and they are known to be great), severs all the ties of affection (and they are close and enduring), which have bound her to the Union; and thus divesting herself of every benefit -- taking upon herself every burden -- she claims to be exempt from any power to execute the laws of the United States within her limits.

I well remember an occasion when Massachusetts was arraigned before the bar of the Senate, and when the doctrine of coercion was rife, and to be applied against her, because of the rescue of a fugitive slave in Boston. My opinion then was the same that it is now. Not in a spirit of egotism, but to show that I am not influenced in my opinions because the case is my own, I refer to that time and that occasion as containing the opinion which I then entertained, and on which my present conduct is based. I then said that if Massachusetts -- following her purpose through a stated line of conduct -- chose to take the last step, which separates her from the Union, it is her right to go, and I will neither vote one dollar nor one man to coerce her back; but I will say to her, Godspeed, in memory of the kind associations which once existed between her and the other States.

It has been a conviction of pressing necessity -- it has been a belief that we are to be deprived in the Union of the rights which our fathers bequeathed to us -- which has brought Mississippi to her present decision. She has heard proclaimed the theory that all men are created free and equal, and this made the basis of an attack upon her social institutions; and the sacred Declaration of Independence has been invoked to maintain the position of the equality of the races. That Declaration is to be construed by the circumstances and purposes for which it was made. The communities were declaring their independence; the people of those communities were asserting that no man was born -- to use the language of Mr. Jefferson -- booted and spurred, to ride over the rest of mankind; that men were created equal -- meaning the men of the political community; that there was no divine right to rule; that no man inherited the right to govern; that there were no classes by which power and place descended to families; but that all stations were equally within the grasp of each member of the body politic. These were the great principles they announced; these were the purposes for which they made their declaration; these were the ends to which their enunciation was directed. They have no reference to the slave; else, how happened it that among the items of arraignment against George III was that he endeavored to do just what the North has been endeavoring of late to do, to stir up insurrection among our slaves? Had the Declaration announced that the negroes were free and equal, how was the prince to be arraigned for raising up insurrection among them? And how was this to be enumerated among the high crimes which caused the colonies to sever their connection with the mother-country? When our Constitution was formed, the same idea was rendered more palpable; for there we find provision made for that very class of persons as property; they were not put upon the equality of footing with white men -- not even upon that of paupers and convicts; but, so far as representation was concerned, were discriminated against as a lower caste, only to be represented in the numerical proportion of three-fifths. So stands the compact which binds us together.

Then, Senators, we recur to the principles upon which our Government was founded; and when you deny them, and when you deny us the right to withdraw from a Government which, thus perverted, threatens to be destructive of our rights, we but tread in the path of our fathers when we proclaim our independence and take the hazard. This is done, not in hostility to others, not to injure any section of the country, not even for our own pecuniary benefit, but from the high and solemn motive of defending and protecting the rights we inherited, and which it is our duty to transmit unshorn to our children.

I find in myself perhaps a type of the general feeling of my constituents towards yours. I am sure I feel no hostility toward you, Senators from the North. I am sure there is not one of you, whatever sharp discussion there may have been between us, to whom I cannot now say, in the presence of my God, I wish you well; and such, I feel, is the feeling of the people whom I represent toward those whom you represent. I, therefore, feel that I but express their desire when I say I hope, and they hope, for peaceable relations with you, though we must part. They may be mutually beneficial to us in the future, as they have been in the past, if you so will it. The reverse may bring disaster on every portion of the country, and, if you will have it thus, we will invoke the God of our fathers, who delivered them from the power of the lion, to protect us from the ravages of the bear; and thus, putting our trust in God and in our firm hearts and strong arms, we will vindicate the right as best we may.

[. . .]

Chicago Citations

Bibliography entry:

Davis, Jefferson. Farewell Address to the U.S. Senate, January 21, 1861. In Jefferson Davis, *The Rise and Fall of the Confederate Government*, vol. 1, 221–25. New York: D. Appleton, 1881. Transcription at civilwarcauses.org.

Footnote citation:

Jefferson Davis, farewell address, January 21, 1861, in *The Rise and Fall of the Confederate Government* (New York: D. Appleton, 1881), 1:221–25.

Shortened citation:

Davis, farewell address.

PRIMARY SOURCE P13.126

"The Crittenden Compromise" (editorial)

Republican Banner (Nashville) · January 25, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	An Upper South paper charges that Deep South leaders preferred disunion to settlement.
TREATMENT	Full public-domain text

Historical Context

Tennessee's legislature called for an election on whether to hold a secession convention. In February 1861 voters rejected the convention by a wide margin. The *Republican Banner* was Nashville's leading Unionist paper.

This editorial endorsed the legislature's resolutions supporting the Crittenden Compromise and charged that many leaders in the seceding states did not want a settlement at all.

Editorial note: The text follows the civilwarcauses.org transcription from Dwight L. Dumond's *Southern Editorials on Secession*.

Document Text

The Resolutions* adopted by the General Assembly, published in our paper a few days since, define the position of Tennessee satisfactorily, as we believe, to the great mass of the people. They substantially adopt the Crittenden Compromise as a basis of adjustment of the pending issues between the North and South, and Tennessee will say to the people of the North, not in a spirit of braggadocio, but firmly and calmly, and with a sincere and honest desire that this adjustment may be accepted -- we demand nothing more -- we will accept nothing less. This settlement can be agreed upon by the people of both sections without the sacrifice of a principle or of any material interest. It would be acceptable, we believe, to a majority of the people in the seceding States, and the State of Tennessee could take no course better calculated to befriend and conserve the interests of those States than by maintaining such a position as will enable her, in conjunction with other Southern States, to negotiate the adoption of this compromise with the North. That the sympathies of Tennessee are emphatically Southern, no one will deny. She will take no course, in any event, calculated to militate against the interests of her Southern sisters. But the question for her to decide -- and it is a question upon which hangs her own and the destiny of the South and the Union -- is what course is most judicious, most patriotic, and best calculated to conserve the interests of her Southern sisters, and if possible preserve the Union? Upon this question there is a difference of opinion. Some are for precipitate secession. Others for maintaining our present attitude, prepared, when the time comes, to act as mediators upon the basis of the Crittenden adjustment. If the policy of the former party is pursued, we lose the advantage of our position as pacificators, and gain nothing that we could not gain at any future time, when it shall be demonstrated, as it unfortunately may be, that a settlement is impracticable. We are therefore opposed to hasty action. We do not think the friends of a fair and honorable settlement, in the seceding States, desire Tennessee to follow their example until all honorable endeavors to secure such a settlement are exhausted. Doubtless there are many in those States who do not desire a settlement -- who prefer disunion and a Southern Confederacy to any reconstruction of the Government. There are a few, even in Tennessee, who sympathize with these disunionists per se, but they are very few, and thus far have been very modest in the avowal of such sentiments. Tennessee is emphatically a Union State, if the Union can be preserved upon terms of equality and justice, and is for making an attempt to preserve it before abandoning the hope. The difference of opinion among her people is merely as to the best policy to be pursued to accomplish a given end, at which all seem to be driving. We should rejoice to see this difference of opinion reconciled or compromised, so that we might all move in solid phalanx, and as a unit. It would add immensely to our influence in the crisis, and might, indeed, be the means of securing what, under

existing circumstances, may not be attained -- a perpetuation of the Government.

In confirmation of our opinion above expressed that the Crittenden Compromise will be acceptable to the seceding States, we call attention to the following extract from a leading editorial in a late number of the New Orleans Bee, a secession paper:

Of the various plans of adjustment called forth by the crisis, that of Mr. Crittenden is the only one that seems fully inspired by a sense of justice. It offers something tangible -- something which the South could and probably would agree to take into consideration, and which the North, or that porion of it which boasts its nationality, might accept without the smallest sacrifice of dignity or right. Mr. Crittenden himself entertains such entire confidence in the validity of his scheme of settlement that he is anxious to submit it to the ordeal of popular suffrage. Now, the Black Republicans boast that the people of the North are with them. We believe that with the possible exception of a few of the New England States, there is not a non-slaveholding Commonwealth of which the people would not accept the Crittenden amendments by an overwhelming majority. Give them but a chance to do so, and our firm conviction is that they would record a sentence of condemnation against Black Republicanism such as it has never yet received.

Chicago Citations

Bibliography entry:

"The Crittenden Compromise." *Republican Banner* (Nashville), January 25, 1861. In *Southern Editorials on Secession*, edited by Dwight Lowell Dumond, 413–14. New York: Century, 1931. Transcription at civilwarcauses.org.

Footnote citation:

"The Crittenden Compromise," *Republican Banner* (Nashville), January 25, 1861, in *Southern Editorials on Secession*, ed. Dwight Lowell Dumond (New York: Century, 1931), 413–14.

Shortened citation:

"The Crittenden Compromise," *Republican Banner*.

PRIMARY SOURCE P13.127

Georgia Declaration of Causes of Secession (excerpt)

Georgia Secession Convention · January 29, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Georgia joins the defense of slavery to fears of being ruled by the North.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Georgia's convention voted to secede on January 19, 1861, by 208 to 89, after cooperationists led by Alexander Stephens and Herschel Johnson lost.

The declaration, adopted ten days later, called the prohibition of slavery in the territories the Republicans' "cardinal principle" and protested that the northern majority demanded that the South accept them as rulers.

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

With these principles on their banners and these utterances on their lips the majority of the people of the North demand that we shall receive them as our rulers.

The prohibition of slavery in the Territories is the cardinal principle of this organization.

For forty years this question has been considered and debated in the halls of Congress, before the people, by the press, and before the tribunals of justice. The majority of the people of the North in 1860 decided it in their own favor. We refuse to submit to that judgment, and in vindication of our refusal we offer the Constitution of our country and point to the total absence of any express power to exclude us. We offer the practice of our Government for the first thirty years of its existence in complete refutation of the position that any such power is either necessary or proper to the execution of any other power in relation to the Territories. We offer the judgment of a large minority of the people of the North, amounting to more than one-third, who united with the unanimous voice of the South against this usurpation; and, finally, we offer the judgment of the Supreme Court of the United States, the highest judicial tribunal of our country, in our favor. This evidence ought to be conclusive that we have never surrendered this right. The conduct of our adversaries admonishes us that if we had surrendered it, it is time to resume it.

The faithless conduct of our adversaries is not confined to such acts as might aggrandize themselves or their section of the Union. They are content if they can only injure us. The Constitution declares that persons charged with crimes in one State and fleeing to another shall be delivered up on the demand of the executive authority of the State from which they may flee, to be tried in the jurisdiction where the crime was committed. It would appear difficult to employ language freer from ambiguity, yet for above twenty years the non-slave-holding States generally have wholly refused to deliver up to us persons charged with crimes affecting slave property. Our confederates, with punic faith, shield and give sanctuary to all criminals who seek to deprive us of this property or who use it to destroy us. This clause of the Constitution has no other sanction than their good faith; that is withheld from us; we are remediless in the Union; out of it we are remitted to the laws of nations.

A similar provision of the Constitution requires them to surrender fugitives from labor. This provision and the one last referred to were our main inducements for confederating with the Northern States. Without them it is historically true that we would have rejected the Constitution. In the fourth year of the Republic Congress passed a law to give full vigor and efficiency to this important provision. This act depended to a considerable degree upon the local magistrates in the several States for its efficiency. The non-slave-holding States generally repealed all laws intended to aid the execution of that act, and imposed penalties upon those citizens whose loyalty to the Constitution and their oaths might induce them to discharge their duty. Congress then passed the act of 1850, providing for the complete execution of this duty by Federal officers. This law, which their own bad faith rendered absolutely indispensible for the protection of constitutional rights, was instantly met with ferocious revilings and all conceivable modes of hostility. The Supreme Court unanimously, and their own local courts with equal unanimity (with the single and temporary exception of the supreme court of Wisconsin), sustained its constitutionality in all of its provisions. Yet it stands to-day a dead letter for all practicable purposes in every non-slave-holding State in the Union. We have their convenants, we have their oaths to keep and observe it, but the unfortunate claimant, even accompanied by a Federal officer with the mandate of the highest judicial authority in his hands, is everywhere met with fraud, with force, and with legislative enactments to elude, to resist, and defeat him. Claimants are murdered with impunity; officers of the law are beaten by frantic mobs instigated by inflammatory appeals from persons holding the highest public employment in these States, and supported by legislation in conflict with the clearest provisions of the Constitution, and even the ordinary principles of humanity. In several of our confederate States a citizen cannot travel the highway with his servant who may voluntarily accompany him, without being declared by law a felon and being subjected to infamous punishments. It is difficult to perceive how we could suffer more by the hostility than by the fraternity of such brethren.

The public law of civilized nations requires every State to restrain its citizens or subjects from committing acts injurious to the peace and security of any other State and from attempting to excite insurrection, or to lessen the security, or to disturb the tranquillity of their neighbors, and our Constitution wisely gives Congress the power to punish all offenses against the laws of nations.

[. . .]

Chicago Citations

Bibliography entry:

Georgia Secession Convention. "Georgia Secession." January 29, 1861. Avalon Project, Yale Law School.

Footnote citation:

Georgia Declaration of Causes, January 29, 1861, Avalon Project, https://avalon.law.yale.edu/19th_century/csa_geosec.asp.

Shortened citation:

Georgia Declaration of Causes.

PRIMARY SOURCE P13.128

A Declaration of the Causes Which Impel the State of Texas to Secede from the Federal Union

Texas Secession Convention · February 2, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Texas names slavery and white supremacy as its cause, alongside complaints about frontier defense.
TREATMENT	Full public-domain text

Historical Context

Texas's secession convention met over the objection of Governor Sam Houston, a Unionist. It voted to secede on February 1 and adopted this declaration the next day. Voters approved secession by referendum later in February.

The declaration listed grievances against the northern states and the federal government, including the failure to defend the frontier against Indian and Mexican raids. It also declared that governments in the United States were "established exclusively by the white race."

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

The States of Maine, Vermont, New Hampshire, Connecticut, Rhode Island, Massachusetts, New York, Pennsylvania, Ohio, Wisconsin, Michigan and Iowa, by solemn legislative enactments, have deliberately, directly or indirectly violated the 3rd clause of the 2nd section of the 4th article [the fugitive slave clause] of the federal constitution, and laws passed in pursuance thereof; thereby annulling a material provision of the compact, designed by its framers to perpetuate the amity between the members of the confederacy and to secure the rights of the slave-holding States in their domestic institutions-- a provision founded in justice and wisdom, and without the enforcement of which the compact fails to accomplish the object of its creation. Some of those States have imposed high fines and degrading penalties upon any of their citizens or officers who may carry out in good faith that provision of the compact, or the federal laws enacted in accordance therewith.

In all the non-slave-holding States, in violation of that good faith and comity which should exist between entirely distinct nations, the people have formed themselves into a great sectional party, now strong enough in numbers to control the affairs of each of those States, based upon an unnatural feeling of hostility to these Southern States and their beneficent and patriarchal system of African slavery, proclaiming the debasing doctrine of equality of all men, irrespective of race or color-- a doctrine at war with nature, in opposition to the experience of mankind, and in violation of the plainest revelations of Divine Law. They demand the abolition of negro slavery throughout the confederacy, the recognition of political equality between the white and negro races, and avow their determination to press on their crusade against us, so long as a negro slave remains in these States.

For years past this abolition organization has been actively sowing the seeds of discord through the Union, and has rendered the federal congress the arena for spreading firebrands and hatred between the slave-holding and non-slave-holding States.

By consolidating their strength, they have placed the slave-holding States in a hopeless minority in the federal congress, and rendered representation of no avail in protecting Southern rights against their exactions and encroachments.

They have proclaimed, and at the ballot box sustained, the revolutionary doctrine that there is a 'higher law' than the constitution and laws of our Federal Union, and virtually that they will disregard their oaths and trample upon our rights.

They have for years past encouraged and sustained lawless organizations to steal our slaves and prevent their recapture, and have repeatedly murdered Southern citizens while lawfully seeking their rendition.

They have invaded Southern soil and murdered unoffending citizens, and through the press their leading men and a fanatical pulpit have bestowed praise upon the actors and assassins in these crimes, while the governors of several of their States have refused to deliver parties implicated and indicted for participation in such offenses, upon the legal demands of the States aggrieved.

They have, through the mails and hired emissaries, sent seditious pamphlets and papers among us to stir up servile insurrection and bring blood and carnage to our firesides.

They have sent hired emissaries among us to burn our towns and distribute arms and poison to our slaves for the same purpose.

They have impoverished the slave-holding States by unequal and partial legislation, thereby enriching themselves by draining our substance.

They have refused to vote appropriations for protecting Texas against ruthless savages, for the sole reason that she is a slave-holding State.

[. . .]

We hold as undeniable truths that the governments of the various States, and of the confederacy itself, were established exclusively by the white race, for themselves and their posterity; that the African race had no agency in their establishment; that they were rightfully held and regarded as an inferior and dependent race, and in that condition only could their existence in this country be rendered beneficial or tolerable.

That in this free government all white men are and of right ought to be entitled to equal civil and political rights; that the servitude of the African race, as existing in these States, is mutually beneficial to both bond and free, and is abundantly authorized and justified by the experience of mankind, and the revealed will of the Almighty Creator, as recognized by all Christian nations; while the destruction of the existing relations between the two races, as advocated by our sectional enemies, would bring inevitable calamities upon both and desolation upon the fifteen slave-holding states.

By the secession of six of the slave-holding States, and the certainty that others will speedily do likewise, Texas has no alternative but to remain in an isolated connection with the North, or unite her destinies with the South.

For these and other reasons, solemnly asserting that the federal constitution has been violated and virtually abrogated by the several States named, seeing that the federal government is now passing under the control of our enemies to be diverted from the exalted objects of its creation to those of oppression and wrong, and realizing that our own State can no longer look for protection, but to God and her own sons-- We the delegates of the people of Texas, in Convention assembled, have passed an ordinance dissolving all political connection with the government of the United States of America and the people thereof and confidently appeal to the intelligence and patriotism of the freemen of Texas to ratify the same at the ballot box, on the 23rd day of the present month.

Adopted in Convention on the 2nd day of Feby, in the year of our Lord one thousand eight hundred and sixty-one and of the independence of Texas the twenty-fifth.

Chicago Citations

Bibliography entry:

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Footnote citation:

"A Declaration of the Causes Which Impel the State of Texas to Secede from the Federal Union," February 2, 1861, Avalon Project, https://avalon.law.yale.edu/19th_century/csa_texsec.asp.

Shortened citation:

Texas Declaration of Causes.

PRIMARY SOURCE P13.129

"Civil War Will Be Abolition"

North Carolina Standard (Raleigh) · February 5, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	An Upper South editor warns that the radicals' course will bring war and destroy slavery.
TREATMENT	Full public-domain text

Historical Context

William W. Holden's *North Carolina Standard* was the state's leading Democratic paper. In early 1861 it opposed secession while the Upper South waited to see whether compromise was possible.

This editorial warned that disunion would bring war, and that war would end slavery. It called those who wanted disunion for its own sake either mad or bad.

Editorial note: The text follows the civilwarcauses.org transcription from Dwight L. Dumond's *Southern Editorials on Secession*; the typographical error "impossiblc" is kept.

Document Text

If the difficulties between the North and South should not be settled during the next six months, war will be the result. There will be three or four Confederacies. It will be impossiblc for the Northwestern and Gulf States to avoid war,—the navigation of the Mississippi will lead to it. California and Oregon will set up for themselves. The isthmus route to California may be disputed and obstructed. Some of the Northern States will seek an alliance with the Canadas, and this will lead to intervention by Great Britain. England, France, and Spain will become interested and entangled in American affairs. The flags of the new Confederacies will be insulted on the high seas, and privateers will prey on their commerce. War, or impending war. or the state of alarm in which the country now is, will arrest industry, check commerce, and impair confidence between man and man. If war once breaks out it will rage in the interior, on our seacoasts, on the high seas, and on our frontiers. One section will let loose the Indians on another section. Twenty millions of Northern people will at once become our enemies.—They will war upon us along a line of three thousand miles from the Atlantic to the Pacific. One section will call in foreign troops against another section. One Confederacy will humble itself before the power of Europe to get better commercial terms than the other Confederacies. Meanwhile war will rage. Negro property will cease to be valuable, because the products of slave labor, and of all other labor, will be in a great degree cut off from the markets of the world. The negroes will know, too, that the war is waged on their account. They will become restless and turbulent. Heavy taxes will result from these wars. These taxes must be paid mainly out of slave labor. Strong governments will be established, and will bear heavily on the masses. The masses will at length rise up and destroy everything in their way. State bonds will be repudiated. Banks will break. Widows and orphans will be reduced to beggary. The sword will wave everywhere paramount to all law. The whole world outside the slaveholding States, with slight exceptions, is opposed to slavery; and the whole world, with slave labor thus rendered insecure and comparatively valueless, will take sides with the North against us. The end will be—Abolition! There are other considerations touching slavery which we shall not refer to here,—every intelligent mind will at once understand us, and will weigh those considerations for itself.

It is criminal to say there is “no hope for the Union.” If five hundred of the public men of the two sections could be transported, or confined in dungeons for six months, the Union would be restored and reconstructed during that period, and it would be more glorious and prosperous than the one now threatened with destruction. The unionist per se is either a mad man or a bad man. He who prefers disunion to Union, and who labors to provoke and

aggravate the two sections against each other, is an enemy to his race. He who is for discord instead of concord, for war instead of peace, for disunion for disunion's sake, is guilty of a crime more stupendous than any which has been committed since Cain slew his brother.

Chicago Citations

Bibliography entry:

"Civil War Will Be Abolition." *North Carolina Standard* (Raleigh), February 5, 1861. In *Southern Editorials on Secession*, edited by Dwight Lowell Dumond, 446–47. New York: Century, 1931. Transcription at civilwarcauses.org.

Footnote citation:

"Civil War Will Be Abolition," *North Carolina Standard*, February 5, 1861, in *Southern Editorials on Secession*, ed. Dwight Lowell Dumond (New York: Century, 1931), 446–47.

Shortened citation:

"Civil War Will Be Abolition," *North Carolina Standard*.

PRIMARY SOURCE P13.130

Inaugural Address of the President of the Provisional Government

Jefferson Davis · Montgomery, Alabama, February 18, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Davis justifies secession with the language of consent and rights without naming slavery.
TREATMENT	Full public-domain text

Historical Context

Delegates from the six seceded states, meeting in Montgomery, formed a provisional government and chose Jefferson Davis of Mississippi, a former U.S. senator and secretary of war, as president.

In his inaugural address Davis justified secession by the consent of the governed and the right of a people to alter their government. He spoke of "rights" and of peaceful separation and did not use the word slavery.

Editorial note: The text follows the Avalon Project transcription from James D. Richardson's compilation of Confederate messages.

Document Text

February 18, 1861.

Gentlemen of the Congress of the Confederate States of America, Friends, and Fellow-citizens: Called to the difficult and responsible station of Chief Magistrate of the Provisional Government which you have instituted, I approach the discharge of the duties assigned to me with humble distrust of my abilities, but with a sustaining confidence in the wisdom of those who are to guide and aid me in the administration of public affairs, and an abiding faith in the virtue and patriotism of the people. Looking forward to the speedy establishment of a permanent government to take the place of this, which by its greater moral and physical power will be better able to combat with many difficulties that arise from the conflicting interests of separate nations, I enter upon the duties of the office to which I have been chosen with the hope that the beginning of our career, as a Confederacy, may not be obstructed by hostile opposition to our enjoyment of the separate existence and independence we have asserted, and which, with the blessing of Providence, we intend to maintain.

Our present political position has been achieved in a manner unprecedented in the history of nations. It illustrates the American idea that governments rest on the consent of the governed, and that it is the right of the people to alter or abolish them at will whenever they become destructive of the ends for which they were established. The declared purpose of the compact of the Union from which we have withdrawn was to "establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity;" and when, in the judgment of the sovereign States composing this Confederacy, it has been perverted from the purposes for which it was ordained, and ceased to answer the ends for which it was established, a peaceful appeal to the ballot box declared that, so far as they are concerned, the Government created by that compact should cease to exist. In this they merely asserted the right which the Declaration of Independence of July 4, 1776, defined to be "inalienable." Of the time and occasion of its exercise they as sovereigns were the final judges, each for itself. The impartial and enlightened verdict of mankind will vindicate the rectitude of our conduct; and He who knows the hearts of men will judge of the sincerity with which we have labored to preserve the Government of our fathers in its spirit.

The right solemnly proclaimed at the birth of the United States, and which has been solemnly affirmed and reaffirmed in the Bills of Rights of the States subsequently admitted into the Union of 1789, undeniably recognizes in the people the power to resume the authority delegated for the purposes of government. Thus the sovereign States here represented have proceeded to form this Confederacy; and it is by abuse of language that their act has been denominated a revolution. They formed a new alliance, but within each State its government has remained; so that the rights of person and property have not been disturbed. The agent through which they communicated with foreign nations is changed, but this does not necessarily interrupt their international relations. Sustained by the consciousness that the transition from the former Union to the present Confederacy has not proceeded from a disregard on our part of just obligations, or any, failure to perform every constitutional duty, moved by no interest or passion to invade the rights of others, anxious to cultivate peace and commerce with all nations, if we may not hope to avoid war, we may at least expect that posterity will acquit us of having needlessly engaged in it. Doubly justified by the absence of wrong on our part, and by wanton aggression on the part of others, there can be no cause to doubt that the courage and patriotism of the people of the Confederate States will be found equal to any measure of defense which their honor and security may require. An agricultural people, whose chief interest is the export of commodities required in every manufacturing country, our true policy is peace, and the freest trade which our necessities will permit. It is alike our interest and that of all those to whom we would sell, and from whom we would buy, that there should be the fewest practicable restrictions upon the interchange of these commodities. There can, however, be but little rivalry between ours and any manufacturing or navigating community, such as the Northeastern States of the American Union. It must follow, therefore, that mutual interest will invite to good will and kind offices on both parts. If, however, passion or lust of dominion should cloud the judgment or inflame the ambition of those States, we must prepare to meet the emergency and maintain, by the final arbitrament of the sword, the position which we have assumed among the nations of the earth.

[. . .]

Chicago Citations

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Davis, Jefferson. "Inaugural Address of the President of the Provisional Government." February 18, 1861. In *A Compilation of the Messages and Papers of the Confederacy*, edited by James D. Richardson, vol. 1. Nashville: United States Publishing Company, 1905. Avalon Project, Yale Law School.

Footnote citation:

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Shortened citation:

Davis, Provisional Inaugural Address.

PRIMARY SOURCE P13.131

Speech of Henry L. Benning to the Virginia Convention (excerpt)

Henry L. Benning, Georgia commissioner · Richmond, February 18, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Georgia's envoy states plainly that his state left the Union to protect slavery.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Henry L. Benning (1814–1875), a Georgia Supreme Court justice and later a Confederate general, went to Richmond as Georgia's commissioner to the Virginia convention, which was still undecided.

Benning told the delegates that Georgia had seceded because it was convinced that separation from the North was "the only thing that could prevent the abolition of her slavery." Virginia did not secede until April 17, after Fort Sumter.

Editorial note: The text follows the civilwarcauses.org transcription from the 1861 Richmond printing of the commissioners' addresses.

Document Text

[. . .]

What was the reason that induced Georgia to take the step of secession? This reason may be summed up in one single proposition. It was a conviction, a deep conviction on the part of Georgia, that a separation from the North-was the only thing that could prevent the abolition of her slavery. This conviction, sir, was the main cause. It is true, sir, that the effect of this conviction was strengthened by a further conviction that such a separation would be the best remedy for the fugitive slave evil, and also the best, if not the only remedy, for the territorial evil. But, doubtless, if it had not been for the first conviction this step would never have been taken. It therefore becomes important to inquire whether this conviction was well founded.

Is it true, then, that unless there had been a separation from the North, slavery would be abolished in Georgia? I address myself to the proofs of that case.

In the first place, I say that the North hates slavery, and, in using that expression I speak wittingly. In saying that the Black Republican party of the North hates slavery, I speak intentionally. If there is a doubt upon that question in the mind of any one who listens to me, a few of the multitude of proofs which could fill this room, would, I think, be sufficient to satisfy him. I beg to refer to a few of the proofs that are so abundant; and the first that I shall adduce consists in two extracts from a speech of Lincoln's, made in October, 1858. They are as follows: "I have always hated slavery as much as any abolitionist; I have always been an old line Whig; I have always hated it and I always believed it in the course of ultimate extinction, and if I were in Congress and a vote should come up on the question, whether slavery should be excluded from the territory, in spite of the Dred Scott decision, I would vote that it should."

These are pregnant statements; they avow a sentiment, a political principle of action, a sentiment of hatred to slavery as extreme as hatred can exist. The political principle here avowed is, that his action against slavery is not to be restrained by the Constitution of the United States, as interpreted by the Supreme Court of the United States. I say, if you can find any degree of hatred greater than that, I should like to see it. This is the sentiment of the chosen leader of the Black Republican party; and can you doubt that it is not entertained by every solitary member

of that same party? You cannot, I think. He is a representative man; his sentiments are the sentiments of his party; his principles of political action are the principles of political action of his party. I say, then; it is true, at least, that the Republican party of the North hates slavery.

My next proposition is, that the Republican party of the North is in a permanent majority. It is true that in a government organized like the government of the Northern States, and like our own government, a majority, where it is permanent, is equivalent to the whole. The minority is powerless if the majority be permanent. Now, is this majority of the Republican party permanent? I say it is. That party is so deeply seated at the North that you cannot overthrow it. It has the press, it has the pulpit, it has the school-house, it has the organizations-the Governors, Legislatures, the judiciary, county officers, magistrates, constables, mayors, in fact all official life. Now, it has the General Government in addition. It has that inexhaustible reserve to fall back upon and to recruit from, the universal feeling at the North that slavery is a moral, social and political evil. With this to fall back upon, recruiting is easy. This is not all. The Republican party is now in league with the tariff, in league with internal improvements, in league with three Pacific Railroads. Sir, you cannot overthrow such a party as that. As well might you attempt to lift a mountain out of its bed and throw it into the sea.

But, suppose, sir, that by the aid of Providence and the intensest human exertion, you were enabled to overthrow it, how long would your victory last? But a very short time. The same ascendancy which that party has gained now, would be gained again before long. If it has come to this vast majority in the course of twenty-five years, from nothing, how long would it take the fragments of that party to get again into a majority? Sir, in two or three Presidential elections your labor would be worse than the labor of Sisyphus, and every time you rolled the rock up the hill it would roll back again growing larger and larger each time until at last it would roll back like an avalanche crushing you beneath it.

The Republican party is the permanent, dominant party at the North, and it is vain to think that you can put it down. It is true that the Republican party hates slavery, and that it is to be the permanent, dominant party at the North; and the majority being equivalent to the whole, as I have already stated, we cannot doubt the result. What is the feeling of the rest of the Northern people upon this subject? Can you trust them? They all say that slavery is a moral, social and political evil. Then the result of that feeling must be hatred to the institution; and if that is not entertained, it must be the consequence of something artificial or temporary-some interest, some thirst for office, or some confidence in immediate advancement. And we know that these considerations cannot be depended upon, and we may expect that, ultimately, the whole North will pass from this inactive state of hatred into the active state which animates the Black Republican party.

[. . .]

Chicago Citations

Bibliography entry:

Benning, Henry L. Speech to the Virginia State Convention, February 18, 1861. In *Addresses Delivered before the Virginia State Convention by Hon. Fulton Anderson, Commissioner from Mississippi, Col. Henry L. Benning, Commissioner from Georgia, and Hon. John S. Preston, Commissioner from South Carolina*. Richmond, 1861. Transcription at civilwarcauses.org.

Footnote citation:

Henry L. Benning, speech to the Virginia Convention, February 18, 1861, in *Addresses Delivered before the Virginia State Convention* (Richmond, 1861), via https://civilwarcauses-org.jfepperson.org/benningva.htm.

Shortened citation:

Benning, speech to the Virginia Convention.

PRIMARY SOURCE P13.132

First Inaugural Address (excerpt)

Abraham Lincoln · March 4, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	Lincoln's pledge not to touch slavery in the states is a Counter-Argument to secessionists' claims about Republican rule.
TREATMENT	Public-domain text, selected excerpts

Historical Context

By Lincoln's inauguration, seven states had seceded and formed the Confederacy. Eight slave states remained in the Union.

Lincoln repeated that he had no purpose to interfere with slavery where it existed and promised to enforce the fugitive slave clause. He also declared the Union perpetual, called secession anarchy, and said he would hold federal property. He closed by appealing to "the better angels of our nature."

Editorial note: The text follows the Avalon Project transcription. The Norton collection's excerpt of this address is printed here as one entry.

Document Text

[. . .]

I have no purpose, directly or indirectly, to interfere with the institution of slavery in the States where it exists. I believe I have no lawful right to do so, and I have no inclination to do so.

Those who nominated and elected me did so with full knowledge that I had made this and many similar declarations and had never recanted them; and more than this, they placed in the platform for my acceptance, and as a law to themselves and to me, the clear and emphatic resolution which I now read:

Resolved, That the maintenance inviolate of the rights of the States, and especially the right of each State to order and control its own domestic institutions according to its own judgment exclusively, is essential to that balance of power on which the perfection and endurance of our political fabric depend; and we denounce the lawless invasion by armed force of the soil of any State or Territory, no matter what pretext, as among the gravest of crimes.

I now reiterate these sentiments, and in doing so I only press upon the public attention the most conclusive evidence of which the case is susceptible that the property, peace, and security of no section are to be in any wise endangered by the now incoming Administration. I add, too, that all the protection which, consistently with the Constitution and the laws, can be given will be cheerfully given to all the States when lawfully demanded, for whatever cause--as cheerfully to one section as to another.

There is much controversy about the delivering up of fugitives from service or labor. The clause I now read is as plainly written in the Constitution as any other of its provisions:

No person held to service or labor in one State, under the laws thereof, escaping into another, shall in consequence of any law or regulation therein be discharged from such service or labor, but shall be delivered up on claim of the party to whom such service or labor may be due.

[. . .]

One section of our country believes slavery is right and ought to be extended, while the other believes it is wrong and ought not to be extended. This is the only substantial dispute. The fugitive- slave clause of the Constitution

and the law for the suppression of the foreign slave trade are each as well enforced, perhaps, as any law can ever be in a community where the moral sense of the people imperfectly supports the law itself. The great body of the people abide by the dry legal obligation in both cases, and a few break over in each. This, I think, can not be perfectly cured, and it would be worse in both cases after the separation of the sections than before. The foreign slave trade, now imperfectly suppressed, would be ultimately revived without restriction in one section, while fugitive slaves, now only partially surrendered, would not be surrendered at all by the other.

Physically speaking, we can not separate. We can not remove our respective sections from each other nor build an impassable wall between them. A husband and wife may be divorced and go out of the presence and beyond the reach of each other, but the different parts of our country can not do this. They can not but remain face to face, and intercourse, either amicable or hostile, must continue between them. Is it possible, then, to make that intercourse more advantageous or more satisfactory after separation than before? Can aliens make treaties easier than friends can make laws? Can treaties be more faithfully enforced between aliens than laws can among friends? Suppose you go to war, you can not fight always; and when, after much loss on both sides and no gain on either, you cease fighting, the identical old questions, as to terms of intercourse, are again upon you.

This country, with its institutions, belongs to the people who inhabit it. Whenever they shall grow weary of the existing Government, they can exercise their constitutional right of amending it or their revolutionary right to dismember or overthrow it. I can not be ignorant of the fact that many worthy and patriotic citizens are desirous of having the National Constitution amended. While I make no recommendation of amendments, I fully recognize the rightful authority of the people over the whole subject, to be exercised in either of the modes prescribed in the instrument itself; and I should, under existing circumstances, favor rather than oppose a fair opportunity being afforded the people to act upon it. I will venture to add that to me the convention mode seems preferable, in that it allows amendments to originate with the people themselves, instead of only permitting them to take or reject propositions originated by others, not especially chosen for the purpose, and which might not be precisely such as they would wish to either accept or refuse. I understand a proposed amendment to the Constitution--which amendment, however, I have not seen--has passed Congress, to the effect that the Federal Government shall never interfere with the domestic institutions of the States, including that of persons held to service. To avoid misconstruction of what I have said, I depart from my purpose not to speak of particular amendments so far as to say that, holding such a provision to now be implied constitutional law, I have no objection to its being made express and irrevocable.

The Chief Magistrate derives all his authority from the people, and they have referred none upon him to fix terms for the separation of the States. The people themselves can do this if also they choose, but the Executive as such has nothing to do with it. His duty is to administer the present Government as it came to his hands and to transmit it unimpaired by him to his successor.

Why should there not be a patient confidence in the ultimate justice of the people? Is there any better or equal hope in the world? In our present differences, is either party without faith of being in the right? If the Almighty Ruler of Nations, with His eternal truth and justice, be on your side of the North, or on yours of the South, that truth and that justice will surely prevail by the judgment of this great tribunal of the American people.

By the frame of the Government under which we live this same people have wisely given their public servants but little power for mischief, and have with equal wisdom provided for the return of that little to their own hands at very short intervals. While the people retain their virtue and vigilance no Administration by any extreme of wickedness or folly can very seriously injure the Government in the short space of four years.

[. . .]

Chicago Citations

Bibliography entry:

Lincoln, Abraham. "First Inaugural Address." March 4, 1861. Avalon Project, Yale Law School.

Footnote citation:

Abraham Lincoln, "First Inaugural Address," March 4, 1861, Avalon Project, https://avalon.law.yale.edu/19th_century/lincoln1.asp.

Shortened citation:

Lincoln, "First Inaugural Address."

PRIMARY SOURCE P13.133

Constitution of the Confederate States (excerpt)

Confederate Congress · Montgomery, March 11, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The new nation's charter protects slavery in explicit terms.
TREATMENT	Public-domain text, selected articles

Historical Context

The Confederate Constitution closely followed the U.S. Constitution, often word for word. The changes show what its framers wanted to secure.

It barred any law "denying or impairing the right of property in negro slaves," protected slavery in all territories, and guaranteed slaveholders the right to travel with enslaved people. It also gave the president a line-item veto, banned protective tariffs, and limited his service to one six-year term.

Editorial note: The text follows the Avalon Project transcription from James D. Richardson's compilation.

Document Text

[. . .]

(4) No bill of attainder, ex post facto law, or law denying or impairing the right of property in negro slaves shall be passed.

(5) No capitation or other direct tax shall be laid, unless in proportion to the census or enumeration hereinbefore directed to be taken.

(6) No tax or duty shall be laid on articles exported from any State, except by a vote of two-thirds of both Houses.

(7) No preference shall be given by any regulation of commerce or revenue to the ports of one State over those of another.

(8) No money shall be drawn from the Treasury, but in consequence of appropriations made by law; and a regular statement and account of the receipts and expenditures of all public money shall be published from time to time.

(9) Congress shall appropriate no money from the Treasury except by a vote of two-thirds of both Houses, taken by yeas and nays, unless it be asked and estimated for by some one of the heads of departments and submitted to Congress by the President; or for the purpose of paying its own expenses and contingencies; or for the payment of claims against the Confederate States, the justice of which shall have been judicially declared by a tribunal for the investigation of claims against the Government, which it is hereby made the duty of Congress to establish.

(10) All bills appropriating money shall specify in Federal currency the exact amount of each appropriation and the purposes for which it is made; and Congress shall grant no extra compensation to any public contractor, officer, agent, or servant, after such contract shall have been made or such service rendered.

(11) No title of nobility shall be granted by the Confederate States; and no person holding any office of profit or trust under them shall, without the consent of the Congress, accept of any present, emolument, office, or title of any kind whatever, from any king, prince, or foreign state.

(12) Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble and petition the Government for a redress of grievances.

(13) A well-regulated militia being necessary to the security of a free State, the right of the people to keep and bear arms shall not be infringed.

(14) No soldier shall, in time of peace, be quartered in any house without the consent of the owner; nor in time of war, but in a manner to be prescribed by law.

(15) The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated; and no warrants shall issue but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched and the persons or things to be seized.

(16) No person shall be held to answer for a capital or otherwise infamous crime, unless on a presentment or indictment of a grand jury, except in cases arising in the land or naval forces, or in the militia, when in actual service in time of war or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor be compelled, in any criminal case, to be a witness against himself; nor be deprived of life, liberty, or property without due process of law; nor shall private property be taken for public use, without just compensation.

(17) In all criminal prosecutions the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor; and to have the assistance of counsel for his defense.

(18) In suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved; and no fact so tried by a jury shall be otherwise reexamined in any court of the Confederacy, than according to the rules of common law.

(19) Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

(20) Every law, or resolution having the force of law, shall relate to but one subject, and that shall be expressed in the title.

Sec. 10. (I) No State shall enter into any treaty, alliance, or confederation; grant letters of marque and reprisal; coin money; make anything but gold and silver coin a tender in payment of debts; pass any bill of attainder, or ex post facto law, or law impairing the obligation of contracts; or grant any title of nobility.

[. . .]

Chicago Citations

Bibliography entry:

Confederate States of America. "Constitution of the Confederate States." March 11, 1861. In *A Compilation of the Messages and Papers of the Confederacy*, edited by James D. Richardson, vol. 1. Nashville: United States Publishing Company, 1905. Avalon Project, Yale Law School.

Footnote citation:

Constitution of the Confederate States, March 11, 1861, art. [number], sec. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/csa_csa.asp.

Shortened citation:

Confederate Constitution, art. [number].

PRIMARY SOURCE P13.134

Corner Stone Speech (excerpt)

Alexander H. Stephens · Savannah, Georgia, March 21, 1861

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?)
WHY HERE	The Confederate vice president names slavery and racial inequality as the foundation of the new government.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Alexander H. Stephens (1812–1883) had argued against immediate secession in November 1860 but became vice president of the Confederacy. Speaking without notes in Savannah, he explained the new constitution's features.

Stephens declared that the new government's "corner-stone rests upon the great truth that the negro is not equal to the white man; that slavery—subordination to the superior race—is his natural and normal condition." After the war he claimed he had been misreported.

Editorial note: The text is a newspaper reporter's account, which Stephens reviewed, not a verbatim transcript. It follows the Teaching American History transcription. The Norton collection's excerpt of this speech is printed here as one entry.

Document Text

At half past seven o'clock on Thursday evening, the largest audience ever assembled at the Athenaeum was in the house, waiting most impatiently for the appearance of the orator of the evening, Hon. A. H. Stephens, Vice President of the Confederate States of America. The committee, with invited guests, were seated on the stage when, at the appointed hour, the Hon. C. C. Jones, Mayor, and the speaker entered, and were greeted by the immense assemblage with deafening rounds of applause. . . .

. . .[W]e are passing through one of the greatest revolutions in the annals of the world. Seven states have within the last three months thrown off an old government and formed a new. This revolution has been signally marked, up to this time, by the fact of its having been accomplished without the loss of a single drop of blood.

This new constitution, or form of government, constitutes the subject to which your attention will be partly invited. In reference to it, I make this first general remark: it amply secures all our ancient rights, franchises, and liberties. All the great principles of Magna Charta are retained in it. No citizen is deprived of life, liberty, or property, but by the judgment of his peers under the laws of the land. The great principle of religious liberty, which was the honor and pride of the old Constitution, is still maintained and secured. All the essentials of the old Constitution, which have endeared it to the hearts of the American people, have been preserved and perpetuated. Some changes have been made. Some of these I should have preferred not to have seen made; but other important changes do meet my cordial approbation. They form great improvements upon the old Constitution. So, taking the whole new constitution, I have no hesitancy in giving it as my judgment that it is decidedly better than the old.

Allow me briefly to allude to some of these improvements . . .

But not to be tedious in enumerating the numerous changes for the better, allow me to allude to one other though last, not least. The new constitution has put at rest, forever, all the agitating questions relating to our peculiar institution—African slavery as it exists amongst us—the proper status of the negro in our form of civilization. This was the immediate cause of the late rupture and present revolution. Jefferson in his forecast, had anticipated this, as the "rock upon which the old Union would split."1 He was right. What was conjecture with him, is now a realized fact. But whether he fully comprehended the great truth upon which that rock stood and stands, may be doubted. The prevailing ideas entertained by him and most of the leading statesmen at the time of the formation of the old

Constitution, were that the enslavement of the African was in violation of the laws of nature; that it was wrong in principle, socially, morally, and politically. It was an evil they knew not well how to deal with, but the general opinion of the men of that day was that, somehow or other in the order of Providence, the institution would be evanescent and pass away. This idea, though not incorporated in the Constitution, was the prevailing idea at that time. The Constitution, it is true, secured every essential guarantee to the institution while it should last, and hence no argument can be justly urged against the constitutional guarantees thus secured, because of the common sentiment of the day. Those ideas, however, were fundamentally wrong. They rested upon the assumption of the equality of races. This was an error. It was a sandy foundation, and the government built upon it fell when the "storm came and the wind blew."2

Our new government is founded upon exactly the opposite idea; its foundations are laid, its corner-stone rests, upon the great truth that the negro is not equal to the white man; that slavery, subordination to the superior race, is his natural and normal condition. This, our new government, is the first, in the history of the world, based upon this great physical, philosophical, and moral truth. This truth has been slow in the process of its development, like all other truths in the various departments of science. It has been so even amongst us. Many who hear me, perhaps, can recollect well that this truth was not generally admitted, even within their day. The errors of the past generation still clung to many as late as twenty years ago. Those at the North, who still cling to these errors, with a zeal above knowledge, we justly denominate fanatics. All fanaticism springs from an aberration of the mind from a defect in reasoning. It is a species of insanity. One of the most striking characteristics of insanity, in many instances, is forming correct conclusions from fancied or erroneous premises; so with the antislavery fanatics. Their conclusions are right if their premises were. They assume that the negro is equal, and hence conclude that he is entitled to equal privileges and rights with the white man. If their premises were correct, their conclusions would be logical and just, but their premise being wrong, their whole argument fails. I recollect once of having heard a gentleman from one of the northern states, of great power and ability, announce in the House of Representatives, with imposing effect, that we of the South would be compelled, ultimately, to yield upon this subject of slavery, that it was as impossible to war successfully against a principle in politics, as it was in physics or mechanics. That the principle would ultimately prevail. That we, in maintaining slavery as it exists with us, were warring against a principle, a principle founded in nature, the principle of the equality of men. The reply I made to him was, that upon his own grounds, we should, ultimately, succeed, and that he and his associates, in this crusade against our institutions, would ultimately fail. The truth announced, that it was as impossible to war successfully against a principle in politics as it was in physics and mechanics, I admitted; but told him that it was he, and those acting with him, who were warring against a principle. They were attempting to make things equal which the Creator had made unequal.

In the conflict thus far, success has been on our side, complete throughout the length and breadth of the Confederate states. It is upon this, as I have stated, our social fabric is firmly planted; and I cannot permit myself to doubt the ultimate success of a full recognition of this principle throughout the civilized and enlightened world.

[. . .]

Chicago Citations

Bibliography entry:

Stephens, Alexander H. "Corner Stone Speech." Savannah, Georgia, March 21, 1861. Teaching American History.

Footnote citation:

Alexander H. Stephens, "Corner Stone Speech," March 21, 1861, via Teaching American History, https://teachingamericanhistory.org/document/cornerstone-speech/.

Shortened citation:

Stephens, "Corner Stone Speech."

PRIMARY SOURCE P13.135

The Contest in America (excerpt)

John Stuart Mill · Fraser's Magazine, February 1862

TOC FIT	Chapter 13 · Essay prompt 13.5 (Why Did the Lower South Secede?); Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	A leading British liberal argues that the South seceded for slavery and that Britain should not aid it.
TREATMENT	Public-domain text, selected excerpts

Historical Context

John Stuart Mill (1806–1873), the English philosopher and economist, wrote this essay just after the *Trent* affair, when the Union's seizure of two Confederate envoys from a British ship nearly brought Britain into the war.

Mill argued that British sympathy for the Confederacy was mistaken. The South had seceded, he insisted, to protect and extend slavery, and a Union victory would be a victory for freedom.

Editorial note: The text follows the Wikisource transcription of the 1862 Boston reprint.

Document Text

[. . .]

The cloud which for the space of a month hung gloomily over the civilized world, black with far worse evils than those of simple war, has passed from over our heads without bursting. The fear has not been realized, that the only two first-rate Powers who are also free nations would take to tearing each other in pieces, both the one and the other in a bad and odious cause. For while, on the American side, the war would have been one of reckless persistency in wrong, on ours it would have been a war in alliance with, and, to practical purposes, in defence and propagation of, slavery. We had, indeed, been wronged. We had suffered an indignity, and something more than an indignity, which, not to have resented, would have been to invite a constant succession of insults and injuries from the same and from every other quarter. We could have acted no otherwise than we have done: yet it is impossible to think, without something like a shudder, from what we have escaped. We, the emancipators of the slave—who have wearied every Court and Government in Europe and America with our protests and remonstrances, until we goaded them into at least ostensibly coöperating with us to prevent the enslaving of the negro—we, who for the last half century have spent annual sums, equal to the revenue of a small kingdom, in blockading the African coast, for a cause in which we not only had no interest, but which was contrary to our pecuniary interest, and which many believed would ruin, as many among us still, though erroneously, believe that it has ruined, our colonies,—we should have lent a hand to setting up, in one of the most commanding positions of the world, a powerful republic, devoted not only to slavery, but to pro-slavery propagandism—should have helped to give a place in the community of nations to a conspiracy of slave-owners, who have broken their connection with the American Federation on the sole ground, ostentatiously proclaimed, that they thought an attempt would be made to restrain, not slavery itself, but their purpose of spreading slavery wherever migration or force could carry it.

A nation which has made the professions that England has, does not with impunity, under however great provocation, betake itself to frustrating the objects for which it has been calling on the rest of the world to make sacrifices of what they think their interest. At present all the nations of Europe have sympathized with us; have acknowledged that we were injured, and declared with rare unanimity, that we had no choice but to resist, if necessary, by arms. But the consequences of such a war would soon have buried its causes in oblivion. When the new Confederate States, made an independent Power by English help, had begun their crusade to carry negro

slavery from the Potomac to Cape Horn; who would then have remembered that England raised up this scourge to humanity not for the evil's sake, but because somebody had offered an insult to her flag? Or even if unforgotten, who would then have felt that such a grievance was a sufficient palliation of the crime? Every reader of a newspaper, to the farthest ends of the earth, would have believed and remembered one thing only—that at the critical juncture which was to decide whether slavery should blaze up afresh with increased vigor or be trodden out at the moment of conflict between the good and the evil spirit—at the dawn of a hope that the demon might now at last be chained and flung into the pit, England stepped in, and, for the sake of cotton, made Satan victorious.

[. . .]

Chicago Citations

Bibliography entry:

Mill, John Stuart. *The Contest in America*. Boston: Little, Brown, 1862. Reprinted from *Fraser's Magazine*, February 1862. Wikisource.

Footnote citation:

John Stuart Mill, *The Contest in America* (Boston: Little, Brown, 1862), [page], via Wikisource.

Shortened citation:

Mill, *Contest in America*, [page].

PRIMARY SOURCE P14.1

Martin T. Tupper to Abraham Lincoln

Martin T. Tupper · Albury, Surrey, England, May 13, 1861

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	An English admirer links the Union cause to the end of slavery months before Lincoln did.
TREATMENT	Facsimile of transcription, complete letter

Historical Context

Martin Farquhar Tupper (1810–1889), a popular English poet whose *Proverbial Philosophy* sold widely in the United States, had toured America in 1851. A month after Fort Sumter he wrote privately to Lincoln.

Tupper condemned secession as treason and slavery as the South's crime, but worried about Britain's dependence on southern cotton. He predicted that the war would bring "Total abolition of Slavery."

Editorial note: The pages reproduced are the Library of Congress transcription of the letter (Abraham Lincoln Papers) as supplied by the instructor. Tupper signed with a colon ("Martin T: Tupper").

Document Facsimile

Albury: Guilford, Surrey, England.

May 13, 1861.—

Much Respected and Dear Sir,

While Governments & diplomatic servants must necessarily keep a prudential silence, even as to sympathy and counsel, it may not be quite unbecoming nor unwelcome if a private English Gentleman, not wholly unknown by name at least to yourself, & personally acquainted with your country & people, steps out of the conventional ranks, with a hearty & unpresumptuous expression of Goodwill towards the great American Union, and honest admiration of Abraham Lincoln. Our sympathies in England are all with you, & the North: we abhor the treason of those Southerners, and the bad cause for which they fight: even if, according to your Constitution, Peaceable Secession be a right, it should be only for good reason, with on due notice, and with amicable arrangements commercial & diplomatic on both sides: but this Armed Secession is an undeniable Wrong, aggravated by suddenness, anarchy as between the Ruler & the ruled, and total absence of excuse for such mad, wicked, suicidal disruption. Yes, Sir, as you have yourself wisely said, Armed Secession is treason, — & must be visited as such. The terrible question is, how on so large a scale is it possible to deal with it? I think, — & my judgement is that of the great majority of Englishmen, — that your firmly calm defensive position is the only wise one to adopt. Leave them to themselves. Let the vixen wife who deserts a good husband's home repent, if she may, in bitter destitution, — but do not seek to force back the bad bargain by restitution of conjugal rights. Stop the supplies; let their universal crime of slave dealing work its own cure as it must & will: let their own helots punish those traitorous communities. Meanwhile, you will watch the judicial consequences from Washington, well guarded by your faithful Unionists. In one thing especially, our people have a deep interest — no less than 4,000,000 Englishmen live from Cotton, & this complicates the question as to stopping the supplies. Our Flag must cover the cargo of honest traders; & so long as we do not pay in contraband of war, but by peace-goods or in money, the interests of humanity demand that Trade be not suddenly or seriously interrupted. Within 2 years, our cotton supplies will have been secured from Africa, Asia, & Australia, and then the treacherous South will have lost her best customer for ever. In another point too; your people as well as ours would be benefitted by greater liberality of Tariff. We almost are disposed to think it part of the deeply laid conspiracy of the South that your Morrill affair has been managed so as to isolate you from European & especially English sympathies, this will be revised, for the good of all parties. Writing at this distance & with a fortnight full of incidents to intervene, we

Library of Congress transcription, page 1.

soon punished by their own black & white brigandage. Davis & his co-traitors lynched by their own slaves, & ultimately a few wretched Republics colonizing the Gulph & fighting with each other in an independent anarchy. You could not hold them as conquered provinces, even if they were worth this winning. America must be content to have fewer stars upon her banner, — but those of a brilliancy untarnished by the tears of Slaves.

And now, my Dear Sir, accept, as from Man to Man, this private letter of (I trust) a welcome sympathy: may you be Guided & Supported & Comforted from on High: may your Council go with you as one man in the cause of Order, Right, Truth and Liberty: may this Revolution bear the good fruit of Total abolition of Slavery all over the American Continent: — & so may God bring good out of evil! Believe me, with that respect for your office & character to remain

Most truly your servant

Martin T: Tupper.

Library of Congress transcription, page 2.

Chicago Citations

Bibliography entry:

Tupper, Martin T. Letter to Abraham Lincoln, May 13, 1861. Abraham Lincoln Papers, Library of Congress, Series 1, mal.0987200.

Footnote citation:

Martin T. Tupper to Abraham Lincoln, May 13, 1861, Abraham Lincoln Papers, Library of Congress, http://www.loc.gov/resource/mal.0987200.

Shortened citation:

Tupper to Lincoln, May 13, 1861.

PRIMARY SOURCE P14.2

Commander of the Department of Virginia to the General-in-Chief of the Army

Benjamin F. Butler to Winfield Scott · Fortress Monroe, Virginia, May 27, 1861

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	The first wartime decision to keep fugitives shows both self-emancipation and the start of army policy.
TREATMENT	Full public-domain text (excerpt as printed by the editors)

Historical Context

Days after Virginia seceded, three enslaved men who had been building Confederate fortifications escaped to Fortress Monroe, the Union post at the tip of the Virginia Peninsula. Their owner's agent demanded their return.

General Benjamin F. Butler, a Massachusetts Democrat, refused, calling them "contraband of war." More enslaved people followed, and in this letter Butler asked how to handle the growing numbers of men, women, and children.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; ellipses are the editors'.

Document Text

[Fortress Monroe, Va.] May 27 /61

Sir

(Duplicate)

. . . .

Since I wrote my last dispatch the question in regard to slave property is becoming one of very serious magnitude. The inhabitants of Virginia are using their negroes in the batteries, and are preparing to send the women and children South. The escapes from them are very numerous, and a squad has come in this morning to my pickets bringing their women and children. Of course these cannot be dealt with upon the Theory on which I designed to treat the services of able bodied men and women who might come within my lines and of which I gave you a detailed account in my last dispatch. I am in the utmost doubt what to do with this species of property. Up to this time I have had come within my lines men and women with their children–entire families–each family belonging to the same owner. I have therefore determined to employ, as I can do very profitably, the able-bodied persons in the party, issuing proper food for the support of all, and charging against their services the expense of care and sustenance of the non- laborers, keeping a strict and accurate account as well of the services as of the expenditure having the worth of the services and the cost of the expenditure determined by a board of Survey hereafter to be detailed. I know of no other manner in which to dispose of this subject and the questions connected therewith. As a matter of property to the insurgents it will be of very great moment, the number that I now have amounting as I am informed to what in good times would be of the value of sixty thousand dollars. Twelve of these negroes I am informed have escaped from the erection of the batteries on Sewall's point which this morning fired upon my expedition as it passed by out of range. As a means of offence therefore in the enemy's hands these negroes when able bodied are of the last importance. Without them the batteries could not have been erected at least for many weeks As a military question it would seem to be a measure of necessity to deprive their masters of their services How can this be done? As a political question and a question of humanity can I receive the services of a Father and a Mother and not take the children? Of the humanitarian aspect I have no doubt. Of the political one I have no right to judge. I therefore submit all this to your better judgement, and as these questions have a political aspect, I

have ventured–and I trust I am not wrong in so doing–to duplicate the parts of my dispatch relating to this subject and forward them to the Secretary of War.

. . . .

Benj. F. Butler

Chicago Citations

Bibliography entry:

Butler, Benjamin F. Letter to Lieutenant General Winfield Scott, May 27, 1861. B-99 1861, Letters Received Irregular, Secretary of War, Record Group 107, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Benjamin F. Butler to Winfield Scott, May 27, 1861, RG 107, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Butler.html.

Shortened citation:

Butler to Scott, May 27, 1861.

PRIMARY SOURCE P14.3

Sullivan Ballou Letter

Major Sullivan Ballou to Sarah Ballou · Washington, D.C., July 14, 1861

TOC FIT	Chapter 14 · Essay prompt 14.3 (Who Fought, and Why?)
WHY HERE	A Union officer's letter joins conviction about the cause with love of family and honor.
TREATMENT	Full public-domain text

Historical Context

Sullivan Ballou (1829–1861), a Rhode Island lawyer and former speaker of the state house, was a major in the 2nd Rhode Island Infantry. A week before the first battle of Bull Run, he wrote to his wife in case he did not survive.

He told her he had no misgivings about the cause and felt a debt to those who had fought the Revolution, and wrote of his love for her and their sons. He was mortally wounded at Bull Run on July 21.

Editorial note: Ballou was an educated officer and not typical of most soldiers. The letter was found among his effects and was never mailed. The text follows the American Battlefield Trust transcription.

Document Text

Headquarters, Camp Clark
Washington, D.C., July 14, 1861

My Very Dear Wife:

Indications are very strong that we shall move in a few days, perhaps to-morrow. Lest I should not be able to write you again, I feel impelled to write a few lines, that may fall under your eye when I shall be no more.

Our movement may be one of a few days duration and full of pleasure and it may be one of severe conflict and death to me. Not my will, but thine, O God be done. If it is necessary that I should fall on the battle-field for any country, I am ready. I have no misgivings about, or lack of confidence in, the cause in which I am engaged, and my courage does not halt or falter. I know how strongly American civilization now leans upon the triumph of government, and how great a debt we owe to those who went before us through the blood and suffering of the Revolution, and I am willing, perfectly willing to lay down all my joys in this life to help maintain this government, and to pay that debt.

But, my dear wife, when I know, that with my own joys, I lay down nearly all of yours, and replace them in this life with care and sorrows, when, after having eaten for long years the bitter fruit of orphanage myself, I must offer it, as their only sustenance, to my dear little children, is it weak or dishonorable, while the banner of my purpose floats calmly and proudly in the breeze, that my unbounded love for you, my darling wife and children, should struggle in fierce, though useless, contest with my love of country.

I cannot describe to you my feelings on this calm summer night, when two thousand men are sleeping around me, many of them enjoying the last, perhaps, before that of death, and I, suspicious that Death is creeping behind me with his fatal dart, am communing with God, my country and thee.

I have sought most closely and diligently, and often in my breast, for a wrong motive in this hazarding the happiness of those I loved, and I could not find one. A pure love of my country, and of the principles I have often advocated before the people, and "the name of honor, that I love more than I fear death," have called upon me, and I have obeyed.

Sarah, my love for you is deathless. It seems to bind me with mighty cables, that nothing but Omnipotence can break; and yet, my love of country comes over me like a strong wind, and bears me irresistibly on with all those chains, to the battlefield. The memories of all the blissful moments I have spent with you come crowding over me, and I feel most deeply grateful to God and you, that I have enjoyed them so long. And how hard it is for me to give them up, and burn to ashes the hopes of future years, when, God willing, we might still have lived and loved together, and seen our boys grow up to honorable manhood around us.

I know I have but few claims upon Divine Providence, but something whispers to me, perhaps it is the wafted prayer of my little Edgar, that I shall return to my loved ones unharmed. If I do not, my dear Sarah, never forget how much I love you, nor that, when my last breath escapes me on the battle-field, it will whisper your name.

Forgive my many faults, and the many pains I have caused you. How thoughtless, how foolish I have oftentimes been! How gladly would I wash out with my tears, every little spot upon your happiness, and struggle with all the misfortune of this world, to shield you and my children from harm. But I cannot, I must watch you from the spirit land and hover near you, while you buffet the storms with your precious little freight, and wait with sad patience till we meet to part no more.

But, O Sarah, if the dead can come back to this earth, and flit unseen around those they loved, I shall always be near you in the garish day, and the darkest night amidst your happiest scenes and gloomiest hours always, always, and, if the soft breeze fans your cheek, it shall be my breath; or the cool air cools your throbbing temples, it shall be my spirit passing by.
Sarah, do not mourn me dear; think I am gone, and wait for me, for we shall meet again.

As for my little boys, they will grow as I have done, and never know a father's love and care. Little Willie is too young to remember me long, and my blue-eyed Edgar will keep my frolics with him among the dimmest memories of his childhood. Sarah, I have unlimited confidence in your maternal care, and your development of their characters. Tell my two mothers, I call God's blessing upon them. O Sarah, I wait for you there! Come to me, and lead thither my children.

- Sullivan

Chicago Citations

Bibliography entry:

Ballou, Sullivan. Letter to Sarah Ballou, July 14, 1861. American Battlefield Trust.

Footnote citation:

Sullivan Ballou to Sarah Ballou, July 14, 1861, American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/sullivan-ballou-letter.

Shortened citation:

Ballou to Ballou, July 14, 1861.

PRIMARY SOURCE P14.4

Order Authorizing General Halleck to Suspend the Writ of Habeas Corpus

Abraham Lincoln · December 2, 1861

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Lincoln extends wartime emergency powers to a divided border state.
TREATMENT	Full public-domain text

Historical Context

Missouri, a slave state that stayed in the Union, was torn by guerrilla war and Confederate sympathizers in 1861. Lincoln had already suspended the writ of habeas corpus along the route between Philadelphia and Washington in April.

In this order Lincoln authorized General Henry W. Halleck, commanding in Missouri, to suspend the writ within his department and to use martial law where necessary, so that suspected rebels could be held without a court hearing.

Editorial note: The Norton collection cites the manuscript in the Lincoln Papers. This reader follows the same order as printed in Nicolay and Hay's edition of Lincoln's writings (Project Gutenberg).

Document Text

[. . .]

ORDER AUTHORIZING GENERAL HALLECK TO SUSPEND THE WRIT OF HABEAS CORPUS,

DECEMBER 2, 1861.

MAJOR-GENERAL H. W. HALLECK, Commanding in the Department of Missouri.

GENERAL:--As an insurrection exists in the United States, and is in arms in the State of Missouri, you are hereby authorized and empowered to suspend the writ of habeas corpus within the limits of the military division under your command, and to exercise martial law as you find it necessary in your discretion to secure the public safety and the authority of the United States.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed at Washington, this second day of December, A.D. 1861.

A. LINCOLN.

By the President: WILLIAM H. SEWARD, Secretary of State.

[. . .]

Chicago Citations

Bibliography entry:

Lincoln, Abraham. "Order Authorizing General Halleck to Suspend the Writ of Habeas Corpus." December 2, 1861. In *The Papers and Writings of Abraham Lincoln*, Constitutional ed., edited by John G. Nicolay and John Hay, vol. 5. New York: Lamb Publishing, 1905. Project Gutenberg eBook #2657.

Footnote citation:

Abraham Lincoln to Henry W. Halleck, December 2, 1861, in *The Papers and Writings of Abraham Lincoln*, ed. John G. Nicolay and John Hay (New York: Lamb Publishing, 1905), vol. 5, Project Gutenberg eBook #2657.

Shortened citation:

Lincoln to Halleck, December 2, 1861.

PRIMARY SOURCE P14.5

Maryland Fugitive Slave to His Wife

John Boston · Upton Hill, Virginia, January 12, 1862

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?), 14.2 (Who Freed the Enslaved?), and 14.3 (Who Fought, and Why?)
WHY HERE	A man who freed himself by reaching Union lines writes to his enslaved wife.
TREATMENT	Full public-domain text

Historical Context

John Boston escaped slavery in Maryland, a Union slave state, and found refuge with the 14th New York (Brooklyn) Regiment in northern Virginia, where he worked for the soldiers.

He wrote to his wife, still enslaved, to tell her he was free. The letter was intercepted and sent up the chain of command to General McClellan and Secretary of War Stanton, which is why it survives in the National Archives.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves Boston's spelling. The plan's second listing of this letter is printed here as one entry.

Document Text

Upton Hill [Va.] January the 12 1862

My Dear Wife it is with grate joy I take this time to let you know Whare I am i am now in Safety in the 14th Regiment of Brooklyn this Day i can Adress you thank god as a free man I had a little truble in giting away But as the lord led the Children of Isrel to the land of Canon So he led me to a land Whare fredom Will rain in spite Of earth and hell Dear you must make your Self content i am free from al the Slavers Lash and as you have chose the Wise plan Of Serving the lord i hope you Will pray Much and i Will try by the help of god To Serv him With all my hart I am With a very nice man and have All that hart Can Wish But My Dear I Cant express my grate desire that i Have to See you i trust the time Will Come When We Shal meet again And if We dont met on earth We Will Meet in heven Whare Jesas ranes Dear Elizabeth tell Mrs Own[ees] That i trust that She Will Continue Her kindness to you and that god Will Bless her on earth and Save her In grate eternity My Acomplements To Mrs Owens and her Children may They Prosper through life I never Shall forgit her kindness to me Dear Wife i must Close rest yourself Contented i am free i Want you to rite To me Soon as you Can Without Delay Direct your letter to the 14th Reigment New york State malitia Uptons Hill Virginea In Care of Mr Cranford Comary Write my Dear Soon As you C Your Affectionate Husban Kiss Daniel For me

John Boston

Give my love to Father and Mother

Chicago Citations

Bibliography entry:

Boston, John. Letter to Mrs. Elizabeth Boston, January 12, 1862. Enclosed in George B. McClellan to Edwin M. Stanton, January 21, 1862, A-587 1862, Letters Received, ser. 12, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

John Boston to Elizabeth Boston, January 12, 1862, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/boston.htm.

Shortened citation:

Boston to Boston, January 12, 1862.

PRIMARY SOURCE P14.6

A Journal of Hospital Life in the Confederate Army of Tennessee (excerpts)

Kate Cumming · entries of 1862 (Louisville: John P. Morton, 1866)

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A Confederate nurse records new work for women and the disapproval it met.
TREATMENT	Public-domain text, selected entries (from OCR transcription)

Historical Context

Kate Cumming (1835–1909), a Scottish-born woman from Mobile, Alabama, went to nurse the wounded after the battle of Shiloh in April 1862, against her family's wishes. She served in Confederate hospitals for the rest of the war.

Her journal records the wounded men's suffering and devotion, her own hard work, and the criticism she and other women faced from those who thought hospital work improper for respectable ladies.

Editorial note: The journal was published in 1866 and may have been revised. The text follows the Internet Archive scan of the National Library of Medicine copy; OCR errors such as "Ajpril" and "Kev." have been kept as scanned.

Document Text

[. . .]

Ajpril 7, 1862.— I left Mobile by the Mobile and Ohio Railroad for Corinth, with Kev. Mr. Miller and a number of Mobile ladies. We are going for the purpose of taking care of the sick and wounded of the army.

[. . .]

I think as soon as surgeons discover that ladies are really of service, that prejudice will cease to exist. The patients are delighted to have us, and say that we can cause them to think of the dearest of places to them now — home.

[. . .]

There is a good deal of trouble about the ladies in some of the hospitals of this department. Our friends here have advised us to go home, as they say it is not considered respectable to go into one. I must confess, from all I had heard and seen, for awhile I wavered about the propriety of it; but when I remembered the suffering I had witnessed, and the relief I had given, my mind was made up to go into one if allowed to do so. Mrs. W. and Mrs. M. have come to the same conclusion on the subject as myself. God has said, "Who can harm you if you be followers of that which is good?" I thought of this, and believed it, and gained strength from it. Christians should not mind what the world says, so that they are conscious of striving to do their duty to their God.

It seems strange that the aristocratic women of Great Britain have done with honor what is a disgrace for their sisters on this side of the Atlantic to do. This is not the first time I have heard these remarks. Not respectable ! And who has made it so? If the Christian, high-toned, and educated women of our land shirk their duty, why others have to do it for them. It is useless to say the surgeons will not allow us; we have our rights, and if asserted properly will get them. This is our right, and ours alone.

[. . .]

Chicago Citations

Bibliography entry:

Cumming, Kate. *A Journal of Hospital Life in the Confederate Army of Tennessee, from the Battle of Shiloh to the End of the War*. Louisville: John P. Morton; New Orleans: W. Evelyn, 1866. Internet Archive (National Library of Medicine copy).

Footnote citation:

Kate Cumming, *A Journal of Hospital Life in the Confederate Army of Tennessee* (Louisville: John P. Morton, 1866), [page], Internet Archive.

Shortened citation:

Cumming, *Journal of Hospital Life*, [page].

PRIMARY SOURCE P14.7

Union Military Technology: Telegraph Lines, a Railroad Bridge, and Siege Mortars

Union army photographers · 1862–1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Photographs show the Union's telegraph, railroad, and heavy-weapons capacity at work in the field.
TREATMENT	Public-domain images

Historical Context

The Union's industrial base and engineering skill let it build and supply on a scale the Confederacy could not match. The U.S. Military Telegraph strung thousands of miles of wire, and the U.S. Military Railroad rebuilt bridges in days.

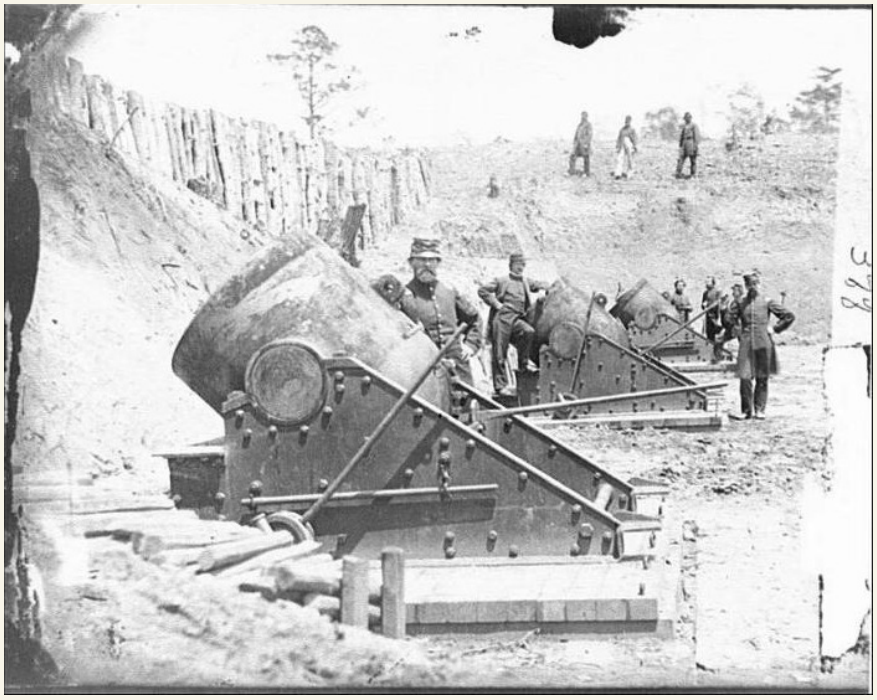
These three photographs show a telegraph construction crew in the field, the trestle bridge over Potomac Creek in Virginia that Herman Haupt's railroad builders put up in 1862, and a battery of thirteen-inch seacoast mortars emplaced for the siege of Yorktown in 1862.

Editorial note: Images reproduced from the Library of Congress and the National Archives (via Wikimedia Commons). The Norton collection presents these three photographs together.

Primary Source Image

U.S. Military Telegraph construction corps at work (ca. 1864). Library of Congress.

Potomac Creek Bridge, built by the U.S. Military Railroad (1863). Via Wikimedia Commons.



Thirteen-inch seacoast mortars near Yorktown, Virginia (1862). Library of Congress.

Chicago Citations

Bibliography entry:

U.S. Military Telegraph Construction Corps. Photograph, ca. 1864. Prints and Photographs Division, Library of Congress, LCCN 2007682521.

Potomac Creek Bridge, U.S. Military Railroad. Photograph, 1863. Via Wikimedia Commons.

Yorktown, Va., Vicinity. 13-in. Seacoast Mortars. Photograph, 1862. Civil War Photographs, Library of Congress, LC-DIG-cwpb-00133.

Footnote citation:

U.S. Military Telegraph Construction Corps, photograph, ca. 1864, Library of Congress, LCCN 2007682521; *Potomac Creek Bridge*, photograph, 1863; *Yorktown, Va., Vicinity. 13-in. Seacoast Mortars*, photograph, 1862, Library of Congress, LC-DIG-cwpb-00133.

Shortened citation:

Union military technology photographs.

PRIMARY SOURCE P14.8

Virginia Slaveholder to the Confederate Secretary of War

L. H. Minor · Hanover County, Virginia, May 2, 1862

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.2 (Who Freed the Enslaved?)
WHY HERE	A slaveholder's complaint shows slavery weakening even inside Confederate lines.
TREATMENT	Full public-domain text

Historical Context

In the spring of 1862 McClellan's Union army advanced up the Virginia Peninsula toward Richmond, and Confederate troops massed in the counties around the capital.

L. H. Minor, a Hanover County farmer, complained that Confederate soldiers were hiring runaway slaves to cook and tend horses, which encouraged other enslaved people to escape.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Etna P.O. Hanover [Va.] May 2 [1862]

Dear Sir Many farmers in Virginia are injured by a practice which has become habitual and extensive among the soldiers of our own army. The soldiers employ runaway negroes to cook for the mess, clean their horses, and so forth. The consequence is that negroes are encouraged to run away, finding a safe harbour in the army. Two of my neighbours have each recovered runaway negroes within the last few weeks; who were actually found in the employment of the soldiers on the Peninsula and these negroes had been runaway many months. I therefore write to ask you to issue a general order forbidding this practice and anexing a penalty sufficiently severe to break it up.

All that is necessary is to forbid the employment of any coloured person unless he can show free papers or a pass from his master; and hold the soldier responsible, for the genuineness of the free papers or pass.

In this section of country a heavy draught has been made upon the farmers (half of our available working force) to work on the fortifications. I, for one, rendered this tribute cheerfully to a cause which is dear to my heart, though that, together with the excessive rains will materially shorten my crop. I think however, we ought to be protected by the army authorities from the abuses above mentioned. Yours &c

L. H. Minor

I can scarcely see to sign my name

One of my negro men has been runaway for many months and I have reason to believe that he is in the service of the soldiers.

Chicago Citations

Bibliography entry:

Minor, L. H. Letter to the Secretary of War, May 2, [1862]. M-458 1862, Letters Received, ser. 5, Secretary of War, War Department Collection of Confederate Records, Record Group 109, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

L. H. Minor to the Secretary of War, May 2, [1862], RG 109, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/LH%20Minor.html.

Shortened citation:

Minor to Secretary of War, May 2, 1862.

PRIMARY SOURCE P14.9

Group of "Contrabands" at Foller's House, Cumberland Landing, Virginia

James F. Gibson (photographer) · May 14, 1862

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	A photograph shows people who freed themselves by reaching Union lines early in the war.
TREATMENT	Public-domain image

Historical Context

During McClellan's Peninsula Campaign in 1862, enslaved people in eastern Virginia fled to the Union army's camps. Union officers called them "contrabands," treating them as enemy property seized in war.

This photograph shows a group of freedpeople at a farmhouse used as a Union headquarters at Cumberland Landing on the Pamunkey River.

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons). The term "contrabands" was the army's, not the subjects'.

Primary Source Image

Cumberland Landing, Va. Group of "contrabands" at Foller's house (May 14, 1862). Library of Congress.

Chicago Citations

Bibliography entry:

Gibson, James F. *Cumberland Landing, Va. Group of "Contrabands" at Foller's House*. Photograph, May 14, 1862. Civil War Photographs, Library of Congress, LC-DIG-cwpb-01005.

Footnote citation:

James F. Gibson, *Cumberland Landing, Va. Group of "Contrabands" at Foller's House*, photograph, May 14, 1862, Library of Congress, LC-DIG-cwpb-01005.

Shortened citation:

Gibson, *Group of "Contrabands"*.

PRIMARY SOURCE P14.10

Proclamation Revoking General Hunter's Order of Military Emancipation

Abraham Lincoln · May 19, 1862

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Lincoln overrules a general's emancipation order while keeping the decision in his own hands.
TREATMENT	Full public-domain text

Historical Context

On May 9, 1862, General David Hunter, commanding Union forces on the South Carolina, Georgia, and Florida coast, declared all enslaved people in those states free.

Ten days later Lincoln revoked Hunter's order, saying that only the president could decide such a question. In the same proclamation he urged the border states to accept his plan for gradual, compensated emancipation.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Washington [D.C.] this nineteenth day of May,
in the year of our Lord one thousand eight hundred and sixty-two

By the President of the United States of America.
A Proclamation.

Whereas there appears in the public prints, what purports to be a proclamation, of Major General Hunter, in the words and figures following, to wit:

Head Quarters Department of the South,
Hilton Head, S.C. May 9, 1862.

General Orders No 11.–The three States of Georgia, Florida and South Carolina, comprising the military department of the south, having deliberately declared themselves no longer under the protection of the United States of America, and having taken up arms against the said United States, it becomes a military necessity to declare them under martial law. This was accordingly done on the 25th day of April, 1862. Slavery and martial law in a free country are altogether incompatible; the persons in these three States–Georgia, Florida and South Carolina–heretofore held as slaves, are therefore declared forever free.

(Official) David Hunter,
Major General Commanding.

Ed. W. Smith,
Acting Assistant Adjutant General.

And whereas the same is producing some excitement, and misunderstanding; therefore

I, Abraham Lincoln, President of the United States, proclaim and declare, that the government of the United States, had no knowledge, information, or belief, of an intention on the part of General Hunter to issue such a proclamation; nor has it yet, any authentic information that the document is genuine– And further, that neither General Hunter, nor any other commander, or person, has been authorized by the Government of the United

States, to make proclamations declaring the slaves of any State free; and that the supposed proclamation, now in question, whether genuine or false, is altogether void, so far as respects such declaration.

I further make known that whether it be competent for me, as Commander-in-Chief of the Army and Navy, to declare the slaves of any State or States, free, and whether at any time, in any case, it shall have become a necessity indispensable to the maintenance of the government, to exercise such supposed power, are questions which, under my responsibility, I reserve to myself, and which I cannot feel justified in leaving to the decision of commanders in the field. These are totally different questions from those of police regulations in armies and camps.

On the sixth day of March last, by a special message, I recommended to Congress the adoption of a joint resolution to be substantially as follows:

Resolved, That the United States ought to co-operate with any State which may adopt a gradual abolishment of slavery, giving to such State pecuniary aid, to be used by such State in its discretion, to compensate for the inconveniences, public and private, produced by such change of system.

The resolution, in the language above quoted, was adopted by large majorities in both branches of Congress, and now stands an authentic, definite, and solemn proposal of the nation to the States and people most immediately interested in the subject matter. To the people of those States I now earnestly appeal– I do not argue, I beseech you to make the arguments for yourselves– You can not if you would, be blind to the signs of the times– I beg of you a calm and enlarged consideration of them, ranging, if it may be, far above personal and partizan politics. This proposal makes common cause for a common object, casting no reproaches upon any– It acts not the pharisee. The change it contemplates would come gently as the dews of heaven, not rending or wrecking anything. Will you not embrace it? So much good has not been done, by one effort, in all past time, as, in the providence of God, it is now your high privilege to do. May the vast future not have to lament that you have neglected it.

In witness whereof, I have hereunto set my hand, and caused the seal of the United States to be affixed.

Abraham Lincoln

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Proclamation, May 19, 1862. No. 90, Presidential Proclamations, ser. 23, Record Group 11, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Abraham Lincoln, proclamation, May 19, 1862, RG 11, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/hunter.htm.

Shortened citation:

Lincoln, proclamation revoking Hunter's order.

PRIMARY SOURCE P14.11

Clara Barton; The Union Volunteer Refreshment Saloon, Philadelphia

Mathew B. Brady studio (photograph); lithograph · 1860s

TOC FIT	Chapter 14 · Essay prompt 14.5 (Did the War Transform Women's Lives?)
WHY HERE	Images show northern women's relief work on the battlefield and at home.
TREATMENT	Public-domain images (two of three images)

Historical Context

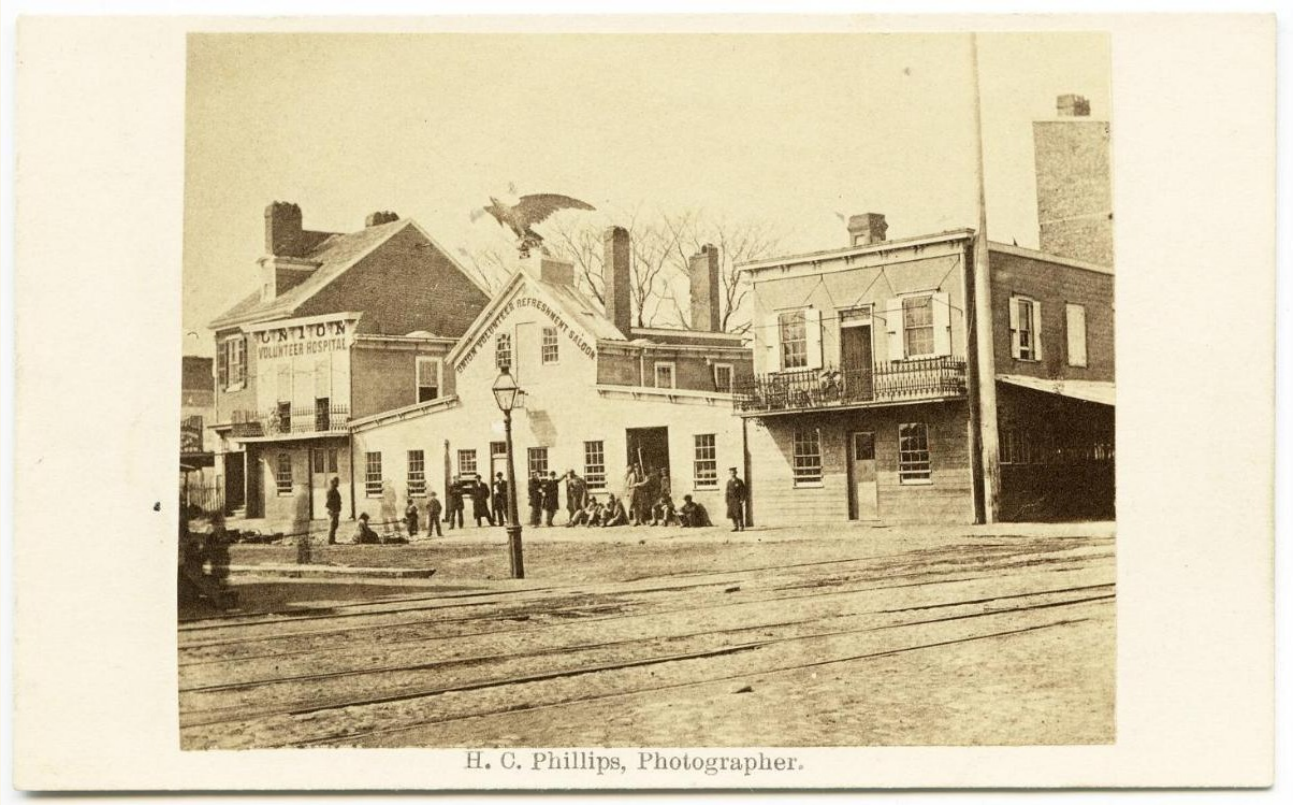
Northern women organized relief on a large scale. Clara Barton (1821–1912), a former teacher and Patent Office clerk, carried supplies to battlefields and nursed the wounded at Antietam and elsewhere; she later founded the American Red Cross.

In Philadelphia, volunteers ran the Union Volunteer Refreshment Saloon near the rail depot, feeding hundreds of thousands of soldiers passing through the city on their way south.

Editorial note: Images reproduced from the Library of Congress (via Wikimedia Commons). The Norton collection also includes a photograph of members of the Christian Commission, which could not be located in an open collection, so only two images appear here.

Primary Source Image

Clara Barton, wartime photograph by the Brady studio. Library of Congress.



Union Volunteer Refreshment Saloon, Philadelphia. Library of Congress.

Chicago Citations

Bibliography entry:

Brady, Mathew B. *Clara Barton. A War Time Photograph*. Photograph, 1860s. Prints and Photographs Division, Library of Congress, LCCN 93513625.

Union Volunteer Refreshment Saloon, Foot of Washington Street, Philadelphia. Lithograph, 1861. Library of Congress, LCCN 2011647798.

Footnote citation:

Mathew B. Brady, *Clara Barton*, photograph, Library of Congress, LCCN 93513625; *Union Volunteer Refreshment Saloon, Philadelphia*, lithograph, Library of Congress, LCCN 2011647798.

Shortened citation:

Brady, *Clara Barton*; *Union Volunteer Refreshment Saloon*.

PRIMARY SOURCE P14.12

Refugees Leaving the Old Homestead

Stereograph, "The War for the Union" series, no. 306 · 1860s

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.4 (Was It a Total War?)
WHY HERE	A photograph shows civilians uprooted as armies moved through the South.
TREATMENT	Public-domain image (one of two images)

Historical Context

The war displaced hundreds of thousands of southerners, white and Black. Families fled ahead of advancing armies, carrying what they could in wagons and carts.

This stereograph, sold after the war in a series of Civil War views, shows a family with loaded wagons leaving their home.

Editorial note: Image reproduced via Wikimedia Commons. The Norton collection pairs this with a photograph of Black laborers that could not be identified in an open collection, so only the refugee image appears here.

Primary Source Image

Refugees Leaving the Old Homestead (stereograph no. 306). Via Wikimedia Commons.

Chicago Citations

Bibliography entry:

Refugees Leaving the Old Homestead. Stereograph, no. 306, "The War for the Union, 1861–1865: Photographic War History" series. Via Wikimedia Commons.

Footnote citation:

Refugees Leaving the Old Homestead, stereograph no. 306, "The War for the Union" series, via Wikimedia Commons.

Shortened citation:

Refugees Leaving the Old Homestead.

PRIMARY SOURCE P14.13

Circular No. 8: Requirements for Female Nurses

Dorothea L. Dix, Superintendent of Army Nurses; approved by Surgeon General William A. Hammond · July 14, 1862

TOC FIT	Chapter 14 · Essay prompt 14.5 (Did the War Transform Women's Lives?)
WHY HERE	The army's rules for women nurses show both a new public role and the limits placed on it.
TREATMENT	Public-domain image

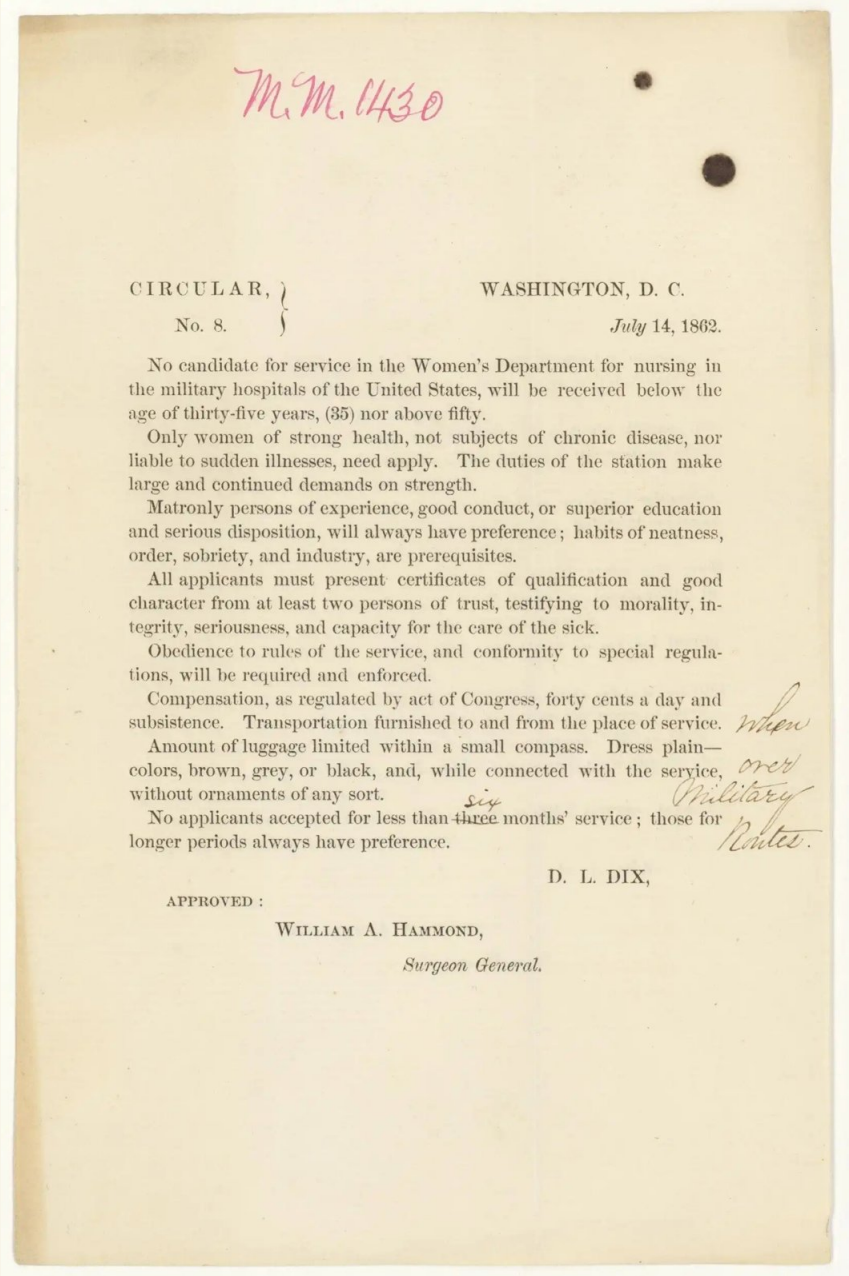
Historical Context

Dorothea Dix (1802–1887), the reformer known for her campaign for asylums, became Superintendent of Army Nurses in 1861 and screened the women who served in Union military hospitals.

Her circular set strict terms: applicants had to be thirty-five to fifty, in strong health, plain in dress, of good character, and willing to work for forty cents a day.

Editorial note: Image from the National Archives copy (via DocsTeach) supplied by the instructor. Handwritten changes on this copy raise the minimum service from three to six months and add a note about transportation over military routes.

Primary Source Image



M.M. 1430

CIRCULAR,)
No. 8.)

WASHINGTON, D. C.
July 14, 1862.

No candidate for service in the Women's Department for nursing in the military hospitals of the United States, will be received below the age of thirty-five years, (35) nor above fifty.

Only women of strong health, not subjects of chronic disease, nor liable to sudden illnesses, need apply. The duties of the station make large and continued demands on strength.

Matronly persons of experience, good conduct, or superior education and serious disposition, will always have preference; habits of neatness, order, sobriety, and industry, are prerequisites.

All applicants must present certificates of qualification and good character from at least two persons of trust, testifying to morality, integrity, seriousness, and capacity for the care of the sick.

Obedience to rules of the service, and conformity to special regulations, will be required and enforced.

Compensation, as regulated by act of Congress, forty cents a day and subsistence. Transportation furnished to and from the place of service.

Amount of luggage limited within a small compass. Dress plain—colors, brown, grey, or black, and, while connected with the service, without ornaments of any sort.

No applicants accepted for less than ~~three~~ six months' service; those for longer periods always have preference.

when over Military Routes.

D. L. DIX,

APPROVED:

WILLIAM A. HAMMOND,
Surgeon General.

Circular No. 8, July 14, 1862, with handwritten revisions. National Archives.

Chicago Citations

Bibliography entry:

Dix, D. L. Circular No. 8. Washington, DC, July 14, 1862. Records of the Office of the Surgeon General (Army), Record Group 112, National Archives.

Footnote citation:

D. L. Dix, Circular No. 8, July 14, 1862, National Archives, via DocsTeach, https://www.docsteach.org/documents/document/circular-no-8-regarding-requirements-for-female-nursing-applicants.

Shortened citation:

Dix, Circular No. 8.

PRIMARY SOURCE P14.14

The Second Confiscation Act

U.S. Congress · July 17, 1862

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.4 (Was It a Total War?)
WHY HERE	Congress declared rebels' slaves free months before the Emancipation Proclamation.
TREATMENT	Full public-domain text

Historical Context

The First Confiscation Act of August 1861 allowed the seizure of enslaved people used directly in the Confederate war effort. A year later, with the war going badly and Republicans growing impatient with Lincoln, Congress went much further.

The Second Confiscation Act declared that enslaved people of anyone engaged in rebellion who escaped to Union lines or came under Union control would be "forever free." It also authorized seizure of rebels' property and allowed the president to employ Black men to suppress the rebellion.

Editorial note: The text follows the Freedmen and Southern Society Project transcription from the *Statutes at Large*.

Document Text

CHAP. CXCV.–An Act to suppress Insurrection, to punish Treason and Rebellion, to seize and confiscate the Property of Rebels, and for other Purposes.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That every person who shall hereafter commit the crime of treason against the United States, and shall be adjudged guilty thereof, shall suffer death, and all his slaves, if any, shall be declared and made free; or, at the discretion of the court, he shall be imprisoned for not less than five years and fined not less than ten thousand dollars, and all his slaves, if any, shall be declared and made free; said fine shall be levied and collected on any or all of the property, real and personal, excluding slaves, of which the said person so convicted was the owner at the time of committing the said crime, any sale or conveyance to the contrary notwithstanding.

SEC. 2. And be it further enacted, That if any person shall hereafter incite, set on foot, assist, or engage in any rebellion or insurrection against the authority of the United States, or the laws thereof, or shall give aid or comfort thereto, or shall engage in, or give aid and comfort to, any such existing rebellion or insurrection, and be convicted thereof, such person shall be punished by imprisonment for a period not exceeding ten years, or by a fine not exceeding ten thousand dollars, and by the liberation of all his slaves, if any he have; or by both of said punishments, at the discretion of the court.

SEC. 3. And be it further enacted, That every person guilty of either of the offences described in this act shall be forever incapable and disqualified to hold any office under the United States.

SEC. 4. And be it further enacted, That this act shall not be construed in any way to affect or alter the prosecution, conviction, or punishment of any person or persons guilty of treason against the United States before the passage of this act, unless such person is convicted under this act.

SEC. 5. And be it further enacted, That, to insure the speedy termination of the present rebellion, it shall be the duty of the President of the United States to cause the seizure of all the estate and property, money, stocks, credits, and effects of the persons hereinafter named in this section, and to apply and use the same and the proceeds thereof for the support of the army of the United States, that is to say:

First. Of any person hereafter acting as an officer of the army or navy of the rebels in arms against the government of the United States.

Secondly. Of any person hereafter acting as President, Vice-President, member of Congress, judge of any court, cabinet officer, foreign minister, commissioner or consul of the so-called confederate states of America.

Thirdly. Of any person acting as governor of a state, member of a convention or legislature, or judge of any court of any of the so-called confederate states of America.

Fourthly. Of any person who, having held an office of honor, trust, or profit in the United States, shall hereafter hold an office in the so-called confederate states of America.

Fifthly. Of any person hereafter holding any office or agency under the government of the so-called confederate states of America, or under any of the several states of the said confederacy, or the laws thereof, whether such office or agency be national, state, or municipal in its name or character: Provided, That the persons, thirdly, fourthly, and fifthly above described shall have accepted their appointment or election since the date of the pretended ordinance of secession of the state, or shall have taken an oath of allegiance to, or to support the constitution of the so-called confederate states.

Sixthly. Of any person who, owning property in any loyal State or Territory of the United States, or in the District of Columbia, shall hereafter assist and give aid and comfort to such rebellion; and all sales, transfers, or conveyances of any such property shall be null and void; and it shall be a sufficient bar to any suit brought by such person for the possession or the use of such property, or any of it, to allege and prove that he is one of the persons described in this section.

SEC. 6. And be it further enacted, That if any person within any State or Territory of the United States, other than those named as aforesaid, after the passage of this act, being engaged in armed rebellion against the government of the United States, or aiding or abetting such rebellion, shall not, within sixty days after public warning and proclamation duly given and made by the President of the United States, cease to aid, countenance, and abet such rebellion, and return to his allegiance to the United States, all the estate and property, moneys, stocks, and credits of such person shall be liable to seizure as aforesaid, and it shall be the duty of the President to seize and use them as aforesaid or the proceeds thereof. And all sales, transfers, or conveyances, of any such property after the expiration of the said sixty days from the date of such warning and proclamation shall be null and void; and it shall be a sufficient bar to any suit brought by such person for the possession or the use of such property, or any of it, to allege and prove that he is one of the persons described in this section.

SEC. 7. And be it further enacted, That to secure the condemnation and sale of any of such property, after the same shall have been seized, so that it may be made available for the purpose aforesaid, proceedings in rem shall be instituted in the name of the United States in any district court thereof, or in any territorial court, or in the United States district court for the District of Columbia, within which the property above described, or any part thereof, may be found, or into which the same, if movable, may first be brought, which proceedings shall conform as nearly as may be to proceedings in admiralty or revenue cases, and if said property, whether real or personal, shall be found to have belonged to a person engaged in rebellion, or who has given aid or comfort thereto, the same shall be condemned as enemies' property and become the property of the United States, and may be disposed of as the court shall decree and the proceeds thereof paid into the treasury of the United States for the purposes aforesaid.

SEC. 8. And be it further enacted, That the several courts aforesaid shall have power to make such orders, establish such forms of decree and sale, and direct such deeds and conveyances to be executed and delivered by the marshals thereof where real estate shall be the subject of sale, as shall fitly and efficiently effect the purposes of this act, and vest in the purchasers of such property good and valid titles thereto. And the said courts shall have power to allow such fees and charges of their officers as shall be reasonable and proper in the premises.

SEC. 9. And be it further enacted, That all slaves of persons who shall hereafter be engaged in rebellion against the government of the United States, or who shall in any way give aid or comfort thereto, escaping from such persons and taking refuge within the lines of the army; and all slaves captured from such persons or deserted by them and coming under the control of the government of the United States; and all slaves of such person found on [or] being within any place occupied by rebel forces and afterwards occupied by the forces of the United States, shall be deemed captives of war, and shall be forever free of their servitude, and not again held as slaves.

SEC. 10. And be it further enacted, That no slave escaping into any State, Territory, or the District of Columbia, from any other State, shall be delivered up, or in any way impeded or hindered of his liberty, except for crime, or some offence against the laws, unless the person claiming said fugitive shall first make oath that the person to whom the labor or service of such fugitive is alleged to be due is his lawful owner, and has not borne arms against the United States in the present rebellion, nor in any way given aid and comfort thereto; and no person engaged in the military or naval service of the United States shall, under any pretence whatever, assume to decide on the validity of the claim of any person to the service or labor of any other person, or surrender up any such person to the claimant, on pain of being dismissed from the service.

SEC. 11. And be it further enacted, That the President of the United States is authorized to employ as many persons of African descent as he may deem necessary and proper for the suppression of this rebellion, and for this purpose he may organize and use them in such manner as he may judge best for the public welfare.

SEC. 12. And be it further enacted, That the President of the United States is hereby authorized to make provision for the transportation, colonization, and settlement, in some tropical country beyond the limits of the United States, of such persons of the African race, made free by the provisions of this act, as may be willing to emigrate, having first obtained the consent of the government of said country to their protection and settlement within the same, with all the rights and privileges of freemen.

SEC. 13. And be it further enacted, That the President is hereby authorized, at any time hereafter, by proclamation, to extend to persons who may have participated in the existing rebellion in any State or part thereof, pardon and amnesty, with such exceptions and at such time and on such conditions as he may deem expedient for the public welfare.

SEC. 14. And be it further enacted, That the courts of the United States shall have full power to institute proceedings, make orders and decrees, issue process, and do all other things necessary to carry this act into effect.

APPROVED, July 17, 1862.

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Suppress Insurrection, to Punish Treason and Rebellion, to Seize and Confiscate the Property of Rebels, and for Other Purposes." July 17, 1862. *United States Statutes at Large* 12:589–92. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Second Confiscation Act, July 17, 1862, sec. [number], *Statutes at Large* 12:589–92, via Freedmen and Southern Society Project.

Shortened citation:

Second Confiscation Act, sec. [number].

PRIMARY SOURCE P14.15

First Draft of the Emancipation Proclamation

Abraham Lincoln · July 22, 1862 (manuscript)

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Lincoln's first draft shows emancipation conceived as a military measure tied to the Confiscation Act.
TREATMENT	Manuscript facsimile with transcription, complete draft

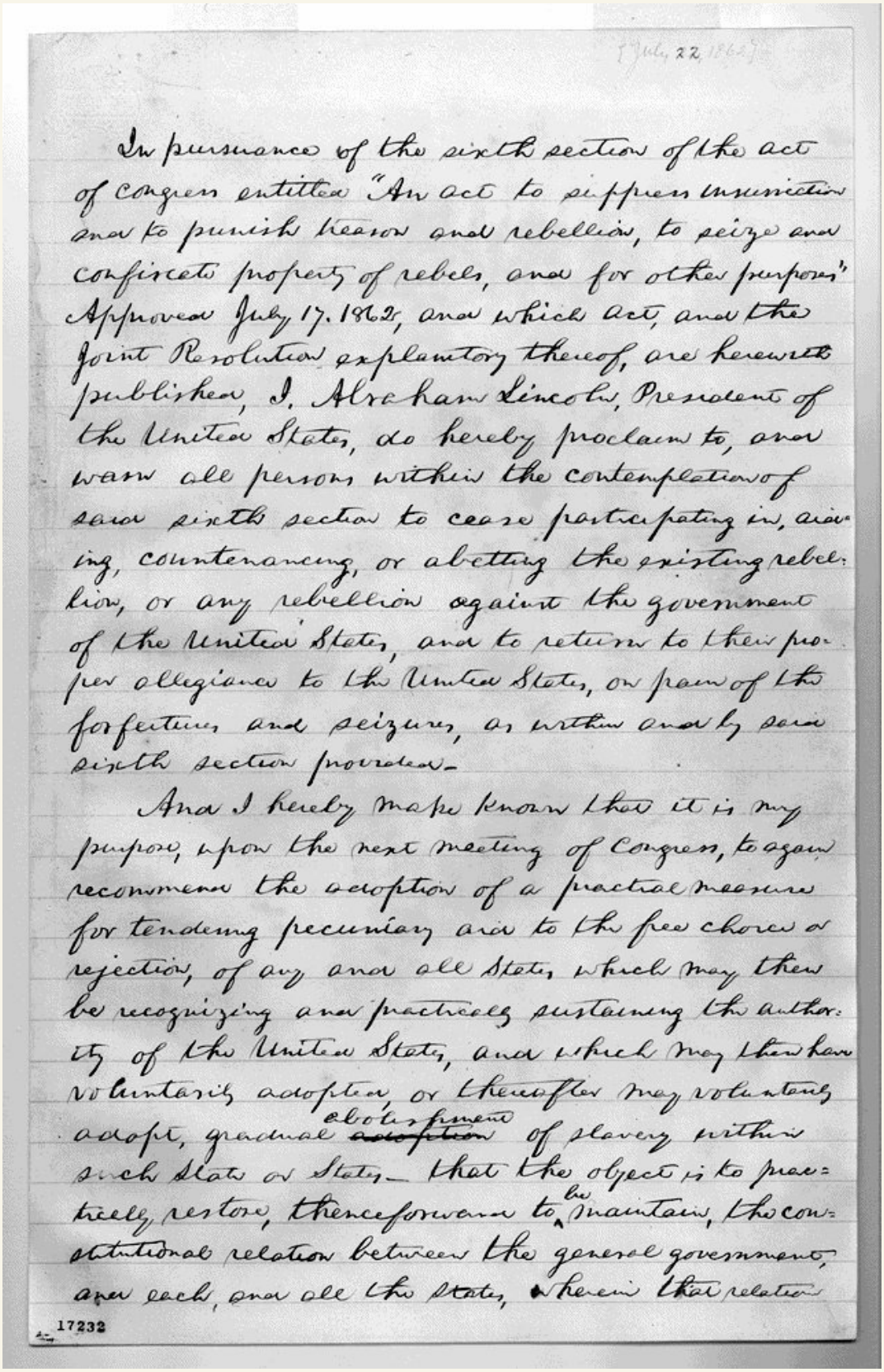
Historical Context

Five days after Congress passed the Second Confiscation Act, Lincoln read his cabinet a draft proclamation. It warned rebels to return to their allegiance, promised to renew his offer of compensated emancipation, and declared that on January 1, 1863, all persons held as slaves in states still in rebellion would be free.

Secretary of State William Seward advised waiting for a military victory so the measure would not look like desperation. Lincoln put the draft away until after Antietam.

Editorial note: The manuscript pages are reproduced from the Library of Congress exhibit copy supplied by the instructor; the date in the upper corner was added later by an archivist. Lincoln's insertions ("abolishment," "be") appear above the line. A transcription follows the images.

Document Facsimile



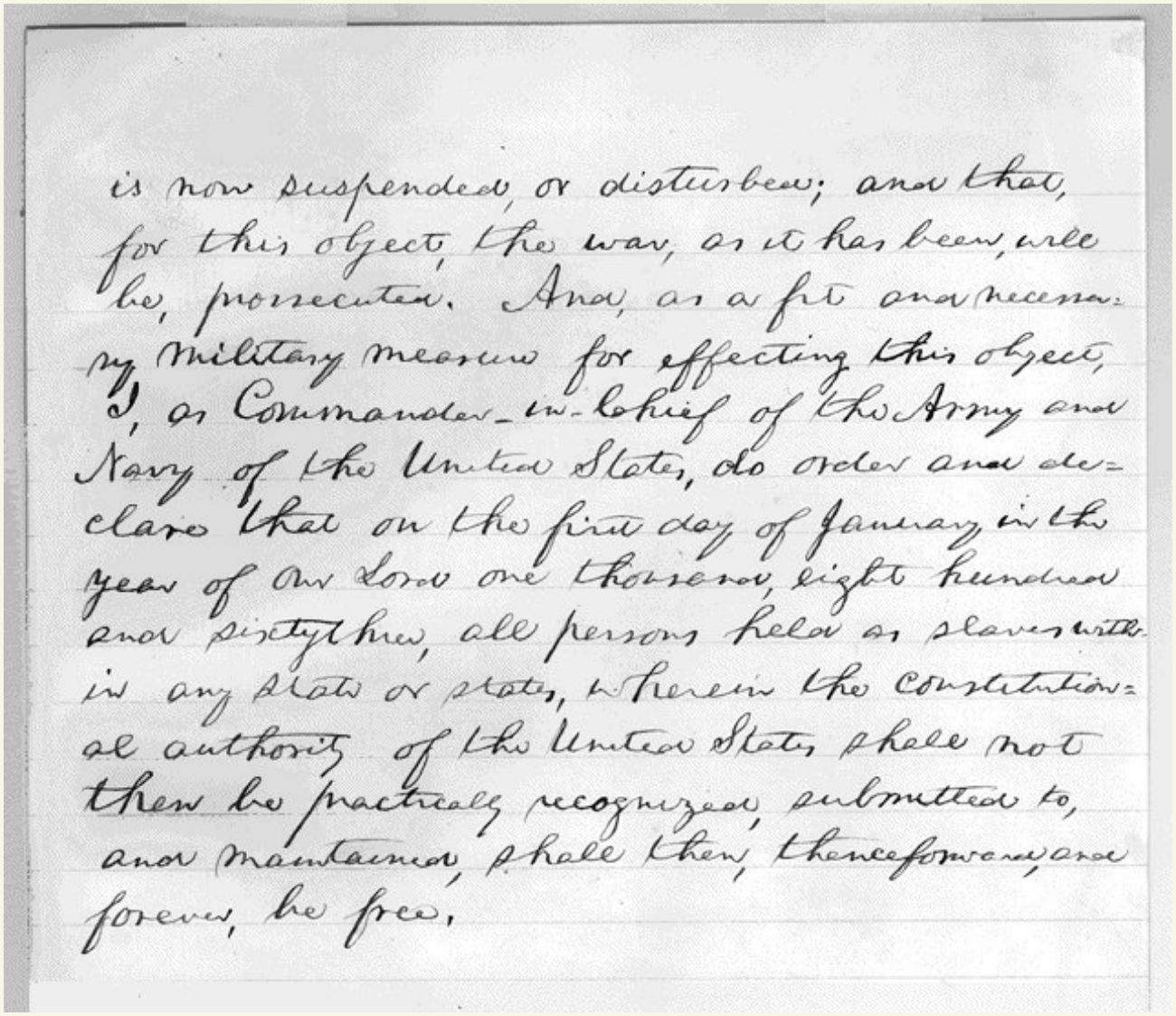
[July, 22, 1862]

In pursuance of the sixth section of the act of Congress entitled "An act to suppress insurrection and to punish treason and rebellion, to seize and confiscate property of rebels, and for other purposes" Approved July 17. 1862, and which act, and the joint Resolution explanatory thereof, are hereunto published, I, Abraham Lincoln, President of the United States, do hereby proclaim to, and warn all persons within the contemplation of said sixth section to cease participating in, aiding, countenancing, or abetting the existing rebellion, or any rebellion against the government of the United States, and to return to their proper allegiance to the United States, on pain of the forfeitures and seizures, as within and by said sixth section provided.

And I hereby make known that it is my purpose, upon the next meeting of Congress, to again recommend the adoption of a practical measure for tendering pecuniary aid to the free choice or rejection, of any and all States, which may then be recognizing and practically sustaining the authority of the United States, and which may then have voluntarily adopted, or thereafter may voluntarily adopt, gradual ~~adoption~~ abolishment of slavery within such State or States— that the object is to practically restore, thenceforward to be maintained, the constitutional relation between the general government, and each, and all the States, wherein that relation

17232

Manuscript, page 1.



is now suspended, or disturbed; and that,
for this object, the war, as it has been, will
be, prosecuted. And, as a fit and necessa-
ry Military measure for effecting this object,
I, as Commander-in-chief of the Army and
Navy of the United States, do order and de-
clare that on the first day of January in the
year of our Lord one thousand, eight hundred
and sixty three, all persons held as slaves with-
in any State or states, wherein the constitution-
al authority of the United States shall not
then be practically recognized, submitted to,
and maintained, shall then, thenceforward, and
forever, be free,

Manuscript, page 2.

Transcription

Transcribed from the manuscript images; original spelling and punctuation retained. [?] marks an uncertain reading.

[Faint notation in another hand, upper right of first page:] July 22 1862 *[?]*

In pursuance of the sixth section of the act of congress entitled "An act to suppress insurrection and to punish treason and rebellion, to seize and confiscate property of rebels, and for other purposes" Approved July 17. 1862, and which act, and the Joint Resolution explantory thereof, are herewith published, I, Abraham Lincoln, President of the United States, do hereby proclaim to, and warn all persons within the contemplation of said sixth section to cease participating in, aiding, countenancing, or abetting the existing rebellion, or any rebellion against the government of the United States, and to return to their proper allegiance to the United States, on pain of the forfeitures and seizures, as within and by said sixth section provided.

And I hereby make known that it is my purpose, upon the next meeting of Congress, to again recommend the adoption of a practical *[?]* measure for tendering pecuniary aid to the free choice or rejection, of any and all States

which may then be recognizing and practically sustaining the authority of the United States, and which may then have voluntarily adopted, or thereafter may voluntarily adopt, gradual ~~adoption~~ ‹abolishment› of slavery within such State or States – that the object is to practically restore, thenceforward to ‹be› maintain, the constitutional relation between the general government, and each, and all the states, wherein that relation is now suspended, or disturbed; and that, for this object, the war, as it has been, will be, prosecuted. And, as a fit and necessary military measure for effecting this object, I, as Commander-in-Chief of the Army and Navy of the United States, do order and declare that on the first day of January in the year of Our Lord one thousand, eight hundred and sixtythree, all persons held as slaves within any state or states, wherein the constitutional authority of the United States shall not then be practically recognized, submitted to, and maintained, shall then, thenceforward, and forever, be free.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. First Draft of the Emancipation Proclamation, [July 22, 1862]. Manuscript. Abraham Lincoln Papers, Library of Congress.

Footnote citation:

Abraham Lincoln, first draft of the Emancipation Proclamation, [July 22, 1862], Abraham Lincoln Papers, Library of Congress, http://www.loc.gov/exhibits/lincoln/lincoln-as-commander-in-chief.html#obj25.

Shortened citation:

Lincoln, first draft of the Emancipation Proclamation.

PRIMARY SOURCE P14.16

Georgia Slaveholders to the Commander of the 3rd Division of the Confederate District of Georgia

R. Q. Mallard, T. W. Fleming, and E. Stacy · Liberty County, Georgia, August 1, 1862

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.2 (Who Freed the Enslaved?)
WHY HERE	Slaveholders describe enslaved people escaping to Union forces in large numbers and ask for executions to stop them.
TREATMENT	Full public-domain text

Historical Context

Union forces captured coastal positions in Georgia and South Carolina in 1861 and 1862. Enslaved people on the rice and cotton plantations of the coast escaped to Union ships and outposts in growing numbers.

Three Liberty County slaveholders, one of them a Presbyterian minister, petitioned the Confederate commander to stop the flight. They estimated that some twenty thousand dollars' worth of enslaved people was escaping each month, and they urged that recaptured runaways be publicly executed as traitors.

Editorial note: The text follows the Freedmen and Southern Society Project transcription of the National Archives manuscript, which preserves original spelling.

Document Text

[Liberty County, Ga. August 1, 1862]

General: The undersigned Citizens of Liberty County of the Fifteenth District, would respectfully present for your consideration a subject of grave moment, not to themselves only but to their fellow Citizens of the Confederate States, who occupy not only our territory immediately bordering on that of the old United States, but the whole line of our sea coast from Virginia to Texas. We allude to the escape of our Slaves across the border lines landward, and out to the vessels of the enemy Seaward, & to their being also enticed off by those who having made their escape, return for that purpose, and not unfrequently, attended by the enemy. The injury inflicted upon the interests of the citizens of the Confederate States by this now constant drain is immense; independent of the forcible seizure of Slaves by the enemy whenever it lies in his power; and to which we now make no allusion, as the indemnity for this loss, will in due time occupy the attention of our Government.– From ascertained losses on certain parts of our Coast, we may set down as a low estimate, the number of Slaves absconded & enticed off from our Seaboard as 20,000 & their value as from $12 to 15 millions of Dollars, to which loss–may be added the insecurity of the property along our borders & the demoralization of the negroes that remain, which increases with the continuance of the evil & may finally result in perfect disorganization and rebellion.–

The absconding Negroes hold the position of Traitors, since they go over to the enemy & afford him aid & comfort, by revealing the condition of the districts and cities from which they come, & aiding him in erecting fortifications & raising provisions for his support: and now that the United States have allowed their introduction into their Army &, Navy, aiding the enemy by enlisting under his branners & increasing his resources in men, for our annoyance & destruction. Negroes occupy the position of Spies also, since they are employed in secret expeditions for obtaining information, by transmission of newspapers & by other modes; and act as guides to expeditions on the land & as pilots to their vessels on the waters of our inlets and rivers.–

They have proved of great value, thus far, to the Coast operations of the enemy, & without their assistance, he could not have accomplished as much for our injury & annoyance as he has done; and unless some measures shall be adopted to prevent the escape of the negroes to the enemy, the threat of an Army of trained Africans for the coming fall & winter's campaigns may become a reality. Meanwhile the counties along the Seaboard will become exhausted of the Slave population, which should be retained as far as possible for the raising of provisions & supplies for our forces on the Coast.–

In the absence of penalties of such a nature as to ensure respect and dread, the temptations which are spread before the negroes are very strong, and when we consider their condition, their ignorance and credulity & love of change, must prove in too many cases decidedly successful. No effectual check being interposed to their escape, the desire increases among them in proportion to the extent of its successful gratification, & will spread inland until it will draw Negroes from Counties, far in the interior of the State; & Negroes will congregate from every quarter, in the counties immediately bordering on the Sea and become a lawless set of runaways, corrupting the Negroes that remain faithful, depredating on property of all kinds & resorting it may be to deeds of violence; which demonstrates that the whole State is interested in the effort to stop this evil: & already have Negroes from middle Georgia made their escape to the Seaboard Counties, and through Savannah itself to the enemy.–

After consulting the Laws of the State we can discover none that meet the case & allow of that prompt execution of a befitting penalty, which its urgency demands. The infliction of capital punishment is now confined to the Superior Court; & any indictment before that Court, would involve incarceration of the Negroes for months with the prospect of postponement of trial–long litigation–large expense & doubtful conviction; and moreover, should the Negroes be caught escaping in any numbers, there would not be room in all our Jails to receive them. The Civil Law therefore as it now stands cannot come to our protection.

Can we find protection under Military Law? This is the question we submit to the General in Command– Under Military Law the severest penalties are prescribed for furnishing the enemy with aid & comfort, & for acting as Spies and Traitors; all which the Negroes can do as effectually as white men, as facts prove and as we have already suggested. There can be but little doubt, that if Negroes are detected in the act of exciting their fellow slaves to escape; or of taking them off; or of returning after having gone to the enemy, to induce & aid others to escape:–they may in each of these cases be summarily punished under military authority. But may not the case of Negroes taken in the act of absconding, singly, (or in families) or in parties, without being directly incited so to do by one or more others, be also summarily dealt with by Military Authority?– Were our white population to act in the same way, would it not be necessary to make a summary example of them, in order to cure the evil or put it under some salutary control? If it be argued, that in case of the Negroes, it would be hard to meet out a similar punishment under similar circumstances, because of their ignorance pliability, credulity, desire of change, the absence of the political ties of allegiance & the peculiar status of the Race;–it may be replied–that the Negroes, constitute a part of the Body politic, in fact; and should be made to know their duty; that they are perfectly aware that the Act which they commit is one of rebellion against the power & authority of their owners & the Government under which they live; they are perfectly aware that they go over to the protection & aid of the enemy who are on the Coast for the purpose of killing their owners & of destroying their property; & they know further, that if they themselves are found with the enemy that they will be treated as the enemy–namely shot & destroyed:– To apprehend such transgressors, to confine & punish them privately by owners or publicly by the Citizens of the County by confinement and whipping & then return them to the plantations will not abate the evil; for the disaffected will not thereby be reformed, but will remain a leaven of corruption in the mass & stand ready to make any other attempts that may promise success. It is indeed a monstrous evil that we suffer.– Our Negroes our property–the agracultural class of the Confederacy, upon whose order & continuance so much depends, may go off, (inflicting a great pecuniary loss both private & public) to the enemy–convey any amount of valuable information–and aid him by building his fortifications: by raising supplies for his armies–by enlisting as Soldiers–by acting as Spies & as guides & pilots on his expiditions on land & water & bringing in the foe upon us to

kill & devastate; and yet if we catch them in the act of going to the enemy we are powerless for the infliction of any punishment adequate to their crime & adequate to fill them with salutary fear of its commission! Surely some remedy should be applied & that speedily for the protection of the Country, aside from all other considerations. A few executions of leading transgressors among them by hanging or shooting would dissipate the ignorance which may be supposed to possess their minds and which may be pleaded in arrest of judgement.–

We do not pray the General in Command to issue any order for the government of the Citizens in the matter, which of course is no part of his duty; but the promulgation of an order to the military for the execution of ring-leaders who are detected in stirring up the people to escape–for the execution of all who return having once escaped & for the execution of all who are caught in the act of escaping; will speedily be known & understood by the entire slave population, and will do away with all excuses of ignorance, & go very far towards an entire arrest of the evil. While it will enable the Citizens to act efficiently in there own sphere–whenever circumstances–require them to act at all– In an adjoining County which has lost some 200 since the shooting of two detected in the act of escaping not another attempt has been made & it has been several weeks since the two were shot.–

As Law abiding men we do not desire Committees of Vigalence, clothed with plenary powers; nor meetings of the body of our Citazens, to take the Law into their own hands, however justifiable it may be under the peculiar circumstances, & therefore in the failure of the Civil Courts to meet the emergency, we refer the Subject to the General in Command, believing that he has the power to issue the necessary order to the forces under him, covering the whole ground, and knowing that by so doing he will recieve the commendation and cordial support of the intelligent & Law abiding citizens inhabiting the military department over which he presides. All which is Respectfully submited by Your friends & fellow citizens.–

R. Q. Mallard.

T. W. Fleming.

E. Stacy

Chicago Citations

Bibliography entry:

Mallard, R. Q., T. W. Fleming, and E. Stacy. Letter to Brigadier General H. W. Mercer, [August 1, 1862]. Enclosed in H. W. Mercer to George W. Randolph, August 5, 1862, M-1867 1862, Letters Received, ser. 5, Secretary of War, War Department Collection of Confederate Records, Record Group 109, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

R. Q. Mallard et al. to H. W. Mercer, [August 1, 1862], RG 109, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Mallard%20et%20al.html.

Shortened citation:

Mallard et al. to Mercer, August 1, 1862.

PRIMARY SOURCE P14.17

Reminiscences of My Life in Camp (excerpts)

Susie King Taylor · 1902 (events of 1862–1866)

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?); Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	A Black woman who served with a Black regiment describes enlistment, camp life, and wartime work.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Susie King Taylor (1848–1912) was born enslaved in Georgia and secretly learned to read in Savannah. In 1862 she escaped with relatives to St. Simons Island under Union protection.

She joined the 1st South Carolina Volunteers (later the 33rd U.S. Colored Troops), the regiment her husband served in, as a laundress, and also worked as a nurse and teacher. Her memoir is the only published account by a Black woman of service with the army in the war.

Editorial note: Taylor wrote forty years after the events. The text follows the Project Gutenberg edition.

Document Text

The latter part of August, 1862, Captain C. T. Trowbridge, with his brother John and Lieutenant Walker, came to St. Simon's Island from Hilton Head, by order of General Hunter, to get all the men possible to finish filling his regiment which he had organized in March, 1862. He had heard of the skirmish on this island, and was very much pleased at the bravery shown by these men. He found me at Gaston Bluff teaching my little school, and was much interested in it. When I knew him better I found him to be a thorough gentleman and a staunch friend to my race.

Captain Trowbridge remained with us until October, when the order was received to evacuate, and so we boarded the Ben-De-Ford, a transport, for Beaufort, S. C. When we arrived in Beaufort, Captain Trowbridge and the men he had enlisted went to camp at Old Fort, which they named "Camp Saxton." I was enrolled as laundress.

The first suits worn by the boys were red coats and pants, which they disliked very much, for, they said, "The rebels see us, miles away."

The first colored troops did not receive any pay for eighteen months, and the men had to depend wholly on what they received from the commissary, established by General Saxton. A great many of these men had large families, and as they had no money to give them, their wives were obliged to support themselves and children by washing for the officers of the gunboats and the soldiers, and making cakes and pies which they sold to the boys in camp. Finally, in 1863, the government decided to give them half pay, but the men would not accept this. They wanted "full pay" or nothing. They preferred rather to give their services to the state, which they did until 1864, when the government granted them full pay, with all the back pay due.

I remember hearing Captain Heasley telling his company, one day, "Boys, stand up for your full pay! I am with you, and so are all the officers." This captain was from Pennsylvania, and was a very good man; all the men liked him. N. G. Parker, our first lieutenant, was from Massachusetts. H. A. Beach was from New York. He was very delicate, and had to resign in 1864 on account of ill health.

I had a number of relatives in this regiment,—several uncles, some cousins, and a husband in Company E, and a number of cousins in other companies. Major Strong, of this regiment, started home on a furlough, but the vessel he was aboard was lost, and he never reached his home. He was one of the best officers we had. After his death,

Captain C. T. Trowbridge was promoted major, August, 1863, and filled Major Strong's place until December, 1864, when he was promoted lieutenant-colonel, which he remained until he was mustered out, February 6, 1866.

[. . .]

IX
CAPTURE OF CHARLESTON

On February 28, 1865, the remainder of the regiment were ordered to Charleston, as there were signs of the rebels evacuating that city. Leaving Cole Island, we arrived in Charleston between nine and ten o'clock in the morning, and found the "rebs" had set fire to the city and fled, leaving women and children behind to suffer and perish in the flames. The fire had been burning fiercely for a day and night. When we landed, under a flag of truce, our regiment went to work assisting the citizens in subduing the flames. It was a terrible scene. For three or four days the men fought the fire, saving the property and effects of the people, yet these white men and women could not tolerate our black Union soldiers, for many of them had formerly been their slaves; and although these brave men risked life and limb to assist them in their distress, men and even women would sneer and molest them whenever they met them.

I had quarters assigned me at a residence on South Battery Street, one of the most aristocratic parts of the city, where I assisted in caring for the sick and injured comrades. After getting the fire under control, the regiment marched out to the race track, where they camped until March 12, when we were ordered to Savannah, Ga. We arrived there on the 13th, about eight o'clock in the evening, and marched out to Fairlong, near the A. & G. R. R., where we remained about ten days, when we were ordered to Augusta, Ga., where Captain Alexander Heasley, of Co. E, was shot and killed by a Confederate. After his death Lieutenant Parker was made captain of the company, and was with us until the regiment was mustered out. He often told me about Massachusetts, but I had no thought at that time that I should ever see that State, and stand in the "Cradle of Liberty."

The regiment remained in Augusta for thirty days, when it was ordered to Hamburg, S. C., and then on to Charleston. It was while on their march through the country, to the latter city, that they came in contact with the bushwhackers (as the rebels were called), who hid in the bushes and would shoot the Union boys every chance they got. Other times they would conceal themselves in the cars used to transfer our soldiers, and when our boys, worn out and tired, would fall asleep, these men would come out from their hiding places and cut their throats. Several of our men were killed in this way, but it could not be found out who was committing these murders until one night one of the rebels was caught in the act, trying to cut the throat of a sleeping soldier. He was put under guard, court-martialed, and shot at Wall Hollow.

[. . .]

Chicago Citations

Bibliography entry:

Taylor, Susie King. *Reminiscences of My Life in Camp with the 33d United States Colored Troops, Late 1st S. C. Volunteers*. Boston: Published by the Author, 1902. Project Gutenberg eBook #73499.

Footnote citation:

Susie King Taylor, *Reminiscences of My Life in Camp* (Boston: the author, 1902), [page], Project Gutenberg eBook #73499.

Shortened citation:

Taylor, *Reminiscences*, [page].

PRIMARY SOURCE P14.18

Letter to Horace Greeley, August 22, 1862

Abraham Lincoln · August 22, 1862

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Lincoln states that saving the Union is his paramount object, evidence for a cautious Lincoln or for one preparing the public.
TREATMENT	Full public-domain text

Historical Context

On August 20, 1862, Horace Greeley, editor of the *New York Tribune*, published an open letter, "The Prayer of Twenty Millions," accusing Lincoln of failing to enforce the Confiscation Acts and to strike at slavery.

Lincoln replied publicly that his "paramount object" was to save the Union, whether by freeing all, some, or none of the enslaved. He had already drafted the preliminary Emancipation Proclamation and was waiting for a military victory to issue it.

Editorial note: The planned host is a Library of Congress page, which could not be reached. The text follows the 1907 *Life and Works of Abraham Lincoln* as transcribed on Wikisource.

Document Text

Executive Mansion,
Washington, August 22, 1862.

Hon. Horace Greeley.

Dear Sir: I have just read yours of the 19th, addressed to myself through the New York Tribune. If there be in it any statements or assumptions of fact which I may know to be erroneous, I do not, now and here, controvert them. If there be in it any inferences which I may believe to be falsely drawn, I do not, now and here, argue against them. If there be perceptible in it an impatient and dictatorial tone, I waive it in deference to an old friend whose heart I have always supposed to be right.

As to the policy I "seem to be pursuing," as you say, I have not meant to leave any one in doubt.

I would save the Union. I would save it the shortest way under the Constitution. The sooner the national authority can be restored, the nearer the Union will be "the Union as it was." If there be those who would not save the Union unless they could at the same time save slavery, I do not agree with them. If there be those who would not save the Union unless they could at the same time destroy slavery, I do not agree with them. My paramount object in this struggle is to save the Union, and is not either to save or to destroy slavery. If I could save the Union without freeing any slave, I would do it; and if I could save it by freeing all the slaves, I would do it; and if I could save it by freeing some and leaving others alone, I would also do that. What I do about slavery and the colored race, I do because I believe it helps to save the Union; and what I forbear, I forbear because I do not believe it would help to save the Union. I shall do less whenever I shall believe what I am doing hurts the cause, and I shall do more whenever I shall believe doing more will help the cause. I shall try to correct errors when shown to be errors, and I shall adopt new views so fast as they shall appear to be true views.

I have here stated my purpose according to my view of official duty; and I intend no modification of my oft-expressed personal wish that all men everywhere could be free.

Yours,

A. Lincoln.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Letter to Horace Greeley, August 22, 1862. *New York Tribune*, August 25, 1862. In *Life and Works of Abraham Lincoln*, edited by Marion Mills Miller, vol. 9. New York: Current Literature, 1907. Wikisource.

Footnote citation:

Abraham Lincoln to Horace Greeley, August 22, 1862, in *Life and Works of Abraham Lincoln*, ed. Marion Mills Miller (New York: Current Literature, 1907), vol. 9, via Wikisource.

Shortened citation:

Lincoln to Greeley, August 22, 1862.

PRIMARY SOURCE P14.19

Commander of the 5th Division of the Army of the Tennessee to a Tennessee Slaveholder

William T. Sherman to Thomas Hunton · Memphis, August 24, 1862

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.4 (Was It a Total War?)
WHY HERE	Sherman explains why the army would not return fugitives, showing emancipation advancing through military practice.
TREATMENT	Full public-domain text

Historical Context

In the summer of 1862 Sherman commanded the Union garrison at Memphis. Thomas Hunton, a former schoolmate and now a Mississippi planter, wrote asking for help recovering enslaved people who had fled to the Union lines.

Sherman replied that by rebelling, slaveholders had given up the protection the Constitution gave slavery. The army would not return fugitives, he said, and would use their labor, though he was not yet ready to declare them free.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Memphis Tenn. Aug 24th 1862

My dear Sir, I freely admit that when you recall the times when we were schoolfellows, when we were younger than now, you touch me on a tender point, and cause me to deeply regret that even you should style yourself a Rebel. I cannot believe that Tom Hunton the Companion of Gaither, Rankin, and Irvin and many others long since dead, and of Halleck. Ord, Stevens and others still living can of his own free will admit the anarchical principle of secession or be vain enough to suppose the present Politicions Can frame a Government better than that of Washington Hamilton & Jefferson. We cannot realize this but delude ourselves into the belief that by some strange but successful jugglery the manegers of our Political Machine have raised up the single issue, North or South, which shall prevail in America? or that you like others have been blown up, and cast into the Mississippi of Secession doubtful if by hard fighting you can reach the shore in safety, or drift out to the Ocean of Death, I know it is no use for us now to discuss this–war is on us. We are Enemies, still private friends. In the one Capacity I will do you all the harm I can, yet on the other if here. you may have as of old my last Cent, my last shirt and pants, You ask of me your negroes. and I will immediately ascertain if they be under my Military Control and I will moreover see that they are one and all told what is true of all– Boys if you want to go to your master, Go– You are free to choose, You must now think for yourselves. Your Master has seceded from his Parent Government and you have seceded from him–both wrong by law–but bothe exercising an undoubted natural Right to rebel, If your boys want to go, I will enable them to go, but I wont advise, persuade or force them– I confess I have not yet seen the “Confiscation Act,” but I enclose you my own orders defining my position, I also cut out of a paper Grant's Orders, and I assert that the Action of all our Leading Military Leaders, Halleck, McClellan, Buell, Grant & myself have been more conservative of slavery than the Acts of your own men. The Constitution of the United States is your only legal title to slavery. You have another title, that of posession & Force, but in Law & Logic your title to your Boys lay in the Constitution of the United States. You may say you are for the Constitution of the United States, as it was– You know it is unchanged, not a word not a syllable and I can lay my hand on that Constitution and swear

to it without one twang. But your party have made another and have another in force How can you say that you would have the old, when you have a new By the new if sucessful you inherit the Right of Slavery, but the new is not law till your Revolution is successful. Therefore we who contend for the old existing Law, Contend that you by your own act take away Your own title to all property save what is restricted by our constitution, your slaves included. You know I don't want your slaves; but to bring you to reason I think as a Military Man I have a Right and it is good policy to make you all feel that you are but men–that you have all the wants & dependencies of other men, and must eat, be clad &c to which end you must have property & labor, and that by Rebelling you risk both, Even without the Confiscation Act, by the simple laws of War we ought to take your effective slaves. I don't say to free them, but to use their labor & deprive you of it; as Belligerents we ought to seek the hostile Army and fight it and not the people.– We went to Corinth but Beaureguard declined Battle, since which time many are dispersed as Guerillas. We are not bound to follow them, but rightfully make war by any means that will tend to bring about an end and restore Peace. Your people may say it only exasperates, widens the breach and all that, But the longer the war lasts the more you must be convinced that we are no better & no worse than People who have gone before us, and that we are simply reenacting History, and that one of the modes of bringing People to reason is to touch their Interests pecuniary or property.

We never harbor women or children–we give employment to men, under the enclosed order. I find no negroes Registered as belonging to Hunton, some in the name of McGhee of which the Engineer is now making a list– I see McClellan says that the negroes once taken shall never again be restored. I say nothing. My opinion is, we execute not make the Law, be it of Congress or War. But it is Manifest that if you wont go into a United States District Court and sue for the recovery of your slave property You can never Get it, out of adverse hands. No U.S. Court would allow you to sue for the recovery of a slave under the Fugitive Slave Law. unless you acknowledge allegiance. Believing this honesty, so I must act. though personally I feel strong frindship as ever, for very many in the South With Great Respect Your friend

W. T. Sherman

Chicago Citations

Bibliography entry:

Sherman, William T. Letter to Thomas Hunton, August 24, 1862. Vol. 3, 51–53, Letters Sent, W. T. Sherman Papers, Generals' Papers and Books, ser. 159, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

William T. Sherman to Thomas Hunton, August 24, 1862, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/shermn.htm.

Shortened citation:

Sherman to Hunton, August 24, 1862.

PRIMARY SOURCE P14.20

Our Women and the War

Winslow Homer · Harper's Weekly, September 6, 1862

TOC FIT	Chapter 14 · Essay prompt 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A magazine illustration celebrates women's new wartime roles while framing them as feminine service.
TREATMENT	Public-domain image

Historical Context

Winslow Homer (1836–1910), later one of America's leading painters, worked as an illustrator for *Harper's Weekly* during the war.

This full-page engraving shows northern women in several wartime roles: nursing wounded soldiers, writing letters for them, and packing supplies for the Sanitary Commission. It celebrated women's contributions as acts of patriotic, motherly care.

Editorial note: Image reproduced from the Smithsonian American Art Museum copy (via Wikimedia Commons). The engraving is a work of patriotic illustration.

Primary Source Image

Winslow Homer, "Our Women and the War," *Harper's Weekly*, September 6, 1862. Smithsonian American Art Museum.

Chicago Citations

Bibliography entry:

Homer, Winslow. "Our Women and the War." Wood engraving. *Harper's Weekly*, September 6, 1862. Smithsonian American Art Museum, 1996.63.120.

Footnote citation:

Winslow Homer, "Our Women and the War," wood engraving, *Harper's Weekly*, September 6, 1862, Smithsonian American Art Museum, https://americanart.si.edu/artwork/our-women-and-war-harpers-weekly-september-6-1862-37064.

Shortened citation:

Homer, "Our Women and the War."

PRIMARY SOURCE P14.21

The Twenty Negro Law

Confederate Congress · October 11, 1862

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.3 (Who Fought, and Why?)
WHY HERE	The exemption favored large slaveholders and fueled class resentment among Confederate soldiers.
TREATMENT	Full public-domain text (provision)

Historical Context

The Confederacy passed the first national conscription law in American history in April 1862. An amendment that October exempted one white man on each plantation with twenty or more enslaved people, to supervise them.

The provision protected the plantation order but outraged non-slaveholding soldiers and their families, who called the conflict "a rich man's war and a poor man's fight."

Editorial note: The text follows the Teaching American History transcription from the *Public Laws of the Confederate States*; the opening ellipsis is the transcriber's.

Document Text

The Congress of the Confederate States of America do enact... to secure the proper police of the country, one person, either as agent, owner or overseer on each plantation on which one white person is required to be kept by the laws or ordinances of any State, and on which there is no white male adult not liable to do military service, and in States having no such law, one person as agent, owner or overseer, on each plantation of twenty negroes, and on which there is no white male adult not liable to military service; And furthermore, For additional police for every twenty negroes on two or more plantations, within five miles of each other, and each having less than twenty negroes, and of which there is no white male adult not liable to military duty, one person, being the oldest of the owners or overseers on such plantations;... are hereby exempted from military service in the armies of the Confederate States;... Provided, further, That the exemptions hereinabove enumerated and granted hereby, shall only continue whilst the persons exempted are actually engaged in their respective pursuits or occupations.

Chicago Citations

Bibliography entry:

Confederate States of America, Congress. "An Act to Exempt Certain Persons from Military Duty" (Twenty Negro Law). October 11, 1862. In *Public Laws of the Confederate States of America*. Richmond, 1862. Teaching American History.

Footnote citation:

Twenty Negro Law, October 11, 1862, via Teaching American History, https://teachingamericanhistory.org/document/the-twenty-negro-law/.

Shortened citation:

Twenty Negro Law.

PRIMARY SOURCE P14.22

Hospital Sketches (excerpt)

Louisa May Alcott · 1863 (Boston: James Redpath)

TOC FIT	Chapter 14 · Essay prompt 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A northern woman describes taking up public work as a nurse, and how brief her service turned out to be.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Louisa May Alcott (1832–1888) volunteered as a nurse in December 1862 and was assigned to the Union Hotel Hospital in Georgetown, which received wounded men from the battle of Fredericksburg. She caught typhoid pneumonia after six weeks and was sent home.

Her lightly fictionalized account, written in the voice of "Nurse Tribulation Periwinkle," appeared in a Boston newspaper and then as a book in 1863. It made her name as a writer, five years before *Little Women*.

Editorial note: Alcott's account is lightly fictionalized. The text follows the Project Gutenberg edition; stray printed page numbers have been removed.

Document Text

[. . .]

"Old Trib, you're a trump!"

"Thank you; then I'll take something:" which I did, in the shape of dinner, reeling off my news at the rate of three dozen words to a mouthful; and as every one else talked equally fast, and all together, the scene was most inspiring.

As boys going to sea immediately become nautical in speech, walk as if they already had their "sea legs" on, and shiver their timbers on all possible occasions, so I turned military at once, called my dinner my rations, saluted all new comers, and ordered a dress parade that very afternoon. Having reviewed every rag I possessed, I detailed some for picket duty while airing over the fence; some to the sanitary influences of the wash-tub; others to mount guard in the trunk; while the weak and wounded went to the Work-basket Hospital, to be made ready for active service again. To this squad I devoted myself for a week; but all was done, and I had time to get powerfully impatient before the letter came. It did arrive however, and brought a disappointment along with its good will and friendliness, for it told me that the place in the Armory Hospital that I supposed I was to take, was already filled, and a much less desirable one at Hurly-burly House was offered instead.

"That's just your luck, Trib. I'll tote your trunk up garret for you again; for of course you won't go," Tom remarked, with the disdainful pity which small boys affect when they get into their teens. I was wavering in my secret soul, but that settled the matter, and I crushed him on the spot with martial brevity—

"It is now one; I shall march at six."

[. . .]

"Miss Blank is jes' wild fer ye, and says fly round right away. They's comin' in, I tell yer, heaps on 'em—one was took out dead, and I see him,—ky! warn't he a goner!"

With which cheerful intelligence the imp scuttled away, singing like a blackbird, and I followed, feeling that Richard was not himself again, and wouldn't be for a long time to come.

The first thing I met was a regiment of the vilest odors that ever assaulted the human nose, and took it by storm. Cologne, with its seven and seventy evil savors, was a posy-bed to it; and the worst of this affliction was, every one had assured me that it was a chronic weakness of all hospitals, and I must bear it. I did, armed with lavender water, with which I so besprinkled myself and premises, that, like my friend Sairy, I was soon known among my patients as "the nurse with the bottle." Having been run over by three excited surgeons, bumped against by migratory coal-hods, water-pails, and small boys, nearly scalded by an avalanche of newly-filled tea-pots, and hopelessly entangled in a knot of colored sisters coming to wash, I progressed by slow stages up stairs and down, till the main hall was reached, and I paused to take breath and a survey. There they were! "our brave boys," as the papers justly call them, for cowards could hardly have been so riddled with shot and shell, so torn and shattered, nor have borne suffering for which we have no name, with an uncomplaining fortitude, which made one glad to cherish each as a brother. In they came, some on stretchers, some in men's arms, some feebly staggering along propped on rude crutches, and one lay stark and still with covered face, as a comrade gave his name to be recorded before they carried him away to the dead house. All was hurry and confusion; the hall was full of these wrecks of humanity, for the most exhausted could not reach a bed till duly ticketed and registered; the walls were lined with rows of such as could sit, the floor covered with the more disabled, the steps and door-ways filled with helpers and lookers on; the sound of many feet and voices made that usually quiet hour as noisy as noon; and, in the midst of it all, the matron's motherly face brought more comfort to many a poor soul, than the cordial draughts she administered, or the cheery words that welcomed all, making of the hospital a home.

The sight of several stretchers, each with its legless, armless, or desperately wounded occupant, entering my ward, admonished me that I was there to work, not to wonder or weep; so I corked up my feelings, and returned to the path of duty, which was rather "a hard road to travel" just then. The house had been a hotel before hospitals were needed, and many of the doors still bore their old names; some not so inappropriate as might be imagined, for my ward was in truth a ball-room, if gun-shot wounds could christen it. Forty beds were prepared, many already tenanted by tired men who fell down anywhere, and drowsed till the smell of food roused them. Round the great stove was gathered the dreariest group I ever saw—ragged, gaunt and pale, mud to the knees, with bloody bandages untouched since put on days before; many bundled up in blankets, coats being lost or useless; and all wearing that disheartened look which proclaimed defeat, more plainly than any telegram of the Burnside blunder. I pitied them so much, I dared not speak to them, though, remembering all they had been through since the rout at Fredericksburg, I yearned to serve the dreariest of them all. Presently, Miss Blank tore me from my refuge behind piles of one-sleeved shirts, odd socks, bandages and lint; put basin, sponge, towels, and a block of brown soap into my hands, with these appalling directions:

"Come, my dear, begin to wash as fast as you can. Tell them to take off socks, coats and shirts, scrub them well, put on clean shirts, and the attendants will finish them off, and lay them in bed."

[. . .]

Chicago Citations

Bibliography entry:

Alcott, Louisa May. *Hospital Sketches*. Boston: James Redpath, 1863. Project Gutenberg eBook #3837.

Footnote citation:

Louisa May Alcott, *Hospital Sketches* (Boston: James Redpath, 1863), chaps. 2–3, Project Gutenberg eBook #3837.

Shortened citation:

Alcott, *Hospital Sketches*, chap. [number].

PRIMARY SOURCE P14.23

The Emancipation Proclamation

Abraham Lincoln · January 1, 1863

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?), 14.2 (Who Freed the Enslaved?), and 14.4 (Was It a Total War?)
WHY HERE	The proclamation turned the war for the Union into a war against slavery, within careful legal limits.
TREATMENT	Full public-domain text

Historical Context

On September 22, 1862, five days after the battle of Antietam, Lincoln issued a preliminary proclamation warning that enslaved people in any state still in rebellion on January 1, 1863, would be declared free.

The final proclamation, issued on New Year's Day, quotes the preliminary one, lists the states and parts of states where it applied, and declares the enslaved people there "henceforward shall be free." It exempted the loyal border states and Union-occupied areas, and it authorized the enlistment of Black men in the army and navy.

Editorial note: The Norton collection lists this document as the preliminary proclamation of September 22, 1862, but its text is the final proclamation of January 1, 1863, which quotes the preliminary one. The text follows the American Presidency Project. The plan's separate listing of this proclamation is printed here as one entry.

Document Text

By the President of the United States of America
A Proclamation

Whereas on the 22d day of September, A.D. 1862, a proclamation was issued by the President of the United States. containing, among other things, the following, to wit:

"That on the 1st day of January, A.D. 1863, all persons held as slaves within any State or designated part of a State the people whereof shall then be in rebellion against the United States shall be then, thenceforward, and forever free; and the executive government of the United States, including the military and naval authority thereof, will recognize and maintain the freedom of such persons and will do no act or acts to repress such persons, or any of them, in any efforts they may make for their actual freedom.

"That the Executive will on the 1st day of January aforesaid, by proclamation, designate the States and parts of States, if any, in which the people thereof, respectively, shall then be in rebellion against the United States; and the fact that any State or the people thereof shall on that day be in good faith represented in the Congress of the United States by members chosen thereto at elections wherein a majority of the qualified voters of such States shall have participated shall, in the absence of strong countervailing testimony, be deemed conclusive evidence that such State and the people thereof are not then in rebellion against the United States."

Now, therefore, I, Abraham Lincoln, President of the United States, by virtue of the power in me vested as Commander in Chief of the Army and Navy of the United States in time of actual armed rebellion against the authority and Government of the United States, and as a fit and necessary war measure for suppressing said rebellion, do, on this 1st day of January, A.D. 1863, and in accordance with my purpose so to do, publicly proclaimed for the full period of one hundred days from the day first above mentioned, order and designate as the States and parts of States wherein the people thereof, respectively, are this day in rebellion against the United States the following, to wit:

Arkansas, Texas, Louisiana (except the parishes of St. Bernard, Plaquemines, Jefferson, St. John, St. Charles, St. James, Ascension, Assumption, Terrebonne, Lafourche, St. Mary, St. Martin, and Orleans, including the city of New Orleans), Mississippi, Alabama, Florida, Georgia, South Carolina, North Carolina, and Virginia (except the forty-eight counties designated as West Virginia, and also the counties of Berkeley, Accomac, Northampton, Elizabeth City, York, Princess Anne, and Norfolk, including the cities of Norfolk and Portsmouth), and which excepted parts are for the present left precisely as if this proclamation were not issued.

And by virtue of the power and for the purpose aforesaid, I do order and declare that all persons held as slaves within said designated States and parts of States are and henceforward shall be free, and that the executive government of the United States, including the military and naval authorities thereof, will recognize and maintain the freedom of said persons.

And I hereby enjoin upon the people so declared to be free to abstain from all violence, unless in necessary self-defense; and I recommend to them that in all cases when allowed they labor faithfully for reasonable wages.

And I further declare and make known that such persons of suitable condition will be received into the armed service of the United States to garrison forts, positions, stations, and other places and to man vessels of all sorts in said service.

And upon this act, sincerely believed to be an act of justice, warranted by the Constitution upon military necessity, I invoke the considerate judgment of mankind and the gracious favor of Almighty God.

In witness whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this 1st day of January, A.D. 1863, and of the Independence of the United States of America the eighty-seventh.

ABRAHAM LINCOLN.

By the President:

WILLIAM H. SEWARD, Secretary of State.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. "Proclamation 95—Regarding the Status of Slaves in States Engaged in Rebellion Against the United States [Emancipation Proclamation]." January 1, 1863. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Abraham Lincoln, Emancipation Proclamation, January 1, 1863, American Presidency Project, https://www.presidency.ucsb.edu/documents/proclamation-95-regarding-the-status-slaves-states-engaged-rebellion-against-the-united.

Shortened citation:

Lincoln, Emancipation Proclamation.

PRIMARY SOURCE P14.24

Diary of Nancy Emerson (excerpts)

Nancy Emerson · Augusta County, Virginia, 1862–1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?), 14.4 (Was It a Total War?), and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A Confederate woman records Union raiders taking supplies and enslaved men while leaving the women unharmed.
TREATMENT	Public-domain text, selected entries

Historical Context

Nancy Emerson (1807–1890), born in New Hampshire, lived with her brother's family in Augusta County in Virginia's Shenandoah Valley and sided strongly with the Confederacy.

Her diary records the Emancipation Proclamation's arrival, inflation and scarcity, and the Union raid of June 1864, when soldiers under General David Hunter took food, clothing, horses, and enslaved men and burned mills and the Virginia Military Institute in nearby Lexington.

Editorial note: The text follows the Valley of the Shadow transcription, which preserves original spelling and punctuation.

Document Text

[. . .]

January 8, 1863

Jan. 8,

The first of Jan has come & gone, & Lincoln's proclamation has brought no desolation. What awful disappointment will be experienced by our friends the abolitionists. Never was a more quiet and orderly Christmas & New Years. Even Sister C. who is so illeg. timid, forgot to be afraid! I do not forget it, but a little circumstance may show how much I was terrified. Bro. L. having been to Charlottesville, Cousin S went to S. for him, & did not get home till late. I sat up for them, and having occasion to visit my chambers, went repeatedly in the dark, & near midnight. Indeed, never since have I been in this state have I felt any reluctance to visiting any part of the house in the dark either here or in Highland.

This whole agitation about slavery wh. has prevailed at the S. these years, is the most monstrous humbug ever got up since the flood. I am if possible a thousand times better satisfied of the propriety of slavery than I was before the war. I believe this violent abolition spirit grows out of attempting to be wise above what is written, & it shows itself out where it is carried out, by leading those possessed with it to throw away the bible. It is my full belief that the infatuation which has precipitated the North into this war, is a judgment from God upon them for their deep declension from him manifested among other ways by their fanaticism and every other ism. The fear of the Lord had so nearly [unclear: ford where] the land, as there is season to fear & therefore this whirlwind had suffered to burst upon them. It has spent much of its force upon us thus far, but if this is the end of the matter, I have miscalculated this eclipse altogether. Both nations may have to make a long sojurn in the wilderness before they reach the land of Canaan.

March 6, 1863

[. . .]

July 13,

They told us that Crook's men were a great deal worse than they, & that was true, but they were bad enough & worse at some other places than with us. At one of our neighbors, Mr. H. they took every thing they had to eat, all the pillow cases & sheets but what were on the beds, & the towels & some of the ladies stockings. One of them made up a bundle of ladies clothing to take, but his comrade shamed him out of it. They then poured out their molasses, scattered their preserves & sugar & other things about the floor, & mixed them all together & destroyed things generally The ladies there are very amiable & genteel in their appearance which makes it the more strange. Their visitors as well as ours however had taken a drop too much. This gentleman had kept some things for sale of late, had a quantity of tobacco & some other things on hand, all which they took to the amount of several thousand dollars.

At another neighbors, they took all of their meat (some 30 pieces of bacon) & nearly everything else they had to eat, all their horses (4) & persuaded off their two negro men. One of these was afterwards seen by one of our men crying to come back, but was watched so closely that he could not escape. No wonder he cried. He has been twice on the brink of the grave with pneumonia, & was nursed by his mistress as tenderly as if he had been a brother, & she was always kind to him, his master also. He will not find such treatment anywhere else The Yankees (I give them this appellation because every body else does) took off all the negro men & boys they could, as well as all the horses, told the women they would take them next time they came. Many sent their horses to the woods. Some of these were found & captured. People here do their farming with horses instead of oxen, & it is an immense loss to have them & the servants swept off to such an extent, just as harvest is about to begin too. Many sent off their servants in one direction & another, some of whom were overtaken & captured & others escaped.

The lady before mentioned has told me since that no tongue can tell her feelings the day the Yankees were there. In the first place, they fired on her little son & another boy several times, as they sat on the fence watching their approach, & afterwards pretended that they took them for confederate soldiers from their being dressed in gray. Then her husband & oldest son were hid in the bushes in the garden, & she was in momentary fear of their being discovered & fired upon. The men & boys always kept out of the way, as they were sometimes taken off, & did not know what treatment they might receive, & thus the women were left to shift for themselves as best they could. Another of our neighbors was fired upon several times until he either dropped or lay down, it was not known which. They said it was because he ran, but he was passing between their pickets & ours, who were firing at each other, & was obliged to run. We heard of the circumstance, & were very uneasy, but he providentially escaped injury. They always fire upon those who run from them.

[. . .]

A lady near Staunton a little time since had two Yankee officers come to take tea with her. She was strong "secesh," but she got them a good supper. It was served up in very plain dishes. They perceived that she was wealthy, & inquired if she had not hid her plate &c. She told them she had. They asked where. She told them in the ash heap. They said "That is not a good place. It is the first place searched." They then very kindly & politely showed her a good place (in their opinion) She followed their advice & saved her things. In another instance, some Yankee officers politely showed a lady where to hide her her illeg. silver &c. The soldiers came & searched in vain. Just as they were going away, a little black chap who had followed them around says to them in a tone of triumph, "Ah you did not find Missis things hid inside the _____" They went & found & took them.

Very early on the morning of June 7th, knowing that the Yankees were coming (the night had been mostly spent in preparing for them) Br. L had taken Eva & John, the horse & rockaway, & started out he knew not whither exactly, perhaps to Eastern Va. He wanted to be guided by circumstances. We had been in a great quandry as to what course was best for him to pursue. If he went abroad, he might fall into the hands of the Yankees. If he staid at home, they would probably take him, having such a spite against preachers & especially as he has written & spoken so freely, that his sentiments are generally known. They might insist upon [5]

[. . .]

Chicago Citations

Bibliography entry:

Emerson, Nancy. Diary, 1862–1864. Augusta County Diaries. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Nancy Emerson, diary, [date], The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/diaries/EmeDiar.

Shortened citation:

Emerson, diary, [date].

PRIMARY SOURCE P14.25

"Rejoicing over the Proclamation" (excerpt)

The Independent (New York) · January 1863

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Reports of the celebrations show how Americans credited Lincoln while expecting Union victories to finish the work.
TREATMENT	Public-domain text, selected excerpts

Historical Context

On January 1, 1863, Black and white abolitionists gathered in churches and halls across the North and in Union-held areas of the South to await news that Lincoln had signed the Emancipation Proclamation.

The Independent, a leading antislavery weekly, gathered reports of the celebrations, including meetings with addresses by the Black abolitionist William Wells Brown and editor Theodore Tilton under the banner "The year of jubilee has come."

Editorial note: The text follows the American Battlefield Trust transcription.

Document Text

[. . .]

“The year of jubilee has come.”

And addresses were made by William Wells Brown, Theodore Tilton, and Rev. R.M. Hatfield. The platform was decorated with American flags, and across the stage was suspended a banner bearing the following inscriptions: “Our country and the day we celebrate;” “Emancipation in 1827, New York state;” “Emancipation in 1834, in the British West Indies.” In the center was the figure of a slave bearing the British flag, and another just relieved of his shackles. On either side was a representation of Wilberforce and Clarkson. In front of the gallery occupied by the choir, the following Scriptural quotation was displayed: “Inasmuch as ye do it unto the least of these my little ones, ye do it unto me.”

In Rochester, commemorative exercises were held on Sunday of a religious character. After prayer and singing, addresses were made by A.M. Powell of Ghent, N.Y., G.B. Stebbins of Rochester, and others. The gathering was large, and the enthusiasm deep and earnest.

At Orange, N.J., many of the private dwellings were illuminated, including the residence of Rev. George B. Deacon, pastor of the Congregational church.

In Boston, on New Year’s Day appropriate exercises were held in anticipation of the Proclamation. A jubilee concert was given in the afternoon at which Josiah Quincy, Jr., presided and made a speech, and Ralph Waldo Emerson read an original poem. After vocal and instrumental music, according to the program, Dr. O.W. Holmes’ army hymn was sung, with the following stanza added by the author, to make it suitable for the occasion:

No more its flaming emblems wave/ To bar from hope the trembling slave; No more its radiant glories shine/ To blast with woe a child of Thine!

At Tremont Temple a meeting was held, continuing throughout the day and evening. Wm. C. Nell presided. Addresses were made by Rev. Dr. Kirk, Dr. J. B. Smith, William Wells Brown, Rev. James Freeman Clarke, Frederick Douglass, Miss Annie E. Dickinson, and several others. In the evening when the Proclamation came to hand, Charles W. Slack read it to the audience, who received it with uproarious applause, shouting, tossing up

their hats, rapping on the floor with their canes, and singing “Blow ye the trumpet, blow.” Rev. Mr. Waterston offered a prayer which touched all hearts. Then followed shouts of “Glory to God in the highest;” and “Hallelujah!” After the meeting was dismissed, many of the audience went to the Twelfth Street Baptist Church, which had been opened during the evening, where a large congregation had assembled to wait for the Proclamation.

In Worcester, Washburn Hall threw open its doors to a rejoicing audience, and a spirited meeting was held; addressed by Rev. Messrs. Smith, Richardson, Whitney, and Brown.

At Chicago, as our Western correspondent “P” reports, the colored people celebrated the gladsome New Year’s Day with appropriate public festivities – feeling sure of the coming of the Proclamation, before it was issued.

At Washington, a great flock of contraband – men, women and children assembled at the headquarters of Superintendent Nichols, and engaged in a variety of congratulatory exercises. They sang the “Negro Boatman’s Song” with a volume of voice that could be heard miles off. An old man arose and said, “I’m free now the Lord Jesus has made me free!” then followed the song, “Let my people go” – sung with a thrilling effect, and another, “There will be no more taskmasters.” A colored preacher, familiarly called John the Baptist, and other speakers occupied the afternoon with addresses, interspersed with hymns. At seven in the evening, a bell-man, rang a bell, calling the people together for the reading of the Proclamation. After the reassembling prayer was offered by an aged contraband in these words:

“We ‘seech thee, O Lord! To ‘member the Union army, support dem on de right and left to carry on by work. Go before dem like a burning lamp. ‘Member de President, de sea sailors and land trabbelers; ‘member me, de meanest of dem all. Write us a ticket, and give us free admission to heaven. Amen.”

During the reading of the Proclamation, explanations were made showing the different portions of Virginia in which Freedom was declared when many of the contrabands recognizing their native counties, cried out, “That’s me,” “I’m free,” “That means this child,” “Bless de Lord for that.” The remainder of the evening was spent in exhortations, prayers, hymns, joyful exclamations, and blessings on Mr. Lincoln. It was a scene never to be forgotten by any who witnessed it.

In South Carolina, at Beaufort, a celebration of the negroes was held in a live-oak grove, Gen. Saxton, Chaplain French, Col. Higginson, Mrs. Frances D. Gage (The Independent’s correspondent,) and others, in addition to the colored people, took part in the exercises. A set of colors, the gift of Dr. Cheever’s church of New York, was presented to the negro brigade. A barbeque followed, consisting of twelve roasted oxen. The health of the President was drunk in molasses and water by the humble people whom he so greatly blest.

One hundred guns were bred on Boston Common, in Albany, Pittsburg, and other cities throughout the North, and far to the West, in San Francisco – whither the joyful news was flashed over the wires, reaching an expectant people as soon as in those cities which stand as nearer neighbors to Washington.

In addition to the above, many other demonstrations were made, in various Northern cities, of which we have no room here to make chronicle; nor have space for mentioning any of the innumerable references to the Great Event which were made in the Churches on the first Sunday of the year. The only regret which mingles with the general joy is for the omissions which the President thought prudent to make. But the conviction already prevails that, if Providence shall now give victories to our arms, the entire system of American Slavery will be speedily extinct – cleansed like a stain from the face of the land! God hasten the hour!

Chicago Citations

Bibliography entry:

"Rejoicing over the Proclamation." *The Independent* (New York), January 1863. American Battlefield Trust.

Footnote citation:

"Rejoicing over the Proclamation," *The Independent*, January 1863, American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/rejoicing-over-proclamation.

Shortened citation:

"Rejoicing over the Proclamation."

PRIMARY SOURCE P14.26

The Union View and the Confederate View of the Emancipation Proclamation

Thomas Nast (Harper's Weekly, January 24, 1863); Adalbert J. Volck (Confederate War Etchings, c. 1863)

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Two artists on opposite sides picture the proclamation as liberation and as tyranny.
TREATMENT	Public-domain images

Historical Context

Thomas Nast (1840–1902), a German-born artist for *Harper's Weekly*, drew "The Emancipation of the Negroes, January, 1863—The Past and the Future," contrasting scenes of slavery's cruelties with an imagined future of free Black family life.

Adalbert J. Volck (1828–1912), a Baltimore dentist with Confederate sympathies, secretly published etchings attacking the Union. In "Writing the Emancipation Proclamation" he shows Lincoln drafting the document with his foot on the Constitution, surrounded by demonic images.

Editorial note: Images reproduced from the Library of Congress (Nast) and the Metropolitan Museum of Art (Volck), via Wikimedia Commons. Both are arguments by their creators.

Primary Source Image

Union view: Thomas Nast, "The Emancipation of the Negroes, January, 1863—The Past and the Future," *Harper's Weekly*. Library of Congress.

Confederate view: Adalbert J. Volck, "Writing the Emancipation Proclamation," *Confederate War Etchings*. Metropolitan Museum of Art.

Chicago Citations

Bibliography entry:

Nast, Thomas. "The Emancipation of the Negroes, January, 1863—The Past and the Future." Wood engraving. *Harper's Weekly*, January 24, 1863. Library of Congress, LCCN 2002695553.

Volck, Adalbert J. "Writing the Emancipation Proclamation." Etching. From *Confederate War Etchings*, c. 1863. Metropolitan Museum of Art.

Footnote citation:

Thomas Nast, "The Emancipation of the Negroes, January, 1863," *Harper's Weekly*, January 24, 1863, Library of Congress, LCCN 2002695553; Adalbert J. Volck, "Writing the Emancipation Proclamation," etching, *Confederate War Etchings*, c. 1863, Metropolitan Museum of Art.

Shortened citation:

Nast, "Emancipation of the Negroes"; Volck, "Writing the Emancipation Proclamation."

PRIMARY SOURCE P14.27

The Copperhead Party—In Favor of a Vigorous Prosecution of Peace!

Unsigned cartoon · 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	A Unionist cartoon brands Peace Democrats as traitors, showing how northern politics shaped the war effort.
TREATMENT	Different-source open substitute (public-domain image)

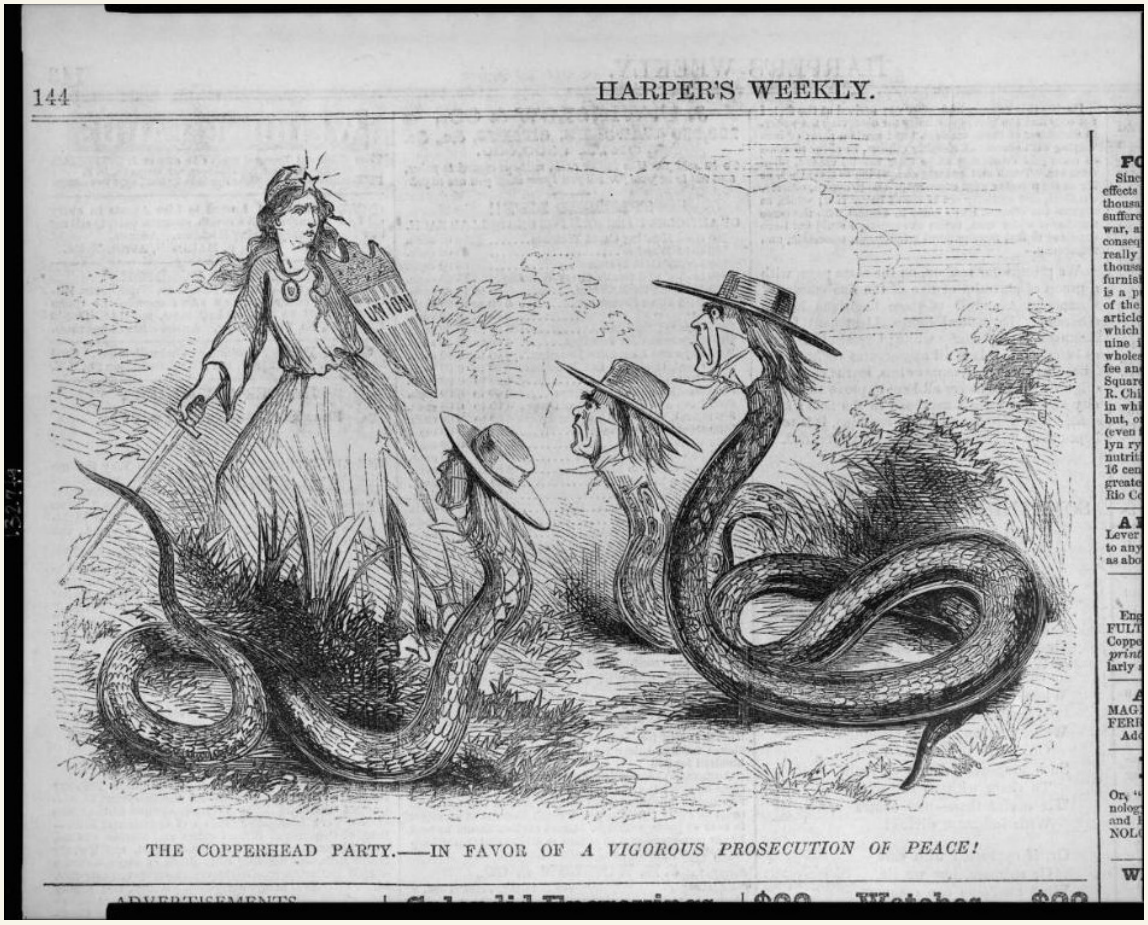
Historical Context

"Copperheads" was the Republicans' name for Peace Democrats, northerners who wanted a negotiated end to the war and opposed emancipation and the draft. Their strength rose with each Union defeat.

This cartoon shows Copperheads as snakes threatening Columbia, the symbol of the Union. Images like it helped Republicans brand their opponents as disloyal during the 1863 and 1864 elections.

Editorial note: The Norton collection's cartoon is an 1864 image not available in an open edition. This reader substitutes a comparable 1863 cartoon on the same subject from the Library of Congress (via Wikimedia Commons).

Primary Source Image



The Copperhead Party—In Favor of a Vigorous Prosecution of Peace! (1863). Library of Congress, Prints and Photographs Division.

Chicago Citations

Bibliography entry:

The Copperhead Party—In Favor of a Vigorous Prosecution of Peace! Wood engraving, 1863. Prints and Photographs Division, Library of Congress, LCCN 2003663007.

Footnote citation:

The Copperhead Party—In Favor of a Vigorous Prosecution of Peace!, wood engraving, 1863, Library of Congress, https://www.loc.gov/pictures/item/2003663007/.

Shortened citation:

The Copperhead Party.

PRIMARY SOURCE P14.28

Salisbury Women to Governor Zebulon B. Vance

Mary C. Moore, for the soldiers' wives of Salisbury · March 21, 1863 (manuscript)

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?), 14.3 (Who Fought, and Why?), and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	Soldiers' wives explain why hunger drove them to seize food, evidence of home-front crisis and protest.
TREATMENT	Manuscript facsimile with transcription, complete letter

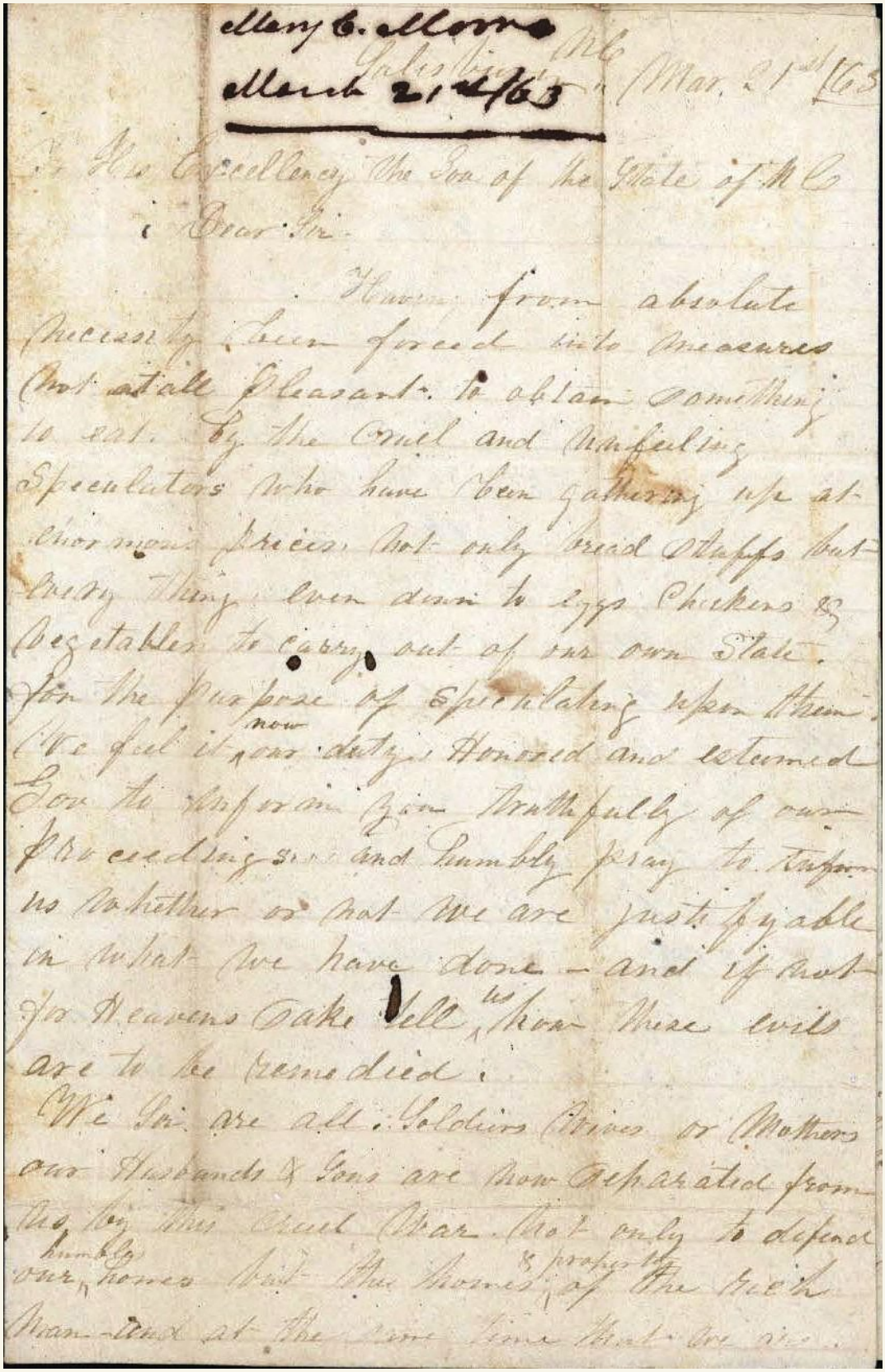
Historical Context

On March 18, 1863, some forty to fifty women, most of them soldiers' wives, marched on merchants in Salisbury, North Carolina, whom they accused of hoarding food. When refused, they forced their way into stores and took flour, salt, molasses, and money.

Three days later they wrote to Governor Vance to explain. They described prices far beyond a soldier's pay, asked whether they had been justified, and begged him to fix fair prices for bread and meat.

Editorial note: The manuscript is reproduced from the State Archives of North Carolina copy supplied by the instructor; a transcription follows the images. The name and date at the top were added later by an archivist.

Document Facsimile



Mary E. Moore
March 21 1863

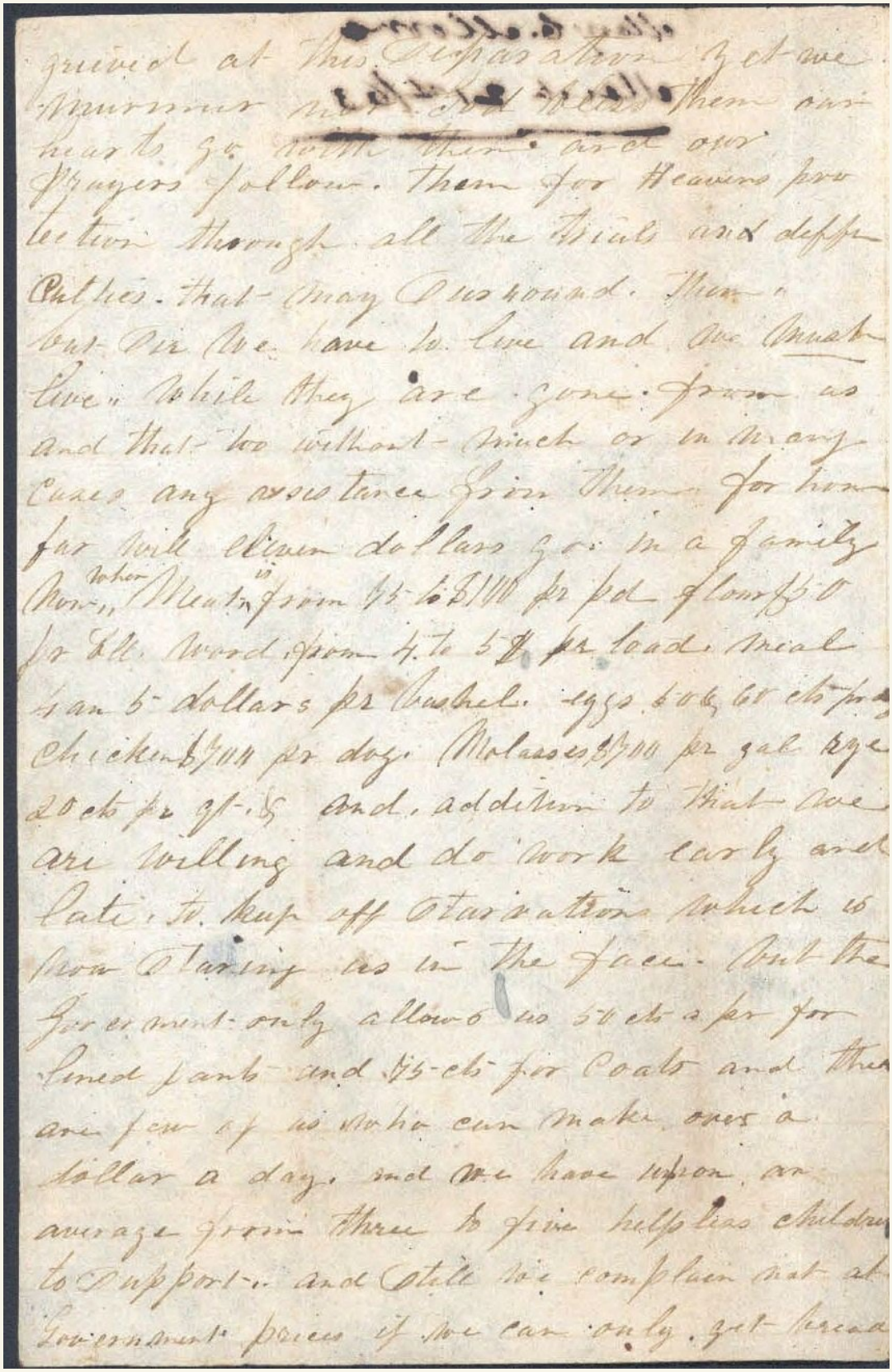
Salisbury NC Mar. 21st 63

To His Excellency The Gov of the State of N C

Dear Sir

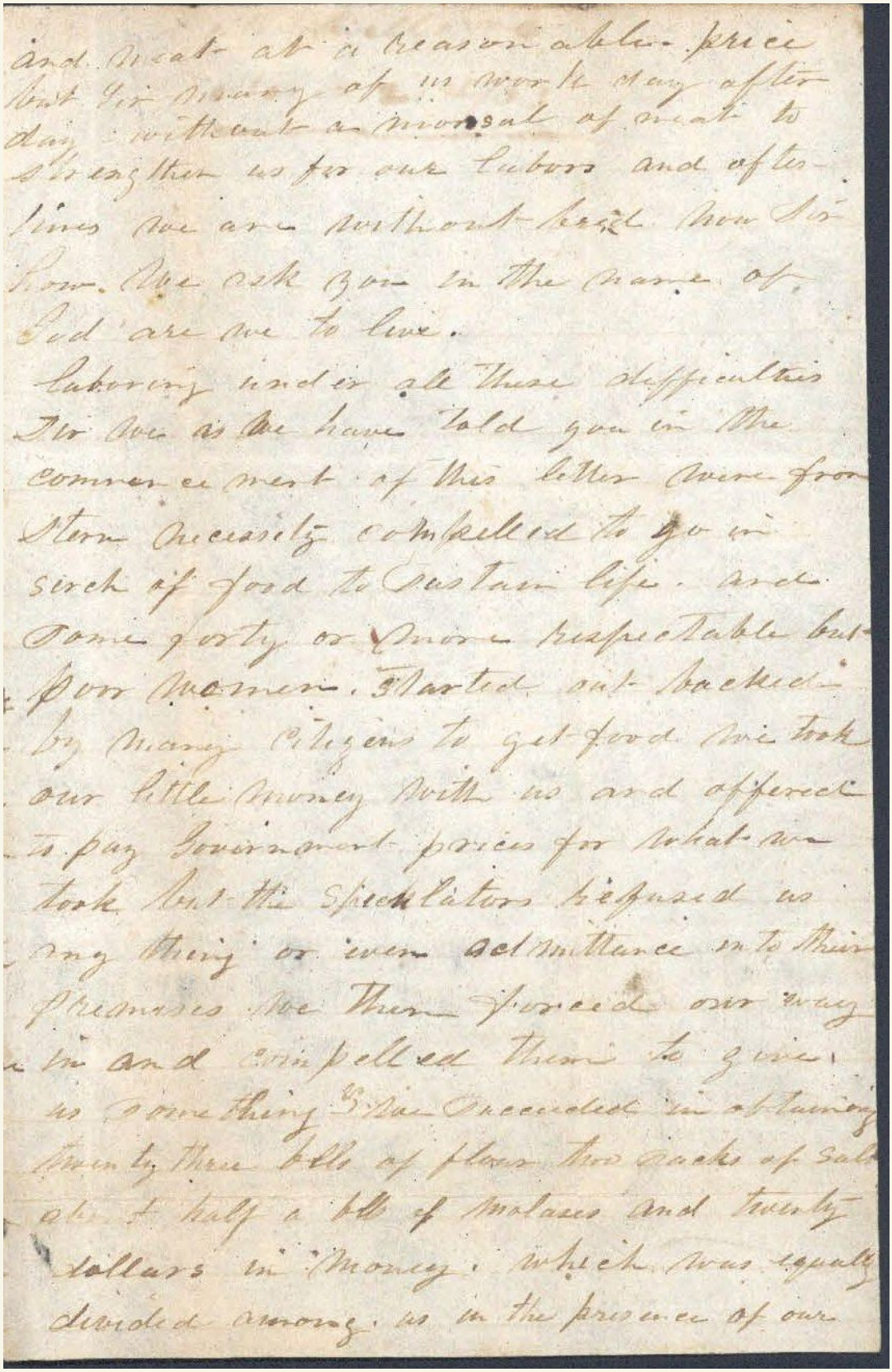
Know from absolute necessity I am forced into measures not at all Pleasant. to obtain something to eat. By the Cruel and unfeeling Speculators who have been gathering up at Enormous prices not only Breadstuffs but every thing even down to Eggs Chickens & Vegetables to carry out of our own State. for the purpose of Speculating upon them. We feel it now our duty, Honored and esteemed Gov to inform you truthfully of our Proceedings and humbly pray to know us whether or not we are just & liable in what we have done — and if not for Heavens Sake tell us, how these evils are to be remedied.

We Sir are all Soldiers Wives or Mothers our Husbands & Sons are now Separated from us by this Cruel War. not only to defend our homes but the homes & protect the Sick Poor — and at the same time that we are



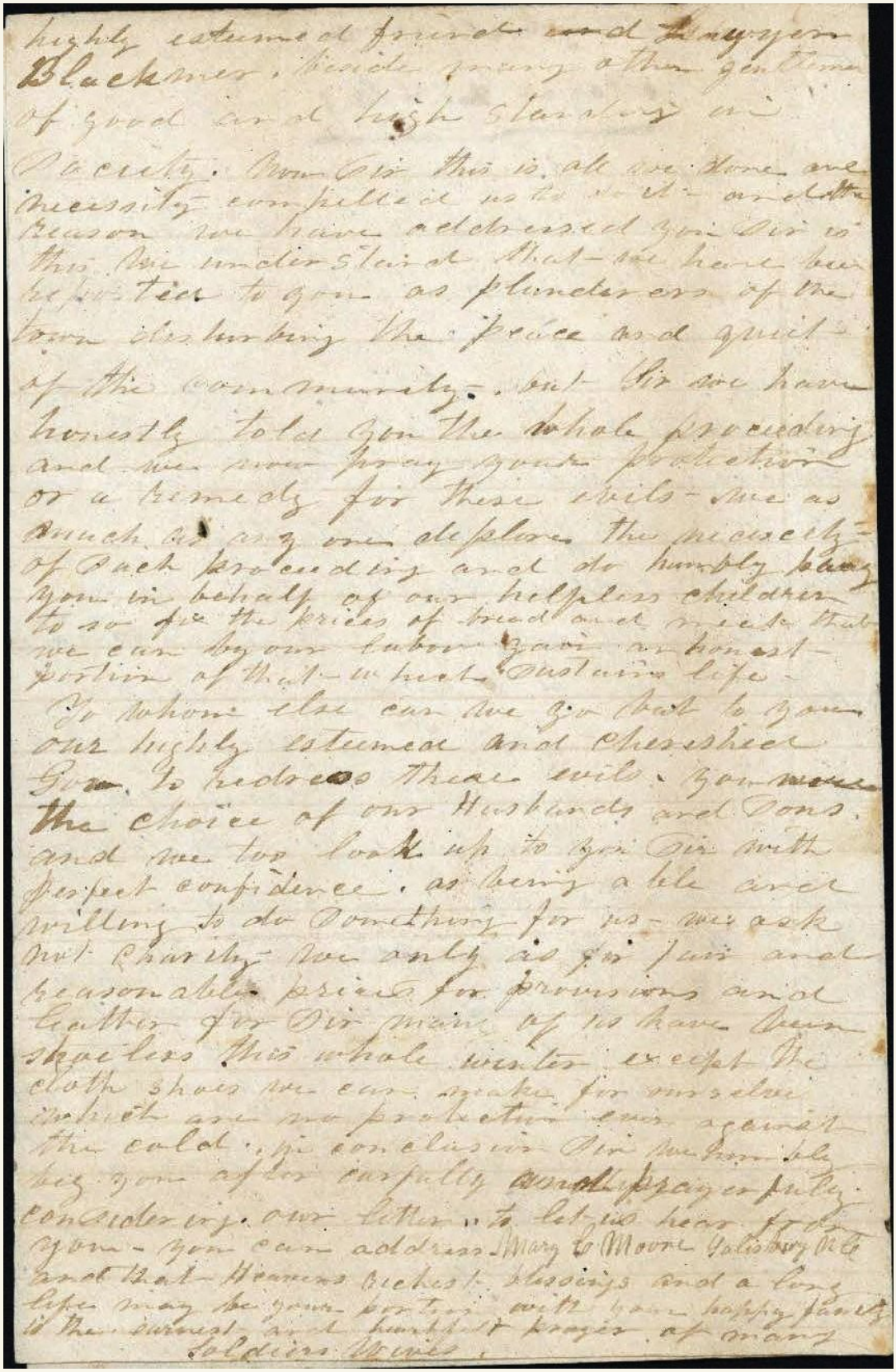
grieved at this Separation & we
Mourners not only Weep them our
hearts go forth their ardent our
Prayers follow them for Heavens pro
tection through all the Trials and deffe
culties that may surround them
but Pity we have to Live and we must
Live while they are gone from us
and that too without much or in many
cases any assistance from them for how
far will eleven dollars go in a family
now, where Meat is from 4 to 5 $ pr pd flour $5 0
pr Bll. Wood from 4 to 5 $ pr load. Meal
is an 5 dollars pr Bushel. eggs 6 & 8 cts pr
Chickens $1 00 pr doz. Molasses $1 00 pr gal Rye
20 cts pr qt. & and, additon to that we
are willing and do work early and
late, to keep off starvation which is
now staring us in the face. But the
Government only allows us 50 cts a pr for
Linsey pants and $1 25 cts for Coats and there
are few of us who can make over a
dollar a day, and we have upon an
average from three to five helpless children
to support. and while we complain not at
Government prices if we can only get bread

Manuscript, page 2.



and meat at a reasonable price
but for many of us work day after
day without a morsal of meat to
strengthen us for our labors and often
times we are without bread. Now Sir
Sir. We ask you in the name of
God are we to live.
laboring under all these difficulties
for we as we have told you in the
commencement of this letter were from
Stern necessity compelled to go in
search of food to sustain life. and
some forty or more respectable but
poor women. started out backed
by many citizens to get food. We took
our little money with us and offered
to pay Government prices for what we
took but the Speculators refused us
any thing or even admittance into their
premises. We then forced our way
in and compelled them to give
us something. We succeeded in obtaining
twenty three bbls of flour two sacks of salt
ab. & half a bbl of molasses and twenty
dollars in money. which was equally
divided among us in the presence of our

Manuscript, page 3.



highly esteemed friends and Lawyers
Blackmer. Beside many other gentlemen
of good and high standing in
Society. Now Sir this is all we Have and
necessity compelled us to do it - and the
reason we have addressed you Sir is
this. We under Stand that we have been
represented to you as plunderers of the
town disturbing the peace and quiet
of the community. but Sir we have
honestly told you the whole proceeding
and we now pray your protection
or a remedy for these evils - we as
much as any one deplore the necessity
of such proceeding and do humbly beg
you in behalf of our helpless children
to so fix the prices of bread and meat that
we can by our labor gain an honest
portion of that - what sustains life -
To whom else can we go but to you
our highly esteemed and cherished
Gov. to redress these evils. You were
the choice of our Husbands and Sons.
and we too look up to you Sir with
perfect confidence. as being able and
willing to do something for us - we ask
not Charity. but only as for Just and
reasonable prices for provisions and
Cotton for Sir many of us have been
shoeless this whole winter. except the
cloth shoes we can make for ourselves
which are no protection our against
the cold. In conclusion Sir we humbly beg
you after carefully and prayerfully
considering our letter. to let us hear from
you - you can address Mary E Moore Salisbury N.C
and that Heavens richest blessings and a long
life may be your portion with your happy family
is the earnest, and humblest prayer of many
Soldiers Wives.

Manuscript, page 4.

Transcription

Transcribed from the manuscript images; original spelling and punctuation retained. [?] marks an uncertain reading.

[Docket, in a different hand and darker ink, across the top of the first page:]
Mary C. Moore
March 21st/63

Salisbury N.C. Mar. 21st/63

To His Excellency The Gov of the State of N C
Dear Sir

Having *[?]* from absolute necessity been forced into measures not at all Pleasant. to obtain something to eat. by the Cruel and unfeeling Speculators who have been gathering up at enormous prices not only bread Stuffs but every thing. even down to eggs Chickens & vegetables to carry out of our own State. for the purpose of Speculating upon them. We feel it ‹now› our duty. Honored and esteemed Gov the *[?]* inform you truthfully of our Proceedings. and humbly pray to inform us whether or not we are justifyable in what we have done – and if not for Heavens Sake tell ‹us› how these evils are to be remedied.

We Sir are all Soldiers Wives or Mothers our Husbands & Sons are now Separated from us by this Cruel War not only to defend our ‹humble› homes but the homes ‹& property› of the rich man and at the same time that we are grieved at this Separation yet we murmur not *[illegible] [illegible]* them our hearts go with them and our Prayers follow. them for Heavens protection through all the trials and difficulties that may surround. them. but Sir we have to live and we must live. While they are gone from us and that too without much or in many cases any assistance from them for how far will eleven dollars go in a family Now ‹when› Meat ‹is› from 75 *[?]* to $1.00 *[?]* pr pd flour $50 pr bbl. wood from 4 to 5$ pr load. meal 4 an 5 dollars pr bushel. eggs 50 to *[?]* 60 cts pr doz Chickens $7.00 *[?]* pr doz. Molasses $7.00 *[?]* pr gal rye 20 cts pr qt. & and addition to that we are willing and do work early and late to keep off Starvation which is now Staring us in the face. But the Government only allows us 50 cts a pr for lined pants and 75 cts for Coats and there are few of us who can make over a dollar a day. and we have upon an average from three to five helpless children to support. and still we complain not at Government prices if we can only get bread and meat at a reasonable price but Sir many of us work day after day without a morsel of meat to strengthen us for our labors and oftertimes *[?]* we are without bread now Sir how. We ask you in the name of God are we to live.

Laboring under all these difficulties Sir we as we have told you in the commencement of this letter were from Stern necessity compelled to go in sirch of food to sustain life. and Some forty or more respectable but poor women. Started out backed by many Citizens to get food we took our little money with us and offered to pay Government prices for what we took but the Speculators refused us any thing or even admittance into their premises we then forced our way in and compelled them to give us something & *[?]* we succeeded in obtaining twenty three bbls of flour two sacks of salt about half a bbl of molasses and twenty dollars in money. which was equally divided among us in the presence of our highly esteemed friend and Lawyer Blackmer. beside many other gentlemen of good and high standing in Society. Now Sir this is. all we done we *[?]* necessity compelled us to do it – and the reason we have addressed you Sir is this. we understand that we have been reported to you as plunderers of the town disturbing the peace and quiet of the community. but Sir we have honestly told you the whole proceeding and we now pray your protection or a remedy for these evils – we as much as any one deplore the necessity of such proceeding and do humbly beg you in behalf of our helpless children to so fix the prices of bread and meat that we can by our labor gain an honest portion of that which sustains life.

To whom else can we go but to you our highly esteemed and cherished Gov. to redress these evils. you were the choice of our Husbands and Sons. and we too look up to you Sir with perfect confidence. as being able and willing

to do something for us – we ask not Charity we only as *[?]* for just and reasonable prices for provisions and leather for Sir many of us have been shoeless this whole winter except the cloth shoes we can make for ourselves which are no protection even against the cold. in conclusion Sir we humbly beg you after carefully and prayerfully considering our letter. to let us hear from you – you can address Mary C Moore Salisbury N C and that Heavens richest blessings and a long life may be your portion with your happy family is the earnest and heartfelt prayer of many

Soldiers Wives.

Chicago Citations

Bibliography entry:

Moore, Mary C. Letter to Governor Zebulon B. Vance, March 21, 1863. Governor's Papers, Zebulon B. Vance, State Archives of North Carolina.

Footnote citation:

Mary C. Moore to Zebulon B. Vance, March 21, 1863, Governor's Papers, State Archives of North Carolina, https://digital.ncdcr.gov/Documents/Detail/letter-salisbury-women-to-zebulon-b.-vance-march-21-1863/578376.

Shortened citation:

Moore to Vance, March 21, 1863.

PRIMARY SOURCE P14.29

Why Should a Colored Man Enlist?

Frederick Douglass · Douglass' Monthly, April 1863

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.3 (Who Fought, and Why?)
WHY HERE	Douglass urges Black men to enlist to win freedom and citizenship by their own action.
TREATMENT	Full public-domain text

Historical Context

After the Emancipation Proclamation authorized Black enlistment, Massachusetts raised the 54th Regiment, the first Black regiment recruited in the North. Frederick Douglass worked as a recruiter, and two of his sons enlisted.

Many Black men asked why they should fight for a government that denied them equal pay and the chance to become officers. Douglass answered in this editorial with a list of reasons, arguing that service would win citizenship and destroy slavery.

Editorial note: The text follows the Teaching American History transcription.

Document Text

[. . .]

This question has been repeatedly put to us while raising men for the 54th Massachusetts regiment during the past five weeks, and perhaps we cannot at present do a better service to the cause of our people or to the cause of the country than by giving a few of the many reasons why a colored man should enlist.

First. You are a man, although a colored man. If you were only a horse or an ox, incapable of deciding whether the rebels are right or wrong, you would have no responsibility, and might like a horse or an ox go on eating your corn or grass, in total indifference, as to which side is victorious or vanquished in this conflict. You are however not horse, and no ox, but a man, and whatever concerns man should interest you. He who looks upon a conflict between right and wrong, and does not help the right against the wrong, despises and insults his own nature, and invites the contempt of mankind. As between the North and South, the North is clearly on the right side and the South is flagrantly in the wrong. You should therefore, simply as a matter of right and wrong, give your utmost aid to the North. In presence of such a contest there is not neutrality for any man. You are either for the Government or against the Government. Manhood requires you to take sides, and you are mean or noble according to how you choose between action and inaction. — If you are sound in body and mind, there is nothing in your color to excuse you from enlisting in the service of the republic against its enemies. If color should not be a criterion of rights, neither should it be a standard of duty. The whole duty of a man, belongs alike to white and black.

“A man’s a man for a’ that.”Second. You are however, not only a man, but an American citizen, so declared by the highest legal advisor of the Government, and you have hitherto expressed in various ways, not only your willingness but your earnest desire to fulfill any and every obligation which the relation of citizenship imposes. Indeed, you have hitherto felt wronged and slighted, because while white men of all other nations have been freely enrolled to serve the country, you are a native born citizen and have been coldly denied the honor of aiding in defense of the land of your birth. The injustice thus done to you is now repented of by the Government and you are welcomed to a place in the army of the nation. Should you refuse to enlist now, you will justify the past contempt of the Government towards you and lead it to regret having honored you with a call to take up arms in its defense. You cannot but see that here is a good reason why you should promptly enlist.

Third. A third reason why a colored man should enlist is found in the fact that every Negro-hated and slavery-lover in the land regards the arming of Negroes as a calamity and is doing its best to prevent it. Even now all the weapons of malice, in the shape of slander and ridicule, are used to defeat the filling up of the 54th Massachusetts (colored) regiment. In nine cases out of ten, you will find it safe to do just what your enemy would gladly have you leave undone. What helps you hurts him. Find out what he does not want and give him a plenty of it.

Fourth. You should enlist to learn the use of arms, to become familiar with the means of securing, protecting and defending your own liberty. A day may come when men shall learn war no more, when justice shall be so clearly apprehended, so universally practiced, and humanity shall be so profoundly loved and respected, that war and bloodshed shall be confined only to beasts of prey. Manifestly however, that time has not yet come, and while all men should labor to hasten its coming, by the cultivation of all the elements conducive to peace, it is plain that for the present no race of men can depend wholly upon moral means the maintenance of their rights. Men must either be governed by love or by fear. They must love to do right or fear to do wrong. The only way open to any race to make their rights respected is to learn how to defend them. When it is seen that black men no more than white men can be enslaved with impunity, men will be less inclined to enslave and oppress them. Enlist, therefore, that you may learn the art and assert the ability to defend yourself and your race.

Fifth. You are a member of a long enslaved and despised race. Men have set down your submission to Slavery and insult, to a lack of manly courage. They point to this fact as demonstrating your fitness only to be a servile class. You should enlist and disprove the slander, and wipe out the reproach. When you shall be seen nobly defending the liberties of you own country against rebels and traitors — brass itself will blush to use such arguments imputing cowardice against you.

Sixth. Whether you are or are not, entitled to all the rights of citizenship in this country has long been a matter of dispute to your prejudice. By enlisting in the service of your country at this trial hour, and upholding the National Flag, you stop the mouths of traducers and win applause even from the lips of ingratitude. Enlist and you will make this your country in common with all other men born in the country or out of it.

Seventh. Enlist for your own sake. Decried and decried as you have been and still are, you need an act of this kind by which to recover your own self-respect. You have to some extent rated your value by the estimate of your enemies and hence have counted yourself less than you are. You owe it to yourself and your race to rise from your social debasement and take your place among the soldiers of your country, a man among them. Depend upon it, the subjective effect of this one act of enlisting will be immense and highly beneficial. You will stand more erect, walk more assured, feel more at ease, and be less liable to insult than you ever were before. He who fights and battle of America may claim America as his own country — and have that claim respected. Thus in defending your country now against rebels and traitors you are defending your own liberty, honor, manhood and self-respect.

Eighth. You should enlist because your doing so will be one of the most certain means of preventing the country from drifting back into the whirlpool of Pro-Slavery Compromise at the end of the war, which is now our greatest danger. He who shall witness another Compromise with Slavery in this country will see the free colored man of the North more than ever a victim of the pride, lust, scorn and violence of all classes of white men. The whole North will be but another Detroit, where every white fiend may with impunity revel in unrestrained beastliness towards people of color; they may burn their houses, insult their wives and daughters, and kill indiscriminately. If you mean to live in this country now is the time for you to do your full share in making it a country where you can your children after you can live in comparative safety. Prevent a compromise with the traitors, compel them to come back to the Union whipped and humbled into obedience and all will be well. But let them come back as masters and all their hate and hellish ingenuity will be exerted to stir up the ignorant masses of the North to hate, hinder and persecute the free colored people of the North. That most inhuman of all modern enactments, with its bribed judges, and summary process, the Fugitive Slave Law, with all its infernal train of canting divines, preaching the gospel of kidnapping, as twelve years ago, will be revived against the free colored people of the North. One or two

black brigades will do much to prevent all this.

Ninth. You should enlist because the war for the Union, whether men so call it or not, is a war for Emancipation. The salvation of the country, by the inexorable relation of cause and effect, can be secured only by the complete abolition of Slavery. The President has already proclaimed emancipation to the Slaves in rebel States which is tantamount to declaring Emancipation in all the States, for Slavery must exist everywhere in the South in order to exist anywhere in the South. Can you ask for a more inviting, ennobling and soul enlarging work, than that of making one of the glorious Band who shall carry Liberty to your enslaved people? Remember that identified with the Slave in color, you will have a power that white soldiers have not, to attract them to your lines and induce them to take up arms in a common cause. One black Brigade will, for this work, be worth more than two white ones. Enlist, therefore, enlist without delay, enlist now, and forever put an end to the human barter and butchery which have stained the whole South with the warm blood of your people, and loaded its air with their groans. Enlist, and deserve not only well of your country, and win for yourselves, a name and a place among men, but secure to yourself what is infinitely more precious, the fast dropping tears of gratitude of your kith and kind marked out for destruction, and who are but now ready to perish.

When time's ample curtain shall fall upon our national tragedy, and our hillsides and valleys shall neither redden with the blood nor whiten with the bones of kinsmen and countrymen who have fallen in the sanguinary and wicked strife; when grim visaged war has smoothed his wrinkled front and our country shall have regained its normal condition as a leader of nations in the occupation and blessings of peace — and history shall record the names of heroes and martyrs — who bravely answered the call of patriotism and Liberty — against traitors, thieves and assassins — let it not be said that in the long list of glory, composed of men of all nations — there appears the name of no colored man.

[. . .]

Chicago Citations

Bibliography entry:

Douglass, Frederick. "Why Should a Colored Man Enlist?" *Douglass' Monthly*, April 1863. Teaching American History.

Footnote citation:

Frederick Douglass, "Why Should a Colored Man Enlist?" *Douglass' Monthly*, April 1863, via Teaching American History, https://teachingamericanhistory.org/document/why-should-a-colored-man-enlist/.

Shortened citation:

Douglass, "Why Should a Colored Man Enlist?"

PRIMARY SOURCE P14.30

Sowing and Reaping (Southern Women Creating Bread Riots)

Frank Leslie's Illustrated Newspaper · May 23, 1863

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A northern engraving of Richmond's bread riot shows home-front hunger and women's protest inside the Confederate capital.
TREATMENT	Public-domain image

Historical Context

On April 2, 1863, several hundred women, many of them wives of soldiers and workers in Richmond's war plants, marched on the Confederate capital's business district demanding bread at fair prices. When refused, they broke into shops and took food and goods. Jefferson Davis himself confronted the crowd.

Northern papers seized on the riot. This two-panel engraving in *Frank Leslie's Illustrated Newspaper* contrasted southern women urging their men to war in 1861 with hungry women rioting in 1863.

Editorial note: Image reproduced from the Library of Congress copy (via Wikimedia Commons). The engraving is northern propaganda; the artist did not witness the riot.

Primary Source Image

"Southern Women Feeling the Effects of the Rebellion, and Creating Bread Riots," from "Sowing and Reaping," *Frank Leslie's Illustrated Newspaper*, May 23, 1863. Library of Congress.

Chicago Citations

Bibliography entry:

"Sowing and Reaping." Wood engraving. *Frank Leslie's Illustrated Newspaper*, May 23, 1863. Prints and Photographs Division, Library of Congress, LCCN 2007683044.

Footnote citation:

"Sowing and Reaping," wood engraving, *Frank Leslie's Illustrated Newspaper*, May 23, 1863, Library of Congress, https://www.loc.gov/pictures/item/2007683044/.

Shortened citation:

"Sowing and Reaping," *Frank Leslie's*.

PRIMARY SOURCE P14.31

Instructions for the Government of Armies of the United States in the Field (General Orders No. 100, the Lieber Code) (excerpt)

Francis Lieber; issued by the U.S. War Department · April 24, 1863

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	The Union's code of war sets out both the broad reach of military necessity and its limits.
TREATMENT	Public-domain text, selected articles

Historical Context

Francis Lieber (1798–1872), a German-born legal scholar at Columbia College who had sons fighting on both sides, drafted a code of conduct for Union armies at the War Department's request.

Issued as General Orders No. 100, the code defined "military necessity" broadly, allowing armies to destroy property and cut off supplies, while forbidding cruelty, torture, and attacks on unarmed civilians. It became a model for later international laws of war.

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

Military necessity does not admit of cruelty - that is, the infliction of suffering for the sake of suffering or for revenge, nor of maiming or wounding except in fight, nor of torture to extort confessions. It does not admit of the use of poison in any way, nor of the wanton devastation of a district. It admits of deception, but disclaims acts of perfidy; and, in general, military necessity does not include any act of hostility which makes the return to peace unnecessarily difficult.

Art. 17.

War is not carried on by arms alone. It is lawful to starve the hostile belligerent, armed or unarmed, so that it leads to the speedier subjection of the enemy.

Art. 18.

When a commander of a besieged place expels the noncombatants, in order to lessen the number of those who consume his stock of provisions, it is lawful, though an extreme measure, to drive them back, so as to hasten on the surrender.

Art. 19.

Commanders, whenever admissible, inform the enemy of their intention to bombard a place, so that the noncombatants, and especially the women and children, may be removed before the bombardment commences. But it is no infraction of the common law of war to omit thus to inform the enemy. Surprise may be a necessity.

Art. 20.

Public war is a state of armed hostility between sovereign nations or governments. It is a law and requisite of civilized existence that men live in political, continuous societies, forming organized units, called states or nations,

whose constituents bear, enjoy, suffer, advance and retrograde together, in peace and in war.

Art. 21.

The citizen or native of a hostile country is thus an enemy, as one of the constituents of the hostile state or nation, and as such is subjected to the hardships of the war.

Art. 22.

Nevertheless, as civilization has advanced during the last centuries, so has likewise steadily advanced, especially in war on land, the distinction between the private individual belonging to a hostile country and the hostile country itself, with its men in arms. The principle has been more and more acknowledged that the unarmed citizen is to be spared in person, property, and honor as much as the exigencies of war will admit.

Art. 23.

Private citizens are no longer murdered, enslaved, or carried off to distant parts, and the inoffensive individual is as little disturbed in his private relations as the commander of the hostile troops can afford to grant in the overruling demands of a vigorous war.

Art. 24.

The almost universal rule in remote times was, and continues to be with barbarous armies, that the private individual of the hostile country is destined to suffer every privation of liberty and protection, and every disruption of family ties. Protection was, and still is with uncivilized people, the exception.

Art. 25.

In modern regular wars of the Europeans, and their descendants in other portions of the globe, protection of the inoffensive citizen of the hostile country is the rule; privation and disturbance of private relations are the exceptions.

Art. 26.

Commanding generals may cause the magistrates and civil officers of the hostile country to take the oath of temporary allegiance or an oath of fidelity to their own victorious government or rulers, and they may expel everyone who declines to do so. But whether they do so or not, the people and their civil officers owe strict obedience to them as long as they hold sway over the district or country, at the peril of their lives.

Art. 27.

The law of war can no more wholly dispense with retaliation than can the law of nations, of which it is a branch. Yet civilized nations acknowledge retaliation as the sternest feature of war. A reckless enemy often leaves to his opponent no other means of securing himself against the repetition of barbarous outrage

Art. 28.

Retaliation will, therefore, never be resorted to as a measure of mere revenge, but only as a means of protective retribution, and moreover, cautiously and unavoidably; that is to say, retaliation shall only be resorted to after careful inquiry into the real occurrence, and the character of the misdeeds that may demand retribution.

Unjust or inconsiderate retaliation removes the belligerents farther and farther from the mitigating rules of regular war, and by rapid steps leads them nearer to the internecine wars of savages.

Art. 29.

Modern times are distinguished from earlier ages by the existence, at one and the same time, of many nations and great governments related to one another in close intercourse.

Peace is their normal condition; war is the exception. The ultimate object of all modern war is a renewed state of peace.

The more vigorously wars are pursued, the better it is for humanity. Sharp wars are brief.

Art. 30.

Ever since the formation and coexistence of modern nations, and ever since wars have become great national wars, war has come to be acknowledged not to be its own end, but the means to obtain great ends of state, or to consist in defense against wrong; and no conventional restriction of the modes adopted to injure the enemy is any longer admitted; but the law of war imposes many limitations and restrictions on principles of justice, faith, and honor.

[. . .]

Chicago Citations

Bibliography entry:

Lieber, Francis. *Instructions for the Government of Armies of the United States in the Field*. General Orders No. 100. Washington, DC: War Department, April 24, 1863. Avalon Project, Yale Law School.

Footnote citation:

Francis Lieber, *Instructions for the Government of Armies of the United States in the Field*, General Orders No. 100, April 24, 1863, art. [number], Avalon Project, https://avalon.law.yale.edu/19th_century/lieber.asp.

Shortened citation:

Lieber Code, art. [number].

PRIMARY SOURCE P14.32

General Superintendent of Contrabands in the Department of the Tennessee to the Headquarters of the Department (excerpts)

Chaplain John Eaton Jr. to Lt. Col. John A. Rawlins · Memphis, April 29, 1863

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	An army officer's report shows the Union army managing people who had freed themselves.
TREATMENT	Public-domain text, selected excerpts

Historical Context

As Grant's army moved through western Tennessee and northern Mississippi in 1862, thousands of enslaved people fled to its camps. Grant appointed John Eaton Jr. (1829–1906), an Ohio chaplain, to organize them.

Eaton set up camps where freedpeople worked for wages or rations. His report answers a list of questions about the condition, clothing, work, and attitudes of the people in the camps at Corinth, Memphis, and other posts.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; ellipses are the editors'.

Document Text

April 29, 1863. Memphis [Tenn.].

. . . .

Answers to Interrogatories.

Interrogatory 1st What of their clothing, when they entered and since?

Answers.
Corinth Very poor, with exceptions. Some came dressed in suits borrowed from those over them. Now, good by their own earnings, & by donations.
Cairo Was very poor, many of them having hardly enough to cover their nakedness. A few well dressed, & clothes for future use.
Grand Junction# Of those coming earliest, much worn; of those later, most needy– since supplied by Government, & donations from loyal States.
[Footnote in manuscript:] #After being at Grand Junction a month, taken away by General Order, I left Lt. McClarren in charge, who in turn was succeeded by Chaplain Grant. The answers for Grand Junction were furnished by Assistants David L. Jones and W. G. Sargent, continuously there; from all other points by Superintendents, as per table.
Holly Springs and Memphis Very poor– supplied since by Govermnt and donations.
Memphis Included in the above Chaplain J. R. Locke first in charge at Memphis.
Bolivar Very indifferent
La Grange In nearly every instance, very destitute.
Providence Many, not enough to cover their nakedness;– few, to make themselves comfortable;– clothing arriving from the North.

INTERROGATORY 2D Have they been sheltered by tents, houses, or cabins?

ANSWERS.
Corinth First tents; finally, chiefly by cabins, built by themselves.
Cairo. Old barracks.
Grand Junction. Houses, and old tents.
Holly Springs & Memphis." " " " & in some cases no shelter.
Memphis. Tents. Building log cabins.
Bolivar. Board cabins.
La Grange Old houses, then tents.
Lake Providence. Deserted houses.

INTERROGATORY 3d When did you commence issuing the contraband ration?1

ANSWERS.
Corinth. Last of November, 1862.
Cairo. Issued soldiers' rations, on assuming control of camp.
Grand Junction As soon as the ration was determined.
Holly Springs & Memphis On the 27th December, 1862.
Memphis From the first.
Bolivar. January 1st. 1863.
La Grange From the first.
Providence. " " "

INTERROGATORY 4TH Have you varied from it since? If so, how & why?

ANSWERS.
Corinth. Flour, when corn-meal could not be had; never have had hominy. The soap is insufficient.
Cairo. Varied from soldiers' rations somewhat, substituting rye for coffee. I have drawn the same in kind & quantity as is furnished to soldiers, excepting to children, as follows: Children from 2 to 5 years old 1/4; from 5 to 15, 1/2
Grand Junction. Never, except when could not obtain full rations.
Holly Springs & Memphis. Part of the time, 1/2 and 1/4 rations.
Memphis. No variation.
Bolivar. Never, except when on 1/2 rations.
La Grange Never; do well on it.
Providence Never.

INTERROGATORY 5TH What of the property brought in by them, its amount and disposition?

ANSWERS.
Corinth. Horses, mules, wagons, cotton, oxen, &c., estimated at $3000–all turned over to Quartermaster.
Cairo. None whatever.
Grand Junction Oxen, yokes, chains, wagons, mules, horses;–generally, in poor condition; used for employing and caring for contrabands, as per order. Much taken from them by officers and soldiers.
Holly Springs & Memphis. 15 horses and mules–15 pairs oxen. 12 pairs turned over to U.S. Quartermaster. Otherwise used for benefit of freedmen.
Memphis. Included in the above, and brought by Chaplain Locke on removal of freedmen from Holly Springs.
Bolivar. Teams; large number turned over to Quartermaster. Value not known– part used in camp.
La Grange Two ox-teams. They were allowed to sell them.
Providence. Turned over to Quartermaster.

Interrogatory 6th What of hospitals in connection with your camp; their management, & character of diseases treated?

ANSWERS.
Corinth. Surgeon Humphrey treated diseases in hospital Surgeon McCord in camp. Those in hospitals visited twice a day; those in camp, once a day. In camp, we have a bathing trough to wash all the dirty & filthy, when necessary. Surgeons, both kind & faithful. Health of camp improving. Diseases–Pneumonia, rapid in its progress, sometimes terminating fatally in twelve hours after the attack; typhoid and congestive fevers, of a low grade; measles, sometimes terminating in gangrene of the feet, requiring amputation.
Cairo. Three hospitals–male, female, and pest house. Measles, pneumonia, small pox. Two surgeons.
Grand Junction. About 50 sick in hospital–balance treated in quarters. Diseases as above.
Holly Springs & Memphis. Diseases–Diarrhoea & pneumonia.
Memphis. Hopital not under charge of Superintendent. Its condition wretched in the extreme. Lack of medicines, of utensils, of vaccine matter. No report of admissions, of diseases, of deaths, or discharges. No attention to sick in camp by surgeon. Sent assistants out of my own office, having some Knowledge of medicine, but surgeon refused vaccine matter & medicines. Improvement at date. Diseases–Pnuemonia, fevers, small pox. See appendix B
Bolivar. One hospital. Not more than 10 or 12 inmates at a time. Diseases–Pnuemonia & measles.
La Grange. Hospital under Dr. Welsh– common diseases; mostly pneamonia. Pest Hospital well managed by Dr. Wilson.
Providence. Difficulty in obtaining surgeons & medicines. One surgeon.

Interrogatory 7th The situation of your camps with respect to town and troops–how guarded and regulated?

Answers.
Corinth. Location good–half mile from any troops–wood plenty–abundant water from deep well dug in camp, costing $50–paid from their own earnings. Cabins, nearly 100, from [form] three sides of a square. Church & Commissary buildings occupy the fourth Grounds ditched & regularly policed. Until about Feb'y 1st, was guarded by a company of white soldiers; since by blacks, organized under authority of Gen. Dodge, drilled & managed by two soldiers. Black guards have lea[r]ned readily, & discharged their duty with the highest degree of satisfaction to camp and garrison commanders.
Cairo. Location of camp grounds, low, wet & unpleasant. Only guards, freedmen– have rendered efficient service
Grand Junction. Two camps near troops– no guards since first patrol was removed, until lately. As a consequence, the freedmen suffered robbery and all manner of violence dictated by the passions of the abandoned among the soldiery.
Holly Springs and Memphis. As far as possible, separate from troops. Freedmen arranged in families; to some extent, their own guards.
Memphis. Camp two miles from town–on high bluff, easily drained; water from river; in the midst of wood. No soldiers near, except guard of eight from convalescent camp. One man regulates camp–another directs the working men, who are divided into squads of eleven;–the most intelligent selected as leader. Each three or four of squads are under a white foreman, who directs and credits their work, notes and supplies their necessities.
Bolivar. One & half miles from town– guarded in part by soldiers, and part by colored police.
La Grange Near depot– troops all around.
Providence. In the midst of town and troops– great evils resulting.

[. . .]

Chicago Citations

Bibliography entry:

Eaton, John, Jr. Letter to Lt. Col. John A. Rawlins, April 29, 1863. Filed with O-328 1863, Letters Received, ser. 12, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

John Eaton Jr. to John A. Rawlins, April 29, 1863, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Eaton.html.

Shortened citation:

Eaton to Rawlins, April 29, 1863.

PRIMARY SOURCE P14.33

Testimony by the Superintendent of Contrabands at Fortress Monroe before the American Freedmen's Inquiry Commission (excerpts)

Capt. C. B. Wilder · May 9, 1863

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	An officer describes self-emancipation on a large scale and the army's uneven response.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In March 1863 the War Department created the American Freedmen's Inquiry Commission to study the condition of freedpeople and recommend policy. Its members interviewed officers, missionaries, and freedpeople.

Captain Charles B. Wilder, superintendent of contrabands at Fortress Monroe, testified that thousands had come to the fort, that many returned behind Confederate lines to bring out relatives, and that some Union soldiers had sent fugitives back to slavery.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; ellipses are the editors'.

Document Text

Testimony by the Superintendent of Contrabands at Fortress Monroe, Virginia, before the American Freedmen's Inquiry Commission

[Fortress Monroe, Va.] May 9, 1863.

. . . .

Question How many of the people called contrabands, have come under your observation?

Answer Some 10,000 have come under our control, to be fed in part, and clothed in part, but I cannot speak accurately in regard to the number. This is the rendezvous. They come here from all about, from Richmond and 200 miles off in North Carolina There was one gang that started from Richmond 23 strong and only 3 got through.

. . . .

Q In your opinion, is there any communication between the refugees and the black men still in slavery?

A. Yes Sir, we have had men here who have gone back 200 miles.

Q In your opinion would a change in our policy which would cause them to be treated with fairness, their wages punctually paid and employment furnished them in the army, become known and would it have any effect upon others in slavery?

A Yes–Thousands upon Thousands. I went to Suffolk a short time ago to enquire into the state of things there–for I found I could not get any foot hold to make things work there, through the Commanding General, and I went to the Provost Marshall and all hands–and the colored people actually sent a deputation to me one morning before I was up to know if we put black men in irons and sent them off to Cuba to be sold or set them at work and put balls

on their legs and whipped them, just as in slavery; because that was the story up there, and they were frightened and didn't know what to do. When I got at the feelings of these people I found they were not afraid of the slaveholders. They said there was nobody on the plantations but women and they were not afraid of them One woman came through 200 miles in Men's clothes. The most valuable information we recieved in regard to the Merrimack and the operations of the rebels came from the colored people and they got no credit for it. I found hundreds who had left their wives and families behind. I asked them “Why did you come away and leave them there?” and I found they had heard these stories, and wanted to come and see how it was. “I am going back again after my wife” some of them have said “When I have earned a little money” What as far as that?” “Yes” and I have had them come to me to borrow money, or to get their pay, if they had earned a months wages, and to get passes. “I am going for my family” they say. “Are you not afraid to risk it?” “No I know the Way” Colored men will help colored men and they will work along the by paths and get through. In that way I have known quite a number who have gone up from time to time in the neighborhood of Richmond and several have brought back their families; some I have never heard from. As I was saying they do not feel afraid now. The white people have nearly all gone, the blood hounds are not there now to hunt them and they are not afraid, before they were afraid to stir. There are hundreds of negroes at Williamsburgh with their families working for nothing. They would not get pay here and they had rather stay where they are. “We are not afraid of being carried back” a great many have told us and “if we are, we can get away again” Now that they are getting their eyes open they are coming in. Fifty came this morning from Yorktown who followed Stoneman's Cavalry when they returned from their raid. The officers reported to their Quartermaster that they had so many horses and fifty or sixty negroes. “What did you bring them for” “Why they followed us and we could not stop them.” I asked one of the men about it and he said they would leave their work in the field as soon as they found the Soldiers were Union men and follow them sometimes without hat or coat. They would take best horse they could get and every where they rode they would take fresh horses, leave the old ones and follow on and so they came in. I have questioned a great many of them and they do not feel much afraid; and there are a great many courageous fellows who have come from long distances in rebeldom. Some men who came here from North Carolina, knew all about the [Emancipation] Proclammation and they started on the belief in it; but they had heard these stories and they wanted to know how it was. Well, I gave them the evidence and I have no doubt their friends will hear of it. Within the last two or three months the rebel guards have been doubled on the line and the officers and privates of the 99th New York between Norfolk and Suffolk have caught hundreds of fugitives and got pay for them.

Q Do I understand you to say that a great many who have escaped have been sent back?

A Yes Sir, The masters will come in to Suffolk in the day time and with the help of some of the 99th carry off their fugitives and by and by smuggle them across the lines and the soldier will get his $20. or $50.

. . . .

Chicago Citations

Bibliography entry:

Wilder, C. B. Testimony before the American Freedmen's Inquiry Commission, May 9, 1863. Filed with O-328 1863, Letters Received, ser. 12, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Testimony of C. B. Wilder, May 9, 1863, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/wilder.htm.

Shortened citation:

Wilder, testimony, May 9, 1863.

PRIMARY SOURCE P14.34

H. C. Kendrick to His Mother, June 6, 1863

H. C. Kendrick, 9th Georgia Infantry · near Culpeper Court House, Virginia, June 6, 1863

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.4 (Was It a Total War?)
WHY HERE	A Confederate soldier wants retaliation against northern property but rules out harming women.
TREATMENT	Full public-domain text

Historical Context

In early June 1863 Lee's army gathered near Culpeper, Virginia, to begin its march north into Pennsylvania.

H. C. Kendrick, a Georgia private, wrote to his mother that he was ready to die for his country. He hoped the army would repay the North for the destruction in the South by seizing horses and burning houses, but said that women should not be harmed.

Editorial note: The text follows the Valley of the Shadow transcription.

Document Text

June 6th 63

Camp near Culpepper Court House

Dear mother

Having moved from the place of my last letter, I deemed it very necessary that I should write to you, as the letter I wrote last, gave the impressive news, that we would have to fight soon, or that a fight would take place soon in Va. You will find in the first part of my letter, that we expected to go to Culpepper Court H. The place at which we are now [unclear: encamped]. We arrived here day before yesterday about 2 O'clock in the after noon_ having marched 16 miles, we lay down quietly until the next morning when orders came for a review of the Cavalry and infantry. 5 brigades of cavalry were on the field together with 4 brigades of infantry. The infantry did not march on the field any at all.

The cavalry charged a battery of I don't know exactly how many guns. The sight was certainly full of grandeur and military beauty; but rendered somewhat unpleasant by the great quantity of dust, the weather having been dry for sometime. There were a great many citizens, both ladies and gentlemen, to see it. Why it is there are so many Cavalry soldiers in this vicinity I am not entirely prepared to say, but will dare say, they will make a raid in yankeedom before long. I think we will stay at this point some 2 or 3 days longer, perhaps a week. I am still inclined to think, we will invade the enemy's country this summer, as they will doubtless get a great many more cavalry then they now have, and finally make this war a war of pillaging plundering, and destroying private citizens' property. I feel like retaliating in the strictest sense. I don't think we would do wrong to take horses; burn houses; and commit every depredation possible upon the men of the North. I can't vindicate the principle of injuring, or insulting the female sex, though they be never so disloyal to our Confederacy and its institutions. Could I ever condescend to the degrading principle of taking from a female's person, a piece of jewelry? Shall I ever become so thoughtless of my character, or forgetful of my raising? God forbid. But mother, I would not hesitate to take, or burn up any thing belonging to their government or that belonged to a citizen who was loyal to the U.S.

Mother, since I commenced writing, the brigade has been out on drill, but before they got well in it, orders were received to cook up 3 days rations. I suppose we will move in the of the morning. We will go to the Rappahannock river. I think we will certainly find the enemy after a while. Mother, I wish you would ask Pa, if he can, to please

have a hat made for me. I will require the favor. I had rather have a wool hat if he can get one of that kind. I don't need it just now, but will want it by fall.

Ma, please make me a coat for next winter. It may be, that I will fall on the battle-field, but if I should, my clothes can benefit some of my brothers. I know this is calculating further ahead than I have any assurance of living, but if I fall, be you well assured, I will sacrifice my life upon the alter of my country.

My beloved friends at home, are no doubt somewhat uneasy about me, as the military is usually more active in Va., than any where in the Confederacy, but this is one of the principle reasons why my friends should not be uneasy about my situation; because I have been in almost as bad places as I ever will be again, let the war last as long as I do. I don't regard the jeopardy attending any move at all, but my chief thought is, whether I am doing my duty as a soldier or not. When I feel that I am doing my whole duty, both to my-self and comrads, then it is, I have a clear conscience; a conscience void of any remorse. Mother, I get plenty to eat, and have it well prepared to eat. I have a man in my mess who cooks my and his rations. We get plenty of fat meat out of which, we get the grease to put in our bread. We put soda in it too which makes it very palatable. Sometimes, I get plenty of good milk to drink; this, you know is good living for a soldier. I spend about all of my money for something good to eat. My wages are 20 dollars per month.

Mother, as I have nothing more to write of interest, I will close. My health is good. Write me soon,

your most devoted Son,

H. C. Kendrick

P. S. Mother, please ask Pa to put on that obituary, the age of the Subject and the state of her death yours H. C. K.

Chicago Citations

Bibliography entry:

Kendrick, H. C. Letter to his mother, June 6, 1863. Franklin County Letters. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

H. C. Kendrick to his mother, June 6, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/F1706.

Shortened citation:

Kendrick to his mother, June 6, 1863.

PRIMARY SOURCE P14.35

Franklin Gaillard to "Sonny" Gaillard, June 28, 1863

Franklin Gaillard, 2nd South Carolina Infantry · near Chambersburg, Pennsylvania, June 28, 1863

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.4 (Was It a Total War?)
WHY HERE	A Confederate officer reports high morale and endorses limits on plundering northern civilians.
TREATMENT	Full public-domain text

Historical Context

In late June 1863 Lee's army marched into Pennsylvania's Cumberland Valley. Lee's General Orders No. 72 forbade soldiers to take or destroy private property, though quartermasters requisitioned supplies and seized horses and cattle, and Black residents were captured and sent south.

Franklin Gaillard, a South Carolina officer, wrote to his son about the march north, the high spirits of the army, and his approval of Lee's strict orders about private property.

Editorial note: The text follows the Valley of the Shadow transcription.

Document Text

June 28th 1863.

Camp near Chambersburg, Pa.

My dear Sonny

I promised in my last letter to Aunt Ria that I would soon answer your letter. We have been so constantly on the move since then that I really have not been able to do it satisfactorily. When I received your letter we had just begun to move. I had no idea that it was the beginning of so grand a movement as it has resulted in here we are now in the great and powerful State of Pennsylvania marching forward in the direction of her Capitol. I do not know, of course, what Gen. Lee is going to do, for like a good general he will keep his intentions to himself and his Lieut. Generals. But it appears to me very much as if he is going to strike a blow at Harrisburg and if he can succeed in taking it, it will be a brilliant triumph of our arms. The enemy have nothing but raw troops in our front. I think we can whip these three or four to one. Then we could march on towards Philadelphia and Gen. Hooker would have to come to our front to save it and we would thus free Maryland and maybe take Washington and Baltimore. Thus the summer is going to be filled with great events and if Providence will favor our efforts I hope mighty things for our country will be achieved. Our Army never was in better health and spirits. Since we left Fredericksburg we have marched about one hundred and sixty miles. In our march from Culpepper to Ashby's Gap we had a terrible march. The sun was very hot and then so many men marching along together made it very dusty. Another thing too, in the old settled country the farmers find great difficulty in getting rails. Where we passed it was mountainous and stony and the people would gather up large quantities and make stone walls which answer the purpose of a fence and are very durable. When our troops would be down in a valley, so that no wind could refresh them, with the sun coming down heavily upon their heads, the heat increased by the reflection from the walls, and the dust stifling them so that they could not breathe in pure air, the gallant fellows, many, very many, would turn red in the face from blood rushing to their head and fall to the ground with sun stroke. When we got to Ashby's Gap we stopped for two or three days and then we had a very heavy rain and one or two days of cloudy and wet weather. This revived them all like pouring water on wilted plants. Nearly all came up. We stopped there to

guard this Gap and it was well we did for the enemy's Cavalry assisted by a small force of infantry drove our Cavalry several miles before them and we all thought whipped them pretty badly. We had crossed the Shenandoah River and had to recross it and go back three or four miles to keep the Yankees from taking the Gap. Next day the Yankees went back and Stuart's Cavalry went poking along at a very slow pace as if they were in no great hurry to overtake them. They now claim in the papers that they drove them back but we who were there and saw them know better. Our Cavalry is very little account and have very little to boast of. There are more than half of them who are with their horses lamed or sore backed with the wagons. I am glad to see that the newspapers are speaking very severely about them and I hope it will improve them. They have got so now that as soon as a fight begins they think that they have nothing to do but to go to the rear and let the Infantry do the fighting. Our boys ridicule them very much whenever they pass.

I am afraid that our men will suffer for shoes. These long marches are very trying on men's feet and shoes. You would be very much amused to see the men crossing a river. A regiment is marched down to the banks and sometimes halted long enough to allow them to pull of their pantaloons. If the water is over waist deep they put bayonets on their guns and hang their cartridge boxes on them - then right shoulder shift arms and wade across all in fine spirits as if it was a frolic. The Yankees carry pontoon trains along with them but our boys say that every man in General Lee's Army carries his own pontoons. It is very funny to pass through these Yankee towns to see the long sour faces the people put on. The girls some of them wear little United States flags. Others more indecent hold their noses and make faces. Our men go on and pay no attention to them. They only laugh at them when they make themselves ridiculous. Things are very cheap here in their stores but they will not take our money and Gen. Lee has issued very stringent orders about private property. He is very right for our Army would soon become demoralized if they were allowed to do as many of them would like to. Many of them think it very hard that they should not be allowed to treat them as their soldiers treated our people. But we must not imitate the Yankees in their mean acts.

We are getting a large number of horses but this is being done by proper authorities.

Gen. Lee is going to support his Army over here and this will tax the people here and make them feel the war.

You must give my love to all and kiss daughter for me. Give my love to Grand Ma, Aunt Ria and all at Aunt Louisa's. It is getting so dark I can hardly see how to write.

Your very affectionate father

Franklin Gaillard

Chicago Citations

Bibliography entry:

Gaillard, Franklin. Letter to "Sonny" Gaillard, June 28, 1863. Franklin County Letters. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Franklin Gaillard to "Sonny" Gaillard, June 28, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/F4047.

Shortened citation:

Gaillard to Gaillard, June 28, 1863.

PRIMARY SOURCE P14.36

Iowa Michigan Royster to His Mother, June 29, 1863 (excerpt)

Iowa Michigan Royster, 37th North Carolina Infantry · near Chambersburg, Pennsylvania, June 29, 1863

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	A Confederate officer admits widespread plundering while repeating Lee's stated limits.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Iowa Michigan Royster, a young North Carolina lieutenant, wrote home during the march into Pennsylvania, four days before he was mortally wounded at Gettysburg.

He admitted that "our soldiers plundered far and wide" despite orders and reported Lee's statement that he made war "upon armed men—not upon women and children."

Editorial note: The text follows the Valley of the Shadow transcription.

Document Text

[. . .]

On my way to join my reg't, I came by Winchester and saw Kate. She had rec'd a letter from you dated in Jan. and was preparing to answer it. She and I are engaged. Tell my Papa that I don't know how much her father is worth. Don't know whether he is worth anything or not- couldn't come within ten thousand dollars of the amount to save my life. All of his good instructions lost. Well, "a fool will have his own way." Quick courtship wasn't it? A week's acquaintance last September and two days in June. I congratulate myself on my promptness. Great quality in a soldier. When I left Winchester Kate gave me a bundle of provisions, a paper of candy, raisins, etc., some hankerchiefs, trimmed my hat, and did a great many things to captivate me.

I sold my horse for 350 dollars and my saddle for fifty. So I have 400 cash with me. I wish I could get a chance to send it to Raleigh and settle Mr. Lovejoy's account. I am so extravagant that I am afraid I shall spend all my money here and have none, or if I get knocked over by a Minnie I would not like for the Yankees to get my Confederate.

I am the only officer present in my company. The men are very clever. There is not one among them who swears or uses any profane language. There are about twenty four. When the co. started from N. C. it numbered 126. At Sharpsburg last September only five. The Capt. went back a few days ago on business expecting to join us in a few days. I fear that the Yankees have got him. He is a member of the Baptist Church. When the company was first made up, the captain, the three lieutenants and one private were all preachers. Every regiment in the brigade has a chaplin; I heard a sermon yesterday. In this brigade there are the 18th, 7th, 33rd, and 87th and 28th reg'ts. I find a great many old acquaintances among them, and on the whole have quite a pleasant time. Everybody told me that my feet would be blistered, but I have been marching nearly a week and have experienced no inconvenience, though several men have fallen by the road. There is no straggling. All are compelled to keep up. Those who are too weak or sick ride in ambulances or wagons. Lee has fully double the number of men he had at Sharpsburg. Our regiment for instance had only fifty at Sharpsburg, there about two hundred and seventy five now. The other regiments are the same way.

Yesterday and the day before our soldiers plundered far and wide - taking butter, milk, apple-butter, fruit, chickens, pigs and horses and everything they could lay their hands on. The people are frightened out of their

senses. "take anything you want but don't hurt us" is their cry. They are afraid to protest against anything. It is the most beautiful country you ever saw, the neatest farms, fine houses, good fences. The whole country is covered with the finest crops of wheat, such wheat as is not seen in our country.

Yesterday however, Genl' Lee sent an order around that all stealing and plundering should be punished in each case with death, that officers should be held accountable for the execution of his orders, that he made war upon armed men - not upon women and children. The plundering will be stopped now. I never saw people so submissive and badly scared as these people in my life. It must be conscience. They know how their soldiers have desolated Virginia and they fear that ours will retaliate. But I can't bear it. I hate to take anything when it is given from fear. Quartermasters and Commissaries and Surgeons are empowered to impress everything necessary for the use of the army. But men are not allowed to have anything but what they buy.

I heard but don't know how true it is that nine of our soldiers were shot yesterday for taking jewelry from off the persons of the women. The articles of war make a death punishment for stealing, and in an enemy's country a regimental court-martial has the power to inflict this punishment. Gen. Lee seems determined to stop all marauding. I don't know what place we shall attack, most seem to think Harrisburg. For my part I want to stay here until the war is over, and take their towns and beat their armies and live on their people. Lee's men have unbounded confidence in him. The Yankees are in great perplexity - don't know what point to re-inforce - don't know whether Lee will attack Harrisburg, Pittsburg, Baltimore, or Washington. I want to take them all. It is glorious. All the fences that are burnt now are Yankee fences. They'll be willing for us to stay out of the Union hereafter. We've come back to the Union, but not as they expected. Write soon. Direct to Lieut. Iowa Royster, 37th N.C.G. Lane's Brigade, Pender's Division, Hill's Corps.

Chicago Citations

Bibliography entry:

Royster, Iowa Michigan. Letter to his mother, June 29, 1863. Franklin County Letters. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Iowa Michigan Royster to his mother, June 29, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/F4044.

Shortened citation:

Royster to his mother, June 29, 1863.

PRIMARY SOURCE P14.37

Thomas Gordon Pollock to His Father, June 30, 1863

Thomas Gordon Pollock, Kemper's Brigade · Chambersburg, Pennsylvania, June 30, 1863

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.4 (Was It a Total War?)
WHY HERE	A Confederate officer claims the army respected civilians in Pennsylvania, a claim other sources contradict.
TREATMENT	Full public-domain text

Historical Context

Thomas Gordon Pollock, a Virginia staff officer in Kemper's Brigade, wrote home from Chambersburg the day before the battle of Gettysburg began. He was killed in Pickett's Charge on July 3.

He described the soldiers' reverence for Lee and claimed that he had heard of no outrage to person or property in Chambersburg.

Editorial note: Pollock's claim of no outrages is contradicted by Chambersburg residents' accounts of seized property and kidnapped Black residents. The text follows the Valley of the Shadow transcription.

Document Text

June 30th 1863

Headquarters Kempers Brigade, Chambersburg PA

My dear Father --

A mail carrier will leave for the Confederate States to night and I hasten to write this to accompany him on his doubtful journey and then to encounter still more doubtful fate of letters from Culpepper Ct House to Fauquier. We passed the Potomac at Williamsport on the 26th and entered this town on the suburbs of which we are now encamped on the 28th--nearly in the rear of the army. You can form some idea of the discipline now when after a long days march when the rolls are called on entering bivouac but one single absentee is reported from a whole Brigade. The constrast between the condition of the army now and last year when we entered Maryland is most encouraging--Every one noticed it & spoke of it in Hagerstown. It is almost amusing to witness the anxious stare with which we are regarded as our sunburnt motley dressed regiments but moving in closed ranks with the cadenced step to the tune of Dixie and with enfield muskets glistening and the red battle flag inscribed all over with the names of our victories pass through the thoroughfare of one of the numerous towns. Sadness is on the countenance of all but some try to look fierce and angry and tell us confidently we will never get back. It is a beautiful country overflowing with wealth & fatness. Every inch of ground seems to be producing something. The army is revelling in good eating such as the poor fellows have not so much heard of since the beginning of the war. But all this regularly and in good order. I have heard of no case of outrage to person or property. Such is Genl Lees order. I enclose you the last, and what Genl Lee says the army does down to the lowest private because they say "I reckon he knows." The perfect reverence the soldiers [unclear: feel] for his orders is only equalled by their faith in him. It strikes me as a perfect picture of faith. Here they are penetrating the heart of a hostile country leaving their homes beyond broad rivers and the largest of the enemies armies while in front of them is gathering all of resistance that can be obtained by a power fruitful of every element of military power. Yet they are as happy and as secure in their feeling as if they were already won--simply because they have an almost fanatical confidence in their cause & their leader. Important movements are on foot but it would be imprudent to trust them to the

doubtful fortunes of this letter.

Give my love to Ma - Lilly Roberta Charles & Uncle Alfred.

In haste I am as ever your devoted Son

T.G. Pollock

Chicago Citations

Bibliography entry:

Pollock, Thomas Gordon. Letter to his father, June 30, 1863. Franklin County Letters. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Thomas Gordon Pollock to his father, June 30, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/F4045.

Shortened citation:

Pollock to his father, June 30, 1863.

PRIMARY SOURCE P14.38

A Harvest of Death; Amputation in a Field Hospital at Gettysburg

Timothy H. O'Sullivan (photographer) and others · July 1863

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	Photographs show the scale of death and the surgical response to modern weapons.
TREATMENT	Public-domain images

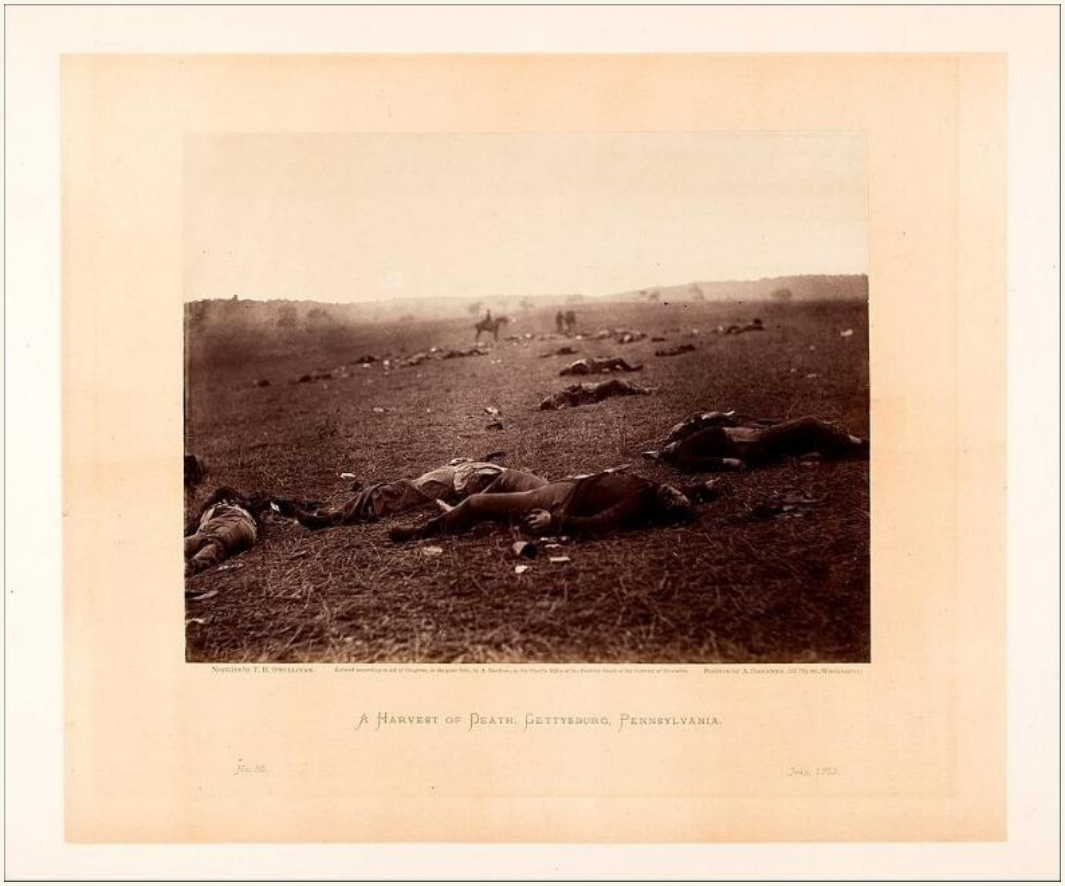
Historical Context

Photographers working for Alexander Gardner reached Gettysburg within days of the battle and photographed Union and Confederate dead before burial. Timothy H. O'Sullivan's "A Harvest of Death" shows bodies scattered across a field. Gardner published it in his *Photographic Sketch Book of the War* in 1866.

The second photograph shows surgeons performing an amputation in a hospital tent at Gettysburg. Amputation was the most common operation of the war, the standard treatment for limbs shattered by soft lead bullets.

Editorial note: Images reproduced via Wikimedia Commons. Gardner's photographers sometimes moved bodies to compose their pictures. The amputation photograph may have been posed after the operation.

Primary Source Image



Timothy H. O'Sullivan, A Harvest of Death, Gettysburg, July 1863.

Amputation being performed in a hospital tent, Gettysburg, July 1863.

Chicago Citations

Bibliography entry:

O'Sullivan, Timothy H. *A Harvest of Death, Gettysburg, July 1863*. Photograph. In Alexander Gardner, *Gardner's Photographic Sketch Book of the War*, plate 36. Washington, DC: Philp & Solomons, 1866.

Amputation Being Performed in a Hospital Tent, Gettysburg, July 1863. Photograph. Via Wikimedia Commons.

Footnote citation:

Timothy H. O'Sullivan, *A Harvest of Death, Gettysburg, July 1863*, photograph, in *Gardner's Photographic Sketch Book of the War* (Washington, DC, 1866), plate 36; *Amputation Being Performed in a Hospital Tent, Gettysburg, July 1863*, photograph.

Shortened citation:

O'Sullivan, *A Harvest of Death*; *Amputation, Gettysburg*.

PRIMARY SOURCE P14.39

Charge of the Police on the Rioters at the Tribune Office

Harper's Weekly · August 1, 1863

TOC FIT	Chapter 14 · Essay prompt 14.3 (Who Fought, and Why?)
WHY HERE	An engraving shows violent northern resistance to a draft that let wealthier men buy their way out.
TREATMENT	Public-domain image

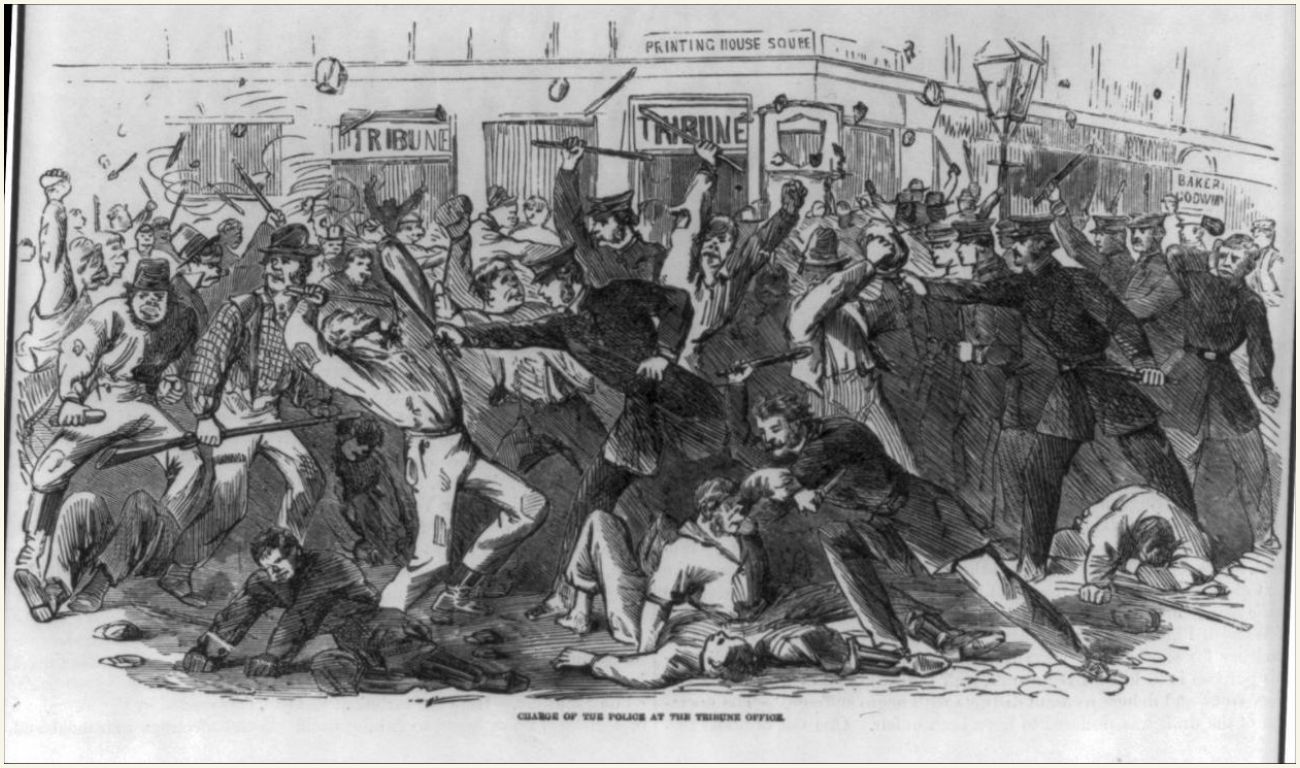
Historical Context

The Enrollment Act of March 1863 allowed a drafted man to hire a substitute or pay $300 to avoid service. When New York City held its first draft lottery in July 1863, mobs made up largely of Irish immigrant workers rioted for four days.

Rioters attacked the draft office, the homes of Republicans, and the offices of Horace Greeley's *Tribune*, and murdered Black residents. This *Harper's Weekly* engraving shows police charging rioters outside the *Tribune* building.

Editorial note: Image reproduced from the Library of Congress print (via Wikimedia Commons). *Harper's Weekly* was a pro-Union paper and portrayed the rioters unsympathetically.

Primary Source Image



"Charge of the Police on the Rioters at the 'Tribune' Office," *Harper's Weekly*, August 1, 1863. Library of Congress.

Chicago Citations

Bibliography entry:

"Charge of the Police on the Rioters at the 'Tribune' Office." Wood engraving. *Harper's Weekly*, August 1, 1863. Prints and Photographs Division, Library of Congress, LCCN 2006688448.

Footnote citation:

"Charge of the Police on the Rioters at the 'Tribune' Office," *Harper's Weekly*, August 1, 1863, Library of Congress, https://www.loc.gov/pictures/item/2006688448/.

Shortened citation:

"Charge of the Police at the Tribune Office."

PRIMARY SOURCE P14.40

Letter to Ulysses S. Grant, July 13, 1863

Abraham Lincoln · July 13, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	Lincoln credits Grant's own plan for taking Vicksburg, evidence that a particular general's choices mattered.
TREATMENT	Full public-domain text

Historical Context

Grant's campaign against Vicksburg, the Confederate stronghold on the Mississippi, took months of failed attempts before he marched his army down the west bank, crossed the river, and besieged the city. It surrendered on July 4, 1863.

Lincoln, who had never met Grant, wrote to thank him and to admit that he had doubted Grant's plan: "I now wish to make the personal acknowledgment that you were right, and I was wrong."

Editorial note: The text follows the Teaching American History transcription.

Document Text

[. . .]

Major General Grant

My dear General

I do not remember that you and I ever met personally. I write this now as a grateful acknowledgment for the almost inestimable service you have done the country. I wish to say a word further. When you first reached the vicinity of Vicksburg, I thought you should do, what you finally did — march the troops across the neck, run the batteries with the transports, and thus go below; and I never had any faith, except a general hope that you knew better than I, that the Yazoo Pass expedition, and the like, could succeed. When you got below, and took Port-Gibson, Grand Gulf, and vicinity, I thought you should go down the river and join Gen. Banks; and when you turned Northward East of the Big Black, I feared it was a mistake. I now wish to make the personal acknowledgment that you were right, and I was wrong.

Yours very truly
A. Lincoln

[. . .]

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Letter to Ulysses S. Grant, July 13, 1863. Teaching American History.

Footnote citation:

Abraham Lincoln to Ulysses S. Grant, July 13, 1863, via Teaching American History, https://teachingamericanhistory.org/document/letter-to-ulysses-s-grant/.

Shortened citation:

Lincoln to Grant, July 13, 1863.

PRIMARY SOURCE P14.41

Letter to George G. Meade, July 14, 1863 (unsent)

Abraham Lincoln · July 14, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	Lincoln believed that one decision after Gettysburg could have ended the war.
TREATMENT	Full public-domain text

Historical Context

After Gettysburg, Lee's army retreated to the Potomac, which was flooded, and was trapped for days. Meade pursued cautiously, and Lee crossed into Virginia on the night of July 13–14.

Lincoln wrote Meade that letting Lee escape was a "magnificent" opportunity lost, since catching him "would ... have ended the war." Lincoln never signed or sent the letter.

Editorial note: The text follows the House Divided (Dickinson College) transcription. Lincoln filed the letter away, marked "never sent, or signed."

Document Text

Executive Mansion, Washington

July 14, 1863

Major General Meade

I have just seen your despatch to Gen. Halleck, asking to be relieved of your command, because of a supposed censure of mine. I am very—very—grateful to you for the magnificent success you gave the cause of the country at Gettysburg; and I am sorry now to be the author of the slightest pain to you. But I was in such deep distress myself that I could not restrain some expression of it. I had been oppressed nearly ever since the battles at Gettysburg, by what appeared to be evidences that yourself, and Gen. Couch, and Gen. Smith, were not seeking a collision with the enemy, but were trying to get him across the river without another battle. What these evidences were, if you please, I hope to tell you at some time, when we shall both feel better. The case, summarily stated is this. You fought and beat the enemy at Gettysburg; and, of course, to say the least, his loss was as great as yours. He retreated; and you did not, as it seemed to me, pressingly pursue him; but a flood in the river detained him, till, by slow degrees, you were again upon him. You had at least twenty thousand veteran troops directly with you, and as many more raw ones within supporting distance, all in addition to those who fought with you at Gettysburg; while it was not possible that he had received a single recruit; and yet you stood and let the flood run down, bridges be built, and the enemy move away at his leisure, without attacking him. And Couch and Smith! The latter left Carlisle in time, upon all ordinary calculation, to have aided you in the last battle at Gettysburg; but he did not arrive. At the end of more than ten days, I believe twelve, under constant urging, he reached Hagerstown from Carlisle, which is not an inch over fifty five miles, if so much. And Couch’s movement was very little different.

Again, my dear general, I do not believe you appreciate the magnitude of the misfortune involved in Lee’s escape. He was within your easy grasp, and to have closed upon him would, in connection with our other late successes, have ended the war. As it is, the war will be prolonged indefinitely. If you could not safely attack Lee last monday, how can you possibly do so South of the river, when you can take with you very few more than two thirds of the force you then had in hand? It would be unreasonable to expect, and I do not expect you can now effect much. Your golden opportunity is gone, and I am distressed immeasureably because of it.

I beg you will not consider this a prossecution, or persecution of yourself. As you had learned that I was dissatisfied, I have thought it best to kindly tell you why.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Letter to George G. Meade, July 14, 1863 (never sent). Abraham Lincoln Papers, Library of Congress. House Divided Project, Dickinson College.

Footnote citation:

Abraham Lincoln to George G. Meade, July 14, 1863 (unsent), via House Divided, https://housedivided.dickinson.edu/sites/lincoln/letter-to-george-meade-july-14-1863/.

Shortened citation:

Lincoln to Meade, July 14, 1863.

PRIMARY SOURCE P14.42

"The Rebel Orders!" and "The Invasion!" (excerpts)

Franklin Repository (Chambersburg, Pennsylvania) · July 15, 1863

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	Lee's orders against plunder appear next to a local paper's reports of widespread seizures.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The *Franklin Repository*, a Republican weekly in Chambersburg, could not publish while Lee's army occupied the town in late June 1863. Its first issue afterward described the invasion.

The paper reprinted Lee's General Orders No. 73, which forbade plundering and promised that supplies would be taken only by authorized officers, and set beside it reports of Confederate seizures of horses, cattle, goods, and Black residents.

Editorial note: The *Repository* was a strongly Republican paper. The text follows the Valley of the Shadow transcription.

Document Text

[. . .]

All straggling and marauding from the ranks, and all marauding and plundering by individuals are prohibited, upon pain of the severest penalties known to the service.

What is required for the use of the army will be taken under regulations to be established by the Commanding General, according to the usages of civilized warfare.

Citizens of the country through which the army may pass, who are not in the military service, are admonished to abstain from all acts of hostility, upon the penalty of being dealt with in a summary manner. A ready acquiescence to the demands of the military authorities will serve greatly to lessen the rigors of war. By command of

Liet. Gen. R. S. Ewell,
A. L. Pendleton, A. A. Gen.

The foregoing was issued before Ewell entered Chambersburg. On the 23d a portion of his command reached this place, and on the 24th the General arrived, and immediately issued the following:

Headquarters 2d Corps
Army of Northern Virginia, June 22.
Chambersburg, June 24, 1863.

General Orders.--1. The sale of intoxicating liquors to this command, without written permission from a Major General, is strictly prohibited.

2. Persons having liquor in their possession are required to report the fact to the Provost-Marshall or the nearest general officer, stating the amount and kind, that a guard may be placed over it, and the men prevented from getting it.

3. Any violation of Part I. of these orders, or failure to comply with Part II., will be punished by the immediate confiscation of all liquors in the possession of the offending parties, beside rendering their other property liable to

seizure.

4. Citizens of the country through which the army may pass, who are not in the military service, are admonished to abstain from all acts of hostility, upon the penalty of being dealt with in a summary manner. A ready acquiescence to the demands of the military authorities will serve to lessen the rigors of war. By command of

Lieut. Gen. R. J. Ewell.
A. S. Pendleton, A. A. General.

Notwithstanding the orders of both Lee and Ewell, there were numerous instances of wanton injury to property and outrages committed upon citizens. Gen. Lee reached this place on the 27th, and was doubtless informed that a portion of his army was disregarding his instructions, and he at once issued another order, as follows:

Headquarters Army Northern Virginia,
Chambersburg, Pa., June 27, 1863.

General Orders No. 73.--The Commanding General has observed with marked satisfaction the conduct of the troops on the march, and confidently anticipates results commensurate with the high spirit they have manifested.

No troops could have displayed greater fortitude, or better performed the arduous marches of the past ten days.

Their conduct in other respects has, with few exceptions, been in keeping with their character as soldiers, and entitles them to approbation and praise.

There have, however, been instances of forgetfulness on the part of some, that they have in keeping the yet unsullied reputation of this army, and that the duties exacted of us by civilization and christianity are not less obligatory in the country of the enemy than in our own.

The Commanding General considers that no greater disgrace could befal [sic] the army, and through it, our whole people, than the perpetration of the barbarous outrages upon the unarmed and defenceless, and the wanton destruction of private property, that have marked the course of the enemy in our own country.

Such proceedings not only degrade the perpetrators and all connected with them, but are subversive of the discipline and efficiency of the army, and destructive of the ends of our present movement.

It must be remembered that we make war only upon armed [illegible] and that we cannot take vengeance for the wrongs our people have suffered without lowering ourselves in the eyes of all whose abhorrence has been excited by the atrocities of our enemies, and offending against Him to whom vengeance belongeth, without whose favor and support our efforts must all prove in vain.

The Commanding General therefore earnestly exhorts the troops to abstain with most scrupulous care from unnecessary or wanton injury to private property, and he enjoins upon all officers to arrest and bring to summary punishment all who shall in any way offend against orders on this subject.

R. E. Lee, General.

The only other order issued in this valley relating to the conduct of the rebel army, was issued in the form of an address to the citizens of York, to impress the people of that ancient village of the sublimated magnanimity of the rebel commander. It was as follows:

To the Citizens of York: I have abstained from burning the railroad building and car shops in your town, because, after examination, I am satisfied the safety of the town would be endangered; and, acting in the spirit of humanity, which has ever characterized my Government and its military authorities, I do not desire to involve the innocent in the same punishment with the guilty. Had I applied the torch without regard to consequences, I would have pursued a course that would have been vindicated as an act of just retaliation for the many authorized acts of barbarity perpetrated by your own army upon our soil. But we do not war upon women and children, and I trust

the treatment you have met with at the hands of my soldiers will open your eyes to the monstrous iniquity of the war waged by your Government upon the people of the Confederate States, and that you will make an effort to shake off the revolting tyranny under which it is apparent to all you are yourselves groaning.

[. . .]

Chicago Citations

Bibliography entry:

"The Invasion!" and "The Rebel Orders!" *Franklin Repository* (Chambersburg, PA), July 15, 1863. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

"The Rebel Orders!" *Franklin Repository*, July 15, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/newspapers/franklin-repository/1863/07/15.

Shortened citation:

"The Rebel Orders!" *Franklin Repository*.

PRIMARY SOURCE P14.43

Mississippi Slaveholder to the Confederate President

O. G. Eiland to Jefferson Davis · Louisville, Mississippi, July 20, 1863

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.2 (Who Freed the Enslaved?)
WHY HERE	A slaveholder ties Confederate collapse in Mississippi to the loss of Vicksburg and to enslaved men's flight.
TREATMENT	Full public-domain text

Historical Context

The surrender of Vicksburg on July 4, 1863, gave the Union control of the Mississippi River and opened central Mississippi to Union raids.

Two weeks later O. G. Eiland, a slaveholder, wrote to Jefferson Davis that "Visburg is gone and as a consequence Mississippi is gone." He reported that enslaved men were fleeing to the Union army and urged the Confederacy to put Black men into its own army.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Louisville Miss July 20th /63

Dear Sir Visburg is gone and as a consequence Mississippi is gone and in the opinion of allmost every one here the Confederacy is gone. I can myself see but one chance, but one course to pursue to save it, and I fear it is now too late for even that to check the tide that is overwhelming us. It is simply by your own authority, and without waiting for congress to give you authority, to call out every able bodied Negro man from the age of sixteen to fifty years old. They will go readily and cheerfully. The owners would gladly give them up and afford every facility in getting them off. On every road leading from the western Country there is a constant stream of negroes running into Ala & Georgia & the Carolinas. They will destroy all the food in those states like an army of locusts. This if nothing else would starve us into subjection in a few months It is precisly what our enemy want. Take our nego men away and thereby relieve us of a dangerous element. Force the young white men, who are running off with them, into the army and we, the old men will take care of the negro women and children and make corn. Act promptly the negro men will all go to the enemy if not taken to our own army I believe fully half of them had rather go into our ranks than the Yankees They want to be in the frollick & they will be one way or the other. Away with all squeamesness about employing negroes in civilized warfare. Our enemies are doing it as rappidly as they can and we are left no other alternative.– If you knew with what pleasure I would send off every negro man I have tomorrow morning you would not dismiss this hastily. I am only one of the masses and what I say I believe nearly every slave holder in the South would say and do. With the highest considerations of respect I am verry truly youre friend.

O G Eiland

Chicago Citations

Bibliography entry:

Eiland, O. G. Letter to President Davis, July 20, 1863. B-581 1863, Letters Received, ser. 5, Secretary of War, War Department Collection of Confederate Records, Record Group 109, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

O. G. Eiland to Jefferson Davis, July 20, 1863, RG 109, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Eiland.html.

Shortened citation:

Eiland to Davis, July 20, 1863.

PRIMARY SOURCE P14.44

Mother of a Northern Black Soldier to the President

Hannah Johnson to Abraham Lincoln · Buffalo, New York, July 31, 1863

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?), 14.3 (Who Fought, and Why?), and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A Black mother presses Lincoln to protect Black soldiers and hold firm on emancipation.
TREATMENT	Full public-domain text

Historical Context

On July 18, 1863, the 54th Massachusetts led the assault on Fort Wagner near Charleston and lost nearly half its men. The Confederate Congress had declared that captured Black soldiers could be enslaved or executed.

Hannah Johnson, whose son served in the 54th, wrote to Lincoln asking him to retaliate if Black prisoners were enslaved or killed, and urging him not to take back the Emancipation Proclamation. Lincoln issued a retaliation order the day after her letter was written.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Buffalo [N.Y.] July 31 1863

Excellent Sir My good friend says I must write to you and she will send it My son went in the 54th regiment. I am a colored woman and my son was strong and able as any to fight for his country and the colored people have as much to fight for as any. My father was a Slave and escaped from Louisiana before I was born morn forty years agone I have but poor edication but I never went to schol, but I know just as well as any what is right between man and man. Now I know it is right that a colored man should go and fight for his country, and so ought to a white man. I know that a colored man ought to run no greater risques than a white, his pay is no greater his obligation to fight is the same. So why should not our enemies be compelled to treat him the same, Made to do it.

My son fought at Fort Wagoner but thank God he was not taken prisoner, as many were I thought of this thing before I let my boy go but then they said Mr. Lincoln will never let them sell our colored soldiers for slaves, if they do he will get them back quck he will rettallyate and stop it. Now Mr Lincoln dont you think you oght to stop this thing and make them do the same by the colored men they have lived in idleness all their lives on stolen labor and made savages of the colored people, but they now are so furious because they are proving themselves to be men, such as have come away and got some edication. It must not be so. You must put the rebels to work in State prisons to making shoes and things, if they sell our colored soldiers, till they let them all go. And give their wounded the same treatment. it would seem cruel, but their no other way, and a just man must do hard things sometimes, that shew him to be a great man. They tell me some do you will take back the Proclamation, don't do it. When you are dead and in Heaven, in a thousand years that action of yours will make the Angels sing your praises I know it. Ought one man to own another, law for or not, who made the law, surely the poor slave did not. so it is wicked, and a horrible Outrage, there is no sense in it, because a man has lived by robbing all his life and his father before him, should he complain because the stolen things found on him are taken. Robbing the colored people of their labor is but a small part of the robbery their souls are almost taken, they are made bruits of often. You know all about this

Will you see that the colored men fighting now, are fairly treated. You ought to do this, and do it at once, Not let the thing run along meet it quickly and manfully, and stop this, mean cowardly cruelty. We poor oppressed ones, appeal to you, and ask fair play. Yours for Christs sake

Hannah Johnson.

[In another handwriting] Hon. Mr. Lincoln The above speaks for itself Carrie Coburn

Chicago Citations

Bibliography entry:

Johnson, Hannah. Letter to Abraham Lincoln, July 31, 1863. J-17 1863, Letters Received, ser. 360, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Hannah Johnson to Abraham Lincoln, July 31, 1863, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/hjohnsn.htm.

Shortened citation:

Johnson to Lincoln, July 31, 1863.

PRIMARY SOURCE P14.45

Report of Gen. Robert E. Lee on the Gettysburg Campaign (excerpt)

Robert E. Lee to Samuel Cooper · July 31, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	The defeated commander explains in his own words why he attacked and why the battle was lost.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

After his victory at Chancellorsville in May 1863, Robert E. Lee invaded Pennsylvania. At Gettysburg on July 1–3 his army failed to break the Union line, and Pickett's Charge on the third day ended in heavy losses.

Four weeks later Lee sent this outline report to Adjutant General Samuel Cooper in Richmond. He explained why he had attacked and acknowledged the failure, though without blaming specific subordinates.

Editorial note: The text follows the Internet Archive scan of the *Official Records*; stray characters from the page gutter have been removed. The Norton collection's volume citation for this report contains a printing error.

Document Text

[. . .]

Headquarters Army of Northern Virginia,

July 31, 1863.

General : I have the honor to submit the following outline of the recent operations of this army, for the information of the Department :

[. . .]

in the meantime, every effort was made to ascertain the numbers and position of the enemy, and find the most favorable point of attack. It had not been intended to fight a general battle at such a distance i from our base, unless attacked by the enemy, but, finding ourselves unexpectedly confronted by the Federal Army, it became a matter of difficulty to withdraw through the mountains with our large trains. ; At the same time, the country was unfavorable for collecting supplies while in the presence of the enemy’s main body, as he was enabled to restrain our f oraging parties by occupying the passes of the r mountains with regular and local troops. A battle thus became, in a measure, unavoidable. Encouraged by the successful issue of the engagement of the first day, and in view of the valuable results that would ensue from the defeat of the army of General Meade, it was thought advisable to renew the attack. The remainder of Ewell’s and Hill’s corps having arrived, and two divisions of Longstreet’s, our preparations were made accordingly. During the afternoon, intelligence was received of the arrival of General Stuart at 1 Carlisle, and he was ordered to march to Gettysburg and take position on our left. A full account of these engagements cannot be (given until the reports of the several commanding officers shall have J been received, and I shall only offer a general description.

The preparations for attack were not completed until the afternoon of the 2d. The enemy held a high and commanding ridge, along which he had massed a large amount of artillery. General Ewelll occupied the left of our line, General Hill the center, and General Longstreet the right. In front of General Longstreet the enemy held \ a position from which, if he could be driven, it was thought our ar- s tiller y could be used to advantage in assailing

the more elevated] ground beyond, and thus enable us to reach the crest of the ridge. J That officer was directed to endeavor to carry this position, while General Ewell attacked directly the high ground on the enemy's! right, which had already been partially fortified. General Hill was! instructed to threaten the center of the Federal line, in order to pre- < vent re-enforcements being sent to either wing, and to avail himself i of any opportunity that might present itself to attack. After a severe l struggle, Longstreet succeeded in getting possession of alid holding j the desired ground. Ewell also carried some of the strong positions 1 which he assailed, and the result was such as to lead to the belief that he would ultimately be able to dislodge the enemy. The battle ceased! at dark.

These partial successes determined me to continue the assault next day. Pickett, with three of his brigades, joined Longstreet the following morning, and our batteries were moved forward to the positions gained by him the day before. The general plan of attack was unchanged, excepting that one division and two brigades of Hilts! corps were ordered to support Longstreet.

The enemy, in the meantime, had strengthened his lines with earthworks. The morning was occupied in necessary preparations, and the battle recommenced in the afternoon of the 3d, and raged with] great violence until sunset. Our troops succeeded in entering th< advanced works of the enemy, and getting possession of some of his batteries, but our artillery having nearly expended its ammunition.* the attacking columns became exposed to the heavy fire of the numer- 1 ous batteries near the summit of the ridge, and, after a most determined and gallant struggle, were compelled to relinquish their ad- .; vantage, and fall back to their original positions with severe loss. '

[. . .]

The conduct of the troops was all that I could desire or expect, and they deserve success so far as it can be deserved by heroic valor and fortitude. More may have been required of them than they were able to perform, but my admiration of their noble qualities and confidence in their ability to cope successfully with the enemy has suffered no abatement from the issue of this protracted and sanguinary conflict.

Owing to the strength of the enemy's position, and the reduction of our ammunition, a renewal of the engagement could not be hazarded, and the difficulty of procuring supplies rendered it impossible to continue longer where we were. Such of the wounded as were in condition to be removed, and part of the arms collected on the field, were ordered to Williamsport.

[. . .]

Chicago Citations

Bibliography entry:

Lee, Robert E. Report to Samuel Cooper, July 31, 1863. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 1, vol. 27, pt. 2, 305–11. Washington, DC: Government Printing Office, 1889. Internet Archive.

Footnote citation:

Robert E. Lee to Samuel Cooper, July 31, 1863, in *Official Records*, ser. 1, vol. 27, pt. 2 (Washington, DC: Government Printing Office, 1889), 305–11, https://archive.org/details/warofrebellion272unit.

Shortened citation:

Lee to Cooper, July 31, 1863.

PRIMARY SOURCE P14.46

Massachusetts Black Corporal to the President

Corporal James Henry Gooding to Abraham Lincoln · Morris Island, South Carolina, September 28, 1863

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.3 (Who Fought, and Why?)
WHY HERE	A Black corporal argues for equal pay because his regiment fought as soldiers for the nation and for freedom.
TREATMENT	Full public-domain text

Historical Context

Black soldiers enlisted under a promise of the same pay as white soldiers, $13 a month. In June 1863 the War Department ruled that they would receive laborers' pay of $10, minus $3 for clothing. The 54th and 55th Massachusetts refused to accept any pay at all rather than accept less.

James Henry Gooding (1838–1864), a corporal in the 54th who had fought at Fort Wagner, wrote to Lincoln asking whether Black soldiers were soldiers or laborers. Congress granted equal pay in June 1864. Gooding died as a prisoner at Andersonville.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Morris Island [S.C.]. Sept 28th 1863.

Your Excelency will pardon the presumtion of an humble individual like myself, in addressing you. but the earnest Solicitation of my Comrades in Arms, besides the genuine interest felt by myself in the matter is my excuse, for placing before the Executive head of the Nation our Common Grievance: On the 6th of the last Month, the Paymaster of the department, informed us, that if we would decide to recieve the sum of $10 (ten dollars) per month, he would come and pay us that sum, but, that, on the sitting of Congress, the Regt would, in his opinion, be allowed the other 3 (three.) He did not give us any guarantee that this would be, as he hoped, certainly he had no authority for making any such guarantee, and we can not supose him acting in any way interested. Now the main question is. Are we Soldiers, or are we LABOURERS. We are fully armed, and equipped, have done all the various Duties, pertaining to a Soldiers life, have conducted ourselves, to the complete satisfaction of General Officers, who, were if any, prejudiced against us, but who now accord us all the encouragement, and honour due us: have shared the perils, and Labour, of Reducing the first stronghold, that flaunted a Traitor Flag: and more, Mr President. Today, the Anglo Saxon Mother, Wife, or Sister, are not alone, in tears for departed Sons, Husbands, and Brothers. The patient Trusting Decendants of Africs Clime, have dyed the ground with blood, in defense of the Union, and Democracy. Men too your Excellency, who know in a measure, the cruelties of the Iron heel of oppression, which in years gone by, the very Power, their blood is now being spilled to maintain, ever ground them to the dust. But When the war trumpet sounded o'er the land, when men knew not the Friend from the Traitor, the Black man laid his life at the Altar of the Nation,–and he was refused. When the arms of the Union, were beaten, in the first year of the War, And the Executive called more food. for its ravaging maw, again the black man begged, the privelege of Aiding his Country in her need, to be again refused, And now, he is in the War: and how has he conducted himself? Let their dusky forms, rise up, out the mires of James Island, and give the answer. Let the rich mould around Wagners parapets be upturned, and there will be found an Eloquent answer. Obedient and patient, and Solid as a wall are they. all we lack, is a paler hue, and a better acquaintance with the Alphabet. Now Your Excellency, We have done a Soldiers Duty. Why cant we have a Soldiers pay? You caution the Rebel Chieftain, that the United States, knows, no distinction, in her Soldiers: She insists on having all her Soldiers, of whatever, creed or Color, to be treated, according to the usages of War. Now if the United States exacts uniformity of treatment of

her Soldiers, from the Insurgents, would it not be well, and consistent, to set the example herself, by paying all her Soldiers alike? We of this Regt. were not enlisted under any “contraband” act. But we do not wish to be understood, as rating our Service, of more Value to the Government, than the service of the exslave, Their Service is undoubtedly worth much to the Nation, but Congress made express, provision touching their case, as slaves freed by military necessity, and assuming the Government, to be their temporary Gaurdian:– Not so with us–Freemen by birth, and consequently, having the advantage of thinking, and acting for ourselves, so far as the Laws would allow us. We do not consider ourselves fit subjects for the Contraband act. We appeal to You, Sir: as the Executive of the Nation, to have us Justly Dealt with. The Regt, do pray, that they be assured their service will be fairly appreciated, by paying them as american SOLDIERS, not as menial hierlings. Black men You may well know, are poor, three dollars per month, for a year, will suply their needy Wives, and little ones, with fuel. If you, as chief Magistrate of the Nation, will assure us, of our whole pay. We are content, our Patriotism, our enthusiasm will have a new impetus, to exert our energy more and more to aid Our Country. Not that our hearts ever flagged, in Devotion, spite the evident apathy displayed in our behalf, but We feel as though, our Country spurned us, now we are sworn to serve her.

Please give this a moments attention

James Henry Gooding

Chicago Citations

Bibliography entry:

Gooding, James Henry. Letter to Abraham Lincoln, September 28, 1863. Enclosed in [Harper & Brothers] to [Abraham Lincoln], October 12, 1863, H-133 1863, Letters Received, ser. 360, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

James Henry Gooding to Abraham Lincoln, September 28, 1863, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/gooding.htm.

Shortened citation:

Gooding to Lincoln, September 28, 1863.

PRIMARY SOURCE P14.47

Report of Maj. Gen. George G. Meade on the Gettysburg Campaign (excerpt)

George G. Meade to Henry W. Halleck · October 1, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	The victorious commander's report gives the Union account of the battle and the pursuit Lincoln found too slow.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

George G. Meade (1815–1872) took command of the Army of the Potomac on June 28, 1863, three days before Gettysburg. His army held its defensive line and repulsed Lee's attacks.

Lincoln was bitterly disappointed that Meade did not destroy Lee's army before it recrossed the Potomac. Meade's official report, sent in October, describes the battle and the pursuit.

Editorial note: The text follows the Internet Archive scan of the *Official Records*; stray characters from the page gutter have been removed. The Norton collection's volume citation for this report contains a printing error.

Document Text

[. . .]

Headquarters Army of the Potomac,

October 1, 1863.

General : I have the honor to submit herewith a report of the operations of this armv during the month of July last, including the details of the battle of Gettysburg, delayed by the failure to receive until now the reports of several corps and division commanders, who; were severely wounded in the battle.

On June 28, I received the orders of the President of the United States placing me in command of the Army of the Potomac. The situation of affairs at that time was briefly as follows :

The Confederate army, commanded by General K. E. Lee, estimated at over 100,000 strong, of all arms, had crossed the Potomac River and advanced up the Cumberland Valley. Reliable intelligence placed his advance (Ewell’s corps) on the Susquehanna, ai Harrisburg and Columbia ; Longstreet’s corps at Chambersburg, and Hill’s corps between that place and Cashtown. My own army, of which the most recent return showed an aggregate of a little ovei 100,000, was situated in and around Frederick, Md., extending from Harper’s Ferry to the mouth of the Monocacy, and from Middletown to Frederick.

[. . .]

With this exception, the quiet of the lines remained undisturbed tin 1 p. m. on the 3d, when the enemy opened from over one hundred and twenty-five guns, playing upon our center and left. This cannonade continued for over two hours, when our guns, in obedience to my orders, failing to make any reply, the enemy ceased firing, and soon his masses of infantry became visible, forming for an assault on our left and left center. The assault was made with great firmness, directed principally against the point occupied by the Second Corps, and was repelled with equal firmness by the troops of that corps, supported by Doubleday’s division and Stannard’s brigade of the First Corps. During the assault, both Major-General Hancock, commanding the left center, and Brigadier-General Gibbon, commanding Second Corps, were severely wounded. This terminated the battle, the enemy retiring to his lines,

leaving the field strewn with his dead and wounded, and numerous prisoners in our hands.

[. . .]

Chicago Citations

Bibliography entry:

Meade, George G. Report to Henry W. Halleck, October 1, 1863. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 1, vol. 27, pt. 1, 114–19. Washington, DC: Government Printing Office, 1889. Internet Archive.

Footnote citation:

George G. Meade to Henry W. Halleck, October 1, 1863, in *Official Records*, ser. 1, vol. 27, pt. 1 (Washington, DC: Government Printing Office, 1889), 114–19, https://archive.org/details/warofrebellion271unit.

Shortened citation:

Meade to Halleck, October 1, 1863.

PRIMARY SOURCE P14.48

The Gettysburg Address

Abraham Lincoln · Gettysburg, Pennsylvania, November 19, 1863

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.3 (Who Fought, and Why?)
WHY HERE	Lincoln defines what Union soldiers died for and ties the Union cause to freedom.
TREATMENT	Full public-domain text

Historical Context

Four and a half months after the battle, Lincoln spoke at the dedication of a national cemetery for the Union dead at Gettysburg. The main oration, two hours long, was given by Edward Everett.

Lincoln's address of about 270 words described the war as a test of whether a nation "dedicated to the proposition that all men are created equal" could endure, and called for "a new birth of freedom."

Editorial note: Five manuscript copies survive. The text follows the American Battlefield Trust transcription of the Bliss copy, Lincoln's final version.

Document Text

Gettysburg Address
Delivered at Gettysburg, Pa.
Nov. 19th 1863.

Four score and seven years ago our fathers brought forth on this continent a new nation, conceived in liberty, and dedicated to the proposition that all men are created equal.

Now we are engaged in a great civil war, testing whether that nation, or any nation so conceived and so dedicated, can long endure. We are met on a great battlefield of that war. We have come to dedicate a portion of that field as a final resting place for those who here gave their lives that that nation might live. It is altogether fitting and proper that we should do this.

But in a larger sense we cannot dedicate, we cannot consecrate, we cannot hallow this ground. The brave men, living and dead, who struggled here have consecrated it, far above our poor power to add or detract. The world will little note, nor long remember, what we say here, but it can never forget what they did here. It is for us the living, rather, to be dedicated here to the unfinished work which they who fought here have thus far so nobly advanced. It is rather for us to be here dedicated to the great task remaining before us,that from these honored dead we take increased devotion to that cause for which they gave the last full measure of devotion, that we here highly resolve that these dead shall not have died in vain, that this nation, under God, shall have a new birth of freedom, and that government of the people, by the people, for the people, shall not perish from the earth.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Address at Gettysburg, November 19, 1863 (Bliss copy). American Battlefield Trust.

Footnote citation:

Abraham Lincoln, Gettysburg Address, November 19, 1863 (Bliss copy), American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/abraham-lincolns-gettysburg-address.

Shortened citation:

Lincoln, Gettysburg Address.

PRIMARY SOURCE P14.49

North Carolina Slaveholder to the Confederate President

Jere Pearsall to Jefferson Davis · Kenansville, North Carolina, November 25, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	Local slaveholders' needs clash with Richmond's demand for soldiers.
TREATMENT	Full public-domain text

Historical Context

By late 1863 deserters and escaping enslaved people were moving through eastern North Carolina, near Union-held New Bern. County patrols, the traditional means of controlling the enslaved, depended on men who were also wanted by the army.

Jere Pearsall asked Davis to keep a local patrol guard in Duplin County rather than send its men to the front. Secretary of War James A. Seddon refused, writing that the men were better used in the army.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, including Seddon's endorsement of December 17, 1863.

Document Text

Kenansville N.C. 25th Novr 1863.

His excellency Prest Davis, A perfect stranger presumes to address you in behalf of his Countrymen.

Some time during the past year, the Govr of this State ordered a detail of Patrol guard for this County, amounting to twenty men; and immediately thereafter, the Citizens made up a fund & purchased a pack of Hounds at heavy cost to accompany them; and I have no fears of contradiction, when I say they have been of great service in preventing escapes of Slaves, & also preventing desertions &c.

The Govr issued his order to the Col of the County, and he made his appointments under my advisement (as Chairn of Co. Ct) as also of other Citizens which he relied upon for Counsel: The appointment I think was a good one; and (by no means reflecting on our respectable troops in this County,) I must be pardoned for saying that the said Patrol have been “the ounce of preventive in place of the pound of Cure” We are here not far distant from the Yankee lines; and you well Know a good watch should be Kept. Since the organization of this Company, there has been no attempt of escapes by the Slaves but one, (save in the Raid in July) and the whole number of negroes (save one, & he was shot & killed near the Yankee lines) were Captured & returned to their owners through this Company. I have just heard, that the said Company has been disbanded, and the members of the Company conscripted. I hope it is not so. But if such be the order, I hope your Excellency will reverse the order, & commission the said Company to attend to their former duties. Ours is almost a defenceless section, and this Guard we consider a very valuable outpost. It secures us from escapes & deserters; and is also an important Courier establishment to the army; they quartering & manouvering on or near the line of separation &.c.

I repeat my request that your Excellency will continue the protection to this section by Continuing the Patrol Organization mentioned. With much respect &c. I have the honor to be Your Obet Servt &.c.

Jere Pearsall

Reference,
Hon Wm T. Dortch

" Geo. Davis
" O. R. Kenan

Chicago Citations

Bibliography entry:

Pearsall, Jere. Letter to President Davis, November 25, 1863. P-141 1863, Letters Received, ser. 12, Adjutant and Inspector General, War Department Collection of Confederate Records, Record Group 109, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Jere Pearsall to Jefferson Davis, November 25, 1863, RG 109, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Pearsall.html.

Shortened citation:

Pearsall to Davis, November 25, 1863.

PRIMARY SOURCE P14.50

John Newton Pearce to Lizzie Brown

John N. Pearce, Company A, 19th Virginia Infantry · December 21, 1863

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.3 (Who Fought, and Why?)
WHY HERE	A Confederate private writes that soldiers felt coerced and trapped in service by late 1863.
TREATMENT	Full public-domain text

Historical Context

The Valley of the Shadow project collected letters, diaries, and records from two neighboring communities: Augusta County, Virginia, and Franklin County, Pennsylvania.

John Newton Pearce, a private from Augusta County, wrote to a young woman at home during the hard winter after Gettysburg. He described army life and complained that "a soldier is worse than a negro used to be."

Editorial note: The text follows the Valley of the Shadow transcription, which preserves Pearce's spelling and punctuation.

Document Text

Dec 21st 1863

Camp Chaffies Damn

Dear Miss Lizzie

I set down to write you a few lines to let you know that i am well i dont know that this letter will be acceptable but if you think this is worth the time of answering i will be very glad to here from you i would take a great pleasure in reading your letters i wish this cruel war was over so we could all come home again and enjoy ourselves once more but i would like might well to be at home Christmas So i could come to Staunton i think i could enjoy myself first rate in Staunton but there is no chance of my getting away from here a soldier is worse than a negro used to be we have to get a whole sheet of paper full of writing before we can get home and it is such a lazy life not praising myself for i am a little touched with it myself i have been very hard at work all day getting timber to build a house you must excuse this short letter but i will try and do better next time it is very cold here at this time but we enjoy ourselves first rate we have good quarters and plenty of wood there is not much news here to write if you think this is worth answering i would like to hear from you in a short time so good night

from

John N. Pearce

Here is My Address
John N. Pearce
Co. A, 19

th Va. Regt
Herntons Brigade
Richmond V a

Chicago Citations

Bibliography entry:

Pearce, John Newton. Letter to Lizzie Brown, December 21, 1863. Augusta County Letters. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

John Newton Pearce to Lizzie Brown, December 21, 1863, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/A1128.

Shortened citation:

Pearce to Brown, December 21, 1863.

PRIMARY SOURCE P14.51

Missouri Slave Woman to Her Soldier Husband (Martha Glover)

Martha Glover to Richard Glover · Mexico, Missouri, December 30, 1863

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	An enslaved soldier's wife describes the punishment her family suffered after he enlisted.
TREATMENT	Full public-domain text

Historical Context

Missouri was a Union slave state, so the Emancipation Proclamation did not apply there. When the army began enlisting enslaved Missouri men in late 1863, the men gained freedom but their families remained enslaved.

Martha Glover wrote to her husband Richard, who had enlisted, that she had suffered nothing but trouble since he left. Her owners blamed and punished her and the children for his departure. The letter reached the army because it was sent through his commander.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Mexico Mo Dec 30th 1863

My Dear Husband I have received your last kind letter a few days ago and was much pleased to hear from you once more. It seems like a long time since you left me. I have had nothing but trouble since you left. You recollect what I told you how they would do after you was gone. they abuse me because you went & say they will not take care of our children & do nothing but quarrel with me all the time and beat me scandalously the day before yesterday– Oh I never thought you would give me so much trouble as I have got to bear now. You ought not to left me in the fix I am in & all these little helpless children to take care of. I was invited to a party to night but I could not go I am in too much trouble to want to go to parties. the children talk about you all the time. I wish you could get a furlough & come to see us once more. We want to see you worse than we ever did before. Remember all I told you about how they would do me after you left–for they do worse than they ever did & I do not know what will become of me & my poor little children. Oh I wish you had staid with me & not gone till I could go with you for I do nothing but grieve all the time about you. write & tell me when you are coming.

Tell Isaac that his mother come & got his clothes she was so sorry he went. You need not tell me to beg any more married men to go. I see too much trouble to try to get any more into trouble too– Write to me & do not forget me & my children– farewell my dear husband from your wife

Martha

Chicago Citations

Bibliography entry:

Glover, Martha. Letter to Richard Glover, December 30, 1863. Enclosed in Brig. Gen. William A. Pile to Maj. O. D. Greene, February 11, 1864, P-91 1864, Letters Received, ser. 2593, Department of the Missouri, U.S. Army Continental Commands, Record Group 393, pt. 1, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Martha Glover to Richard Glover, December 30, 1863, RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Glover.html.

Shortened citation:

Glover to Glover, December 30, 1863.

PRIMARY SOURCE P14.52

Zebulon B. Vance to Jefferson Davis, December 30, 1863

Zebulon B. Vance, Governor of North Carolina · December 30, 1863

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	North Carolina's governor reports fading home-front support and urges Davis to seek peace.
TREATMENT	Full public-domain text

Historical Context

Zebulon B. Vance (1830–1894) was elected governor of North Carolina in 1862. He supported the war but fought Richmond over conscription, impressment, and the suspension of habeas corpus.

By late 1863 a peace movement led by the editor William W. Holden was spreading in North Carolina. Vance told Davis that the discontent might be eased if the Confederate government made some formal effort to open peace negotiations.

Editorial note: The text follows the Civil War Era NC transcription.

Document Text

ZBV to Jefferson Davis

State of North Carolina
Executive Department
Raleigh, Dec. 30th. 1863

His Excellency
President Davis

My dear Sir:
After a careful consideration of all the sources of discontent in North Carolina, I have concluded that it will be perhaps impossible to remove it except by making some effort at negotiation with the enemy. The recent action of the Federal House of Representatives, though meaning very little, has greatly excited the public hope that the Northern mind is looking towards peace. I am promised by all men who advocate this course, that if fair terms are rejected it will tend greatly to strengthen and intensify the war feeling and will rally all classes to a more cordial support of the government. And although our position is well known, as demanding only to be let alone yet it seems to me that for the sake of humanity, without having any weak or improper motives attributed to us, we might with property constantly tender negotiations.
In doing so we would keep conspicuously before the world a disclaimer of our responsibility for the great slaughter of our race and convince the humblest of our citizens, who sometimes forget the actual situation, that the government is tender of their lives and happiness and would not prolong their sufferings unnecessarily one moment. Though Statesmen might regard this as useless, the people will not, and I think our cause will be strengthened thereby. I have not suggested the method of these negotiations or their terms, the effort to obtain peace is the principal matter. Allow me to beg your earnest consideration of this suggestion.

Very respectfully Yours
Z. B. Vance

Chicago Citations

Bibliography entry:

Vance, Zebulon B. Letter to Jefferson Davis, December 30, 1863. Civil War Era NC, North Carolina State University.

Footnote citation:

Zebulon B. Vance to Jefferson Davis, December 30, 1863, via Civil War Era NC, https://cwnc.omeka.chass.ncsu.edu/items/show/2778.

Shortened citation:

Vance to Davis, December 30, 1863.

PRIMARY SOURCE P14.53

Memorial on Arming Slaves (excerpt)

Patrick R. Cleburne and officers of the Army of Tennessee · January 2, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?), 14.2 (Who Freed the Enslaved?), and 14.3 (Who Fought, and Why?)
WHY HERE	A Confederate general concedes that the South is losing on manpower and that slavery itself weakens it.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Patrick R. Cleburne (1828–1864), an Irish-born Arkansas lawyer, was one of the Confederacy's best division commanders. After defeats at Chattanooga, he and other officers presented this memorial to their commanding general, Joseph E. Johnston.

Cleburne argued that the Confederacy was losing because of its shortage of men and that slavery had become "one of our chief sources of weakness." He proposed enlisting enslaved men and freeing those who fought. Davis ordered the proposal suppressed; Cleburne was killed at Franklin that November.

Editorial note: The memorial survived only in a copy and was printed in the *Official Records* in 1898. The text follows the American Battlefield Trust transcription.

Document Text

[. . .]

Moved by the exigency in which our country is now placed we take the liberty of laying before you, unofficially, our views on the present state of affairs. The subject is so grave, and our views so new, we feel it a duty both to you and the cause that before going further we should submit them for your judgment and receive your suggestions in regard to them. We therefore respectfully ask you to give us an expression of your views in the premises. We have now been fighting for nearly three years, have spilled much of our best blood, and lost, consumed, or thrown to the flames an amount of property equal in value to the specie currency of the world. Through some lack in our system the fruits of our struggles and sacrifices have invariably slipped away from us and left us nothing but long lists of dead and mangled. Instead of standing defiantly on the borders of our territory or harassing those of the enemy, we are hemmed in to-day into less than two-thirds of it, and still the enemy menacingly confronts us at every point with superior forces. Our soldiers can see no end to this state of affairs except in our own exhaustion; hence, instead of rising to the occasion, they are sinking into a fatal apathy, growing weary of hardships and slaughters which promise no results. In this state of things it is easy to understand why there is a growing belief that some black catastrophe is not far ahead of us, and that unless some extraordinary change is soon made in our condition we must overtake it. The consequences of this condition are showing themselves more plainly every day; restlessness of morals spreading everywhere, manifesting itself in the army in a growing disregard for private rights; desertion spreading to a class of soldiers it never dared to tamper with before; military commissions sinking in the estimation of the soldier; our supplies failing; our firesides in ruins. If this state continues much longer we must be subjugated. Every man should endeavor to understand the meaning of subjugation before it is too late. We can give but a faint idea when we say it means the loss of all we now hold most sacred — slaves and all other personal property, lands, homesteads, liberty, justice, safety, pride, manhood. It means that the history of this heroic struggle will be written by the enemy; that our youth will be trained by Northern school teachers; will learn from Northern school books their version of the war; will be impressed by all the influences of history and education to regard our gallant dead as traitors, our maimed veterans as fit objects for derision. It means the

crushing of Southern manhood, the hatred of our former slaves, who will, on a spy system, be our secret police. The conqueror's policy is to divide the conquered into factions and stir up animosity among them, and in training an army of negroes the North no doubt holds this thought in perspective. We can see three great causes operating to destroy us: First, the inferiority of our armies to those of the enemy in point of numbers; second, the poverty of our single source of supply in comparison with his several sources; third, the fact that slavery, from being one of our chief sources of strength at the commencement of the war, has now become, in a military point of view, one of our chief sources of weakness.

The enemy already opposes us at every point with superior numbers, and is endeavoring to make the preponderance irresistible. President Davis, in his recent message, says the enemy "has recently ordered a large conscription and made a subsequent call for volunteers, to be followed, if ineffectual by a still further draft." In addition, the President of the United States announces that "he has already in training an army of 100,000 negroes as good as any troops," and every fresh raid he makes and new slice of territory he wrests from us will add to this force. Every soldier in our army already knows and feels our numerical inferiority to the enemy. Want of men in the field has prevented him from reaping the fruits of his victories, and has prevented him from having the furlough he expected after the last reorganization, and when he turns from the wasting armies in the field to look at the source of supply, he finds nothing in the prospect to encourage him. Our single source of supply is that portion of our white men fit for duty and not now in the ranks. The enemy has three sources of supply: First, his own motley population; secondly, our slaves; and thirdly, Europeans whose hearts are fired into a crusade against us by fictitious pictures of the atrocities of slavery, and who meet no hindrance from their Governments in such enterprise, because these Governments are equally antagonistic to the institution. In touching the third cause, the fact that slavery has become a military weakness, we may rouse prejudice and passion, but the time has come when it would be madness not to look at our danger from every point of view, and to probe it to the bottom. Apart from the assistance that home and foreign prejudice against slavery has given to the North, slavery is a source of great strength to the enemy in a purely military point of view, by supplying him with an army from our granaries; but it is our most vulnerable point, a continued embarrassment, and in some respects an insidious weakness. Wherever slavery is once seriously disturbed, whether by the actual presence or the approach of the enemy, or even by a cavalry raid, the whites can no longer with safety to their property openly sympathize with our cause. The fear of their slaves is continually haunting them, and from silence and apprehension many of these soon learn to wish the war stopped on any terms. The next stage is to take the oath to save property, and they become dead to us, if not open enemies. To prevent raids we are forced to scatter our forces, and are not free to move and strike like the enemy; his vulnerable points are carefully selected and fortified depots. Ours are found in every point where there is a slave to set free. All along the lines slavery is comparatively valueless to us for labor, but of great and increasing worth to the enemy for information. It is an omnipresent spy system, pointing out our valuable men to the enemy, revealing our positions, purposes, and resources, and yet acting so safely and secretly that there is no means to guard against it. Even in the heart of our country, where our hold upon this secret espionage is firmest, it waits but the opening fire of the enemy's battle line to wake it, like a torpid serpent, into venomous activity.

[. . .]

Chicago Citations

Bibliography entry:

Cleburne, Patrick R., et al. Memorial to the Commanding General, Army of Tennessee, January 2, 1864. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 1, vol. 52, pt. 2, 586–92. Washington, DC: Government Printing Office, 1898. American Battlefield Trust.

Footnote citation:

Patrick R. Cleburne et al., memorial, January 2, 1864, in *Official Records*, ser. 1, vol. 52, pt. 2, 586–92, via American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/patrick-cleburnes-proposal-arm-slaves.

Shortened citation:

Cleburne et al., memorial, January 2, 1864.

PRIMARY SOURCE P14.54

Testimony by a Northern Woman (Louisa Jane Barker)

Louisa Jane Barker · Washington, D.C.(?), [January?] 1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A northern relief worker describes the army evicting freedpeople, a Counter-Argument to a simple liberation story.
TREATMENT	Full public-domain text

Historical Context

Thousands of freedpeople gathered around Washington during the war. Louisa Jane Barker, wife of a Massachusetts chaplain, worked among them near the Union forts in northern Virginia.

In this testimony she described how freedpeople had built a small village on land assigned to them by an army officer, and how a later order forced them out and broke up families.

Editorial note: The place and date are the editors' best estimates. The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Washington, D.C.? January? 1864]

Mrs Louisa Jane Barker (wife of Chaplain Barker (1st Mass Heavy Artillery

I know the spot of ground which was assigned by Lieut Shepard to the colord people to build their cottages upon. A little village had collected there. I made frequent visits among them to ascertain their wants, plans occupations &c Their freedom had been taken mostly under the Presidents [Emancipation] proclamation of January 1st 1863 Since that time they had not only supported themselves, and their families, but saved money enough to build the little shanties they then occupied They expressed great reluctance to enter the contraband camp, because they felt more independent in supporting themselves, and families, after the manner of white laborers.

I think they were proud of their past success– The first help they required was education– Every head of a family eagerly entered into my proposition to start a school for their children They gave their names to be responsible for tuition at any rate I might decide upon to be paid monthly– A well educated mulatto woman engaged to take the school as soon as a building could be procured I interested some gentlemen of Boston in my plan, and had obtained the promise of a contribution of a part, if not the whole of a school house, when the whole project was thwarted by a sudden order for a second removal of this village outside of the Rifle pits or into the Contraband Camp. This order created great unhappiness amongst them–

I enquired of the most intelligent negro whether any complaint had been made to him as to the new settlement– He had not heard of any just ground of complaint from any one– several groundless complaints had been mad: there was no truth in them.

About ten days after this conversation a body of soldiers entered the village claiming to have been sent by Genl Augur with peremptory orders “to clear out this village.” This order was executed so literally that even a dying child was ordered out of the house– The grandmother who had taken care of it since its mothers death begged leave to stay until the child died, but she was refused

The men who were absent at work, came home at night to find empty houses, and their families gone, they knew not whither!– Some of them came to Lieut Shepard to enquire for their lost wives and children–

In tears and indignation they protested against a tyranny worse than their past experiences of slavery– One man said “I am going back to my old master– I never saw hard times till since I called myself a freeman–

I have never seen any of the sixteen families composing this settlement since the conversation above alluded to; and I regret to find that I have lost the list of their names–

Chicago Citations

Bibliography entry:

Barker, Louisa Jane. Testimony, [January? 1864]. Miscellaneous Records, ser. 5412, Department of Washington, U.S. Army Continental Commands, Record Group 393, pt. 1, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Testimony of Louisa Jane Barker, [January? 1864], RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Barker.html.

Shortened citation:

Barker, testimony, 1864.

PRIMARY SOURCE P14.55

Missouri Slave Woman to Her Soldier Husband (Ann)

Ann to Andrew Valentine (written for her by James A. Carney) · Paris, Missouri, January 19, 1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	An enslaved soldier's wife describes worsening treatment after her husband enlisted.
TREATMENT	Full public-domain text

Historical Context

Ann, an enslaved woman in Paris, Missouri, could not write. She dictated this letter to her husband, Andrew Valentine, who had enlisted in a Black regiment.

She told him that her owners were treating her "worse and worse every day" and that their child cried for him, and she asked him to find a way to get her away.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Paris Mo Jany 19, 1864

My Dear Husband I r'ecd your letter dated Jan'y 9th also one dated Jany 1st but have got no one till now to write for me. You do not know how bad I am treated. They are treating me worse and worse every day. Our child cries for you. Send me some money as soon as you can for me and my child are almost naked. My cloth is yet in the loom and there is no telling when it will be out. Do not send any of your letters to Hogsett especially those having money in them as Hogsett will keep the money. George Combs went to Hannibal soon after you did so I did not get that money from him. Do the best you can and do not fret too much for me for it wont be long before I will be free and then all we make will be ours. Your affectionate wife

Ann

P.S. Sind our little girl a string of beads in your next letter to remember you by. Ann

[Endorsement] Andy if you send me any more letters for your wife do not send them in the care of any one. Just direct them plainly to James A Carney Paris Monroe County Mo. Do not write too often Once a month will be plenty and when you write do not write as though you had recd any letters for if you do your wife will not be so apt to get them. Hogsett has forbid her coming to my house so we cannot read them to her privately. If you send any money I will give that to her myself. Yrs &c Jas A Carney

Chicago Citations

Bibliography entry:

Ann. Letter to Andrew Valentine, January 19, 1864. Records of the U.S. Army Continental Commands, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Ann to Andrew Valentine, January 19, 1864, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Ann.html.

Shortened citation:

Ann to Valentine, January 19, 1864.

PRIMARY SOURCE P14.56

To the Women of the Republic

Women's Loyal National League · 1863–64

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	Women organize a national petition drive for abolition, pressing Congress toward the Thirteenth Amendment.
TREATMENT	Full public-domain text

Historical Context

In May 1863 Elizabeth Cady Stanton and Susan B. Anthony founded the Women's Loyal National League to press for an amendment abolishing slavery everywhere in the United States.

This appeal asked women to sign and circulate petitions. By early 1864 they had 100,000 signatures and wanted a million. The League eventually delivered some 400,000 signatures to Congress, the largest petition campaign of the era.

Editorial note: The planned host, docsteach.org, was blocked by a bot check. The text follows the Wikisource transcription of the printed appeal.

Document Text

We ask you to sign and circulate this petition for the entire abolition of Slavery. We have now one hundred thousand signatures, but we want a million before Congress adjourns. Remember the President's Proclamation reaches only the Slaves of Rebels. The jails of LOYAL Kentucky are to-day "crammed" with Georgia, Mississippi and Alabama slaves, advertised to be sold for their jail fees "according to LAW," precisely as before the war!!! While slavery exists anywhere there can be freedom nowhere. There must be a law abolishing Slavery. We have undertaken to canvass the Nation for freedom. Women, you cannot vote or fight for your country. Your only way to be a power in the Government is through the exercise of this, one, sacred, Constitutional "right of Petition;" and we ask you to use it now to the utmost. Go to the rich, the poor, the high, the low, the soldier, the civilian, the white, the black—gather up the names of all who hate slavery—all who love liberty, and would have it the law of the land—and lay them at the feet of Congress, your silent but potent vote for human freedom guarded by law.

You have shown true courage and self-sacrifice from the beginning of the war. You have been angels of mercy to our sick and dying soldiers in camp and hospital, and on the battle-field. But let it not be said that the women of the Republic, absorbed in ministering to the outward alone, saw not the philosophy of the revolution through which they passed; understood not the moral struggle that convulsed the nation—the irrepressible conflict between liberty and slavery. Remember the angels of mercy and justice are twin sisters, and ever walk hand in hand. While you give yourselves so generously to the Sanitary and Freedmen's Commissions, forget not to hold up the eternal principles on which our Republic rests. Slavery once abolished, our brothers, husbands and sons will never again, for its sake, be called to die on the battle-field, starve in rebel prisons, or return to us crippled for life; but our country free from the one blot that has always marred its fair escutcheon, will be an example to all the world that "righteousness exalteth a nation."

The God of Justice is with us, and our word, our work—our prayer for Freedom—will not, cannot be in vain.

E. CADY STANTON,
President.

Susan B. Anthony,
Secretary W. L. N. League,

Room 20, Cooper Institute,
New York.

Chicago Citations

Bibliography entry:

Women's Loyal National League. "To the Women of the Republic." New York, 1863. Wikisource.

Footnote citation:

Women's Loyal National League, "To the Women of the Republic" (New York, 1863), via Wikisource.

Shortened citation:

Women's Loyal National League, "To the Women of the Republic."

PRIMARY SOURCE P14.57

Letter from Mrs. Love to Zebulon B. Vance, March 31, 1864

Mrs. Love · Claytonville, North Carolina, March 31, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A woman warns that conscription is stripping farms and threatening famine on the home front.
TREATMENT	Full public-domain text

Historical Context

Confederate conscription and the impressment of food and animals left many farm households in western North Carolina without men and short of grain by 1864. Women wrote to Governor Vance by the hundreds asking for help.

Mrs. Love warned the governor that if more men were taken from her neighborhood the people would starve, and that desperate families might take food by force.

Editorial note: The catalog record dates this letter to 1865; the letter itself is dated 1864. The text follows the Civil War Era NC transcription; bracketed words are the transcriber's uncertain readings.

Document Text

Claytonville Nor. Car.
March 31st 1864
Gov. Z. B. Vance
My dear sir,
I would have ventured to write sometime ago but continuing good health helps me at home (my mother in law) I have not been to the village (H) since Dec 24th ‘till last Saturday, I am ‘chilling’ for which i can find no cure, otherwise affected I have a hope, I am not permanently improving and that I shall [actlie] this curses war and be at this [eutmvring] of it accused [arigiulored] of course I made this political burial and will sold even more if good came of it, [lo] owm almost reviewed county. But don’t misconstrue or a [devite]. There with sympathizers. Out on by home as I think is in [fom] mainly resist and to Northern invasion.
So you know out conslition here want [abobute] but a suffering for food is the only prospect to many families, difficulties thinking and reverent prospect darkens. The laborers have nearly all been taken away. The [Earothin] officers are now going armed in this [sintrist] Than few they leave with the aid of the [regrabs] (which you know are not nay in this [seetion]) will be barely sufficient if at all so to produce bread and meal for come consumption with these statement I would call your attention to the following fact. If the military are called a few more times, between this and the gathering of corn, our citizens, “nearly all” not running slaves, will suffer for food, next winter and the spring and summer of 1865. The [gardue] may be sufficient unlike winter. afterwards suffering I believe starvation, will follow [mlys] [wen] are supplied from abroad. Individually I have nothing to fear in this way. The [wowts] of my immediate relatives, will ,I think, all be fully proved for. But there can be no guarantees [agument] the power of starvation scared Taking my force will be the order of the day. It is [amounted] so now. The minority will have another majority will want and take.
I align with due differance if anything can be done to relieve our “Home Guards” until crops are made. Thirty are [argu] duty for [sytydry] I think it is safe to day 25 of them will almost [wif] on crops. I corn so me so when these came in [con[a plw to bring starvation be better divided.
Holden stock run high here in [see] I am Feb. it seems above [par] It is high yet. It fell at Wilkesboro and there is

quite now [plwm] [hosoerer] sill in market but ventury on the [alaclive] You no loos no by do the same thing [ofier].
I saved your part of the letter [reedoaled] being “in-confidence’ I will the many I want a stiff reply - no one. In this war I am with the South and simply our savior with it. [dadruem] is a tory but my be bought He is for Holden sot rely him. Write whenever I can send you. Belive me to be your friend and humble servant
Mrs Love.

Chicago Citations

Bibliography entry:

Love, Mrs. Letter to Zebulon B. Vance, March 31, 1864. Zebulon Baird Vance Papers, State Archives of North Carolina. Civil War Era NC, North Carolina State University.

Footnote citation:

Mrs. Love to Zebulon B. Vance, March 31, 1864, Vance Papers, State Archives of North Carolina, via Civil War Era NC, https://cwnc.omeka.chass.ncsu.edu/items/show/727.

Shortened citation:

Love to Vance, March 31, 1864.

PRIMARY SOURCE P14.58

Two Letters from a Black Soldier to His Wife

Rufus Wright, 1st U.S. Colored Troops · April 22 and May 25, 1864

TOC FIT	Chapter 14 · Essay prompt 14.3 (Who Fought, and Why?)
WHY HERE	A Black private's letters show camp life, family ties, and pride in fighting more than stated ideology.
TREATMENT	Full public-domain text

Historical Context

Rufus Wright served in the 1st U.S. Colored Infantry in Virginia. His letters survive because his widow, Elisabeth, filed them with the Freedmen's Bureau in 1865 as proof of their marriage after he died of wounds.

Writing from camp near Hampton and then from the field, Wright sent love to his family, asked about money, and reported proudly that his unit had beaten the rebels in a fight.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Camp 1st U.S.C.T. Near Hampton [Va.] apl the 2[2] 1864

My Dear wife I thake this opportunity to inform you that I am well and Hoping when thoes few Lines Reaches you thay my find you Enjoying Good Health as it now fines me at Prisent Give my Love to all my friend I Recived you Last letter and was verry Glad to Hear fome you you must Excuse you fore not Riting Before this times the times I Recive you Letter I was order on a march and I had not times to Rite to you I met witch a Bad mich-fochens I Ben [S]ad of I Lost my money I think I will com Down to See you this weeck I thought you Hear that I was hear and you wood com to see me Git a Pass and com to see me and if you cant git Pass Let me know it Give my Love to mother and Molley Give my Love to all inquaring fried

No more to Say Still Remain you Husband untall Death

Rufus Wright

Derect you Letter to foresess Monre VA

wilson Creek Va May 25th 1864

dear wife I take the pleasant opportunity of writeing to you a fiew lines to inform you of the Late Battle we have had we was a fight on Tuesday five hours we whipp the rebls out we Killed $200 & captured many Prisener out of our Regiment we lost 13 Thirteen Sergent Stephensen killed & priate out of Company H & about 8 or 10 wounded we was in line Wednesday for a battele But the rebels did not Appear we expect an Attack every hour give my love to all & to my sisters give my love to Miss Emerline tell John Skinner is well & sends much love to her. Joseph H Grinnel is well & he is as brave a lion all the Boys sends there love them give my love to Miss Missenger You must excuse my short Letter we are most getting ready to go on Picket No more from your Husband

Ruphus Wright

Chicago Citations

Bibliography entry:

Wright, Rufus. Letters to his wife, April [22] and May 25, 1864. Filed with affidavit of Elisabeth Wright, August 21, 1865, Letters and Orders Received, ser. 4180, Norfolk, Va., Assistant Subassistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Rufus Wright to Elisabeth Wright, April [22] and May 25, 1864, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/RWright.html.

Shortened citation:

Wright to his wife, 1864.

PRIMARY SOURCE P14.59

Soldiers of a Massachusetts Black Regiment to the President

Sgt. John F. Shorter and members of Company D, 55th Massachusetts · Folly Island, South Carolina, July 16, 1864

TOC FIT	Chapter 14 · Essay prompt 14.3 (Who Fought, and Why?)
WHY HERE	Black soldiers protest unequal pay, showing conviction together with grievance.
TREATMENT	Full public-domain text

Historical Context

The 55th Massachusetts, sister regiment of the 54th, refused to accept unequal pay for more than a year. Some of its men had families in poverty at home.

Members of Company D wrote to Lincoln that they had enlisted under the same terms as white soldiers and had served eighteen months without pay. They warned that unless they were paid they would resort to "more stringent measures." Congress had just granted equal pay, though not yet retroactively for all.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Folly island South Carolina July 16th 18.64

Sir We The Members of Co D of the 55th Massechusetts vols Call the attention of your Excellency to our case

1st First We wase enlisted under the act of Congress of July 18.61 Placing the officers non Commissioned officers & Privates of the volunteer forces in all Respects as to Pay on the footing of Similar Corps of the Regular Army 2nd We Have Been in the Field now thirteen months & a Great many yet longer We Have Recieved no Pay & Have Been offered only seven Dollars Pr month Which the Paymaster Has said was all He Had ever Been authorized to Pay Colored Troops this was not acording to our enlistment Consequently We Refused the Money the Commonwealth of Massechusetts then Passed an act to make up all Deficienceys which the general Government Refused To Pay But this We Could not Recieve as The Troops in the general service are not Paid Partly By Government & Partly By State 3rd that to us money is no object we came to fight For Liberty justice & Equality. These are gifts we Prise more Highly than Gold For these We Left our Homes our Famileys Friends & Relatives most Dear to take as it ware our Lives in our Hands To Do Battle for God & Liberty

4th after the elaps of over thirteen months spent cheerfully & willingly Doing our Duty most faithfuly in the Trenches Fatiegue Duty in camp and conspicious valor & endurence in Battle as our Past History will Show

P 5th therefore we Deem these sufficient Reasons for Demanding our Pay from the Date of our inlistment & our imediate Discharge Having Been enlisted under False Prentence as the Past History of the Company will Prove

6th Be it further Resolved that if imediate steps are not takened to Relieve us we will Resort to more stringent mesures

We have the Honor to Remin your Obedint Servants The members of Co D

[74 signatures]

Chicago Citations

Bibliography entry:

Shorter, John F., et al. Letter to the President of the United States, July 16, 1864. L-211 1864, Letters Received, ser. 360, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

John F. Shorter et al. to Abraham Lincoln, July 16, 1864, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/55th%20Mass%20petition.html.

Shortened citation:

Shorter et al. to Lincoln, July 16, 1864.

PRIMARY SOURCE P14.60

"This Letter Is Written Literally Under Fire"

William Francis Bartlett to his mother · before Petersburg, Virginia, July 23–24, 1864

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.4 (Was It a Total War?)
WHY HERE	A Union general describes trench warfare and loyalty to his men under constant fire.
TREATMENT	Full public-domain text

Historical Context

William Francis Bartlett (1840–1876) left Harvard to enlist in 1861 and lost a leg in 1862, but returned to command. By 1864 he was a brigadier general in the Ninth Corps in the trenches at Petersburg.

He wrote to his mother under constant rifle and artillery fire, describing life in the lines, his duty to his men, and his contempt for civilians at home who profited from the war. He was captured at the Crater a week later.

Editorial note: The letter was printed in an 1878 memoir by Francis W. Palfrey. The text follows the American Battlefield Trust transcription.

Document Text

Headquarters, first Brigade, First Division, Ninth Army corps.

Before Petersburg, Va., July 23, 1864. Evening.

My Dear Mother, — This is the first day since I left Washington that I have been able to write at all. Perhaps you will have thought that you ought to hear from me before this reaches you; but I have taken the first opportunity and have not forgotten your injunctions. I left Washington Tuesday P.M., reached here Wednesday P.M. Came from Fortress Monroe on despatch boat with General Ingalls, Chief Quartermaster of Army, with whom I dined at City Point, where his headquarters are. By chance found the chaplain at the Point, and sent for my horses. Ned and Billy were both looking finely. After dinner started for the front. Got as far as my Quartermaster's camp, and as it began to rain, I stayed there all night with him. I slept very well my first night on the ground. In the morning a black snake over six feet long was killed within a few feet of my bed. After breakfast, rode on up to Division Hospital, where I found Dr. White, and several old letters, among them the Nut's of June 6, which I found time to read to-day. Afterwards went to Burnside's Headquarters to report for duty. He was not in. I dined with some of the staff; saw the General later. He was glad to see me. I am assigned, as I supposed, to the command of the First Brigade, First Division. General Ledlie commands the Division. There are now six Massachusetts regiments and one Pennsylvania in the brigade, not numbering more than 1,300 men altogether, present for duty. If the regiments were filled up it would be one of the largest and best brigades in the Army, being all Massachusetts troops. I am trying to get C.B. Amory, of Jamaica Plains, formerly of the Twenty-fourth Regiment, who has been appointed Assistant Adjutant-general, transferred to this brigade. I shall use for present the staff that is here. . . .the surgeon, a Dr. Ingalls, of Boston, Fifty-ninth Regiment, who is very much of a gentleman. I slept last night and the night before at Division Headquarters with Adjutant-general Mills, Fifty-sixth. He was hoping that I would take the Division, but it seems Ledlie has withdrawn his resignation.

The brigade is in two lines of breastworks, one hundred yards apart, in the front of the enemy's works and within two hundred yards in some places. Brigade Headquarters are two hundred and fifty yards in rear of the second line. Division Headquarters two hundred yards in rear of the brigade; so you see all are in easy musket range of the enemy. We are in pine woods, the trees not very thick. The Headquarters have to be protected by a stockade of logs against bullets, which are constantly coming through here. Four officers of the Fifty-seventh have been hit since I got here, one killed, three very badly wounded, in the second line. Our stockade does not protect us against shells,

which fall in front and rear of us, but have not hit the Headquarters yet. some fall way in the rear of Division Headquarters, and some near Corps Headquarters, which are about one fourth of a mile in the rear of Division. We have a stockade to protect the horses, too, but one of the orderlies' horses and one of General Ledlie's were killed the other day. A bullet goes whizzing over my tent every few minutes as I write, and goes thud into one of the trees near, with a sound that makes you think what a headache that would have given you if your head had been where the tree was. The bullets patter like rain at times against the outside of this stockade of logs, the inside of which my elbow touches as I write. It is a continual rattle of musketry, sometimes welling into a roar along the line, and varied with the artillery and mortars. So you see we are liable at any moment to be struck, even while reading a paper or eating dinner. A bullet went through Dr. Anderson's table as he was eating breakfast this morning. You must be prepared to hear the worst of me at any time. God grant it may not come, for your sake, and for the sake of all I love and who love me at home. But you must be prepared for it. It is wearing to body and mind, this being constantly under fire.

People at the North who are enjoying themselves and thinking of nothing but making money, little appreciate what this brave army is enduring every day and hour for them, and how much more cheerful and hopeful they are than people at home. I wish some of the patriotic(?) ones at home who are making speeches (and money), would just come out here and spend a week, even back here at my Headquarters. They would not care to go down to the lines where the men are day and night fighting for their security and safety.

I came over here this morning and assumed command. Tomorrow I must go down and examine the lines, which is of course dangerous; but trust I shall get back safely. I shan't go there any oftener than is necessary, but it is my duty to visit them occasionally. to give you an idea of the firing that is going on constantly, I will count the shots in the next minute. It is more quiet than usual to-night. Eighty-one, and one heavy mortar shell, which burst in the air between here and second line, but sounded as if it were in the next tent. "There!" at that moment a bullet went whizzing through between mine and the one next, just above the stockade (which is a little higher than your head when sitting), and struck down somewhere between here and Division Headquarters, near where the horses are. So you see this letter is written literally under fire. I am feeling very well, my leg is better in the saddle than it was before. I have got my valise, etc., and shall be quite comfortable in a day or two (under the circumstances), if I am spared so long. I intend to have this stockade built higher to-morrow, so as to afford me protection from bullets. If the rebs knew just where our Headquarters are, they would shell us out from here in three minutes; but fortunately they don't, and can only guess. They guess inconveniently near at times. As I may not have time to write, you can let Frank Palfrey and Ben see this letter, if you see them, and if the Nut chooses to copy it she can, and send it to Aunt.

There goes another bullet. Frank Palfrey will readily understand appreciate our position here. I hope I shall hear from you soon. The mail comes regularly every night. I will write as often as I can. Have other letters to write to-night, so will finish this. There is one pleasant thing to relieve the wear of this, — I have a good band here at Headquarters, and it plays at intervals through the day and evening, protected by a stockade. The rebs have the benefit of it as much as I do, but I can't help it. They favor us with a band sometimes. Tell the Nut and Miss Barnett that they just played "When Johnny comes Marching Home," and "Faust."

"Thud;" there go two ugly bullets into a tree near by, one of them, George thinks, went through the upper part of the tent. How should you like to lie down and go to sleep with this going on all night? I expect to sleep soundly. I have for two nights.

With much love to all,

Ever your affectionate son,

W.F.B.

Zip prrrrrr goes the last bullet you will hear, for I close this now. That one went over to Division Headquarters. Here's another before I could get my pen off the paper. Good-night.

July 24. Quiet night. I go now down to the lines. I hope I may get safely back. If not, His will be done. . . . Went through the second line. got back safely, thank God. . . . Bullets flying very lively tonight.

Chicago Citations

Bibliography entry:

Bartlett, William Francis. Letter to his mother, July 23–24, 1864. In Francis Winthrop Palfrey, *Memoir of William Francis Bartlett*, 110–15. Boston: Houghton, Osgood, 1878. American Battlefield Trust.

Footnote citation:

William Francis Bartlett to his mother, July 23, 1864, in Francis Winthrop Palfrey, *Memoir of William Francis Bartlett* (Boston: Houghton, Osgood, 1878), 110–15, via American Battlefield Trust.

Shortened citation:

Bartlett to his mother, July 23, 1864.

PRIMARY SOURCE P14.61

Diary of Anna Mellinger (excerpts)

Anna Mellinger · Franklin County, Pennsylvania, 1864

TOC FIT	Chapter 14 · Essay prompts 14.4 (Was It a Total War?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A farm woman's diary records the burning of Chambersburg alongside the routines of rural life.
TREATMENT	Public-domain text, selected entries

Historical Context

Anna Mellinger lived on a farm in Franklin County, Pennsylvania, the same county as Chambersburg. Her short diary entries record weather, farm work, visits, and church.

On July 30, 1864, Confederate cavalry under John McCausland burned Chambersburg after the town failed to pay a ransom of $100,000 in gold. Mellinger's diary notes the burning amid the ordinary routine of farm life.

Editorial note: The text follows the Valley of the Shadow transcription, which preserves original spelling; bracketed notes such as "[unclear: n]" are the transcribers'.

Document Text

[. . .]

Monday 25th

last it commenced Raini[unclear: n]g and Rained to day till this afternoon good rain
Cate Mellinger & Martha Cope come to see us Sal & Christ Mellingr braught then over

Tuesday 26th

Today the men was [unclear: lukeing] up Oats hauld it in the barn it is cloudy this Evenig my head is giling bette

Wednesday 27

to day Uncle took Cate Mellinger and Martha Cope to Town Edward Grove and his wife was out for Butter and Chickens we finished our Oats

Thursday 28th

To day we was up at Mattys Rebecca aint so well it is getting dry

Friday 29th

This Evening our men Slartld with our hourses the Rebs is coming again great trouble but we have to be giveing up and submit

Satturday 30th

O disdresing times here now Chambersburg is burnd to ashes Over two hundred houses burnd O Lord Strengthen thy children in whatever may befall them and submit to thy will

Sunday 31st

To day it is all quiet no Rebs about here now they went up towards Loudon Christ Melling[unclear: e] and Cope come up tho see about the Rebs our men is down there John Houp come along up to see

Monday nd the first day of August 1864

to day it is more quiet we are looking for our horses to come home Bro Myers come here this evening he has his horses down at Middlesex he started down this Morning it Rained a littel

A Tuesday 2nd

they come home with our horsees great trouble it Rained a very little Saml Bro and Phillip Bear was here to day Uncle was at the pike and in at the spring for news

Wednesday 3rd

our men is hauling Manure out it is cool this evening and cloudy it rained a little it is dry we baked and washed behold the Lord is my Salvation and my Strenght

Thursday 4th

To day the girls and us was in Town to see the Ruins of Town it looks distressing People is bad of

Friday 5th

O trouble John Houptman & Isaac left with our horsees our men was houlling dung out we dont know whats before us we must put our trust and confidence in the Lord he is Lord of lords and King of kings he has all Power in Heaven and on earth he has promised to be with his Children in all triels and temtations

Satturday 6th

news is a little more favourable it is Reported that the Rebs is falling back this morning it Rained a little it is very dry

Sunday 7th

To day there was Meeting down at the pike School house old Sister Ryder was giving over to our Mother Earth She has labourd for that Rest which is in Store for all the Children of God our men come home to day

[. . .]

Chicago Citations

Bibliography entry:

Mellinger, Anna. Diary, 1864. Franklin County Diaries. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Anna Mellinger, diary, [date], The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/diaries/FD1011.

Shortened citation:

Mellinger, diary, [date].

PRIMARY SOURCE P14.62

Personal Memoirs of U. S. Grant, Chapter LVII (excerpt)

Ulysses S. Grant · 1885–86 (events and dispatches of July–August 1864)

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Grant's own dispatches show leadership directing the 1864 campaigns and the deliberate destruction of the Valley's resources.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In July 1864 Confederate general Jubal Early led a small army down the Shenandoah Valley and reached the outskirts of Washington. Grant, besieging Petersburg, sent Philip Sheridan to take command in the Valley.

In this chapter Grant reprints his dispatches ordering Sheridan to follow Early "to the death" and to strip the Valley of the crops and livestock that fed Lee's army. Lincoln endorsed the order and urged Grant to see that it was carried out.

Editorial note: Grant wrote two decades after the events; the dispatches he quotes are contemporary. The text follows the Project Gutenberg edition.

Document Text

[. . .]

After being fully assured of the failure of the mine, and finding that most of that part of Lee's army which had been drawn north of the James River were still there, I gave Meade directions to send a corps of infantry and the cavalry next morning, before Lee could get his forces back, to destroy fifteen or twenty miles of the Weldon Railroad. But misfortunes never come singly. I learned during that same afternoon that Wright's pursuit of Early was feeble because of the constant and contrary orders he had been receiving from Washington, while I was cut off from immediate communication by reason of our cable across Chesapeake Bay being broken. Early, however, was not aware of the fact that Wright was not pursuing until he had reached Strasburg. Finding that he was not pursued he turned back to Winchester, where Crook was stationed with a small force, and drove him out. He then pushed north until he had reached the Potomac, then he sent McCausland across to Chambersburg, Pa., to destroy that town. Chambersburg was a purely defenceless town with no garrison whatever, and no fortifications; yet McCausland, under Early's orders, burned the place and left about three hundred families houseless. This occurred on the 30th of July. I rescinded my orders for the troops to go out to destroy the Weldon Railroad, and directed them to embark for Washington City. After burning Chambersburg McCausland retreated, pursued by our cavalry, towards Cumberland. They were met and defeated by General Kelley and driven into Virginia.

The Shenandoah Valley was very important to the Confederates, because it was the principal storehouse they now had for feeding their armies about Richmond. It was well known that they would make a desperate struggle to maintain it. It had been the source of a great deal of trouble to us heretofore to guard that outlet to the north, partly because of the incompetency of some of the commanders, but chiefly because of interference from Washington.

It seemed to be the policy of General Halleck and Secretary Stanton to keep any force sent there, in pursuit of the invading army, moving right and left so as to keep between the enemy and our capital; and, generally speaking, they pursued this policy until all knowledge of the whereabouts of the enemy was lost. They were left, therefore,

free to supply themselves with horses, beef cattle, and such provisions as they could carry away from Western Maryland and Pennsylvania. I determined to put a stop to this. I started Sheridan at once for that field of operation, and on the following day sent another division of his cavalry.

I had previously asked to have Sheridan assigned to that command, but Mr. Stanton objected, on the ground that he was too young for so important a command. On the 1st of August when I sent reinforcements for the protection of Washington, I sent the following orders:

CITY POINT, VA.,

August 1, 1864, 11.30 A.M.

MAJOR-GENERAL HALLECK,
Washington D. C.

I am sending General Sheridan for temporary duty whilst the enemy is being expelled from the border. Unless General Hunter is in the field in person, I want Sheridan put in command of all the troops in the field, with instructions to put himself south of the enemy and follow him to the death. Wherever the enemy goes let our troops go also. Once started up the valley they ought to be followed until we get possession of the Virginia Central Railroad. If General Hunter is in the field, give Sheridan direct command of the 6th corps and cavalry division. All the cavalry, I presume, will reach Washington in the course of to-morrow.

U. S. GRANT,
Lieutenant-General.

The President in some way or other got to see this dispatch of mine directing certain instructions to be given to the commanders in the field, operating against Early, and sent me the following very characteristic dispatch:

OFFICE U. S. MILITARY TELEGRAPH,
WAR DEPARTMENT,
WASHINGTON, D. C., August 3, 1864.

Cypher. 6 P.M.,

LT. GENERAL GRANT,
City Point, Va.

I have seen your despatch in which you say, "I want Sheridan put in command of all the troops in the field, with instructions to put himself south of the enemy, and follow him to the death. Wherever the enemy goes, let our troops go also." This, I think, is exactly right, as to how our forces should move. But please look over the despatches you may have received from here, even since you made that order, and discover, if you can, that there is any idea in the head of any one here, of "putting our army south of the enemy," or of "following him to the death" in any direction. I repeat to you it will neither be done nor attempted unless you watch it every day, and hour, and force it.

A. LINCOLN.

I replied to this that "I would start in two hours for Washington," and soon got off, going directly to the Monocacy without stopping at Washington on my way. I found General Hunter's army encamped there, scattered over the fields along the banks of the Monocacy, with many hundreds of cars and locomotives, belonging to the Baltimore and Ohio Railroad, which he had taken the precaution to bring back and collect at that point. I asked the general where the enemy was. He replied that he did not know. He said the fact was, that he was so embarrassed with orders from Washington moving him first to the right and then to the left that he had lost all trace of the enemy.

[. . .]

Chicago Citations

Bibliography entry:

Grant, Ulysses S. *Personal Memoirs of U. S. Grant*. 2 vols. New York: Charles L. Webster, 1885–86. Project Gutenberg eBook #4367.

Footnote citation:

Ulysses S. Grant, *Personal Memoirs of U. S. Grant* (New York: Charles L. Webster, 1886), 2: chap. 57, Project Gutenberg eBook #4367.

Shortened citation:

Grant, *Personal Memoirs*, 2: chap. 57.

PRIMARY SOURCE P14.63

Simon Cameron to Abraham Lincoln, August 1, 1864

Simon Cameron · Harrisburg, Pennsylvania, August 1, 1864

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	A report of the burning of Chambersburg shows that Confederates also struck at civilians.
TREATMENT	Full public-domain text

Historical Context

Simon Cameron (1799–1889), Pennsylvania's Republican leader and Lincoln's first secretary of war, telegraphed the president two days after Confederate cavalry burned Chambersburg.

He reported that the business district had been destroyed and some two thousand people left homeless, and he urged a change of commanders in the military department responsible for Pennsylvania's defense.

Editorial note: The text follows the Valley of the Shadow transcription of the telegram in the Lincoln Papers.

Document Text

Aug 1 st 1864

Harrisburg

To President

May I call your immediate attention to the telegram of yesterday from the Committee of safety addressed to the Secretary of War arguing a change of Commanders for this military Department The Burning of Chambersburg has created great excitement & indignation & whether right or wrong so much has centered on Genl Couch as utterly to destroy his usefulness all the business part of the Town with its mills manufactories and public buildings are in ashes & more than two thousand (2000) people made homeless. The people charge him with abandoning them on the first approach of the marauders. we need a commander here who has the confidence of all classes and who has a stake in our welfare & our people complain that after Sending to the field a couple of hundred thousand men we should have a commander belonging to our own State. Genl Cadwalader has been put here under the orders of Gen Couch though he ranks him and while he is willing to serve in any capacity he is entirely useless under an inefficient Commander in his present position he is useless because powerless but give him the Command of the Dept & Such is the Confedence the people of the state have in him that troops will at once rally to his command. I believe he will be able to get troops enough not only for the defense of this Valley but to greatly assist in defending Washington. Give him the command and you will not only satisfy your friends but do your Country an essential Service

Simon Cameron
Chairman Committee of Safety

Chicago Citations

Bibliography entry:

Cameron, Simon. Telegram to Abraham Lincoln, August 1, 1864. Abraham Lincoln Papers, Library of Congress. The Valley of the Shadow: Two Communities in the American Civil War, Virginia Center for Digital History, University of Virginia.

Footnote citation:

Simon Cameron to Abraham Lincoln, August 1, 1864, The Valley of the Shadow, University of Virginia, https://valley.newamericanhistory.org/letters/F1401.

Shortened citation:

Cameron to Lincoln, August 1, 1864.

PRIMARY SOURCE P14.64

New York Black Soldier to the President

Unsigned soldier of the 20th U.S. Colored Troops · Camp Parapet, Louisiana, [August] 1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.3 (Who Fought, and Why?)
WHY HERE	A Black soldier protests unequal treatment, a Counter-Argument to any simple story of the Union army as liberator.
TREATMENT	Full public-domain text

Historical Context

The 20th U.S. Colored Infantry was raised in New York in early 1864 and sent to Louisiana. Like many Black regiments, it was assigned heavy fatigue labor rather than combat.

An unnamed soldier wrote directly to Lincoln. He protested that the men had not been paid, were poorly fed, were worked like slaves digging fortifications, and were dying of disease, and he asked the president to intervene.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

New Orleans Camp Parpit Louisiana [August] 1864

My Dear Friend and x Pre I thake up my Pen to Address you A fiew simpels And facts We so called the 20th u.s. Colored troops we was got up in the state of New York so said By A grant of the President. we Dont think he know wether we are white or Black we have not Bin Organized yet And A grate meney Brought Away without Being Musterd in, and we are treated in a Different maner to what others Rigiments is Both Northern men or southern Raised Rigiment Instead of the musket It is the spad and the Whelbarrow and the Axe cuting in one of the most horable swamps in Louisiana stinking and misery Men are Call to go on thes fatiuges wen sum of them are scarc Able to get Along the Day Before on the sick List And Prehaps weeks to And By this treatment meney are thowen Back in sickness wich thay very seldom get over. we had when we Left New York over A thousand strong now we scarce rise Nine hundred the total is said to Be we lost 1.60 men who have Left thire homes friends and Relation And Come Down hear to Lose thire Lives in For the Country thy Dwll in or stayd in the Colored man is like A lost sheep Meney of them old and young was Brave And Active. But has Bin hurrided By and ignominious Death into Eternity. But I hope God will Presearve the Rest Now in existance to Get Justice and Rights we have to Do our Duty or Die and no help for us It is true the Country is in A hard strugle But we All must Remember Mercy and Justice Grate and small. it is Devine. we All Listed for so much Bounty Clothing and Ration And 13 Dollars A month. And the most has fallen short in all thes Things we havent Recived A cent of Pay Since we Bin in the field. Instead of them Coming to us Like men with our 13 Dollars thay come with only seven Dollars A month wich only A fiew tuck it we stand in Need of Money very much indeed And think it is no more than Just an Right we should have it And Another thing we are Cut short of our Ration in A most Shocking maner. I wont Relate All now But we Are Nerly Deprived of All Comforts of Life Hardly have Anough Bread to Keep us From starving six or 8 ounces of it to Do A Soldier 24 hours on Gaurd or eney other Labor and About the Same in Meat and Coffee sum times No meat for 2 Days soup meat Licqour with very Little seazing the Boys calls hot water or meat tea for Diner It is A hard thing to be Keept in such a state of misery Continuly It is spoken Dont musel the ox that treads out the corn. Remember we are men standing in Readiness to face thous vile traitors an Rebeles who are trying to Bring your Peaceable homes to Destruction. And how can we stand them in A weak and starving Condition

Chicago Citations

Bibliography entry:

Unsigned to "My Dear Friend and x Pre[sident]," [August] 1864. Filed with R-268 1864, Letters Received, ser. 360, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Unsigned soldier to Abraham Lincoln, [August] 1864, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/anonymous%208-1864.html.

Shortened citation:

Unsigned soldier to Lincoln, August 1864.

PRIMARY SOURCE P14.65

Maryland Black Soldier to the Mother of a Dead Comrade

G. H. Freeman to Rebecca Guy · near Petersburg, Virginia, August 19, 1864

TOC FIT	Chapter 14 · Essay prompt 14.3 (Who Fought, and Why?)
WHY HERE	A soldier's condolence letter shows comradeship and courage as motives for fighting.
TREATMENT	Full public-domain text

Historical Context

Black regiments fought in the siege of Petersburg, including the Battle of the Crater on July 30, 1864, where Confederate troops killed many Black soldiers trying to surrender.

G. H. Freeman wrote to Rebecca Guy, whose son Billy had served with him, to confirm that he had died bravely trying to save the regiment's colors. She later forwarded the letter to the army while seeking her son's pay.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Near Petersburge [Va.] August 19th 1864

Dear Madam I receave A letter from You A few day Ago inquir in regard to the Fait of Your Son I am sarry to have to inform You that thear is no dobt of his Death he Died A Brave Death in Trying to Save the Colors of Rige[ment] in that Dreadful Battil Billys Death was unevesally [mourned] by all but by non greatter then by my self ever sins we have bin in the Army we have bin amoung the moust intimoat Friend wen every our Rige[ment] wen into Camp he sertan to be at my Tent and meney happy moment we seen to gether Talking about Home and the Probability of our Living to get Home to See each other Family and Friend But Providence has will other wise and You must Bow to His will You and His Wife Sister and all Have my deepust Simppathy and trust will be well all in this Trying moment

You Inquired about Mr Young He wen to the Hospetol and I can not give You eney other information in regard to Him

Billys thing that You requested to inquired about I can git no informa of as in the bustil of the Battil every thing was Lost

Give my Respects to Samual Jackson and Family not forgeting Your self and Family I remain Your Friend

G. H. Freeman

Chicago Citations

Bibliography entry:

Freeman, G. H. Letter to "Madam" [Rebecca Guy], August 19, 1864. Enclosed in Rebecca Guy to the Adjutant General, March 11, 1865, G-42 1865, Letters Received Relating to Recruiting, ser. 366, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

G. H. Freeman to Rebecca Guy, August 19, 1864, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Freeman.html.

Shortened citation:

Freeman to Guy, August 19, 1864.

PRIMARY SOURCE P14.66

Blind Memorandum

Abraham Lincoln · August 23, 1864

TOC FIT	Chapter 14 · Essay prompt 14.1 (Why Did the Union Win?)
WHY HERE	Lincoln expected to lose the 1864 election weeks before Atlanta fell, showing how much Union victory depended on events.
TREATMENT	Full public-domain text

Historical Context

In the summer of 1864 Grant's army was stalled outside Petersburg after enormous casualties, Sherman had not yet taken Atlanta, and many Republicans believed Lincoln would lose the November election.

Lincoln wrote this memorandum, folded it, and asked his cabinet to sign the back without reading it. In it he pledged to work with the president-elect to save the Union before the inauguration. Atlanta fell eleven days later.

Editorial note: The text follows the House Divided (Dickinson College) transcription of the manuscript in the Lincoln Papers.

Document Text

Executive Mansion

Washington, Aug. 23, 1864.

This morning, as for some days past, it seems exceedingly probable that this Administration will not be re-elected. Then it will be my duty to so co-operate with the President elect, as to save the Union between the election and the inauguration; as he will have secured his election on such ground that he can not possibly save it afterwards.

A. LINCOLN

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Memorandum Concerning His Probable Failure of Re-election, August 23, 1864. Abraham Lincoln Papers, Library of Congress. House Divided Project, Dickinson College.

Footnote citation:

Abraham Lincoln, memorandum, August 23, 1864, Abraham Lincoln Papers, Library of Congress, via House Divided, https://housedivided.dickinson.edu/sites/teagle/texts/abraham-lincoln-blind-memorandum-1864.

Shortened citation:

Lincoln, Blind Memorandum.

PRIMARY SOURCE P14.67

Letter from Annie Davis to Abraham Lincoln

Annie Davis · Bel Air, Maryland, August 25, 1864 (manuscript)

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	An enslaved woman asks the president directly whether she is free, showing both Lincoln's symbolic authority and her own initiative.
TREATMENT	Manuscript facsimile with transcription, complete letter

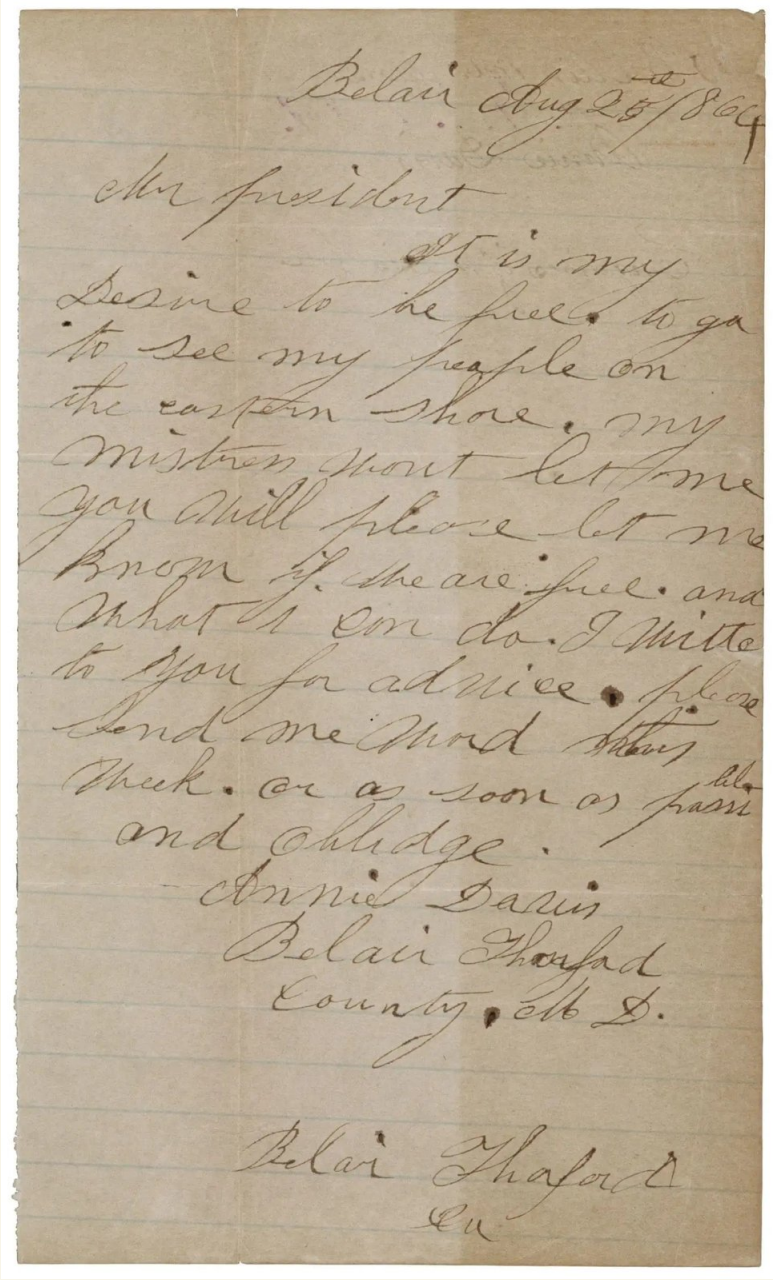
Historical Context

Maryland stayed in the Union, so the Emancipation Proclamation did not free enslaved people there. Slavery in Maryland ended only with a new state constitution in November 1864.

Annie Davis, enslaved in Harford County, wrote to the president asking whether she was free and saying her mistress would not let her visit her family on the Eastern Shore.

Editorial note: The manuscript is reproduced from the National Archives copy (via DocsTeach) supplied by the instructor; a transcription follows the images. Davis's spelling and punctuation are her own.

Primary Source Image



Annie Davis to Abraham Lincoln, August 25, 1864. National Archives.

Transcription

Transcribed from the manuscript images; original spelling and punctuation retained. [?] marks an uncertain reading.

Belair Aug 25th/1864

Mr president
It is my Desire to be free. to go to see my peaple *[?]* on the eastern shore. my mistress wont let me you will please let me know if. we are free. and what i can do. I write to you for advice. please send me word this week. or as soon as possible and oblidge.

Annie Davis
Belair Harford
County. MD.

Belair Harford
Co

Chicago Citations

Bibliography entry:

Davis, Annie. Letter to Abraham Lincoln, August 25, 1864. Records of the Adjutant General's Office, Record Group 94, National Archives.

Footnote citation:

Annie Davis to Abraham Lincoln, August 25, 1864, RG 94, National Archives, via DocsTeach, https://www.docsteach.org/documents/document/letter-from-annie-davis-to-abraham-lincoln.

Shortened citation:

Davis to Lincoln, August 25, 1864.

PRIMARY SOURCE P14.68

1864 Democratic Party Platform

Democratic National Convention, Chicago · August 29, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.2 (Who Freed the Enslaved?)
WHY HERE	The opposition's platform calls the war a failure, showing that Union victory and emancipation depended on Lincoln's re-election.
TREATMENT	Full public-domain text

Historical Context

The Democrats met in Chicago at the low point of northern morale in 1864. They nominated General George B. McClellan, whom Lincoln had removed from command in 1862.

The platform, shaped by Peace Democrats, declared that after "four years of failure to restore the Union by the experiment of war" the fighting should stop and a convention of the states should seek peace. McClellan accepted the nomination but rejected the peace plank.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

Resolved, That in the future, as in the past, we will adhere with unswerving fidelity to the Union under the Constitution as the only solid foundation of our strength, security, and happiness as a people, and as a framework of government equally conducive to the welfare and prosperity of all the States, both Northern and Southern.

Resolved, That this convention does explicitly declare, as the sense of the American people, that after four years of failure to restore the Union by the experiment of war, during which, under the pretense of a military necessity of war-power higher than the Constitution, the Constitution itself has been disregarded in every part, and public liberty and private right alike trodden down, and the material prosperity of the country essentially impaired, justice, humanity, liberty, and the public welfare demand that immediate efforts be made for a cessation of hostilities, with a view of an ultimate convention of the States, or other peaceable means, to the end that, at the earliest practicable moment, peace may be restored on the basis of the Federal Union of the States.

Resolved, That the direct interference of the military authorities of the United States in the recent elections held in Kentucky, Maryland, Missouri, and Delaware was a shameful violation of the Constitution, and a repetition of such acts in the approaching election will be held as revolutionary, and resisted with all the means and power under our control.

Resolved, That the aim and object of the Democratic party is to preserve the Federal Union and the rights of the States unimpaired, and they hereby declare that they consider that the administrative usurpation of extraordinary and dangerous powers not granted by the Constitution; the subversion of the civil by military law in States not in insurrection; the arbitrary military arrest, imprisonment, trial, and sentence of American citizens in States where civil law exists in full force; the suppression of freedom of speech and of the press; the denial of the right of asylum; the open and avowed disregard of State rights; the employment of unusual test-oaths; and the interference with and denial of the right of the people to bear arms in their defense is calculated to prevent a restoration of the Union and the perpetuation of a Government deriving its just powers from the consent of the governed.

Resolved, That the shameful disregard of the Administration to its duty in respect to our fellow-citizens who now are and long have been prisoners of war and in a suffering condition, deserves the severest reprobation on the

score alike of public policy and common humanity.

Resolved, That the sympathy of the Democratic party is heartily and earnestly extended to the soldiery of our army and sailors of our navy, who are and have been in the field and on the sea under the flag of our country, and, in the events of its attaining power, they will receive all the care, protection, and regard that the brave soldiers and sailors of the republic have so nobly earned.

Chicago Citations

Bibliography entry:

Democratic Party. "1864 Democratic Party Platform." August 29, 1864. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

1864 Democratic Party Platform, August 29, 1864, American Presidency Project, https://www.presidency.ucsb.edu/documents/1864-democratic-party-platform.

Shortened citation:

1864 Democratic Platform.

PRIMARY SOURCE P14.69

Missouri Black Soldier to His Daughters, and to the Owner of One of the Daughters

Spotswood Rice · St. Louis, September 3, 1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.3 (Who Fought, and Why?)
WHY HERE	A Black soldier vows to free his children with the army's power behind him.
TREATMENT	Full public-domain text

Historical Context

Spotswood Rice escaped slavery in Missouri and enlisted in the 67th U.S. Colored Infantry in 1864. While in the hospital at Benton Barracks in St. Louis, he wrote two letters.

To his daughters, still enslaved, he promised to come with Union soldiers to free them. To Kitty Diggs, the owner of one daughter, he wrote that she would soon have to give up his child and that God and the army were on his side.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

[Benton Barracks Hospital, St. Louis, Mo. September 3, 1864]

My Children I take my pen in hand to rite you A few lines to let you know that I have not forgot you and that I want to see you as bad as ever now my Dear Children I want you to be contented with whatever may be your lots be assured that I will have you if it cost me my life on the 28th of the mounth. 8 hundred White and 8 hundred blacke solders expects to start up the rivore to Glasgow and above there thats to be jeneraled by a jeneral that will give me both of you when they Come I expect to be with, them and expect to get you both in return. Dont be uneasy my children I expect to have you. If Diggs dont give you up this Government will and I feel confident that I will get you Your Miss Kaitty said that I tried to steal you But I'll let her know that god never intended for man to steal his own flesh and blood. If I had no cofidence in God I could have confidence in her But as it is If I ever had any Confidence in her I have none now and never expect to have And I want her to remember if she meets me with ten thousand soldiers she [will?] meet her enemy I once [thought] that I had some respect for them but now my respects is worn out and have no sympathy for Slaveholders. And as for her cristianantty I expect the Devil has Such in hell You tell her from me that She is the frist Christian that I ever hard say that aman could Steal his own child especially out of human bondage

You can tell her that She can hold to you as long as she can I never would expect to ask her again to let you come to me because I know that the devil has got her hot set againsts that that is write now my Dear children I am a going to close my letter to you Give my love to all enquiring friends tell them all that we are well and want to see them very much and Corra and Mary receive the greater part of it you sefves and dont think hard of us not sending you any thing I you father have a plenty for you when I see you Spott & Noah sends their love to both of you Oh! My Dear children how I do want to see you

[Spotswood Rice]

Chicago Citations

Bibliography entry:

Rice, Spotswood. Letters to his children and to Kitty Diggs, [September 3, 1864]. Enclosed in F. W. Diggs to General Rosecrans, September 10, 1864, D-296 1864, Letters Received, ser. 2593, Department of the Missouri, U.S. Army Continental Commands, Record Group 393, pt. 1, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Spotswood Rice to his children, [September 3, 1864], RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/rice.htm.

Shortened citation:

Rice to his children, September 3, 1864.

PRIMARY SOURCE P14.70

Letter to Henry W. Halleck, September 4, 1864

William T. Sherman · near Lovejoy's Station, Georgia, September 4, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Sherman reports taking Atlanta, plans to clear it of civilians, and asks for more men, showing the North's capacity to replace losses.
TREATMENT	Full public-domain text

Historical Context

Sherman's army entered Atlanta on September 2, 1864, after a four-month campaign. The news ensured Lincoln's re-election.

Two days later Sherman reported to Halleck on the positions of the armies. He said he would remove the civilian population from Atlanta and asked for fifty thousand drafted men to fill his ranks.

Editorial note: The text follows the Civil War Era NC transcription from *Sherman's Civil War: Selected Correspondence* (1999).

Document Text

H'd Qrts. Mil. D. of the Miss.
In the Field near Lovejoys Ga.
Sept. 4th 64.

General Halleck
Washington

The 20th Corps now occupies Atlanta & the Chattahoochee bridges. The main Army is now here, grouped below Jonesboro. The Enemy hold a Line facing us with front well covered by parapets, & flanks by Walnut Creek on the Right & a Confluent of Flint River on his Left. His position is too strong to attack in front & to turn it would carry me too far from our base at this time. Besides there is no commensurate object, as there is no valueable (sic) point to is Rear till we reach Macon 103 miles from Atlanta

We are not prepared for that & I will gradually fall back & occupy Atlanta which was & is our grand objective point already secure.

For the future I propose that of the drafted men I receive my due share, say 50,000. That an equal or greater number go to Genl. Canby who should now proceed with all energy to Montgomery & the Reach of the Alabama River above Selma-that when I know he can move on Columbus Georgia, I move form junction repair Roads to Montgomery & open up the Apalachicola & Macon. This Campaign can be made in the winter, & we can safely rely on the Corn of the Flint and Chattahoochee to supply forage.

If the Tensas Channel of the Alabama River can be used, Genl. Gardner with his Rebel Garrison could continue to hold Mobile for our use when we want it.

I propose to remove all the Inhabitants of Atlanta, sending those committed to our cause to the Rear & the Rebel families to the front. I will allow no trade, manufactories or any citizens there at all, so that we will have the entire use of Railroad back as also such corn & forage as my be reached by our troops.

If the people raise a howl against my barbarity & cruelty, I will answer that War is War & not popularity seeking. If they want peace, they & their relations must stop War.

W.T. Sherman

Maj. Genl. Comdg.

Chicago Citations

Bibliography entry:

Sherman, William T. Letter to Henry W. Halleck, September 4, 1864. In *Sherman's Civil War: Selected Correspondence of William T. Sherman, 1860–1865*, edited by Brooks D. Simpson and Jean V. Berlin, 697. Chapel Hill: University of North Carolina Press, 1999. Civil War Era NC, North Carolina State University.

Footnote citation:

William T. Sherman to Henry W. Halleck, September 4, 1864, via Civil War Era NC, https://cwnc.omeka.chass.ncsu.edu/items/show/141.

Shortened citation:

Sherman to Halleck, September 4, 1864.

PRIMARY SOURCE P14.71

Letter to James M. Calhoun et al.

William T. Sherman · Atlanta, September 12, 1864

TOC FIT	Chapter 14 · Essay prompts 14.4 (Was It a Total War?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	Sherman defends removing Atlanta's civilians, giving his clearest statement of the logic of hard war.
TREATMENT	Full public-domain text

Historical Context

After taking Atlanta, Sherman ordered its remaining civilians to leave, so that his army could use the city as a military base without feeding or guarding a hostile population.

Mayor James M. Calhoun and two city councilmen petitioned him to revoke the order, describing the suffering it would cause women, children, and the elderly. Sherman refused, writing that "war is cruelty, and you cannot refine it," and that peace would come only when the rebellion ended.

Editorial note: The text follows the Teaching American History transcription.

Document Text

JAMES M. CALHOUN, Mayor, E. E. RAWSON and S. C. WELLS, representing City Council of Atlanta.

Gentlemen: I have your letter of the 11th, in the nature of a petition to revoke my orders removing all the inhabitants from Atlanta. I have read it carefully, and give full credit to your statements of the distress that will be occasioned, and yet shall not revoke my orders, because they were not designed to meet the humanities of the case, but to prepare for the future struggles in which millions of good people outside of Atlanta have a deep interest. We must have peace, not only at Atlanta, but in all America. To secure this, we must stop the war that now desolates our once happy and favored country. To stop war, we must defeat the rebel armies which are arrayed against the laws and Constitution that all must respect and obey. To defeat those armies, we must prepare the way to reach them in their recesses, provided with the arms and instruments which enable us to accomplish our purpose. Now, I know the vindictive nature of our enemy, that we may have many years of military operations from this quarter; and, therefore, deem it wise and prudent to prepare in time. The use of Atlanta for warlike purposes is inconsistent with its character as a home for families. There will be no manufactures, commerce, or agriculture here, for the maintenance of families, and sooner or later want will compel the inhabitants to go. Why not go now, when all the arrangements are completed for the transfer, instead of waiting till the plunging shot of contending armies will renew the scenes of the past month? Of course, I do not apprehend any such thing at this moment, but you do not suppose this army will be here until the war is over. I cannot discuss this subject with you fairly, because I cannot impart to you what we propose to do, but I assert that our military plans make it necessary for the inhabitants to go away, and I can only renew my offer of services to make their exodus in any direction as easy and comfortable as possible.

You cannot qualify war in harsher terms than I will. War is cruelty, and you cannot refine it; and those who brought war into our country deserve all the curses and maledictions a people can pour out. I know I had no hand in making this war, and I know I will make more sacrifices to-day than any of you to secure peace. But you cannot have peace and a division of our country. If the United States submits to a division now, it will not stop, but will go on until we reap the fate of Mexico, which is eternal, war. The United States does and must assert its authority, wherever it once had power; for, if it relaxes one bit to pressure, it is gone, and I believe that such is the national feeling. This feeling assumes various shapes, but always comes back to that of Union. Once admit the Union, once

more acknowledge the authority of the national Government, and, instead of devoting your houses and streets and roads to the dread uses of war, I and this army become at once your protectors and supporters, shielding you from danger, let it come from what quarter it may. I know that a few individuals cannot resist a torrent of error and passion, such as swept the South into rebellion, but you can point out, so that we may know those who desire a government, and those who insist on war and its desolation.

You might as well appeal against the thunder-storm as against these terrible hardships of war. They are inevitable, and the only way the people of Atlanta can hope once more to live in peace and quiet at home, is to stop the war, which can only be done by admitting that it began in error and is perpetuated in pride.

We don't want your negroes, or your horses, or your houses, or your lands, or any thing you have, but we do want and will have a just obedience to the laws of the United States. That we will have, and, if it involves the destruction of your improvements, we cannot help it.

But, my dear sirs, when peace does come, you may call on me for any thing. Then will I share with you the last cracker, and watch with you to shield your homes and families against danger from every quarter.

Now you must go, and take with you the old and feeble, feed and nurse them, and build for them, in more quiet places, proper habitations to shield them against the weather until the mad passions of men cool down, and allow the Union and peace once more to settle over your old homes at Atlanta.

Yours in haste,

W. T. Sherman, Major-General commanding.

Chicago Citations

Bibliography entry:

Sherman, William T. Letter to James M. Calhoun, E. E. Rawson, and S. C. Wells, September 12, 1864. Teaching American History.

Footnote citation:

William T. Sherman to James M. Calhoun et al., September 12, 1864, via Teaching American History, https://teachingamericanhistory.org/document/letter-to-james-m-calhoun-et-al/.

Shortened citation:

Sherman to Calhoun et al., September 12, 1864.

PRIMARY SOURCE P14.72

Atlanta, Ga. View on Whitehall Street

George N. Barnard (photographer) · 1864

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	A photograph records occupied Atlanta before Sherman's army burned its military facilities.
TREATMENT	Public-domain image

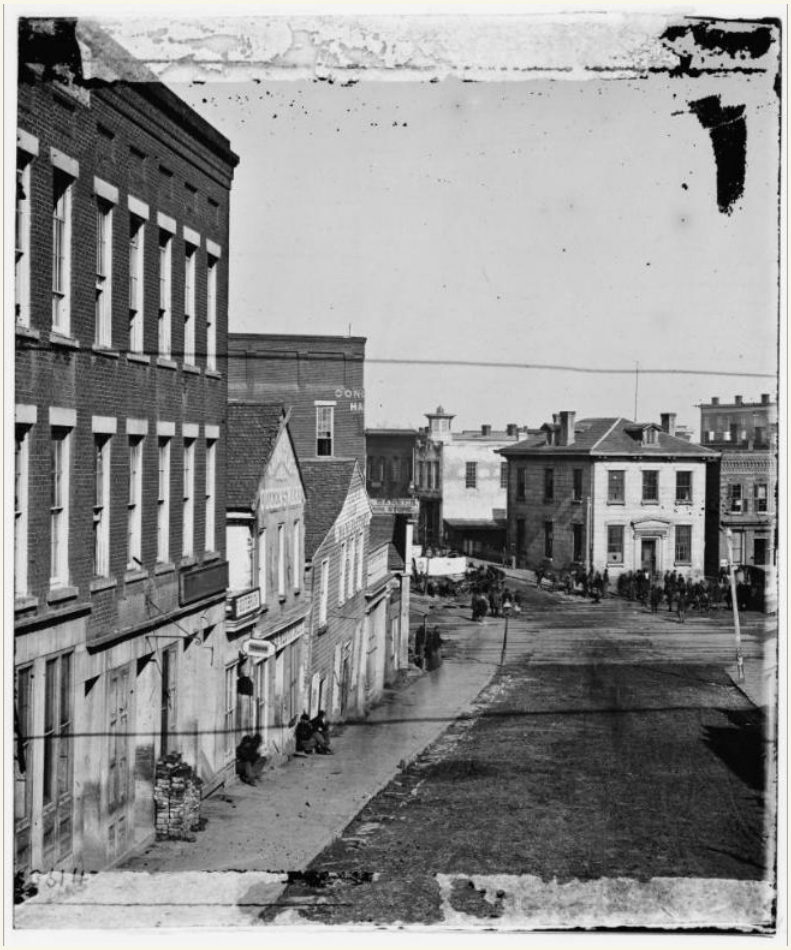
Historical Context

George N. Barnard (1819–1902) was the official photographer of the Military Division of the Mississippi and accompanied Sherman's army. He photographed Atlanta during the Union occupation from September to November 1864.

This view of Whitehall Street, a main commercial street, shows the city that had served as the Confederacy's railroad hub and a major center of munitions and supply.

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons). Barnard worked for the army, and his photographs document the campaign from the Union side.

Primary Source Image



George N. Barnard, Atlanta, Ga. View on Whitehall Street (1864). Library of Congress.

Chicago Citations

Bibliography entry:

Barnard, George N. *Atlanta, Ga. View on Whitehall Street*. Photograph, 1864. Civil War Photographs, Library of Congress, LC-DIG-cwpb-03361.

Footnote citation:

George N. Barnard, *Atlanta, Ga. View on Whitehall Street*, photograph, 1864, Library of Congress, https://www.loc.gov/item/2011647096/.

Shortened citation:

Barnard, *View on Whitehall Street*.

PRIMARY SOURCE P14.73

President Davis in Macon

Jefferson Davis, speech of c. September 23, 1864 · The Daily Confederate (Raleigh), September 29, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.3 (Who Fought, and Why?)
WHY HERE	Davis admits mass absence from the ranks after Atlanta and appeals to Georgians' duty to home and state.
TREATMENT	Public-domain text, selected excerpts (uncorrected newspaper OCR)

Historical Context

After Atlanta fell on September 2, 1864, Jefferson Davis went to Georgia to restore confidence. At Macon he spoke to a crowd that included refugees from Atlanta.

Davis admitted that two-thirds of the army's men were absent, many without leave, and pleaded with Georgians to send them back. Newspapers across the South reprinted the speech, and Grant later said it told the Union what the Confederates planned to do.

Editorial note: The text follows the uncorrected OCR of the newspaper page on DigitalNC. Many words are garbled (for example "JLJut fruncU are drawn together in aJversity"); these errors are reproduced as scanned.

Document Text

[. . .]

Ladies amd Gentlemen, Friends and Fellow Citizens : It would have gladdened my heart to have met you in prosperity instead of adversity. JLJut fruncU are drawn together in aJversity. The hon of a Georgian, who fough t through the fim Revolution, I would be uutrue to myself if I should forget the State in htr day of peril. ' . What, though misfortune ha befallen our arms from Decatur to Joncsb ro', our cause U not lost. Sherman cannot keep up hi- long line of communication, tm i retreat, sooner or later, he must. And when that day come9, the fate thatjaefel the army of the French Empire in its retreat from Moscow, will be re enacted Our cavalry and our people will hart ass and destroy his artuy as d.d the Cossacks that of Napolt-on, and the Yankee General, like him, will escape with only a body guard. - How can this bo the most spe lily ef frcted? By the absentees of Hood's army returning to their posts. And will they not ? Can they see tho banished exiles, can they hear the wail of their suffering country-women and children, and not come; 5y what influences they are made to stay away, it is not necessary to speak. If there is one who will stiy away at thii hour, ho is unworthy of tho name of Geor gian.

[. . .]

1 know tho deep disgrace felt by Geor gia at our army falling b ck from Dalton to the in erior of the State; but I wts not of those who considered Atlanta lost wheu our army cioed the Chattahoochee. I resolved that it should not, and 1 then put. u nah in command who I knew would strike an honest and manly blow for the city, a'jd many a Yankee's blood was made to nourish tho soil before tho prize was won. It. ilnoa not become us to revert to disas ter. "Dcr the dead bury the dead." Let us wilh one arm and one effort endeavor to orush Sherman.

[. . .]

Chicago Citations

Bibliography entry:

"President Davis in Macon." *The Daily Confederate* (Raleigh, NC), September 29, 1864, 1. DigitalNC, North Carolina Newspapers.

Footnote citation:

"President Davis in Macon," *Daily Confederate* (Raleigh), September 29, 1864, 1, via DigitalNC, https://newspapers.digitalnc.org/lccn/sn83025813/1864-09-29/ed-1/seq-1/.

Shortened citation:

"President Davis in Macon."

PRIMARY SOURCE P14.74

Personal Memoirs of U. S. Grant, Chapter LIX (excerpt)

Ulysses S. Grant · 1885–86 (events of September–November 1864)

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Grant describes friction between Georgia's governor and the Confederate government after Atlanta fell.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After Atlanta fell in September 1864, Jefferson Davis traveled through Georgia and the Carolinas to rally support. He criticized Governor Joseph Brown and General Joseph E. Johnston and announced that Hood's army would strike at Sherman's supply line.

Grant described these events in his memoirs. He noted that Governor Brown had withdrawn Georgia militia from the Confederate army to bring in the harvest, and argued that Davis's speeches revealed Confederate plans to the Union.

Editorial note: Grant wrote two decades after the events. The text follows the Project Gutenberg edition.

Document Text

[. . .]

In his speeches Mr. Davis denounced Governor Brown, of Georgia, and General Johnston in unmeasured terms, even insinuating that their loyalty to the Southern cause was doubtful. So far as General Johnston is concerned, I think Davis did him a great injustice in this particular. I had know the general before the war and strongly believed it would be impossible for him to accept a high commission for the purpose of betraying the cause he had espoused. There, as I have said, I think that his policy was the best one that could have been pursued by the whole South—protract the war, which was all that was necessary to enable them to gain recognition in the end. The North was already growing weary, as the South evidently was also, but with this difference. In the North the people governed, and could stop hostilities whenever they chose to stop supplies. The South was a military camp, controlled absolutely by the government with soldiers to back it, and the war could have been protracted, no matter to what extent the discontent reached, up to the point of open mutiny of the soldiers themselves. Mr. Davis's speeches were frank appeals to the people of Georgia and that portion of the South to come to their relief. He tried to assure his frightened hearers that the Yankees were rapidly digging their own graves; that measures were already being taken to cut them off from supplies from the North; and that with a force in front, and cut off from the rear, they must soon starve in the midst of a hostile people. Papers containing reports of these speeches immediately reached the Northern States, and they were republished. Of course, that caused no alarm so long as telegraphic communication was kept up with Sherman.

[. . .]

Chicago Citations

Bibliography entry:

Grant, Ulysses S. *Personal Memoirs of U. S. Grant*. 2 vols. New York: Charles L. Webster, 1885–86. Project Gutenberg eBook #4367.

Footnote citation:

Ulysses S. Grant, *Personal Memoirs of U. S. Grant* (New York: Charles L. Webster, 1886), 2: chap. 59, Project Gutenberg eBook #4367.

Shortened citation:

Grant, *Personal Memoirs*, 2: chap. 59.

PRIMARY SOURCE P14.75

Memoirs of General W. T. Sherman, Volume II, Chapter XXI: "The March to the Sea" (excerpt)

William T. Sherman · 1875 (Special Field Orders No. 120, November 9, 1864)

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Sherman's own orders and account show how the march organized logistics and made war on the southern economy.
TREATMENT	Public-domain text, selected excerpts

Historical Context

William T. Sherman (1820–1891) published his memoirs in 1875, a decade after the war. He reprinted many of his wartime orders in full.

This chapter reprints Special Field Orders No. 120, issued before the March to the Sea. They directed the army to "forage liberally on the country," assigned to corps commanders alone the power to destroy mills and houses, and allowed the taking of horses and mules. Sherman also describes how he organized and supplied his army.

Editorial note: The memoir was written a decade after the events; the orders it reprints are contemporary. The text follows the Project Gutenberg edition. The plan's separate listing of these orders is printed here as one entry.

Document Text

[. . .]

The general commanding deems it proper at this time to inform the officers and men of the Fourteenth, Fifteenth, Seventeenth, and Twentieth Corps, that he has organized them into an army for a special purpose, well known to the War Department and to General Grant. It is sufficient for you to know that it involves a departure from our present base, and a long and difficult march to a new one. All the chances of war have been considered and provided for, as far as human sagacity can. All he asks of you is to maintain that discipline, patience, and courage, which have characterized you in the past; and he hopes, through you, to strike a blow at our enemy that will have a material effect in producing what we all so much desire, his complete overthrow. Of all things, the most important is, that the men, during marches and in camp, keep their places and do not scatter about as stragglers or foragers, to be picked up by a hostile people in detail. It is also of the utmost importance that our wagons should not be loaded with any thing but provisions and ammunition. All surplus servants, noncombatants, and refugees, should now go to the rear, and none should be encouraged to encumber us on the march. At some future time we will be able to provide for the poor whites and blacks who seek to escape the bondage under which they are now suffering. With these few simple cautions, he hopes to lead you to achievements equal in importance to those of the past.

By order of Major-General W. T. Sherman, L. M. DAYTON, Aide-de-Camp.

[Special Field Orders, No. 120.]

HEADQUARTERS MILITARY DIVISION OF THE MISSISSIPPI
IN THE FIELD, KINGSTON, GEORGIA, November 9, 1864

1. For the purpose of military operations, this army is divided into two wings viz.:

The right wing, Major-General O. O. Howard commanding, composed of the Fifteenth and Seventeenth Corps; the left wing, Major-General H. W. Slocum commanding, composed of the Fourteenth and Twentieth Corps.

2. The habitual order of march will be, wherever practicable, by four roads, as nearly parallel as possible, and converging at points hereafter to be indicated in orders. The cavalry, Brigadier-General Kilpatrick commanding, will receive special orders from the commander-in-chief.

3. There will be no general train of supplies, but each corps will have its ammunition-train and provision-train, distributed habitually as follows: Behind each regiment should follow one wagon and one ambulance; behind each brigade should follow a due proportion of ammunition-wagons, provision-wagons, and ambulances. In case of danger, each corps commander should change this order of march, by having his advance and rear brigades unencumbered by wheels. The separate columns will start habitually at 7 a.m., and make about fifteen miles per day, unless otherwise fixed in orders.

4. The army will forage liberally on the country during the march. To this end, each brigade commander will organize a good and sufficient foraging party, under the command of one or more discreet officers, who will gather, near the route traveled, corn or forage of any kind, meat of any kind, vegetables, corn-meal, or whatever is needed by the command, aiming at all times to keep in the wagons at least ten days' provisions for his command, and three days' forage. Soldiers must not enter the dwellings of the inhabitants, or commit any trespass; but, during a halt or camp, they may be permitted to gather turnips, potatoes, and other vegetables, and to drive in stock in sight of their camp. To regular foraging-parties must be intrusted the gathering of provisions and forage, at any distance from the road traveled.

6. To corps commanders alone is intrusted the power to destroy mills, houses, cotton-gins, etc.; and for them this general principle is laid down:

In districts and neighborhoods where the army is unmolested, no destruction of each property should be permitted; but should guerrillas or bushwhackers molest our march, or should the inhabitants burn bridges, obstruct roads, or otherwise manifest local hostility, then army commanders should order and enforce a devastation more or less relentless, according to the measure of such hostility.

6. As for horses, mules, wagons, etc., belonging to the inhabitants, the cavalry and artillery may appropriate freely and without limit; discriminating, however, between the rich, who are usually hostile, and the poor and industrious, usually neutral or friendly. Foraging-parties may also take mules or horses, to replace the jaded animals of their trains, or to serve as pack-mules for the regiments or brigades. In all foraging, of whatever kind, the parties engaged will refrain from abusive or threatening language, and may, where the officer in command thinks proper, give written certificates of the facts, but no receipts; and they will endeavor to leave with each family a reasonable portion for their maintenance,

7. Negroes who are able-bodied and can be of service to the several columns may be taken along; but each army commander will bear in mind that the question of supplies is a very important one, and that his first duty is to see to those who bear arms.

8. The organization, at once, of a good pioneer battalion for each army corps, composed if possible of negroes, should be attended to. This battalion should follow the advance-guard, repair roads and double them if possible, so that the columns will not be delayed after reaching bad places. Also, army commanders should practise the habit of giving the artillery and wagons the road, marching their troops on one side, and instruct their troops to assist wagons at steep hills or bad crossings of streams.

9. Captain O. M. Poe, chief-engineer, will assign to each wing of the army a pontoon-train, fully equipped and organized; and the commanders thereof will see to their being properly protected at all times.

By order of Major-General W. T. Sherman,

L. M. DAYTON, Aide-de-Camp.

[. . .]

Chicago Citations

Bibliography entry:

Sherman, William T. *Memoirs of General W. T. Sherman*. 2 vols. New York: D. Appleton, 1875. Project Gutenberg eBook #5853.

Footnote citation:

William T. Sherman, *Memoirs of General W. T. Sherman* (New York: D. Appleton, 1875), 2: chap. 21, Project Gutenberg eBook #5853.

Shortened citation:

Sherman, *Memoirs*, 2: chap. 21.

PRIMARY SOURCE P14.76

Gen. Sherman's Men Destroying the Railroad, before the Evacuation of Atlanta, Ga.

George N. Barnard (photographer) · November 1864

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	A photograph shows the Union army deliberately wrecking the South's transport network.
TREATMENT	Public-domain image

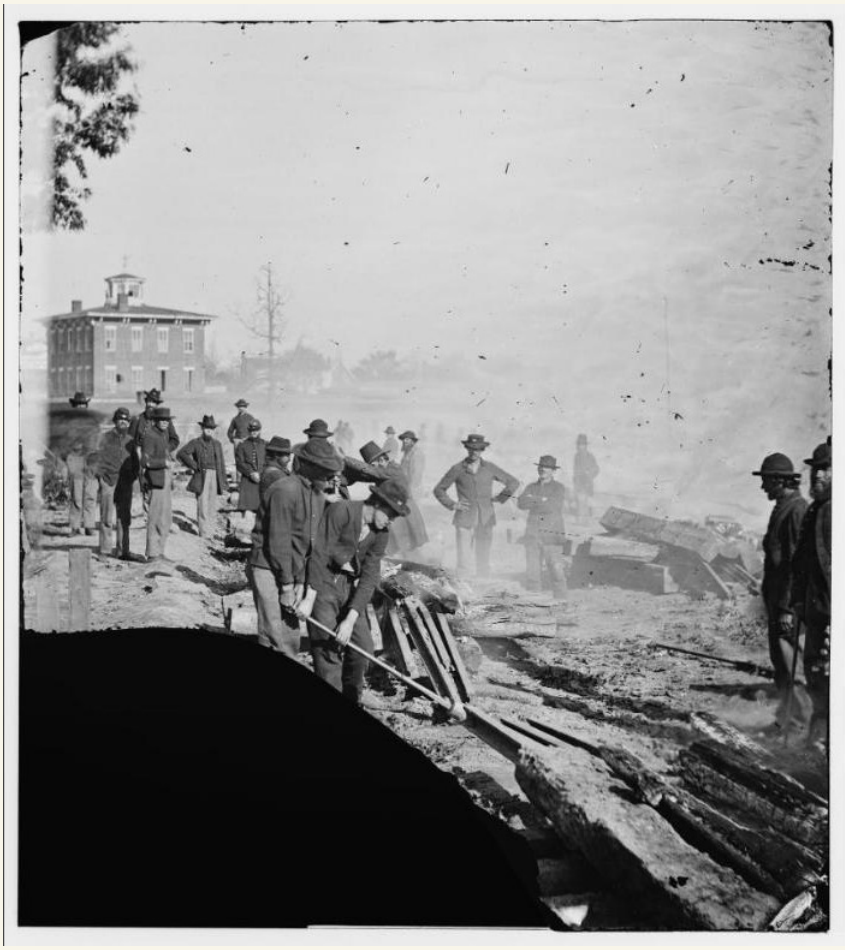
Historical Context

Before leaving Atlanta on the March to the Sea, Sherman ordered the destruction of everything of military value, beginning with the railroads that had made the city a Confederate hub.

Barnard's photograph shows soldiers prying up track. Union troops heated rails over bonfires of ties and twisted them around trees, creating what soldiers called "Sherman's neckties."

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons). Barnard was the army's official photographer.

Primary Source Image



George N. Barnard, Sherman's men destroying railroad, Atlanta (November 1864). Library of Congress.

Chicago Citations

Bibliography entry:

Barnard, George N. *Atlanta, Georgia. Sherman's Men Destroying Railroad*. Photograph, November 1864. Civil War Photographs, Library of Congress, LC-DIG-cwpb-03394.

Footnote citation:

George N. Barnard, *Atlanta, Georgia. Sherman's Men Destroying Railroad*, photograph, November 1864, Library of Congress, https://www.loc.gov/item/2005681142/.

Shortened citation:

Barnard, *Sherman's Men Destroying Railroad*.

PRIMARY SOURCE P14.77

Statement of a Maryland Freedwoman

Jane Kamper · Baltimore, November 14, 1864

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A freedwoman reclaims her children from an owner who tried to keep them as apprentices.
TREATMENT	Full public-domain text

Historical Context

Maryland abolished slavery by a new state constitution that took effect on November 1, 1864. Many former owners immediately went to county courts to have the children of freedpeople bound to them as "apprentices."

Jane Kamper, formerly enslaved in Talbot County, gave this statement to a Union officer in Baltimore, describing how her former owner refused to release her children and how she took them away.

Editorial note: Kamper signed with her mark. The text follows the Freedmen and Southern Society Project transcription.

Document Text

Balto [Md.] Novr 14" /64

Statement of Jane Kamper

Slave of Wm Townsend of Talbot County Md.

I was the slave of Wm Townsend of Talbot county & told Mr. Townsend of my having become free & desired my master to give my children & my bedclothes he told me that I was free but that my Children Should be bound to me [him]. he locked my Children up so that I could not find them I afterwards got my children by stealth & brought them to Baltimore. I desire to regain possession of my bed clothes & furniture.

My Master pursued me to the Boat to get possession of my children but I hid them on the boat

her
Jane X Kamper (f[ree] n[egro])
mark

Chicago Citations

Bibliography entry:

Kamper, Jane. Statement, November 14, 1864. Filed with M-1932 1864, Letters Received, ser. 12, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Statement of Jane Kamper, November 14, 1864, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Kamper.html.

Shortened citation:

Kamper, statement, November 14, 1864.

PRIMARY SOURCE P14.78

Ruins of the Passenger Station (Car Shed), Atlanta

George N. Barnard (photographer) · November 1864

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	A photograph shows the Union army's deliberate destruction of the South's railroad hub.
TREATMENT	Public-domain image

Historical Context

Before Sherman's army left Atlanta for the sea in mid-November 1864, engineers destroyed the city's railroad facilities, including the great car shed of the passenger depot.

George N. Barnard, the army's official photographer, recorded the wreckage. This stereograph shows the collapsed station amid ruined buildings.

Editorial note: Image from a copy of the stereograph supplied by the instructor (the Library of Congress holds Barnard's original). Barnard worked for the army.

Primary Source Image

George N. Barnard, ruins of the passenger station, Atlanta, November 1864 (stereograph).

Chicago Citations

Bibliography entry:

Barnard, George N. *Ruins of the Passenger Station (Car Shed), Atlanta, Ga.* Stereograph, November 1864. Prints and Photographs Division, Library of Congress, LCCN 2005681127.

Footnote citation:

George N. Barnard, *Ruins of the Passenger Station, Atlanta*, stereograph, November 1864, Library of Congress, https://www.loc.gov/item/2005681127.

Shortened citation:

Barnard, *Ruins of the Passenger Station*.

PRIMARY SOURCE P14.79

A Woman's Wartime Journal (excerpt)

Dolly Sumner Lunt Burge · diary entries of November 1864 (published 1918)

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?), 14.4 (Was It a Total War?), and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A plantation mistress records Sherman's army stripping her plantation and taking enslaved men, but not harming her.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Dolly Sumner Lunt Burge (1817–1891), born in Maine, was a widow who ran a cotton plantation near Covington, Georgia, worked by enslaved people.

On November 19, 1864, part of Sherman's army passed over her plantation on the March to the Sea. Her diary records soldiers taking her livestock, food, and stores, and leading away enslaved men and boys, while she watched from her house.

Editorial note: The diary was published in 1918 and may have been edited. The text follows the Project Gutenberg edition; page numbers in brackets are from the printed book.

Document Text

[. . .]

I could hear them cry, "Halt! Halt!" and their guns went off in quick succession. Oh God, the time of trial has come!

A man passed on his way to Covington. I halloed to him, asking him if he did not know the Yankees were coming.

"No—are they?"

"Yes," said I; "they are not three hundred yards from here."

"Sure enough," said he. "Well, I'll not go. I don't want them to get my horse." And although within hearing of their guns, he would stop and look for them. Blissful ignorance! Not knowing, not hearing, he has not suffered the suspense, the fear, that I have for the past forty-eight hours. I walked to the gate. There they came filing up.

I hastened back to my frightened servants and told them that they had better hide, and then went back to the gate to claim protection and a guard. But like demons they rush in! My yards are full. To my smoke-house, my dairy, pantry, kitchen, and cellar, like famished wolves they come, breaking locks and whatever is in their way. The thousand pounds of meat in my smoke-house is gone in a twinkling, my flour, my meat, my lard, butter, eggs, pickles of various kinds—both in vinegar and brine—wine, jars, and jugs are all gone. My eighteen fat turkeys, my hens, chickens, and fowls, my young pigs, are shot down in my yard and hunted as if they were rebels themselves. Utterly powerless I ran out and appealed to the guard.

"I cannot help you, Madam; it is orders."

As I stood there, from my lot I saw driven, first, old Dutch, my dear old buggy horse, who has carried my beloved husband so many miles, and who would so quietly wait at the block for him to mount and dismount, and who at last drew him to his grave; then came old Mary, my brood mare, who for years had been too old and stiff for work, with her three-year-old colt, my two-year-old mule, and her last little baby colt. There they go! There go my mules, my sheep, and, worse than all, my boys [slaves]!

Alas! little did I think while trying to save my house from plunder and fire that they were forcing my boys from home at the point of the bayonet. One, Newton, jumped into bed in his cabin, and declared himself sick. Another crawled under the floor,—a lame boy he was,—but they pulled him out, placed him on a horse, and drove him off. Mid, poor Mid! The last I saw of him, a man had him going around the garden, looking, as I thought, for my sheep, as he was my shepherd. Jack came crying to me, the big tears coursing down his cheeks, saying they were making him go. I said:

"Stay in my room."

But a man followed in, cursing him and threatening to shoot him if he did not go; so poor Jack had to yield. James Arnold, in trying to escape from a back window, was captured and marched off. Henry, too, was taken; I know not how or when, but probably when he and Bob went after the mules. I had not believed they would force from their homes the poor, doomed negroes, but such has been the fact here, cursing them and saying that "Jeff Davis wanted to put them in his army, but that they should not fight for him, but for the Union." No! Indeed no! They are not friends to the slave. We have never made the poor, cowardly negro fight, and it is strange, passing strange, that the all-powerful Yankee nation with the whole world to back them, their ports open, their armies filled with soldiers from all nations, should at last take the poor negro to help them out against this little Confederacy which was to have been brought back into the Union in sixty days' time!

My poor boys! My poor boys! What unknown trials are before you! How you have clung to your mistress and assisted her in every way you knew.

[. . .]

Chicago Citations

Bibliography entry:

Burge, Dolly Sumner Lunt. *A Woman's Wartime Journal: An Account of the Passage over a Georgia Plantation of Sherman's Army on the March to the Sea*. New York: Century, 1918. Project Gutenberg eBook #32595.

Footnote citation:

Dolly Sumner Lunt [Burge], *A Woman's Wartime Journal* (New York: Century, 1918), [page], Project Gutenberg eBook #32595.

Shortened citation:

Burge, *Woman's Wartime Journal*, [page].

PRIMARY SOURCE P14.80

Mother of a Pennsylvania Black Soldier to the President

Jane Welcome to Abraham Lincoln · Carlisle, Pennsylvania, November 21, 1864

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A Black mother petitions the president directly, showing both political voice and economic hardship.
TREATMENT	Full public-domain text

Historical Context

Many Black soldiers came from poor families that depended on their wages, which were low and often months late.

Jane Welcome, a widow, asked Lincoln to discharge her son, who had been wounded twice, because he was her only support. An army clerk endorsed the letter as declined.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Carlisles [Pa.] nov 21 1864

Mr abarham lincon I wont to knw sir if you please wether I can have my son relest from the arme he is all the subport I have now his father is Dead and his brother that wase all the help that I had he has bean wonded twise he has not had nothing to send me yet now I am old and my head is blossaming for the grave and if you dou I hope the lord will bless you and me if you please answer as soon as you can if you please tha say that you will simpethise withe the poor thear wase awhite jentel man told me to write to you Mrs jane Welcom if you please answer it to

he be long to the eight rigmat co a u st colard troops mart welcom is his name he is a sarjent

[Jane Welcome]

Chicago Citations

Bibliography entry:

Welcome, Jane. Letter to Abraham Lincoln, November 21, 1864. W-934 1864, Letters Received, ser. 360, Colored Troops Division, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Jane Welcome to Abraham Lincoln, November 21, 1864, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/JWelcome.html.

Shortened citation:

Welcome to Lincoln, November 21, 1864.

PRIMARY SOURCE P14.81

Annual Message to Congress, December 6, 1864 (excerpt)

Abraham Lincoln · December 6, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.2 (Who Freed the Enslaved?)
WHY HERE	Lincoln points to the North's unexhausted resources and presses Congress to abolish slavery by amendment.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Lincoln won re-election in November 1864 with 55 percent of the popular vote, carried by the fall of Atlanta and the votes of soldiers.

In his annual message he noted that the North had more men available than when the war began and that its resources were "unexhausted." He urged the House, which had failed to pass the Thirteenth Amendment in June, to approve it, and he refused to retract the Emancipation Proclamation.

Editorial note: The text follows the House Divided (Dickinson College) transcription, adapted from Roy P. Basler's *Collected Works of Abraham Lincoln*.

Document Text

[. . .]

... At the last session of Congress a proposed amendment of the Constitution abolishing slavery throughout the United States, passed the Senate, but failed for lack of the requisite two-thirds vote in the House of Representatives. Although the present is the same Congress, and nearly the same members, and without questioning the wisdom or patriotism of those who stood in opposition, I venture to recommend the reconsideration and passage of the measure at the present session. Of course the abstract question is not changed; but an intervening election shows, almost certainly, that the next Congress will pass the measure if this does not. Hence there is only a question of time as to when the proposed amendment will go to the States for their action. And as it is to so go, at all events, may we not agree that the sooner the better? It is not claimed that the election has imposed a duty on members to change their views or their votes, any further than, as an additional element to be considered, their judgment may be affected by it. It is the voice of the people now, for the first time, heard upon the question. In a great national crisis, like ours, unanimity of action among those seeking a common end is very desirable---almost indispensable. And yet no approach to such unanimity is attainable, unless some deference shall be paid to the will of the majority, simply because it is the will of the majority. In this case the common end is the maintenance of the Union; and, among the means to secure that end, such will, through the election, is most clearly declared in favor of such constitutional amendment.

The most reliable indication of public purpose in this country is derived through our popular elections. Judging by the recent canvass and its result, the purpose of the people, within the loyal States, to maintain the integrity of the Union, was never more firm, nor more nearly unanimous, than now. The extraordinary calmness and good order with which the millions of voters met and mingled at the polls, give strong assurance of this. Not only all those who supported the Union ticket, so called, but a great majority of the opposing party also, may be fairly claimed to entertain, and to be actuated by, the same purpose. It is an unanswerable argument to this effect, that no candidate for any office whatever, high or low, has ventured to seek votes on the avowal that he was for giving up the Union. There have been much impugning of motives, and much heated controversy as to the proper means and best mode

of advancing the Union cause; but on the distinct issue of Union or no Union, the politicians have shown their instinctive knowledge that there is no diversity among the people. In affording the people the fair opportunity of showing, one to another and to the world, this firmness and unanimity of purpose, the election has been of vast value to the national cause.

The election has exhibited another fact not less valuable to be known---the fact that we do not approach exhaustion in the most important branch of national resources---that of living men. While it is melancholy to reflect that the war has filled so many graves, and carried mourning to so many hearts, it is some relief to know that, compared with the surviving, the fallen have been so few. While corps, and divisions, and brigades, and regiments have formed, and fought, and dwindled, and gone out of existence, a great majority of the men who composed them are still living. The same is true of the naval service. The election returns prove this. So many voters could not else be found. The States regularly holding elections, both now and four years ago, to wit, California, Connecticut, Delaware, Illinois, Indiana, Iowa, Kentucky, Maine, Maryland, Massachusetts, Michigan, Minnesota, Missouri, New Hampshire, New Jersey, New York, Ohio, Oregon, Pennsylvania, Rhode Island, Vermont, West Virginia, and Wisconsin cast 3.982.011 votes now, against 3.870.222 cast then, showing an aggregate now of 3.982.011. To this is to be added 33.762 cast now in the new States of Kansas and Nevada, which States did not vote in 1860, thus swelling the aggregate to 4.015.773 and the net increase during the three years and a half of war to 145.551. A table is appended showing particulars. To this again should be added the number of all soldiers in the field from Massachusetts, Rhode Island, New Jersey, Delaware, Indiana, Illinois, and California, who, by the laws of those States, could not vote away from their homes, and which number cannot be less than 90.000. Nor yet is this all. The number in organized Territories is triple now what it was four years ago, while thousands, white and black, join us as the national arms press back the insurgent lines. So much is shown, affirmatively and negatively, by the election. It is not material to inquire how the increase has been produced, or to show that it would have been greater but for the war, which is probably true. The important fact remains demonstrated, that we have more men now than we had when the war began; that we are not exhausted, nor in process of exhaustion; that we are gaining strength, and may, if need be, maintain the contest indefinitely. This as to men. Material resources are now more complete and abundant than ever.

The national resources, then, are unexhausted, and, as we believe, inexhaustible. The public purpose to re-establish and maintain the national authority is unchanged, and, as we believe, unchangeable. The manner of continuing the effort remains to choose. On careful consideration of all the evidence accessible it seems to me that no attempt at negotiation with the insurgent leader could result in any good. He would accept nothing short of severance of the Union---precisely what we will not and cannot give. His declarations to this effect are explicit and oft-repeated. He does not attempt to deceive us. He affords us no excuse to deceive ourselves. He cannot voluntarily reaccept the Union; we cannot voluntarily yield it. Between him and us the issue is distinct, simple, and inflexible. It is an issue which can only be tried by war, and decided by victory. If we yield, we are beaten; if the Southern people fail him, he is beaten. Either way, it would be the victory and defeat following war. What is true, however, of him who heads the insurgent cause, is not necessarily true of those who follow. Although he cannot reaccept the Union, they can. Some of them, we know, already desire peace and reunion. The number of such may increase. They can, at any moment, have peace simply by laying down their arms and submitting to the national authority under the Constitution. After so much, the government could not, if it would, maintain war against them. The loyal people would not sustain or allow it. If questions should remain, we would adjust them by the peaceful means of legislation, conference, courts, and votes, operating only in constitutional and lawful channels. Some certain, and other possible, questions are, and would be, beyond the Executive power to adjust; as, for instance, the admission of members into Congress, and whatever might require the appropriation of money. The Executive power itself would be greatly diminished by the cessation of actual war. Pardons and remissions of forfeitures, however, would still be within Executive control. In what spirit and temper this control would be exercised can be fairly judged of by the past....

Chicago Citations

Bibliography entry:

Lincoln, Abraham. Annual Message to Congress, December 6, 1864. In *The Collected Works of Abraham Lincoln*, edited by Roy P. Basler, vol. 8. New Brunswick, NJ: Rutgers University Press, 1953. House Divided Project, Dickinson College.

Footnote citation:

Abraham Lincoln, Annual Message to Congress, December 6, 1864, via House Divided, https://hd.housedivided.dickinson.edu/node/40539.

Shortened citation:

Lincoln, Annual Message, December 6, 1864.

PRIMARY SOURCE P14.82

Letter to Henry W. Halleck, December 24, 1864

William T. Sherman · Savannah, Georgia, December 24, 1864

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.4 (Was It a Total War?)
WHY HERE	Sherman states his strategy of making the southern population feel the war and reports collapsing confidence in Davis.
TREATMENT	Full public-domain text

Historical Context

William T. Sherman's army left Atlanta in mid-November 1864 and marched three hundred miles to the sea, living off the land and destroying railroads, mills, and supplies. It took Savannah on December 21.

In this letter to the army's chief of staff, Sherman reviewed the march's effects and argued that the Union must make "old and young, rich and poor, feel the hard hand of war." He proposed to march next through South Carolina.

Editorial note: The text follows the Civil War Era NC transcription from Brooks D. Simpson and Jean V. Berlin, eds., *Sherman's Civil War: Selected Correspondence* (1999).

Document Text

Headquarters military Division of the Mississippi,

In the Field, Savannah, Ga.,

December 24, 1864

Maj. Gen. H.W. Halleck,

Chief of Staff, Washington City, D.C.:

General:

I had the pleasure to receive your two letters of the 16th and 18th instant today, and I feel more than usually flattered by the high encomiums that you have passed on our recent campaign, which is now complete by the occupation of Savannah . . . .

I attach more importance to these deep incisions into the enemy's country, because this war differs from European wars in this particular: we are not only fighting hostile armies, but a hostile people, and must make old and young, rich and poor, feel the hard hand of war, as well as their organized armies. I know that this recent movement of mine through Georgia has had a wonderful effect in this respect. Thousands who had been deceived by their lying newspapers to believe that we were being whipped all the time now realize the truth, and have no appetite for a repetition of the same experience. To be sure, Jeff. Davis has his people under pretty good discipline, but I think faith in him is much shaken in Georgia, and before we have done with her South Carolina will not be quite so tempestuous. I will bear in mind your hint as to Charleston, and do not think "salt" will be necessary. When I move, the Fifteenth Corps will be on the right of the right wing, and their position will naturally bring them into Charleston first; and, if you have watched the history of that corps, you will have remarked that they generally do their work pretty well. The truth is, the whole army is burning with an insatiable desire to wreak vengeance upon South Carolina. I almost tremble at her fate, but feel that she deserves all that seems in store for her. Many and many a person in Georgia asked me why we did not go to South Carolina; and, when I answered that we were en route for that State, the invariable reply was, "Well, if you will make those people feel the utmost severities of war,

we will pardon you for your desolation of Georgia." I look upon Columbia as quite as bad as Charleston, and I doubt if we will spare the public buildings there as we did at Milledgeville . . . .

Assuring you of my high personal respect, I remain, as ever, your friend,

W.T. Sherman,

Major-General

Chicago Citations

Bibliography entry:

Sherman, William T. Letter to Henry W. Halleck, December 24, 1864. In *The War of the Rebellion: A Compilation of the Official Records of the Union and Confederate Armies*, ser. 1, vol. 44, 798–800. Washington, DC: Government Printing Office, 1893. Civil War Era NC, North Carolina State University.

Footnote citation:

William T. Sherman to Henry W. Halleck, December 24, 1864, via Civil War Era NC, https://cwnc.omeka.chass.ncsu.edu/items/show/144.

Shortened citation:

Sherman to Halleck, December 24, 1864.

PRIMARY SOURCE P14.83

The War-Time Journal of a Georgia Girl: Explanatory Note to "Across Sherman's Track"

Eliza Frances Andrews · 1908 (journal of 1864–65)

TOC FIT	Chapter 14 · Essay prompts 14.4 (Was It a Total War?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A Georgia woman describes the devastation along Sherman's route and the strains on women left at home.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Eliza Frances Andrews (1840–1931), daughter of a Unionist judge in Washington, Georgia, kept a journal in the last months of the war. In December 1864 she traveled across the path of Sherman's march to visit her sister's plantation in southwest Georgia.

When she published the journal in 1908, Andrews added explanatory notes. This one describes her family's situation and the journey through country Sherman's army had stripped.

Editorial note: Andrews revised her journal before publishing it in 1908, and this passage is from her later explanatory note. The text follows the Internet Archive scan.

Document Text

[. . .]

Explanatory Note. — At the time of this narrative, the writer's eldest sister, Mrs. Troup Butler, was living alone with her two little children on a plantation in Southwest Georgia, between Albany and Thomasville. Besides our father, who was sixty-two when the war began, and a little brother who was only twelve when it closed, we had no male relations out of the army, and she lived there with no other protector, for a good part of the time, than the negroes themselves. There were not over a hundred of them on the place, and though they were faithful, and nobody ever thought of being afraid on their account, it was lonely for her to be there among them with no other white person than the overseer, and so the writer and a younger sister, Metta, were usually sent to be her companions during the winter. The summers she spent with us at the old home.

But in the fall of 1864, while Sherman's army was lying around Atlanta like a pent-up torrent ready to burst forth at any moment, my father was afraid to let us get out of his sight, and we all stood waiting in our defenseless homes till we could see what course the destroying flood would take. Happily for us it passed by without engulfing the little town of Washington, where our home was situated, and after it had swept over the capital of the State, reaching Milledgeville November 23d, rolled

on toward Savannah, where the sound of merry Christmas bells was hushed by the roar of its angry waters.

Meanwhile the people in our part of Georgia had had time to get their breath once more, and began to look about for some way of bridging the gap of ruin and desolation that stretched through the entire length of our State. The Georgia Railroad, running from Atlanta to Augusta, had been destroyed to the north of us, and the Central of Georgia, from Macon to Savannah, was intact for only sixteen miles ; that part of the track connecting the former city with the little station of Gordon having Iain beyond the path of the invaders. By taking advantage of this fragment, and of some twelve miles of track that had been laid from Camack, a station on the uninjured part of the Georgia railroad, to Mayfield, on what is now known as the Macon branch of the Georgia, the distance across country could be shortened by twenty-five miles, and the wagon road between these two points at once became a

great national thoroughfare.

By the middle of December, communication, though subject to many difficulties and discomforts, was so well established that my father concluded it would be practicable for us to make the journey to our sister. We were eager to go, and would be safer, he thought, when once across the line, than at home. Sherman had industriously spread the impression that his next move would be on either Charleston or Augusta, and in the latter event, our home would be in the line of danger. Southwest Georgia was at that time a " Land of Goshen " and a " city of refuge " to harassed Confederates. Thus far it had never been seriously threatened by the enemy, and was supposed to be the last spot in the Confederacy on which he would ever set foot — and this, in the end, proved to be not far from the truth.

So then, after careful consultation with my oldest brother, Fred, at that time commandant of the Georgia camp of instruction for conscripts, in Macon, we set out under the protection of a reliable man whom my brother detailed to take care of us. It may seem strange to modern readers that two young women should have been sent off on such a journey with no companion of their own sex, but the exigencies of the times did away with many conventions. Then, too, the exquisite courtesy and deference of the Southern men of that day toward women made the chaperon a person of secondary importance among us. It was the " male protector " who was indispensable. I have known matrons of forty wait for weeks on the movements of some male acquaintance rather than take the railroad journey of fifty miles from our village to Augusta, alone ; and when I was sent off to boarding school, I remember, the great desideratum was to find some man who would pilot me safely through the awful difficulties of a railroad journey of 200 miles. Women, young or old, were intrusted to the care of any man known to their family as a gentleman, with a confidence as beautiful as the loyalty that inspired it. Under no other social regime, probably, have young girls been allowed such liberty of intercourse with the other sex as were those of the Old South — a liberty which the notable absence of scandals and divorces in that society goes far to justify.

[. . .]

Chicago Citations

Bibliography entry:

Andrews, Eliza Frances. *The War-Time Journal of a Georgia Girl, 1864–1865*. New York: D. Appleton, 1908. Internet Archive.

Footnote citation:

Eliza Frances Andrews, *The War-Time Journal of a Georgia Girl, 1864–1865* (New York: D. Appleton, 1908), 19–21, https://archive.org/details/wartimejournalof00andr.

Shortened citation:

Andrews, *War-Time Journal*, [page].

PRIMARY SOURCE P14.84

Minutes of an Interview between the Colored Ministers and Church Officers at Savannah with the Secretary of War and Major-General Sherman

New-York Daily Tribune, February 13, 1865 · meeting of January 12, 1865

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.4 (Was It a Total War?); Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	Black leaders define freedom in their own terms to the men directing the war.
TREATMENT	Full public-domain text

Historical Context

Secretary of War Edwin M. Stanton came to Savannah in January 1865 partly to look into reports that Sherman's army had mistreated freedpeople. He and Sherman met with twenty Black ministers and church officers, most of them formerly enslaved.

Their spokesman, Garrison Frazier, a sixty-seven-year-old Baptist minister who had bought his freedom, defined slavery and freedom in his own words and said freedpeople wanted land to work for themselves. Four days later Sherman issued Special Field Orders No. 15.

Editorial note: The text follows the Freedmen and Southern Society Project transcription of the *Tribune* printing; ellipses are the editors'. The plan's second listing of these minutes is printed here as one entry.

Document Text

[New York, N.Y. February 13, 1865]

. . . .

MINUTES OF AN INTERVIEW BETWEEN THE COLORED MINISTERS AND CHURCH OFFICERS AT SAVANNAH WITH THE SECRETARY OF WAR AND MAJOR-GEN. SHERMAN.

HEADQUARTERS OF MAJ.-GEN. SHERMAN,
CITY OF SAVANNAH, GA., Jan., 12, 1865–8 P.M.

On the evening of Thursday, the 12th day of January, 1865, the following persons of African descent met by appointment to hold an interview with Edwin M. Stanton, Secretary of War, and Major-Gen. Sherman, to have a conference upon matters relating to the freedmen of the State of Georgia, to-wit:

[. . .]

Garrison Frazier being chosen by the persons present to express their common sentiments upon the matters of inquiry, makes answers to inquiries as follows:

First: State what your understanding is in regard to the acts of Congress and President Lincoln's [Emancipation] proclamation, touching the condition of the colored people in the Rebel States.

Answer–So far as I understand President Lincoln's proclamation to the Rebellious States, it is, that if they would lay down their arms and submit to the laws of the United States before the first of January, 1863, all should be well; but if they did not, then all the slaves in the Rebel States should be free henceforth and forever. That is what I understood.

Second–State what you understand by Slavery and the freedom that was to be given by the President's proclamation.

Answer–Slavery is, receiving by irresistible power the work of another man, and not by his consent. The freedom, as I understand it, promised by the proclamation, is taking us from under the yoke of bondage, and placing us where we could reap the fruit of our own labor, take care of ourselves and assist the Government in maintaining our freedom.

Third: State in what manner you think you can take care of yourselves, and how can you best assist the Government in maintaining your freedom.

Answer: The way we can best take care of ourselves is to have land, and turn it and till it by our own labor–that is, by the labor of the women and children and old men; and we can soon maintain ourselves and have something to spare. And to assist the Government, the young men should enlist in the service of the Government, and serve in such manner as they may be wanted. (The Rebels told us that they piled them up and made batteries of them, and sold them to Cuba; but we don't believe that.) We want to be placed on land until we are able to buy it and make it our own.

Fourth: State in what manner you would rather live–whether scattered among the whites or in colonies by yourselves.

Answer: I would prefer to live by ourselves, for there is a prejudice against us in the South that will take years to get over; but I do not know that I can answer for my brethren. [Mr. Lynch says he thinks they should not be separated, but live together. All the other persons present, being questioned one by one, answer that they agree with Brother Frazier.]1

Fifth: Do you think that there is intelligence enough among the slaves of the South to maintain themselves under the Government of the United States and the equal protection of its laws, and maintain good and peaceable relations among yourselves and with your neighbors?

Answer–I think there is sufficient intelligence among us to do so.

Sixth–State what is the feeling of the black population of the South toward the Government of the United States; what is the understanding in respect to the present war–its causes and object, and their disposition to aid either side. State fully your views.

Answer–I think you will find there are thousands that are willing to make any sacrifice to assist the Government of the United States, while there are also many that are not willing to take up arms. I do not suppose there are a dozen men that are opposed to the Government. I understand, as to the war, that the South is the aggressor. President Lincoln was elected President by a majority of the United States, which guaranteed him the right of holding the office and exercising that right over the whole United States. The South, without knowing what he would do, rebelled. The war was commenced by the Rebels before he came into office. The object of the war was not at first to give the slaves their freedom, but the sole object of the war was at first to bring the rebellious States back into the Union and their loyalty to the laws of the United States. Afterward, knowing the value set on the slaves by the Rebels, the President thought that his proclamation would stimulate them to lay down their arms, reduce them to obedience, and help to bring back the Rebel States; and their not doing so has now made the freedom of the slaves a part of the war. It is my opinion that there is not a man in this city that could be started to help the Rebels one inch, for that would be suicide. There were two black men left with the Rebels because they

had taken an active part for the Rebels, and thought something might befall them if they stayed behind; but there is not another man. If the prayers that have gone up for the Union army could be read out, you would not get through them these two weeks.

Seventh: State whether the sentiments you now express are those only of the colored people in the city; or do they extend to the colored population through the country? and what are your means of knowing the sentiments of those living in the country?

Answer: I think the sentiments are the same among the colored people of the State. My opinion is formed by personal communication in the course of my ministry, and also from the thousands that followed the Union army, leaving their homes and undergoing suffering. I did not think there would be so many; the number surpassed my expectation.

Eighth: If the Rebel leaders were to arm the slaves, what would be its effect?

Answer: I think they would fight as long as they were before the bayonet, and just as soon as soon as they could get away, they would desert, in my opinion.

Ninth: What, in your opinion, is the feeling of the colored people about enlisting and serving as soldiers of the United States? and what kind of military service do they prefer?

Answer: A large number have gone as soldiers to Port Royal [S.C.] to be drilled and put in the service; and I think there are thousands of the young men that would enlist. There is something about them that perhaps is wrong. They have suffered so long from the Rebels that they want to shoulder the musket. Others want to go into the Quartermaster's or Commissary's service.

Tenth: Do you understand the mode of enlistments of colored persons in the Rebel States by State agents under the Act of Congress?2 If yea, state what your understanding is.

Answer: My understanding is, that colored persons enlisted by State agents are enlisted as substitutes, and give credit to the States, and do not swell the army, because every black man enlisted by a State agent leaves a white man at home; and, also, that larger bounties are given or promised by State agents than are given by the States. The great object should be to push through this Rebellion the shortest way, and there seems to be something wanting in the enlistment by State agents, for it don't strengthen the army, but takes one away for every colored man enlisted.

Eleventh: State what, in your opinion, is the best way to enlist colored men for soldiers.

Answer: I think, sir, that all compulsory operations should be put a stop to. The ministers would talk to them, and the young men would enlist. It is my opinion that it would be far better for the State agents to stay at home, and the enlistments to be made for the United States under the direction of Gen. Sherman.

In the absence of Gen. Sherman, the following question was asked:

Twelfth: State what is the feeling of the colored people in regard to Gen. Sherman; and how far do they regard his sentiments and actions as friendly to their rights and interests, or otherwise?

Answer: We looked upon Gen. Sherman prior to his arrival as a man in the Providence of God specially set apart to accomplish this work, and we unanimously feel inexpressible gratitude to him, looking upon him as a man that should be honored for the faithful performance of his duty. Some of us called upon him immediately upon his arrival, and it is probable he would not meet the Secretary with more courtesy than he met us. His conduct and deportment toward us characterized him as a friend and a gentleman. We have confidence in Gen. Sherman, and think that what concerns us could not be under better hands. This is our opinion now from the short acquaintance and interest we have had. (Mr. Lynch states that with his limited acquaintance with Gen. Sherman, he is unwilling to express an opinion. All others present declare their agreement with Mr. Frazier about Gen. Sherman.)

Some conversation upon general subjects relating to Gen. Sherman's march then ensued, of which no note was taken.

. . . .

Chicago Citations

Bibliography entry:

"Negroes of Savannah." *New-York Daily Tribune*, February 13, 1865. Clipping in Consolidated Correspondence File, ser. 225, Central Records, Quartermaster General, Record Group 92, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

"Negroes of Savannah," *New-York Daily Tribune*, February 13, 1865, via Freedmen and Southern Society Project, https://freedmen.umd.edu/savmtg.htm.

Shortened citation:

"Negroes of Savannah," *New-York Daily Tribune*.

PRIMARY SOURCE P14.85

Special Field Orders No. 15

William T. Sherman · Savannah, Georgia, January 16, 1865

TOC FIT	Chapter 14 · Essay prompts 14.2 (Who Freed the Enslaved?) and 14.4 (Was It a Total War?); Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	An army order sets aside coastal land for freed families, the origin of the hope for "forty acres."
TREATMENT	Full public-domain text

Historical Context

Thousands of freedpeople followed Sherman's army to Savannah. On January 12, 1865, Sherman and Secretary of War Stanton met with twenty Black ministers and community leaders, who said freedpeople wanted land of their own.

Four days later Sherman issued this order, setting aside the Sea Islands and abandoned rice lands along the coast from Charleston to the St. Johns River for Black settlement in plots of up to forty acres. President Johnson later restored most of the land to its former owners.

Editorial note: The text follows the Freedmen and Southern Society Project transcription. The plan's other listings of this order are printed here as one entry.

Document Text

IN THE FIELD, SAVANNAH, GA., January 16th, 1865.

SPECIAL FIELD ORDERS, No. 15.

I. The islands from Charleston, south, the abandoned rice fields along the rivers for thirty miles back from the sea, and the country bordering the St. Johns river, Florida, are reserved and set apart for the settlement of the negroes now made free by the acts of war and the proclamation of the President of the United States.

II. At Beaufort, Hilton Head, Savannah, Fernandina, St. Augustine and Jacksonville, the blacks may remain in their chosen or accustomed vocations–but on the islands, and in the settlements hereafter to be established, no white person whatever, unless military officers and soldiers detailed for duty, will be permitted to reside; and the sole and exclusive management of affairs will be left to the freed people themselves, subject only to the United States military authority and the acts of Congress. By the laws of war, and orders of the President of the United States, the negro is free and must be dealt with as such. He cannot be subjected to conscription or forced military service, save by the written orders of the highest military authority of the Department, under such regulations as the President or Congress may prescribe. Domestic servants, blacksmiths, carpenters and other mechanics, will be free to select their own work and residence, but the young and able-bodied negroes must be encouraged to enlist as soldiers in the service of the United States, to contribute their share towards maintaining their own freedom, and securing their rights as citizens of the United States.

Negroes so enlisted will be organized into companies, battalions and regiments, under the orders of the United States military authorities, and will be paid, fed and clothed according to law. The bounties paid on enlistment may, with the consent of the recruit, go to assist his family and settlement in procuring agricultural implements, seed, tools, boots, clothing, and other articles necessary for their livelihood.

III. Whenever three respectable negroes, heads of families, shall desire to settle on land, and shall have selected for that purpose an island or a locality clearly defined, within the limits above designated, the Inspector of Settlements

and Plantations will himself, or by such subordinate officer as he may appoint, give them a license to settle such island or district, and afford them such assistance as he can to enable them to establish a peaceable agricultural settlement. The three parties named will subdivide the land, under the supervision of the Inspector, among themselves and such others as may choose to settle near them, so that each family shall have a plot of not more than (40) forty acres of tillable ground, and when it borders on some water channel, with not more than 800 feet water front, in the possession of which land the military authorities will afford them protection, until such time as they can protect themselves, or until Congress shall regulate their title. The Quartermaster may, on the requisition of the Inspector of Settlements and Plantations, place at the disposal of the Inspector, one or more of the captured steamers, to ply between the settlements and one or more of the commercial points heretofore named in orders, to afford the settlers the opportunity to supply their necessary wants, and to sell the products of their land and labor.

IV. Whenever a negro has enlisted in the military service of the United States, he may locate his family in any one of the settlements at pleasure, and acquire a homestead, and all other rights and privileges of a settler, as though present in person. In like manner, negroes may settle their families and engage on board the gunboats, or in fishing, or in the navigation of the inland waters, without losing any claim to land or other advantages derived from this system. But no one, unless an actual settler as above defined, or unless absent on Government service, will be entitled to claim any right to land or property in any settlement by virtue of these orders.

V. In order to carry out this system of settlement, a general officer will be detailed as Inspector of Settlements and Plantations, whose duty it shall be to visit the settlements, to regulate their police and general management, and who will furnish personally to each head of a family, subject to the approval of the President of the United States, a possessory title in writing, giving as near as possible the description of boundaries; and who shall adjust all claims or conflicts that may arise under the same, subject to the like approval, treating such titles altogether as possessory. The same general officer will also be charged with the enlistment and organization of the negro recruits, and protecting their interests while absent from their settlements; and will be governed by the rules and regulations prescribed by the War Department for such purposes.

VI. Brigadier General R. SAXTON is hereby appointed Inspector of Settlements and Plantations, and will at once enter on the performance of his duties. No change is intended or desired in the settlement now on Beaufort [Port Royal] Island, nor will any rights to property heretofore acquired be affected thereby.

BY ORDER OF MAJOR GENERAL W. T. SHERMAN:

Chicago Citations

Bibliography entry:

Sherman, William T. Special Field Orders No. 15. Headquarters, Military Division of the Mississippi, January 16, 1865. Orders and Circulars, ser. 44, Adjutant General's Office, Record Group 94, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

William T. Sherman, Special Field Orders No. 15, January 16, 1865, RG 94, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/sfo15.htm.

Shortened citation:

Sherman, Special Field Orders No. 15.

PRIMARY SOURCE P14.86

Thirteenth Amendment to the U.S. Constitution

U.S. Congress · passed January 31, 1865; ratified December 6, 1865

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?); Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	The amendment made abolition permanent and national; its exception for crime later opened the way to coerced labor.
TREATMENT	Full public-domain text

Historical Context

The Senate passed the Thirteenth Amendment in April 1864, but it fell short in the House in June. After Lincoln's re-election, the administration pressed lame-duck Democrats, and the House passed it on January 31, 1865, by 119 to 56.

Ratified in December 1865, it abolished slavery everywhere in the United States, "except as a punishment for crime," and gave Congress power to enforce it.

Editorial note: The text follows the National Archives Milestone Documents transcription. The Norton collection's text of this amendment is printed here as one entry.

Document Text

AMENDMENT XIII

Section 1.
Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.

Section 2.
Congress shall have power to enforce this article by appropriate legislation.

Passed by Congress January 31, 1865. Ratified December 6, 1865.

Chicago Citations

Bibliography entry:

U.S. Constitution, Amendment XIII. Passed by Congress January 31, 1865; ratified December 6, 1865. National Archives, Milestone Documents.

Footnote citation:

U.S. Const. amend. XIII, National Archives, Milestone Documents, https://www.archives.gov/milestone-documents/13th-amendment.

Shortened citation:

U.S. Const. amend. XIII.

PRIMARY SOURCE P14.87

Letter from Mary A. Windsor to Zebulon B. Vance, February 1, 1865

Mary A. Windsor · Reidsville, North Carolina, February 1, 1865

TOC FIT	Chapter 14 · Essay prompts 14.3 (Who Fought, and Why?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A soldier's wife puts household survival ahead of the army's needs.
TREATMENT	Full public-domain text

Historical Context

By 1865 the Confederacy was drafting older men into reserve units. Families that had held on through years of war now lost their last working adult.

Mary A. Windsor asked Governor Vance to release her husband, gone three months, because she could not manage the farm and children alone.

Editorial note: The text follows the Civil War Era NC transcription.

Document Text

Reidsville NC Feb. the 1st 1865
Gov Vance Honored Sir,
Permit me the pleasure of communicating to you a few of my thoughts by way of letter and of asking a great favor of you that is concerning my dear and beloved husband who has been gone from home three months in over 49 years of age has a very large family is in number all females but three my oldest son is going on 23 years has fits monthly never even going to mill by himself some are always has to go with him everywhere he goes out next son is about twelve years of course they are neither of the much account towards supporting a large family. My husband has lived mostly by farming ever since he has been large enough to do any work has tolerable farm has very nearly always make enough corn to do him but failed last year owing to the great drought last summer and i have no one now to superintend and as you have in your power to detail him (it would be the greatest accommodation to me in the world besides more than accommodation to him). May God now teach you to look on helpful infancy and delicate females with tender mercy and I fear our country is fast being subjugation and what the consequences are will be unknown to me you know very well Honored Sir that all seek seen men he is would be great deal more service to his country at home on his farm than he would be on the field now you have heard some of my sad condition but I cannot command language to describe all things as bad they are now have laid my condition before you do that best you can for me and you will always have my best wishes for you present and future welfare. with the greatest respect
Mary A Windsor
My husband is at Pohotalig l CA Private Windsor 7th Reg Senior Reserve under Capt-Williams Col Shober Commanding. Write immediately after the reception of this and oblige one wife is in deep distress
My Address is
Reidsville N Carolina

Chicago Citations

Bibliography entry:

Windsor, Mary A. Letter to Zebulon B. Vance, February 1, 1865. Zebulon Baird Vance Papers, vol. 15.6, 771, State Archives of North Carolina. Civil War Era NC, North Carolina State University.

Footnote citation:

Mary A. Windsor to Zebulon B. Vance, February 1, 1865, Vance Papers, State Archives of North Carolina, via Civil War Era NC, https://cwnc.omeka.chass.ncsu.edu/exhibits/show/protect/item/661.

Shortened citation:

Windsor to Vance, February 1, 1865.

PRIMARY SOURCE P14.88

Second Inaugural Address

Abraham Lincoln · March 4, 1865

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Lincoln names slavery as the cause of the war and frames emancipation as a national reckoning.
TREATMENT	Full public-domain text

Historical Context

By March 1865 the Confederacy was near collapse. Sherman's army was in the Carolinas, and Grant had nearly encircled Petersburg. Congress had passed the Thirteenth Amendment in January.

Lincoln's second inaugural address, one of the shortest, named slavery as "somehow the cause of the war" and suggested that the war was God's judgment on both North and South for it. He closed by asking for "malice toward none" and "charity for all."

Editorial note: The Norton collection prints this address from a 1908 London edition. The text here follows the Avalon Project transcription.

Document Text

SATURDAY, MARCH 4, 1865

Fellow-Countrymen:

At this second appearing to take the oath of the Presidential office there is less occasion for an extended address than there was at the first. Then a statement somewhat in detail of a course to be pursued seemed fitting and proper. Now, at the expiration of four years, during which public declarations have been constantly called forth on every point and phase of the great contest which still absorbs the attention and engrosses the energies of the nation, little that is new could be presented. The progress of our arms, upon which all else chiefly depends, is as well known to the public as to myself, and it is, I trust, reasonably satisfactory and encouraging to all. With high hope for the future, no prediction in regard to it is ventured.

On the occasion corresponding to this four years ago all thoughts were anxiously directed to an impending civil war. All dreaded it, all sought to avert it. While the inaugural address was being delivered from this place, devoted altogether to saving the Union without war, insurgent agents were in the city seeking to destroy it without war--seeking to dissolve the Union and divide effects by negotiation. Both parties deprecated war, but one of them would make war rather than let the nation survive, and the other would accept war rather than let it perish, and the war came.

One-eighth of the whole population were colored slaves, not distributed generally over the Union, but localized in the southern part of it. These slaves constituted a peculiar and powerful interest. All knew that this interest was somehow the cause of the war. To strengthen, perpetuate, and extend this interest was the object for which the insurgents would rend the Union even by war, while the Government claimed no right to do more than to restrict the territorial enlargement of it. Neither party expected for the war the magnitude or the duration which it has already attained. Neither anticipated that the cause of the conflict might cease with or even before the conflict itself should cease. Each looked for an easier triumph, and a result less fundamental and astounding. Both read the same Bible and pray to the same God, and each invokes His aid against the other. It may seem strange that any men should dare to ask a just God's assistance in wringing their bread from the sweat of other men's faces, but let us judge not, that we be not judged. The prayers of both could not be answered. That of neither has been answered

fully. The Almighty has His own purposes. "Woe unto the world because of offenses; for it must needs be that offenses come, but woe to that man by whom the offense cometh." If we shall suppose that American slavery is one of those offenses which, in the providence of God, must needs come, but which, having continued through His appointed time, He now wills to remove, and that He gives to both North and South this terrible war as the woe due to those by whom the offense came, shall we discern therein any departure from those divine attributes which the believers in a living God always ascribe to Him? Fondly do we hope, fervently do we pray, that this mighty scourge of war may speedily pass away. Yet, if God wills that it continue until all the wealth piled by the bondsman's two hundred and fifty years of unrequited toil shall be sunk, and until every drop of blood drawn with the lash shall be paid by another drawn with the sword, as was said three thousand years ago, so still it must be said "the judgments of the Lord are true and righteous altogether."

With malice toward none, with charity for all, with firmness in the right as God gives us to see the right, let us strive on to finish the work we are in, to bind up the nation's wounds, to care for him who shall have borne the battle and for his widow and his orphan, to do all which may achieve and cherish a just and lasting peace among ourselves and with all nations.

Chicago Citations

Bibliography entry:

Lincoln, Abraham. "Second Inaugural Address." March 4, 1865. Avalon Project, Yale Law School.

Footnote citation:

Abraham Lincoln, "Second Inaugural Address," March 4, 1865, Avalon Project, https://avalon.law.yale.edu/19th_century/lincoln2.asp.

Shortened citation:

Lincoln, "Second Inaugural Address."

PRIMARY SOURCE P14.89

General Order No. 9 (Farewell Address to the Army of Northern Virginia)

Robert E. Lee · April 10, 1865

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.3 (Who Fought, and Why?)
WHY HERE	Lee attributes defeat to Union numbers and resources, an explanation that is also self-serving and worth testing as a Counter-Argument.
TREATMENT	Full public-domain text

Historical Context

Lee surrendered the Army of Northern Virginia to Grant at Appomattox Court House on April 9, 1865. The next day his aide Charles Marshall drafted, and Lee signed, this farewell to his troops.

The order says the army had been "compelled to yield to overwhelming numbers and resources" and praises the soldiers' courage and devotion. It became a founding text of the "Lost Cause" interpretation of the war.

Editorial note: The text follows the American Battlefield Trust transcription.

Document Text

Headquarters, Army of Northern Virginia, 10th April 1865.

General Order
No. 9

After four years of arduous service marked by unsurpassed courage and fortitude, the Army of Northern Virginia has been compelled to yield to overwhelming numbers and resources.

I need not tell the survivors of so many hard fought battles, who have remained steadfast to the last, that I have consented to the result from no distrust of them.

But feeling that valour and devotion could accomplish nothing that could compensate for the loss that must have attended the continuance of the contest, I have determined to avoid the useless sacrifice of those whose past services have endeared them to their countrymen.

By the terms of the agreement, officers and men can return to their homes and remain until exchanged. You will take with you the satisfaction that proceeds from the consciousness of duty faithfully performed, and I earnestly pray that a merciful God will extend to you his blessing and protection.

With an unceasing admiration of your constancy and devotion to your Country, and a grateful remembrance of your kind and generous consideration for myself, I bid you an affectionate farewell.

— R. E. Lee, General, General Order No. 9

Chicago Citations

Bibliography entry:

Lee, Robert E. General Order No. 9. Headquarters, Army of Northern Virginia, April 10, 1865. American Battlefield Trust.

Footnote citation:

Robert E. Lee, General Order No. 9, April 10, 1865, American Battlefield Trust, https://www.battlefields.org/learn/primary-sources/gen-robert-e-lee-farewell-address.

Shortened citation:

Lee, General Order No. 9.

PRIMARY SOURCE P14.90

Ruins of Richmond, Columbia, and Atlanta

Union army and commercial photographers, including George N. Barnard · 1864–1865

TOC FIT	Chapter 14 · Essay prompt 14.4 (Was It a Total War?)
WHY HERE	Photographs show the destruction the war brought to southern cities in its final year.
TREATMENT	Public-domain images

Historical Context

The war's last year brought destruction to southern cities. Sherman's troops burned Atlanta's railroad facilities and military buildings in November 1864. Columbia, South Carolina's capital, burned on the night Sherman's army entered it in February 1865; who set the fires has been disputed ever since.

Retreating Confederates set fire to warehouses and bridges in Richmond on April 2–3, 1865, and the flames destroyed much of the business district. These photographs record the ruins in all three cities.

Editorial note: Images reproduced from the National Archives and Library of Congress (via Wikimedia Commons). The Norton collection presents these three photographs together.

Primary Source Image

Ruins of Richmond, Virginia, April 1865. National Archives.

George N. Barnard, Ruins in Columbia, South Carolina, 1865. National Archives.

George N. Barnard, ruins of the Georgia Railroad roundhouse, Atlanta ("City of Atlanta, Ga. No. 1"). Via Wikimedia Commons.

Chicago Citations

Bibliography entry:

Ruins of Richmond, Va. April, 1865. Photograph. National Archives, 529080.

Barnard, George N. *Ruins in Columbia, South Carolina*. Photograph, 1865. National Archives, 533428.

Barnard, George N. *City of Atlanta, Ga. No. 1* (ruins of the Georgia Railroad roundhouse). Photograph, 1864. Via Wikimedia Commons.

Footnote citation:

Ruins of Richmond, Va. April, 1865, photograph, National Archives, 529080; George N. Barnard, *Ruins in Columbia, South Carolina*, photograph, 1865, National Archives, 533428; George N. Barnard, *City of Atlanta, Ga. No. 1*, photograph, 1864.

Shortened citation:

Ruins of Richmond, Columbia, and Atlanta, photographs.

PRIMARY SOURCE P14.91

A Diary from Dixie: Entries from June 12, 1865 (excerpt)

Mary Boykin Chesnut · June 1865 (published 1905)

TOC FIT	Chapter 14 · Essay prompts 14.1 (Why Did the Union Win?) and 14.5 (Did the War Transform Women's Lives?)
WHY HERE	A planter-class woman records the war's end and the collapse of her world.
TREATMENT	Public-domain text, selected entries

Historical Context

Mary Boykin Chesnut (1823–1886), wife of a South Carolina senator who became a Confederate general and aide to Jefferson Davis, kept a diary throughout the war. Her husband's family owned large plantations and many enslaved people.

In June 1865 she wrote at Camden, South Carolina, about defeat, President Andrew Johnson's warnings against the wealthy planter class, freedpeople, and the ruin of families she knew.

Editorial note: Chesnut revised her diary heavily in the 1880s, so it is partly a later memoir. The text follows the 1905 edition (Project Gutenberg). The plan's separate listing of this diary is printed here as one entry.

Document Text

June 12th.—Andy, made lord of all by the madman, Booth, says, “Destruction only to the wealthy classes.” Better teach the negroes to stand alone before you break up all they leaned on, O Yankees! After all, the number who possess over $20,000 are very few.

Andy has shattered some fond hopes. He denounces Northern men who came South to espouse our cause. They may not take the life-giving oath. My husband will remain quietly at home. He has done nothing that he had not a right to do, nor anything that he is ashamed of. He will not fly from his country, nor hide anywhere in it. These are his words. He has a huge volume of Macaulay, which seems to absorb him. Slily I slipped Silvio Pellico in his way. He looked at the title and moved it aside. “Oh,” said I, “I only wanted you to refresh your memory as to a prisoner’s life and what a despotism can do to make its captives happy!”

Two weddings—in Camden, Ellen Douglas Ancrum to Mr. Lee, engineer and architect, a clever man, which is the best investment now. In Columbia, Sally Hampton and John Cheves Haskell, the bridegroom, a brave, one-armed soldier.

A wedding to be. Lou McCord’s. And Mrs. McCord is going about frantically, looking for eggs “to mix and make into wedding-cake,” and finding none. She now drives the funniest little one-mule vehicle.

I have been ill since I last wrote in this journal. Serena’s letter came. She says they have been visited by bush-whackers, the roughs that always follow in the wake of an army. My sister Kate they forced back against the wall. She had Katie, the baby, in her arms, and Miller, the brave boy, clung to his mother, though he could do no more. They tried to pour brandy down her throat. They knocked Mary down with the butt end of a pistol, and Serena they struck with an open hand, leaving the mark on her cheek for weeks.

Mr. Christopher Hampton says in New York people have been simply intoxicated with the fumes of their own glory. Military prowess is a new wrinkle of delight to them. They are mad with pride that, ten to one, they could, after five years’ hard fighting, prevail over us, handicapped, as we were, with a majority of aliens, quasi foes, and negro slaves whom they tried to seduce, shut up with us. They pay us the kind of respectful fear the British meted

out to Napoleon when they sent him off with Sir Hudson Lowe to St. Helena, the lone rock by the sea, to eat his heart out where he could not alarm them more.

Of course, the Yankees know and say they were too many for us, and yet they would all the same prefer not to try us again. Would Wellington be willing to take the chances of Waterloo once more with Grouchy, Blücher, and all that left to haphazard? Wigfall said to old Cameron in 1861, "Then you will a sutler be, and profit shall accrue." Christopher Hampton says that in some inscrutable way in the world North, everybody "has contrived to amass fabulous wealth by this war."

There are two classes of vociferous sufferers in this community: 1. Those who say, "If people would only pay me what they owe me!" 2. Those who say, "If people would only let me alone. I can not pay them. I could stand it if I had anything with which to pay debts."

Now we belong to both classes. Heavens! the sums people owe us and will not, or can not, pay, would settle all our debts ten times over and leave us in easy circumstances for life. But they will not pay. How can they?

We are shut in here, turned with our faces to a dead wall. No mails. A letter is sometimes brought by a man on horseback, traveling through the wilderness made by Sherman. All railroads have been destroyed and the bridges are gone. We are cut off from the world, here to eat out our hearts. Yet from my window I look out on many a gallant youth and maiden fair. The street is crowded and it is a gay sight. Camden is thronged with refugees from the low country, and here they disport themselves. They call the walk in front of Bloomsbury "the Boulevard."

Chicago Citations

Bibliography entry:

Chesnut, Mary Boykin. *A Diary from Dixie*. Edited by Isabella D. Martin and Myrta Lockett Avary. New York: D. Appleton, 1905. Project Gutenberg eBook #60908.

Footnote citation:

Mary Boykin Chesnut, *A Diary from Dixie*, ed. Isabella D. Martin and Myrta Lockett Avary (New York: D. Appleton, 1905), 398–401, Project Gutenberg eBook #60908.

Shortened citation:

Chesnut, *Diary from Dixie*, [page].

PRIMARY SOURCE P14.92

Oration in Memory of Abraham Lincoln (excerpt)

Frederick Douglass · Washington, D.C., April 14, 1876

TOC FIT	Chapter 14 · Essay prompt 14.2 (Who Freed the Enslaved?)
WHY HERE	Douglass weighs Lincoln's caution against his achievement in ending slavery.
TREATMENT	Public-domain text, selected excerpts

Historical Context

On the eleventh anniversary of Lincoln's assassination, the Freedmen's Memorial Monument was unveiled in Lincoln Park in Washington. Formerly enslaved people had paid for it. President Grant and members of Congress attended.

Frederick Douglass, the main speaker, offered a mixed judgment. He called Lincoln "preeminently the white man's President" and Black Americans "at best only his step-children," yet praised him as the leader who had freed them.

Editorial note: Douglass spoke eleven years after Lincoln's death, during Reconstruction. The text follows the Wikisource transcription of the 1876 pamphlet.

Document Text

[. . .]

Fellow-citizens, in what we have said and done today, and in what we may say and do hereafter, we disclaim everything like arrogance and assumption. We claim for ourselves no superior devotion to the character, history, and memory of the illustrious name whose monument we have here dedicated today. We fully comprehend the relation of Abraham Lincoln both to ourselves and to the white people of the United States. Truth is proper and beautiful at all times and in all places, and it is never more proper and beautiful in any case than when speaking of a great public man whose example is likely to be commended for honor and imitation long after his departure to the solemn shades, the silent continents of eternity. It must be admitted, truth compels me to admit, even here in the presence of the monument we have erected to his memory, Abraham Lincoln was not, in the fullest sense of the word, either our man or our model. In his interests, in his associations, in his habits of thought, and in his prejudices, he was a white man.

He was preeminently the white man’s President, entirely devoted to the welfare of white men. He was ready and willing at any time during the first years of his administration to deny, postpone, and sacrifice the rights of humanity in the colored people to promote the welfare of the white people of this country. In all his education and feeling he was an American of the Americans. He came into the Presidential chair upon one principle alone, namely, opposition to the extension of slavery. His arguments in furtherance of this policy had their motive and mainspring in his patriotic devotion to the interests of his own race. To protect, defend, and perpetuate slavery in the states where it existed Abraham Lincoln was not less ready than any other President to draw the sword of the nation. He was ready to execute all the supposed guarantees of the United States Constitution in favor of the slave system anywhere inside the slave states. He was willing to pursue, recapture, and send back the fugitive slave to his master, and to suppress a slave rising for liberty, though his guilty master were already in arms against the Government. The race to which we belong were not the special objects of his consideration. Knowing this, I concede to you, my white fellow-citizens, a pre-eminence in this worship at once full and supreme. First, midst, and last, you and yours were the objects of his deepest affection and his most earnest solicitude. You are the

children of Abraham Lincoln. We are at best only his step-children; children by adoption, children by forces of circumstances and necessity. To you it especially belongs to sound his praises, to preserve and perpetuate his memory, to multiply his statues, to hang his pictures high upon your walls, and commend his example, for to you he was a great and glorious friend and benefactor. Instead of supplanting you at his altar, we would exhort you to build high his monuments; let them be of the most costly material, of the most cunning workmanship; let their forms be symmetrical, beautiful, and perfect, let their bases be upon solid rocks, and their summits lean against the unchanging blue, overhanging sky, and let them endure forever! But while in the abundance of your wealth, and in the fullness of your just and patriotic devotion, you do all this, we entreat you to despise not the humble offering we this day unveil to view; for while Abraham Lincoln saved for you a country, he delivered us from a bondage, according to Jefferson, one hour of which was worse than ages of the oppression your fathers rose in rebellion to oppose.

Fellow-citizens, ours is no new-born zeal and devotion—merely a thing of this moment. The name of Abraham Lincoln was near and dear to our hearts in the darkest and most perilous hours of the Republic. We were no more ashamed of him when shrouded in clouds of darkness, of doubt, and defeat than when we saw him crowned with victory, honor, and glory. Our faith in him was often taxed and strained to the uttermost, but it never failed. When he tarried long in the mountain; when he strangely told us that we were the cause of the war; when he still more strangely told us that we were to leave the land in which we were born; when he refused to employ our arms in defense of the Union; when, after accepting our services as colored soldiers, he refused to retaliate our murder and torture as colored prisoners; when he told us he would save the Union if he could with slavery; when he revoked the Proclamation of Emancipation of General Fremont; when he refused to remove the popular commander of the Army of the Potomac, in the days of its inaction and defeat, who was more zealous in his efforts to protect slavery than to suppress rebellion; when we saw all this, and more, we were at times grieved, stunned, and greatly bewildered; but our hearts believed while they ached and bled. Nor was this, even at that time, a blind and unreasoning superstition. Despite the mist and haze that surrounded him; despite the tumult, the hurry, and confusion of the hour, we were able to take a comprehensive view of Abraham Lincoln, and to make reasonable allowance for the circumstances of his position. We saw him, measured him, and estimated him; not by stray utterances to injudicious and tedious delegations, who often tried his patience; not by isolated facts torn from their connection; not by any partial and imperfect glimpses, caught at inopportune moments; but by a broad survey, in the light of the stern logic of great events, and in view of that divinity which shapes our ends, rough hew them how we will, we came to the conclusion that the hour and the man of our redemption had somehow met in the person of Abraham Lincoln. It mattered little to us what language he might employ on special occasions; it mattered little to us, when we fully knew him, whether he was swift or slow in his movements; it was enough for us that Abraham Lincoln was at the head of a great movement, and was in living and earnest sympathy with that movement, which, in the nature of things, must go on until slavery should be utterly and forever abolished in the United States.

[. . .]

I have said that President Lincoln was a white man, and shared the prejudices common to his countrymen towards the colored race. Looking back to his times and to the condition of his country, we are compelled to admit that this unfriendly feeling on his part may be safely set down as one element of his wonderful success in organizing the loyal American people for the tremendous conflict before them, and bringing them safely through that conflict. His great mission was to accomplish two things: first, to save his country from dismemberment and ruin; and, second, to free his country from the great crime of slavery. To do one or the other, or both, he must have the earnest sympathy and the powerful cooperation of his loyal fellow-countrymen. Without this primary and essential condition to success his efforts must have been vain and utterly fruitless. Had he put the abolition of slavery before the salvation of the Union, he would have inevitably driven from him a powerful class of the American people and rendered resistance to rebellion impossible. Viewed from the genuine abolition ground, Mr. Lincoln seemed tardy, cold, dull, and indifferent; but measuring him by the sentiment of his country, a sentiment he was bound as a

statesman to consult, he was swift, zealous, radical, and determined.

[. . .]

Chicago Citations

Bibliography entry:

Douglass, Frederick. *Oration by Frederick Douglass, Delivered on the Occasion of the Unveiling of the Freedmen's Monument in Memory of Abraham Lincoln, in Lincoln Park, Washington, D.C., April 14th, 1876*. Washington, DC: Gibson Brothers, 1876. Wikisource.

Footnote citation:

Frederick Douglass, *Oration in Memory of Abraham Lincoln* (Washington, DC: Gibson Brothers, 1876), [page], via Wikisource.

Shortened citation:

Douglass, *Oration in Memory of Abraham Lincoln*, [page].

PRIMARY SOURCE P15.1

Resolutions Adopted by a Meeting of Virginia Employers

Landowners of Elon, Virginia · May 31, 1865

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	Employers collude to cap wages and control freed workers' movement.
TREATMENT	Full public-domain text

Historical Context

Weeks after Appomattox, white landowners in many southern neighborhoods met to agree on how they would deal with freed workers.

Landowners near Elon, in Amherst County, Virginia, resolved to pay no more than five dollars a month, to hire no freedperson without a pass from the former owner, and to act together.

Editorial note: The original names the place "Eton"; the editors identify it as Elon. The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Elon, Va., May 31, 1865]

At a meeting of a number of the Citizens of the Neighbourhood held at Eton [Elon] on the 31st day of May 1865 to take into consideration the best measures to be adopted for the mutual benefit of themselves and the freedmen in their midst, The following resolutions were adopted.

1st Resolved that we unanimously agree and bind ourselves under no circumstances to employ or cause in any way directly or indirectly employment to be given any Negro freed by Federal authority, without a written pass or recommendation from his former master or employer.

2. Resolved, that we will not rent or cause to be rented to any such Negro any land or House, unless such Negro has a written recommendation from his former master or employer for that purpose

3, Resolved, that no freedman be permitted to visit or pass through any plantation except upon a written pass from his employer, and that we will in no case give such permission at night except upon business.

4, Resolved that the Maximum rate of hire for no one freedman without encumbrance, shall be five dollars per month in currency and food during the time hired.

5, Resolved. that any person or persons in this community violating these obligations by harboring, employing or delivering any negro from the protection or assistance of his former Master against his wish or consent, shall for such conduct receive the contempt of all good Citizens.

6, Resolved, that these resolutions be signed by those present, at this meeting and that they be presented to the farmers of the Neighbourhood not present for their approval and signature.

Chicago Citations

Bibliography entry:

Resolutions adopted by "a meeting of a number of the Citizens of the Neighbourhood held at Eton," May 31, 1865. Filed with V-4 1865, Letters Received, ser. 15, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Resolutions of a meeting at Elon, Va., May 31, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Elon%20resolutions.html.

Shortened citation:

Elon resolutions, May 31, 1865.

PRIMARY SOURCE P15.2

Address to the Freed People of Orangeburg District, with Gen. O. O. Howard's Reply

Capt. Charles C. Soule (June 12, 1865); Maj. Gen. Oliver O. Howard (June 21, 1865)

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	A federal officer urges freedpeople to accept terms close to slavery, while the Bureau's head urges respect for their rights.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In the spring of 1865 Union officers in South Carolina tried to restart plantation agriculture by having freedpeople sign labor contracts with planters. Captain Charles C. Soule chaired a commission on contracts in Orangeburg District.

Soule's address told freedpeople that they must work as hard as before, not ask for shares of the crop or free Saturdays, and accept pay in food and clothing. He sent it to General Oliver O. Howard, head of the new Freedmen's Bureau, who replied with concern that freedpeople be assured of their rights as free people.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[. . .]

To the Freed People of Orangeburg District.

You have heard many stories about your condition as freemen. You do not know what to believe: you are talking too much; waiting too much; asking for too much. If you can find out the truth about this matter, you will settle down quietly to your work. Listen, then, and try to understand just how you are situated.

You are now free, but you must know that the only difference you can feel yet, between slavery and freedom, is that neither you nor your children can be bought or sold. You may have a harder time this year than you have ever had before; it will be the price you pay for your freedom. You will have to work hard, and get very little to eat, and very few clothes to wear. If you get through this year alive and well, you should be thankful. Do not expect to save up anything, or to have much corn or provisions ahead at the end of the year. You must not ask for more pay than free people get at the North. There, a field hand is paid in money, but has to spend all his pay every week, in buying food and clothes for his family. and in paying rent for his house. You cannot be paid in money,–for there is no good money in the District,–nothing but Confederate paper. Then, what can you be paid with? Why, with food, with clothes, with the free use of your little houses and lots. You do not own a cent's worth except yourselves. The plantation you live on is not yours, nor the houses, nor the cattle, mules and horses; the seed you planted with was not yours, and the ploughs and hoes do not belong to you. Now you must get something to eat and something to wear, and houses to live in. How can you get these things? By hard work–and nothing else, and it will be a good thing for you if you get them until next year, for yourselves and for your families. You must remember that your children, your old people, and the cripples, belong to you to support now, and all that is given to them is so much pay to you for your work. If you ask for anything more; if you ask for a half of the crop, or even a third, you ask too much; you wish to get more than you could get if you had been free all your lives. Do not ask for Saturday either: free people everywhere else work Saturday, and you have no more right to the day than they have. If your employer

is willing to give you part of the day, or to set a task that you can finish early, be thankful for the kindness, but do not think it is something you must have. When you work, work hard. Begin early–at sunrise, and do not take more than two hours at noon. Do not think, because you are free you can choose your own kind of work. Every man must work under orders. The soldiers, who are free, work under officers, the officers under the general, and the general under the president. There must be a head man everywhere, and on a plantation the head man, who gives all the orders, is the owner of the place. Whatever he tells you to do you must do at once, and cheerfully. Never give him a cross word or an impudent answer. If the work is hard, do not stop to talk about it, but do it first and rest afterwards. If you are told to go into the field and hoe, see who can go first and lead the row. If you are told to build a fence, build it better than any fence you know of. If you are told to drive the carriage Sunday, or to mind the cattle, do it, for necessary work must be done even on the Sabbath. Whatever the order is, try and obey it without a word.

There are different kinds of work. One man is a doctor, another is a minister, another a soldier. One black man may be a field hand, one a blacksmith, one a carpenter, and still another a house-servant. Every man has his own place, his own trade that he was brought up to, and he must stick to it. The house-servants must not want to go into the field, nor the field hands into the house. If a man works, no matter in what business, he is doing well. The only shame is to be idle and lazy.

You do not understand why some of the white people who used to own you, do not have to work in the field. It is because they are rich. If every man were poor, and worked in his own field, there would be no big farms, and very little cotton or corn raised to sell; there would be no money, and nothing to buy. Some people must be rich, to pay the others, and they have the right to do no work except to look out after their property. It is so everywhere, and perhaps by hard work some of you may by-and-by become rich yourselves

Remember that all your working time belongs to the man who hires you: therefore you must not leave work without his leave not even to nurse a child, or to go and visit a wife or husband. When you wish to go off the place, get a pass as you used to, and then you will run no danger of being taken up by our soldiers. If you leave work for a day, or if you are sick, you cannot expect to be paid for what you do not do; and the man who hires you must pay less at the end of the year.

Do not think of leaving the plantation where you belong. If you try to go to Charleston, or any other city, you will find no work to do, and nothing to eat. You will starve, or fall sick and die. Stay where you are, in your own homes, even if you are suffering. There is no better place for you anywhere else.

You will want to know what to do when a husband and wife live on different places. Of course they ought to be together, but this year, they have their crops planted on their own places, and they must stay to work them. At the end of the year they can live together. Until then they must see each other only once in a while.

In every set of men there are some bad men and some fools; who have to be looked after and punished when they go wrong. The Government will punish grown people now, and punish them severely, if they steal, lie idle, or hang around a man's place when he does not want them there, or if they are impudent. You ought to be civil to one another, and to the man you work for. Watch folks who have always been free, and you will see that the best people are the most civil.

The children have to be punished more than those who are grown up, for they are full of mischief. Fathers and mothers should punish their own children, but if they happen to be off, or if a child is caught stealing or behaving badly about the big house, the owner of the plantation must switch him, just as he should his own children.

Do not grumble if you cannot get as much pay on your place as some one else, for on one place they have more children than on others, on one place the land is poor, on another it is rich; on one place, Sherman took everything, on another, perhaps, almost everything was left safe. One man can afford to pay more than another. Do not grumble, either, because, the meat is gone or the salt hard to get. Make the best of everything, and if there is

anything which you think is wrong, or hard to bear, try to reason it out: if you cannot, ask leave to send one man to town to see an officer. Never stop work on any account, for the whole crop must be raised and got in, or we shall starve. The old men, and the men who mean to do right, must agree to keep order on every plantation. When they see a hand getting lazy or shiftless, they must talk to him, and if talk will do no good, they must take him to the owner of the plantation.

[. . .]

Chicago Citations

Bibliography entry:

Soule, Charles C. Letter to O. O. Howard, June 12, 1865, enclosing "To the Freed People of Orangeburg District"; and O. O. Howard to Charles C. Soule, June 21, 1865. S-17 1865, Letters Received, ser. 15, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Charles C. Soule, "To the Freed People of Orangeburg District," June 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Soule.htm.

Shortened citation:

Soule, "To the Freed People of Orangeburg District."

PRIMARY SOURCE P15.3

Ordinance by the Board of Police of Opelousas, Louisiana

Board of Police of the Town of Opelousas · July 3, 1865 (New Orleans Tribune, July 15, 1865)

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	A town ordinance forces freedpeople into service to white employers through passes and housing bans.
TREATMENT	Full public-domain text

Historical Context

In the first months after the war, before state legislatures passed formal Black Codes, many southern towns adopted local ordinances to control freedpeople.

Opelousas, in south-central Louisiana, required freedpeople to carry passes from their employers, barred them from renting or keeping houses in town, and forbade them to hold meetings or carry weapons. The *New Orleans Tribune*, a Black-owned paper, printed the ordinance to expose it, and a Union officer sent the clipping to his superiors.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; letters in brackets restore damaged text in the clipping.

Document Text

[New Orleans, La., July 15, 1865]

Ordinance
[RELATIV]E TO THE POLICE OF RECENTLY [EM]ANCIPATED NEGROES OR FREED[M]EN, WITHIN THE CORPORATE LIMITS OF THE TOWN OF OPELOUSAS.

Whereas the relations formerly subsis[ti]ng between master and slave have b[e]come changed by the action of the controlling authorities; and whereas it i[s] necessary to provide for the proper police and government of the recently emancipated negroes or freedmen, in their new relations to the municipal authorities;

Sect. 1. Be it therefore ordained by [t]he Board of Police of the Town of Ope[l]ousas: That no negro or freedman shall be allowed to come within the limits of the Town of Opelousas, without special permission from his employer, specifying the object of his visit, and the time necessary for the accomplishment of the same. Whoever shall violate this provision, shall suffer imprisonment and two days work on the public streets, or shall pay a fine of two dollars and fifty cents.

Sect. 2. Be it further ordained that every negro or freedman who shall be found on the streets of Opelousas, after 10 o'clock at night, without a written pass or permit from his employer, shall be imprisoned and compelled to work five days on the public streets, or pay a fine of five dollars.

Sect. 3. No negro or freedman shall be permitted to rent or keep a house within the limits of the town under any circumstances, and any one thus offending, shall be ejected and compelled to find an employer, or leave the town within twenty-four hours. The lessor or furnisher of the house leased or kept as above, shall pay a fine of ten dollars for each offense.

Sect. 4. No negro or freedman shall reside within the limits of the Town of Opelousas, who is not in the regular service of some white person or former owner, who shall be held responsible for the conduct of said freedman. But

said employer or former owner may permit said freedman to hire his time, by special permission in writing, which permission shall not extend over twenty-four hours at any one time. Any one violating the provisions of this section, shall be imprisoned and forced to work for two days on the public streets.

Sect. 5. No public meetings or congregations of negroes or freedmen, shall be allowed within the limits of the Town of Opelousas, under any circumstances or for any purpose, without the permission of the Mayor or President of the Board. This prohibition is not intended, however, to prevent freedmen from attending the usual Church services conducted by established ministers of religion. Every freedman violating this law shall be imprisoned and made to work five days on the public streets.

Sect. 6. No negro or freedman shall be permitted to preach, exhort or otherwise declaim, to congregations of colored people, without a special permission from the Mayor or President of the Board of Police, under the penalty of a fine of ten dollars or twenty days work on the public streets.

Sect. 7. No freedman, who is not in the military service, shall be allowed to carry fire-arms or any kind of weapons, within the limits of the Town of Opelousas, without the special permission of his employer in writing, and approved by the Mayor or President of the Board of Police. Any one thus offending shall forfeit his weapons and shall be imprisoned and made to work five days on the public streets, or pay a fine of five dollars in lieu of said work.

Sect. 8. No freedman shall sell, barter or exchange any articles of merchandise or traffic, within the limits of Opelousas, without permission in writing from his employer or the Mayor or President of the Board, under the penalty of the forfeiture of said articles, and imprisonment and one day's labor, or a fine of one dollar in lieu of said work.

Sect. 9. Any freedman found drunk within the limits of the town shall be imprisoned and made to labor five days on the public streets, or pay five dollars in lieu of said labor.

Sect. 10. Any freedman not residing in Opelousas, who shall be found within its corporate limits after the hour of 3 o'clock P.M. on Sunday, without a special written permission from his employer or the Mayor, shall be arrested and imprisoned and made to work two days on the public streets, or pay two dollars in lieu of said work.

Sect. 11. All the foregoing provisions apply to freed men and freed women, or both sexes.

Sect. 12. It shall be the special duty of the Mayor or President of the Board, to see that all the provisions of this ordinance are faithfully executed.

Sect. 13. Be it further ordained, Th[at] this ordinance to take effect from [and] after its first publication.

Ordained the 3d day of July, 186[5.],

E. D. ESTILLETT[E]

President of the Board of Po[lice.]

JOS. D. RICHARD, Clerk.

Chicago Citations

Bibliography entry:

Board of Police of Opelousas, Louisiana. Ordinance Relative to the Police of Recently Emancipated Negroes or Freedmen. *New Orleans Tribune*, July 15, 1865. Clipping attached to S. M. Quincy to J. M. Wilson, [July 27, 1865], Q-4 1865, Letters Received, ser. 1757, Department of Louisiana and Texas, Record Group 393, pt. 1, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Opelousas ordinance, *New Orleans Tribune*, July 15, 1865, RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Opelousas.html.

Shortened citation:

Opelousas ordinance, 1865.

PRIMARY SOURCE P15.4

Contract between a Georgia Planter and Georgia Freedpeople

McQueen McIntosh and about fifty freedpeople · Decatur County, Georgia, July 8, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Gang-labor terms show the restrictive wage system that preceded sharecropping.
TREATMENT	Full public-domain text

Historical Context

In 1865 freedpeople and planters across the South signed contracts, often supervised by the army or the Freedmen's Bureau, to set the terms of free labor.

This contract bound about fifty freedpeople to work on McQueen McIntosh's plantation from daylight to sunset under his direction, with deductions for food, tools, and lost time, and with payment due only at the end of the year.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

State of Georgia Decatur County [July 8, 1865]

This contract and agreement of hiring made entered into and subscribed in duplicate this eigth day of July AD 1865 between McQueen McIntosh of the one part and the following named freedmen and freedwomen to wit, Jack, Jerry, Cudjoe, Toby, Bob, Ben, Dave, Judge, Jim, Charles, Joe, Daniel, Robert, Frank, Dinny, Jack, Sam, Dave, Ned, Prince– Old Silas, Young Silas, Manuel, Jim William, Pleasant, Young Dave, Jake, Caesar, Edgar, Patience, Amy, Maria, Lucinda, Lucy, Violet, Betsey, Malvina, Ann, Eliza, Elisabeth, Phillis, Eliza, Sophy, Sarah, Louisa and Esther parties of the second part Witnesseth– That the said parties of the second part do hereby covenant promise and agree to remain as laborers on the plantation of the said McIntosh from this time henceforward continuously until the first day of January next ensuing and to subscribe to and abide by the following stipulations and conditions and to perform faithfully the same to the best of their ability– That is to say that the said parties of the second part do consent to the classification of themselves in the schedule hereunto attached as a part of this agreement and shall receive their compensation “pro rata” at the end of the year according to said schedule and shall live under, abide by and perform the following rules, regulations and requirements viz

1st Each person shall and will be obedient to orders and respectful civil and polite in his or her language and manner.

2d The work on the plantation shall be superintended by the superintendent or foreman called Jack (freedman) who shall have the necessary authority to keep and maintain good order peace and discipline at all times on the plantation and shall have rendered to him the prompt assistance of those he may call upon to assist him

3d The superintendent shall turn out the hands at daylight in the morning and each one is expected to come out promptly when the signal is given

4th The work shall commence so soon as the hands reach the place of work and shall continue until the usual breakfast hour, when all shall stop one half hour for breakfast– at the end of which time the work shall be resumed and continue until 12 Oclock noon when the hands shall again stop for two hours in summer and one hour in

winter for dinner, and after dinner the work shall be continued until the sun has set.– before which time no one shall leave his or her work except for sickness or he or she has permission to do so; ploughers and waggoners are required to bring the mules to the stable after the days work is over and feed them–

5th The old and young who are unable to work will be clothed, fed, nursed in sickness, and provided with medical attendance and medicine at the expense of the laborers; and these expenses will be deducted from the wages, before they are paid–

6th No strangers will be permitted at any time to come on the place or to remain on it, without reporting themselves and obtaining permission so to do from the said proprietor or foreman

7th No dogs will be kept on the plantation except by the consent of the said proprietor.

8th Every one using a tool, implement– waggon, or plough gear or harness is expected and required to take care of the same and if lost injured or destroyed by his or her carelessness, the same will be supplied anew, or repaired, and the cost thereof charged to him or her, and deducted from his or her wages

9th All stock provisions and other things stolen on the plantation unless immediately reported to the said proprietor with the name of the thief will be charged against the wages of the laborers and in every case where a thief is caught a reward of ten dollars will be paid by the said proprietor to the person reporting and apprehending such thief–

10th The sick will be properly nursed, and furnished with medicine and a physician will be called in when necessary, for all which no charge will be made against the laborers except in the case of non-workers as hereinbefore stated– No deduction will be made for sick time where the sickness does not exceed one day in duration– but if any one feigns sickness to avoid work and the plantation physician certifies in writing to that fact such person will be immediately discharged and sent off the plantation without any wages whatever– The laborers are entitled to select a plantation physician, who will be sent for by the said proprietor when necessary

11th The laborers do hereby promise and agree to remain on the plantation as laborers as aforesaid and not to abandon their work without the consent of the said proprietor– and the said McQueen McIntosh hereby promises covenants and agrees to and with the said parties of the second part and every of them that he will furnish them houses to live in, comfortable raiment and wholesome food and that he will at the expiration of the year pay to the said laborers as their compensation from the 12th day of June last past except wherein specifically mentioned herein otherwise twelve hundred bushels of corn, five thousand pounds of pork and twenty barrels of syrup (sugar cane) to be divided amongst the said laborers according to the said classification–after deducting all the expenses, charges and costs hereinbefore provided–and the wages of the said Jack (foreman) to be paid in money (as he prefers the same) and the wages of the said Jerry (blacksmith) in money he prefering the same both at the rate of fifteen dollars per month. And the said McQueen McIntosh for himself, his heirs executors administrators and assigns does hereby promise covenant and agree to and with the said parties of the second part and every of them that he will and that his said heirs executors administrators and assigns shall faithfully execute and perform all and singular the said covenants and undertakings

In witness whereof the said parties have hereunto set their hands severally, this contract being in duplicate form.

McQueen McIntosh

his

Jack X mark

his

Jerry X mark

&c &c &c

&c &c &c.

including each person

Chicago Citations

Bibliography entry:

Contract between McQueen McIntosh and Jack et al., July 8, 1865. Reports Sent to the Assistant Commissioner and Contracts, ser. 784, Bainbridge, Ga., Agent, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Contract between McQueen McIntosh and Jack et al., July 8, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/McIntosh.html.

Shortened citation:

McIntosh contract, July 8, 1865.

PRIMARY SOURCE P15.5

Statement of Alabama Freedpeople

Thirteen freedpeople formerly owned by Benjamine Blasingame · Chambers County, Alabama, July 24, 1865

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	Freedpeople agree to work for food and clothing, showing both dependency and the lack of cash wages.
TREATMENT	Full public-domain text

Historical Context

In the summer of 1865 many freedpeople stayed on the plantations where they had been enslaved, because they had nowhere else to go and the crop was in the ground.

Thirteen people formerly owned by Benjamine Blasingame signed this statement agreeing to stay and work until the end of the year for food and clothing alone.

Editorial note: The signers made their marks. The text follows the Freedmen and Southern Society Project transcription.

Document Text

State of Alabama Chambers County [July 24, 1865]

This to certify that we the undersigned hands formally benlonging to Benjamine Blasingame of the county and State aforesaid but made free by the authoritys of the United States are all willing to stay and work for the aforesaid Benjamine Blasingame untill the twenty fifth day of December next for the consideration of our victuals and clotheing as I been usualy doing and we bind our selves to attend to business faithfully as heretofore I witness hereoff affix our several names this 24 July 1865

Names
[13 signatures]

Chicago Citations

Bibliography entry:

Statement of Like et al., July 24, 1865. Unregistered Letters Received, ser. 9, Alabama Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Statement of Like et al., July 24, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Like%20et%20al.html.

Shortened citation:

Statement of Alabama freedpeople, July 24, 1865.

PRIMARY SOURCE P15.6

Tennessee Freedmen to the Freedmen's Bureau Assistant Commissioner

Rev. Lewis Bright and nine freedmen of Lincoln County to Gen. Clinton B. Fisk · July 27, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedmen organize to ask for a federal agent because state courts will not hear them.
TREATMENT	Full public-domain text

Historical Context

Tennessee's courts in 1865 did not accept Black testimony against whites, leaving freedpeople no legal remedy against employers who refused to pay.

Lewis Bright, a minister, and nine other freedmen described how employers had driven workers off after the harvest without pay, and asked the Bureau to station an agent in the county who could act as their "Patron."

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Lincoln County, Tenn.] July 27th 1865

Genl We the colored People, of Lincoln County, State of Tennessee, would respectfully submit the following representation of our condition, and earnestly entreat that an Agent may be appointed who shall reside in Fayetteville, who may act as our Counsellor, and aid us in obtaining redress for wrongs to which we may be subjected.

By the new Constitution adopted by the loyal people, of the State, on the 22d of February, 1865, we became formally and legally free, our prayers were answered, and the secret hopes of our hearts were realized. When, however, the Legislature of the State subsequently met, they failed, as we think, to pass the necessary laws, to recognize our standing, and secure to us by law, our rights as freemen. In our former condition as slaves, we had the protection of our masters, and it was to their interest, at least, to consult for, and secure our physical welfare. As we are now, the old slave laws of the State remaining unrepealed, and the oath of the colored man not being received by our Courts, as against the whites, we have no where to look for protection, save to the United States Authority. In those authorities, we have the fullest confidence: but we want some way of easily bringing our cases before them. In the beginning of the year, when our freedom was secured by the Constitution, many of the colored people left their former masters, and made arrangements with others, to labor for a longer or shorter period of time: the employers agreeing to give them a certain fixed compensation for their labor. A great number, however, remained with their former masters, some of these agreeing to give them a certain amount for their services, others holding out the idea that what was right, should be done, and others making no promises to their former slaves: but still exacting their labor. Now, whilst we take for granted that employers will do the thing that is honest and just in many, perhaps, the majority of cases, yet, we think, we have just cause for fear, that the cupidity of others will defraud them of their wages, and turn them out of their places, when their services from the condition of the crops is no longer a matter of necessity. A few cases of the kind have already occurred in which colored persons, having labored until the harvest has been secured and the corn crops laid by, are now, as we think causelessly turned off to seek places for themselves and families, and compensation for their labor refused. Besides, in several instances recently, colored men, have been, without any process of law, and no crime proved

against them, subjected to the lash, and as many as four or five hundred lashes having been inflicted upon them at the will of their masters. In view of such circumstances, as we cannot appeal to the laws and Courts of the State, for a redress, of grievances felt and feared, and as the only other recourse, besides God, who is the refuge of the oppressed, is the United States Authority, We would most respectfully pray you, as the Representative of that authority, to take order in our behalf, and appoint some one, who may, for the time act as our Patron, by consulting and advising us, and when wronged, securing us redress.

It is scarcely needful for us to say, that during the late Rebellion we have been true and loyal to the United States, Government: and whilst our prayers have gone up for the union, cause, we have, also, to the extent of our power, given aid and comfort to the armies of the United States, and been in many ways helpful to its soldiers.–

During the continuance of the war, we have not been engaged in insurrection, or in any way been insubordinate to constituted authority: and in the future, as in the past, we propose to be a law abiding people. As in the past, we have by our labors enriched our masters, in many instances, besides supporting ourselves and our families. We now, simply ask that we may be secured as others, in the just fruits of our toil: protected from unjust, and illegal punishments, and we are sure we will keep our families from want, and do our part as good citizens of the United States to add to the wealth and glory of the Country. We are recognized as men by the Constitution of the land: we only ask to be treated as such, and we will, in the future as in the past, be law abiding men.

and in conclusion we would with deference to your position and authority beg leave to recommend as agent in our behalf the name of William French as the man who has our unbounded confidence. appoint him, and we will as in duty bound Ever Pray

his
Rev Lewis X Bright
mark

his
" Singer X Askins
mark

his
Benjamin X English
mark

his
Melvin X Mitchel
mark

his
Edward X Timmins
mark

his
Milton X Timmins
mark

his
Benjamin X McDaniel
mark

his
Peter X Bagley

mark

his
Banks X Bonner
mark

his
Carrol X Wales
mark

Signed in behalf of the Freedmen of the County of Lincoln State of Tennessee

Chicago Citations

Bibliography entry:

Bright, Lewis, et al. Letter to General Fisk, July 27, 1865. B-36 1865, Registered Letters Received, ser. 3379, Tennessee Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Lewis Bright et al. to Clinton B. Fisk, July 27, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Bright.htm.

Shortened citation:

Bright et al. to Fisk, July 27, 1865.

PRIMARY SOURCE P15.7

Commander of U.S. Forces at Columbia, Louisiana, Enclosing a Labor Contract between a Freedwoman and Her Former Owner

Col. A. Watson Webber to Capt. S. B. Ferguson · September 20, 1865 (contract of August 1, 1865)

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	An early contract that openly re-creates slavery's control shows what freedpeople faced without oversight.
TREATMENT	Full public-domain text

Historical Context

In the months after the war, before the Freedmen's Bureau was established in much of the South, planters drew up their own labor contracts with the people they had held as slaves.

Colonel A. Watson Webber sent his superiors a contract in which a freedwoman agreed to "conduct myself as when I was owned by him as a slave" in return for food and clothing. Webber reported that conditions in the parish were very bad and that freedpeople there had no protection.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Columbia, La, Septbr 20th 1865.

The condition of affairs in Franklin parish is very bad. The Lieutenant of Freedmen who is here has charge of that parish also, but he can do nothing at this distance.

The people of that parish were many of them members of “Harrison's” old command, and their treatment of the freed people is reported to me as being fully as bad, if not worse, than in slave times

The tying up of women by the thumbs, and the cruel punishment of all classes and ages of colored people is indulged in to the heart's content of these enlightened and humane whites. Colored people command their esteem less, and awaken their humanities to a far less degree than the miserable curs which they make their pets. If it meets with the approval of the General commanding, I will station a company at Winnsborough, which is the parish seat. It seems to me that circumstances demand that a small force be sent there. The people in all this country retain their old ideas with regard to the negro.

To them there seems to be no recourse, when a servant errs–except to the shot-gun or the lash. They need different manipulation at the hands of the officers of the “Freedmens' Bureau.”

With very few exceptions the colored people in this vicinity are working for food, clothing and medical attendance. The food and medical attention I believe they receive to a certain extent, but they are, as a general thing, clad in the cast off rags of their slave days. I do not believe that a coat nor a pair of pantaloons has been, or will be furnished a single colored man on these plantations. In some cases this payment for services, when made, is sufficient, but as a rule the planters can afford to give these people monthly pay. As it is, the blacks stand just where they did three years ago as slaves, except that their clothes are more badly worn, and an officer of the government is their driver. Their proper freedom is yet a myth. In view of the coming year all the planters are wanting more hands.

I forward, enclosed herewith, a copy of a contract found on file in the office of the Provost Marshal of Freedmen at this post. There are others of the same nature. I have the honor to be, Captain, Your very ob'd't servt

A. Watson Webber

[Enclosure]

[Columbia, La., August 1, 1865]

Copy of E. W. Reitzell's Contract.

“I, the within-signed woman of color, do hereby bind myself with E. W. Reitzell as laborer on his plantation from this the 1st day of August, 1865, to the 1st day of January, 1866. I further agree and bind myself to do all the work he may require of me, to labor diligently and be obedient to all his commands, to pay him due respect, and do all in my power to protect his property from danger, and conduct myself as when I was owned by him as a SLAVE.”

“For the services of the within-named freed woman of color, E. W. Reitzell binds himself to feed, clothe, house and furnish medical attention to her for the time above specified. The consideration paid on the part of the employer will be of the same quality and quantity as were furnished the employee while she was the SLAVE of the employer.”

Chicago Citations

Bibliography entry:

Webber, A. Watson. Letter to S. B. Ferguson, September 20, 1865, enclosing contract between E. W. Reitzell and an unnamed freedwoman, August 1, 1865. Letters Received, ser. 542, Northeastern District of Louisiana, U.S. Army Continental Commands, Record Group 393, pt. 3, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

A. Watson Webber to S. B. Ferguson, September 20, 1865, RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Webber.htm.

Shortened citation:

Webber to Ferguson, September 20, 1865.

PRIMARY SOURCE P15.8

Northern Teacher to the Freedmen's Bureau Commissioner

Joseph R. Johnson to Gen. O. O. Howard · Halls Hill, Virginia, August 4, 1865

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople resolve to build their own school and church as the meaning of freedom.
TREATMENT	Full public-domain text

Historical Context

On August 1, 1865, freedpeople at Halls Hill, near Falls Church, Virginia, celebrated the anniversary of emancipation in the British West Indies (1834) along with their own freedom.

Joseph R. Johnson, their teacher, sent General Howard the resolutions adopted at the celebration, which pledged to build their own schoolhouse, church, and Sabbath school.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Halls Hill Va August 4th 1865.

Dear Sir: On Tuesday August 1st 1865, the Colored People of Halls Hill and vicinity, (near Camp Rucker, & Falls Church) Va– celebrated West India Emancipation, and American Emancipation.

During the business part of the celebration, the Rev Jacob Ross, (colored) of Georgetown– was chairman, and the following resolutions were unanimously adopted:–
1. “We feel it to be very important that we obtain HOMES–owning our shelters, and the ground, that we may raise fruit trees, concerning which our children can say–“These are ours”; also: that we may regularly and perseveringly educate our children, having our own school house in a central location, and also maintain public worship, and a Sabbath School, so that we may be an established and growing people, and be respected, and recognized by all loyal people, as welcome and efficient citizens of these United States–which is now our Country–made emphatically so by the blood of our brethren recently shed to save our Country.”
2 Resolved: That we appoint a Committee of seven to visit the Freedmens Bureau, and enquire–Can the Bureau give us any aid, or advice, in regard to obtaining Homes in this vicinity, or elsewhere?”

The Committee of seven consists of–
(1) George Rummels,
(2) Charles Jackson,
(3) Sandy Parker,
(4) Charles Johnson,
(5) Samuel Smith,
(6) Henry C Wilson,
and (7) Isaac Peyton.
This Committee are bearers of this document.

I trust that they will receive such a response as may much encourage them, and those whom they represent. Yours for the Freedmen–

Joseph R. Johnson,

Chicago Citations

Bibliography entry:

Johnson, Joseph R. Letter to General O. O. Howard, August 4, 1865. Unregistered Letters Received, ser. 457, District of Columbia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Joseph R. Johnson to O. O. Howard, August 4, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/J%20Johnson.htm.

Shortened citation:

Johnson to Howard, August 4, 1865.

PRIMARY SOURCE P15.9

Committee of North Carolina Freedmen to the Assistant Commissioner, and His Reply

Anthony Blunt, James Hargate, and Ezekiel Blunt; Col. Eliphalet Whittlesey · Kinston, North Carolina, August 7 and 16, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedmen organize to buy land with their own savings, and the Bureau approves.
TREATMENT	Full public-domain text

Historical Context

The Freedmen's Bureau law of March 1865 promised that freedpeople could rent and eventually buy abandoned or confiscated land in forty-acre plots. Bureau circulars invited them to apply.

A committee of freedmen at Kinston submitted a plan to form an association, pool their savings, and buy land for homesteads. Colonel Eliphalet Whittlesey, the Bureau's head in North Carolina, approved.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; the editors' footnote numbers have been removed.

Document Text

Kinston North Carolina, Aug. 7″ 1865

Sir In accordance with the provisions of paragraph X. Circular No. 5 from the Bureau at Washington, The following plan was adopted by the Freedmen, and is respectfully submitted for your approval.

Whereas, we a portion of the Freedmen of Lenoir County, in the State of North Carolina, being desirious of embracing every facility which the general Government offers to provide for ourselves the comforts of a permanent home. we acknowledge the importance of mutual labor for mutual interest, and believing that industry is the basis of progress, and being desirious to become good Citizens, showing that the labor has not been thrown away, which has been spent on us, Therefore be it, and it is hereby resolved that we form ourselves into a society to purchase homes for ourselves by Joint Stock, and for other purposes, Be it further resolved, that we raise ten thousand dollars, for the purchase of homesteads, and that the said sum be raised by 1″ January 1868. And further this society shall be composed of the best and the most reliable Freedmen in the County, and further, it is proposed to raise the required sum in the manner following. Two hundred and fifty men will compose the Company, each to be assessed in the sum of forty eight dollars per annum, to be paid in monthly instalments of four dollars.

Anthony Blunt

James Hargate Committee of Freedmen

Ezekiel Blunt

Raleigh N.C. Aug. 16″ 1865

Sirs Your communication of Aug. 7″ detailing a plan for purchasing homes by a Joint Stock Company is just received and meets my hearty approval. I will by advice and action in person & through my officers, do all in my power to assist you. A safe depository for your funds will be needed, where the money will be drawing interest. An early and good selection of lands should be made. Kinston is in the District of Capt. James of New Berne. I will send a copy of your letter & plan to him, and direct him to give you his assistance Very Respectfully

E. Whittlesey

Chicago Citations

Bibliography entry:

Blunt, Anthony, et al. Letter to the Commissioner of the Freedmen's Bureau at Raleigh, August 7, 1865, B-15 1865, Letters Received, ser. 2452; and E. Whittlesey to Anthony Blunt et al., August 16, 1865, vol. 7, 42, Letters Sent, ser. 2446. North Carolina Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Anthony Blunt et al. to the Freedmen's Bureau at Raleigh, August 7, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Blunt%20et%20al.html.

Shortened citation:

Blunt et al. to the Bureau, August 7, 1865.

PRIMARY SOURCE P15.10

Letter from a Freedman to His Old Master

Jourdon Anderson to Col. P. H. Anderson · Dayton, Ohio, August 7, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman bargains over labor and demands education and dignity as the conditions of freedom.
TREATMENT	Full public-domain text

Historical Context

Jourdon Anderson (1825–1907) was enslaved in Big Spring, Tennessee, until Union soldiers freed him in 1864. He moved his family to Dayton, Ohio.

When his former owner wrote asking him to come back and work, Anderson dictated this reply. He asked for back wages for 32 years of his labor and 20 of his wife's, and for assurance that his daughters would be safe and his children educated. The letter was printed in newspapers and in Lydia Maria Child's *Freedmen's Book*.

Editorial note: Anderson dictated the letter to Valentine Winters, a Dayton lawyer, who published it. The text follows the American Yawp Reader transcription.

Document Text

Dayton, Ohio, August 7, 1865.

To my old Master, Colonel P. H. Anderson, Big Spring, Tennessee.

Sir: I got your letter, and was glad to find that you had not forgotten Jourdon, and that you wanted me to come back and live with you again, promising to do better for me than anybody else can. I have often felt uneasy about you. I thought the Yankees would have hung you long before this, for harboring Rebs they found at your house. I suppose they never heard about your going to Colonel Martin's to kill the Union soldier that was left by his company in their stable. Although you shot at me twice before I left you, I did not want to hear of your being hurt, and am glad you are still living. It would do me good to go back to the dear old home again, and see Miss Mary and Miss Martha and Allen, Esther, Green, and Lee. Give my love to them all, and tell them I hope we will meet in the better world, if not in this. I would have gone back to see you all when I was working in the Nashville Hospital, but one of the neighbors told me that Henry intended to shoot me if he ever got a chance.

I want to know particularly what the good chance is you propose to give me. I am doing tolerably well here. I get twenty-five dollars a month, with victuals and clothing; have a comfortable home for Mandy,—the folks call her Mrs. Anderson,—and the children—Milly, Jane, and Grundy—go to school and are learning well. The teacher says Grundy has a head for a preacher. They go to Sunday school, and Mandy and me attend church regularly. We are kindly treated. Sometimes we overhear others saying, "Them colored people were slaves" down in Tennessee. The children feel hurt when they hear such remarks; but I tell them it was no disgrace in Tennessee to belong to Colonel Anderson. Many darkeys would have been proud, as I used to be, to call you master. Now if you will write and say what wages you will give me, I will be better able to decide whether it would be to my advantage to move back again.

As to my freedom, which you say I can have, there is nothing to be gained on that score, as I got my free papers in 1864 from the Provost-Marshal-General of the Department of Nashville. Mandy says she would be afraid to go back without some proof that you were disposed to treat us justly and kindly; and we have concluded to test your sincerity by asking you to send us our wages for the time we served you. This will make us forget and forgive old

scores, and rely on your justice and friendship in the future. I served you faithfully for thirty-two years, and Mandy twenty years. At twenty-five dollars a month for me, and two dollars a week for Mandy, our earnings would amount to eleven thousand six hundred and eighty dollars. Add to this the interest for the time our wages have been kept back, and deduct what you paid for our clothing, and three doctor's visits to me, and pulling a tooth for Mandy, and the balance will show what we are in justice entitled to. Please send the money by Adams's Express, in care of V. Winters, Esq.,

Dayton, Ohio. If you fail to pay us for faithful labors in the past, we can have little faith in your promises in the future. We trust the good Maker has opened your eyes to the wrongs which you and your fathers have done to me and my fathers, in making us toil for you for generations without recompense. Here I draw my wages every Saturday night; but in Tennessee there was never any pay-day for the negroes any more than for the horses and cows. Surely there will be a day of reckoning for those who defraud the laborer of his hire.

In answering this letter, please state if there would be any safety for my Milly and Jane, who are now grown up, and both good-looking girls. You know how it was with poor Matilda and Catherine. I would rather stay here and starve—and die, if it come to that—than have my girls brought to shame by the violence and wickedness of their young masters. You will also please state if there has been any schools opened for the colored children in your neighborhood. The great desire of my life now is to give my children an education, and have them form virtuous habits.

Say howdy to George Carter, and thank him for taking the pistol from you when you were shooting at me.

From your old servant,

Jourdon Anderson

Chicago Citations

Bibliography entry:

Anderson, Jourdon. "Letter from a Freedman to His Old Master." August 7, 1865. In *The Freedmen's Book*, edited by Lydia Maria Child, 265–67. Boston: Ticknor and Fields, 1865. American Yawp Reader.

Footnote citation:

Jourdon Anderson to P. H. Anderson, August 7, 1865, in *The Freedmen's Book*, ed. Lydia Maria Child (Boston: Ticknor and Fields, 1865), 265–67.

Shortened citation:

Anderson to Anderson, August 7, 1865.

PRIMARY SOURCE P15.11

Cases Adjudicated by the Freedmen's Bureau Superintendent at Gordonsville, Virginia

Capt. T. Franklin P. Crandon, Freedmen's Bureau · August 16–September 13, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau court's docket shows freedpeople contesting wage theft and violence through federal protection.
TREATMENT	Public-domain text, selected cases

Historical Context

The Freedmen's Bureau set up its own courts in 1865 to hear disputes involving freedpeople, because southern civil courts would not accept Black testimony or give fair hearings.

This register records cases heard at Gordonsville, in Virginia's Piedmont, in a single month. Freedpeople complained of unpaid wages, whippings, and being driven off plantations; the superintendent recorded each decision.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Gordonsville, Va., August 16–September 13, 1865]

Docket

Edmund Taylor & Anderson Strauder Colored vs Mr Jas. Newman Aug. 16th 1865.

Two boys state that they have been whipped without just cause–that Mr Newman refuses to allow them to remain on his place unless they will agree to remain permanently with him and allow him to whip them when he thinks proper; refuses to recognize the authority of the Bureau, approves of the boys having been whipped.

Action– Mr Newman summoned to answer the complaint–required to appear to-day.

Decision– The evidence adduced shows these boys to have been lazy & insolent– They were instructed that such pratices were not to be continued–admonished to work earnestly & be respectful. Mr Newman was instructed that the practice of whipping was to be entirely discontinued & that the people on his plantation were to have their freedom acknowledged in every respect; these boys especially to be kindly treated & provided for. The boys returned to Mr Newman's plantation.

Fannie Fortune–Coled. vs. Thos. Newman August 16th 1865

Complains that on Saturday, Aug. 12th 1865, she was struck both by Mr Newman & his wife, without any provocation–that since that time till to-day she has not been allowed anything to eat; that Mr Newman requires her to leave his place without making any provision for her.

Action.– Mr Thos. Newman summoned to answer the Complaint

Decision.– Girl required to return to her home; the evidence indicating impertinence on her part; she is cautioned against such conduct. Her employer required to abstain from all punishment, to furnish proper food and quarters, and to retain her on the plantation. Both parties dissatisfied with the result.

Wm Taylor vs Mr John Cowherd Aug 18

States that he was told to leave the farm of Mr. John Cowherd on the 16th inst–Mr Cowherd saying he had no further use for him. also that he has worked on Mr Cowherds farm since the last of May– Has recd no Compensation. is without family– Wants to Know if he is not Entitled to Compensation

Action. Letter written to Mr Cowherd asking Explanation

Alonzo Walker & Jas Butler Taylor versus Gratton Ehrhart Aug 18 1865

State that they have been abused. being whipped threatened & driven away from home. State that their master refuses to recognize any authority of the officers of the Bureau. & claims the right to whip beat & annoy the colored people on his plantation as formerly

Action. Mr Ehrhart Summoned to answer the Complaint–

Newton Baylor vs Robt. Williams Aug 19–

States that he has been Employed by Mr Williams for 3 months & 6 days. That Mr Williams refuses to pay him any wages– Has recd nothing

Action Mr Williams summoned to answer the complaint

Result. Took Mr Williams note for $1200 payable in 60 days

Julia Bates (Cold) versus. W. Campbell Aug 19

Reports that she was this morning driven from her home by her former master. that no provision is made for her. and that she has no home to go to–

Action Mr Campbell summoned to appear on Monday afternoon Aug. 21. to answer the complaint

Decision Complaint Dismissed. No cause for it Existing

Winston versus Joseph Ham Aug 20th

Reports that he is badly treated, being threatened with being killed. has recd no wages– Was struck by a stone thrown by his Employer. Shows swelling on his head. & side of his face in proof– Is Ordered off the place &c &

Action. Mr Ham Summoned to appear and answer to the complaint, tomorrow afternoon

Sealy Banks vs Mrs Estes Aug 20

Reports that she is working for Mrs Estes– That Mrs Estes refuses to allow her any payment, save victuals & clothes, and is not certain about giving her the clothing– Has worked for Mrs Estes all her life– Has had no clothing for 3 years except one cotton dress. one yarn Dress, Shoes & stockings Is clothed & in a great meausur supported by her Husband, Peyton Banks–

Action. Mrs Estes Summoned to appear and answer the Complaint

Decision. Mrs Estes to pay Sealy Banks for one month's work $4.00–also to give her. her summer clothing– The Evidence shows that only during one month was the girl entitled to wages

Ben Davis. [. . .] Farm of David [T]ayman

Has a wife & 5 children on the Farm of Mr Davis, Lives on the farm of Mr [T]ayman & works for him: Mr [T]ayman agrees to have him bring his family to the farm– Mr Davis wants him to do so– He, Ben, desires to do so himself– But the woman does not wish to go–

Decision that the wife of Ben must go with him to the farm where he is living

Alfred Goffney Cold versus Widow Strange Aug 27 1865

States that he was Employed by Mrs Strange at $5.00 per month– That he is now ordered away without any pay being given him– That Mrs Strange this morning threatened to shoot him if he did not leave and got a pistol and pointing it at him ordered him to leave at once or she would blow his brains out

Adjustment– Mrs Strange paid the wages Earned $520

Edmund Newman versus Dr Geo. Newman. Aug 28 1865

States that he has been at work for Dr Newman since the fall of Richmond. that he has not been paid anything for his labor– That Mr Newman refuses to hire him & pay him more than His board– Will allow him to remain if he will work for his board– Will not give him any pay for what he has done–

Action Mr Newman required to answer the complaint–

Sept 4th 1865 Decision– As Dr Newman agrees to give Edmund by the close of this year, $15.00 and allow him to gather & retain his own private crop. the case is adjusted on these terms–

Daniel Baker Frank Johnson Lewis Wright Timothy Terryl vs Miss Mary Cowherd Aug 28 1865

State that they have worked for Miss Cowherd all the year– Have not recd any pay– Miss Cowherd says that she is not able to pay them, That they must stay and work for their board & clothing: if they will not accept these terms they must leave the plantation & never return– She will not pay them for the work they have done–

Action– Miss Cowherd required to settle with the men or explain

Lucy Ann Johnson & Patsy Gordon versus Widow Ham Aug 29 1865

Complain that they are badly treated being whipped and otherwise abused Also have been required to leave home

Action, Letter written to Mrs Ham directing her to correct her Conduct

Charles. (Cold) versus B. Brockman

States that Mr Brockman refuses to allow him any pay for past services, or to hire him for time to come.

Action. Letter of advice written to Mr Brockman–

Cornelia Whitley versus Allen Dickerson Sept 2d 1865

States that she is supporting herself for 3 months That this morning she was ordered to leave the premises or she would be whipped away– That she has been sewing. knitting & picking cotton & peeling fruit for her Employer. has recd no pay, nor clothing for herself for two years– That Mr Allen Dickerson says that black people are not free That in consequence of attending to her sick child she was late at her churning this morning and was abused for the same

[. . .]

Chicago Citations

Bibliography entry:

Crandon, T. Franklin P. Register of Cases, August 16–September 13, 1865. Vol. 246, Register of Proceedings of Freedmen's Court, ser. 4013, Gordonsville, Va., Superintendent, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Register of cases, Gordonsville, Va., August 16–September 13, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Gordonsville%20reg.htm.

Shortened citation:

Gordonsville register of cases, 1865.

PRIMARY SOURCE P15.12

Freedmen's Bureau Superintendent on St. Helena Island to the Assistant Commissioner (excerpt)

W. E. Towne to Rufus Saxton · August 17, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Sea Island freedpeople with their own land plan schools and churches for themselves.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Freedpeople on St. Helena Island, South Carolina, had worked their own land since the Union occupation of 1861, and many had bought small tracts at government tax sales. Northern teachers ran schools there, among them the Penn School.

W. E. Towne, the Bureau's local superintendent, reported to Saxton on rumors that the islanders were drilling in secret, and on their own plans to buy land, build schoolhouses and churches, and pay teachers themselves.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[. . .]

These sailors probably reported secret, midnight, and rebellious drilling among the negroes.

A woman from Land's End reports that their police force returning one morning from their night watch, armed and marching in a company, met Capt. Taft, who is a resident upon that end of the island. The company did not turn out to give way for his vehicle, and he had to take the side of the road. She thought he supposed this a military force drilling with insurrectionary intent.

I can trace no further cause for the reports, except some boasting idle talk among a few of the returned soldiers, and the angry feeling of some of the most unlucky of last year's cotton sellers.

There is a good deal of ill feeling about the sale of the cotton of last year, owing to their want of knowledge of the risks of business. They say most emphatically that they wish to select their own agents, or to sell to whom they please unguarded by the protecting laws of the past season.

Many of them contracted debts to the amount even of a hundred or more dollars, to be paid when the residue of their cotton money came in, and as the expected amount will never come in, they are in embarrasment and discontent, and they most unjustly distrust all of those who sold for them.

There is always much angry feeling manifested whenever a man or woman, refusing to work for a proprietor is required to seek a house and home off the plantation, but there has been no serious resistance in such cases.

Very many of the freedmen, who three years ago were utterly destitute, ragged, and almost starving, have been able by their earnings to buy themselves from ten to twenty acres of land–a horse, mule or yoke of oxen–a cow–a cart–even good light vehicles for driving–implements–household utensils–clothing to a very considerable amount, and in several cases they have had houses built for themselves in their own lots. I do not allude now to

those who were so fortunate as to be able to buy plantations at the first sale of land but to those poorer ones, who have had no chances above the generality.

Such settled prosperity could not be the result of either neglect, or oppression, or pampering, in their management. Protection, with not too much interference in their own plans, has given them all the fostering and encouragement they needed. One of the leading men of the island, who was very destitute three years ago, and who now owns his twenty acres, and keeps his horse, applied to a lady here to ask the cost of hiring a teacher from the north, as the people on the plantation where he lived wished to engage one for their children. When she answered "at least four or five hundred dollars a year." he said "Well" we can afford it, and we want our children well educated."

The thrift and success of the freedmen, makes them objects of attention to their former masters, who are returning every day to visit their plantations in search of "material aid"– I hear from the people that two young ladies came here, and went from house to house among their fathers slaves, pleading their poverty, and receiving from one some grits or potatoes, from others plates and spoons–or from others money. One woman took the shoes from her own feet and gave them to her former mistresses.

These donations are made partly from pity, and partly to let their former owners see how well they can take care of themselves–an intense satisfaction if a little boastful–

One freedman–Jim Cashman, who has been guide to some of our commanders here, and corporal in a regiment for three years, met his old master who had come to visit the plantation he used to own.

"You come back again Sir" said Jim most respectfully. "The Lord has blessed us since you have been gone– It used to be Mr. Fuller No. 1, now it is Jim Cashman No. 1. Would you like to take a drive through the island Sir? I have a horse and buggy of my own now Sir, and I would like to take you to see my own little lot of land, and my new house on it, and I have as fine a crop of cotton Sir, as ever you did see, if you please–and Jim can let you have ten dollars if you want them, Sir."

Mr. Fuller did want them. He took up quite a collection on his place I hear– Another of the old proprietors, formerly a very wealthy man, came to ask for aid, and received from his people over seventy dollars. Others have received fifty dollars. One lady came to Beaufort from the interior a week or two ago, and sent word to them that "she thought some of her Ma's niggers might come to wait upon her." None volunteered– Some went to see her however, and from these she received food, money, and clothes. She offered to become a dressmaker for the negroes, and will probably get enough money for a support in that way.

A master, infamous for burning his slaves, that is stretching them on the ground "till their skin cracked" to use their own expression–and then dropping fire on them, returned recently, intending to spend some time on his plantation, but the people would not tolerate his presence. They told him that they had bought the land, and he should leave it before morning, which he did.

Although to the first who came back the people gave liberally they are becoming more cautious, for they say that two come for every one they send away relieved, and that it is a new way "maussa" has of making them work for him. Although the "masters" weep with joy at the sight of their humble friends, and though one of them said he "should go away and cut his throat if they looked coldly upon him." yet the people are only transiently touched by this manifestation of affection. They look very jealously and uneasily upon all who return, often ask why Government lets them come back to trouble the freedmen, and now they ascribe this report of an insurrectionary spirit here, to tales told by their "old owners" "to set the yankees against them."

An unwise speech made here a few weeks ago by a northern black man, has called out a free expression of the latent spirit of discontent, on the land and cotton questions, and though it was intended, I believe, only to teach the people to be on their guard against all southern white men, and all northern speculators, and to urge them to

uphold their own race, yet it had the effect of exciting animosity against all white men. This spirit is confined to a very few, and whether it will grow and give trouble, remains to be seen. I think the speech could have had nothing to do with the formation of the Society, as that was organized before the speaker came to the island. Neither can he be responsible for the drilling, as that was to meet a local emergency of which he had no knowledge. His speech was not approved by the more intelligent of the people, and its effect will be counteracted by their influence.

[. . .]

Chicago Citations

Bibliography entry:

Towne, W. E. Letter to Rufus Saxton, August 17, 1865. T-6 1865, Registered Letters Received, ser. 2922, South Carolina Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

W. E. Towne to Rufus Saxton, August 17, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Towne.html.

Shortened citation:

Towne to Saxton, August 17, 1865.

PRIMARY SOURCE P15.13

Freedmen's Bureau Assistant Commissioner for South Carolina, Georgia, and Florida to the Commissioner

Rufus Saxton to O. O. Howard · Beaufort, South Carolina, September 5, 1865

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau officer defends freedpeople's land claims against restoration to planters.
TREATMENT	Full public-domain text

Historical Context

General Rufus Saxton (1824–1908) had directed the wartime settlement of freedpeople on the Sea Islands and then supervised the land set aside by Sherman's order. As Bureau assistant commissioner, he became their chief defender.

Saxton reported that former owners were pressing to regain the islands and argued that some 40,000 freedpeople settled on forty-acre tracts must not be dispossessed. Johnson removed him from his post in early 1866.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Beaufort, S.C., September 5th 1865.

General I have the honor to report that the old owners of lands on the Sea Islands, are making strong efforts to regain possession of them: These Islands were set apart for the colonization of the freedmen, by Genl Sherman's Special Field Order no 15. Head Quarters Military Division of the Mississippi: In pursuance of this Order, which was issued as a military necessity, with the full approval and sanction of the Honorable Secretary of War, I, as you are already aware, have colonized some forty (40) thousand Freedmen, on forty (40) acre Tracts. promising them that they should have possessory titles to the same.

I consider that the faith of the Government is solemnly pledged to these people, who have been faithful to it. and that we have no right now to dispossess them of their lands.

I believe that Congress will decide that Genl Sherman's Order has all the binding effects of a Statute, and that Mr Stanton will sustain you in not giving up any of these lands to their late owners.

I respectfully ask that this Order which I have carried out in good faith, Shall now be enforced, and that no part or parcel of the lands which have been disposed of under its just provisions, shall, under any circumstances, be restored to the former owners. It seems to me as not wise or prudent to do injustice to those who have always been loyal and true, in order to be lenient to those who have done their best to destroy the nation's life.

In my Endorsements upon the applications of former owners, for the restoration of these Sea Islands Land I always say that they have been disposed of in accordance with the provisions of General Sherman's. Special. Field. Order. no 15. and I hope as a matter of simple justice that no such lands will be restored. I am, General. Very Respectfully. Your obdt Servant.

R. Saxton

Chicago Citations

Bibliography entry:

Saxton, Rufus. Letter to O. O. Howard, September 5, 1865. Freedmen's Bureau 43 1865, Letters Received from the President, Executive Departments, and War Department Bureaus, Office of the Secretary of War, Record Group 107, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Rufus Saxton to O. O. Howard, September 5, 1865, RG 107, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Saxton.html.

Shortened citation:

Saxton to Howard, September 5, 1865.

PRIMARY SOURCE P15.14

Committee of Freedmen on Edisto Island to the Freedmen's Bureau Commissioner, and His Reply

Henry Bram, Ishmael Moultrie, and Yates Sampson; O. O. Howard · October 20–22, 1865

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople reject working for their former owners and demand land of their own.
TREATMENT	Full public-domain text

Historical Context

Under Sherman's Special Field Orders No. 15, thousands of freedpeople had settled on Edisto Island off the South Carolina coast. In the fall of 1865 President Johnson ordered the land restored to its former owners and sent General Howard to tell the freedpeople.

A committee of three freedmen answered that they could not sign an agreement to work for their former owners and asked for land they could rent or buy. Howard replied sympathetically but could not change the president's order.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling; the editors' footnote numbers have been removed.

Document Text

[Edisto Island, S.C., October 20 or 21, 1865]

General It Is with painfull Hearts that we the committe address you, we Have thorougholy considered the order which you wished us to Sighn, we wish we could do so but cannot feel our rights Safe If we do so,

General we want Homestead's; we were promised Homestead's by the government, If It does not carry out the promises Its agents made to us, If the government Haveing concluded to befriend Its late enemies and to neglect to observe the principles of common faith between Its self and us Its allies In the war you said was over, now takes away from them all right to the soil they stand upon save such as they can get by again working for your late and thier all time ememies.–If the government does so we are left In a more unpleasant condition than our former

we are at the mercy of those who are combined to prevent us from getting land enough to lay our Fathers bones upon. We Have property In Horses, cattle, carriages, & articles of furniture, but we are landless and Homeless, from the Homes we Have lived In In the past we can only do one of three things Step Into the public road or the sea or remain on them working as In former time and subject to thire will as then. We can not resist It In any way without being driven out Homeless upon the road.

You will see this Is not the condition of really freemen

You ask us to forgive the land owners of our Island, You only lost your right arm. In war and might forgive them. The man who tied me to a tree & gave me 39 lashes & who stripped and flogged my mother & my sister & who will not let me stay In His empty Hut except I will do His planting & be Satisfied with His price & who combines with others to keep away land from me well knowing I would not Have any thing to do with Him If I Had land of my own.–that man, I cannot well forgive. Does It look as If He Has forgiven me, seeing How He tries to keep me In a

condition of Helplessness

General, we cannot remain Here In such condition and If the government permits them to come back we ask It to Help us to reach land where we shall not be slaves nor compelled to work for those who would treat us as such

we Have not been treacherous, we Have not for selfish motives allied to us those who suffered like us from a common enemy & then Haveing gained our purpose left our allies In thier Hands There Is no rights secured to us there Is no law likely to be made which our Hands can reach. The state will make laws that we shall not be able to Hold land even If we pay for It Landless, Homeless. Voteless. we can only pray to god & Hope for His Help, your Infuence & assistance With consideration of esteem your Obt Servts
In behalf of the people

Henry Bram

Committe Ishmael Moultrie

yates Sampson

Charleston. S.C. Oct 22, 1865.

Messrs. I have just received your letter. You are right in wanting homesteads and will surely be defended in the possession of every one which you shall purchase or have already purchased. The Government does not wish to befriend its enemies and injure its friends, but considers a forgiven man in the light of a citizen restored to rights of property excepting as to slaves. The Supervisory Board must not permit what you fear. The old master would be very foolish to try a system of oppression as it would ruin them forever now that you are free. If the planters combine as you think, they will soon be able to get no labor. Their whipping post of which you complain is abolished forever. The duty of forgiveness is plain and simple. Forgive as we hope to be forgiven of Him who governs all things.

Congress must meet before any public lands can be had and before I can buy any for you. I will ask for your rights and try to obtain them. A contract may be by a lease as well as for wages, So that I do not think the Planters will object to leasing you land. Some can lease, some can buy and some can work for wages. I advise the sending to you of Northern men for Agents of the owners where true men can be found.

I think the people had better enter into contracts, leasing or for wages or purchase when possible for next year. If it dont work well something else may be tried afterwards. Send your petition to Congress, if you wish, and I will see that it is not passed by without proper attention. The President himself will urge something in your behalf. Very Truly Yours

O. O. Howard

Chicago Citations

Bibliography entry:

Bram, Henry, et al. Letter to O. O. Howard, [October 20 or 21, 1865], B-53 1865, Letters Received, ser. 15; and O. O. Howard to the Committee of the Colored People of Edisto Island, October 22, 1865, vol. 64, 415–16, Letters Sent, ser. 2. Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Henry Bram et al. to O. O. Howard, [October 20 or 21, 1865], RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Edisto%20petitions.htm.

Shortened citation:

Bram et al. to Howard, October 1865.

PRIMARY SOURCE P15.15

Black Codes of Mississippi (excerpts)

Mississippi Legislature · November 1865

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	Laws designed to bind Black labor show what Congressional Reconstruction set out to overturn.
TREATMENT	Public-domain text, selected sections

Historical Context

Under President Johnson's lenient plan, white southerners elected new legislatures in 1865. Mississippi's was the first to pass a set of "Black Codes" defining the status of freedpeople.

The laws allowed freedpeople to own property and marry, but required them to sign annual labor contracts, made those who left before the contract ended subject to arrest, bound orphaned children as apprentices to white employers, and fined Black people found without work as vagrants.

Editorial note: The text follows the Teaching American History transcription. The plan's second listing of these laws, an American Yawp excerpt, is printed here as one entry.

Document Text

An Act to Confer Civil Rights on Freedmen, and for Other Purposes

Section 1. Be it enacted by the Legislature of the State of Mississippi, That all freedmen, free Negroes, and mulattoes may sue and be sued, . . . may acquire personal property . . . and may dispose of the same in the same manner and to the same extent that white persons may: [but no] freedman, free Negro, or mulatto [shall] rent or lease any lands or tenements, except in incorporated towns or cities, in which places the corporate authorities shall control the same.

Sec 2. Be it further enacted, That all freedmen, free Negroes, and mulattoes may intermarry with each other in the same manner and under the same regulations that are provided by law for white persons . . . .

Sec 3. Be it further enacted, That all freedmen, free Negroes, and mulattoes who do now and have heretofore lived and cohabited together as husband and wife shall be taken and held in law as legally married, and the issue shall be taken and held as legitimate for all purposes. That it shall not be lawful for any freedman, free Negro, or mulatto to intermarry with any white person; nor for any white person to intermarry with any freedman, free Negro, or mulatto; and any person who shall so intermarry shall be deemed guilty of felony and, on conviction thereof, shall be confined in the state penitentiary for life; and those shall be deemed freedmen, free Negroes, and mulattoes who are of pure Negro blood; and those descended from a Negro to the third generation inclusive, though one ancestor of each generation may have been a white person.

Sec 4. Be it further enacted, That in addition to cases in which freedmen, free Negroes, or mulattoes are now by law competent witnesses, freedmen, free Negroes, and mulattoes shall be competent in civil cases when a party or parties to the suit . . . also in cases where a white person or persons is or are the opposing parties [and] in all criminal prosecutions where the crime charged is alleged to have been committed by a white person upon or against the person or property of a freedman, free Negro, or mulatto . . . .

Sec 5. Be it further enacted, That Every freedman, free Negro, and mulatto shall . . . have a lawful home or employment, and shall have a written evidence thereof, as follows, to wit: if living in any incorporated city, town, or village, a license from the mayor thereof; and if living outside of any incorporated city, town, or village, from the

member of the board of police of his beat,[1] authorizing him or her to do irregular and job work, or a written contract, as provided in Section 6 of this act, which licenses may be revoked for cause, at any time, by the authority granting the same.

Sec 6. Be it further enacted, That All contracts for labor made with freedmen, free Negroes, and mulattoes for a longer period than one month shall be in writing and in duplicate, attested and read to said freedman, free Negro, or mulatto by a beat, city, or county officer, or two disinterested white persons of the county in which the labor is to be performed, of which each party shall have one; . . . and if the laborer shall quit the service of the employer before expiration of his term of service without good cause, he shall forfeit his wages for that year, up to the time of quitting.

Sec 7. Be it further enacted, That every civil officer shall, and every person may, arrest and carry back to his or her legal employer any freedman, free Negro, or mulatto who shall have quit the service of his or her employer before the expiration of his or her term of service without good cause, and said officer and person shall be entitled to receive for arresting and carrying back every deserting employee aforesaid the sum of five dollars . . . and the same shall be paid by the employer, and held as a setoff for so much against the wages of said deserting employee . . . .

. . .

Sec 9. Be if further enacted, That if any person shall persuade or attempt to persuade, entice, or cause any freedman, free Negro, or mulatto to desert from the legal employment of any person before the expiration of his or her term of service . . . he or she shall be guilty of a misdemeanor . . . .

An Act to Regulate the Relation of Master and Apprentice, as relates to Freedmen, Free Negroes, and Mulattoes

Section 1. Be it enacted by the Legislature of the State of Mississippi, That it shall be the duty of all sheriffs, justices of the peace, and other civil officers of the several counties in this state to report to the Probate courts of their respective counties semiannually, at the January and July terms of said courts, all freedmen, free Negroes, and mulattoes under the age of eighteen within their respective counties, beats, or districts who are orphans, or whose parent or parents have not the means, or who refuse to provide for and support said minors; and thereupon it shall be the duty of said Probate Court to order the clerk of said court to apprentice said minors to some competent and suitable person, on such terms as the court may direct, having a particular care to the interest of said minors: Provided, that the former owner of said minors shall have the preference when, in the opinion of the court, he or she shall be a suitable person for that purpose.

. . .

Sec 3. Be it further enacted, That in the management and control of said apprentices, said master or mistress shall have power to inflict such moderate corporeal chastisement as a father or guardian is allowed to inflict on his or her child or ward at common law: Provided that in no case shall cruel or inhuman punishment be inflicted.

Sec 4. Be it further enacted, That if any apprentice shall leave the employment of his or her master or mistress without his or her consent, said master or mistress may pursue and recapture said apprentice and bring him or her before any justice of the peace of the county, whose duty it shall be to remand said apprentice to the service of his or her master or mistress . . . .

[. . .]

Chicago Citations

Bibliography entry:

Mississippi Legislature. *Laws of the State of Mississippi, Passed at a Regular Session of the Mississippi Legislature, Held in the City of Jackson, October, November and December, 1865*, 82–93, 165–67. Jackson: J. J. Shannon, 1866. Teaching American History.

Footnote citation:

Laws of the State of Mississippi (Jackson: J. J. Shannon, 1866), [page], via Teaching American History, https://teachingamericanhistory.org/document/black-codes-of-mississippi-2/.

Shortened citation:

Mississippi Black Codes.

PRIMARY SOURCE P15.16

Georgia Freedmen to the Freedmen's Bureau Subassistant Commissioner at Savannah

Toney Golden, Gabriel Andrews, Toney Axon, and others · Medway Church, Liberty County, Georgia, November 28, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople reject terms like slavery and seek schools and churches of their own.
TREATMENT	Full public-domain text

Historical Context

Liberty County, on the Georgia coast, had a large Black population with strong church traditions. After emancipation, freedpeople there bargained hard with returning planters.

Writing from Medway Church, delegates of the county's freedpeople told the Bureau that the terms offered would amount to "going Backe into the State of Slavery." They also lamented that their schools had closed and that they lacked places of worship.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Medway church Liberty county [Ga.] Nov 28th 1865

Dear Sir We the People of Liberty county & State of georgia Set Free from the oppression of Slavery, Desire through our Delegates, Messrs. Toney. Golden; Gabriel. Andrews; & Toney Axon; To appeal to you asking aid and counsel in this our Distressed condition; We Learned, from the Address of general Howard that we were to Return to the Plantation and work for our Former owners at a Reasonable contract as Freemen; and find. a Home and Labour, Provided we can agree But these owners of Plantation out here Says they only will Hire or Take the Prime Hands and our old and Infirm Mothers, and Farthers and our children will not Be Provided for; and this you will See Sir Put us in confusion; yet there are some that have Become free are opn Plantations, that Do not know of their Freedom and we Dare not Mention that they are free: We cannot Labour for the Land owners and know that our Infirm and children are Not Provided for; and not Allowed to educate or Learn More than they were permitted in Slavery; our School that was established in the county are Broken up, and we are Destitute of Religous Worship, having No Home or Place to Live when we Leave the Plantations Returned to our Former owners; We are A Working class of People and We are Willing and are Desirous to worke for A Fair compensation; But to return to work opon the Terms, that are at Present offered to us, Would Be we Think going Backe into the State of Slavery that we have Just to some extent Been Delivered from:

We Appeal to you Sir and through you to the Rulers of the country in our Distressed state, and Declare that we feel, unsettled as Sheep Without A Shepard, and Beg you Advice and Assistance, and Believe Sir that this is an Earnest Appeal from A Poor But Loyal Earnest People

Most Respectfully Submitted for your consideration–In Behalf of the People of Liberty county By

William, Toney Golden

Gabriel Andrews

Toney Axon

Chicago Citations

Bibliography entry:

Golden, Toney, et al. Letter to Col. H. F. Sickles, November 28, 1865. Unregistered Letters Received, ser. 1013, Savannah, Ga., Subassistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Toney Golden et al. to H. F. Sickles, November 28, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Golden.htm.

Shortened citation:

Golden et al. to Sickles, November 28, 1865.

PRIMARY SOURCE P15.17

Mississippi Freedpeople to the Governor of Mississippi

Freedpeople of Claiborne County · Port Gibson, Mississippi, December 3, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople describe in their own words how the Black Codes bound them to employers.
TREATMENT	Full public-domain text

Historical Context

Mississippi's Black Codes, passed in November 1865, barred freedpeople from renting or leasing land outside towns, required annual labor contracts, and punished those without work as vagrants.

Freedpeople in Port Gibson petitioned Governor Benjamin G. Humphreys, a former Confederate general, asking whether the state truly meant to abolish slavery and describing how the new laws would bind them to their former owners.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

[Port Gibson, Miss.] Dec 3th 1865

To the govener of Mississippi We the Colored people of Mississippi petition To your honor for jestice Mississippi has abolished–Slavery does She mean it or is it a pollicy for The present we fear from the late acts of the Legeslature that she will not treate us as free. we are not To rent or lease lands not even a tenement but we can buye lands the Legislature is well a ware that not one of us out of a thousand is not able to buye a quarter of an acre of land, and if they will allow us to rent in towns we hav to get a certificate from the Mayor. All freedmen Negroes and molattoes is specifyed in the acts why [not?] colord vagrants that are a n[uisance?] and will not worke for a living be compelde by a law to worke in fields Set a part for that purpoes[?]3 our faults are dayley published by Editors, not a statement will you ever see in our favour thair is Shureley Some a mong us that is honest, trutheful, and indestrious, and Some of us are working and making our superiours comferttable who finde so much fault of our freedom if evry one of us [Colord] people were removed from the state of Mississippi our superiors woulde soon finde out who were the supporterers we the laberors hav inriched them and it is as much imposible for them to live with out us as it is for we to be removed from them. your honor is it just that wee all shoulde come under the stringent Laws the legeslature has past. we are to holde no contract it is left intireley to our imployer he [holds?] the writing and one of his white [neighbo]rs holde the duplicate and if we shoulde leave from eny cruel treatement we are to be caught and brought by force to our employer and the niger-runner is to hav a fee of five dollars or ten cents a mill to be paide out of our wages. we are to well acquainted with the yelping of bloodhounds and the tareing of our fellow servents To pisces when we were slaves and now we are free we donot want to be hunted by negro-runners and thair hounds unless we are guilty of a crimnal crime we are willing to worke for our former masters or eny Stranger that will treate us well and pay us what we earn all we ask is justice and to be treated like humane beings the men who has made these laws no meny of us has stood by our owners in thair troubles and thair is some of us who woulde die by them but the worde freedom is sweet to us all and greate will be the day when we [are?] assured of our freedom. thair was kinde just masters in mississippi and such masters will make good and honest Employers but such is not the majority and those who forced good masters to do means acts are

now the ones to keep contentions if a good master new that one of us was not guilty of a charge that was brought against us he dare not say so for he woulde insult the majoirity and be put down as a negro-spoiler and of cours to save him self we had to take th punishment what ever it might be and we think if just men were the majority in the legeslature we woulde get just laws knowing we woulde fall short of what was granted us, we hope your honor will not lay us a side but take us in Concideration. we pray you do not believe the falshood our enimies has got up for some purpose that we intend an insurrection. we hav [no] [s]uch thought now we are free what [would?] we rise for we no that we hav good white friends and we depend on them by the help of god to see us righted and we do not want our rights by murdering we owe to much To meny of our white friends that has shown us mercy in bygon dayes To harm thair wicked neighbours Some of us wish Mr Jeff Davis to be Seet at liberty for we no worse masters Than he was altho he tried hard to keep us all slaves we forgive him Some of us well know of meny kindenes he shown his slaves on his plantation to your honor govner of mississippi

we the Colorde people

Chicago Citations

Bibliography entry:

Freedpeople of Claiborne County, Mississippi. Petition to the Governor of Mississippi, December 3, 1865. Filed as F-41 1865, Registered Letters Received, ser. 2052, Mississippi Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Freedpeople of Mississippi to the Governor of Mississippi, December 3, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/we%20the%20Colorde%20people.html.

Shortened citation:

Mississippi freedpeople to the governor, December 3, 1865.

PRIMARY SOURCE P15.18

South Carolina Freedman to the South Carolina Freedmen's Bureau Assistant Commissioner

Shadrack Seabrook to Rufus Saxton · Wadmalaw Island, South Carolina, December 8, 1865

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	Sea Island freedpeople refuse to return to work for their former owners.
TREATMENT	Full public-domain text

Historical Context

In late 1865 former owners returned to the Sea Islands to reclaim plantations where freedpeople had been farming since the war.

Shadrack Seabrook wrote to General Saxton that former owners had come to Wadmalaw Island claiming permission to visit, and that the people of the island were determined not to work for their former owners.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling; the editors' footnote numbers have been removed.

Document Text

Wadmelaw Island SC Dec 8th 1865

Deare sir Wrote You these few line in refernce to this Island sir on Friday last Jim Joe & Ben Whaly was Reseave on this Island by Mr Towls and says that tha have tranpatation From You to visit the Island and wrote to lett You Know becase I Treat them verry hatch in deed and Mr towles insault me for them and after I Would Persue on them then Mr Towls say to me a gen that tha is right on the Island becase tha have Tranpatation from You to Come on the Island and after I would Persue on them mr Towls say to me agen that tha did not have now Pass but tha did not Come to see me tha Come to see Mr Evings and sir I wrote this to give You sertifaction if you did send them on the Island and if you Did not give then Privlege to Com do anseer so This is the Idea of the Peopels of the Island not to work For there Fermer owners but by the land of the President and if the Goverment Cant sell aus land and cant Conpell the Origanal owers to sell some of there lands do wish you to incorage the Goverment to take aus out the state aldo we would of Perfur living in south but Rather than live as slaves agen to leave the state we haven now Comittee on the Island to see Justas but the Comittees of Edisto Prommis to be here on Tharsdy to Point a Comittee Youre hone servant

Shadrack Seabrook

Chicago Citations

Bibliography entry:

Seabrook, Shadrack. Letter to Major General R. Saxton, December 8, 1865. Unregistered Letters Received, ser. 2923, South Carolina Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Shadrack Seabrook to Rufus Saxton, December 8, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Seabrook.html.

Shortened citation:

Seabrook to Saxton, December 8, 1865.

PRIMARY SOURCE P15.19

Proceedings of a Meeting of Virginia Freedpeople

Mass meeting of freedpeople, Middlesex County, Virginia · December 12, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople organize to resist employers' terms and appeal for federal protection.
TREATMENT	Full public-domain text

Historical Context

At the end of 1865, planters in Virginia's Tidewater pressed freedpeople to sign contracts binding them for the whole of the next year, and threatened to evict those who refused.

Freedpeople in Middlesex County met in a private house and drew up these proceedings. They described their lack of protection and their former masters' threats, and asked the Freedmen's Bureau for help.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Dec 12. 18.65 Middlesex Co. Va

at A Large and enthusastic mass meeti[ng] of Colod. People of this Co. Held in a privet House to tak in considerrathion what we thought best to do. we was with[out] Pertection. we was yet. a Press by our formor o pressors. no one to Show Justis after. wich Mr James. W. daniel Call the meeting to order. Mr. J. H. Laws chosen Secratary of meeting to tak. the preseedens of the meeting on this Night

we has serv this year we has close our Cropes the oners has conseel them in ther Proseathion has desid to turn us off with nothing also has desid if we will not Bound our selves to them by the year the ensuing year the will not let us stay on the lands.

We Resolved that we desid to foured the A. count of the meeting to the Judge of freedmen Baureau in the City of Washington to ask you most respectfull. honour to send us som protection to giv to us that witch is right and Just befor God and the citizen world

Resolv that we arr willing to liv on what ever reterms the united State call for we nomber over. 12 to 15 hundrd Populthion in this Co There is from. 7 to 8.00. are members of Church in Good Standard Good faith and order we do ask our frendes in the baurau to Send us. A. marshal to demand what is be longe to us. most spectfull you honore to Comply with our request Presen

this meeting was conductted by 5. respectfull members of the Church

Resoluthion Proved and A Dobt by this Body of People in this Sead Co. of Va. Sine on behalf of this meeting

James W. daniel chair man
J. H. Laws Secratary

Jacob dabny. James Bai[m?]ia [E]lle[x] man[m]

Also. 2 orther Countyes Essex Co. & Kingenqueen co the adjoining Co. to middle orthorrise me to inform our frendes in the Baurau of the Sufferment of them the is with out any Pertection expect a good meny of will be turnd

out of hose and homes as the winter is now Coald we has no one to look but God and our frends in the Baurau to help us in our Strouge

most respectfull you O Bedon Servent in thes Sead County of Vig the people of thes 2 co. inpowerd Mr J. H. Laws to hand in our Sufferement to the Judge of freedmen Baurau he was inpowerd Anny Peterson. Carter [petr] Hairy Brokenbeary of Essex Co

Chicago Citations

Bibliography entry:

Proceedings of a Mass Meeting of Freedpeople, Middlesex County, Virginia, December 12, 1865. Filed as L-76 1865, Letters Received, ser. 15, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Proceedings of a meeting of freedpeople, Middlesex County, Va., December 12, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Middlesex%20mtg.html.

Shortened citation:

Middlesex County meeting, December 12, 1865.

PRIMARY SOURCE P15.20

Black Residents of Washington, D.C., to the U.S. Congress

John F. Cook and other Black residents of the District of Columbia · December 1865

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.4 (What Built Black Freedom?)
WHY HERE	Black citizens demand the vote on the principle of consent of the governed.
TREATMENT	Full public-domain text

Historical Context

Congress governed the District of Columbia directly, so it could grant Black men the vote there without a constitutional amendment. In December 1865 about 2,500 Black residents signed this petition, led by John F. Cook, a teacher and minister's son.

The petitioners argued from the principle of government by consent of the governed and from Black men's service in the Union army. Congress granted Black male suffrage in the District over Johnson's veto in January 1867.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Washington, D.C. December 1865]

To The Honorable Senators and Members of the House of Representatives in Congress Assembled.

We, the Colored Citizens of the District of Columbia, do most respectfully memorialize your Honorable Bodies in our behalf to the following effect:

We would press upon your attention a principle universally admitted by all Americans, namely, that “Governments derive their just powers from the consent of the governed” The Colored American citizens of the District of Columbia are denied the benefits of this conceded principle, in being refused the right of suffrage in the District of Columbia, and therefore appeal to you for this franchise.

We respectfully submit to your Honorable Bodies, that a large portion of the Colored citizens of the District of Columbia are property holders; that they pay no inconsiderable amount of taxes; but are nevertheless as slaves to its distribution, unlike other tax-payers they see the proceeds of their labor taken and disposed of without a single voice.

We are intelligent enough to be industrious; to have accumlated property; to build, and sustain churches, and institutions of learning. We are and have been educating our children without the aid of any school-fund, and, until recently, have for many years been furnishing unjustly as we deemed, a portion of the means for the education of the white children of the District. We are intelligent enough to be amenable to the same laws, and punishable alike with others for the infractions of said laws. We sustain as fair a character in the Records of Crime and the statistics of Pauperism as any other class in the community, while unequal laws are continually barring our way, in the effort to reach and possess ourselves of the blessings attendant upon a life of industry, of self-denial, and of virtuous citizenship.

We also represent that out of a population of less than 15.000, we have contributed three full regiments, over 3.500 enlisted men, while the white citizens out of a population of upwards 60.000 sent only about 1.500 enlisted men for the support of the Union, the Constitution and the Laws. In all our Country's trials, our loyalty has never

been questioned–our patriotism is unbounded. At our country's call we volunteered with alacrity, and that without the incentives of high pay, bounty and promotion.

We cherish fond hopes and laudable desires, and have honorable aspirations in connection with the future of our country. Your Honorable Bodies have done much for us within the past three years, for which you have the Sincere, over-flowing gratitude of our whole people. You have given us a free District, and a free Country. Still without the political rights enjoyed by every other man, the colored men of the District of Columbia are but nominally free.

Experience teaches that all reforms have their opponents. The same experience also teaches that apprehensions of evil arising from reforms founded in justice, are but seldom if ever realized. We would respectfully offer as an illustration the just act of the thirty seventh Congress by which Slavery was abolished in the District of Columbia. The opponents of that measure predicted most dire results to this community–which was to be the “White man's Hell,” and ruin to the party whose liberation was proposed. There has been no realization of this prediction of evil, but, on the contrary, the happy results of this just measure are now manifest and conceded by all. As Freemen,–far from being a terror and a curse to the country, they are a terror to its enemies only. Experience likewise teaches that that debasement is most “humane which is most complete. The possession of only a partial liberty, makes us the more keenly sensible to the injustice of withholding those other rights which belong to a perfect manhood.

Without the right of suffrage, we are without protection, and liable to Combinations of outrage. The petty officers of the law respecting the source of power, will naturally defer to the one having a vote; and the partiality shown in this respect operates greatly to the disadvantage of the colored citizen.

These principles and Considerations are the basis upon which we predicate our claim for suffrage, and civil equality before the law, and for which we will ever pray. Respectfully submitted.

[2,500 signatures]

Chicago Citations

Bibliography entry:

Cook, John F., et al. Petition to the Senate and House of Representatives, [December 1865]. 39A-H4, Committee on the District of Columbia, Petitions and Memorials, ser. 582, 39th Cong., U.S. Senate, Record Group 46, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

John F. Cook et al. to Congress, [December 1865], RG 46, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Cook%20et%20al.html.

Shortened citation:

Cook et al. to Congress, December 1865.

PRIMARY SOURCE P15.21

Notice to Freedmen

Capt. L. Horrigan, Assistant Superintendent of Freedmen · Shreveport, Louisiana, December 16, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau broadside pushes freedpeople into annual contracts and dismisses their hope for land.
TREATMENT	Public-domain image

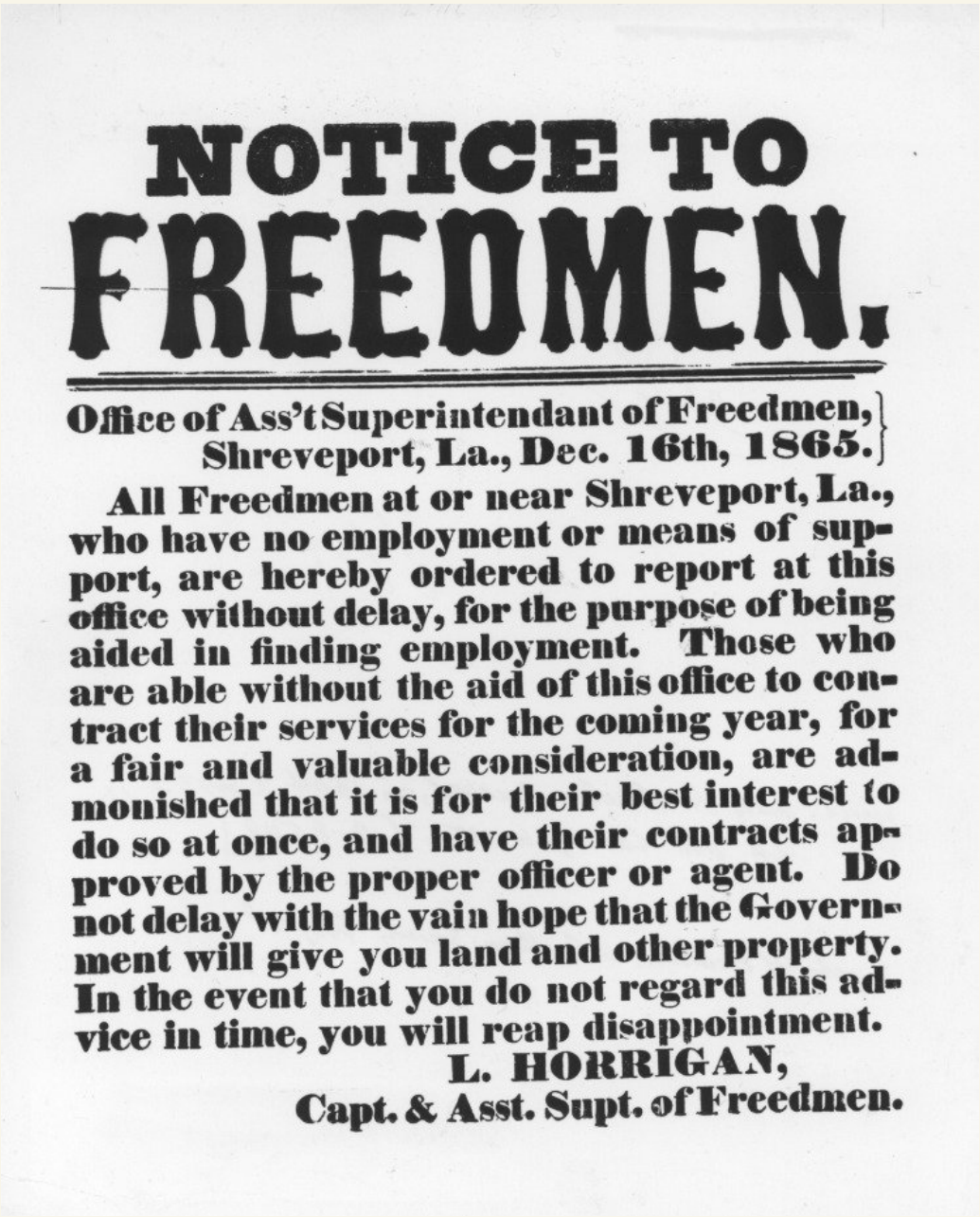
Historical Context

At the end of 1865 the Freedmen's Bureau pressed freedpeople across the South to sign labor contracts for the coming year.

This broadside ordered all unemployed freedpeople near Shreveport to report to the Bureau office for help finding work, urged them to contract, and warned them not to wait in "the vain hope that the Government will give you land."

Editorial note: Image from the copy supplied by the instructor (the original is in the National Archives, reproduced by the Freedmen and Southern Society Project).

Primary Source Image



NOTICE TO
FREEDMEN.

Office of Ass't Superintendant of Freedmen,
Shreveport, La., Dec. 16th, 1865.

All Freedmen at or near Shreveport, La., who have no employment or means of support, are hereby ordered to report at this office without delay, for the purpose of being aided in finding employment. Those who are able without the aid of this office to contract their services for the coming year, for a fair and valuable consideration, are admonished that it is for their best interest to do so at once, and have their contracts approved by the proper officer or agent. Do not delay with the vain hope that the Government will give you land and other property. In the event that you do not regard this advice in time, you will reap disappointment.

L. HORRIGAN,
Capt. & Asst. Supt. of Freedmen.

"Notice to Freedmen," Shreveport, Louisiana, December 16, 1865.

Chicago Citations

Bibliography entry:

Horrigan, L. "Notice to Freedmen." Broadside. Shreveport, LA, December 16, 1865. Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

L. Horrigan, "Notice to Freedmen," broadside, Shreveport, December 16, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Horrigan.html.

Shortened citation:

Horrigan, "Notice to Freedmen."

PRIMARY SOURCE P15.22

Mississippi Freedman to His Wife in Virginia

Moses Scott · Aberdeen, Mississippi, December 17, 1865

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman works to reunite his family and describes an early share arrangement.
TREATMENT	Full public-domain text

Historical Context

The domestic slave trade had separated hundreds of thousands of families, sending enslaved people from Virginia and Maryland to the cotton states. After emancipation, freedpeople searched for lost relatives.

Moses Scott, sold away from Virginia, wrote to his wife there that he had arranged to work land, with tools and livestock, for half the crop, and urged her to come to him. The letter survives because she later sought the Bureau's help in joining him.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Aberdeen, Miss., December 17, 1865.

My Dear Wife: Yours is just received. I am glad to hear from you again. I can not send you any money now, because it is too unsafe, unless I can see some one going there. You had better try and make your arrangements to come out here to me. I think I can do well here. My master has good land. He has agreed to let us go and work it. He provides all the stock, farming utensils and land, and gives us half we can make. I am not able to go there now. so come out and bring all your children, and tell Neverson and William to Come. We can all do better here than we can there. Give my love to cousin Randall Quarles, and tell him his brother Wash is still with Master. We have plenty to eat here, good Clothes, and have found work generally. Remember me to father, my brothers, and all my friends. Write me again soon. Your affectionate husband,

Moses Scott.

Chicago Citations

Bibliography entry:

Scott, Moses. Letter to his wife, December 17, 1865. Enclosed in William Tidball to W. R. Morse, August 24, 1866, Letters Received, ser. 3922, Charlottesville, Va., Assistant Superintendent, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Moses Scott to his wife, December 17, 1865, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Scott.html.

Shortened citation:

Scott to his wife, December 17, 1865.

PRIMARY SOURCE P15.23

Report on the Condition of the South (excerpts)

Carl Schurz · December 19, 1865

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	A firsthand report warns that white southerners were trying to restore slavery in a new form.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In the summer of 1865 President Johnson sent Carl Schurz on a tour of the southern states to report on conditions. Schurz traveled for three months through South Carolina, Georgia, Alabama, Mississippi, and Louisiana.

His report, which Johnson tried to ignore, described white southerners' refusal to accept free Black labor. It quoted their belief that "you cannot make the negro work without physical compulsion," and warned that new state laws were restoring slavery in all but name. Congress printed it as a Senate document.

Editorial note: The text follows the Teaching American History transcription. The plan's separate listing of this report is printed here as one entry.

Document Text

[. . .]

What Has Been Accomplished

While the generosity and toleration shown by the government to the people lately in rebellion have not met with a corresponding generosity shown by those people to the Government’s friends, it has brought forth some results which, if properly developed, will become of value. It has facilitated the re-establishment of the forms of civil government, and led many of those who had been active in the rebellion to take part in the act of bringing back the states to their constitutional relations . . . .

But as to the moral value of these results, we must not indulge in any delusions. There are two principal points to which I beg to call your attention. In the first place, the rapid return to power and influence of so many of those who but recently were engaged in a bitter war against the Union, has had one effect which was certainly not originally contemplated by the Government. Treason does, under existing circumstances, not appear odious in the South. The people are not impressed with any sense of its criminality. And, secondly, there is, as yet among the Southern people an utter absence of national feeling. I made it a business, while in the South, to watch the symptoms of “returning loyalty” as they appeared not only in private conversation, but in the public press and in the speeches delivered and the resolutions passed at Union meetings. Hardly ever was there an expression of hearty attachment to the great republic, or an appeal to the impulses of patriotism; but whenever submission to the National authority was declared and advocated, it was almost uniformly placed upon two principal grounds: That, under present circumstances, the Southern people could “do no better”; and then that submission was the only means by which they could rid themselves of the Federal soldiers and obtain once more control of their own affairs. . . .

The re-organization of civil government is relieving the military, to a great extent, of its police duties and judicial functions; but at the time I left the South it was still very far from showing a satisfactory efficiency in the maintenance of order and security. In many districts robbing and plundering were going on with perfect impunity;

the roads were infested by bands of highwaymen; numerous assaults occurred and several stage lines were considered unsafe. . . .

The Negro Question – First Aspects

The principal cause of that want of national spirit which has existed in the South so long and at last gave birth to the rebellion, was, that the Southern people cherished, cultivated, idolized their peculiar interests and institutions in preference to those which they had in common with the rest of the American people. Hence the importance of the Negro question as an integral part of the question of union in general, and the question of reconstruction in particular.

. . .

Opinions of the Whites

. . . [A] large majority of the Southern men with whom I came into contact announced their opinions with so positive an assurance as to produce the impression that their minds where fully made up. In at least nineteen cases of twenty the reply I received to my inquiry about their views on the new system was uniformly this: "You cannot make the Negro work without physical compulsion." I heard this hundreds of times, heard it wherever I went, heard it in nearly the same words from so many different persons, that at last I came to the conclusion that this is the prevailing sentiment among the Southern people. . . .

Effects of Such Opinions, and General Treatment of the Negro

A belief, conviction, or prejudice, or whatever you may call it, so widely spread and apparently so deeply rooted as this, that the Negro will not work without physical compulsion, is certainly calculated to have a very serious influence upon the conduct of the people entertaining it. It naturally produced a desire to preserve slavery in its original form as much and as long as possible – and you may, perhaps, remember the admission made by one of the provisional governors, over two months after the close of the war, that the people of his State still indulged in a lingering hope slavery might yet be preserved – or to introduce into the new system that element of physical compulsion which would make the Negro work. . . . In many instances Negroes who walked away from the plantations, or were found upon the roads, were shot or otherwise severely punished, which was calculated to produce the impression among those remaining with their masters that an attempt to escape from slavery would result in certain destruction. . . .

Education of the Freedmen

. . . As popular education is the true ground upon which the efficiency and the successes of free-labor society grow, no man who rejects the former can be accounted a consistent friend of the latter. It is also evident that the education of the Negro, to become general and effective after the full restoration of local government in the South, must be protected and promoted as an integral part of the educational systems of the States.

. . . [T]he popular prejudice is almost as bitterly set against the Negro's having the advantage of education as it was when the negro was a slave. There may be an improvement in that respect, but it would prove only how universal the prejudice was in former days. Hundreds of times I heard the old assertion repeated, that "learning will spoil the nigger for work," and that "Negro education will be the ruin of the South." Another most singular notion still holds a potent sway over the minds of the masses – it is, that the elevation of the blacks will be the degradation of the whites. . . .

The consequence of the prejudice prevailing in the Southern States is that colored schools can be established and carried on with safety only under the protection of our military forces, and that where the latter are withdrawn the former have to go with them. . . .

The Freedmen

The first Southern man with whom I came into contact after my arrival at Charleston designated the general conduct of the emancipated slaves as surprisingly good. Some went even so far as to call it admirable. . . . A great many colored people while in slavery had undoubtedly suffered much hardship and submitted to great wrongs, partly inseparably connected with the condition of servitude, and partly aggravated by the individual willfulness and cruelty of their masters and over seers. They were suddenly set free; and not only that: their masters, but a short time ago almost omnipotent on their domains, found themselves, after their defeat in the war, all at once face to face with their former, slaves as a conquered and powerless class. Never was the temptation to indulge in acts of vengeance for wrongs suffered more strongly presented than to the colored people of the South; but no instance of such individual revenge was then on record, nor have I since heard of any case of violence that could be traced to such motives. . . . This was the first impression I received after my arrival in the South, and I received it from the mouths of late slaveholders.

[. . .]

Chicago Citations

Bibliography entry:

Schurz, Carl. *Report on the Condition of the South*. S. Exec. Doc. No. 2, 39th Cong., 1st Sess. Washington, DC: Government Printing Office, 1865. Teaching American History.

Footnote citation:

Carl Schurz, *Report on the Condition of the South*, S. Exec. Doc. No. 2, 39th Cong., 1st Sess. (1865), via Teaching American History, https://teachingamericanhistory.org/document/report-on-the-condition-of-the-south/.

Shortened citation:

Schurz, *Report on the Condition of the South*.

PRIMARY SOURCE P15.24

Charles Sumner, Thaddeus Stevens, and Andrew Johnson

Photographs by Mathew B. Brady and others · 1860s–1870s

TOC FIT	Chapter 15 · Essay prompt 15.2 (How Radical Was Reconstruction?)
WHY HERE	Portraits of the Radical leaders and the president they fought over Reconstruction.
TREATMENT	Public-domain images

Historical Context

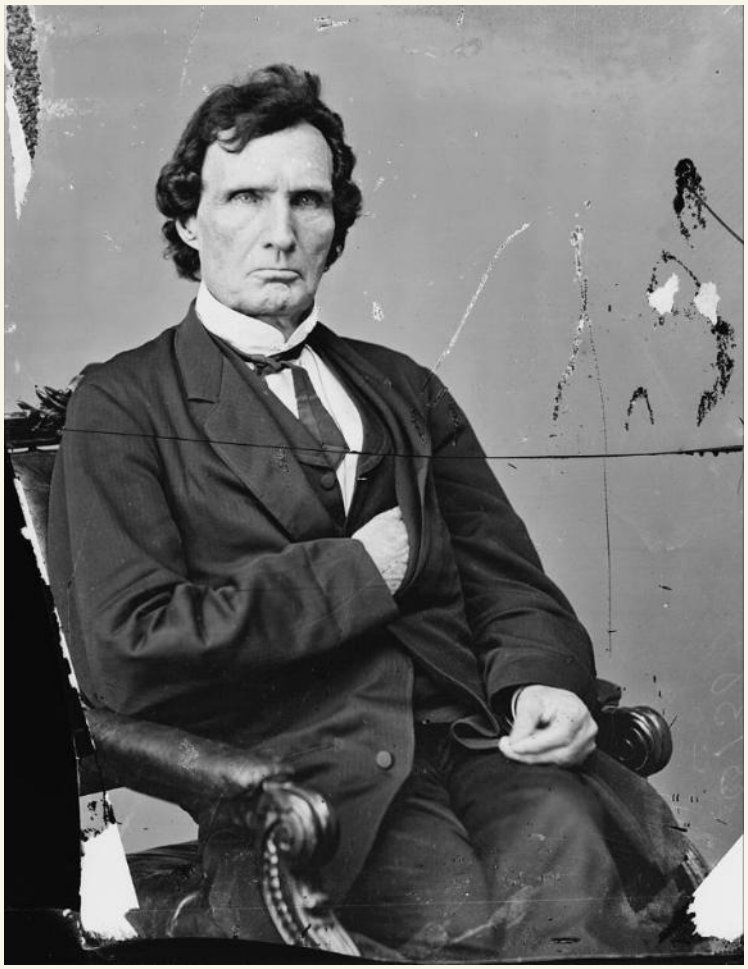
Senator Charles Sumner of Massachusetts and Representative Thaddeus Stevens of Pennsylvania led the Radical Republicans, who wanted equal rights and Black suffrage imposed on the defeated South.

President Andrew Johnson of Tennessee, a Unionist Democrat who had been Lincoln's running mate in 1864, opposed them. His lenient policy toward former Confederates and his vetoes drove Congress to take control of Reconstruction and, in 1868, to impeach him.

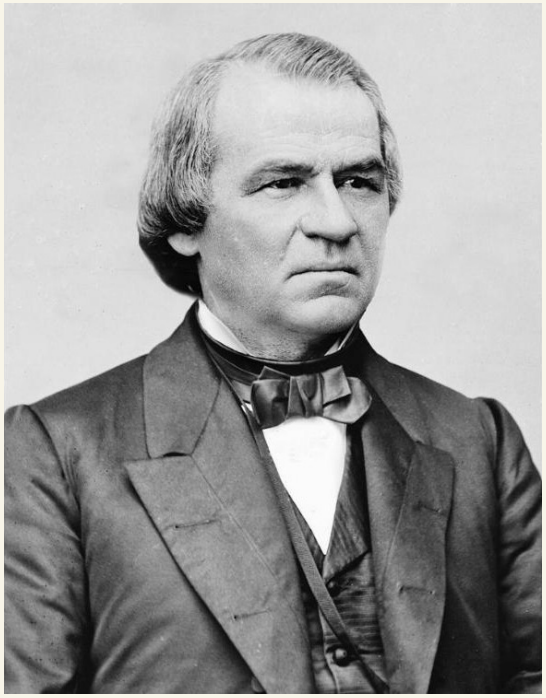
Editorial note: Images reproduced from the National Portrait Gallery and the Library of Congress (via Wikimedia Commons).

Primary Source Image

Charles Sumner, photograph by Mathew B. Brady, 1865. National Portrait Gallery.



Thaddeus Stevens, Brady-Handy studio. Library of Congress.



Andrew Johnson. Library of Congress.

Chicago Citations

Bibliography entry:

Brady, Mathew B. *Charles Sumner*. Photograph, 1865. National Portrait Gallery, Smithsonian Institution, NPG.78.304.

Brady-Handy studio. *Thaddeus Stevens*. Photograph, 1860s. Library of Congress.

Andrew Johnson. Photograph, c. 1870–1880. Library of Congress.

Footnote citation:

Mathew B. Brady, *Charles Sumner*, photograph, 1865, National Portrait Gallery; Brady-Handy studio, *Thaddeus Stevens*, photograph, Library of Congress; *Andrew Johnson*, photograph, c. 1870–80, Library of Congress.

Shortened citation:

Portraits of Sumner, Stevens, and Johnson.

PRIMARY SOURCE P15.25

South Carolina Freedmen to the Freedmen's Bureau Commissioner

J. B. Carr and other freedmen of Georgetown, South Carolina · January 17, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedmen reject contracts that restore slavery's labor discipline.
TREATMENT	Full public-domain text

Historical Context

Planters in the rice district around Georgetown, South Carolina, wanted to restore the gang labor of slavery, with drivers and overseers directing the work.

A group of Georgetown freedmen wrote to General Howard on behalf of their neighbors. They said planters were offering contracts that required drivers and overseers and barred freedpeople from raising their own crops and livestock, and were evicting those who refused.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Georgetown [S.C.] Jen 17 1866

Hond and Respec Sir us A fue Names of the Colard Citason of Georgetown So Ca have taken upon our Self to make inquirey of you for those roundabout us who are not Able to do it for them Self.

that is to give you information as redards to the present state of arfairs in this D.C. [District]

Dear Sir thare is A gratedel of Sufferings in this DC which makes us all morn and wonder what will be Sir we See it published in the news papers that the freed in S.C wonte work thay wont make contrack with thare former oners.

Hon Sir it is Not so in this DC.

Gen the Boot is on the other leg it do Appeare that the heave former oners with one acord detarman not to let the freedman work. thare have been Severl contrack oferd in this DC to intollarable to comply worst than Slavery, tharefore the majorty of the freedman Refuse to Sine the Contrack neither wod the manority go forward,

thay then Solected the Coldes Night to order them of their places, some where order to leive before the son rose a nother day, men women & children, old & indigent had to take the woods,

Oh sir tell us if that is for the wonte of wisdom on the part of the freedman or if its Justis on the part of the former owner,

some have been order away without their part of crop that thay made last year,

thare former owners say they must have oversere & driveres which brings horrour to the minds of the freedman,

Gen the people wont to work they are willing to work they are redy to work & will work, as sure as a liveing offerd is made, to them their are very much trubeld that the season is flying away and no provagon is being made in this D,C,

some have offerd contrack that the freedman must be subjet to eny law that thay make & thay will give forty bushels to them out of one hunderd and take sixty bushels themselves, they must not leeve their places without permishon, at 12 oc'lock in the d they will be alowd one hour for breckfast they must not have poltry of eny kind or beast or anamal of eny kind, they must not plant a seed of eny kind fore themselves the fenceing of they Houses must be taken away,

some say the old indegent & young must leive if a man is not able to work and his wife is he must leive if the wife is not able she must leive

Gen we know these things to be so therefore we have concluded to inquire of you about the matter if such thing are rite if such things are aloude if such things will be a loude, and fore the reporte to continure to sprede through the whorld that the freedman wonte woork,

Gen Your humble Servant will consider it a great favor if you will give us some light upon the subject, With hon & much respect we remain your humble Servants

J. B. Carr D. J. Wilson

Edwd. L. Rainey S. Johns[on]

E. C. Rainey. Parris Dennison

A. J. Jackson T. D. Paulley

Samuel Johnson J. H. Sheckelfod–

[R]. C. Wilson and others

if it Should plese the to Reply dyrect to the above name J. B. Carr

Chicago Citations

Bibliography entry:

Carr, J. B., et al. Letter to Major General O. O. Howard, January 17, 1866. Filed as S-54 1866, Letters Received, ser. 15, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

J. B. Carr et al. to O. O. Howard, January 17, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Carr%20et%20al.html.

Shortened citation:

Carr et al. to Howard, January 17, 1866.

PRIMARY SOURCE P15.26

Freedmen's Bureau Acting Subassistant Commissioner for Johns, James, Wadmalaw, and Morris Islands to the South Carolina Headquarters

Lt. Erastus W. Everson · Charleston, January 30, 1866

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	A Bureau officer describes the bargaining from which sharecropping emerged.
TREATMENT	Full public-domain text

Historical Context

In early 1866 the Freedmen's Bureau tried to get freedpeople on the sea islands south of Charleston to sign contracts with returning planters.

Lieutenant Erastus W. Everson reported that freedpeople were refusing to contract, staying on the land, offering planters a third of the crop as rent, and rejecting work in supervised gangs.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Charleston S.C. January 30th 1866

Major, I have the honor to report, that in the lack of other transportation, I borrowed a row-boat, and have visited the Islands upon which I was assigned to duty, and have found upon as minute an inspection as I was able to make, with my limited means of travelling, matters in such a state, that I think it my duty to make a detailed report, from the memoranda made, as I came upon them from place to place.

I have found generally, that the Freedmen upon James, Johns, and Wadmalow Islands, are not willing to contract, under any circumstances.

They appear to be willing to work, but are decisive in their expressions, to work for no one but themselves: a few have told me that they would contract with ‘northern’ men, but that they would starve before they would contract with others. They use threatening language, when the former residents of the Islands are spoken of in any manner, and say openly, that none of them, will be permitted to live upon the Islands. They are not willing to be reasoned with on this subject.

A greater portion of the Plantations are now occupied by Freedmen, and many have commenced to work upon the land, getting ready to make a crop–

On those I have visited, with a few exceptions, I find no uniformity, or method; they have selected, here and there, parcels of land, just as the ground has suited their purposes: A few have united, & are cultivating lots and small parcels contiguous–

In most cases, the Freed people, who now occupy these plantations, are not those who were formerly in bondage upon them, and I found discontent, and quarrelling, because the original workers of these places, upon their return, find that they are now being occupied by other Freedmen who have, come from up the Country: and I

would here say. that the most of the people who do come from the upper Counties, are those who are unwilling to make contracts there, and who have come to the Islands, and 'squatted,' with the intention of making crops for themselves alone. I found men and woman who have (as they state) slept upon the hearths, for two months, and they have nothing, and no way of getting anything, as I can see. Many are daily arriving, most part, strangers, from the main–some with nothing, others well prepared to go to work. upon their own account, with all necessary tools, and with the intention of squatting on the first vacant lot. I counted. twelve large flats. between "Church" flats. and "Wapoo cut" on Friday, of this class–

They have generally the idea that the Islands are theirs, and those who are not so sanguine in this, are firm in their declarations, that no one shall prevent them from occupying and cultivating them, as they see fit. When told, however, that it is the desire of the Govt that they should be orderly, industrious, and improving, and in a manner as it shall direct, they have confidence, more than in anything else, and seem willing to try. There are men among them, who are "oracles", and as they go. so go the whole without stopping to consider.

There is at present much suffering, among those who made no crops last year: the number of the suffering is daily increasing, as many of the new arrivals, bring insufficent means of support.

On Wadmalow Island, there are people who are living upon Acorns and oysters.

I respectfully call attention to the fact that the Small pox is rapidly on the increase on these Islands. Dr Brownley informed me, that in January on James Island, alone, one hundred new cases have occurred–his time is all occupied in giving the attention required to the sick on that Island– On Johns, & Wadmalow, they are doing poorly, and many who recover, put on the only clothing they have, which has been infected with the disease. There needs to be some physician to go among the people of these two last Islands, and if possible vaccinate them, or there can be no less than an Epidemic. At Rockville, Wadmalow Isd on the 27th I found a meeting was being held, for the purpose of a general management of the affairs of the people, and A Mr Evans informed me that he had been selected 'Supervisor' by them; the nature of his duties, I am as yet unable to define. The Freedmen appear to have unbounded confidence in him. and as I cannot find that all his duties are in unison with the orders furnished me from yr Hd Qr's, I most respectfully request, that I may be informed what powers he has, so that I may not be led to do anything contrary to the general wish for harmony between those outside the Bureau who are working for the general good, and the officers of the Bu. as expressed in the orders, and also that this man may take no undue advantage of the confidence the Freedmen now repose in him.

There is one other subject, I wish to mention in this report. It is the "calculation" of the colored people. At first it looks a small matter, but to look upon the waste of time and material I cannot let it pass without a word in report. I visited the, Main, in company with Captain Nerland comg the Det, there, and find that those who stay there, are quite willing to make contracts, the others, who would not contract having gone to the Islands. More of these people, possess the means, than there are of the Planters. They are willing to furnish generally everything; & give the Planter one third: and in some instances it is the reverse, but they are not so willing to give the general supervision of the cultivation of the crop to the Planter. This is apparently a damage to both: for instance: in the matter of. fencing, & draining–the colored people instead of working in gangs (which they do not like to do) individually ditch, drain, and fence separate tracts, and the time spent in this additional work will work an injury, as it is lost upon the Crops. On the other hand they have but little confidence in the contractors if they let the supervision of the raising of the Crops go into their hands.

[. . .]

Chicago Citations

Bibliography entry:

Everson, Erastus W. Letter to Bvt. Major Henry W. Smith, January 30, 1866. E-18 1866, Registered Letters Received, ser. 2922, South Carolina Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Erastus W. Everson to Henry W. Smith, January 30, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Everson.html.

Shortened citation:

Everson to Smith, January 30, 1866.

PRIMARY SOURCE P15.27

Georgia Freedwoman to the Freedmen's Bureau Acting Assistant Commissioner for Georgia

Harriet Hill to Gen. Davis Tillson · Taliaferro County, Georgia, February 5, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A mother seeks federal help to recover children held by her former owner.
TREATMENT	Full public-domain text

Historical Context

After emancipation, many former owners held on to freedpeople's children, sometimes claiming them as apprentices. Parents turned to the Freedmen's Bureau to recover them.

Harriet Hill, mother of seven, petitioned the Bureau through a local official to recover four of her children still held by her former owner in Coweta County. She stated that the former owner had threatened to kill freedpeople who tried to leave.

Editorial note: The petition was written for Hill by Charles Axt. The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Taliaferro County, Ga., February 5, 1866]

Georgia
Taliaferro County

The petition of Harriet Hill a freedwoman formerly belonging to G B Hill known as Burrell Hill of the county of Coweta in said State, shows that she is the mother of 7 children, 4 of which are now living with her, the oldest of the 4, an invalid, and all of the 4 unable to support themselves– The three oldest aged 17– 19 & 22 years respectively are now in Coweta County Ga and detained or held there by their former owner G. B. Hill of said county under the following stated circumstances– About 6 weeks before christmass last she made a contract with Charles Axt of said County of Taliaferro, and moved herself and 4 youngest children to his place, and contracted with him for the year 1866 as follows: that at the 1st of Jan,y 1866 the 3 oldest of her children together with the wife of the oldest of her sons, was to come to said Axt, and all of them were to live on his place the year 1866, and work for him on his farm, and to receive one half of the crop for their labor– that after making this contract, the said Axt fearing they would not have the means (the 3 oldest) to defray their travelling expenses to this county (Taliaferro) at the close of the past year, went himself to see them, and they stated to him they were each of them to get for their labor for 1865, 10 Bushels of corn and 50 Lbs of meat and feeling satisfied they would have ample means for this purpose left them– About the 10th of Jany, as they did not come as she had expected to do, she went to said county of Coweta to look after them, when one of them (for she was not allowed to see all of her children) told her, they wanted to come to her, verry much, but that they did not have the means to come with, that the said Hill with whom they had been at work for the year 1865 had not paid them anything for their work but claimed they were indebted to him for clothing furnished them, and also informed her the people in that section had declared in concert, to prevent any of their former slaves leaving them, that they would kill such of their former slaves who dared to leave their former owners, by which threat they were forced to comply with the terms offered

them by said Hill for the present year, contrary to, and without their own free will– that they are allowed by him but 10 dolls pr month, and he furnish them with food and clothing and charges them for both, and deducts the same out of their wages–

That about the 20th of Jan,y she made another effort to get them with her, by applying at the office of Freedmans Bureau in Atlanta for relief in this matter, but failed to obtain it–

She then went on to Coweta to see the said Hill, (her former owner) to try and get her children, when some of the whites in the county frightened her from her purpose by telling her, that if she "fooled around there, she would get a rope around her neck" which threat caused her to leave and desist from this purpose of trying (for the second time) to obtain her children– She now represents that by reason of her not being able to get her children with her, she is unable to comply with her contract with the said Chas Axt, and will be by reason thereof be unable to support herself and 4 youngest children–

that her oldest son who is of age, and his wife who are willing to come and live with her, and carry out the above named contract, are detained and restrained under the causes above stated–

The said Hill her former owner told her when she went after her children about the 10th of Jan,y that she was welcome to take all the little trash, but the working hands belonged to him (G B Hill) like they had always done

Therefore she prays that you will afford her proper relief, by restoring to her and her children their rights, that they shall receive proper compensation for their services for last year, and that they shall be allowed to come and assist in her support by enabling her to carry out her contract for the present year with the said Axt–

This she considers her right, and prays you may assist her in obtaining–

All of which she most respectfully submits

her
Harriet X Hill petr
mark

Chicago Citations

Bibliography entry:

Hill, Harriet. Petition to Brigadier General Tillson, February 5, 1866. Enclosed in Charles Axt to Tillson, February 5, 1866, Unregistered Letters Received, ser. 632, Georgia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Petition of Harriet Hill, February 5, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Hill.html.

Shortened citation:

Petition of Harriet Hill, February 5, 1866.

PRIMARY SOURCE P15.28

Veto Message on the Freedmen's Bureau Bill

Andrew Johnson · February 19, 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	Johnson states the limited-government case against a permanent federal agency for freedpeople.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Congress created the Bureau of Refugees, Freedmen, and Abandoned Lands in March 1865 to operate for one year after the war. In early 1866 moderate Republicans passed a bill to extend it indefinitely and expand its powers, including military courts to protect freedpeople's rights.

Andrew Johnson vetoed the bill. He argued that it extended military jurisdiction in peacetime, that the Constitution never contemplated a federal system of relief, and that the eleven southern states were unrepresented in Congress. The Senate narrowly upheld the veto.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

To the Senate of the United States:

I have examined with care the bill, which originated in the Senate and has been passed by the two Houses of Congress, to amend an act entitled "An act to establish a bureau for the relief of freedmen and refugees," and for other purposes. Having with much regret come to the conclusion that it would not be consistent with the public welfare to give my approval to the measure, I return the bill to the Senate with my objections to its becoming a law.

I might call to mind in advance of these objections that there is no immediate necessity for the proposed measure. The act to establish a bureau for the relief of freedmen and refugees, which was approved in the mouth of March last, has not yet expired: It was thought stringent and extensive enough for the purpose in view in time of war. Before it ceases to have effect further experience may assist to guide us to a wise conclusion as to the policy to be adopted in time of peace.

I share with Congress the strongest desire to secure to the freedmen the full enjoyment of their freedom and property and their entire independence and equality in making contracts for their labor, but the bill before me contains provisions which in my opinion are not warranted by the Constitution and are not well suited to accomplish the end in view.

The bill proposes to establish by authority of Congress military jurisdiction over all parts of the United States containing refugees and freedmen. It would by its very nature apply with most force to those parts of the United States in which the freedmen most abound, and it expressly extends the existing temporary jurisdiction of the Freedmen's Bureau, with greatly enlarged powers, over those States "in which the ordinary course of judicial proceedings has been interrupted by the rebellion." The source from which this military jurisdiction is to emanate is none other than the President of the United States, acting through the War Department and the Commissioner of the Freedmen's Bureau. The agents to carry out this military jurisdiction are to be selected either from the Army or from civil life; the country is to be divided into districts and subdistricts, and the number of salaried agents to be employed may be equal to the number of counties or parishes in all the United States where freedmen and refugees are to be found.

The subjects over which this military jurisdiction is to extend in every part of the United States include protection to" all employees, agents, and officers of this bureau in the exercise of the duties imposed" upon them by the bill. In eleven States it is further to extend over all cases affecting freedmen and refugees discriminated against "by local law, custom, or prejudice." In those eleven States the bill subjects any white person who may be charged with depriving a freedman of "any civil rights or immunities belonging to white persons" to imprisonment or fine, or both, without, however, defining the "civil rights and immunities" which are thus to be secured to the freedmen by military law. This military jurisdiction also extends to all questions that may arise respecting contracts. The agent who is thus to exercise the office of a military judge may be a stranger, entirely ignorant of the laws of the place, and exposed to the errors of judgment to which all men are liable. The exercise of power over which there is no legal supervision by so vast a number of agents as is contemplated by the bill must, by the very nature of man, be attended by acts of caprice, injustice, and passion.

The trials having their origin under this bill are to take place without the intervention of a jury and without any fixed rules of law or evidence. The rules on which offenses are to be "heard and determined" by the numerous agents are such rules and regulations as the President, through the War Department, shall prescribe. No previous presentment is required nor any indictment charging the commission of a crime against the laws; but the trial must proceed on charges and specifications. The punishment will be, not what the law declares, but such as a court-martial may think proper; and from these arbitrary tribunals there lies no appeal, no writ of error to any of the courts in which the Constitution of the United States vests exclusively the judicial power of the country.

While the territory and the classes of actions and offenses that are made subject to this measure are so extensive, the bill itself, should it become a law, will have no limitation in point of time, but will form a part of the permanent legislation of the country. I can not reconcile a system of military jurisdiction of this kind with the words of the Constitution which declare that "no person shall be held to answer for a capital or otherwise infamous crime unless on a presentment or indictment of a grand jury, except in cases arising in the land or naval forces, or in the militia when in actual service in time of war or public danger," and that "in all criminal prosecutions the accused shall enjoy the right to a speedy and public trial by an impartial jury of the State and district wherein the crime shall have been committed." The safeguards which the experience and wisdom of ages taught our fathers to establish as securities for the protection of the innocent, the punishment of the guilty, and the equal administration of justice are to be set aside, and for the sake of a more vigorous interposition in behalf of justice we are to take the risks of the many acts of injustice that would necessarily follow from an almost countless number of agents established in every parish or county in nearly a third of the States of the Union, over whose decisions there is to be no supervision or control by the Federal courts. The power that would be thus placed in the hands of the President is such as in time of peace certainly ought never to be intrusted to any one man.

[. . .]

Chicago Citations

Bibliography entry:

Johnson, Andrew. "Veto Message." February 19, 1866. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Andrew Johnson, "Veto Message," February 19, 1866, American Presidency Project, https://www.presidency.ucsb.edu/documents/veto-message-437.

Shortened citation:

Johnson, veto message, February 19, 1866.

PRIMARY SOURCE P15.29

Congressional Debate on the Fourteenth Amendment (excerpts)

John A. Bingham, Giles Hotchkiss, Thaddeus Stevens, James A. Garfield, Jacob M. Howard · Congressional Globe, February–May 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	The framers explain how the amendment would protect rights nationally while preserving the states' role.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The Joint Committee on Reconstruction drafted the Fourteenth Amendment in early 1866. Representative John A. Bingham of Ohio wrote its first section; Senator Jacob M. Howard of Michigan introduced it in the Senate.

In debate, the framers explained what the amendment would do. Bingham and Howard said it would let the national government protect rights against state violation, while assuring colleagues that it took no legitimate power from the states. Thaddeus Stevens called it imperfect but the best that could be passed.

Editorial note: The text follows the Teaching American History transcription; the editors' footnote numbers have been removed.

Document Text

[. . .]

. . . I can hardly believe that any person can be found who will not admit that every one of these provisions is just. They are all asserted, in some form or other, in our DECLARATION or organic law. But the Constitution limits only the action of Congress, and is not a limitation on the States. This amendment supplies that defect, and allows Congress to correct the unjust legislation of the States, so far that the law which operates upon one man shall operate equally upon all. Whatever law punishes a white man for a crime shall punish the black man precisely in the same way and to the same degree. Whatever law protects the white man shall afford “equal” protection to the black man. Whatever means of redress is afforded to one shall be afforded to all. Whatever law allows the white man to testify in court shall allow the man of color to do the same. These are great advantages over their present codes. Now, different degrees of punishment are inflicted, not on account of the magnitude of the crime, but according to the color of the skin. Now, color disqualifies a man from testifying in courts, or being tried in the same way as white men. I need not enumerate these partial and oppressive laws. Unless the Constitution should restrain them those States will all, I fear, keep up this discrimination, and crush to death the hated freedmen. . . .

Rep. James Garfield, R-OH:

. . . I am glad to see this first section here which proposes to hold over every American citizen, without regard to color, the protecting shield of law. The gentleman who has just taken his seat [Mr. FINCK, D-OH] undertakes to show that because we propose to vote for this section we therefore acknowledge that the civil rights bill was unconstitutional. He was anticipated in that objection by the gentleman from Pennsylvania, [Mr. STEVENS]. The civil rights bill is now a part of the law of the land. But every gentleman knows it will cease to be a part of the law whenever the mad moment arrives when that gentleman’s party comes into power. It is precisely for that reason that we propose to lift that great and good law above the reach of political strife, beyond the reach of the plots and machinations of any party. . . . For this reason, and not because I believe the civil rights bill unconstitutional, I am glad to see that first section here. . . .

May 10, 1866

Representative John Bingham:

. . . The necessity for the first section of this amendment to the Constitution, Mr. Speaker, is one of the lessons that have been taught to your committee and taught to all the people of this country by the history of the past four years of terrific conflict – that history in which God is, and in which He teaches the profoundest lessons to men and nations. There was a want hitherto, and there remains a want now, in the Constitution of our country, which the proposed amendment will supply. What is that? It is the power in the people, in the whole people of the United States, by express authority of the Constitution to do that by congressional enactment which hitherto they have not had the power to do, and have never even attempted to do; that is, to protect by national law the privileges and immunities of all the citizens of the Republic and the inborn rights of every person within its jurisdiction whenever the same shall be abridged or denied by the unconstitutional acts of any State.

. . . This amendment takes from no State any right that ever pertained to it. No State ever had the right, under the forms of law or otherwise, to deny to any freeman the equal protection of the laws or to abridge the privileges or immunities of any citizen of the Republic, although many of them have assumed and exercised the power, and that without remedy. . . .

May 23, 1866

Senator Jacob Howard, R-MI:

. . . It will be observed that this is a general prohibition upon all the States, as such, from abridging the privileges and immunities of the citizens of the United States. That is its first clause, and I regard it as very important. It also prohibits each one of the States from depriving any person of life, liberty, or property without due process of law, or denying to any person within the jurisdiction of the State the equal protection of its laws.

The first clause of this section relates to the privileges and immunities of citizens of the United States as such, and as distinguished from all other persons not citizens of the United States. It is not, perhaps, very easy to define with accuracy what is meant by the expression, “citizen of the United States.” . . . A citizen of the United States is held by the courts to be a person who was born within the limits of the United States and subject to their laws. . . .

It would be a curious question to solve what are the privileges and immunities of citizens of each of the States in the several States. I do not propose to go at any length into that question at this time. . . . [I]t is certain the clause was inserted in the Constitution for some good purpose. . . . [W]e may gather some intimation of what probably will be the opinion of the judiciary by referring to a case adjudged many years ago in one of the circuit courts of the United States by Judge [Bushrod] Washington. . . . It is the case of Corfield vs. Coryell. . . . Judge Washington says: . . .

The inquiry is, what are the privileges and immunities of citizens in the several States? We feel no hesitation in confining these expressions to those privileges and immunities which are in their nature fundamental, which belong of right to the citizens of all free Governments, and which have at all times been enjoyed by the citizens of the several States which compose this Union from the time of their becoming free, independent, and sovereign. What these fundamental principles are it would, perhaps, be more tedious than difficult to enumerate. They may, however, be all comprehended under the following general heads: protection by the Government, the enjoyment of life and liberty, with the right to acquire and possess property of every kind, and to pursue and obtain happiness and safety, subject nevertheless to such restraints as the Government may justly prescribe for the general good of the whole. The right of a citizen of one State to pass through or to reside in any other State, for purposes of trade, agriculture, professional pursuits, or otherwise; to claim the benefit of the writ of habeas corpus; to institute and maintain notions of any kind in the courts of the State; to take, hold, and dispose of property, either real or personal, and an exemption from higher taxes or impositions than are paid by the other citizens of the State, may

be mentioned as some of the particular privileges and immunities of citizens which are clearly embraced by the general description of privileges deemed to be fundamental, to which may be added the elective franchise, as regulated and established by the laws or constitution of the State in which it is to be exercised. . . .

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. Debate on the Fourteenth Amendment, February–May 1866. *Congressional Globe*, 39th Cong., 1st Sess. Teaching American History.

Footnote citation:

Debate on the Fourteenth Amendment, *Congressional Globe*, 39th Cong., 1st Sess. (1866), via Teaching American History, https://teachingamericanhistory.org/document/congressional-debate-on-the-14th-amendment/.

Shortened citation:

Debate on the Fourteenth Amendment, 1866.

PRIMARY SOURCE P15.30

Veto Message on the Civil Rights Bill (excerpt)

Andrew Johnson · March 27, 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	Johnson sets out the states' rights argument against national protection of civil rights.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The Civil Rights Act of 1866 declared all persons born in the United States (except untaxed Indians) to be citizens and guaranteed them equal rights to make contracts, sue, own property, and enjoy the protection of the laws. It answered the southern Black Codes.

Johnson vetoed it, arguing that it invaded the states' authority, discriminated in favor of Black Americans, and gave federal officers sweeping powers. Congress overrode a presidential veto of a major bill for the first time in April 1866.

Editorial note: The text follows the transcription at the American Presidency Project. The Norton collection's excerpt of this message is printed here as one entry.

Document Text

[. . .]

The fourth section of the bill provides that officers and agents of the Freedmen's Bureau shall be empowered to make arrests, and also that other officers may be specially commissioned for that purpose by the President of the United States. It also authorizes circuit courts of the United States and the superior courts of the Territories to appoint, without limitation, commissioners, who are to be charged with the performance of quasi judicial duties. The fifth section empowers the commissioners so to be selected by the courts to appoint in writing, under their hands, one or more suitable persons from time to time to execute warrants and other processes described by the bill. These numerous official agents are made to constitute a sort of police, in addition to the military, and are authorized to summon a posse comitatus , and even to call to their aid such portion of the land and naval forces of the United States, or of the militia, "as may be necessary to the performance of the duty with which they are charged." This extraordinary power is to be conferred upon agents irresponsible to the Government and to the people, to whose number the discretion of the commissioners is the only limit, and in whose hands such authority might be made a terrible engine of wrong, oppression, and fraud. The general statutes regulating the land and naval forces of the United States, the militia, and the execution of the laws are believed to be adequate for every emergency which can occur in time of peace. If it should prove otherwise, Congress can at any time amend those laws in such manner as, while subserving the public welfare, not to jeopard the rights, interests, and liberties of the people.

The seventh section provides that a fee of $10 shall be paid to each commissioner in every case brought before him, and a fee of $5 to his deputy or deputies "for each person he or they may arrest and take before any such commissioner," "with such other fees as may be deemed reasonable by such commissioner," "in general for performing such other duties as may be required in the premises." All these fees are to be "paid out of the Treasury of the United States," whether there is a conviction or not; but in case of conviction they are to be recoverable from the defendant. It seems to me that under the influence of such temptations bad men might convert any law, however beneficent, into an instrument of persecution and fraud.

[. . .]

In all our history, in all our experience as a people living under Federal and State law, no such system as that contemplated by the details of this bill has ever before been proposed or adopted. They establish for the security of the colored race safeguards which go infinitely beyond any that the General Government has ever provided for the white race. In fact, the distinction of race and color is by the bill made to operate in favor of the colored and against the white race. They interfere with the municipal legislation of the States, with the relations existing exclusively between a State and its citizens, or between inhabitants of the same State-an absorption and assumption of power by the General Government which, if acquiesced in, must sap and destroy our federative system of limited powers and break down the barriers which preserve the rights of the States. It is another step, or rather stride, toward centralization and the concentration of all legislative powers in the National Government. The tendency of the bill must be to resuscitate the spirit of rebellion and to arrest the progress of those influences which are more closely drawing around the States the bonds of union and peace.

My lamented predecessor, in his proclamation of the 1st of January, 1863, ordered and declared that all persons held as slaves within certain States and parts of States therein designated were and thenceforward should be free; and further, that the executive government of the United States, including the military and naval authorities thereof, would recognize and maintain the freedom of such persons. This guaranty has been rendered especially obligatory and sacred by the amendment of the Constitution abolishing slavery throughout the United States. I therefore fully recognize the obligation to protect and defend that class of our people whenever and wherever it shall become necessary, and to the full extent compatible with the Constitution of the United States.

Entertaining these sentiments, it only remains for me to say that I will cheerfully cooperate with Congress in any measure that may be necessary for the protection of the civil rights of the freedmen, as well as those of all other classes of persons throughout the United States, by judicial process, under equal and impartial laws, in conformity with the provisions of the Federal Constitution.

I now return the bill to the Senate, and regret that in considering the bills and joint resolutions--forty-two in number--which have been thus far submitted for my approval I am compelled to withhold my assent from a second measure that has received the sanction of both Houses of Congress.

ANDREW JOHNSON.

Chicago Citations

Bibliography entry:

Johnson, Andrew. "Veto Message." March 27, 1866. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Andrew Johnson, "Veto Message," March 27, 1866, American Presidency Project, https://www.presidency.ucsb.edu/documents/veto-message-438.

Shortened citation:

Johnson, veto message, March 27, 1866.

PRIMARY SOURCE P15.31

Civil Rights Act of 1866

U.S. Congress · April 9, 1866

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	The first federal definition of citizenship and equal civil rights, passed over a presidential veto.
TREATMENT	Full public-domain text

Historical Context

Senator Lyman Trumbull of Illinois, a moderate Republican, wrote the Civil Rights Act to nullify the southern Black Codes and to give freedpeople the basic rights of free citizens.

The act declared all persons born in the United States, except untaxed Indians, to be citizens, and guaranteed them the same right as white citizens to make contracts, sue, testify, and own property. Johnson vetoed it, and Congress passed it over his veto on April 9, 1866.

Editorial note: The Norton collection prints the Senate bill as introduced. This reader follows the act as passed, from the Wikisource transcription of the *Statutes at Large*. The plan's separate listing of this act is printed here as one entry.

Document Text

An Act

To protect all Persons in the United States in their Civil Rights, and furnish the Means of their Vindication

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

That all persons born in the United States and not subject to any foreign power, excluding Indians not taxed, are hereby declared to be citizens of the United States; and such citizens, of every race and color, without regard to any previous condition of slavery or involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall have the same right, in every State and Territory in the United States, to make and enforce contracts, to sue, be parties, and give evidence, inherit, purchase, lease, sell, hold, and convey real and personal property, and to full and equal benefit of all laws and proceedings for the security of person and property, as is enjoyed by white citizens, and shall be subject to like punishment, pains, and penalties, and to none other, any law, statute, ordinance, regulation, or custom, to the contrary notwithstanding.

SEC. 2.

And be it further enacted, That any person who, under color of any law, statute, ordinance, regulation, or custom, shall subject, or cause to be subjected, any inhabitant of any State or Territory to the deprivation of any right secured or protected by this act, or to different punishment, pains, or penalties on account of such person having at any time been held in a condition of slavery or involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, or by reason of his color or race, than is prescribed for the punishment of white persons, shall be deemed guilty of a misdemeanor, and, on conviction, shall be punished by fine not exceeding one thousand dollars, or imprisonment not exceeding one year, or both, in the discretion of the court.

SEC. 3.

And be it further enacted, That the district courts of the United States, within their respective districts, shall have, exclusively of the courts of the several States, cognizance of all crimes and offences committed against the provisions of this act, and also, concurrently with the circuit courts of the United States, of all causes, civil and

criminal, affecting persons who are denied or cannot enforce in the courts or judicial tribunals of the State or locality where they may be any of the rights secured to them by the first section of this act; and if any suit or prosecution, civil or criminal, has been or shall be commenced in any State court, against any such person, for any cause whatsoever, or against any officer, civil or military, or other person, for any arrest or imprisonment, trespasses, or wrongs done or committed by virtue or under color of authority derived from this act or the act establishing a Bureau for the relief of Freedmen and Refugees, and all acts amendatory thereof, or for refusing to do any act upon the ground that it would be inconsistent with this act, such defendant shall have the right to remove such cause for trial to the proper district or circuit court in the manner prescribed by the "Act relating to habeas corpus and regulation judicial proceedings in certain cases," approved March three, eighteen hundred and sixty-three, and all acts amendatory thereof. The jurisdiction in civil and criminal matters hereby conferred on the district and circuit courts of the United States shall be exercised and enforced in conformity with the laws of the United States, so far as such laws are suitable to carry the same into effect; but in all cases where such laws are not adapted to the object, or are deficient in the provisions necessary to furnish suitable remedies and punish offences against law, the common law, as modified and changed by the constitution and statutes of the State wherein the court having jurisdiction of the cause, civil or criminal, is held, so far as the same is not inconsistent with the Constitution and laws of the United States, shall be extended to and govern said courts in the trial and disposition of such cause, and, if of a criminal nature, in the infliction of punishment on the party found guilty.

SEC. 4.

And be it further enacted, That the district attorneys, marshals, and deputy marshals of the United States, the commissioners appointed by the circuit and territorial courts of the United States, with powers of arresting, imprisoning, or bailing offenders against the laws of the United States, the officers and agents of the Freedmen's Bureau, and every other officer who may be specially empowered by the President of the United States, shall be, and they are hereby, specially authorized and required, at the expense of the United States, to institute proceedings against all and every person who shall violate the provisions of this act, and cause him or them to be arrested and imprisoned, or bailed, as the case may be, for trial before such court of the United States or territorial court as by this act has cognizance of the offence. And with a view to affording reasonable protection to all persons in their constitutional rights of equality before the law, without distinction of race or color, or previous condition of slavery or involuntary servitude, except as a punishment for crime, whereof the party shall have been duly convicted, and to the prompt discharge of the duties of this act, it shall be the duty of the circuit courts of the United States and the superior courts of the Territories of the United States, from time to time, to increase the number of commissioners, so as to afford a speedy and convenient means for the arrest and examination of persons charged with a violation of this act; and such commissioners are hereby authorized and required to exercise and discharge all the powers and duties conferred on them by this act, and the same duties with regard to offences created by this act, as they are authorized by law to exercise with regard to other offences against the laws of the United States.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Protect All Persons in the United States in Their Civil Rights, and Furnish the Means of Their Vindication." April 9, 1866. *United States Statutes at Large* 14:27. Wikisource.

Footnote citation:

Civil Rights Act of 1866, April 9, 1866, sec. [number], *Statutes at Large* 14:27, via Wikisource.

Shortened citation:

Civil Rights Act of 1866, sec. [number].

PRIMARY SOURCE P15.32

Freedmen's Bureau Officer in Mississippi to the Headquarters of the Mississippi Assistant Commissioner

Lt. George W. Corliss · Vicksburg, Mississippi, April 9, 1866

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	A Bureau inspector describes the range of labor arrangements and the early spread of debt.
TREATMENT	Full public-domain text

Historical Context

In 1866 the Freedmen's Bureau supervised labor contracts between planters and freedpeople. Arrangements varied: some workers received monthly wages, others a share of the crop.

Lieutenant George W. Corliss inspected plantations around Friars Point, in the Mississippi Delta. He compared share contracts with wage contracts and noted that many workers were already in debt for advances of food and supplies before the crop was planted.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Vicksburg, Miss., April 9″, 1866.

Sir In compliance with provisions of Par 3 Special Orders No 33 current series from your office, directing me to proceed to Friars Point Miss “and examine into the condition of the surrounding districts as per letter of instructions” I have the honor to submit the following report of my observations.

On my arrival at Friars Point I immediately obtained an audience with the officers of the Probate Court of Coahoma County,–then in session at that place–, who, on being informed as to the object of my visit, offered me their assistance in ascertaining the condition of the Freedmen, and also gave me information in their possession regarding the same.

Friars Point being the County seat for Coahoma County, is therefore a favorable place for information as to the condition of the Freedmen in the surrounding districts.

I therefore made every effort to inform the citizens and Freedmen of the rural districts of my presence, in order that any special or aggravated cases might be reported to me. I was obliged to do this, in consequence of the extreme dificulty in traveling about, in consequence of the over-flow of the Miss River: When cases were reported to me requiring a visit or other action, I made an effort to visit their locality.

I visited one plantation owned by James A. Peace. and suprintended by one Mr Hogan. On this plantation I found some dissatisfaction existing among the hands, which appeared to have arrisen in consequence of Mr Hogan (who was formerly an overseer) being employed to suprintend the work on the plantation. I made inquiries regarding the treatment of the hands, by Mr Hogan, and found no complaints whatever; the only objections was that he was an old overseer: The Freedmen have an idea that overseers are no longer allowed. I had the hands assembled and reviewed their contracts, and made them a few remarks, showing them their duty in faithfully observing their obligations, also the importance of their obedience to, and showing respect for whoever their employer chose to employ as their suprintendent, so long as no injustice or cruelty is practiced towards them.

I approved their contracts,–which allows them one third of the entire crop, agricultural impliments furnished–, after which they all seemed to be well satisfied and promised to go to work again; which I find since by inquiry they have done. Measles is making havoc among the children on this plantation; although they are well provided with medical attention.

I visited other plantations in the vicinity and found them generally at work and getting along smoothly with the exception of delay in getting the hands out in the morning early enough to satisfy; and an occasional case of intolerable impudence in consequence thereof.

So far as I could ascertain, the citizens are desirous to offer libiral contracts to the Freedmen, and treat them kindly,–for the present at least–, in order to secure a crop.

I found some cases of violating contracts on the part of the Freedmen, caused as far as I could ascertain by the impression that seems to prevade the minds of Freedmen in that locality that if they can once get to Memphis they can live much easier.

I intercepted four hands from one plantation who were on their way to Memphis, without any definite idea regarding their prospects, other than the idea that “once in Memphis and they are all right”: I directed them to return to their plantation and I would visit them.

I found some misunderstanding existing between one or two of them, and the suprintendent (who by the way appeared to be a very illiterate man, and apparently with little knowledge of governing men except by the lash:) And when the hands expressed a little dissatisfaction he would tell them to leave and if they came back again he would shoot them.

The four hands mentioned had worked three months and by leaving would loose their pay, and their employers valuable hands in an important time when hands are scarce

I therefore directed the hands to go to work until their employers (who are away: Northern men,) should return and adjust their dificulty. I also advised the suprintendent not to render any further decisions of the kind but refer them to the employers for such action as would be right.

I find, that where one or more Freedman becomes dissatisfied others are very liable to sympathize with him, and in case one leaves, others will follow and thereby forfeit all their dues; and sometimes report their employer for refusing to pay them.

I find the citizens very little inclined to resort to civil law in cases involving jurisdiction over the negro; In fact many of them do not appear to understand that civil law is operative in their cases, but that the Freedmens Bureau should exercise entire control over them.

In some cases dificulty is occasioned by some Freedmen killing and appropriating to their own use, hogs, and fowls, the property of their employers: several cases of this kind were reported to me.

While I have made due allowance for prejudice and former notions regarding the colored man, I find in some cases, cause for complaint on the part of the planter in consequence of Freedmen failing to faithfully perform their obligations. Sometimes they feign sickness, and loose a great deal of time unnecessarily in other ways; this too in cases where they are the most liberally contracted with.

I heard of no case of cruelty, and only one case of whipping, and that a minor who had been impudent to the suprintendent; this case was reported by the father of the child.

On some of the plantations the Freedmen are in the habit of carrying pistols, and bowie knives, both in the field and while about their quarters; and in some cases when they quarrel among themselves they use their weapons freely: although no case was reported to me in which parties had been wounded One case of this kind occurred on one of Gen'l N B Forrest's plantations; which originated in consequence of one Freedman whipping a child of

another Freedman, whereupon one drew a knife on the other, and in turn the other discharged his revolver three times at the former but without serious results; the pistol shots penatrated the residence of the suprintendent whose wife bearly escaped being shot. Both parties were arraigned before me and acknowledged their guilt: I gave them some advice and received their promise that they would faithfully conduct themselves in a proper manner hereafter.

General N B Forrest's plantation, the last I visited, and on which is employed the greatest number of hands of any place I visited I will speak of particularly inasmuch as influences exercised over them, extends in some degree over Freedmen on the neighbouring plantations.

[. . .]

Chicago Citations

Bibliography entry:

Corliss, George W. Letter to Lt. Stuart Eldridge, April 9, 1866. C-30 1866, Registered Letters Received, ser. 2052, Mississippi Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

George W. Corliss to Stuart Eldridge, April 9, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Corliss.html.

Shortened citation:

Corliss to Eldridge, April 9, 1866.

PRIMARY SOURCE P15.33

Georgia Planter to the Freedmen's Bureau Acting Assistant Commissioner for Georgia

M. C. Fulton to Gen. Davis Tillson · Snow Hill, near Thomson, Georgia, April 17, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A planter's complaint shows freed families deciding for themselves how women's labor would be used.
TREATMENT	Full public-domain text

Historical Context

After emancipation, many freed families decided that wives and mothers would no longer work in the fields for white employers but would work at home and in the family's own plots.

M. C. Fulton, a Georgia planter, complained to the Bureau that freedwomen with husbands were not working and had made no contracts. He asked that they be made to sign contracts or be punished as vagrants.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Snow Hill near Thomson Georgia April 17th 1866

Dear Sir– Allow me to call your attention to the fact that most of the Freedwomen who have husbands are not at work–never having made any contracts at all– Their husbands are at work–while they are as nearly idle as it is possible for them to be,–pretending to spin–knit or something that really amounts to nothing for their husbands have to buy ther clothing I find from my own hands wishing to buy of me–

Now these women have always been used to working out–& it would be far better for them to go to work for reasonable wages & their rations–both in regard to health & in furtherance of their family wellbeing– Say their husbands get–10 to 12– or 13$ per month and out of that–feed their wives and from 1 to 3 or 4 children–& clothe the family– It is impossible for one man to do this & maintain his wife in idleness without stealing more or less of their support–whereas if their wives (where they are able) were at work for rations & fair wages–which they can all get, the family could live in some comfort & more happily–besides their labor is a very important percent of the entire labor of the South–& if not made avaible, must affect to some extent–the present crop– Now is a very important time in the crop–& the weather being good & to continue so for the remainder of the year, I think it would be a good thing to put the women to work and all that is necessary to do this in most cases is an order from you directing the agents to require the women to make contracts for the balance of the year– I have several that are working well–while others and generally younger ones who have husbands & from 1 to 3 or 4 children are idle–indeed refuse to work & say their husbands must support them. Now & then there is a woman who is not able to work in the field–or who has 3 or 4 children at work & can afford to live on her childrens labobor–with that of her husband– Even in such a case it would be better she should be at work– Generally however most of them should be in the field– Could not this matter be referred to your agents They are generally very clever men and would do right I would suggest that you give this matter your favorable consideration & if you can do so to use your influence to make these idle women go to work. You would do them & the country a service besides gaining favor & the good opinion of the people generally

I beg you will not consider this matter lightly for it is a very great evil & one that the Bureau ought to correct= if they wish the Freedmen & women to do well– I have 4 or 5 good women hands now idle that ought to be at work becase their families cannot really be supported honestly without it This should not be so–& you will readily see how important it is to change it at once– I am very respectfully Your obt servant

M. C. Fulton

I am very willing to carry my idle women to the Bureau agency & give them such wages as the Agent may think, fair–& I will further garanty that they shall be treated kindly & not over worked– I find a general complaint on this subject every where I go–and I have seen it myself and experienced its bad effects among my own hands– These idle women are bad examples to those at work & they are often mischief makers–having no employment their brain becomes more or less the Devil's work shop as is always the case with idle people–black or white & quarrels & Musses among the colored people generally can be traced to these idle folks that are neither serving God– Man or their country–

Are they not in some sort vagrants–they are living without employment–and mainly without any visible means of support–and if so are they not amenable to vagrant act–? They certainly should be– I may be in error in this matter but I have no patience with idleness or idlers Such people are generally a nuisance–& ought to be reformed if possible or forced to work for a support– Poor white women (and [ri]ch too have [cares?] & business) have to work–so should all poor people–or else stealing must be legalized–or tolerated for it is the twin sister of idleness–

Chicago Citations

Bibliography entry:

Fulton, M. C. Letter to Brigadier General Davis Tillson, April 17, 1866. Unregistered Letters Received, ser. 632, Georgia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

M. C. Fulton to Davis Tillson, April 17, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Fulton.html.

Shortened citation:

Fulton to Tillson, April 17, 1866.

PRIMARY SOURCE P15.34

Scenes in Memphis, Tennessee, during the Riot

Harper's Weekly · May 26, 1866

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	Engravings show white mob violence against freedpeople that pushed Congress to take over Reconstruction.
TREATMENT	Public-domain image

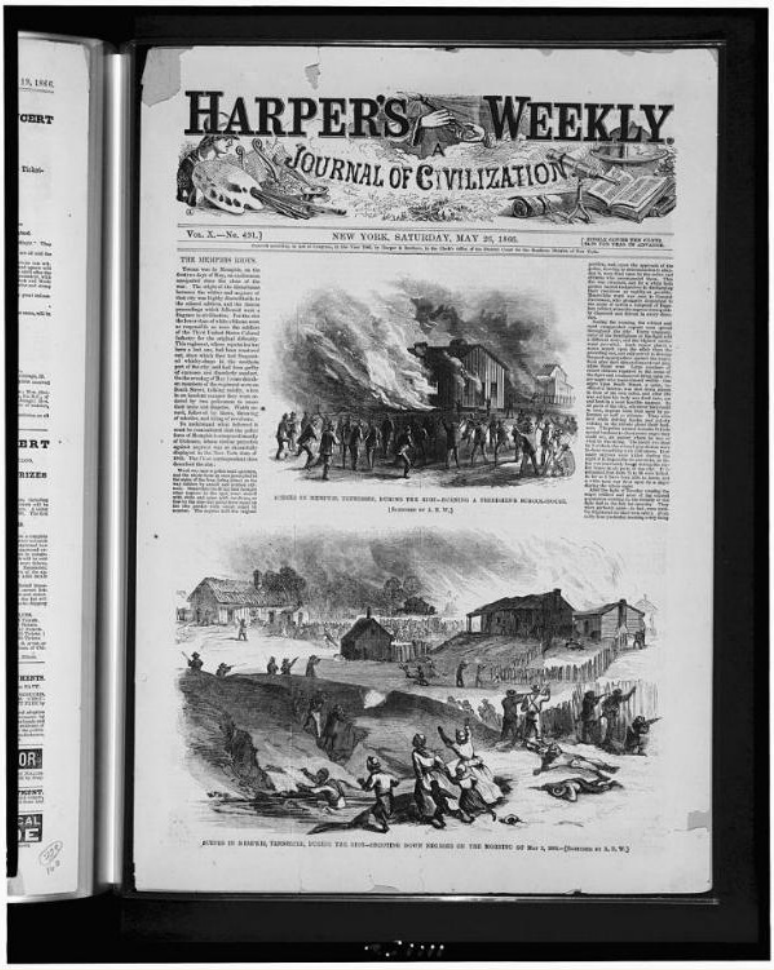
Historical Context

On May 1–3, 1866, white mobs in Memphis, many of them police and firemen, attacked the city's Black neighborhoods after a clash with recently discharged Black Union soldiers. Forty-six Black residents were killed, and every Black church and school in the city was burned.

Harper's Weekly published these engravings of the violence. The riot, with another in New Orleans that July, turned northern opinion against President Johnson's Reconstruction policy.

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons).

Primary Source Image



"Scenes in Memphis, Tennessee, during the Riot," *Harper's Weekly*, May 26, 1866. Library of Congress.

Chicago Citations

Bibliography entry:

"Scenes in Memphis, Tennessee, during the Riot." Wood engraving. *Harper's Weekly*, May 26, 1866. Prints and Photographs Division, Library of Congress, LCCN 94507780.

Footnote citation:

"Scenes in Memphis, Tennessee, during the Riot," *Harper's Weekly*, May 26, 1866, Library of Congress, https://www.loc.gov/pictures/item/94507780/.

Shortened citation:

"Scenes in Memphis during the Riot."

PRIMARY SOURCE P15.35

Kentucky Freedwoman to Her Daughters in Tennessee

Aima Ship · Hopkinsville, Kentucky, May 13, 1866

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	A mother works to rebuild her family and protests a grandchild's forced apprenticeship.
TREATMENT	Full public-domain text

Historical Context

Aima Ship, a freedwoman in Kentucky, had daughters living in Tennessee. One of her grandchildren had been bound out as an apprentice.

She wrote to each daughter urging them to save all they could so the family could have a home together, and protested the grandchild's apprenticeship. A Bureau officer forwarded the letters while looking into the case.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Hopkinsville Ky May 13the 1866

Dear Daughter Leathe this leave me tolerble well i am doing very well as far as a home is concern i have to work no matter where i go for i have got know one to take care of me but the good Lord if i do wright he will be my support we all have to look to him to give us strengh in ever thing we do it is out of my power to come to see you for i am at work trying to make somthing to take care of myself i am getting five dollars per month for my work they allow me to raise a little cotton & brom corn and several other little things Mrs Lawson has sent for me to come and live with them tell i die i am going soon that is if i dont change my mind i have ben press in spirits all the time i thought i would die any how some times they have took Dorra child and bound it out to Miss Sally Husband tell she is twenty one i did not like that way of doing i had got her a good home but they come and took her away then had her bound to him Miss Ann Ellis wants a woman to wash iron cook or do any thing that come to hand get up soon have soon breakfast one that is smart she want one that will stay at home and attend to her business work with out thinking she is doing to much she want one that is single she will treat them good if they do wright can you find her one of that kind write to her and let her know as soon as you can look around and see if you can find one that will suit miss Ann you know she want them to stay at home and do her work wright then she will pay them dont send her one she cant trust give my love to all that inquire after me Your Mother

Aima Ship

Hopkinsville Ky May the 13t 1866

Dear Adeline I am tolerble well except pain in my limbs i suffer with my feet a good deal i have to keep in good spirits to get along if i keep my health i think i can make some money to take care of myself in old age it is out of my power to come to see you all if i make a thing i must take care of it to by me a home for that is what i want i think if we all will work and save our money what we get it will soon by us a home but if we dont save it we wont have any when we want it save all you can i dont intend to spend any more of mine if can help it i have to by a pair of shoes for sunday tell your Daughter f Fanny God bless her soul i think of her ever day be a good child tell Grandmar come to see her she is coming a Christmas if i have good luck what are you and Leatha getting for your work i herd they was given high wages their send me what is the most they give the hands get ten dollars per month here some four

& five and six and seven i would send your children preant i cant trust no one write to your Brother & wife tell Leatha to come if she dont stay but a hour the woman dont stay long at a place Know if they dont do to suit they have to leave you must all come soon God bless you give my love to all your Mother

Aaima Ship

Chicago Citations

Bibliography entry:

Ship, Aima. Letters to Leathe and to Adeline, May 13, 1866. Enclosed in J. R. Lewis to C. B. Fisk, June 29, 1866, L-84 1866, Registered Letters Received, ser. 3379, Tennessee Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Aima Ship to her daughters, May 13, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Ship.html.

Shortened citation:

Ship to her daughters, May 13, 1866.

PRIMARY SOURCE P15.36

Fourteenth Amendment to the U.S. Constitution

U.S. Congress · passed June 13, 1866; ratified July 9, 1868

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	The amendment created national citizenship and equal protection, while its wording limited states rather than individuals.
TREATMENT	Full public-domain text

Historical Context

Congress passed the Fourteenth Amendment in June 1866 to secure in the Constitution the principles of the Civil Rights Act. Every former Confederate state except Tennessee rejected it, which led Congress to pass the Reconstruction Acts of 1867.

Section 1 made all persons born in the United States citizens and forbade states to deny them due process or the equal protection of the laws. Section 2 reduced representation for states that denied men the vote, Section 3 barred many former Confederates from office, and Section 4 repudiated the Confederate debt.

Editorial note: The text follows the National Archives Milestone Documents transcription. The Norton collection's text of this amendment is printed here as one entry.

Document Text

AMENDMENT XIV

Section 1.
All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Section 2.
Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice-President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion, or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

Section 3.
No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in

insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.

Section 4.
The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

Section 5.
The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

Chicago Citations

Bibliography entry:

U.S. Constitution, Amendment XIV. Passed by Congress June 13, 1866; ratified July 9, 1868. National Archives, Milestone Documents.

Footnote citation:

U.S. Const. amend. XIV, National Archives, Milestone Documents, https://www.archives.gov/milestone-documents/14th-amendment.

Shortened citation:

U.S. Const. amend. XIV.

PRIMARY SOURCE P15.37

Affidavit of an Alabama Black Teacher and Clergyman

Rev. Robert Alexander · sworn at Columbus, Georgia, June 16, 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Black minister-teacher is whipped for his work, showing the risks of building churches and schools.
TREATMENT	Full public-domain text

Historical Context

After emancipation, freedpeople across the South built churches and schools of their own, often led by Black ministers. Many whites saw these institutions as threats.

Robert Alexander, a freedman and African Methodist Episcopal minister who taught a school in Auburn, Alabama, swore that white men had whipped him for preaching and teaching, and that the local Freedmen's Bureau agent refused to help.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Columbus, Ga., June 16, 1866]

Personally appeared before me Rev. Robert Alexander, a freedman from Auburn, Macon Co. Ala. who being duly sworn, gave the following statement viz:

I have been living at Auburn Ala. for the last 5 months, teaching a school of colored children. I received an appointment as a regular minister for the Auburn Mission Ala. from the R. Rev. Daniel A. Payne, Presiding Bishop at the Annual Conference A.M.E. Church, dated May 21st 1866. During the night of the 14th inst. at about 10 o'clock four white men came at my house, they knocked at my door, and when I opened they asked who lived there. I told them and they then dragged me out of doors, clubbed me and carried me to the woods. Here they threatened to kill me, one of them with the name of Bob Willis remarked, that they would not allow me to preach to the colored people, that they want them to support their white minister. They stripped me off my clothes and beat me with leather straps until the blood was running down. After this they held a secret conversation together; when they came back to me they told me they would give me time to leave till sunday following, that the land belonged to them and no d— nigger should preach nor teach school there. They then left me.

While they took me to the woods, the women in the house I was living, run to Mr. Gracy, Justice of Peace and Agent of the Bureau in town, and claimed from him protection and help. He refused to do anything and not even left his bed. One white gentleman in town, saw the women and when he heard of the occurrence, he came in search of me;–he took me home and dressed my wounds.– I left yesterday, the 15th inst.

R Alexander

Chicago Citations

Bibliography entry:

Alexander, Robert. Affidavit, June 16, 1866. Enclosed in Capt. Fred Mosebach to O. D. Kinsman, June 16, 1866, Unregistered Letters Received, ser. 9, Alabama Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Affidavit of Robert Alexander, June 16, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Alexander.html.

Shortened citation:

Affidavit of Robert Alexander.

PRIMARY SOURCE P15.38

Veto Message on the Second Freedmen's Bureau Bill (excerpt)

Andrew Johnson · July 16, 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	Johnson argues that federal protection of freedpeople was justified only in wartime.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After the Senate sustained Johnson's first veto, Congress passed a revised Freedmen's Bureau bill extending the agency for two years.

Johnson vetoed it again, arguing that such legislation could be justified only by the war power and that the war was over. This time Congress overrode the veto the same day.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

The only ground upon which this kind of legislation can be justified is that of the war-making power. The act of which this bill is intended as amendatory was passed during the existence of the war. By its own provisions it is to terminate within one year from the cessation of hostilities and the declaration of peace. It is therefore yet in existence, and it is likely that it will continue in force as long as the freedmen may require the benefit of its provisions. It will certainly remain in operation as a law until some months subsequent to the meeting of the next session of Congress, when, if experience shall make evident the necessity of additional legislation, the two Houses will have ample time to mature and pass the requisite measures. In the meantime the questions arise, Why should this war measure be continued beyond the period designated in the original act, and why in time of peace should military tribunals be created to continue until each "State shall be fully restored in its constitutional relations to the Government and shall be duly represented in the Congress of the United States"?

It was manifest, with respect to the act approved March 3, 1865, that prudence and wisdom alike required that jurisdiction over all cases concerning the free enjoyment of the immunities and rights of citizenship, as well as the protection of person and property, should be conferred upon some tribunal in every State or district where the ordinary course of judicial proceedings was interrupted by the rebellion, and until the same should be fully restored. At that time, therefore, an urgent necessity existed for the passage of some such law. Now, however, war has substantially ceased; the ordinary course of judicial proceedings is no longer interrupted; the courts, both State and Federal, are in full, complete, and successful operation, and through them every person, regardless of race and color, is entitled to and can be heard. The protection granted to the white citizen is already conferred by law upon the freedman; strong and stringent guards, by way of penalties and punishments, are thrown around his person and property, and it is believed that ample protection will be afforded him by due process of law, without resort to the dangerous expedient of "military tribunals," now that the war has been brought to a close. The necessity no longer existing for such tribunals, which had their origin in the war, gave objections to their continuance must present themselves to the minds of all reflecting and dispassionate men. Independently of the danger, in representative republics, of conferring upon the military, in time of peace, extraordinary powers--so

carefully guarded against by the patriots and statesmen of the earlier days of the Republic, so frequently the ruin of governments rounded upon the same free principles, and subversive of the rights and liberties of the citizen--the question of practical economy earnestly commends itself to the consideration of the lawmaking power. With an immense debt already burdening the incomes of the industrial and laboring classes, a due regard for their interests, so inseparably connected with the welfare of the country, should prompt us to rigid economy and retrenchment, and influence us to abstain from all legislation that would unnecessarily increase the public indebtedness. Tested by this rule of sound political wisdom, I can see no reason for the establishment of the "military jurisdiction" conferred upon the officials of the Bureau by the fourteenth section of the bill.

By the laws of the United States and of the different States competent courts, Federal and State, have been established and are now in full practical operation. By means of these civil tribunals ample redress is afforded for all private wrongs, whether to the person or the property of the citizen, without denial or unnecessary delay. They are open to all, without regard to color or race. I feel well assured that it will be better to trust the rights, privileges, and immunities of the citizen to tribunals thus established, and presided over by competent and impartial judges, bound by fixed rules of law and evidence, and where the right of trial by jury is guaranteed and secured, than to the caprice or judgment of an officer of the Bureau, who it is possible may be entirely ignorant of the principles that underlie the just administration of the law. There is danger, too, that conflict of jurisdiction will frequently arise between the civil courts and these military tribunals, each having concurrent jurisdiction over the person and the cause of action--the one judicature administered and controlled by civil law, the other by the military. How is the conflict to be settled, and who is to determine between the two tribunals when it arises? In my opinion, it is wise to guard against such conflict by leaving to the courts and juries the protection of all civil rights and the redress of all civil grievances.

[. . .]

Chicago Citations

Bibliography entry:

Johnson, Andrew. "Veto Message." July 16, 1866. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Andrew Johnson, "Veto Message," July 16, 1866, American Presidency Project, https://www.presidency.ucsb.edu/documents/veto-message-441.

Shortened citation:

Johnson, veto message, July 16, 1866.

PRIMARY SOURCE P15.39

Certificate of Deposit, Freedman's Savings and Trust Company

Freedman's Savings and Trust Company; depositor Martin Hilliard · White's Ranche, Texas, July 29, 1866

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	A soldier's deposit shows Black Americans building savings and trusting federal institutions.
TREATMENT	Public-domain image

Historical Context

Congress chartered the Freedman's Savings and Trust Company in 1865 to encourage thrift among freedpeople and Black soldiers. Branches followed the army and the Bureau across the South.

This certificate records a deposit of ten dollars by Martin Hilliard of Company B, 116th U.S. Colored Infantry, a Kentucky regiment then stationed on the Texas border. The bank failed in 1874, and depositors lost much of their savings.

Editorial note: Image from the copy supplied by the instructor (reproduced by the Freedmen and Southern Society Project). The handwriting on the left edge appears to read "Louisville."

Primary Source Image

Certificate of deposit, National Freedman's Savings and Trust Company, July 29, 1866.

Chicago Citations

Bibliography entry:

Freedman's Savings and Trust Company. Certificate of Deposit No. 31, Martin Hilliard, July 29, 1866. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Certificate of deposit, Freedman's Savings and Trust Company, Martin Hilliard, July 29, 1866, via Freedmen and Southern Society Project, https://freedmen.umd.edu/.

Shortened citation:

Freedman's Bank certificate, Martin Hilliard.

PRIMARY SOURCE P15.40

Racist Campaign Posters of 1866: "The Two Platforms" and "The Freedman's Bureau!"

Campaign posters for Hiester Clymer, Pennsylvania governor's race · 1866

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	Democratic posters show how opponents of Reconstruction used racist fears of Black suffrage and the Freedmen's Bureau.
TREATMENT	Public-domain images

Historical Context

In the 1866 Pennsylvania governor's race, Democrat Hiester Clymer, who backed President Johnson, ran against Republican John W. Geary. Clymer's campaign issued posters attacking Republicans with racist imagery.

"The Two Platforms" contrasts a caricatured Black man under Geary's banner of Black suffrage with a white man under Clymer's banner. "The Freedman's Bureau!" shows a caricatured freedman at leisure while white men labor, claiming that taxes supported idle freedpeople. Geary won the election.

Editorial note: Images reproduced from the Library of Congress (via Wikimedia Commons). These are racist political propaganda; they show the arguments Reconstruction's opponents made, not conditions as they were.

Primary Source Image

"The Two Platforms," Clymer campaign poster, 1866. Library of Congress.

"The Freedman's Bureau!", Clymer campaign poster, 1866. Library of Congress.

Chicago Citations

Bibliography entry:

The Two Platforms. Broadside, 1866. Library of Congress.

The Freedman's Bureau! An Agency to Keep the Negro in Idleness at the Expense of the White Man. Broadside, 1866. Library of Congress.

Footnote citation:

The Two Platforms, broadside (Pennsylvania, 1866), Library of Congress; *The Freedman's Bureau!*, broadside (Pennsylvania, 1866), Library of Congress.

Shortened citation:

The Two Platforms; *The Freedman's Bureau!*

PRIMARY SOURCE P15.41

Georgia Freedman to the Freedmen's Bureau Commissioner

E. C. Powell to Gen. O. O. Howard · Greensboro, Georgia, September 22, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman seeks federal help for a community's move to land of its own.
TREATMENT	Full public-domain text

Historical Context

In 1866 some freedpeople in Georgia's cotton belt formed committees to move their communities to public land open under the Southern Homestead Act.

E. C. Powell, writing for freedpeople in Greene County, apologized for writing to so high an official and asked General Howard for help in settling on public land.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Greensboro Ga Sept. 22nd 1866

General– I dont feel atal justifiably in taking the liberty to use your honour,d name, but I pray your goodness and wisdom may pity my unfortunate condition, and pardon me for what may appear presumptuous in this action–for I would not intrude your majesty upon the peril of my existence. I am poor–unlearn,d and (comparatively) helpless man of African descent. there are many of us, and we are all poor and ignorant one not able to healp the other.–yet we have each others enterest at heart and are trying to–the–best–of our knowlege to–Educate and Elevate our selves. The Colord people in this vicinity have many grievences to complane of,–to–which I shall not elude. after siting down and counting up the cost,–our resolution, is–to settle on the homestead Lands–if we can do so.– And if it is best for us to locate on these Lands, (Which we beleave tis) We wish to begain the Emigration at once,– our plan is to send first a Land inspector to locate settlements,–And in company with said Land inspector, we propose sending a company of Laborers to commence building ammediately. honoured General–Will you give us transportation for these parties ammediately. we wish to start said company of Laborers within Ten Twelve days–if posiable.

kind sir–please forgive any thing I may have said a miss, and if it please your honour–grant our petition– And oblige

E. C. Powell

Chicago Citations

Bibliography entry:

Powell, E. C. Letter to Major General O. O. Howard, September 22, 1866. Unregistered Letters Received, ser. 632, Georgia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

E. C. Powell to O. O. Howard, September 22, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Greene%20Co.html.

Shortened citation:

Powell to Howard, September 22, 1866.

PRIMARY SOURCE P15.42

The Freedmen's Union Industrial School, Richmond; "The First Vote"

Frank Leslie's Illustrated Newspaper (1866); Alfred R. Waud, Harper's Weekly (November 16, 1867)

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	Illustrations show education and voting as central parts of freedom.
TREATMENT	Public-domain images

Historical Context

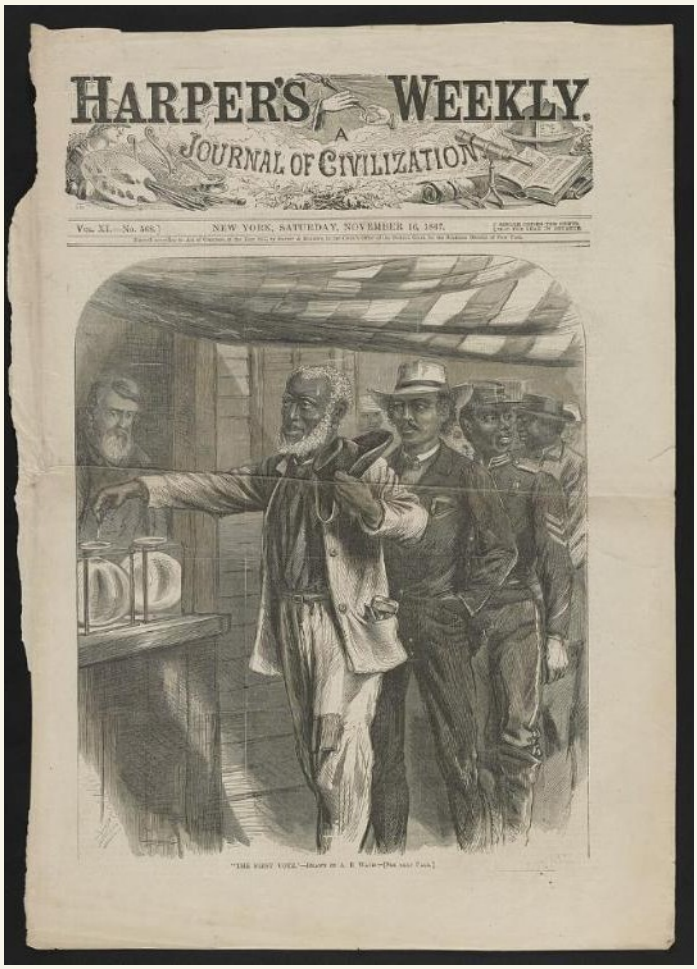
Freedpeople built and supported schools across the South, often with help from northern aid societies. *Frank Leslie's Illustrated Newspaper* pictured Black women learning to sew at the Freedmen's Union Industrial School in Richmond.

Under the Reconstruction Acts, Black men voted in the South for the first time in 1867, electing delegates to new state constitutional conventions. Alfred R. Waud's "The First Vote" shows a line of Black voters, a workman, a city man, and a Union soldier, casting ballots.

Editorial note: Images reproduced from the Library of Congress (via Wikimedia Commons). Both are northern magazine illustrations and present an idealized view.

Primary Source Image

"Glimpses at the Freedmen—The Freedmen's Union Industrial School, Richmond, Va.," *Frank Leslie's Illustrated Newspaper*, 1866. Library of Congress.



Alfred R. Waud, "The First Vote," *Harper's Weekly*, November 16, 1867. Library of Congress.

Chicago Citations

Bibliography entry:

"Glimpses at the Freedmen—The Freedmen's Union Industrial School, Richmond, Va." Wood engraving. *Frank Leslie's Illustrated Newspaper*, September 22, 1866. Library of Congress, LCCN 98501491.

Waud, Alfred R. "The First Vote." Wood engraving. *Harper's Weekly*, November 16, 1867. Library of Congress, LCCN 2011648984.

Footnote citation:

"The Freedmen's Union Industrial School, Richmond, Va.," *Frank Leslie's Illustrated Newspaper*, September 22, 1866, Library of Congress, LCCN 98501491; Alfred R. Waud, "The First Vote," *Harper's Weekly*, November 16, 1867, Library of Congress, LCCN 2011648984.

Shortened citation:

"Freedmen's Union Industrial School"; Waud, "The First Vote."

PRIMARY SOURCE P15.43

The One Man Power vs. Congress (excerpts)

Charles Sumner · Boston, October 2, 1866

TOC FIT	Chapter 15 · Essay prompt 15.2 (How Radical Was Reconstruction?)
WHY HERE	A Radical leader demands national guarantees of equal rights and suffrage.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In the 1866 congressional campaign, Andrew Johnson toured the North attacking Radical Republicans. Charles Sumner campaigned for Republican candidates in Massachusetts.

In this speech Sumner charged that Johnson had welcomed former rebels while abandoning loyal Unionists and freedpeople. He demanded national guarantees of civil rights and impartial suffrage to secure what the war had won.

Editorial note: The text follows the Teaching American History transcription; ellipses are the editors'.

Document Text

[. . .]

. . . Then ensued a strange sight. Instead of faithful Unionists, recent rebels thronged the Presidential ante-chambers, rejoicing in a new-found favor. They made speeches at the President, and he made speeches at them. A mutual sympathy was manifest. On one occasion the President announced himself a “Southern man,” with “Southern sympathies,” thus quickening that sectional flame which good men hoped to see quenched forever. . . . Instead of telling the ex-rebels that thronged the Presidential ante-chambers, as he should have done, that he was their friend ; that he wished them well from the bottom his heart; that he longed to see their fields yield an increase and peace in all their borders, and that, to this end, he counselled them to devote themselves to agriculture, commerce and manufactures, and for the present to say nothing about politics;—instead of this, he sent them away talking and thinking of nothing but politics, and frantic for the re-establishment of a sectional power. Instead of designating officers of the army as military governors, which I had supposed he would do, he appointed ex-rebels, who could not take the oath required by Congress of all officers of the United States, and they in turn appointed ex-rebels to office under them, so that participation in the rebellion found its reward, and treason, instead of being made odious, became a passport to power. . . .

The Presidential Madness

. . . The evil that he has done already is on such a scale that it is impossible to measure it, unless as you measure an arc of the globe. I doubt if in all history there is any ruler, who in the same brief space of time has done so much. There have been kings and emperors, proconsuls and satraps, who have exercised a tyrannical power; but the facilities of communication now lend swiftness and extension to all evil influences, so that the President has been able to do in a year what in other days would have taken a life. Nor is the evil that he has done confined to any narrow spot. It is co-extensive with the Republic. Next to Jefferson Davis stands Andrew Johnson as its worst enemy. The whole has suffered; but it is the rebel region which has suffered most. He should have sent peace; instead, he sent a sword. . . .

What Remains To Be Done

. . . [L]et me tell you plainly what must be done. In the first place, Congress must be sustained in its conflict with the One Man Power, and in the second place, ex-rebels must not be restored to power. Bearing these two things in mind the way will be easy. Of course, the constitutional amendment must be adopted. As far as it goes, it is well; but it does not go far enough. More must be done. Impartial suffrage must be established. A homestead must be secured to every freedman . . . If to these is added education, there will be a new order of things, with liberty of the press, liberty of speech and liberty of travel. . . . Our present desires may be symbolized by four "E's," standing for Emancipation, Enfranchisement, Equality and Education. Let these be secured and all else will follow. . . .

Impartial Suffrage Must Be Secured by the Nation and Not Left to the States

You are aware, that from the beginning I have insisted upon impartial suffrage as the only certain guarantee of security and reconciliation. I renew this persistence and mean to hold on to the end. Every argument, every principle, every sentiment is in its favor. But there is one reason, which at this moment I place above all others; it is the necessity of the case. You will require the votes of colored persons in the rebel States in order to sustain the Union itself. Without their votes you cannot build securely for the future. . . . Give the ballot to the colored citizen and he will be not only assured in his own rights, but he will be the timely defender of yours. . . .

But it is said, leave this question to the States; and State rights are pleaded against the power of Congress. This has been the cry – at the beginning to prevent efforts against the Rebellion, and now, at the end, to prevent efforts against the revival of the Rebellion. . . .

But there are powers of Congress, not derived from the rebellion, which are adequate to this exigency, and now is the time to exercise them and thus complete the work that has been begun. It was the nation that decreed emancipation, and the nation must see to it, by every obligation of honor and justice, that emancipation is secured. It is not enough that slavery is abolished in name. The Baltimore platform, on which President Johnson was elected, requires "the utter and complete extirpation of Slavery from the soil of the Republic ;" but his can be accomplished only by the eradication of every inequality and caste, so that all shall be equal before the law. . . .

. . . Surely it is not natural to suppose that people, who have claimed property in their fellow-men – who have indulged that wild and guilty fantasy that man can hold property in man – will become at once the kind and just legislators of freedmen. It is contrary to nature to expect it. Even if they have made up their minds to emancipation, they are, from inveterate habit and prejudice, incapable of doing justice to the colored race. . . . People do not change suddenly or completely. . . .

[. . .]

Chicago Citations

Bibliography entry:

Sumner, Charles. "The One Man Power vs. Congress!" Speech at Boston, October 2, 1866. Teaching American History.

Footnote citation:

Charles Sumner, "The One Man Power vs. Congress!" (speech, Boston, October 2, 1866), via Teaching American History, https://teachingamericanhistory.org/document/the-one-man-power-vs-congress/.

Shortened citation:

Sumner, "One Man Power vs. Congress."

PRIMARY SOURCE P15.44

Mississippi Freedman to the Freedmen's Bureau Commissioner

A. W. Ross to Gen. O. O. Howard · Vicksburg, October 6, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedpeople organize to claim homesteads and escape high rents.
TREATMENT	Full public-domain text

Historical Context

The Southern Homestead Act of June 1866 opened public lands in five southern states to settlers in eighty-acre tracts, giving freedpeople and loyal whites priority until 1867. Much of the land was poor or hard to reach.

Freedpeople in Vicksburg formed a committee to learn how to claim the homesteads. A. W. Ross reported their questions to General Howard and noted that freedpeople were paying ten to twelve dollars an acre in rent.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; the editors' footnote numbers have been removed.

Document Text

Vicksburg Miss. Oct. 6th/66

General At a Freedmens meeting held in this city today a week a committee was appointed to obtain all the information attanable in regard to the Eighty Acre Homestead Lands. in furtherence of that. a sub. committee called upon Gen. Wood he could give no Information We then sent one of the committee out to Jackson and the Land officer there–(at leest the one it was published whoe had received the appointment. (Mr. Austin Morgan) could give no information about it and now General we ask of you in the Name and on the behalf of three hundred heads of Families, whoe during this year have been cultivating cotton and some of whom had to pay as high Ten and twelve dollars per acre Rent, and whoe owing to the Army worm–the Land Owners–and being held to “what was nominated in the bond.” We ask of you we beg of you to Hurry up these Laggard Land officers. Our people Will go on any Land in a Body or in 80 acre patches here & there–any where to be saved from paying all they can earn to the owners of the soil and have the owners manage by hook or by crook to get all.

Approved by the Committee

(signed) A. W. Ross
chair man

Henry Mayson secretary

Chicago Citations

Bibliography entry:

Ross, A. W. Letter to General O. O. Howard, October 6, 1866. R-118 1866, Letters Received, ser. 15, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

A. W. Ross to O. O. Howard, October 6, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Vicksburg%20mtg.html.

Shortened citation:

Ross to Howard, October 6, 1866.

PRIMARY SOURCE P15.45

Alabama Planter to the Alabama Freedmen's Bureau Assistant Commissioner

John Strain to Gen. Wager Swayne · Marion, Alabama, October 28, 1866

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	A planter shows how crop failure and credit left workers in debt.
TREATMENT	Full public-domain text

Historical Context

The 1866 cotton crop failed across much of the South because of drought, heavy rains, and insects. Planters and workers alike faced ruin.

John Strain, a planter working on a system of one-fourth shares, wrote that the failure had left "every hand in my debt" and warned of suffering among both Black and white poor unless public authorities provided food.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Marion, Perry County [Ala.] October 28th 1866.

Sir:– I suppose you are aware of the failure of crops generally in Alabama this year. Much suffering for food will be the result, unless the poor Black and white people are provided for by the public authorities.

In this section of country, on a large majority of farms, not enough has been produced to pay the Freedmen their wages where the contract was for money– And where a part of the crop was given, the Freedmens part is so small it will not give them any means of support.– And in most cases the farmers advanced to the laboures early in the season very liberally, and now find on a division of the crops, that the hired persons are all in their debt without any means of paying–

This state of affairs is extremely hard on both the Farmers and Freedmen. This, too, has been a very sickly season and the negroes are generally indebted to physic[an]s, & are now unable to pay.– On my plantations of about 90 hands I contracted to give one fourth of the crops & furnish them with good houses, fuel and full rations and give them such medical attention as my superintendent and self could give– without my knowledge or endorsement the hands imployed a physician to visit the plantation and pay him Six Dollars for every hand on it– The crop is now all gatherd & sold and from advances I had made, I find every hand in my debt, from $20 to $90 each. The physician thinks I am bound to pay to him his Bill– I desire to know your opinion in the case. The imployment of the physician was a voluntary act of the Freedmen months after they went into my imploy– you will much oblige me if you will write to me on the subect,– Respectfully

John Strain

Direct to Marion. Perry County Ala

Chicago Citations

Bibliography entry:

Strain, John. Letter to General Swayne, October 28, 1866. Unregistered Letters Received, ser. 9, Alabama Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

John Strain to Wager Swayne, October 28, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Strain.html.

Shortened citation:

Strain to Swayne, October 28, 1866.

PRIMARY SOURCE P15.46

South Carolina Freedwoman to an Unidentified Military Officer

Levinah Malby · Orangeburg District, South Carolina, November 18, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A freedwoman seeks the crop share she was promised and never paid.
TREATMENT	Full public-domain text

Historical Context

Many freedpeople who worked in 1865 for a promised share of the crop were never paid.

Levinah Malby wrote to a general asking him to see that she received her share of the crop she had worked in "the year of our freedom," 1865.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

[Orangeburg District, S.C.] November 18th 1866

Dear General. Sur please do me a peace of kineness if you please Sur. that is for you to see that I shall get my part of the crop that I have laboured for in the year of our freedom that is the yeare of 1865 When peace was Declared. I worked for Mr Middelton Dantzler on the two Chop Road near providence church he and the union troops that came there has promised to give us a Just part of the crop and has not Dun. So as yet they promised to give us a part of the corn peas Rice and potatoes and my Close and So I havent got them as yet he Sed to me that if I got my part I had to go to orange burgh to the yankes and So I dident go them and I taught I would get youre advice on the Subject I am very nead[ey] for it So please General ancer thiss little note for me if you please by Ben youres very Respec[tfl]

Levinah Malby

Chicago Citations

Bibliography entry:

Malby, Levinah. Letter to "General," November 18, 1866. Enclosed in H. W. Smith to J. D. Greene, November 21, 1866, Letters Received, ser. 3156, Columbia, S.C., Acting Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Levinah Malby to "General," November 18, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Malby.html.

Shortened citation:

Malby to "General," November 18, 1866.

PRIMARY SOURCE P15.47

South Carolina Freedman to the South Carolina Freedmen's Bureau Assistant Commissioner

Kelly Moses, for the Colored Committee of Sumter District, to Gen. Robert K. Scott · November 21, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Freedmen organize to escape one-third shares by seeking land of their own.
TREATMENT	Full public-domain text

Historical Context

Freedpeople working for a third of the crop in South Carolina often found it left them destitute. The Southern Homestead Act of 1866 opened public lands in Florida and other states to settlers.

Kelly Moses wrote for a committee of freedmen in Sumter District that they could not live on a third of the crop, and asked for help moving to public land in Florida.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

[Sumter District, S.C.] Nov 21 the 1866

Dear Sir I have take this great opportunity of writing thes few Lines to in form you of the condition of the poor freedman in Sumter District and in Bishopville they all agreed that they cant not Live at the third for If they worke at the third another year they children and them Self must starve with Honger and with nakedness and they all concluded if the goverment will help them this year according to the promis they would at wants [once] go and ocapy the Land in Florida at wants all of the commitee mens say not that they wants the goverment to Support them but they wants tor Support the goverment and they all Says that if the United State will Stand up to them this year and give them tim this year to get the Land Clean, and prepar it they all Says that they think in the course of two year they will be abal to make cotton Enought to pay the goverment Back for all the help and Also all of the Peopel is Weating now at the word By the generl permission and they all concluded to Send two men out to Florida to Look at the goverment Land and to fined out the condition of the Land and how our fear Would be this year all of the freedmen and Women praying for the helping hand of the goverment thist year and feel that God Will Bless and help them to till the Land of Florida and make cotton Enought to pay the goverment for the Land and for the finding Ration thist year.

and Also the White men all meet togather in Bishopville and agree to not pay the freemen no cotton money untill January So the can get to Bound them uppon that third again: and the Colered Committee ask or Beg the Generl to Pleas to give the two men A Passport to Florida to Look at the Land So we all can Be Reedy to go By January 1867 yours true Servant

Kelly Mosses

Chicago Citations

Bibliography entry:

Moses, Kelly. Letter to General Scott, November 21, 1866. Unregistered Letters Received, ser. 2923, South Carolina Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Kelly Moses to Robert K. Scott, November 21, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Moses.html.

Shortened citation:

Moses to Scott, November 21, 1866.

PRIMARY SOURCE P15.48

Texas Freedmen's Bureau Inspector to the Texas Headquarters (excerpts)

William H. Sinclair to Lt. Col. Ellis · Galveston, November 30, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau inspector describes contract disputes and proposes market remedies.
TREATMENT	Public-domain text, selected excerpts

Historical Context

William H. Sinclair, a Bureau inspector, traveled to posts in south Texas at the end of 1866 as planters and freedpeople settled accounts and prepared new contracts.

He reported that vague contracts and planters' sale of workers' shares led to constant disputes, and proposed reforms, including letting freedpeople sell their own share of the crop.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; ellipses are the editors' and their footnote numbers have been removed.

Document Text

Galveston Tex. Nov. 30th, 1866

I have the honor to report that in compliance with paragraph 1 Special Orders No. 139 from these Hd. Qurs. dated Nov. 19th, 1866 I proceeded to inspect the posts of Clinton and Victoria.

. . . .

Contracts for the new year are beginng to come in to the agents for approval but they have so far declined to take any action awating instructions from General Kiddoo as to form and requirements. Such instructions should be issued as soon as practicable as within the next 30 days all contracts will be made for the ensuing year= The great fault this year in the making of contracts has been the indefinite manner in which they are gotten up= too many things which should be in are left out–said to be “understood” but this gives rise to trouble as Employer and laberer understand them differently and trouble always will arise where this is the case=

Agents cannot be too careful in having the contracts fully understood by the freedpeople and its conditions plainly and fully stated before being signed–

The following are some of the points which require to be inserted in the contract and I suggest them to aid you in getting up instructions in regard to contracts= Should the matter be entered into as much in detail as this would require=

1st, The contract should plainly state whether the freedpeople are to work saturdays or not and if they are whether all or half the day

2nd, When the contract terminates–whether at the end of the year or when the crop is gathered= Sometimes the planter wants them to leave when the crop is in and they think they should remain until the end of the year and vice versa– This has been the source of a great deal of trouble this fall=

3rd, Corn should be divided as soon as gathered and cribbed seperately= Planters feed from the whole crop until the division and then are not willing to allow for this in the settlement=

4 Contracts should plainly specify whether the fences are to be kept in repair and what fences and if rails will be required the probable number to be split=

5th, Whether medical attendance is to be furnished or not and what kind= whether a physician or medicines kept in the house and the planter treat the sick as was common in times of slavery=

6th, Whether they are to have an overseer or not and by whom he is to be selected and also whether he shall be black or white

7th, Whether when the freedpeople are working for a portion of the crop or rent the land and the stock and tools are furnished by the owner of the land if animals die or tools are broken who is to stand the loss–The owner or the freedpeople? Such cases arise in which the planter alleges it is through carelessness or other unnecessary cause and the other says it was not= "Except ordinary wear and tear" is too indefinite

8th, In regard to rations and quarters and the quantity and quality of each=

9th, Whether time lost by laziness or other unnecessary causes is to be deducted from time of service or not= many of the freedpeople idle away their time which results very disastrously sometimes to the planter= Something should be done to induce them to work faithfully and perhaps the knowledge that they got no pay would help the matter somewhat.

10th, The number of hours for labor should be fully prescribed=

11th, Whether women and children are to work or not and if not at whose expense the are to be fed and clothed.

12th, How wages are to be paid and whether in specie or currency= I do not think it will be easy to contract with the freedpeople for anything but specie– Also what proportion retained if any.

13th, When working for a portion of the crop–what the proportion is– by whom it is to be divided– when it is to be divided and who shall dispose of it= Shall the whole crop be sold and the proceeds divided or not– who shall furnish rope and bagging= Who do the ginning.

A great deal of trouble arises in regard to the sale of the crop. I am satisfied many freedpeople authorize their employer to sell their share and then complain of him for trying to swindle them and get the cotton stopped–many times when the planter has done no intentional wrong and has no idea of swindling them. By far the best way is to give them their share of the crop and let them dispose of it as they choose It is the easiest way for the planter and best for the freedpeople.

14 Where clothing is to be furnished the Kind and quality. I am Very Resp. Your Obt Servt

Wm H Sinclair

Chicago Citations

Bibliography entry:

Sinclair, William H. Letter to Bvt. Lt. Col. Ellis, November 30, 1866. Unregistered Letters Received, ser. 3621, Texas Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

William H. Sinclair to Ellis, November 30, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Sinclair.html.

Shortened citation:

Sinclair to Ellis, November 30, 1866.

PRIMARY SOURCE P15.49

Alabama Freedman to the Freedmen's Bureau Subassistant Commissioner at Huntsville

Richmond Body to Col. John B. Callis · Florence, Alabama, December 6, 1866

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A sharecropping family loses its whole crop to an employer's claim of debt.
TREATMENT	Full public-domain text

Historical Context

By 1866 many freed families worked land for a share of the crop, supplying their own food and the feed for the work animals. At the year's end the landowner divided the crop and deducted what he claimed was owed.

Richmond Body wrote that his family had contracted for half the crop, but that their employer seized the whole crop, their hogs, and their wagon to pay a claimed debt, leaving them with nothing after a year's labor.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Florence Ala. Dec. 6th 1866,

Dear Sir: At the commencement of the year I made a contract with a man by the name of W. Beckwith of this County to work his farm– we were to get one half of what we would have made– we were to feed ourselves and also the teames– we (I mean myself and family who is composed twenty eight, in all about 12 hands the balance small children) have made a small crop consisting of 15 bales of cotton and 200 hundred barrels of corn– we never received any help from Mr Beckwith, exceding 2 bushels of wheat and 2 bushels of rye and he furnished us with three plows– still at the day of settlement–Mr Beckwith has had all of our part of the crop attached claiming that we were owing him a very large amount– I dont' know what we can owe him for we never have received any thing from him except what I have named above– we are left without anything after our hard years labor– he took away from us 200 Blls. of corn, about 20 head of hogs and our wagon and harness– we called on Judge Tinge but he could not do anything for us as he said he would not interfere with civil Law– the fact of the thing is that Mr. Tinge is afraid to do anything that would be against any of those big Southern men–1 I was induced by a Northern gentleman who is farming here to write you and get. your advice in the matter– no lawyer here can be had to take up a case for a negroes– My contract was registered with the Freedmens Bureau Agent and can be investigated if you would only give it your attention. My family is without any resource whatever– Please answer me what is to be done, by an investigation in this Country you will soon find that my case is only but one of the many who have been treated like me, Yours very respectfully

Richmond Body

Chicago Citations

Bibliography entry:

Body, Richmond. Letter to Col. John B. Callis, December 6, 1866. Vol. 59, 47–48, Letters Received, ser. 112, Huntsville, Ala., Subassistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Richmond Body to John B. Callis, December 6, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Body.html.

Shortened citation:

Body to Callis, December 6, 1866.

PRIMARY SOURCE P15.50

Two Letters from the Freedmen's Bureau Acting Subassistant Commissioner at Griffin, Georgia

E. M. L. Ehlers to Capt. Eugene Pickett · December 17, 1866, and January 4, 1867

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau officer reports how share contracts left freedpeople in debt with little remedy.
TREATMENT	Full public-domain text

Historical Context

By the end of 1866, freedpeople working on shares in Georgia often found at the year's settlement that their portion of the crop did not cover what employers charged them for supplies.

Bureau officer E. M. L. Ehlers reported some two hundred destitute freedpeople in Upson County. He wrote that workers always ended the year in debt, never received more than a third of the crop, and that in the county it was "not considered a crime to cheat & defraud" them.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Griffin Ga Dec 17[th] 1866

Capt I have the honor to report that a number of inteligent freedmen have reported to me that there are about two hundred (200) destitute freedpeople in Thomaston Upson Co Ga who are without even the necessaries of life & who desire to go west these freedmen represent that all these freedpersons have been driven away from thiere homes & if settlements have been made the freedpersons were always brought in debt to the employer– I am also informed that the major part of freedperson residing in that county desire to leave as there is no Justice & protection for them in upson– a detail of two enlisted men whom I sent to upson co to protect Anthony Trice [a] freedmen in moving away from that county have just returned & report that they were mobed by the citizens of Thomaston the freedmen Trice taken from them & locked up in Jail–but–released the following day when informed by private Kelly 16″ Infanty that a company of men would arrive in Thomaston that day to liberate him Threats were made to these Soldiers that thier lives would be taken none of the threats made were carried into execution & the freedmen & his family were brought to this place. I–would respectfully request instruction as to what shall be done with the destitute freedpeople in Upson Co–also information as to wether there is an agent of the Bureau at that point as I am informed one “Green” claims to be such–but certainly does not protect the freedpeople in thier right I am Captain very Respectfuly Your obt Sert

(Signed) E M L Ehlers

Griffin Ga. Jan 4[th] 1867

Capt I have the honor to report that in obedience to S.O. 187 of Dec 26th 1866 from your office I visited Upson Co & investigated the condition of the freedpeople of that County– I– saw & conversed with a number of the most intelligent & even these have failed to make a support or at least they are now in debt to–the employer (according to his account) & they assure me that a year hence, would see them in no better condition, for in the event of thier

earning a little beyond the nescessaries of life– it could not as in the present year be obtained from the employer as his account against them was sure to be larger than thiers against him & that in upson Justice was intended only for the white man– At Thomaston I saw about one hundred & fifty freed persons, many of them women & children who have congregated at that place for the purpose of going west. All these are in a truely deplorable condition. I conversed with every family & asked them why they did not make contracts for another year & received this reply from them all “that they never would get out of debt in Upson & that they wanted to go where Justice would be given them”. These people are now living in four (4) small buildings belonging to a Mr Thompson, who is feeding them as well as he can and came to him to be sent west having heard that the Government would transport them to good homes. of the two hundred freedpeople I talked with only five (5) had received a fair compensation for thier labor. meny of the abler hands of these families have already gone west, those now remaing will not be taken by parties hiring hands to go west, as it does not pay to transport so many children & if aid is not extended to them thier suffering will be intense. The Bureau Agent at this place with whom I had a long conversation says neither parties (white & black) have made anything this year as the drought ruined the crops. this sounds very well yet he tells me that his advice to the freedpeople is that instead of working for part of the crop they take standing wages the present year– now to be consistent if the drought ruined the crops last year does it follow that such will be the case this year! then why advise standing wages if setlements giving Justice to both white & black have been made when a portion of the crop pays better than wages. I saw none who had worked for a part of the crop–that had contracted for less then a third–yet I know a gentlemen who last year only gave his freedpeople a fifth he made half a crop. his people are not in debt to him but on the contrary have something over–& this on no better land than is found in Upson. I am convinced not only from what I saw & heard in that county but also from the complants made to me before going there by freedpeople who came to me that Justice might be done them that it is not considered a crime to cheat & defraud the poor ignorent negro– I am Capt very Respectfuly Your obt Sert

E M L Ehlers

Chicago Citations

Bibliography entry:

Ehlers, E. M. L. Letters to Eugene Pickett, December 17, 1866, and January 4, 1867. Letters Sent, ser. 887, Griffin, Ga., Subassistant Commissioner; and Unregistered Letters Received, ser. 632, Georgia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

E. M. L. Ehlers to Eugene Pickett, December 17, 1866, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Ehlers.html.

Shortened citation:

Ehlers to Pickett, December 17, 1866.

PRIMARY SOURCE P15.51

Report of a Speech by a Virginia Freedman

Bayley Wyat; recorded by a Quaker teacher · Yorktown, Virginia, late December 1866

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman claims a right to land based on generations of unpaid labor.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Thousands of freedpeople settled in camps on abandoned land near Yorktown and Hampton during the war. In late 1866 Bureau officials told them they would have to leave and return to the counties they had come from.

At a mass meeting in a schoolhouse, Bayley Wyat replied that freedpeople had a right to the land where they lived because their labor had built the country's wealth. A Quaker teacher wrote down his speech in dialect, and it was printed as a pamphlet.

Editorial note: The speech was recorded by a white Quaker observer, who rendered it in dialect; the wording is his, not a verbatim transcript. The text follows the Freedmen and Southern Society Project transcription.

Document Text

[. . .]

Bayley Wyat's Speech.

Taking notice of the address the gemmen gave us last night concerning leavin' the camps in which we are now settled, and thrown back to the adjinin' counties where we came from, it seems that it had been told the gemmen that if we would go back to the counties we came from, we should be taken care of as well as in the place where we are now located. But we have full satisfaction, if we turns back to them counties or the lands we came from, under the present situation of the rebels and the unsettled situation of the United States, we shall be forebber made hewers of wood and drawers of water.

But when we looks back and sees our former state, when education was kept from us; and though we was made like men by God as other men, we was kept in bondage,–we made bricks without straw under old Pharo; and you all 'members de home house and de wife house, how de wife house was often eight or ten miles from de home house, and we would go there Saturday night expectin' to see de wife we had left and she would be gone!–sent down South, nebber to come back, and de little cabin shut up and desolate;–den we would fold our arms and cry, “O Lord, how long!” and dat was all we could say. And we was not able to own even our names, as men among other men. For this cause we now looks on our present situation, and we believes it is by the overrulin' providence of God, and not of men, that we enjoys freedom,–that we are placed in this most pleasant situation.

And we first thanks God for this great blessin' we now has; second, we thanks our friends from de North for the great sacrifice which dey have made for our benefition; and we feels so well satisfied that we has God on our side,–that we has some friends that through God's assistance will intercede for us and assist us, yet wishes to be all the aid we can be to the United States as men.

And as to our dear friends, de Quakers to de North, we does consider dem our best earthly friends, for de great sacrifice dey has made and is making for us; we does tank dem most kindly; and as to de great North, for de sacrifices of treasures, of lives, and of blood, we now consider dem our affectionate friends, and we heartily tank dem.

We now, as a people, desires to be elevated, and we desires to do all we can to be educated, and we hope our friends will aid us all dey can.

As to our going back to the counties we came from and to the rebels again, we knows for the truth, by thousands of witnesses, the sight of the darkies who left the rebels in the time of war is now as a dose of pizen in their eyes, because we left the rebels and went to the Yankees.

We now feels unprotected against de rebels, and we feels unprotected wid dem; and though de rebels have and do scoff us for calling de North our friends we hope we shall nebber lose our confidence in dem,–I mean our friends in the North.

Oh, most respectable Friends ob de North please consider our interests; we feels sometimes as if our welfare in dis life depends on you.

Mr Vining, the Superintender of Schools, held a mass meeting on Friday night, and he departed to us some very good, perm'ent instructions, such as we believes are based on the very foundations of Truth; and immegiately we agrees with him to take his counsel, believing it is for our benefit, and we has every reason to believe he is a friend of ours.

I may state to all our friends, and to all our enemies, that we has a right to the land where we are located. For why? I tell you. Our wives, our children, our husbands, has been sold over and over again to purchase the lands we now locates upon; for that reason we have a divine right to the land.

Den again, the United States, by deir officers, told us if we would leave the Rebs and come to de Yankees and help de Government, we should have de land where dey put us as long as we live; and dey told us dat we should be see'd after and cared for by de Government, and placed in a position to become men among men.

And de Government furder promised to protect us from de rebels as long as we lived, and we sacrificed all we had, and left de rebels and came to the Yankees.

Some of us had some money to buy our freedom, and some of us had a house, and some of us had cattle with which we hoped sometimes to buy ourselves; but we left all depending on de promises of de Yankees.

Dey told us dese lands was 'fiscated from the Rebs, who was fightin' de United States to keep us in slavery and to destroy the Government. De Yankee officers say to us: “Now, dear friends, colored men, come and go with us; we will gain de victory, and by de proclamation of our President you have your freedom, and you shall have the 'fiscated lands.”

And now we feels disappointed dat dey has not kept deir promise. O educated men! men of principle, men of honor, as we once considered you was! Now we don't seem to know what to consider, for de great confidence we had seems to be shaken, for now we has orders to leave dese lands by the Superintender of the Bureau.

We was first ordered to pay rent, and we paid de rent; now we has orders to leave, or have our log cabins torn down over our heads. Dey say “de lands has been 'stored to de old owners, and dey must have it.”

And now where shall we go? Shall we go into the streets, or into de woods, or into de ribber? We has nowhere to go! and we now wants to know what we can do?

I is not here to ask de Government to help me nor my family. I has never asked any help from de Government nor from friends, and I never has received any. I has got a living by honest, hard work since I came to the Yankees, and I has saved something besides. I owes no man any thing, but my people cannot all do this. Dey has been bought and sold like horses; dey has been kept in ignorance; dey has been sold for lands, for horses, for carriages, and for every thing their old masters had. I want some gemmen to tell me of one ting that our people hasn't been sold to buy for deir owners.

And den didn't we clear the land, and raise de crops of corn, ob cotton, ob tobacco, ob rice, ob sugar, ob ebery ting. And den didn't dem large cities in de North grow up on de cotton and de sugars and de rice dat we made? Yes! I appeal to de South and to de North if I hasn't spoken de words of truth?

I say dey has grown rich, and my people is poor. We lives in slab cabins, on ground for floor, and many of us has not food, and we goes ragged and most naked.

God heard our groans. He saw our afflictions, and he came down and delivered us; but anudder king is now risen,–Andy Johnson! I will not call him king or President; he is not our friend; he has forgotten the afflictions of Joseph, if he ever knowed them, and we are now turned back to the old taskmasters. Our cabins are threatened to be turned down over our heads if we do not go, and we must be drove about from place to place, and chased as hounds chase rabbits. And we must go; and I ask again, where shall we go, and who shall we trust?

[. . .]

Chicago Citations

Bibliography entry:

Wyat, Bayley. "A Freedman's Speech." [Late December 1866]. Enclosed in S. C. Armstrong to O. Brown, January 26, 1867, A-78 1867, Registered Letters Received, ser. 3798, Virginia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Bayley Wyat, "A Freedman's Speech," [December 1866], RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Wyat.html.

Shortened citation:

Wyat, "A Freedman's Speech."

PRIMARY SOURCE P15.52

Memorial of the American Equal Rights Association to the Congress of the United States

American Equal Rights Association · 1867

TOC FIT	Chapter 15 · Essay prompt 15.2 (How Radical Was Reconstruction?)
WHY HERE	Women's rights advocates protest Reconstruction amendments that would write sex discrimination into the Constitution.
TREATMENT	Full public-domain text

Historical Context

Abolitionists and woman's rights activists founded the American Equal Rights Association in 1866 to campaign for suffrage for both Black Americans and women. Its leaders included Lucretia Mott, Elizabeth Cady Stanton, Susan B. Anthony, and Frederick Douglass.

The memorial protested any change to the Constitution that would introduce the word "male" and asked Congress to extend the vote to women as well as Black men. The Fourteenth and Fifteenth Amendments split the movement in 1869.

Editorial note: The text follows the memorial as printed in the *History of Woman Suffrage*, transcribed on Wikisource.

Document Text

[. . .]

MEMORIAL OF THE AMERICAN EQUAL RIGHTS ASSOCIATION TO THE CONGRESS OF THE UNITED STATES.

The undersigned, Officers and Representatives of the American Equal Rights Association, respectfully but earnestly protest against any change in the Constitution of the United States, or legislation by Congress, which shall longer violate the principle of Republican Government, by proscriptive distinctions in rights of suffrage or citizenship, on account of color or sex. Your Memorialists would respectfully represent, that neither the colored man's loyalty, bravery on the battle field and general good conduct, nor woman's heroic devotion to liberty and her country, in peace and war, have yet availed to admit them to equal citizenship, even in this enlightened and republican nation. We believe that humanity is one in all those intellectual, moral and spiritual attributes, out of which grow human responsibilities. The Scripture declaration is, "so God created man in his own image: male and female created he them." And all divine legislation throughout the realm of nature recognizes the perfect equality of the two conditions. For male and female are but different conditions. Neither color nor sex is ever discharged from obedience to law, natural or moral; written or unwritten. The commands, thou shalt not steal, nor kill, nor commit adultery, know nothing of sex in their demands; nothing in their penalty. And hence we believe that all human legislation which is at variance with the divine code, is essentially unrighteous and unjust. Woman and the colored man are taxed to support many literary and humane institutions, into which they never come, except in the poorly paid capacity of menial servants. Women has been fined, whipped, branded with red-hot irons, imprisoned and hung; but when was woman ever tried by a jury of her peers? Though the nation declared from the beginning that "all just governments derive their power from the consent of the governed," the consent of woman was never asked to a single statute, however nearly it affected her dearest womanly interests or happiness. In the despotisms

of the old world, of ancient and modern times, woman, profligate, prostitute, weak, cruel, tyrannical, or otherwise, from Semiramis and Messalina, to Catherine of Russia and Margaret of Anjou, have swayed, unchallenged, imperial scepters; while in this republican and Christian land in the nineteenth century, woman, intelligent, refined in every ennobling gift and grace, may not even vote on the appropriation of her own property, or the disposal and destiny of her own children. Literally she has no rights which man is bound to respect; and her civil privileges she holds only by sufferance. For the power that gave, can take away, and of that power she is no part. In most of the States, these unjust distinctions apply to woman, and to the colored man alike. Your Memorialists fully believe that the time has come when such injustice should cease. Woman and the colored man are loyal, patriotic, property-holding, tax-paying, liberty loving citizens; and we can not believe that sex or complexion should be any ground for civil or political degradation. In our government, one-half the citizens are disfranchised by their sex, and about one-eighth by the color of their skin; and thus a large majority have no voice in enacting or executing the laws they are taxed to support and compelled to obey, with the same fidelity as the more favored class, whose usurped prerogative it is to rule, Against such outrages on the very name of republican freedom, your memorialists do and must ever protest. And is not our protest pre-eminently as just against the tyranny of taxation without representation, ag was that thundered from Bunker Hill, when our revolutionary fathers fired the shot that shook the world? And your Memorialists especially remember, at this time, that our country is still reeling under the shock of a terrible civil war, the legitimate result and righteous retribution of the vilest slave system ever suffered among men. And in restoring the foundations of our nationality, your memorialists most respectfully and earnestly pray that all discriminations on account of sex or race may be removed; and that our Government may be republican in fact as well as form; A GOVERNMENT BY THE PEOPLE, AND THE WHOLE PEOPLE; FOR THE PEOPLE, AND THE WHOLE PEOPLE. In behalf of the American Equal Rights Association,

Theodore Tilton, } Vice-Presidents. Lucretia Mott, President,

Frederick Douglass, Susan B. Anthony, Secretary.

Elizabeth Cady Stanton,

[. . .]

Chicago Citations

Bibliography entry:

American Equal Rights Association. "Memorial of the American Equal Rights Association to the Congress of the United States." 1867. In *History of Woman Suffrage*, edited by Elizabeth Cady Stanton, Susan B. Anthony, and Matilda Joslyn Gage, vol. 2, chap. 18. New York: Fowler & Wells, 1882. Wikisource.

Footnote citation:

"Memorial of the American Equal Rights Association to the Congress of the United States" (1867), in *History of Woman Suffrage*, ed. Elizabeth Cady Stanton et al. (New York: Fowler & Wells, 1882), 2: chap. 18, via Wikisource.

Shortened citation:

American Equal Rights Association, "Memorial."

PRIMARY SOURCE P15.53

Speech on Reconstruction (excerpts)

Thaddeus Stevens · House of Representatives, January 3, 1867

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.4 (What Built Black Freedom?)
WHY HERE	The Radical leader argues that Black suffrage is essential to rebuilding the South on loyal foundations.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Thaddeus Stevens (1792–1868) of Pennsylvania led the Radical Republicans in the House. After Republicans won a sweeping victory in the 1866 elections, he pressed for a new Reconstruction program.

In this speech Stevens argued that Congress, not the president, held sovereign power over the conquered South, and that impartial suffrage for Black men was necessary both as a matter of justice and to keep loyal governments in power.

Editorial note: The text follows the Teaching American History transcription; ellipses are the editors'.

Document Text

[. . .]

In this country the whole sovereignty rests with the people, and is exercised through their Representatives in Congress assembled. . . . No Government official, from the president and the Chief Justice down, can do any one single act which is not prescribed and directed by the legislative power. . . .

. . . This I take to be the great question between the President and Congress. He claims the right to reconstruct by his own power. Congress denies him all power in the matter, except those of advice, and has determined to maintain such denial. . . .

. . . [President Johnson] desires that the States created by him shall be acknowledged as valid States, while at the same time he inconsistently declares that the old rebel States are in full existence, and always have been, and have equal rights with the loyal States. . . .

Congress refuses to treat the States created by him as of any validity, and denies that the old rebel States have any existence which gives them any rights under the Constitution. . . . Congress denies that any State lately in rebellion has any government or constitution known to the Constitution of the United States . . . .

It is to be regretted that inconsiderate[3] and incautious Republicans should ever have supposed that the slight amendments already proposed to the Constitution, even when incorporated into that instrument, would satisfy the reforms necessary for the security of the Government. Unless the rebel States, before admission, should be made republican in spirit, and placed under the guardianship of loyal men, all our blood and treasure will have been spent in vain. I waive now the question of punishment which, if we are wise, will still be inflicted by moderate confiscations, both as a reproof and example. Having these States, as we all agree, entirely within the power of Congress, it is our duty to take care that no injustice shall remain in their organic laws.[4] Holding them “like clay in the hands of the potter,”[5] we must see that no vessel is made for destruction. Having now no governments, they must have enabling acts. . . . Impartial suffrage, both in electing the delegates and ratifying their proceedings, is now the fixed rule. There is more reason why colored voters should be admitted in the rebel States than in the Territories. In the States they form the great mass of the loyal men. Possibly with their aid loyal governments may be established in most of those States. Without it all are sure to be ruled by traitors; and loyal men, black and

white, will be oppressed, exiled, or murdered. There are several good reasons for the passage of this bill. In the first place, it is just. I am now confining my arguments to Negro suffrage in the rebel States. Have not loyal blacks quite as good a right to choose rulers and make laws as rebel whites? In the second place, it is a necessity in order to protect the loyal white men in the seceded States. The white Union men are in a great minority in each of those States. With them the blacks would act in a body; and it is believed that in each of said States, except one, the two united would form a majority, control the States, and protect themselves. Now they are the victims of daily murder. They must suffer constant persecution or be exiled. . . . .

Another good reason is, it would insure the ascendancy of the Union party. Do you avow the party purpose? exclaims some horror-stricken demagogue. I do. For I believe, on my conscience, that on the continued ascendancy of that party depends the safety of this great nation. If impartial suffrage is excluded in the rebel States then everyone of them is sure to send a solid rebel representative delegation to Congress, and cast a solid rebel electoral vote. They, with their kindred Copperheads of the North, would always elect the President and control Congress. While slavery sat upon her defiant throne, and insulted and intimidated the trembling North, the South frequently divided on questions of policy between Whigs and Democrats,[6] and gave victory alternately to the sections. Now, you must divide them between loyalists, without regard to color, and disloyalists, or you will be the perpetual vassals of the free-trade, irritated, revengeful South. For these, among other reasons, I am for Negro suffrage in every rebel State. If it be just, it should not be denied; if it be necessary, it should be adopted; if it be a punishment to traitors, they deserve it.

But it will be said, as it has been said, “This is Negro equality!” What is Negro equality. . .? It means . . . just this much, and no more: every man, no matter what his race or color; every earthly being who has an immortal soul, has an equal right to justice, honesty, and fair play with every other man; and the law should secure him these rights. The same law which condemns or acquits an African should condemn or acquit a white man. The same law which gives a verdict in a White man’s favor should give a verdict in a black man’s favor on the same state of facts. Such is the law of God and such ought to be the law of man. This doctrine does not mean that a Negro shall sit on the same seat or eat at the same table with a white man. That is a matter of taste which every man must decide for himself. . . . If there be any who are afraid of the rivalry of the black man in office or in business, I have only to advise them to try and beat their competitor in knowledge and business capacity, and there is no danger that his white neighbors will prefer his African rival to himself. . . .

Chicago Citations

Bibliography entry:

Stevens, Thaddeus. Speech on Reconstruction, January 3, 1867. *Congressional Globe*, 39th Cong., 2nd Sess., 251–53. Teaching American History.

Footnote citation:

Thaddeus Stevens, speech in the House, January 3, 1867, *Congressional Globe*, 39th Cong., 2nd Sess., 251–53, via Teaching American History.

Shortened citation:

Stevens, speech, January 3, 1867.

PRIMARY SOURCE P15.54

Alabama Freedwoman to Her Father in Virginia, with a Bureau Officer's Report

Elizabeth Weden · Enon, Alabama, January 18, 1867; Capt. S. P. Lee, March 12, 1867

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	A daughter sold away decades earlier tries to reunite with her father, with little federal help.
TREATMENT	Full public-domain text

Historical Context

Elizabeth Weden had been sold from Virginia to Alabama about twenty-two years before emancipation. After the war she located her father, James Pryor, near Alexandria, Virginia.

She wrote asking to join him. The Bureau officer who forwarded the letter reported that the Bureau could not provide her transportation, so the family would have to rely on its own resources.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

Enon Ala Jany 18th 1867

Dear father– I address you thes lines which leves my self and two childeran well. I am at this place trying to do the best I can for my self. times are harde here and money scearse I wish to leve this place, and move out to whare you are If you can make any shift to get me a way from here, I will work for you or any that may help me to get to whare you are antill you or they are paid. I am in a destitute condition, my husband has left me and has left nothing to support my self and childeran on. My Dear father if you or Brother Josep can possibley do any thing for me, or geat it done by others you dont know how glad I will be besides working for you untill you or they are paid– If you can do any thing for me I want it done a mediately. as I am ancktious to leve here. I want for you to write to me as soon as you get this and let me know what you can do for me. the breathering of the church here says that they will assist me all that they can in getting off, so if you come, let me know before hand so that I may be ready, and get as much help as possible from them hopeing that this may reach you & finde you and all well, I remane your doughter

Elizabeth Weden

Direct to G– White Enon Ala

Alexandria, Va., March 12th 1867.

Lieutenant; James Pryor a freedman of this place, desires to have his daughter, Elizabeth Weden and her two children, who are now at Enon, Alabama, in a destitute and suffering condition, sent to this City, where he and his son can provide for them. She was sold from him 22 years since, and he has been ignorant of her whereabouts until a few weeks since, when he received a letter from her, in which she details her sad condition. For your information I enclose the same. If consistent with the Regulations of the Bureau covering such cases, I would respectfully recommend that transportation be granted Elizabeth Weden and her two children from Enon, Alabama, to Alexandria, Va. I remain, Lieutenant, Very Respectfully, Your obt. servt.

S. P Lee

[Endorsement] [Bure]au Refugees, Freedmen, & Abandoned Lands, [H]ead-Quarters Asst. Commr., D.C, WASHINGTON, [March] 14 1867 Respectfully returned to Capt. S. P. Lee, Supt. R & F. Alexa. Va. It is not deemed advisable at this time to forward this application for the transportation of the people to Alexandria, Va. The number of freedpeople already there, is so large that employment cannot be obtained for them.

An application for transportation for James Pryor to go to his daughter would be more in accordance with the policy of the Government and if made would receive favorable consideration. By Order of Bt. Brig. Genl E. Whittlesey Act'g Asst. Com'r D.C. Wm W. Rogers A.A.A. Genl

Chicago Citations

Bibliography entry:

Weden, Elizabeth. Letter to her father [James Pryor], January 18, 1867. Enclosed in S. P. Lee to William W. Rogers, March 12, 1867, no. 132 1867, Registered Letters Received, ser. 3851, Alexandria, Va., Superintendent, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Elizabeth Weden to her father, January 18, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Weden.html.

Shortened citation:

Weden to her father, January 18, 1867.

PRIMARY SOURCE P15.55

Army Officer at Gallatin, Tennessee, Enclosing an Anonymous Broadside

Lt. Charles B. Brady to Bvt. Lt. Col. A. L. Hough · Gallatin, Tennessee, January 29, 1867

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	An officer reports a vigilante broadside ordering freedpeople back under their former masters' control.
TREATMENT	Full public-domain text

Historical Context

In the first years after the war, white vigilante groups across the South tried to force freedpeople back into plantation labor on the old terms.

Lieutenant Charles B. Brady reported seizing two hundred copies of a broadside signed "I AM COMMITTEE" that ordered Black workers to return to their former masters and threatened violence against any who refused.

Editorial note: The text follows the Freedmen and Southern Society Project transcription. The broadside itself is described in the officer's letter.

Document Text

Gallatin Tenn Jan 29. 67.

Col I have the honor to report that I have taken from a house at “Cross Plains” in Robertson Co, 200 copies of the enclosed “circular”: a number of copies had been distributed to certain persons in that neighborhood, and by some of them, read to the colored people living about, at the same time notifying them that they had “been appointed to “see the rules enforced”, and that they intended to do it

Several of the “circulars” have been nailed to the doors of houses located in that vicinity, about Richland, near this place, and near Springfield Tenn,

I am not certain that any of “the penalties” have been inflicted, the negroes are held in such a state of terror that they dare not tell, and the whites, from sympathy with the villains, will not.

I respectfully ask to be informed if the Dept Commander has any instructions to give in this case

I would also ask if Genl Order No 44 A.G.O. July 6. '66 has been superseded by any subsequent order. I am sir Very Respy Your Obt Servt

Chas B. Brady

[Enclosure]

[Robertson County, Tenn., late 1866 or January 1867]

Chicago Citations

Bibliography entry:

Brady, Charles B. Letter to A. L. Hough, January 29, 1867, enclosing "I AM COMMITTEE" broadside. B-10 1867, Letters Received, ser. 4720, Department of the Tennessee, U.S. Army Continental Commands, Record Group 393, pt. 1, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Charles B. Brady to A. L. Hough, January 29, 1867, RG 393, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Brady.html.

Shortened citation:

Brady to Hough, January 29, 1867.

PRIMARY SOURCE P15.56

National Salvation

Frances Ellen Watkins Harper · Philadelphia, January 31, 1867

TOC FIT	Chapter 15 · Essay prompt 15.4 (What Built Black Freedom?)
WHY HERE	A Black woman lecturer argues that freedpeople's own faith, families, and schools, backed by the ballot, are the foundation of freedom.
TREATMENT	Facsimile of reprinted text, complete address

Historical Context

Frances Ellen Watkins Harper (1825–1911), a Black poet, novelist, and lecturer born free in Baltimore, spent 1866–67 lecturing for equal rights and touring among freedpeople in the South.

She delivered this address at National Hall in Philadelphia for the city's Social, Civil, and Statistical Association of the Colored People. She described freedpeople's faith, family devotion, and hunger for schooling, called for the ballot and the impeachment of Andrew Johnson, and protested Philadelphia's segregated streetcars.

Editorial note: The address was printed in the Philadelphia *Evening Telegraph* the day after Harper spoke. The pages reproduced are Eric Gardner's 2017 reprint of that text, cropped to Harper's address; Gardner's commentary is omitted. Audience reactions in parentheses are the newspaper reporter's.

Document Facsimile

National Salvation.

Address of Mrs. F. E. W. Harper,

Reform has her seed-time and her harvest, her night of trial and endeavor, as well as her day of success and victory. But before her ears are greeted with the shouts of triumph, they are hailed with the hisses of malice and the threats of revenge; but as amid the darkness and the cold, nature spreads her dews and carries on the work, so amid the darkness, cold, and pain the spirit of reform carries on her work of progress, and sows in tears the harvest she is to reap in joy. Men tread with bleeding feet their paths, and from the soil covered with the ashes of martyrs and drenched with the blood of heroes, has sprung up a new growth of character and civilization.

Now in the question of dynamics, or the application of force to any end, it is necessary to know the amount of resistance to be met, and the power which is needed to overcome that resistance. For instance, a man who would wish his locomotive to go fifty miles an hour would not be acting very wisely if he only put on steam enough to carry it ten miles an hour; and the same remark would apply to the man who would wish a large water-wheel turned by

Reprinted text, page 1.

little rills, and would supply fifty gallons of water where a thousand were needed. This man would not be acting wisely in these particulars. He would be failing to take the right means to gain the desired end.

Now, in the moral and political world, as well as in the physical, there are resistances to be met and obstacles to be overcome in carrying out the aim of true civilization, which is the social advancement and the individual development of the human race. And if we look through the history of the past, we will find that there has been an old struggle going on for ages—a struggle of the oppressed against the oppressor—a battle which has been fought under different names, and continued under different auspices, but which is still the continuation of the old struggle.

In one age it has assumed the form of a conflict between the lowest of the people and the hierarchy; still again against the despotisms which shackled the human intellect and put fetters upon the human conscience. In another age it has been a struggle between freedom on one side and slavery on the other. Slavery, not content with having simply a battle of ideas, resorted to the arbitrament of the sword, and the sword decided against it, and slavery went down in tears, and wrath, and blood—went down amid the rejoicing of men and women who had burst their chains.

Now slavery, as an institution, has been overthrown, but slavery, as an idea, still lives in the American Republic, and the problem and the duty of the present hour is this:—Whether there is strength enough, wisdom enough, and virtue enough in our American nation to lift it out of trouble; whether by its legislation and jurisprudence these distinctions between man and man, on account of his race, color, or descent, shall cease. Last year, my friends, I spoke of the nation's great opportunity. I still think we have one of the greatest opportunities, one of the sublimest chances that God ever put into the hands of a nation or people.

But it is not in opportunities presented, but in opportunities accepted, that the very pith and the core of our national existence lies. What we need, my friends, in this county, is all the energy, all the wisdom of the nation so to reconstruct this Government that it will render another such war impossible. There is something wonderful, my friends, in the power of an idea. And what to-day is the watchword of the present hour? It is the brotherhood of man amid the din and strife of battle, amid the conflict of the present age; and yet it is an idea which has been struggling through the centuries, baptized in blood and drenched in tears.

To-day the tendency of the spirit of the age is towards a higher form of republicanism and a purer type of democracy, and yet this idea has been struggling for ages. I look away back on the pages of history, and hear it preached by Him who made it, in His death, the sublime lesson of His life eighteen hundred years ago.

Reprinted text, page 2.

Proud and imperial Rome stood crowned and sceptred amid her seven hills, apparently the strongest power in the world. At the same time, in a manger lay a child whose work of reform was destined to live when the proud empire should be laid away amid the dead kingdoms. This idea, my friends, met with opposition, just the same as this idea of equal rights meets with opposition to-day. This man held up the single idea taught by Jesus Christ, with His giant enthusiasm for humanity, and it was met with opposition from every distinct class.

And yet this reform, meeting with all this opposition, lived on until it became the professed faith of the most enlightened and progressive nation on earth. The men who martyred Jesus Christ now sleep in forgotten graves. He lives and shines in the hearts of all who accept Him as the true and living Christ. The crown of thorns has changed to a diadem of glory, and the cross has become a power and ensign of victory.

The Protestant Reformation sprang from the same spirit, and still fights its way against the ignorance and superstition of ages. It lived on until the Inquisition ceased to claim its victims, until the *auto-de-fe* no longer lit its fires, until Protestant kings sat upon the very thrones from which the edicts against the children of Reformation had gone forth.

Men then grappled with agony and death, so that they could secure the rights which we this day enjoy. We are carrying on the cause, but we have only got through one part of the struggle; the reform we are now carrying on, we may feel assured, notwithstanding all the opposition, notwithstanding all the obstacles in its way, with truth and justice clasping hands, shall yet win the fight.

Oh, my friends, the work goes bravely on! I look back seven years ago, and see this nation apparently in a prosperous career, with slavery bound to her with a four-fold cord. In your commercial interests, men said, virtually, Let us make money, though we coin it from blood and extract it from tears. Here were ecclesiastical interests, the same from Maine to California; here were our political parties clasping hands North and South; and yet they were all snapped asunder, simply because they lacked the cohesion of justice. (Cheers.) Now to-night the question arises, What shall be done? How shall we serve the interest of freedom so that this nation shall be wise enough to know its citizens, and knowing them shall be strong enough to protect them?

One thing that this nation has been doing, is throwing away an element of strength. The colored man, as a laboring force, as a political force, and even as a moral force, in this country is an element of strength or of weakness. As a passive force he is an element of weakness; that is, he weakens the country when he is pressed down in the scale of life, when he is wronged and robbed. But justice will certainly take sides with this people who have been pressed down in the scale of life—a people who are struggling for a higher and purer

Reprinted text, page 3.

state of existence. Now, I hold that the colored man is capable of being an element of strength to the American nation.

I have lately been down amid the cabins and humble homes of Tennessee; and—would you believe it, my friends? some of the most beautiful lessons of faith and trust that I have ever learned, which could never have been learned in the proudest temples of wealth or fashion, I have learned in these lowly homes and cabins of Tennessee. There may be some people who think within themselves that it is a little strange Andrew Johnson, after having promised the colored people that he would be their Moses, should turn around, and instead of helping them to freedom, should clasp hands with the Rebels and traitors of the country. (Cheers.)

My friends, since I have come from Tennessee, I am not surprised at the position that Andrew Johnson takes. Do you know why it was that David was not permitted to build the temple of the Lord? Because his hands were not clean; he was a man unfit for the work. And so, when I have gone among some of the people of Tennessee, who have breathed their words of faith and trust, I see in Andrew Johnson a man whose hands are not clean enough to touch the hems of their garments. (Cheers.)

Do you ask me to-night what are the colored people doing in Tennessee? They are doing just exactly what Mr. Lincoln said the colored man might be required to do in this country. They are helping to keep the jewel of liberty in the family of nations. And how are they doing it? I have heard, my friends, of serfs to whom a broader and higher freedom came, and they did not know how to appreciate it, and offered to go back again into serfdom.

I have been in humble homes where poverty has been staring them in the face, and said to them, Would you not rather go back again into slavery? And such an answer as this has come up:—"I would rather live in a corn-crib." I remember, some few years ago, I met in Louisville, Kentucky, a woman who lived in a room which looked as though it might have been a stable converted into a dwelling. I said to her:—"If your master would take good care of you, would you not rather be back again?" The woman, with eyes filled with indignation, for she did not know that I loved freedom so well that I liked to hear its praise from the humblest lips, said to me:—"Don't you wish to be free and stamp your foot in Jubilee? God bless the poverty that brings me that privilege." (Applause.)

There is one thing that has impressed me more forcibly, perhaps, than anything else about the inner life of these people who have lately come up to freedom, and that is their faith and trust in God. I met a mother there who had lost her child. But here was a mother looking over the track of distant years. How did she feel, as a mother who has given her child up to death, saying:—

Reprinted text, page 4.

"That innocent is mine; I cannot spare him from my arms, To lay him, Death, in thine.

"I am a mother dear; I gave that darling birth; I cannot bear its lifeless limbs Should moulder in the earth."

—when her child was taken from her, and when she felt the distance increasing between them, and knew she could not meet it till she met it in another world.

Oh, when I look at this beautiful faith and trust, when I see them, too, in their humble homes, and ask them what has sustained them, what has kept them up in these dark and gloomy years?—the almost invariable answer that comes to me is:—"The power of God!"

I met with a woman in Tennessee who had been the mother, I think she said, of five children. All were absent from her except one. I don't know that she could say in what part of the world her children were. She prayed for them, and said, "I only see them in my dreams." This was a woman upon whose heart the shadow of slavery still hung black and heavy. Her husband heard that his children wanted to see him, and he started to go to them; and then word came to this mother and wife that her husband was dead.

Before he started he had contracted a debt of twenty-five dollars. When the news came to the mother of his death, what did that woman do? She went and paid off the obligation, by working at nine dollars a week, and living in a house where she was charged five dollars a month. Look at the dignity of soul in that woman! Her husband dead, no one could have forced her to pay that debt; yet with such a keen sense of honor and dignity of soul, she takes up the obligation, and pays it off. Interested friends, let me tell you Andrew Johnson's hands were not clean enough to clasp that woman's hands, to be her Moses, and lead her up to freedom.

When I see this faith and trust, it is beautiful. But there is another feature of life among these people which might impress you just as pleasantly, and that is the tender humanity displayed among them. I have gone into the little cabins, where the light of the sun came through a single window without a pane of glass, and yet, in that humble home, they were taking the children and sending them to school, and it is a thing you will often see in many of these little homes. This people, that have gone through this weary night of suffering, have come out of it with a tender humanity, clasping in their arms poor little orphan waifs, giving them shelter, schooling, and a home. (Cheers)

And then there is another feature, and that is their greediness for knowledge. A few weeks since I was in Louisville, Kentucky. They had just opened a school for colored people, charging twenty-five cents a month, I believe. The people were so eager that their children

Reprinted text, page 5.

should have schooling, that by half past nine o'clock it was necessary for the Superintendent to lock the door, because they were overcrowded with applicants, and many of the parents went away in tears because their children could not enter the school. This greediness for knowledge on the part of the colored man is an element of hope and future strength in this Government. (Applause.)

The ancients had an idea that there was a giant chained under Mount Etna, and that the eruptions of the mountain were caused by his turning over. So when I go down South, and see and hear of their eagerness for knowledge, I see the rising brain of the colored man, and I hope, my friends, that if any of the enemies of humanity shall attempt to build any system of despotism with an idea to the disenfranchising of a race—making it in the name of freedom, and torturing it with the essence of slavery—that the rising brain of the colored man will be evoked, and quell the despotism at the start.

In treating this question, I think of the legend of ancient Rome, of the chasm that yawned there, and of which the sorcerers predicted that whosoever should bring the most precious gift should be the means of closing it and saving the city. Cassius, thinking that he himself was the most precious gift, leaned into its yawning jaws. The legend has been repeated in part in this country. Slavery has made a chasm in our American republic. It has made you two people in the midst of one nation—a people for freedom and a people for slavery—a people for knowledge and a people for ignorance! And what have you tried to do? You have been trying to bridge it over by compromise, until the history of American politics is the history of compromise and concessions, from the hour that Georgia and South Carolina demanded the slave trade, down to the last Constitutional amendment.

Slavery wanted more room, and you gave it land enough for an empire. It wanted the power to hunt the trembling fugitive, and the Fugitive Slave bill was passed, and the trembling victim was thrown into the chasm. Still it yawned, and slavery was not satisfied. For itself it wanted a white man's government, and you made a trial of a white man's government in this country for four years, and the prayers of the freedmen are ascending that we may never have another such a government as long as the world may stand. (Applause.) You threw into this chasm a few million lives, warm with the rich blood of your patriots. You threw into it the life of your loving, honored chief—Abraham Lincoln. (Applause.) And yet to-night the chasm yawns. You are still two people in the midst of one nation.

Would you close over this chasm? Do not try any more compromise or concession; you might as well try to bridge with egg-shells the Potomac river. What you need to-night is to take the shackle from the wrist of the colored man, and to put the ballot in its stead. (Applause) When I see the streets of New Orleans and Memphis red with the blood of unexpiated murders, and I hear of that miserable Recorder counselling them to burn and hang the nigger, I ask that the

Reprinted text, page 6.

colored man should have that much power in his hands, to turn all such men out of office. (Applause.)

Look at New Orleans. Whose fault was it? You should ask that of Andrew Johnson. Let me tell you Andrew Johnson is not the most guilty man in this republic. I don't know but that we have needed him. I have, in the course of my life, had to put a mustard plaster on myself. Now, I don't like a mustard-plaster, and yet I would rather suffer an hour with it than suffer a pain in my chest for a week. I don't know but what we have needed Andrew Johnson in this country as a great national mustard-plaster, to spread himself all over this nation, so that he might bring to the surface the poison of slavery which still lingers in the body politic. But when you have done with the mustard-plaster, what do you do with it? Do you hug it to your bosom, and say it is such a precious thing that you cannot put it away? Rather, when you have done with it, you throw it aside.

Now, my friends, why do you not do the same with Andrew Johnson, and impeach him (applause), and bring him before the bar of the nation, and prove to the world that this American nation is so strong, and so powerful, and so wise, that the humblest servant beneath its care, or the strongest, is not to behave without its restraint.

I was in Boston a few days since, and I heard a gentleman speaking of an accident that had happened. It was of an engineer who was insane. I suppose that the people did not know that he was insane. He got on the locomotive, and he imagined that he was going to the moon. He was not swinging around the circle, but was going to the moon, and he was dashing away wildly. Death was of no moment to him; he was going to the moon. Now what did the people do? Did the people stop to ask his friends about him, or try him a little longer until he had done some mischief? No, no; the case was too imminent for that. A student picked up a block of wood to try to dash him off. So to-day Andrew Johnson stands at the head of the Government, a man who is striking hands with the Rebels of the South. Is there not in this nation, from the Potomac to the Rio Grande, a hand strong enough and earnest enough to throw at him the billet of impeachment, and let him go home to Tennessee to rust out the remainder of his life? (Applause.)

I don't, my friends, berate him because he may have swung around the circle from the seaboard to the Mississippi, although, as far as that is concerned, it reminds me that the colored man has the advantage of him there. I remember when I was a girl how the colored man used to be burlesqued in popular songs. One of those songs ran thus:—

"If I was President of the United States, I would lick molasses candy and swing upon the gates."

Reprinted text, page 7.

That might have been a burlesque upon the colored people; but, my friends, I have lived to see the time when the President, though he don't swing upon the gates, does swing around the circle, and though he does not lick molasses candy, takes something that is a great deal stronger. (Sensation.)

Now, this reform must be carried on, as others are, against opposition and persecution. This cause has already passed through part of the time of persecution. It is a different thing to-day from what it was when William Lloyd Garrison threw his words like burning coals upon the nation's heart. Since then the ideas that originated in the Boston garret have become a mighty building, bearing upon its bosom hundreds of millions of men, women, and children, translating them from the oligarchy of slavery to the commonwealth of freedom. Still the work needs courage to-day.

There is a small matter of prejudice that I want to take up—that against color in particular—and I am coming right home to Philadelphia, and not intending to spend my ammunition on the Rebels, who are so many thousand miles away. But I am to talk to those who clasp hands with Rebels in the city of Philadelphia, and I am not going to bathe my lips in honey when I speak. Two weeks last Saturday night I was in Louisville, Kentucky. I came on from Nashville, had a little business down the street, and I got into the city cars; and I found that there is no difference there in Kentucky as to the people's riding in the cars; Kentucky had just burst from her chains, yet she was ahead of Philadelphia in that.

I went into the house and picked up a Philadelphia paper—a *Christian Recorder*. What did I read? There I read that a woman had been kicked out of the cars in the streets of this city. What had she done? Simply claimed her right to travel, and had been brutally kicked in these streets. Where was she kicked? Let me tell you. Did you see that man with the surplice, chanting his solemn litany? That man is an Episcopalian minister, and that brutal man kicked her in his presence.

Did you see that man with a simple ritual? He is a Presbyterian. I don't think there is a Church in the world to whom civil liberty owes more than to the Presbyterian Church. They came out and preserved civil liberty in the wilds of Scotland, and this man kicked this woman in his presence.

Do you see that man who has just been celebrating the centenary of his Church, of which John Wesley is the St. Paul? That man is a Methodist, and he kicked her in his presence. Do you see that lady and gentleman, in plain garb? They, too, have a grand memory, reaching away back to William Penn, who came here to Pennsylvania, and taught the world how peace and justice could clasp hands; and Mary Dyer, who gave up her life on Boston Common and

Reprinted text, page 8.

who died for a principle. (Cheers.) He is a Friend, and that woman was kicked in his presence.

Do you see that man, upon another plain, who knows it is better to have the peace of Christ than to quarrel about Christianity? He is a Unitarian; kicked in his presence also. Do you see that man, who believes in God and the brotherhood of the human race, and that He will ultimately clasp us all in a living embrace? That man kicked her in the presence of the whole popular Church of Philadelphia, and I ask them have they done their duty on this subject?

I pick up the papers, and I hear a great deal said about the running of the cars on Sunday. The day is sacred in Philadelphia, but man is vile. Where did he kick this woman? In the very streets over which colored men marched to the front, faithful to the country when others were faithless (applause)—who were rallying around the flag when Rebels were trampling it under feet; true to the country when she wanted a friend. Witness, now, that the sisters and mothers of these men can be kicked from the cars in our popular thoroughfares. (Applause.)

Friends, when that man kicked that woman, he kicked me. He kicked my child, and he kicked the wife and child of every colored man in Philadelphia. He kicked the wife, sister, and child of every colored man who went out to battle and to lay down his life for his country; and I am here to-night to protest against it. (Applause.)

Last summer I was here; it may have been the fourth of July; it does not matter, though. I was going up the street with my child, between five and six years of age. My friend Mr. Still was with me. He, living on Fifth street, thought the drivers would know him, and wait for us. I did not ask these drivers to take me in; I shall faint upon your paved streets before I ask such a favor. Do you think they would stop for us? Oh, no! They swept by us as if we were paupers.

The next day my child came to me and said: “I know why we can’t ride in the cars; because we are colored!” No women feel this deprivation so keenly as we do, and when my orphan child came home and told me that she had read the cruel, bitter lesson, I felt bad. And yet to-night, poor, ignorant, and trodden under foot as our people are, I would not change souls with the richest and proudest stockholder in Philadelphia. I would not change souls with a man who reproaches his God by despising His poor! (Applause.) Again, my friends, I do not feel that the colored people need despair; we only take our turn in the suffering world.

I do not demand social equality; I do not demand that you shall take us into your parlors, and make us companions of your wives and daughters, if they have no liking for us. All I ask is that you take your prejudices out of the way and give the colored man a chance to grow; give him a chance at the ballot-box. Why this idea of social equality? I don’t know of any colored man that demands it. After all, this thing depends upon social affinities, customs, wealth, and

Reprinted text, page 9.

habit, and in some cases on shoddy and petroleum. But there is a dread of blood degeneration.

Somehow I do not think I should like to stand before the world, with pale lips, dreading the bugbear of social equality; afraid of giving the colored man a chance, for fear that he might somehow outstrip me in the race of life. (Applause.) If I was in his place I would say, "I will give him all the chance I can; I will not press him down in the scale of life." I should feel that I was superior, because of a superior teaching. Look at slavery: has it not robbed us of our wives, children, and husbands; robbed us of our very complexion, and put some of the meanest kind of white blood in our veins? (Cheers.) And we have lived through it all, and come out of the war the very best characters down South. If we don't complain about it, what right has anybody else to do so? (Cheers.)

O friends! if there is any danger, you make your President and Congressmen; you make your own laws; if any man feels that the case is urgent, let him go before the Legislature and say to them:—"Honorable Sirs—We have a deep concern on our minds; it haunts us by day and comes over our dreams by night. We are so afraid that some colored man's uncle's aunt will marry some white man's cousin's aunt, and we want you to put a law upon the statute books that no white man shall marry a black woman unless he wants to." (Great laughter.) I think that they must necessarily be guided by their wishes. Some men have no other wants than those which are low and grovelling; they are like the men to whom the grasshopper is a burden; they are afraid of that which is high.

Justice is high, and liberty is high, and equal rights are high; and these men are afraid of that which is high, and putting their ears to the ground they hear the advancing tread of the negro, and would retard his coming. (Cheers.) Why you have a paper in this city called the *Age*. The better name for it would be to call it *Behind the Age*. Last spring it had a call for a Democratic meeting, and in the call it included all those who voted for a white man's Government. I have been taught that the power of gravity gravitates in the strongest hands. What possibility is there that we should get to the head of the Government, or that the white race should stand trembling before us, or that eight thousand persons are going to get the upper hand of the nation?

He has dropped the rags of the plantation and put on the uniform of the nation. In the District of Columbia he has exchanged the fetters on his wrists for the ballot in his right hand. Mr. Johnson did not admire that very much, so he gave us a veto; he paid us a compliment, somehow, by supposing that we would come into the District for the purpose of giving a vote. If it is such a privilege to an American citizen, he will go where he can have the rights of a citizen.

Reprinted text, page 10.

The colored man is taxed in this country, he is drafted in war; and yet to-night I live in an American republic; I am a taxpayer. The Government may increase its taxes until it runs down every seam and fold of my dress, may tax the very bread I break to my orphan child; but it brings me back a rich compensation when it makes my child free in South Carolina, in Tennessee, and Alabama, and even in this city of Philadelphia when I want to ride in your cars.

Friends, this is the nation's hour for every heart and hand to build on justice as a rock, to trust in the truth, and never yield. With truth and justice clasping hands, we yet shall win the fight.

***

Reprinted text, page 11.

Chicago Citations

Bibliography entry:

Harper, Frances Ellen Watkins. "National Salvation." *Evening Telegraph* (Philadelphia), February 1, 1867. Reprinted in Eric Gardner, "Frances Ellen Watkins Harper's 'National Salvation': A Rediscovered Lecture on Reconstruction," *Common-place* 17, no. 4 (Summer 2017).

Footnote citation:

Frances Ellen Watkins Harper, "National Salvation," *Evening Telegraph* (Philadelphia), February 1, 1867, reprinted in Eric Gardner, "Frances Ellen Watkins Harper's 'National Salvation': A Rediscovered Lecture on Reconstruction," *Common-place* 17, no. 4 (2017).

Shortened citation:

Harper, "National Salvation."

PRIMARY SOURCE P15.57

North Carolina Freedman to the Freedmen's Bureau Commissioner

Rev. B. B. Spicer to Gen. O. O. Howard · James City, near New Bern, North Carolina, February 9, 1867

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman protests the return of land to former owners and refuses to work for them again.
TREATMENT	Full public-domain text

Historical Context

During the war, thousands of freedpeople settled on confiscated land across the Trent River from Union-held New Bern, in a community later called James City. After the war the government began restoring such land to its former owners.

B. B. Spicer, a minister, wrote to the head of the Freedmen's Bureau describing the suffering in the settlement and stating that the freedpeople were not willing to go back and work the land for the rebels as in former days.

Editorial note: The text follows the Freedmen and Southern Society Project transcription, which preserves original spelling.

Document Text

South Side of Trent River Near
New bern N.C. James City feby the 9 1867

Dear genl I have seted my self down this Eving to write you a few lines stating to you the affairs of the Freed man in this settlement genl her in this place is a grate del of Suffring a mong the freed men and Widdow Woman & children Sir we as Freed men do not Exspect the goverment to do any thing more for us then it have don dear genl this hold camp is Sturd up at this time and her you will see a grate reson for it we have under stood that this Beaurow was susstade by the goverment for the Freed man and a grate meny of my people have been vary industras and have gon to work Cleard a good posion of this land and at this tim her is rumors that the land is all a bout to be turned over to the owners a Jian and if this is so what shall the Poor people do at this time the supt of the camps have prohibed and for bid any one to till the land the grand question is if the goverment have agznated the land and have mad a forbidance for the Freed man in this settle ment wy shoud we as Freed men not till this land Ginl we have come to you as an obeden son would come unto his Father for healp in time of Need I was informed by one of the capts a few days a go when Ever we as Freed men saw things that we believed was contrary to the goverment my informasion was to apply to ginl Howard or chiefe of the Freed mans Burow and he would do what Ever was wright dear ginl we wish to asatain from you what have the goverment pervied for us in this settlement is the land turned over to the owners or not I mean the land that the goverment pervided for the Freed man her in the Bounds of New bern and can we ten the land or not we can not mak an honis living working the Reabels Land lik thy wish for us to do for that have bein trid more time then once for the last past yeare a grat meny of my people whent and hierd thm selvs to the White man and work all the year and was turned off with out any thing my people the grates part of them is willing to work and thy do work We ar not willing to go and work the land for the Rebs as we did in former days and do in Every Shape like thy say and if we do not aggree in every thing lik the rebs say thy will be come displeased withe us and turn us out doors so we ar not satisfid to live with them as we hav lived and we can not aggree so as we ar freed men we do not lik to be compell to do What we do not lik so we have come togather and formed our selves in Association compacity and have Drew this resolution to write to

you thinking that you ginl would have the thing difuerlanty a range as we look up to you in a grate meny sences as the children of isral did when thy wire compell to look up to Mosses genl the grate question is we want to know if we can ten the land that the goverment holds as we have been a doing now here it is Nearly corn plaintaing time and the land is all laying idol when we might be cultivating the land we do not be leve that the goverment is willing to in dulge any able bodied man in his lasness we have Clard a grat part of the land and wish for some arrang ment to be mad for us that we can in ter tain ours Selvs and children we can not stay in the World and sor port our selvs any more then any outher people this we alredy know that you ar a War of w wish to know if this track of land that the goverment holds her on the south sid of Trent River is turned over to the owner or not or is it likly to be thy Freed men all have become vaery interrested a bout thes things and come to the conclution to seek to try to find out for them selvs and thy have chousen me to write to you for them be cause thy look upon you as thy grate provieder ginl we wish to asatian from you is the land ware we now rezids is it turn back or is it likly to be this year and can we ten the land the supt of this camp have Just returned home from Raleigh N.C. and he says that he have recieved orders not to suffer this lan to be tened so we throught it to be wise to State the subgect to you

Rev. B. B. Spicer

[In the margin] you will please write and let us know Direct to Rev B. B. Spicer New bern N.C.

[Endorsement] Bureau of R.F. and A.L. Office Asst. Supt. Trent River Settlement N.C. February 25. 1867. Respectfully returned to Lieut. Col. S. Moore Supt. Eastern Dist. N.C. with the information that I have not leased out the land in Trent River Settlement as I have been informed on several occasions that the land was about to be turned over to the owners, and was not certain that I could lease the land with safety to the interests of the Freedmen. I have written for instructions as to the disposition of this land but have received no answer A. W. McKillip 2nd Lieut. V.R.C. Asst. Supt. Brvt. Capt. U.S.V.

[Endorsement] Bureau Refugees Freedmen & A.L Office Supt East Dist New Berne [N.C.] Feby 26–1867 Respectfully returned to Col J. F. Chur A.A.A.G. attention invited to endorsement of Bvt Capt A W. Mc Killip Asst Supt of Trent Settlement.

Would also state that a petition for the restoration of this land was forwarded by the Heirs through this office Feby 12th 1867 to the Asst Comr. Stephen Moore Lt Col VRC & Supt

[Endorsement] BUREAU OF R.F., and A.L., HEADQUARTERS ASST. COMMISSIONER, NORTH CAROLINA, Raleigh, N.C., Feby 28 1867. Respectfully returned to Maj. Genl O. O. Howard Comr–

The lands now occupied by the Government and called Trent River Settlement, have been applied for by the owners on several occasions– It is the present intention to restore the whole or part of this property, and the Agent of the Bureau at that place has been instructed not to lease any of the land in question–

The freedmen residing there were notified last fall that they must find other homes when spring opened, and many have complied The expense of maintaining the settlement does not justify its continuance J. V. Bomford, Col. 8th US Infty Actg Asst Com

Chicago Citations

Bibliography entry:

Spicer, B. B. Letter to General O. O. Howard, February 9, 1867. S-238, Letters Received, ser. 88, Land Division, Washington Headquarters, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

B. B. Spicer to O. O. Howard, February 9, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Spicer.html.

Shortened citation:

Spicer to Howard, February 9, 1867.

PRIMARY SOURCE P15.58

Freedmen's Bureau Agent for Taylor County, Georgia, to the Georgia Assistant Commissioner

Jerome B. Davenport to Col. C. C. Sibley · Butler, Georgia, February 12, 1867

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A husband's attempt to remove his wife from field work collides with Bureau enforcement of contracts.
TREATMENT	Full public-domain text

Historical Context

Freedmen's Bureau agents enforced labor contracts, which sometimes put them in conflict with freedpeople's own decisions about family life.

Agent Jerome B. Davenport reported the case of Lethe, a freedwoman who had contracted to work for a planter for 1867 and then married a man who wanted to take her away. Davenport held her to the contract and asked his superiors to approve.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Butler Taylor Co. Ga. February 12″ 1867

Colonel, I have the honor to report the following case and to ask your approval or disapproval of my action.

On the first day of January 1867, Lethe, freedwoman, contracted to work for a planter during the year. Since the date of her contract she has married. Her husband applies for permission to take her away from the service of her employer on the ground that the act of marriage gives him the full control of his wife, that when married all her rights were merged in his. and therefore it is claimed,–by the legal advisors of the freedman,–that his wife is no longer bound by her contract.

I have denied his right to the full services of his wife till she has fulfilled her contract made previous to marriage, and have decided that marriage does not warrant a violation of a labor contract.

My predecessor informs me that when freedmen produced evidence of marriage he annulled the contracts of their wives if they so elected. Very Respectfully Your Obt Serv't

Jerome B Davenport

Chicago Citations

Bibliography entry:

Davenport, Jerome B. Letter to Col. C. C. Sibley, February 12, 1867. Unregistered Letters Received, ser. 632, Georgia Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Jerome B. Davenport to C. C. Sibley, February 12, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Davenport.html.

Shortened citation:

Davenport to Sibley, February 12, 1867.

PRIMARY SOURCE P15.59

Freedmen's Bureau Special Agent for Jackson County, Florida, to the Florida Assistant Commissioner (excerpt)

W. J. Purman to Maj. E. C. Woodruff · Marianna, Florida, February 28, 1867

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Bureau agent reports freedmen bargaining for better shares amid a cash shortage and armed intimidation.
TREATMENT	Public-domain text, selected excerpts

Historical Context

William J. Purman, a Pennsylvania-born Union veteran, was the Bureau's agent in Jackson County in the Florida Panhandle, a cotton county with a large Black majority and a record of violence against freedpeople.

His monthly report described the contracts for 1867. Most freedmen had won a third of the crop instead of the quarter planters offered; wages were often paid in merchants' orders rather than cash; and armed whites threatened Bureau agents. "The freedmen look upon the contract as their only security," he wrote.

Editorial note: The text follows the Freedmen and Southern Society Project transcription; bracketed headings are the editors'.

Document Text

Marianna, Fla. Feb. 28, 1867.

Major: [CONTRACTS.] I have the honor to state as my report for February, that with this month closes the making of contracts, with a few isolated exceptions.

The freedmen look upon the contract as their only security against the vicissitudes of the year, and the dishonesty of employers, and have been inflexible in their determination to engage only under this form.

The employers look upon it as an interference with their private rights, and use every art and persuation to keep the freedmen only on verbal bargains.

By appeals to pride and prejudice, as–“If you are free what right have the Yankees to come and make your contracts for you, (?) it shows that they don't consider you as free as we do”; and, “If you go into a contract, it's like going into slavery for the year,”–many employers seek to deter freedmen from entering into written engagements. But whenever the firmness of the laborer brings the involuntary employer before the Bureau, the latter invariably consoles himself by kindly informing us, that he has come to make a contract solely to “please the whim of these niggers.” The general answer to this speech is a display of triumphant ivory, for they appreciate the fun of having forced their former masters into something like a moral slaughter-house.

It is only through the energetic influence of the Bureau that the freedmen have withstood these sinister appeals, and been educated into the indispensability of contracts.

One hundred and sixteen (116) contracts are now on record in this office, embracing about six hundred (600) laborers.

This number does not express the whole of the working population of this county, as at least four hundred (400) more have rented lands on their own account, or moved into the “piny woods.”

One of the wisest measures, on the establishment of the Bureau, was basing the inauguration of free labor upon a contract system, but experience is showing that this system can not yet be counted a full success. The defect is in the want of a ready power of compulsion to enforce the contract, and redress its violation.

[GRIEVANCE.] And this weakness is now evident in the system, by the many claims that are yet unsettled for last year's services. Complaints of nonpayments of wages are becoming numerous, though the amounts are generally small, varying from ten to fifty dollars. And this failure to make payments is found mostly among the “best families,” who are either too aristocratic to pay small debts, or act upon the principle that “ponderous bodies move slowly”. The excuse in some instances is that the proceeds of the cotton crop have not yet come in, but this does not answer for all cases.

The freedmen, confidently relying upon the virtue of the contract, cannot comprehend why they do not instantly receive their money, and therefore become mystified upon the subject of its utility.

To resort to civil methods of collection would occasion long delay, and be coupled often with the consumption of the debt itself. Instructions are solicited on this important point.

[COMPENSATION.] In the beginning of the year planters endeavored to form leagues for the adoption and control of the freedmen's compensation, but they signally failed. Meetings of the freedmen were called by the planters, on stated days, in different parts of the county, ostensibly to discuss with them the question of wages &c., but they always opened with the firm announcement of “cut-and-dry terms”, upon which alone labor would be engaged.

These terms were “one fourth (1/4) and to be found.” But from the fact that it takes two to make a bargain, five sixths of the freedmen are to-day working for one third (1/3) of the crop, and two hundred and eight (208) lbs. of meat, finding themselves, while many have even still better bargains.

[STIPULATIONS.] The following are the stipulations in the form of contract used:–

1. Subsistence, whenever called for, to be furnished by the employer, at market prices.

2. The employer shall provide comfortable quarters, fuel, and ground for garden purposes.

3. Laborers to have six hollowdays during the year

4. The employer shall provide medical attendance, when necessary, at the expense of the laborer requiring it.

5. The laborers shall carefully look after the interests of the employer, and attend to the stock on Sunday and hollowdays.

6. If laborers desert the employer before the expiration of their contract, they shall forfeit all wages that may be due.

7. For time absent without leave, one dollar per day shall be deducted.

8. Two hours shall be allowed for dinner during the months of June, July, August and September, and one hour during the other months.

9. Laborers shall work faithfully a reasonable number of hours each day.

10. Laborers shall not be discharged by the employer, but all causes for discharge shall be referred to the Bureau for decision.

11. In case laborers fail to cultivate their crop, extra help may be added by the employer at the expense of the laborers.

12. All differences arising under this contract to be submitted to a board of arbitrators, each party choosing one, the Bureau constituting the third, and whose decision shall be final.

This last most important stipulation is contained in only about one fourth of the contracts, as the circular directing it, did not reach this office until most of them were made.

[REBELISM.] For public convenience, certain days were appointed in different parts of the county for the making and approving of contracts, and by request, many plantations were visited for the same purpose.

[. . .]

Chicago Citations

Bibliography entry:

Purman, W. J. Letter to Major E. C. Woodruff, February 28, 1867. P-1 1867, Letters Received, ser. 586, Florida Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

W. J. Purman to E. C. Woodruff, February 28, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Purman.html.

Shortened citation:

Purman to Woodruff, February 28, 1867.

PRIMARY SOURCE P15.60

Reconstruction Acts (excerpts)

U.S. Congress · March 2, March 23, and July 19, 1867

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.4 (What Built Black Freedom?)
WHY HERE	Military rule and Black male voting remade southern politics.
TREATMENT	Public-domain text, selected sections

Historical Context

After the southern states rejected the Fourteenth Amendment, the Republican Congress elected in 1866 passed the Reconstruction Acts over Johnson's vetoes.

The first act divided ten southern states into five military districts under army commanders and required each state to write a new constitution, framed by delegates elected by all adult men including Black men, and to ratify the Fourteenth Amendment before readmission. Later acts gave the army power to register voters and remove officials.

Editorial note: The text follows the Teaching American History transcription from the *Statutes at Large*.

Document Text

An Act to Provide for the More Efficient Government of the Rebel States

March 2, 1867

WHEREAS no legal State governments or adequate protection for life or property now exists in the rebel States of Virginia, North Carolina, South Carolina, Georgia, Mississippi, Alabama, Louisiana, Florida, Texas, and Arkansas; and whereas it is necessary that peace and good order should be enforced in said States until loyal and republican State governments can be legally established: Therefore,

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That said rebel States shall be divided into military districts and made subject to the military authority of the United States. . . .

SEC. 2. And be it further enacted, That it shall be the duty of the President to assign to the command of each of said districts an officer of the army . . . and to detail a sufficient military force to enable such officer to perform his duties and enforce his authority within the district to which he is assigned.

SEC. 3. And be it further enacted, That it shall be the duty of each officer assigned as aforesaid, to protect all persons in their rights of person and property, to suppress insurrection, disorder, and violence, and to punish, or cause to be punished, all disturbers of the public peace and criminals; and to this end he may allow local civil tribunals to take jurisdiction of and to try offenders, or, when in his judgment it may be necessary for the trial of offenders, he shall have power to organize military commissions or tribunals for that purpose, and all interference under color of State authority with the exercise of military authority under this act, shall be null and void.

. . .

SEC. 5. And be it further enacted, That when the people of any one of said rebel States shall have formed a constitution of government in conformity with the Constitution of the United States in all respects, framed by a convention of delegates elected by the male citizens of said State, twenty-one years old and upward, of whatever race, color, or previous condition, who have been resident in said State for one year previous to the day of the

election, except such as may be disfranchised for participation in the rebellion or for felony at common law, and when such constitution shall provide that the elective franchise shall be enjoyed by all such persons as have the qualifications herein stated for electors of delegates, and when such constitution shall have been submitted to Congress for examination and approval, and Congress shall have approved the same, and when said State, by a vote of its legislature elected under said constitution, shall have adopted the [14th] amendment . . . and when said article shall have become a part of the Constitution of the United States, said State shall be declared entitled to representation in Congress, and senators and representatives shall be admitted therefrom on their taking the oath prescribed by law, and then and thereafter the preceding sections of this act shall be inoperative in said State. . . .

SEC. 6. And be it further enacted, That, until the people of said rebel States shall be by law admitted to representation in the Congress of the United States, any civil governments which may exist therein shall be deemed provisional only, and in all respects subject to the paramount authority of the United States at any time to abolish, modify, control, or supersede the same. . . .

An Act supplemental to an Act entitled "An Act to provide for the more efficient Government of the Rebel States," . . . to facilitate Restoration

March 23, 1867

Be it enacted by the Senate and House of Representatives of the United States in Congress assembled, That before . . . September [1, 1867], the commanding general in each district . . . shall cause a registration to be made of male citizens of the United States, twenty-one years of age and upwards, resident in each county or parish in the State or States included in his district, which registration shall include only those persons who are qualified to vote for delegates by the [first Reconstruction act], and who shall have taken and subscribed the following oath or affirmation: "I, ____, do solemnly swear (or affirm), in the presence of Almighty God, that I am a citizen of the State of ____; that I have resided in said State for ____ months next preceding this day, and now reside in the county of ____ or the parish of ____, in said State (as the case may be); that I am twenty-one years old; that I have not been disfranchised for participation in any rebellion or civil war against the United States, nor for felony committed against the laws of any State or of the United States; that I have never been a member of any State legislature, nor held any executive or judicial office in any State and afterwards engaged in insurrection or rebellion against the United States, or given aid or comfort to the enemies thereof; . . . that I will faithfully support the Constitution and obey the laws of the United States, and will, to the best of my ability, encourage others so to do, so help me God"; which oath or affirmation may be administered by any registering officer.

SEC. 2. And be it further enacted, That after the completion of the registration hereby provided for in any State, at such time and places therein as the commanding general shall appoint and direct, of which at least thirty days' public notice shall be given, an election shall be held of delegates to a convention for the purpose of establishing a constitution and civil government for such State loyal to the Union. . . .

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. Reconstruction Acts. March 2, 1867; March 23, 1867; July 19, 1867. *United States Statutes at Large* 14:428–29; 15:2–4, 14–16. Teaching American History.

Footnote citation:

Reconstruction Act of March 2, 1867, sec. [number], *Statutes at Large* 14:428–29, via Teaching American History, https://teachingamericanhistory.org/document/reconstruction-acts/.

Shortened citation:

Reconstruction Acts.

PRIMARY SOURCE P15.61

Speech of Hon. T. Stevens on the Bill Relative to Damages to Loyal Men (excerpt)

Thaddeus Stevens · House of Representatives, March 19, 1867

TOC FIT	Chapter 15 · Essay prompts 15.2 (How Radical Was Reconstruction?) and 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	Stevens makes the case for land confiscation, the radical proposal Congress refused to adopt.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

Thaddeus Stevens was the leading advocate of confiscating land from large Confederate planters and distributing it to freedpeople.

His bill, H.R. 20, would have given each adult freedman forty acres from confiscated public and rebel land and fifty dollars to build a homestead. Stevens argued that without land, freedpeople would remain dependent on their former masters. The bill never came to a vote.

Editorial note: The text follows the Internet Archive scan of the 1867 pamphlet; OCR errors such as "Ap[ily" have been kept; words broken at line ends have been rejoined.

Document Text

[. . .]

Ap[ily these principles to the case in hand. The cause of the war was slavery. We have liberated the slaves. It is our duty to protect them, and provide for them while they are unable to provide for themselves. Have we not a right, in the language of Vattel, " to do ourselves justice respecting the object which has caused the war," by taking lands for homesteada for these " objects" of the war ?

[. . .]

The fourth section provides, first, that out of the lands thus confiscated each liberated slave who is a male adult, or the head of a family, shall have assigned to him a homestead of forty acres of land, (with $100 to build a dwelling,) which shall be held for them by trustees during their pupilage.

Let us consider whether this is a just and politic provision.

Whatever may be the fate of the rest of the bill, I must earnestly pray that this may not be defeated. On its success, in my judgment, depends not only the happiness and respectability of the colored race, but their very existence. Homesteads to them are far more valuable than the immediate right of suffrage, though both are tlieir due.

Four million of persons have just been freed from a condition of dependence, wholly unacquainted with business transactions, kept systematically in ignorance of all their rights and of the common elements of education, without which none of any race are competent to earn an honest living, to guard against the frauds which will always be practiced on the ignorant, or to judge of the most judicious manner of applying their labor. But few of them are mechanics, and none of them skilled manufacturers. They must necessarily, therefore, be the servants and victims of others, unless they are made in some measure independent of their wiser neighbors. The guardianship of the Freedmen's Bureau, that benevolent institution, cannot be expected long to protect them. It encounters the hostility of the old slaveholders, Avhether in official or private station, because it deprives these dethroned tyrants

of the luxury of despotism. In its nature it is not calculated for a permanent institution. Withdraw that protection and leave them a prey to the legislation and treatment of their former masters, and the evidence already furnislied shows that they will soon become extinct, or driven to defend themselves by civil war. Withhold from them all their rights, and leave them destitute of the means of earning a livelihood, the victims of the hatred or cupidity of the rebels whom they helped to conquer, and it seems probable that the war of races might ensue which the President feared would arise from kind treatment and the re'storation of their rights. I doubt not that hundreds of thousands would annually be deposited in secret, unknown graves. Such is already the course of their rebel murderers; and it is done with impunity. The clearest evidence of that fact has already been shown by the testimony taken by the " Central Directory " Make them independent of tlieir old masters. so tliat they may not be compelled lo work for them upon unfair terms, which can only be done by_giving them a small tract of land" to cultivate for themsclve.';, and you remove all this danger. You also elevate the character of the

freedman. Nothing is so likely to make a man a good citizen as to make him a freeholder. Nothing will so multiply the productions of the South as to divide it into small farms. Nothing will make men so industrious and moral as to let them feel that they are above want and are the owners of the soil which they till. It will also be of service to the white inhabitants. They will have constantly among them industrious laborers, anxious to work for fair wages. How is it possible for them to cultivate tneir lands if these people were expelled ? If Moses should lead or drive them into exile, or carry out the absurd idea of colonizing them, the South would become a barren waste.

[. . .]

Chicago Citations

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Stevens, Thaddeus. *Speech of Hon. T. Stevens, of Pennsylvania, Delivered in the House of Representatives, March 19, 1867, on the Bill (H.R. No. 20) Relative to Damages to Loyal Men, and for Other Purposes*. Washington, DC: Congressional Globe Office, 1867. Internet Archive.

Footnote citation:

Thaddeus Stevens, *Speech on the Bill Relative to Damages to Loyal Men* (Washington, DC: Congressional Globe Office, 1867), [page], https://archive.org/details/speechofhontstev01stev.

Shortened citation:

Stevens, *Speech on Damages to Loyal Men*, [page].

PRIMARY SOURCE P15.62

Affidavits of Three Texas Freedmen

Gabriel Hubbard, Aaron Wayne, and Thomas Deckard · Bastrop, Texas, May 13–16, 1867

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	Sworn statements show slavery-like control and retaliation for appealing to the Bureau.
TREATMENT	Full public-domain text

Historical Context

In central Texas, far from federal troops, some planters and overseers continued to discipline freed workers by violence.

Three freedmen who worked for a third of the crop on a Bastrop County plantation swore that the overseer threatened and beat workers, whipped one for riding to town without permission, and beat another for complaining to the Bureau.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

[Bastrop, Tex., May 13, 1867]

State of Texas
County of Bastrop

Gabriel Hubbard Freedman being duly sworn deposes as follows.

I lived on the plantation of Baker and Fondren during the year 1866. I worked for one third of the crop. A. W. Fort was the overseer. From May on, the rest of the year Mr. Fort cut off a part of my rations giving as a reason, that my hands did not work well. In May on one Sunday he refused to give me any meal, at all. The next day Monday he came over to the quarters and I asked him for meal telling him that I had none and that according to the contract I and my hands were to be furnished with meal and meat. Mr. Fort. said “You are not agoing to get it” I then said. “that aint right” Mr. Fort said “If you say I dont do right I'll get my six-shooter and blow your brains out I want the top of your head anyhow” I made no answer and he went to the house and got his pistol came back where I was in the ox lot, rode up to me cocked his revolver levelled it at me, and said, “Now sir I want you to speak the same words you did awhile ago and I will get the top of your head” I made no answer and he rode off in a few moments. Sometime in June about the first or second week I was helping to kill a beef at the house when Mr. Fort sent me after an axe to cut it up with: I went and got Mr. Forts own axe because I could find no other and I said to him, “Mr Fort I could'ent find the old meat axe so I got your'n” He said “God dam'n you who told you to get my axe I'll blow your damn brains out.” While saying this he picked up his revolver which was lying by his side and levelled it at me. I put the axe down at once and then he made me take it back.

In the month of May I saw Mr. Fort beat a colored woman with his walking stick. the stick was about one inch thick. He struck her four licks over the shoulders as hard as he could draw. She complained of her shoulders as late as the next Christmas, saying that she still suffered from the effects of the blows. This womans name was Mary Williams, she was in the field hoeing at the time. In November of the same year Mr. Fort came into the field where my brother Aaron and myself were at work one afternoon. Mr. Fort came up and said to him. “God damn you you reported me to a damned Smooth faced yankee yesterday” Aaron replied that “I only told the Captain that you had drawn a six-shooter on me and that I wanted to leave, and the Capt. told me to go back that I shoulden't leave” Mr.

Fort took out his revolver, cocked it and pointed it at Aaron, at the same time saying “I came here this evening to take off the top of your head and I don't know how I can get satisfaction unless I do take it off” Aaron begged him not to shoot. Mr. Fort then rode up to Aaron with his pistol in his left hand and his cane in the right and said “I am compelled to have some satisfaction out of you”–and then struck him several licks with his cane.

Aaron went over to Bastrop the next day and complained to the officer of the Bureau and I was sent for as a witness, For some reason of which I am ignorant the trial did not come off and we went back to the plantation When we got back we heard that Mr. Fort had shot Milton.

I saw him point a sixshooter at Thomas Deckard, threatening to blow his brains out. Deckard was a hand on the place.

I heard of his beating other hands on the plantation, but only saw him beat Aaron and Mary Williams.

his
Gabriel X Hubbard
mark

[Bastrop, Tex., May 14, 1867]

State of Texas,
County of Bastrop

Aaron Wayne freedman being duly sworn deposes as follows.–

I lived on the plantation of Baker and Fondren during the year 1866. A. W. Fort was overseer. Some time in March I went to town during the wet weather and stayed three days until the ground was fit to plow. At the end of that time I returned and went to work as soon as the other hands. Mr. Fort came up to me in the field where I was working, and asked me where I had been, and who said I could go. I told him where I had been and that it was with the consent of my brother who was the head of our gang. Mr. Fort said “I have a good will to take you down and give you a hundred lashes.” I answered “that is played out you have no right to do that and no man shall do it unless he is a better man than I am.” He replied “God damn you I will blow your brains out if you say that again,” at the same time drawing and cocking his six shooter. I made no answer and he followed me a round or two pistol in hand while I was ploughing cursing me but finally went off.

About the middle of November he charged me with burning rails which I denied. He then drew out his revolver saying “If you open your mouth I will blow your brains out God damn you.” When he levelled the pistol at me I dodged behind a cotton pen and ran into the high cotton where I stayed until Mr. Fort left the field. Next day I went over to Bastrop and complained to the officer of the Bureau who gave me a note to Mr. Fort which I got another colored man to deliver. The next evening Mr. Fort came in the field where I was picking cotton with my brother Aaron [Gabriel] and rode up to me and said “God damn you I want to kill you. You went over to town to report me to the Bureau” at the same time leveling his pistol at me. I begged him not to kill me. Mr. Fort then took his pistol in his left hand and came close to me and struck me four or five heavy blows over the head and shoulders with his walking-stick After beating me Mr. Fort said “You go over and report me to a damn smooth faced Yankee that comes down here to rule Southern men I'll show them that they cant rule me” The next day I went over to Bastrop and complained to the officer of the Bureau who told me to go back but I was afraid and remained in town. The next day I heard that he had killed Milton the same day that I came to town,

[. . .]

Chicago Citations

Bibliography entry:

Hubbard, Gabriel, Aaron Wayne, and Thomas Deckard. Affidavits, May 13–16, 1867. Enclosed in Byron Porter to James Oakes, May 16, 1867, P-194 1867, Registered Letters Received, ser. 3620, Texas Assistant Commissioner, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Affidavits of Gabriel Hubbard, Aaron Wayne, and Thomas Deckard, May 13–16, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Hubbard%20et%20al.html.

Shortened citation:

Affidavits of three Texas freedmen, May 1867.

PRIMARY SOURCE P15.63

North Carolina Freedman to the Freedmen's Bureau Assistant Superintendent at Weldon

Wilson Maggett to Capt. Foot · Rich Square, North Carolina, May 16, 1867

TOC FIT	Chapter 15 · Essay prompts 15.3 (Sharecropping: New Bondage or Compromise?) and 15.4 (What Built Black Freedom?)
WHY HERE	A freedman seeks pay for his family's work after being driven off without settlement.
TREATMENT	Full public-domain text

Historical Context

Freed families who worked for a share of the crop depended on the landowner to divide it fairly at the end of the year.

Wilson Maggett asked the Bureau for help collecting pay for the work his wife and two sons had done for a white man in 1865, after which, he said, the family had been driven off without a settlement.

Editorial note: The text follows the Freedmen and Southern Society Project transcription.

Document Text

Rich Square N.C. May 16th 1867.

My dear Sir: I write to ask you to favor me with a few lines. giving you opinion as to the work of my Wife (col) and two oldest sons (col), who worked for Thos Bolden (white) of this place year before last, after we were all declared free. Bolden promised to give my wife and one of my sons their last years provisions as pay for their work the year before, and whatever was right for the other son he promised to pay me in cash.

He kept them on until 29th of Sep. after they had made a crop for him and then drove them away without a cause, and has refused to make a settlement of any kind with me.

There was but one other hand on his place regularly that year but my wife & sons. and they worked hard and made a good crop for him and have never received even a stitch of clothes for their work.

What he pretended to get mad about when he drove them away, was this. I went hunting one night and catched a coon. and gave it to my boy to take to his mother. She cooked it and sent some of it into Boldens little children, and beause she did not send it all in, Bolden got mad and drove them away.

My sons were 16 & 14 years old at that time.

Now if you will be so kind as to let me know if there is not some way to get pay for their work, it will greatly oblige Your humble Servt

Wilson Maggett (Col.)

Direct Rich Square Northampton Co N.C.

Chicago Citations

Bibliography entry:

Maggett, Wilson. Letter to Captain Foot, May 16, 1867. Letters Received, ser. 2666, Halifax, N.C., Assistant Superintendent, Bureau of Refugees, Freedmen, and Abandoned Lands, Record Group 105, National Archives. Freedmen and Southern Society Project, University of Maryland.

Footnote citation:

Wilson Maggett to Captain Foot, May 16, 1867, RG 105, National Archives, via Freedmen and Southern Society Project, https://freedmen.umd.edu/Maggett.html.

Shortened citation:

Maggett to Foot, May 16, 1867.

PRIMARY SOURCE P15.64

Howell Cobb to J. D. Hoover, January 4, 1868

Howell Cobb · Macon, Georgia, January 4, 1868

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	A former Confederate leader explains white southern opposition to Congressional Reconstruction.
TREATMENT	Public-domain text, selected excerpt (from OCR transcription)

Historical Context

Howell Cobb (1815–1868) of Georgia had been Speaker of the House, governor, and Buchanan's secretary of the treasury, then president of the Confederate provisional congress and a Confederate general.

Invited to a Democratic celebration in Washington, Cobb declined and explained his view of Reconstruction. He condemned the Reconstruction Acts and military rule, and warned that Congress was forcing "negro supremacy" on the South.

Editorial note: The text follows the Internet Archive scan of the 1913 printing; words broken at line ends have been rejoined.

Document Text

[. . .]

Macon [Ga.], 4 Jany., 1868.

Dr. Sir : Your invitation to attend the celebration of the 8th January by the democratic resident committee of Washington City has just been received. It revives pleasant memories of the past — and tempts me to break a self-imposed silence on political questions which I have observed since the close of the War. And yet I hesitate to write — for what I write may not harmonize with the festivities of the occasion which assembles you and I would not mar the happy hours of those who meet to celebrate a national festival under the protecting care of the constitution of our fathers.

We of the ill-fated South realize only the mournful present whose lesson teaches us to prepare for a still gloomier future. To participate in a national festival would be a cruel mockery, for which I

frankly say to you I have no heart, however much I may honor the occasion and esteem the association with which I would be thrown.

The people of the south, conquered, ruined, impoverished, and oppressed, bear up with patient fortitude under the heavy weight of their burthens. Disarmed and reduced to poverty, they are powerless to protect themselves against wrong and injustice; and can only await with unbroken spirits that destiny which the future has in store for them. At the bidding of their more powerful conquerors they laid down their arms, abandoned a hopeless struggle, and returned to their quiet homes under the plighted faith of a soldier's honor that they should be protected so long as they observed the obligations imposed upon them of peaceful law-abiding citizens. Despite the bitter charges and accusations brought against our people, I hesitate not to say that since that hour their bearing and conduct have been marked by a dignified and honorable submission which should command the respect of their bitterest enemy and challenge the admiration of the civilized world. Deprived of our property and ruined in our estates by the results of the war, we have accepted the situation and given the pledge of a faith never yet broken to abide it. Our conquerors seem to think we should accompany our acquiescence with some exhibition of gratitude for the ruin which they have brought upon us. We cannot see it in that light. Since the close of the war they have taken our property of various kinds, sometimes by seizure, and sometimes by purchase, — and when we have asked for

remuneration have been informed that the claims of rebels are never recognized by the Government. To this decision necessity compels us to submit; but our conquerors express surprise that we do not see in such ruling the evidence of their kindness and forgiving spirit. They have imposed upon us in our hour of distress and ruin a heavy and burthensome tax, peculiar and limited to our impoverished section. Against such legislation we have ventured to utter an earnest appeal, which to many of their leading spirits indicates a spirit of insubordination which calls for additional burthens. They have deprived us of the protection afforded by our state constitutions and laws, and put life, liberty and property at the disposal of absolute military power. Against this violation of plighted faith and constitutional right we have earnestly and solemnly protested, and our protests have been denounced as insolent; — and our restlessness under the wrong and oppression which have followed these acts has been construed into a rebellious spirit, demanding further and more stringent restrictions of civil and constitutional rights. They have arrested the wheels of State government, paralized the arm of industry, engendered a spirit of bitter antagonism on the part of our negro population towards the white people with whom it is the interest of both races they should maintain kind and friendly rela-

tions, and are now struggling by all the means in their power both legal and illegal, constitutional and unconstitutional, to make our former slaves our masters, bringing these Southern states under the power of negro supremacy. To these efforts we have opposed appeals, protests, and every other means of resistance in our power, and shall continue to do so to the bitter end. If the South is to be made a pandemonium and a howling wilderness the responsibility shall not rest upon our heads. Our conquerors regard these efforts on our part to save ourselves and posterity from the terrible results of their policy and conduct as a new rebellion against the constitution of our country, and profess to be amazed that in all this we have failed to see the evidence of their great magnanimity and exceeding generosity. Standing today in the midst of the gloom and suffering which meets the eye in every direction, we can but feel that we are the victims of cruel legislation and the harsh enforcement of unjust laws. On the other hand our conquerors are amazed that the sufferings of our people create no joy, and the threatened starvation of our wives and children afford no cause for mirth and hilarity, and above all that our hearts do not overflow with gratitude to those who have brought these calamities upon us, and whose policy foreshadows still greater sufferings and gloomier days. We regarded the close of the war as ending the relationship of enemies and the beginning of a new national brotherhood, and in the light of that conviction felt and spoke of constitutional equality. We felt and spoke as freemen and American citizens, and some were bold enough to present their petitions and grievances before the governing power. Such had always been the right and privilege of an American citizen; — but regarding our status in a far different light, such petitions and complaints were denounced in our legislative halls as impertinent and insolent conduct, and even the representative who offered them was rebuked for his temerity. We claimed that the result of the war left us a state in the Union, and therefore under the protection of the constitution, rendering in return cheerful obedience to its requirements and bearing in common with the other states of the Union the burthens of government, submitting even as we were compelled to do to taxation without representation,' but they tell us that a successful war to keep us in the Union left us out of the Union and that the pretension we put up for constitutional protection evidences bad temper on our part and a want of appreciation of the generous spirit which declares that the constitution is not over us for the purpose of protection. It reaches our case only when burthens are to be imposed. If on the other hand we venture to whisper that this theory makes secession an accomplished fact and puts these southern states out of the Union, we stand forthwith charged with a renewal of the old issue and a hidden desire to war

upon the integrity of the Union. In such reasoning is found a justification of the policy which seeks to put the South under negro supremacy. Better, they say, to hazard the consequences of negro supremacy in the south with its sure and inevitable results upon Northern prosperity than to put faith in the people of the south who though overwhelmed and conquered have ever showed themselves a brave and generous people, true to their plighted faith in peace and in war, in adversity as in prosperity. If we remain silent in the midst of all these conflicting trials and troubles, we are taunted with a cowardly fear that prevents an honest expression of opinion. If on the other

hand a brave, and it may be an imprudent spirit, ventures to give expression to his convictions on questions so vitally affecting the very existence of our people, he is threatened with arrest as a disturber of the public peace and the instigator of a new rebellion. Whatever we may do or say is construed into the exhibition of disloyal sentiments and made the pretext for renewed aggressive legislation. It is one of the strange features of human organization to hate those whom we have wronged, and each additional wrong that we put upon others intensifies the hatred which the first wrong created. In this way alone can I account for the bitterness with which our conquerors have pursued our ruined people. That they do hate us none can doubt who will calmly review the history of the governing power since the close of the war. That it will continue through life I doubt not; and in torment they will raise up their eyes, cursing the good and virtuous who are peacefully reposing in Abraham's bosom, beyond the reach of their malignity.

[. . .]

Chicago Citations

Bibliography entry:

Cobb, Howell. Letter to J. D. Hoover, January 4, 1868. In *The Correspondence of Robert Toombs, Alexander H. Stephens, and Howell Cobb*, edited by Ulrich B. Phillips. Annual Report of the American Historical Association for the Year 1911, vol. 2, 690–93. Washington, DC: Government Printing Office, 1913. Internet Archive.

Footnote citation:

Howell Cobb to J. D. Hoover, January 4, 1868, in *The Correspondence of Robert Toombs, Alexander H. Stephens, and Howell Cobb*, ed. Ulrich B. Phillips (Washington, DC: Government Printing Office, 1913), 690–93, https://archive.org/details/annualreportofam02inamer.

Shortened citation:

Cobb to Hoover, January 4, 1868.

PRIMARY SOURCE P15.65

Republican Party Platform of 1868 (excerpt)

Republican National Convention, Chicago · May 20, 1868

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	Republicans impose Black suffrage on the South while leaving it to northern voters at home.
TREATMENT	Public-domain text, selected planks

Historical Context

The Republicans met in Chicago days after the Senate failed by one vote to convict President Johnson in his impeachment trial. They nominated Ulysses S. Grant.

The platform praised Congressional Reconstruction and guaranteed suffrage for loyal Black men in the South, but declared that in the loyal states the question of suffrage "properly belongs to the people of those States."

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

First—We congratulate the country on the assured success of the reconstruction policy of Congress, as evinced by the adoption, in the majority of the States lately in rebellion, of constitutions securing equal civil and political rights to all, and regard it as the duty of the Government to sustain those constitutions, and to prevent the people of such States from being remitted to a state of anarchy or military rule.

Second—The guaranty by Congress of equal suffrage to all loyal men at the South was demanded by every consideration of public safety, of gratitude, and of justice, and must be maintained; while the question of suffrage in all the loyal States properly belongs to the people of those States.

Third—We denounce all forms of repudiation as a national crime; and national honor requires the payment of the public indebtedness in the utmost good faith to all creditors at home and abroad, not only according to the letter, but the spirit of the laws under which it was contracted.

Fourth—It is due to the labor of the nation, that taxation should be equalized and reduced as rapidly as the national faith will permit.

Fifth—The National Debt, contracted as it has been for the preservation of the Union for all time to come, should be extended over a fair period of redemption, and it is the duty of Congress to reduce the rate of interest thereon whenever it can be done honestly.

Sixth—That the best policy to diminish our burden of debt, is to so improve our credit that capitalists will seek to loan us money at lower rates of interest than we now pay and must continue to pay so long as repudiation, partial or total, open or covert, is threatened or suspected.

Seventh—The Government of the United States should be administered with the strictest economy; and the corruptions which have been so shamefully nursed and fostered by Andrew Johnson call loudly for radical reform.

Eighth—We profoundly deplore the untimely and tragic death of Abraham Lincoln, and regret the accession of Andrew Johnson to the Presidency, who has acted treacherously to the people who elected him and the cause he was pledged to support; has usurped high legislative and judicial functions; has refused to execute the laws; has used his high office to induce other officers to ignore and violate the laws; has employed his executive powers to

render insecure the property, the peace, the liberty, and life of the citizen; has abused the pardoning power; has denounced the National Legislature as unconstitutional; has persistently and corruptly resisted, by every means in his power, every proper attempt at the reconstruction of the States lately in rebellion; has perverted the public patronage into an engine of wholesale corruption; and has been justly impeached for high crimes and misdemeanors, and properly pronounced guilty thereof by the vote of thirty-five senators.

Ninth—The doctrine of Great Britain and other European powers, that because a man is once a subject, he is always so, must be resisted, at every hazard, by the United States, as a relic of the feudal times, not authorized by the law of nations, and at war with our national honor and independence. Naturalized citizens are entitled to be protected in all their rights of citizenship, as though they were native-born; and no citizen of the United States, native or naturalized, must be liable to arrest and imprisonment by any foreign power, for acts done or words spoken in this country; and, if so arrested and imprisoned, it is the duty of the Government to interfere in his behalf.

Tenth—Of all who were faithful in the trials of the late war, there were none entitled to more especial honor than the brave soldiers and seamen who endured the hardships of campaign and cruise, and imperilled their lives in the service of the country. The bounties and pensions provided by law for these brave defenders of the nation, are obligations never to be forgotten. The widows and orphans of the gallant dead are the wards of the people—a sacred legacy bequeathed to the nation's protecting care.

[. . .]

Chicago Citations

Bibliography entry:

Republican Party. "Republican Party Platform of 1868." May 20, 1868. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Republican Party Platform of 1868, May 20, 1868, American Presidency Project, https://www.presidency.ucsb.edu/documents/republican-party-platform-1868.

Shortened citation:

Republican Platform of 1868.

PRIMARY SOURCE P15.66

Report of Bvt. Lt. Col. Joseph W. Gelray on the Ku Klux Klan in Tennessee (excerpt)

Joseph W. Gelray to Bvt. Maj. Gen. W. P. Carlin · June 25, 1868

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	An army officer reports Klan terror and the reluctance of local authorities to stop it.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

The Ku Klux Klan, founded in Pulaski, Tennessee, in 1866, spread rapidly in 1868 as Black men began to vote. Joseph W. Gelray, an army officer assigned to the Freedmen's Bureau in Tennessee, investigated Klan violence in middle Tennessee.

His report describes visits to towns where freedpeople and white Unionists had been whipped and killed, and his efforts to get local officials to protect prisoners and prosecute the attackers.

Editorial note: The text follows the Internet Archive scan of the *Report of the Secretary of War*; the scan's right margin is clipped, and some words are cut off. The scanner's watermark line has been removed. OCR errors such as "fiur" have been kept.

Document Text

[. . .]

I executed your instructions tere the same as at Murfreesboro', and received a promise from the magistrates and people that the prisoners in their hands should be pro-

tected against violence and receive a fiur and impartial trial ; also, tlia.t they woi3d call a meeting and denounce the Ku-KInx Klan as the insti grantors of the trouble, and would arrest and punish them if in their power. But how could these poor colored men get a fair trial when 200 whi-te men, Ml of bad whiskey, were ready to hang a magistrate, or any body else, in case he did not execute their will in the matter, wnether it wiU be right or wrong f The magistrates themselves acknowledged that they were intimidated by the Ku-Klux Klan, and qualified their promises of justice to the prisoners by always adding, "providing the Klan does not interfere with us or the prisoners." 1 went into the court-room, where the prisoners were being tried, and found them guarded by two men witli shot-guns, and to all appearances their trial proceeding with regularity and fairness. I received a promise from the best people of the town that in case the remainder of the absent colored men should return, they would be protected from violence so far as lay in their power, and receive a fair and impartial trial. 1 then started for Lewisburg, the ex)unty sea^t of Marshall, and arrived about 5 o'clock p. m., and at once had a meetingof the prominent citizens of the place, to whom I explained my mission, and after executing your orders in both letter and spirit, I started en route to Columbia, Maury county, not, however, with the intention of going through that night, as the road was very bad and I had already ridden 52 miles since morning, but with the intention of placing darkness between myself and Chapel Hill and Lewisburg, as I had been assured by Union citizens and colored men that it wonld not be safe to remain over night in the village, and indeed the appearances of things at Chapel Hill convinced me that such was the case.

I was well received by the people of Lewisburg, who promised to do everything in their power to put a stop to the depredations of the Ku- Klux Klan, and for that purpose would call a county meeting at as early a day as possible. The state of feeling between the blacks, union whites, and ex-rebels, is about the same in Marshall as in

Eutherford. The colored and union white people live in daily and nightly terror of their lives, and there is neither freedom of speech nor of a -tion guaranteed them, as the Constitution of their country provides. Although the best citizens are appai-ently not in favor of the operations of the Klan, yet they dare not say anything against it except in the most general way. In short, if the general government does not make some show of power in these counties, the confederacy, so far as they (the counties and their people) are concerned, might as well have been recognized, as there exists no more respect for United States laws, United States officers, or authority among them, than might reasonably be expected in the interior of Africa.

[. . .]

Chicago Citations

Bibliography entry:

Gelray, Joseph W. Report to W. P. Carlin, June 25, 1868. In *Report of the Secretary of War*, 1868, vol. 1, 173–74. Washington, DC: Government Printing Office, 1868. Internet Archive.

Footnote citation:

Joseph W. Gelray to W. P. Carlin, June 25, 1868, in *Report of the Secretary of War*, 1868 (Washington, DC: Government Printing Office, 1868), 1:173–74.

Shortened citation:

Gelray to Carlin, June 25, 1868.

PRIMARY SOURCE P15.67

"This Is a White Man's Government"

Thomas Nast · Harper's Weekly, September 5, 1868

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	A Republican cartoonist portrays the Democratic coalition of 1868 as built on crushing Black citizens.
TREATMENT	Public-domain image

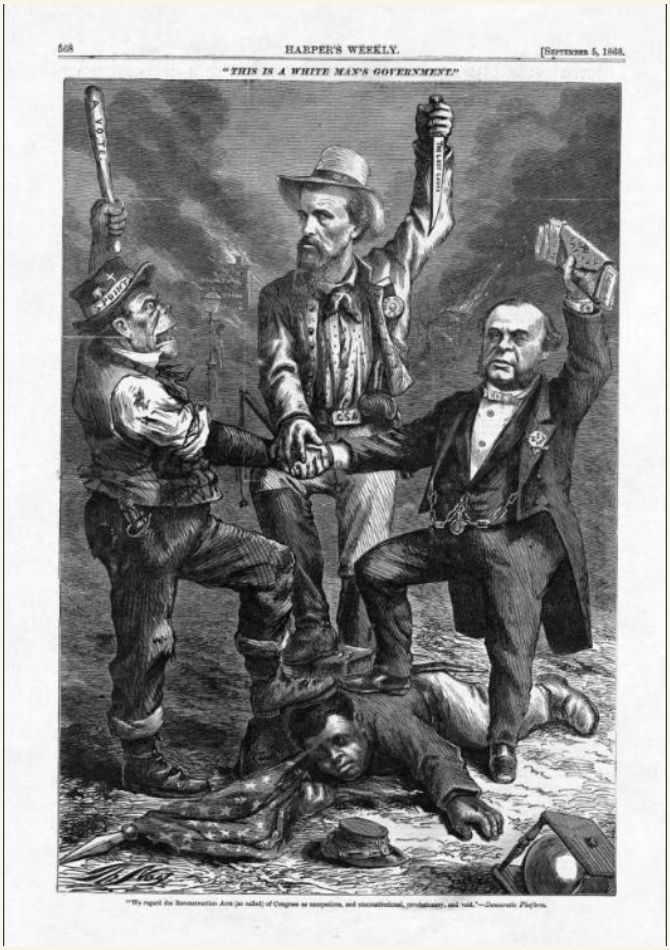
Historical Context

In the 1868 presidential campaign, Democrats nominated Horatio Seymour and ran against Congressional Reconstruction with open appeals to white supremacy.

Thomas Nast's cartoon shows three figures standing on a Black Union veteran: an Irish immigrant, the former Confederate general Nathan Bedford Forrest, and the financier August Belmont, chairman of the Democratic Party. Behind them a Black school and orphanage burn. The title quotes the Democratic platform.

Editorial note: Image reproduced via Wikimedia Commons. Nast was a Republican partisan; his caricature of the Irish figure reflects his own prejudices.

Primary Source Image



Thomas Nast, "This Is a White Man's Government," *Harper's Weekly*, September 5, 1868.

Chicago Citations

Bibliography entry:

Nast, Thomas. "'This Is a White Man's Government.'" Wood engraving. *Harper's Weekly*, September 5, 1868. Via Wikimedia Commons.

Footnote citation:

Thomas Nast, "'This Is a White Man's Government,'" *Harper's Weekly*, September 5, 1868.

Shortened citation:

Nast, "This Is a White Man's Government."

PRIMARY SOURCE P15.68

Report of Brevet Major General J. J. Reynolds, Commanding Fifth Military District (excerpt)

J. J. Reynolds · 1868

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	An army commander reports that armed bands have overwhelmed civil law in Reconstruction Texas.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Under the Reconstruction Acts of 1867, Texas and Louisiana formed the Fifth Military District. General Joseph J. Reynolds (1822–1899) commanded the troops in Texas.

In his annual report Reynolds wrote that armed groups known as Ku Klux Klans were murdering freedpeople and white Unionists, and that "the civil law east of the Trinity River is almost a dead letter."

Editorial note: The text follows the American Yawp Reader transcription from the *Annual Report of the Secretary of War*; the typographical error "souts" is kept.

Document Text

General: I have the honor to forward herewith annual tabular statement of expeditions and souts, and reports of movements of the various regiments serving in this district, for the year ending September 30, 1868.

Armed organizations, generally known as “Ku-Klux Klans,” exist, independently or in concert with other armed bands, in many parts of Texas, but are most numerous, bold, and aggressive east of Trinity River.

The precise objects of the organizations cannot be readily explained, but seems, in this state, to be to disarm, rob, and in many cases murder Union men and negroes, and as occasion may offer, murder United States officers and soldiers; also to intimidate every one who knows anything of the organization but who will not join it.

The civil law east of the Trinity River is almost a dead letter. In some counties the civil officers are all, or a portion of them, members of the Klan. In other counties where the civil officers will not join the Klan, or some other armed band, they have been compelled to leave their counties. Examples are Van Zandt, Smith, and Marion counties; (the county seat of the latter is Jefferson.)

In many counties where the county officers have not been driven off their influence is scarcely felt. What political end, if any, is aimed at by these bands I cannot say, but they attend in large bodies the political meetings (barbecues) which have been and are still being held in various parts of this State under the auspices of the democratic clubs of the different counties.

The speakers encourage their attendance, and in several counties men have been indicated by name from the speaker’s stand, as those selected for murder. The men thus pointed out have no course left them but to leave their homes or be murdered on the first convenient opportunity.

The murder of negroes is so common as to render it impossible to keep an accurate account of them.

Many of the members of these bands of outlaws are transient persons in the State; the absence of railroads and telegraphs and great length of time required to communicate between remote points facilitating their devilish purposes.

These organizations are evidently countenanced, or at least not discouraged, by a majority of the white people in the counties where the bands are most numerous. They could not otherwise exist.

I have given this matter close attention, and am satisfied that a remedy to be effective must be gradually applied and continued with the firm support of the army until these outlaws are punished or dispersed.

They cannot be punished by the civil courts until some examples by military commissions show that men can be punished in Texas for murder and kindred crimes. Perpetrators of such crimes have not heretofore, except in very rare instances, been punished in this state at all.

Free speech and a free press, as the terms are generally understood in other States, have never existed in Texas. In fact, the citizens of other states cannot appreciate the state of affairs in Texas without actually experiencing it. The official reports of lawlessness and crime, so far from being exaggerated, do not tell the whole truth.

Jefferson is the center from which most of the trade, travel, and lawlessness of eastern Texas radiate, and at this point or its vicinity there should be stationed about a regiment of troops. The recent murder at Jefferson of Hon. G. W. Smith, a delegate to the constitutional convention, has made it necessary to order more troops to that point. This movement weakens the frontier posts to such an extent as to impair their efficiency for protection against Indians, but the bold, wholesale murdering in the interior of the state seems at present to present a more urgent demand for the troops than Indian depredations. The frontier posts should, however, be reinforced if possible, as it is not improbably that the Indians from the northwest, after having suffered defeat there, will make heavy incursions into Texas.

To restore measurable peace and quiet to Texas will require, for a long time, that troops be stationed at many county seats, until, by their presence, and aid if necessary, the civil law can be placed in the hands of reliable officers, and executed. This will be the work of years, and will be fully accomplished only by an increase of population.

Chicago Citations

Bibliography entry:

Reynolds, J. J. "Report of Brevet Major General J. J. Reynolds, Commanding Fifth Military District." In *Annual Report of the Secretary of War*, 1868, 704–5. Washington, DC: Government Printing Office, 1868. American Yawp Reader.

Footnote citation:

J. J. Reynolds, report, 1868, in *Annual Report of the Secretary of War*, 1868, 704–5, via American Yawp Reader, https://www.americanyawp.com/reader/reconstruction/general-reynolds-describes-lawlessness-in-texas-1868/.

Shortened citation:

Reynolds, report, 1868.

PRIMARY SOURCE P15.69

Executive Documents on the State of the Freedmen (excerpts)

U.S. War Department, Report of the Secretary of War · 1868

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	Bureau reports weigh widespread murder of freedpeople against the growth of schools.
TREATMENT	Public-domain text, selected excerpts

Historical Context

The Freedmen's Bureau reported each year to the secretary of war. Its 1868 reports from Texas described conditions three years after emancipation.

Bureau officers wrote that "the murder of Negroes is so common as to render it impossible to keep an accurate account of them," that agents were too few to protect freedpeople, and that hundreds of schools were nonetheless operating.

Editorial note: The text follows the Teaching American History transcription.

Document Text

Report of the Secretary of War

MR. PRESIDENT: I have the honor to submit a general report of the operations of this department since the last annual report of the Secretary of War, with the reports of the chiefs of bureaus and military commanders for the same period. . . .

The precise objects of the [secret] organizations cannot be readily explained, but seem, in this State, to be to disarm, rob, and in many cases murder Union men and negroes, and as occasion may offer, murder United States officers and soldiers; also to intimidate everyone who knows anything of the organization but who will not join it.

The civil law east of the Trinity River is almost a dead letter. In some counties the civil officers are all, or a portion of them, members of the Klan. In other counties where the civil officers will not join the Klan, or some other armed band, they have been compelled to leave their counties. . . .

In many counties where the county officers have not been driven off, their influence is scarcely felt. What political end, if any, is aimed at by these bands I cannot say, but they attend in large bodies the political meetings (barbecues) which have been and are still being held in various parts of this State under the auspices of the democratic clubs of the different counties.

The speakers encourage their attendance, and in several counties men have been indicated by name from the speaker’s stand, as those selected for murder. The men thus pointed out have no course left them but to leave their homes or be murdered on the first convenient opportunity.

The murder of Negroes is so common as to render it impossible to keep an accurate account of them.

Many of the members of these bands of outlaws are transient persons in the State, the absence of railroads and telegraphs and great length of time required to communicate between remote points facilitating their devilish purposes.

These organizations are evidently countenanced, or at least not discouraged, by a majority of the white people in the counties where the bands are most numerous. They could not otherwise exist.

I have given this matter close attention, and am satisfied that a remedy to be effective must be gradually applied and continued with the firm support of the army until these outlaws are punished or dispersed.

They cannot be punished by the civil courts until some examples by military commissions show that men can be punished in Texas for murder and kindred crimes. Perpetrators of such crimes have not heretofore, except in very rare instances, been punished in this State at all.

Free speech and a free press, as the terms are generally understood in other States, have never existed in Texas. In fact, the citizens of other States cannot appreciate the state of affairs in Texas without actually experiencing it. The official reports of lawlessness and crime, so far from being exaggerated, do not tell the whole truth.

Jefferson is the center from which most of the trade, travel, and lawlessness of eastern Texas radiate, and at this point or its vicinity there should be stationed about a regiment of troops. The recent murder at Jefferson of Hon. G. W. Smith, a delegate to the constitutional convention, has made it necessary to order more troops to that point. This movement weakens the frontier posts to such an extent as to impair their efficiency for protection against Indians, but the bold, wholesale murdering in the interior of the State seems at present to present a more urgent demand for the troops than Indian depredations. The frontier posts should, however, be re-enforced if possible, as it is not improbable that the Indians from the northwest, after having suffered defeat there, will make heavy incursions into Texas. . . .

The educational work has been vigorously prosecuted. The measure of success attained is quite gratifying considering the obstacles that have been encountered – the poverty of the freedmen, the small amount of aid received from benevolent associations at the north, and, in the more remote sections, the prejudice and opposition of white citizens. In May the total number of schools in operation was 217, with 244 teachers and 10,971 pupils.

While the freedmen, as a class, exhibit a very general interest in religious matters, many of their habit still show the debasing influence of the slave system. Prominent among these is the want of a due appreciation of the obligations of the marriage contract. In this respect, however, their conduct is undergoing much improvement, and cases of desertion of wife and family are becoming rare.

The condition of society in the more remote and sparsely settled parishes is greatly disorganized. In some sections the treatment of the colored people has been deplorable. Outrage and crimes of every description have been perpetrated upon them with impunity. In these sections the character of the local magistracy is not as high as could be desired, and many of them have connived at the escape of offenders, while some have even participated in the outrages. In other sections lawless ruffians have overawed the civil authorities, “Vigilance Committees” and “Ku-klux Klans,” disguised by night, have burned the dwellings and shed the blood of unoffending freedmen. In many cases of brutal murder brought before the civil authorities, verdicts of justifiable homicide in self-defense have been rendered. The agents of the bureau, in obedience to their instructions, have exerted all the powers confided to them for the protection of the freed people, first referring the cases to the civil officials, and then, if justice is not rendered, calling on the military authorities for their action. For a few months past the assistant commissioner reports a decrease in the number of outrages committed, and more efficient measures on the part of the civil authorities for the apprehension and punishment of the perpetrators. . . .

[. . .]

Chicago Citations

Bibliography entry:

U.S. War Department. *Report of the Secretary of War*. In *Message of the President of the United States and Accompanying Documents*, 40th Cong., 3rd Sess. Washington, DC: Government Printing Office, 1868. Teaching American History.

Footnote citation:

Report of the Secretary of War (Washington, DC: Government Printing Office, 1868), via Teaching American History, https://teachingamericanhistory.org/document/executive-documents-on-state-of-the-freedmen/.

Shortened citation:

Report of the Secretary of War, 1868.

PRIMARY SOURCE P15.70

Fifteenth Amendment to the U.S. Constitution

U.S. Congress · passed February 26, 1869; ratified February 3, 1870

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	The amendment put Black male suffrage in the Constitution, but its negative wording left openings for later restrictions.
TREATMENT	Full public-domain text

Historical Context

After Grant's narrow popular-vote victory in 1868, Republicans moved to protect Black voting nationally, including in northern and border states where Black men still could not vote.

The amendment forbids denying the vote "on account of race, color, or previous condition of servitude." Republicans rejected broader versions that would have also banned literacy and property tests, leaving room for later disfranchisement. It did not extend the vote to women.

Editorial note: The text follows the National Archives Milestone Documents transcription of the joint resolution. The Norton collection's text of this amendment is printed here as one entry.

Document Text

Fortieth Congress of the United States of America;

At the third Session, Begun and held at the city of Washington, on Monday, the seventh day of December, one thousand eight hundred and sixty-eight.

A Resolution Proposing an amendment to the Constitution of the United States.

Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, (two-thirds of both Houses concurring) that the following article be proposed to the legislature of the several States as an amendment to the Constitution of the United States which, when ratified by three-fourths of said legislatures shall be valid as part of the Constitution, namely:

Article XV.

Section 1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude—

Section 2. The Congress shall have power to enforce this article by appropriate legislation.

Chicago Citations

Bibliography entry:

U.S. Congress. Joint Resolution Proposing the Fifteenth Amendment to the Constitution. February 26, 1869. National Archives, Milestone Documents.

Footnote citation:

U.S. Const. amend. XV, National Archives, Milestone Documents, https://www.archives.gov/milestone-documents/15th-amendment.

Shortened citation:

U.S. Const. amend. XV.

PRIMARY SOURCE P15.71

The Enforcement Acts (excerpts)

U.S. Congress · May 31, 1870; April 20, 1871

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	Congress uses federal power against private conspiracies to protect Black voting and rights.
TREATMENT	Public-domain text, selected sections

Historical Context

To enforce the Fourteenth and Fifteenth Amendments against Klan terror, Congress passed a series of Enforcement Acts in 1870 and 1871.

The first act made it a federal crime to interfere with voting on account of race or to conspire to deprive citizens of their rights. The Ku Klux Klan Act of 1871 allowed the president to use the army and suspend habeas corpus. Federal prosecutions broke the Klan in several states by 1872.

Editorial note: The text follows the Teaching American History transcription.

Document Text

[. . .]

SEC. 2. And be it further enacted, That if by or under the authority of the constitution or laws of any State, or the laws of any Territory, any act is or shall be required to be done as a prerequisite or qualification for voting, and by such constitution or laws persons or officers are or shall be charged with the performance of duties in furnishing to citizens an opportunity to perform such prerequisite, or to become qualified to vote, it shall be the duty of every such person and officer to give to all citizens of the United States the same and equal opportunity to perform such prerequisite, and to become qualified to vote without distinction of race, color, or previous condition of servitude; and if any such person or officer shall refuse or knowingly omit to give full effect to this section, he shall, for every such offence, forfeit and pay the sum of five hundred dollars to the person aggrieved thereby. . . and shall also, for every such offence, be deemed guilty of a misdemeanor, and shall, on conviction thereof, be fined not less than five hundred dollars, or be imprisoned not less than one month and not more than one year, or both, at the discretion of the court.

. . .

SEC. 4. And be it further enacted, That if any person, by force, bribery, threats, intimidation, or other unlawful means, shall hinder, delay, prevent, or obstruct, or shall combine and confederate with others to hinder, delay, prevent, or obstruct, any citizen from doing any act required to be done to qualify him to vote or from voting at any election as aforesaid, such person shall for every such offence forfeit and pay the sum of five hundred dollars to the person aggrieved thereby . . . and shall, on conviction thereof, be fined not less than five hundred dollars, or be imprisoned not less than one month and not more than one year, or both, at the discretion of the court.

SEC. 5. And be it further enacted, That if any person shall prevent, hinder, control, or intimidate, or shall attempt to prevent, hinder, control, or intimidate, any person from exercising or in exercising by the right of suffrage, to whom right of suffrage is secured or guaranteed by the fifteenth amendment to the Constitution of the United States, by means of bribery, threats, or threats of depriving such person of employment or occupation, or of ejecting such person from rented house, lands, or other property, or by threats of refusing to renew leases or contracts for labor, or by threats of violence to himself or family, such person so offending shall be deemed guilty

of a misdemeanor, and shall, on conviction thereof, be fined not less than five hundred dollars, or be imprisoned not less than one month and not more than one year, or both. . . .

SEC. 6. And be it further enacted, That if two or more persons shall band or conspire together, or go in disguise upon the public highway, or upon the premises of another, with intent to violate any provision of this act, or to injure, oppress, threaten, or intimidate any citizen with intent to prevent or hinder his free exercise and enjoyment of any right or privilege granted or secured to him by the Constitution or laws of the United Sates, or because of his having exercised the same, such persons shall be held guilty of felony, and, on conviction thereof, shall be fined or imprisoned, or both, . . .[and] shall. . . be thereafter ineligible to, and disabled from holding, any office or place of honor, profit, or trust crested by the Constitution or laws of the United States.

. . .

SEC. 8. And be it further enacted, That the district courts of the United States, within their respective districts, shall have, exclusively of the courts of the several States, cognizance of all crimes and offences committed against the provisions of this act. . .

SEC. 9. And be it further enacted, That the district attorneys, marshals, and deputy marshals of the United States. . . , and every other officer who may be specially empowered by the President of the United States, shall be, and they are hereby, specially authorized and required, at the expense of the United States, to institute proceedings against all and every person who shall violate the provisions of this act, and cause him or them to be arrested and imprisoned, or bailed, as the case may be, for trial before such court of the United States or territorial court as has cognizance of the offense. . . .

SEC. 10. And be it further enacted, That it shall be the duty of all marshals and deputy marshals to obey and execute all warrants and precepts issued under the provisions of this act, when to them directed; and should any marshal or deputy marshal refuse to receive such warrant or other process when tendered, or to use all proper means diligently to execute the same, he shall, on conviction thereof, be fined in the sum of one thousand dollars, to the use of the person deprived of the rights conferred by this act. And the better to enable the said commissioners to execute their duties faithfully . . . , they are hereby authorized and empowered, within their districts . . . , to appoint . . . any one or more suitable persons, from time to time, to execute all such warrants and other process as may be issued by them in the lawful performance of their respective duties, and the persons so appointed to execute any warrant or process as aforesaid shall have authority to summon and call to their aid the bystanders or posse comitatus[1] of the proper county, or such portion of the land or naval forces of the United States, or of the militia, as may be necessary to the performance of the duty with which they are charged . . . .

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Enforce the Right of Citizens of the United States to Vote in the Several States of This Union." May 31, 1870; and "An Act to Enforce the Provisions of the Fourteenth Amendment." April 20, 1871. Teaching American History.

Footnote citation:

Enforcement Act of May 31, 1870, sec. [number], and Ku Klux Klan Act of April 20, 1871, via Teaching American History, https://teachingamericanhistory.org/document/the-enforcement-acts/.

Shortened citation:

Enforcement Acts.

PRIMARY SOURCE P15.72

An Appeal to the American People

Frances E. Watkins Harper · printed broadside, undated (c. 1871)

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Black poet appeals to the North not to abandon freedpeople to the defeated Confederates.
TREATMENT	Public-domain image

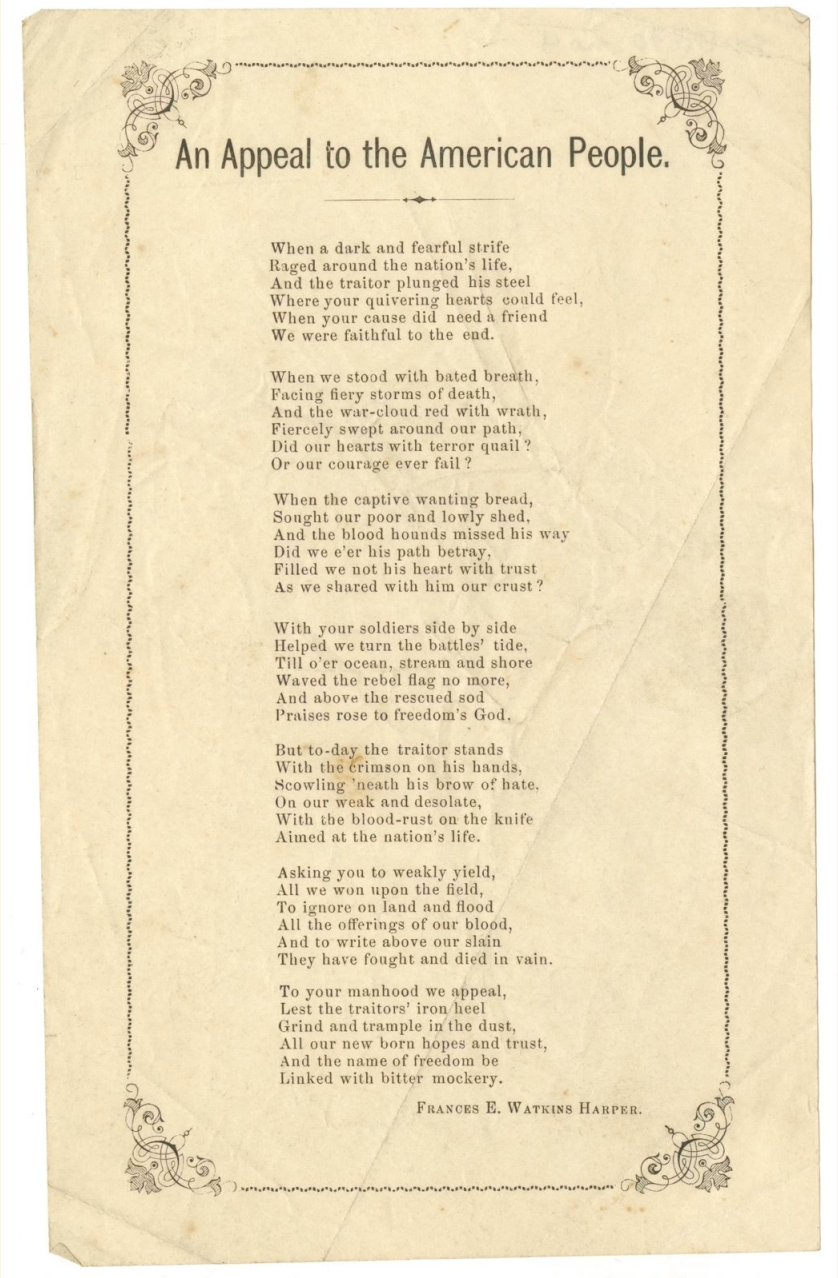
Historical Context

Frances Ellen Watkins Harper published poems throughout Reconstruction that spoke for freedpeople and Black veterans. This poem was issued as a separate printed sheet and also appeared in her 1871 collection *Poems*.

Speaking for Black Americans, it recalls their loyalty and service in the war and warns the nation not to let "the traitor" undo what was won on the battlefield.

Editorial note: Image of a printed broadside supplied by the instructor; it is not in the planning documents and is added as an extra entry. The sheet is undated; the date follows the poem's appearance in Harper's *Poems* (1871).

Primary Source Image



An Appeal to the American People.

When a dark and fearful strife
Raged around the nation's life,
And the traitor plunged his steel
Where your quivering hearts could feel,
When your cause did need a friend
We were faithful to the end.

When we stood with bated breath,
Facing fiery storms of death,
And the war-cloud red with wrath,
Fiercely swept around our path,
Did our hearts with terror quail?
Or our courage ever fail?

When the captive wanting bread,
Sought our poor and lowly shed,
And the blood hounds missed his way
Did we e'er his path betray,
Filled we not his heart with trust
As we shared with him our crust?

With your soldiers side by side
Helped we turn the battles' tide,
Till o'er ocean, stream and shore
Waved the rebel flag no more,
And above the rescued sod
Praises rose to freedom's God.

But to-day the traitor stands
With the crimson on his hands,
Scowling 'neath his brow of hate,
On our weak and desolate,
With the blood-rust on the knife
Aimed at the nation's life.

Asking you to weakly yield,
All we won upon the field,
To ignore on land and flood
All the offerings of our blood,
And to write above our slain
They have fought and died in vain.

To your manhood we appeal,
Lest the traitors' iron heel
Grind and trample in the dust,
All our new born hopes and trust,
And the name of freedom be
Linked with bitter mockery.

FRANCES E. WATKINS HARPER.

Frances E. Watkins Harper, "An Appeal to the American People," printed broadside.

Chicago Citations

Bibliography entry:

Harper, Frances E. Watkins. "An Appeal to the American People." Broadside, n.d. [c. 1871]. Also in Frances E. W. Harper, *Poems*. Philadelphia: Merrihew & Son, 1871.

Footnote citation:

Frances E. Watkins Harper, "An Appeal to the American People," broadside, n.d. [c. 1871], stanza [number].

Shortened citation:

Harper, "Appeal to the American People."

PRIMARY SOURCE P15.73

Uncivil Liberty (excerpt)

Ezra H. Heywood · 1871 (Princeton, Mass.: Co-operative Publishing)

TOC FIT	Chapter 15 · Essay prompt 15.2 (How Radical Was Reconstruction?)
WHY HERE	A reformer argues that the principle behind Black suffrage requires votes for women too.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Ezra H. Heywood (1829–1893), a Massachusetts abolitionist and labor reformer, became an advocate of woman suffrage and individual rights.

In this essay he argued that a government ruling women without their consent violated the principle of the Revolution and of the Reconstruction amendments, and that the logic of emancipation demanded votes for women.

Editorial note: The text follows the Wikisource transcription of the 1871 pamphlet.

Document Text

The independence of British American Colonies, asserted in 1776, was an emphatic declaration of the right of peoples to manage their own affairs; an appeal from governments to justice, from men to man. Till then nations were subject to enthroned power, whose will was superior to popular dissent. Singularly enough the managers of that revolution, after affirming life and liberty to be inalienable rights, proceeded to destroy life by wholesale in battle, and were so insincere as to deny liberty to a weaker race. The same hands which slew tyrants on Bunker Hill spread the shield of Federal law over chattel bondage at the South, and the Union of '89 became "a herd of States hunting slaves." Retributive justice has emancipated and enfranchised black men, but the insincerity of the fathers reappears in the dogma of exclusive male sovereignty, which rules one-half our adult citizens—the women—against their consent. This rude resistance to the logic of events affronts the essential principles of liberty, which inspired what self-government is yet thought safe in private affairs, and were designed to secure, at least, good manners in rulers.

Source of civil law. Human government originated in force; in the heaviest fist, or with those able to control the mere animal strength of the hour; the exponent of concrete opinion, of what certain men think best to be done, with a large infusion of fraud and violence, it now appears as emperor, president, or pound-keeper, set over prone multitudes, until they get on two feet and acknowledge the domination of principles. Through John Baptist or Herod, Brutus or Cæsar, Cromwell or Stuart, Lincoln or Buchanan, the moral sense, often stifled or perverted, but never conquered, here and there gets into creed, deed, or positive law, and makes the epoch memorable. One evolves a truth and is reviled, starved, or murdered outright for it; the truth survives, overrules law and custom, and men grow famous in eulogizing what they killed the discoverer for announcing. The king's arm being too short to reach the circumference of his realm, he delegates his will to subordinate executors, on whom, in turn, he is somewhat dependent. Thus all governments, in their way, are representative, and rest on consent, though they differ in the width of the circle in the number of nobles taken into royal confidence. But despotism makes the will of monarchy its ultimate appeal, while liberty, accepting as final nothing this side of natural right, defers to popular reason, and is served or cheated, by that democratic king, the average man, the majority. In that marvel to monarchs, a State without a king, all citizens are nobles in so far as they incarnate equity. Hence our fathers, according to their luck, derived just powers of government from consent of the governed; and, to be as good as they, we must be enough better to apply the democratic idea impartially.

In determining essential right we settle woman's rights, for the greater includes the less; every political or reformatory convention is the reappearance of government, through imperfect mediums, the people, from its primary source, natural equity. The subtle law which regulates movements of sovereign particles of the body politic, the cardinal principle of civil liberty allows every one to do what she or he will, provided they invade not the equal right of every other one to do the same. Out of this come freedom of thought, expression and movement; the right of association, habeas corpus, trial by jury, all the safeguards which experience has thrown up around dissent, to withstand invasion, and enable right to give law to instructive fact. Parties, majorities, state, church—all institutions are despotisms when in conflict with incarnate truth. Legitimate civil authority may be traced to one of two origins: 1st, Enlightened reason, natural equity. 2d, Positive legislation. Since the latter is void unless it enact the former, law can have but one true source, abstract right, God's will about it. Hence government, not less than liberty, must justify its existence, and opponents of impartial suffrage should be classed as tyrants until proved innocent. That this is a correct view some competent exponents of thought, in different ages, may be cited to witness. Socrates: "Whatever inconvenience ensue, nothing is to be preferred before justice." New Testament: "Whether it be right to hearken unto you, more than unto God, judge ye; . . . . . the law is fulfilled in one word, love thy neighbor as thyself." Cicero: "If nature does not ratify law all virtues lose their sway." Bacon: "There are in nature certain fountains of justice, whence all civil laws are derived but as streams." Shakespeare: "In love the heavens themselves do guide the state." Hampden: "What is unjust is not law, and what is not law ought not to be obeyed." Blackstone: "No human laws are of any validity if contrary to the law of nature; and such of them as are valid derive all their force and authority from this original." Kant: "Act so that the immediate motive of your will may become a universal rule for all intelligent beings." Hallam: "God forbid that we should submit our liberties to a jury of antiquaries," Carlyle: "One strong thing I find here below, the just thing, the true thing; if the thing is unjust, thou hast not succeeded." Spooner: "No one can know what the written law is until he knows what it ought to be." Emerson: "Law is only memorandum; absolute right is the first governor." Lieber: "The forbearing use of power is a sure attribute of a gentleman." The right to rule first claimed by brute force, then by good will, charity, finally rests in liberty, delegated trust, consent. If principal or representative goes wrong, integrity dissents, bides its time and wins, though the true king be in a dungeon, and a culprit on the throne. The world will settle down into a community of peoples when abstract right is obeyed as supreme interpersonal, interstate, inter-National law, and the clearest self-interest.

[. . .]

Chicago Citations

Bibliography entry:

Heywood, E. H. *Uncivil Liberty: An Essay to Show the Injustice and Impolicy of Ruling Woman without Her Consent*. Princeton, MA: Co-operative Publishing, 1871. Wikisource.

Footnote citation:

E. H. Heywood, *Uncivil Liberty* (Princeton, MA: Co-operative Publishing, 1871), [page], via Wikisource.

Shortened citation:

Heywood, *Uncivil Liberty*, [page].

PRIMARY SOURCE P15.74

Proclamation on Enforcement of the Fourteenth Amendment

Ulysses S. Grant · May 3, 1871

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	Grant answers Klan violence with federal power while asking southern communities to act first.
TREATMENT	Full public-domain text

Historical Context

In April 1871 Congress passed the Ku Klux Klan Act, which allowed the president to use the army and to suspend habeas corpus against conspiracies that deprived citizens of their rights.

Grant issued this proclamation announcing the law and warning that he would use its powers, while calling on southern communities to suppress the lawless bands themselves. In October he suspended habeas corpus in nine South Carolina counties.

Editorial note: The text follows the Teaching American History transcription from the American Presidency Project.

Document Text

The act of Congress entitled “An act to enforce the provisions of the fourteenth amendment to the Constitution of the United States, and for other purposes,” approved April 20, A. D. 1871, being a law of extraordinary public importance, I consider it my duty to issue this my proclamation calling the attention of the people of the United States thereto, enjoining upon all good citizens, and especially upon all public officers, to be zealous in the enforcement thereof, and warning all persons to abstain from committing any of the acts thereby prohibited.

This law of Congress applies to all parts of the United States and will be enforced everywhere to the extent of the powers vested in the Executive. But inasmuch as the necessity therefore is well known to have been caused chiefly by persistent violations of the rights of citizens of the United States by combinations of lawless and disaffected persons in certain localities lately the theater of insurrection and military conflict, I do particularly exhort the people of those parts of the country to suppress all such combinations by their own voluntary efforts through the agency of local laws and to maintain the rights of all citizens of the United States and to secure to all such citizens the equal protection of the laws.

Fully sensible of the responsibility imposed upon the executive by the act of Congress to which public attention is now called, and reluctant to call into exercise any of the extraordinary powers thereby conferred upon me except in cases of imperative necessity, I do, nevertheless, deem it my duty to make known that I will not hesitate to exhaust the powers thus vested in the executive whenever and wherever it shall become necessary to do so for the purpose of securing to all citizens of the United States the peaceful enjoyment of the rights guaranteed to them by the Constitution and laws.

It is my earnest wish that peace and cheerful obedience to law may prevail throughout the land and that all traces of our late unhappy civil strife may be speedily removed. These ends can be easily reached by acquiescence in the results of the conflict, now written in our Constitution, and by the due and proper enforcement of equal, just, and impartial laws in every part of our country.

The failure of local communities to furnish such means for the attainment of results so earnestly desired imposes upon the National Government the duty of putting forth all its energies for the protection of its citizens of every

race and color and for the restoration of peace and order throughout the entire country.

In testimony whereof I have hereunto set my hand and caused the seal of the United States to be affixed.

Done at the city of Washington, this 3d day of May, A. D. 1871, and of the Independence of the United States the ninety-fifth.

Chicago Citations

Bibliography entry:

Grant, Ulysses S. "Proclamation 199—Enforcement of the Fourteenth Amendment to the United States Constitution." May 3, 1871. American Presidency Project, edited by Gerhard Peters and John T. Woolley. Teaching American History.

Footnote citation:

Ulysses S. Grant, Proclamation 199, May 3, 1871, via Teaching American History, https://teachingamericanhistory.org/document/proclamation-on-enforcement-of-the-14th-amendment/.

Shortened citation:

Grant, Proclamation 199.

PRIMARY SOURCE P15.75

Testimony of Charlotte Fowler before the Joint Select Committee (excerpt)

Charlotte Fowler · Spartanburg, South Carolina, July 6, 1871

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.3 (Sharecropping: New Bondage or Compromise?), and 15.4 (What Built Black Freedom?)
WHY HERE	A widow describes Klan terror aimed at a Black Republican and at Black access to land.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Spartanburg County, in South Carolina's upcountry, was a center of Klan violence in 1870–71. The congressional committee investigating the Klan held hearings there in July 1871.

Charlotte Fowler, a Black widow, testified that masked men had broken into her home and shot her husband, Wallace, an elderly Republican. She linked the attack to a dispute after Black tenants replaced white ones on a neighbor's land.

Editorial note: The text follows the Teaching American History transcription.

Document Text

SPARTANBURGH, SOUTH CAROLINA, July 6, 1871

CHARLOTTE FOWLER (colored) sworn and examined.

By the CHAIRMAN:

Question. Where do you live?

Answer. On Mr. Moore’s premises . . . . I did live in Spartanburg County with my husband, before the old man was killed; but now I live with my son.

Question. How long ago is it since your husband was killed?

Answer. It was the 1st of May.

Question. What was his name?

Answer. Wallace Fowler.

Question. Tell how he was killed.

Answer. The night he was killed – I was taken sick on Wednesday morning, and I laid on my bed Wednesday and Thursday. I didn’t eat a mouthful; I couldn’t do it, I was so sick; so he went out working on his farm. . . . When he came home he cooked something for me to eat, and said: “Old woman, if you don’t eat something you will die.” Says I: “I can’t eat.” Says he, “Then I will eat, and feed the little baby.” That is the grandchild he meant. I says: “You take that little child and sleep in the bed; I think I have got the fever, and I don’t want you to get it.” He said, “No, I don’t want to get the fever, for I have got too much to do.” He got up and pulled off his clothes, and got in bed. . . . So he laid there for about a half an hour, and then I heard the dogs. . . . I reckon I did not lay in bed a half an hour before I heard somebody by the door; it was not one person, but two – ram! ram! ram! at the door. Immediately I was going to call him to open the door; but he heard it as quick as lightning, and he said to them: “Gentlemen, do

not break the door down; I will open the door;" and just as he said that they said: "God damn you, I have got you now." I was awake, and I . . . got out of the bed, and fell down on the floor. I was very much scared. The little child followed its grandfather to the door – you know in the night it is hard to direct a child. When he said, "God damn you, I have got you now," and he said, "Don't you run," and just then I heard the report of a pistol, and they shot him down; and this little child ran back to me before I could get out, and says, "Oh, grandma, they have killed my poor grandpappy." He was such an old gentleman that I thought they just shot over him to scare him; but sure enough, as quick as I got to the door, I raised my right hand and said, "Gentlemen, you have killed a poor, innocent man." My poor old man! Says he, "Shut up." I never saw but two of them, for, by that time, the others had vanished.

Question. How did you know there were any others there?

Answer. The little boy that was there when they shot his grandpappy ran into the house; he was there, and when they started I heard the horses' feet going from the gate. I was then a hallooing and screaming. After they shot the old man, they came back into the house – "Chup! Chup! Chup! make up a light." I said, "I am not able to make up a light; I have been sick two days" I called to the little girl, "Is there any light there?" She says, "No." But the mantel was there, where I could reach it, where they put the splinters, and I said, "Light that splinter;" and she lit the splinter. He said, "Hand it here;" and she handed it to him; and then he says, "March before me, march before me." That was done in the middle of my room. He says, "Hand me up your arms" – that is the guns. Says I, "There isn't any here, sir." Says he, "Hand me up that pistol." I says, "There is none here; the old man had none in slavery, and had none in all his freedom, and everybody on the settlement knows it." When he told me about the light he put that pistol up to my face – so – and says, "If you don't come here I will get you light out of this." He did that when I was a poor woman by myself.

Question. What else?

Answer. I didn't know that anybody had anything against the old man; everybody liked him but one man, and that was Mr. Thompson. Somewhere along summer before last he [that is, Fowler] had planted some watermelons in his patch; and he kept losing his watermelons, and one day he said he would go and lay, and see who took them; and sure enough he caught two little white boys; one was Mr. Thompson's boy and the other was Mr. Millwood's boy; both were white boys; they had cut up a whole lot of the melons. . . .

Question. Is that the reason you thought that Thompson did not like him?

Answer. Mr. Thompson is the only one in the whole settlement that has had anything against him. You may search the whole settlement over. . . .

[Charlotte Fowler goes on to say that when word got to Mr. Thompson, through a person named Lee, that Fowler knew that Thompson's son took the watermelons, Thompson confronted and threatened Fowler.]

Question. What were they talking about?

Answer. . . . Mr. Thompson fetched on so about the watermelons. . . . And then says Mr. Thompson, "Yes, and God damn you, if you had said I had stolen your watermelons, you would not make tracks out of this yard." . . . I ran to the fence and said "Wally, come out of that yard; and if you don't I will call Mr. Jones. If you had threatened Mr. Thompson, as Mr. Thompson has threatened your life, he would have you in Spartanburg jail before sundown."

Question. How long was that before the old man was killed?

Answer. The watermelons were took this summer a year ago, and nobody but him [Mrs. Fowler presumably refers here to Lee] and Mr. Thompson had anything against him.

[. . .]

Chicago Citations

Bibliography entry:

Fowler, Charlotte. Testimony, Spartanburg, South Carolina, July 6, 1871. In *Testimony Taken by the Joint Select Committee to Inquire into the Condition of Affairs in the Late Insurrectionary States*, vol. 3, *South Carolina*, 386–92. Washington, DC: Government Printing Office, 1872. Teaching American History.

Footnote citation:

Testimony of Charlotte Fowler, July 6, 1871, in *Testimony Taken by the Joint Select Committee*, vol. 3 (Washington, DC: Government Printing Office, 1872), 386–92.

Shortened citation:

Testimony of Charlotte Fowler.

PRIMARY SOURCE P15.76

Testimony of Samuel Simmons before the Joint Select Committee (excerpt)

Samuel Simmons · Spartanburg, South Carolina, July 7, 1871 (published 1872)

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	Sworn testimony documents Klan whippings aimed at Black Republicans.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

In 1871 Congress created a Joint Select Committee to investigate Klan violence in the South. Its subcommittees traveled to the affected states and took sworn testimony from hundreds of witnesses, Black and white. The testimony fills thirteen volumes.

Samuel Simmons, a Black farmer from Spartanburg County, South Carolina, told the committee how Klansmen came to his house at night and whipped him.

Editorial note: The text follows the Internet Archive scan; OCR errors such as "Wliittemore's" and "W^here" have been kept as scanned.

Document Text

[. . .]

SPARTANBURGH, SOUTH CAROLINA, July 7, 1871. SAMUEL SIMMONS (colored) sworn and examined. By the CHAIRMAN :

Question. Where do you live f

Answer. At Mrs. Wliittemore's.

Question. W^here is that ?

Answer. Up here in Beech Spring Township, in Spartanburgh County.

Question. How long did you live there ?

Answer. I have been living there since Christmas — the year of the surrender — since just about two weeks before Christmas.

Question. Have you ever beeu visited by anybody in disguise ?

Answer. Yes, sir.

Question. When ?

Aimccr. It was the last Friday in last May.

Question. Go on and state what was said and done to you.

Answer. They came up — some men out of doors. I had been out that night, me and another neighbor, hunting, and I got home and was in bed lying down, and! heard mj dog making a mighty noise out of doors, and I got up and went out and didn't see any body, and went back again and laid down and got asleep, and all at once the door fell right in the middle of the floor, and two men came in. I didn't see them do it, but there was a rock lying there next morning where they struck the door at the hinge and the bottom. They ran in and grabbed me and said, " Come out

here ; your countrymen has come to see you, sir ; come out, come out." I got up and "went to come out. I went to put on my breeches and they took them away from me, and didn't let me put them on. He says " Where is your arms ?" I said, " I have no arms no more than a case knife." He says, " You have ; don't you belong to the militia company ?" I said, "There was a militia company made up and I joined them." " Where is your arms I" he said. " I have no arms," says I. " Didn't you draw arms ?" says he. " No," says I. "' Didn't anybody draw arms here ?" says he. I says, " Some were ordered to Spartanburgh but they did give them out." He said, " You have got arms;" he says, "Hold your shirt over your head and I will make you tell where your arms is." Then one says, "No, don't whip him, just let him stand oft' there and shoot liim." They made me step off before them and made a row around me, about twenty-live of them, and they alto gether cocked their pistols at me and asked me where my arms were ; I said I hadn't any. One said, " Shoot him ;" another said, " No, hang him ; get a rope and we will set tle him," and then they got a rope and one said, " Choke him, and he will tell ;" and they said, " Will you tell ?" I said, " I have told you all I can." They said, " WTiiere is your militia arms; haven't you got guns?" I said, "No, I have not." They said, " Where is the paper of your company; have you got that ?" " No, sir, I have ho pa per of my company/7 " Yes, you have ; get on your knees and go to praying." I says, " Are you going to kill me ?" " Yes, your time is growing short ; get down and pray." I got down and prayed as good as I could, I thought they were going to shoot roe sure enough. One says, " Now get down." I got down and he pulled niy shirt over my head, and one of them held it over my head, and one stepped up and gave me five licks as hard as he could, and then another gave me five, and another gave about four, and he stepped back ; and then he says, " If we let you oif with this will you never tell ?" I says, " No, sir, I will never tell." " Who did you vote for ?" says he. I says, " Scott and Ransier and all the following candidates." " What did you do that for ?*' I said, " They spoke here and I liked their speeches better than anybody else's. " " Didn't you like Carpenter's speech?" I said, "No, I didn't like it as well as Raueier's." " Didn't any of your countrymen tell you to vote for Carpenter f ' " Yes," I said. " Why didn't f^ou do it ?" says they. I said, " I thought I would go by my own opinion. Some told me to vote the democratic ticket and some the radical ticket, and I went according to my own opinion." One of them said, " Don't you know I have been dead nine years ?" I said, " No, sir." He said, " Well, we have been lying in here nine years and we saw you radicals were running over our grandchildren and we come from hell here to-night to see you. Don't you believe we come from hell ?" I said, " No, sir, you look like men." He said, " You go over to Mount Zion graveyard and you \vili &ee our graves open there now." One says, " Have you a mattock ?" I says, " Yes." " I want you to go over there," says he ; " my head rock was a little too close to me" — his horn was bent down a little — says he, "as I rose up to-night the rock struck my horn, and do you see where I broke it ? * Do you see where it is broke V" I said, " Yes." " Now don't you think I am from hell?" I said, "No, I think you are men or you wouldn't talk so." They went on and searched my house, and then they came to me and said to ine, if I told any one they would be there to kill me.

Question. Did you know any of them?

Answer. No, sir, I couldn't 'know nothing at all. It was a dark and drizzly night and they grabbed me so quick I didn't know anything at all.

Question. How were they dressed ?

Answer. They had on white gowns, all but two. One had on a black gown. They all had something over their faces and they did not have on hats at all. Some had one horn ; some had two horns ; some had one horn hanging down and another sticking up.

Question. How were the men told to whip you ; did you hear any orders given ? Answer. No, sir; I did not hear any orders given, only one would step up and give me a whipping and then another. They said every one was going to whip rne, but they did not.

Question. Did' they hurt you ?

Answer. Yes, sir ; they did hurt me.

Question. Did they hreak your skin any ?

Answer. Yes, sir. I reckon at nearly every lick they broke my skin, they struck me so hard.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. Joint Select Committee to Inquire into the Condition of Affairs in the Late Insurrectionary States. *Report of the Joint Select Committee*. Vol. 3, *South Carolina*, pt. 1. Washington, DC: Government Printing Office, 1872. Internet Archive.

Footnote citation:

Testimony of Samuel Simmons, July 7, 1871, in *Report of the Joint Select Committee to Inquire into the Condition of Affairs in the Late Insurrectionary States*, vol. 3 (Washington, DC: Government Printing Office, 1872), 402–4, https://archive.org/details/insurrectionstate03goverich.

Shortened citation:

Testimony of Samuel Simmons, *Joint Select Committee*, 3:[page].

PRIMARY SOURCE P15.77

Plea for Amnesty (excerpt)

Carl Schurz · Senate, January 30, 1872

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	A leading northern reformer urges amnesty for ex-Confederates, showing northern retreat from Reconstruction.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Carl Schurz (1829–1906), a German revolutionary of 1848 who became a Union general and a senator from Missouri, had reported to President Johnson in 1865 on southern white hostility toward freedpeople. By 1872 he was a leader of the Liberal Republicans, who broke with Grant.

In this speech Schurz argued that barring former Confederates from office had placed southern state governments in the hands of corrupt and incompetent men, and he urged general amnesty.

Editorial note: The text follows the Teaching American History transcription from Frederic Bancroft's 1913 edition of Schurz's speeches; ellipses are the editors'.

Document Text

. . . I beg leave to say that I am in favor of general, or as this word is considered more expressive, universal amnesty. . . .

In the course of this debate we have listened to some Senators, as they conjured up before our eyes once more all the horrors of the rebellion . . . how terrible its incidents were and how harrowing its consequences. . . . I will not combat the correctness of the picture; and yet, if I differ with the gentlemen who drew it, it is because, had the conception of the rebellion been still more wicked, had its incidents been still more terrible, its consequences still more harrowing, I could not permit myself to forget that in dealing with the question now before us we have to deal not alone with the past, but with the present and future interests of this Republic.

What do we want to accomplish as good citizens and patriots? Do we mean only to inflict upon late rebels pain, degradation, mortification, annoyance, for its own sake . . . ? Certainly such a spirit could not by any possibility animate high-minded men. I presume, therefore, that those who still favor the continuance of some of the disabilities imposed by the [14th] amendment, do so because they have some higher object of public usefulness in view . . . to justify, in their minds at least, the denial of rights to others which we ourselves enjoy.

What can those objects of public usefulness be? Let me assume that, if we differ as to the means to be employed, we are agreed as to the supreme end and aim to be reached. That end and aim of our endeavors can be no other than to secure to all the States the blessings of good and free government and the highest degree of prosperity and well-being they can attain, and to revive in all citizens of this Republic that love for the Union and its institutions, and that inspiring consciousness of a common nationality, which, after all, must bind all Americans together.

What are the best means for the attainment of that end? . . . Certainly all will agree that this end is far from having been attained so far. Look at the Southern States as they stand before us today. Some are in a condition bordering upon anarchy, not only on account of the social disorders which are occurring there, or the inefficiency of their local governments in securing the enforcement of the laws; but you will find in many of them fearful corruption pervading the whole political organization; a combination of rascality and ignorance wielding official power; their finances deranged by profligate practices; their credit ruined; bankruptcy staring them in the face; their industries staggering under a fearful load of taxation; their property-holders and capitalists paralyzed by a feeling of

insecurity and distrust almost amounting to despair. . . .

What are the causes that have contributed to bring about this distressing condition? I admit that great civil wars resulting in such vast social transformations as the sudden abolition of slavery are calculated to produce similar results; but it might be presumed that a recuperative power such as this country possesses might during the time which has elapsed since the close of the war at least have very materially alleviated many of the consequences of that revulsion, had a wise policy been followed.

Was the policy we followed wise? Was it calculated to promote the great purposes we are endeavoring to serve? Let us see. At the close of the war we had to establish and secure free labor and the rights of the emancipated class. To that end we had to disarm those who could have prevented this, and we had to give the power of self-protection to those who needed it. For this reason temporary restrictions were imposed upon the late rebels, and we gave the right of suffrage to the colored people. Until the latter were enabled to protect themselves, political disabilities even more extensive than those which now exist, rested upon the plea of eminent political necessity. I would be the last man to conceal that I thought so then, and I think now there was very good reason for it.

But, sir, when the enfranchisement of the colored people was secured, when they had obtained the political means to protect themselves, then another problem began to loom up. It was not only to find new guaranties for the rights of the colored people, but it was to secure good and honest government for all. Let us not underestimate the importance of that problem, for in a great measure it includes the solution of the other. Certainly, nothing could have been better calculated to remove the prevailing discontent concerning the changes that had taken place, and to reconcile men's minds to the new order of things, than the tangible proof that that new order of things was practically working well. . . . And, on the other hand, nothing could have been more calculated to impede a general, hearty and honest acceptance of the new order of things by the late rebel population than just those failures of public administration which involve the people in material embarrassments and so seriously disturb their comfort. . . .

. . . [W]hat happened in the South? It is a well-known fact that the more intelligent classes of Southern society almost uniformly identified themselves with the rebellion; and by our system of political disabilities just those classes were excluded from the management of political affairs. That they could not be trusted with the business of introducing into living practice the results of the war, to establish true free labor and to protect the rights of the emancipated slaves, is true; I willingly admit it. But when those results and rights were constitutionally secured there were other things to be done. . . . But just then a large portion of that intelligence and experience was excluded from the management of public affairs by political disabilities, and the controlling power in those States rested in a great measure in the hands of those who had but recently been slaves and just emerged from that condition, and in the hands of others who had sometimes honestly, sometimes by crooked means and for sinister purposes, found a way to their confidence.

[. . .]

Chicago Citations

Bibliography entry:

Schurz, Carl. "Plea for Amnesty." Speech in the U.S. Senate, January 30, 1872. In *Speeches, Correspondence and Political Papers of Carl Schurz*, edited by Frederic Bancroft, vol. 2, 321–53. New York: G. P. Putnam's Sons, 1913. Teaching American History.

Footnote citation:

Carl Schurz, "Plea for Amnesty," January 30, 1872, in *Speeches, Correspondence and Political Papers of Carl Schurz*, ed. Frederic Bancroft (New York: G. P. Putnam's Sons, 1913), 2:[page].

Shortened citation:

Schurz, "Plea for Amnesty."

PRIMARY SOURCE P15.78

Liberal Republican Platform of 1872

Liberal Republican National Convention, Cincinnati · May 1, 1872

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	Northern reformers demand amnesty and southern home rule, evidence of northern retreat.
TREATMENT	Full public-domain text

Historical Context

Republicans unhappy with corruption in Grant's administration and with continued federal intervention in the South formed the Liberal Republican Party in 1872. They nominated Horace Greeley, editor of the *New York Tribune*, and the Democrats endorsed him too.

The platform accepted the Reconstruction amendments but demanded amnesty for former Confederates and "local self-government" in the South, along with civil service reform.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

We, the Liberal Republicans of the United States, in National Convention assembled at Cincinnati, proclaim the following principles as essential to just government:

First: We recognize the equality of all men before the law, and hold that it is the duty of Government, in its dealings with the people, to mete out equal and exact justice to all, of whatever nativity, race, color, or persuasion, religious or political.

Second: We pledge ourselves to maintain the Union of these States, emancipation and enfranchisement, and to oppose any reopening of the questions settled by the Thirteenth, Fourteenth, and Fifteenth Amendments to the Constitution.

Third: We demand the immediate and absolute removal of all disabilities imposed on account of the Rebellion, which was finally subdued seven years ago, believing that universal amnesty will result in complete pacification in all sections of the country.

Fourth: Local self-government, with impartial suffrage, will guard the rights of all citizens more securely than any centralized power. The public welfare requires the supremacy of the civil over the military authority, and freedom of person under the protection of the habeas corpus. We demand for the individual the largest liberty consistent with public order; for the State, self-government, and for the nation a return to the methods of peace and the constitutional limitations of power.

Fifth: The Civil Service of the Government has become a mere instrument of partisan tyranny and personal ambition, and an object of selfish greed. It is a scandal and reproach upon free institutions, and breeds a demoralization dangerous to the perpetuity of republican government. We therefore regard such thorough reforms of the Civil Service as one of the most pressing necessities of the hour; that honesty, capacity, and fidelity constitute the only valid claim to public employment; that the offices of the Government cease to be a matter of arbitrary favoritism and patronage, and that public station become again a post of honor. To this end it is imperatively required that no President shall be a candidate for re-election.

Sixth: We demand a system of Federal taxation which shall not unnecessarily interfere with the industry of the people, and which shall provide the means necessary to pay the expenses of the Government economically

administered, the pensions, the interest on the public debt, and a moderate reduction annually of the principal thereof; and, recognizing that there are in our midst honest but irreconcilable differences of opinion with regard to the respective systems of Protection and Free Trade, we remit the discussion of the subject to the people in their Congress Districts, and to the decision of Congress thereon, wholly free of Executive interference or dictation.

Seventh: The public credit must be sacredly maintained, and we denounce repudiation in every form and guise.

Eighth: A speedy return to specie payment is demanded alike by the highest considerations of commercial morality and honest government.

Ninth: We remember with gratitude the heroism and sacrifices of the soldiers and sailors of the Republic, and no act of ours shall ever detract from their justly-earned fame or the full reward of their patriotism.

Tenth: We are opposed to all further grants of lands to railroads or other corporations. The public domain should be held sacred to actual settlers.

Eleventh; We hold that it is the duty of the Government, in its intercourse with foreign nations, to cultivate the friendship of peace, by treating with all on fair and equal terms, regarding it alike dishonorable either to demand what is not right, or to submit to what is wrong.

Twelfth: For the promotion and success of these vital principles, and the support of the candidates nominated by this Convention, we invite and cordially welcome the co-operation of all patriotic citizens, without regard to previous affiliations.

Chicago Citations

Bibliography entry:

Liberal Republican Party. "Liberal Republican Platform of 1872." May 1, 1872. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Liberal Republican Platform of 1872, May 1, 1872, American Presidency Project, https://www.presidency.ucsb.edu/documents/liberal-republican-platform-1872.

Shortened citation:

Liberal Republican Platform of 1872.

PRIMARY SOURCE P15.79

Colfax Massacre Reports (excerpts)

U.S. House of Representatives, "Condition of the South" (1875); Committee of Seventy, "History of the Riot at Colfax" (1874)

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	Two accounts of the same massacre show white terror and how its defenders justified it.
TREATMENT	Public-domain text, selected excerpts

Historical Context

On Easter Sunday, April 13, 1873, a white paramilitary force attacked Black Republicans defending the courthouse in Colfax, Louisiana, after a disputed election. Many of the defenders were killed after surrendering; estimates range from about 60 to 150 dead.

A congressional committee called the killing of prisoners "deliberate, barbarous, cold-blooded murder." A committee of white New Orleans Democrats published its own account blaming the Black defenders.

Editorial note: The Committee of Seventy's report is a partisan white Democratic account. The text follows the Teaching American History transcription.

Document Text

[. . .]

Here occurred one of the bloodiest riots on record, in which the Ku-Klux killed and wounded over two hundred Republicans, hunting and chasing them for two days and nights, through fields and swamps. Thirteen captives were taken from the jail and shot. A pile of twenty-five dead bodies were found half buried in the woods. Having conquered the Republicans, killed and driven off the white leaders, the Ku-Klux captured the masses, marked them with badges of red flannel, enrolled them in clubs, led them to the polls, made them vote the Democratic ticket, and then gave them certificates of that fact.

In the year 1873 occurred the transaction known as the Colfax massacre, to which the committee directed special attention. . . . It seems to us there is no doubt as to the truth of the following narrative:

In March, 1873, Nash and Cagaburt claimed to be judge and sheriff of Grant Parish under commissions from Governor Warmouth. After Governor Kellogg succeeded Warmouth, their friends applied to him to renew their commissions. He refused, and commissioned Shaw as sheriff, and Register as judge. They went to the courthouse, which they found locked, and Shaw and the other parish officers entered it through the window. Six days after, hearing rumors of an armed invasion of the town to retake the courthouse, Shaw deputized, in his writing, from fifteen to eighteen men, mostly Negroes, to assist as his posse in holding the courthouse and keeping the peace. The next day, April 1st, a company of from 9 to 15 mounted men, headed by one Hudnot, came into Colfax, some of them armed with guns; and on the same day one or two other small armed squads also came into town. This day no collision occurred.

April 2, a small body of armed white men rode into the town, and were met by a body of armed men, mostly colored, and exchanged shots, but no one was hurt.

These proceedings alarmed the colored people, and many of them, with their women and children, came to Colfax for refuge, perhaps a majority of the men being armed.

April 5, a band of armed whites went to the house of Jesse M. Kinney, a colored man, three miles from Colfax, and found him quietly engaged in making a fence. They shot him through the head and killed him. This seems to have

been an unprovoked, wanton, and deliberate murder. This aroused the terror of the colored people. Rumors were also spread of threats made by them against the whites. April 7 the court was opened and adjourned. The alarm somewhat subsided and many colored people returned to their homes, the others maintaining an armed organization outside the town. April 12 the colored men threw up a small earthwork near the courthouse. Easter Sunday, April 13, a large body of whites rode into the town, and demanded of the colored men that they should give up their arms and yield possession of the courthouse. This demand not being yielded to, thirty minutes were given them to remove their women and children. The Negroes took refuge behind their earthwork, from which they were driven by an enfilading fire from a cannon which the whites had. Part of them fled for refuge to the courthouse, which was a one-story brick building, which had formerly been a stable. The rest, leaving their arms, fled down the river to a strip of woods, where they were pursued, and many of them were overtaken and shot to death.

About sixty or seventy got into the courthouse. After some ineffectual firing on each side, the roof of the building was set fire to. When the roof was burning over their heads the Negroes held out the sleeve of a shirt and the leaf of a book as flags of truce. They were ordered to drop their arms. A number of them rushed unarmed from the blazing building, but were all captured. The number taken prisoners was about thirty-seven. They were kept till dark, when they were led out two by two, each two with a rank of mounted whites behind them, being told that they were to be taken a short distance and set at liberty. When all the ranks had been formed the word was given, and the Negroes were all shot. A few who were wounded, but not mortally, escaped by feigning death.

The bodies remained unburied till the next Tuesday, when they were buried by a deputy marshal from New Orleans. Fifty-nine dead bodies were found. They showed pistol-shot wounds, the great majority of them in the head, and most of them in the back of the head.

Two white men only were killed in the whole transaction, Hudnot the leader, and one Harris. . . . [T]his deed was without palliation or justification; it was deliberate, barbarous, cold-blooded murder. It must stand, like the massacre of Glencoe or St. Bartholomew, a foul blot on the page of history.

Spread over all these years are a large number of murders and other acts of violence done for political ends. In reply to an inquiry of the committee, General Sheridan,[7] who is gathering careful statistics of the number of persons killed and wounded in Louisiana up to February 8, 1875, since 1866, on account of their political opinions, reports the number so far ascertained to be as follows:

Killed 2,141

Wounded 2,115

. . . .

Committee of 70 Report

Grant Parish lies on the North Bank of Red River, some three hundred and fifty miles from New Orleans. It was created by the legislature of 1869; . . . its population is about 5,000; the races are almost equal in numbers; the swamp land, which is a belt of low land that skirts the north bank of the river the entire length of the parish . . . is . . . divided into large plantations. To the north of this belt of low land, the character of the country changes, the land becomes rolling and is covered with pine forests, while the farms are smaller, and not near so productive. The large majority of the Negroes occupy and live in the low lands, upon the great plantation, while in the uplands the white race very largely preponderates.

Colfax – the parish seat – is a small village containing four or five dwelling houses, two or three stores, and perhaps a resident population of 75 or 100 persons. . . .

. . . In November, 1872, a general election was held in the State of Louisiana. The Republican party ran its straight ticket, headed by Wm. Pitt Kellogg. The other party, ran a ticket, at the head of which was John McEnery, and upon which were Democrats, Liberal Republicans and Reformers, and which was known as the "Fusion ticket."8

After a spirited contest, remarkable for its peaceful character, the legal returns of the only legal officers of the election showed the triumph of the Fusion ticket by majorities ranging from 9,000 to 16,000 votes.

[. . .]

Chicago Citations

Bibliography entry:

U.S. House of Representatives. *Condition of the South*. H. Rep. No. 261, 43rd Cong., 2nd Sess., 1875; and Committee of Seventy, *History of the Riot at Colfax*. New Orleans, 1874. Teaching American History.

Footnote citation:

U.S. House, *Condition of the South*, H. Rep. No. 261, 43rd Cong., 2nd Sess. (1875); Committee of Seventy, *History of the Riot at Colfax* (New Orleans, 1874); via Teaching American History, https://teachingamericanhistory.org/document/colfax-massacre-reports/.

Shortened citation:

Colfax Massacre Reports.

PRIMARY SOURCE P15.80

Slaughter-House Cases, 83 U.S. 36 (1873) (excerpt)

Justice Samuel F. Miller, opinion of the Court · April 14, 1873

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	The Court's first reading of the Fourteenth Amendment confines it narrowly, while the dissents argue for its broader potential.
TREATMENT	Public-domain text, selected excerpts

Historical Context

In 1869 Louisiana's Reconstruction legislature gave one company a monopoly over slaughtering livestock in New Orleans. White butchers shut out of the trade sued, arguing that the law violated the Fourteenth Amendment's protection of the "privileges or immunities" of citizens.

The Court ruled 5–4 against them. Justice Miller held that the amendment protected only a narrow set of rights of national citizenship, leaving most civil rights under state control. Four justices dissented, arguing that the amendment had nationalized basic rights. The narrow reading later limited protection for Black citizens.

Editorial note: The case did not involve freedpeople, but its reading of the Fourteenth Amendment governed later cases that did. The text follows the Justia transcription of the official report.

Document Text

[. . .]

Hence, the fifteenth amendment, which declares that

"the right of a citizen of the United States to vote shall not be denied or abridged by any State on account of race, color, or previous condition of servitude."

The negro having, by the fourteenth amendment, been declared to be a citizen of the United States, is thus made a voter in every State of the Union.

We repeat, then, in the light of this recapitulation of events, almost too recent to be called history, but which are familiar to us all, and on the most casual examination of the language of these amendments, no one can fail to be impressed with the one pervading purpose found in them all, lying at the foundation of each, and without which none of them would have been even suggested; we mean the freedom of the slave race, the security and firm establishment of that freedom, and the protection of the newly made freeman and citizen from the oppressions of those who had formerly exercised unlimited dominion over him. It is true that only the fifteenth amendment, in terms, mentions the negro by speaking of his color and his slavery. But it is just as true that each of the other articles was addressed to the grievances of that race, and designed to remedy them as the fifteenth.

We do not say that no one else but the negro can share in this protection. Both the language and spirit of these articles are to have their fair and just weight in any question of construction. Undoubtedly while negro slavery alone was in the mind of the Congress which proposed the thirteenth article, it forbids any other kind of slavery, now or hereafter. If Mexican peonage or the Chinese coolie labor system shall develop slavery of the Mexican of Chinese race within our territory, this amendment may safely be trusted to make it void. And so, if other rights are assailed by the States which properly and necessarily fall within the protection of these articles, that protection will apply, though the party interested may not be of African descent. But what we do say, and what we wish to be

understood, is that, in any fair and just construction of any section or phrase of these amendments, it is necessary to look to the purpose which we have said was the pervading spirit of them all, the evil which they were designed to remedy, and the process of continued addition to the Constitution, until that purpose was supposed to be accomplished as far as constitutional law can accomplish it.

[. . .]

The constitutional provision there alluded to did not create those rights, which it called privileges and immunities of citizens of the States. It threw around them in that clause no security for the citizen of the State in which they were claimed or exercised. Nor did it profess to control the power of the State governments over the rights of its own citizens.

Its sole purpose was to declare to the several States that, whatever those rights, as you grant or establish them to your own citizens, or as you limit or qualify or impose restrictions on their exercise, the same, neither more nor less, shall be the measure of the rights of citizens of other States within your jurisdiction.

It would be the vainest show of learning to attempt to prove by citations of authority that, up to the adoption of the recent amendments, no claim or pretence was set up that those rights depended on the Federal government for their existence or protection beyond the very few express limitations which the Federal Constitution imposed upon the States -- such, for instance, as the prohibition against ex post facto laws, bills of attainder, and laws impairing the obligation of contracts. But, with the exception of these and a few other restrictions, the entire domain of the privileges and immunities of citizens of the States, as above defined, lay within the constitutional and legislative power of the States, and without that of the Federal government. Was it the purpose of the fourteenth amendment, by the simple declaration that no State should make or enforce any law which shall abridge the privileges and immunities of citizens of the United States, to transfer the security and protection of all the civil rights which we have mentioned, from the States to the Federal government? And where it is declared that Congress Shall have the power to enforce that article, was it intended to bring within the power of Congress the entire domain of civil rights heretofore belonging exclusively to the States?

All this and more must follow if the proposition of the plaintiffs in error be sound. For not only are these rights subject to the control of Congress whenever, in its discretion, any of them are supposed to be abridged by State legislation, but that body may also pass laws in advance, limiting and restricting the exercise of legislative power by the States, in their most ordinary and usual functions, as in its judgment it may think proper on all such subjects. And still further, such a construction followed by the reversal of the judgments of the Supreme Court of Louisiana in these cases, would constitute this court a perpetual censor upon all legislation of the States, on the civil rights of their own citizens, with authority to nullify such as it did not approve as consistent with those rights, as they existed at the time of the adoption of this amendment. The argument, we admit, is not always the most conclusive which is drawn from the consequences urged against the adoption of a particular construction of an instrument. But when, as in the case before us, these consequences are so serious, so far-reaching and pervading, so great a departure from the structure and spirit of our institutions; when the effect is to fetter and degrade the State governments by subjecting them to the control of Congress in the exercise of powers heretofore universally conceded to them of the most ordinary and fundamental character; when, in fact, it radically changes the whole theory of the relations of the State and Federal governments to each other and of both these governments to the people, the argument has a force that is irresistible in the absence of language which expresses such a purpose too clearly to admit of doubt.

[. . .]

Chicago Citations

Bibliography entry:

Slaughter-House Cases, 83 U.S. (16 Wall.) 36 (1873). Justia U.S. Supreme Court Center.

Footnote citation:

Slaughter-House Cases, 83 U.S. (16 Wall.) 36, [page] (1873).

Shortened citation:

Slaughter-House Cases, 83 U.S. at [page].

PRIMARY SOURCE P15.81

Colored Rule in a Reconstructed(?) State

Thomas Nast · Harper's Weekly, March 14, 1874

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	Reconstruction's leading northern cartoonist turns to racist ridicule of Black legislators, evidence of northern retreat.
TREATMENT	Public-domain image

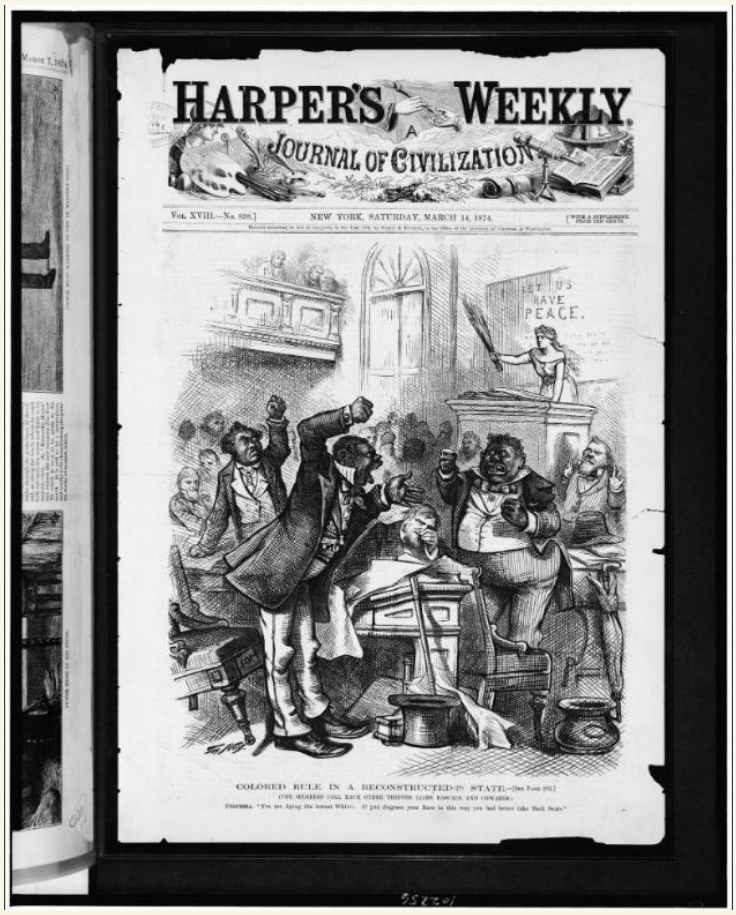
Historical Context

Thomas Nast had been Reconstruction's most effective northern champion, drawing cartoons that attacked the Klan and celebrated Black citizenship. By 1874, like many northern Republicans, he had turned against the southern Republican governments.

This cartoon shows Black legislators in the South Carolina House brawling and calling each other "thieves, liars, rascals, and cowards," while Columbia scolds them. It uses racist caricature to portray Black officeholders as unfit to govern.

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons). The cartoon uses racist caricature; it is evidence of how northern opinion shifted, not an accurate picture of Black legislators. Its hostility also confirms that Black men were sitting in southern statehouses.

Primary Source Image



Thomas Nast, "Colored Rule in a Reconstructed(?) State," *Harper's Weekly*, March 14, 1874. Library of Congress.

Chicago Citations

Bibliography entry:

Nast, Thomas. "Colored Rule in a Reconstructed(?) State." Wood engraving. *Harper's Weekly*, March 14, 1874. Prints and Photographs Division, Library of Congress, LCCN 91705051.

Footnote citation:

Thomas Nast, "Colored Rule in a Reconstructed(?) State," *Harper's Weekly*, March 14, 1874, Library of Congress, https://www.loc.gov/resource/cph.3c02256/.

Shortened citation:

Nast, "Colored Rule in a Reconstructed(?) State."

PRIMARY SOURCE P15.82

"The Union as It Was / The Lost Cause, Worse than Slavery"

Thomas Nast · Harper's Weekly, October 24, 1874

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Republican cartoonist portrays white terror as producing conditions worse than slavery.
TREATMENT	Public-domain image

Historical Context

In 1874 the White League in Louisiana and similar paramilitary groups across the South used violence to drive Republicans from office. In September the White League briefly overthrew Louisiana's Republican government in a street battle in New Orleans.

Thomas Nast's cartoon shows a Klansman and a White League member shaking hands over a Black family huddled beside a burned schoolhouse and a lynched man. Above them hangs the phrase "Worse than Slavery."

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons). The plan's other listings of this cartoon are printed here as one entry.

Primary Source Image

Thomas Nast, "The Union as It Was / The Lost Cause, Worse than Slavery," *Harper's Weekly*, October 24, 1874. Library of Congress.

Chicago Citations

Bibliography entry:

Nast, Thomas. "The Union as It Was / The Lost Cause, Worse than Slavery." Wood engraving. *Harper's Weekly*, October 24, 1874. Prints and Photographs Division, Library of Congress, LCCN 2001696840.

Footnote citation:

Thomas Nast, "The Union as It Was / The Lost Cause, Worse than Slavery," *Harper's Weekly*, October 24, 1874, Library of Congress, https://www.loc.gov/pictures/item/2001696840/.

Shortened citation:

Nast, "Worse than Slavery."

PRIMARY SOURCE P15.83

Special Message to the Senate on Louisiana (excerpt)

Ulysses S. Grant · January 13, 1875

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	Grant describes white terror in Louisiana while showing his reluctance to intervene.
TREATMENT	Public-domain text, selected excerpts

Historical Context

After the disputed 1872 election, Louisiana had rival governors: Republican William P. Kellogg and Democrat John McEnery. White paramilitaries carried out the Colfax massacre in 1873, and in September 1874 the White League fought Kellogg's police in the streets of New Orleans. In January 1875 federal troops removed Democrats who had seized the state legislature.

Northern outrage at the use of soldiers in a legislature forced Grant to explain himself. He described the Colfax "butchery" and the White Leagues' violence and defended his actions, while calling federal intervention "exceedingly unpalatable."

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Misinformed and misjudging as to the nature and extent of this report, the supporters of McEnery proceeded to displace by force in some counties of the State the appointees of Governor Kellogg, and on the 13th of April, in an effort of that kind, a butchery of citizens was committed at Colfax, which in bloodthirstiness and barbarity is hardly surpassed by any acts of savage warfare.

To put this matter beyond controversy I quote from the charge of Judge Woods, of the United States circuit court, to the jury in the case of The United States vs. Cruikshank and others, in New Orleans in March, 1874. He said:

In the case on trial there are many facts not in controversy. I proceed to state some of them in the presence and hearing of counsel on both sides; and if I state as a conceded fact any matter that is disputed, they can correct me.

After stating the origin of the difficulty, which grew out of an attempt of white persons to drive the parish judge and sheriff, appointees of Kellogg, from office, and their attempted protection by colored persons, which led to some fighting, in which quite a number of negroes were killed, the judge states:

Most of those who were not killed were taken prisoners. Fifteen or sixteen of the blacks had lifted the boards and taken refuge under the floor of the court-house. They were all captured. About thirty-seven men were taken prisoners. The number is not definitely fixed. They were kept under guard until dark. They were led out, two by two, and shot. Most of the men were shot to death. A few were wounded, not mortally, and by pretending to be dead were afterwards, during the night, able to make their escape. Among them was the Levi Nelson named in the indictment.

[. . .]

Your dispatch of this date just received. It is exceedingly unpalatable to use troops in anticipation of danger. Let the State authorities be right, and then proceed with their duties without apprehension of danger. If they are then molested, the question will be determined whether the United States is able to maintain law and order within its limits or not.

I have deplored the necessity which seemed to make it my duty under the Constitution and laws to direct such interference. I have always refused except where it seemed to be my imperative duty to act in such a manner under the Constitution and laws of the United States. I have repeatedly and earnestly entreated the people of the South to live together in peace and obey the laws; and nothing would give me greater pleasure than to see reconciliation and tranquillity everywhere prevail, and thereby remove all necessity for the presence of troops among them. I regret, however, to say that this state of things does not exist, nor does its existence seem to be desired, in some localities; and as to those it may be proper for me to say that to the extent that Congress has conferred power upon me to prevent it neither Kuklux Klans, White Leagues, nor any other association using arms and violence to execute their unlawful purposes can be permitted in that way to govern any part of this country; nor can I see with indifference Union men or Republicans ostracized, persecuted, and murdered on account of their opinions, as they now are in some localities.

I have heretofore urged the case of Louisiana upon the attention of Congress, and I can not but think that its inaction has produced great evil.

To summarize: In September last an armed, organized body of men, in the support of candidates who had been put in nomination for the offices of governor and lieutenant-governor at the November election in 1872, and who had been declared not elected by the board of canvassers, recognized by all the courts to which the question had been submitted, undertook to subvert and overthrow the State government that had been recognized by me in accordance with previous precedents. The recognized governor was driven from the statehouse, and but for his finding shelter in the United States custom-house, in the capital of the State of which he was governor, it is scarcely to be doubted that he would have been killed.

From the statehouse, before he had been driven to the custom-house, a call was made, in accordance with the fourth section, fourth article, of the Constitution of the United States, for the aid of the General Government to suppress domestic violence. Under those circumstances, and in accordance with my sworn duties, my proclamation of the 15th of September, 1874, was issued. This served to reinstate Governor Kellogg to his position nominally, but it can not be claimed that the insurgents have to this day surrendered to the State authorities the arms belonging to the State, or that they have in any sense disarmed. On the contrary, it is known that the same armed organizations that existed on the 14th of September, 1874, in opposition to the recognized State government, still retain their organization, equipments, and commanders, and can be called out at any hour to resist the State government. Under these circumstances the same military force has been continued in Louisiana as was sent there under the first call, and under the same general instructions. I repeat that the task assumed by the troops is not a pleasant one to them; that the Army is not composed of lawyers, capable of judging at a moment's notice of just how far they can go in the maintenance of law and order, and that it was impossible to give specific instructions providing for all possible contingencies that might arise. The troops were bound to act upon the judgment of the commanding officer upon each sudden contingency that arose, or wait instructions which could only reach them after the threatened wrongs had been committed which they were called on to prevent. It should be recollected, too, that upon my recognition of the Kellogg government I reported the fact, with the grounds of recognition, to Congress, and asked that body to take action in the matter; otherwise I should regard their silence as an acquiescence in my course. No action has been taken by that body, and I have maintained the position then marked out.

[. . .]

Chicago Citations

Bibliography entry:

Grant, Ulysses S. "Special Message." January 13, 1875. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Ulysses S. Grant, "Special Message," January 13, 1875, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-1885.

Shortened citation:

Grant, special message, January 13, 1875.

PRIMARY SOURCE P15.84

Mississippi in 1875: Report of the Select Committee (excerpt)

U.S. Senate Select Committee (George S. Boutwell, chair) · 1876

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.4 (What Built Black Freedom?)
WHY HERE	A Senate committee finds that organized violence overthrew Republican rule in Mississippi.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

In 1875 Mississippi Democrats carried out the "Mississippi Plan," using armed rifle clubs to break up Republican meetings and keep Black voters from the polls. At Clinton in September, a Republican rally ended in a massacre of Black residents.

Governor Adelbert Ames asked President Grant for troops, but Grant's administration declined. Democrats won the election. A Senate committee chaired by George S. Boutwell investigated and concluded that the violence had been organized to overthrow Republican rule.

Editorial note: The committee's Republican majority wrote this report; the Democratic minority dissented. The text follows the Internet Archive scan; OCR errors such as "by^" have been kept.

Document Text

[. . .]

In the opinion of the committee, the riot at Clinton was in harmony with the policy previously adopted by^ democrats in that vicinity, and designed to intimidate and paralyze the republican party. The testimony shows that the riot was inaugurated by a body of eight or ten young men from Raymond, who acted, apparently, under the advice of the Raymond Gazette, a democratic newspaper, edited by G. W. Harper, an aged and highly-respected man, according to the testimony of Frank Johnston, W. A. Montgomery, (p. 559,) and others.

The riot occurred September 4, and the Raymond Gazette, as early as June or July, gave this advice :

There are those who think that the leaders of the radical party have carried this system of fraud and falsehood just far eoough iu Hinds County, and that the time has come when it shonhl be stopped — peaceably if possible, forcibly if necessary. And to this end it is proposed that whenever a radical pow-wow is to be held, the nearest anti-radical club appoint a committee of ten discreet, intelligent, and reputable citizens, fully identified with the interests of the neighborhood, and well known as men of veracity, to attend as representatives of the tax-payers of the neighborhood and county, and true friends of the negroes assembled, and that whenever the radical speakers proceed to mislead the negroes, and open with falsehoods, and deceptions, and misrepresentations, the committee stop them right then and there, and compel them to tell truth or quit the stand.

Nor do these outrages find any excuse in the statement made repeatedly by witnesses, that the negroes were organizing or threatened or contemplated organizing themselves into military bauds for the destruction of the while race. The evidence shows conclusively that there were not only no such organizations, but that the negroes were not armed generally; that those who had arms were furnished with inferior and second-hand weapons, and that their leaders, both religious and political, had discountenanced a resort to force. Many rumors were current among the whites that the negroes were arming and massing iu large bodies, but in all cases these rumors had no basis.

[. . .]

(6.) Following the riot at Clinton, the country for the next two days was scoured by detachments from these democratic military organizations over a circuit of many miles, and a large number of unoffending persons were killed. The number has never been ascertained correctly, but it may be estimated fairly as between thirty and fifty.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Senate. *Mississippi in 1875: Report of the Select Committee to Inquire into the Mississippi Election of 1875*. S. Rep. No. 527, 44th Cong., 1st Sess. 2 vols. Washington, DC: Government Printing Office, 1876. Internet Archive.

Footnote citation:

U.S. Senate, *Mississippi in 1875*, S. Rep. No. 527, 44th Cong., 1st Sess. (Washington, DC: Government Printing Office, 1876), 1:ix–xi, https://archive.org/details/mississippiin18701unit.

Shortened citation:

Mississippi in 1875, 1:[page].

PRIMARY SOURCE P15.85

United States v. Cruikshank, 92 U.S. 542 (1876) (excerpt)

Chief Justice Morrison R. Waite, opinion of the Court · March 27, 1876

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?), 15.2 (How Radical Was Reconstruction?), and 15.4 (What Built Black Freedom?)
WHY HERE	The Court rules that federal law cannot reach private mobs, crippling Reconstruction enforcement.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Federal prosecutors charged leaders of the Colfax massacre under the Enforcement Act of 1870, which made it a crime to conspire to deprive citizens of their constitutional rights. Three men were convicted.

The Supreme Court overturned the convictions. Chief Justice Waite ruled that the Fourteenth Amendment restrained only the states, not private individuals, and that rights such as assembly and bearing arms were for the states to protect. The decision left Black southerners to the protection of state governments that were falling to their attackers.

Editorial note: The text follows the Justia transcription of the official report.

Document Text

[. . .]

The second and tenth counts are equally defective. The right there specified is that of "bearing arms for a lawful purpose." This is not a right granted by the Constitution. Neither is it in any manner dependent upon that instrument for its existence. The second amendment declares that it shall not be infringed, but this, as has been seen, means no more than that it shall not be infringed by Congress. This is one of the amendments that has no other effect than to restrict the powers of the national government, leaving the people to look for their protection against any violation by their fellow citizens of the rights it recognizes, to what is called, in The City of New York v. Miln, 11 Pet. 139, the "powers which relate to merely municipal legislation, or what was, perhaps, more properly called internal police," "not surrendered or restrained" by the Constitution of the United States.

The third and eleventh counts are even more objectionable. They charge the intent to have been to deprive the citizens named, they being in Louisiana, "of their respective several lives and liberty of person without due process of law." This is nothing else than alleging a conspiracy to falsely imprison or murder citizens of the United States, being within the territorial jurisdiction of the State of Louisiana. The rights of life and personal liberty are natural rights of man. "To secure these rights," says the Declaration of Independence, "governments are instituted among men, deriving their just powers from the consent of the governed." The very highest duty of the States, when they entered into the Union under the Constitution, was to protect all persons within their boundaries in the enjoyment of these "unalienable rights with which they were endowed by their Creator." Sovereignty, for this purpose, rests alone with the States. It is no more the duty or within the power of the United States to punish for a conspiracy to falsely imprison or murder within a State, than it would be to punish for false imprisonment or murder itself.

The Fourteenth Amendment prohibits a State from depriving any person of life, liberty, or property without due process of law, but this adds nothing to the rights of one citizen as against another. It simply furnishes an additional guaranty against any encroachment by the States upon the fundamental rights which belong to every

citizen as a member of society. As was said by Mr. Justice Johnson, in Bank of Columbia v. Okely, 4 Wheat. 244, it secures

"the individual from the arbitrary exercise of the powers of government, unrestrained by the established principles of private rights and distributive justice."

These counts in the indictment do not call for the exercise of any of the powers conferred by this provision in the amendment.

The fourth and twelfth counts charge the intent to have been to prevent and hinder the citizens named, who were of African descent and persons of color, in

"the free exercise and enjoyment of their several right and privilege to the full and equal benefit of all laws and proceedings, then and there, before that time, enacted or ordained by the said State of Louisiana and by the United States, and then and there, at that time, being in force in the said State and District of Louisiana aforesaid, for the security of their respective persons and property, then and there, at that time enjoyed at and within said State and District of Louisiana by white persons, being citizens of said State of Louisiana and the United States, for the protection of the persons and property of said white citizens."

There is no allegation that this was done because of the race or color of the persons conspired against. When stripped of its verbiage, the case as presented amounts to nothing more than that the defendants conspired to prevent certain citizens of the United States, being within the State of Louisiana, from enjoying the equal protection of the laws of the State and of the United States.

The Fourteenth Amendment prohibits a State from denying to any person within its jurisdiction the equal protection of the laws; but this provision does not, any more than the one which precedes it, and which we have just considered, add anything to the rights which one citizen has under the Constitution against another. The equality of the rights of citizens is a principle of republicanism. Every republican government is in duty bound to protect all its citizens in the enjoyment of this principle, if within its power. That duty was originally assumed by the States, and it still remains there. The only obligation resting upon the United States is to see that the States do not deny the right. This the amendment guarantees, but no more. The power of the national government is limited to the enforcement of this guaranty.

No question arises under the Civil Rights Act of April 9, 1866 (14 Stat. 27), which is intended for the protection of citizens of the United States in the enjoyment of certain rights, without discrimination on account of race, color, or previous condition of servitude, because, as has already been stated, it is nowhere alleged in these counts that the wrong contemplated against the rights of these citizens was on account of their race or color.

Another objection is made to these counts that they are too vague and uncertain. This will be considered hereafter, in connection with the same objection to other counts.

The sixth and fourteenth counts state the intent of the defendants to have been to hinder and prevent the citizens named, being of African descent, and colored,

[. . .]

Chicago Citations

Bibliography entry:

United States v. Cruikshank, 92 U.S. 542 (1876). Justia U.S. Supreme Court Center.

Footnote citation:

United States v. Cruikshank, 92 U.S. 542, [page] (1876).

Shortened citation:

Cruikshank, 92 U.S. at [page].

PRIMARY SOURCE P15.86

United States v. Reese, 92 U.S. 214 (1876) (excerpt)

Chief Justice Morrison R. Waite, opinion of the Court · March 27, 1876

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.2 (How Radical Was Reconstruction?)
WHY HERE	The Court reads the Fifteenth Amendment narrowly, limiting federal power to protect Black voters.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Two Kentucky election officials refused to register the vote of William Garner, a Black man, and were indicted under the Enforcement Act of 1870.

The Supreme Court ruled that the Fifteenth Amendment did not confer a right to vote but only forbade denying the vote on account of race. Because two sections of the act were not limited to racial discrimination, the Court struck them down.

Editorial note: The text follows the Justia transcription of the official report; the typographical error "hare" is kept.

Document Text

MR. CHIEF JUSTICE WAITE delivered the opinion of the Court.

This case comes hare by reason of a division of opinion between the judges of the Circuit Court in the District of Kentucky. It presents an indictment containing four counts, under secs. 3 and 4 of the Act of May 31, 1870, 16 Stat. 140, against two of the inspectors of a municipal election in the State of Kentucky for refusing to receive and count at such election the vote of William Garner, a citizen of the United States of African descent. All the questions presented by the certificate of division arose upon general demurrers to the several counts of the indictment.

In this Court, the United States abandons the first and third counts and expressly waives the consideration of all claims not arising out of the enforcement of the Fifteenth Amendment of the Constitution.

After this concession, the principal question left for consideration is whether the act under which the indictment is found can be made effective for the punishment of inspectors of elections who refuse to receive and count the votes of citizens of the United States, having all the qualifications of voters, because of their race, color, or previous condition of servitude.

If Congress has not declared an act done within a state to be a crime against the United States, the courts have no power to treat it as such. United States v. Hudson, 7 Cranch 32. It is not claimed that there is any statute which can reach this case unless it be the one in question.

Looking, then, to this statute, we find that its first section provides that all citizens of the United States who are or shall be otherwise qualified by law to vote at any election &c., shall be entitled and allowed to vote thereat without distinction of race, color, or previous condition of servitude, any constitution &c., of the state to the contrary notwithstanding. This simply declares a right, without providing a punishment for its violation.

The second section provides for the punishment of any officer charged with the duty of furnishing to citizens an opportunity to perform any act, which, by the constitution or laws of any state, is made a prerequisite or qualification of voting, who shall omit to give all citizens of the United States the same and equal opportunity to perform such prerequisite, and become qualified on account of the race, color, or previous condition of servitude,

of the applicant. This does not apply to or include the inspectors of an election whose only duty it is to receive and count the votes of citizens, designated by law as voters, who have already become qualified to vote at the election.

The third section is to the effect that whenever, by or under the constitution or laws of any state &c., any act is or shall be required to be done by any citizen as a prerequisite to qualify or entitle him to vote, the offer of such citizen to perform the act required to be done "as aforesaid" shall, if it fail to be carried into execution by reason of the wrongful act or omission "aforesaid" of the person or officer charged with the duty of receiving or permitting such performance, or offer to perform, or acting thereon, be deemed and held as a performance in law of such act; and the person so offering and failing as aforesaid, and being otherwise qualified, shall be entitled to vote in the same manner, and to the same extent, as if he had in fact performed such act, and any judge, inspector, or other officer of election whose duty it is to receive, count &c., or give effect to the vote of any such citizen, who shall wrongfully refuse or omit to receive, count &c., the vote of such citizen, upon the presentation by him of his affidavit stating such offer, and the time and place thereof, and the name of the person or officer whose duty it was to act thereon, and that he was wrongfully prevented by such person or officer from performing such act, shall, for every such offense, forfeit and pay, &c.

The fourth section provides for the punishment of any person who shall, by force, bribery, threats, intimidation, or other unlawful means, hinder, delay &c., or shall combine with others to hinder, delay, prevent, or obstruct, any citizen from doing any act required to be done to qualify him to vote, or from voting, at any election.

The second count in the indictment is based upon the fourth section of this act, and the fourth upon the third section.

Rights and immunities created by or dependant upon the Constitution of the United States can be protected by Congress. The form and the manner of the protection may be such as Congress, in the legitimate exercise of its legislative discretion, shall provide. These may be varied to meet the necessities of the particular right to be protected.

The Fifteenth Amendment does not confer the right of suffrage upon anyone. It prevents the states, or the United States, however, from giving preference, in this particular, to one citizen of the United States over another on account of race, color, or previous condition of servitude. Before its adoption, this could be done. It was as much within the power of a state to exclude citizens of the United States from voting on account of race &c., as it was on account of age, property, or education. Now it is not. If citizens of one race having certain qualifications are permitted by law to vote, those of another having the same qualifications must be. Previous to this amendment, there was no constitutional guaranty against this discrimination; now there is. It follows that the amendment has invested the citizens of the United States with a new constitutional right which is within the protecting power of Congress. That right is exemption from discrimination in the exercise of the elective franchise on account of race, color, or previous condition of servitude. This, under the express provisions of the second section of the amendment, Congress may enforce by "appropriate legislation."

[. . .]

Chicago Citations

Bibliography entry:

United States v. Reese, 92 U.S. 214 (1876). Justia U.S. Supreme Court Center.

Footnote citation:

United States v. Reese, 92 U.S. 214, [page] (1876).

Shortened citation:

Reese, 92 U.S. at [page].

PRIMARY SOURCE P15.87

Republican Party Platform of 1876 (excerpt)

Republican National Convention, Cincinnati · June 14, 1876

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Republican policy already joins protection of rights with the goal of pacifying the South.
TREATMENT	Public-domain text, selected planks

Historical Context

By 1876 the Republican Party was weakened by scandals in the Grant administration and by the depression that began in 1873. The convention nominated Governor Rutherford B. Hayes of Ohio.

The platform pledged both the "permanent pacification of the Southern section of the Union" and the protection of all citizens in their rights.

Editorial note: This platform was adopted before the election dispute began. The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

3. The permanent pacification of the Southern section of the Union and the complete protection of all its citizens in the free enjoyment of all their rights, are duties to which the Republican party is sacredly pledged. The power to provide for the enforcement of the principles embodied in the recent constitutional amendments is vested by those amendments in the Congress of the United States; and we declare it to be the solemn obligation of the legislative and executive departments of the government to put into immediate and vigorous exercise all their constitutional powers for removing any just causes of discontent on the part of any class, and securing to every American citizen complete liberty and exact equality in the exercise of all civil, political, and public rights. To this end we imperatively demand a congress and a chief executive whose courage and fidelity to these duties shall not falter until these results are placed beyond dispute or recall.

4. In the first act of congress, signed by President Grant, the national government assumed to remove any doubt of its purpose to discharge all just obligations to the public creditors, and solemnly pledged its faith "to make provisions at the earliest practicable period, for the redemption of the United States notes in coin." Commercial prosperity, public morals, and the national credit demand that this promise be fulfilled by a continuous and steady progress to specie payment.

5. Under the constitution, the President and heads of departments are to make nominations for office, the senate is to advise and consent to appointments, and the house of representatives is to accuse and prosecute faithless officers. The best interest of the public service demands that these distinctions be respected; that senators and representatives who may be judges and accusers should not dictate appointments to office. The invariable rule for appointments should have reference to the honesty, fidelity, and capacity of the appointees, giving to the party in power those places where harmony and vigor of administration require its policy to be represented, but permitting all others to be filled by persons selected with sole reference to the efficiency of the public service and the right of citizens to share in the honor of rendering faithful service to their country.

6. We rejoice in the quickened conscience of the people concerning political affairs. We will hold all public officers to a rigid responsibility, and engage that the prosecution and punishment of all who betray official trusts shall be speedy, thorough, and unsparing.

7. The public school system of the several states is the bulwark of the American republic; and, with a view to its security and permanence, we recommend an amendment to the constitution of the United States, forbidding the application of any public funds or property for the benefit of any school or institution under sectarian control.

8. The revenue necessary for current expenditures and the obligations of the public debt must be largely derived from duties upon importations, which, so far as possible, should be so adjusted as to promote the interests of American labor and advance the prosperity of the whole country.

9. We reaffirm our opposition to further grants of the public lands to corporations and monopolies, and demand that the national domain be devoted to free homes for the people.

10. It is the imperative duty of the government so to modify existing treaties with European governments, that the same protection shall be afforded to the adopted American citizen that is given to native-born, and all necessary laws be passed to protect emigrants, in the absence of power in the states for that purpose.

11. It is the immediate duty of congress fully to investigate the effects of the immigration and importation of Mongolians on the moral and material interests of the country.

12. The Republican party recognizes with approval the substantial advances recently made toward the establishment of equal rights for women, by the many important amendments effected by Republican legislatures in the laws which concern the personal and property relations of wives, mothers, and widows, and by the appointment and election of women to the superintendence of education, charities, and other public trusts. The honest demands of this class of citizens for additional rights, privileges, and immunities should be treated with respectful consideration.

[. . .]

Chicago Citations

Bibliography entry:

Republican Party. "Republican Party Platform of 1876." June 14, 1876. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Republican Party Platform of 1876, June 14, 1876, American Presidency Project, https://www.presidency.ucsb.edu/documents/republican-party-platform-1876.

Shortened citation:

Republican Platform of 1876.

PRIMARY SOURCE P15.88

1876 Democratic Party Platform (excerpt)

Democratic National Convention, St. Louis · June 22, 1876

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	The Democrats attack Reconstruction as corrupt centralism, appealing to northern weariness.
TREATMENT	Public-domain text, selected passages

Historical Context

The Democrats nominated Governor Samuel J. Tilden of New York, a reformer known for prosecuting the corrupt Tweed Ring.

Their platform demanded reform and attacked the Republicans for "carpet-bag tyrannies" in the South and a "corrupt centralism" in Washington, appealing to northern voters tired of Reconstruction and scandal.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Reform is necessary to rebuild and establish in the hearts of the whole people the Union eleven years ago happily rescued from the danger of the secession of States, but now to be saved from a corrupt centralism which, after inflicting upon ten States the rapacity of carpet-bag tyrannies, has honeycombed the offices of the Federal Government itself with incapacity, waste and fraud; infected States and municipalities with the contagion of misrule, and locked fast the prosperity of an industrious people in the paralysis of hard times. Reform is necessary to establish a sound currency, restore the public credit and maintain the national honor.

We denounce the failure for all these eleven years to make good the promise of the legal tender notes, which are a changing standard of value in the hands of the people, and the non-payment of which is a disregard of the plighted faith of the nation.

We denounce the improvidence which, in eleven years of peace, has taken from the people in Federal taxes thirteen times the whole amount of the legal-tender notes and squandered four times their sum in useless expense, without accumulating any reserve for their redemption. We denounce the financial imbecility and immorality of that party, which, during eleven years of peace, has made no advance toward resumption, no preparation for resumption, but instead has obstructed resumption by wasting our resources and exhausting all our surplus income, and while annually professing to intend a speedy return to specie payments, has annually enacted fresh hindrances thereto. As such hindrance we denounce the resumption clause of the act of 1875 and we here demand its repeal. We demand a judicious system of preparation by public economies, by official retrenchments, and by wise finance, which shall enable the nation soon to assure the whole world of its perfect ability and its perfect readiness to meet any of its promises at the call of the creditor entitled to payment.

We believe such a system, well-advised, and, above all, intrusted to competent hands for execution, creating at no time an artificial scarcity of currency, and at no time alarming the public mind into a withdrawal of that vast machinery of credit by which ninety-five per cent of our business transactions are performed—a system open and public and inspiring general confidence—would from the day of its adoption bring healing on its wings to all our harassed industries, set in motion the wheels of commerce, manufactures and the mechanic arts, restore employment to labor, and renew in all its natural sources the prosperity of the people.

Reform is necessary in the sum and mould of Federal taxation, to the end that capital may be set free from distrust, and labor lightly burdened. We denounce the present tariff levied upon nearly four thousand articles as a masterpiece of injustice, inequality and false pretense, which yields a dwindling and not a yearly rising revenue, has impoverished many industries to subsidize a few. It prohibits imports that might purchase the products of American labor; it has degraded American commerce from the first to an inferior rank upon the high seas; it has cut down the values of American manufactures at home and abroad; it has depleted the returns of American agriculture, an industry followed by half our people; it costs the people five times more than it produces to the treasury, obstructs the process of production and wastes the fruits of labor; it promotes fraud, fosters smuggling, enriches dishonest officials, and bankrupts honest merchants. We demand that all custom-house taxation shall be only for revenue. Reform is necessary in the scale of public expense, Federal, State and municipal. Our Federal taxation has swollen from sixty millions gold in 1860 to four hundred and fifty millions currency in 1870; our aggregate taxation from one hundred and fifty-four millions gold in 1860 to seven hundred and thirty millions currency, in 1870, all in one decade; from less than five dollars per head to more than eighteen dollars per head. Since the peace the people have paid to their tax-gatherers more than thrice the sum of the national debt, and more than twice the sum for the Federal Government alone. We demand a rigorous frugality in every department and from every officer of the Government.

[. . .]

Chicago Citations

Bibliography entry:

Democratic Party. "1876 Democratic Party Platform." June 22, 1876. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

1876 Democratic Party Platform, June 22, 1876, American Presidency Project, https://www.presidency.ucsb.edu/node/273179.

Shortened citation:

1876 Democratic Platform.

PRIMARY SOURCE P15.89

Grand National Republican Banner, 1876

Currier & Ives (publisher) · 1876

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A campaign banner shows how the Republicans presented their ticket in 1876.
TREATMENT	Different-source open substitute (public-domain image)

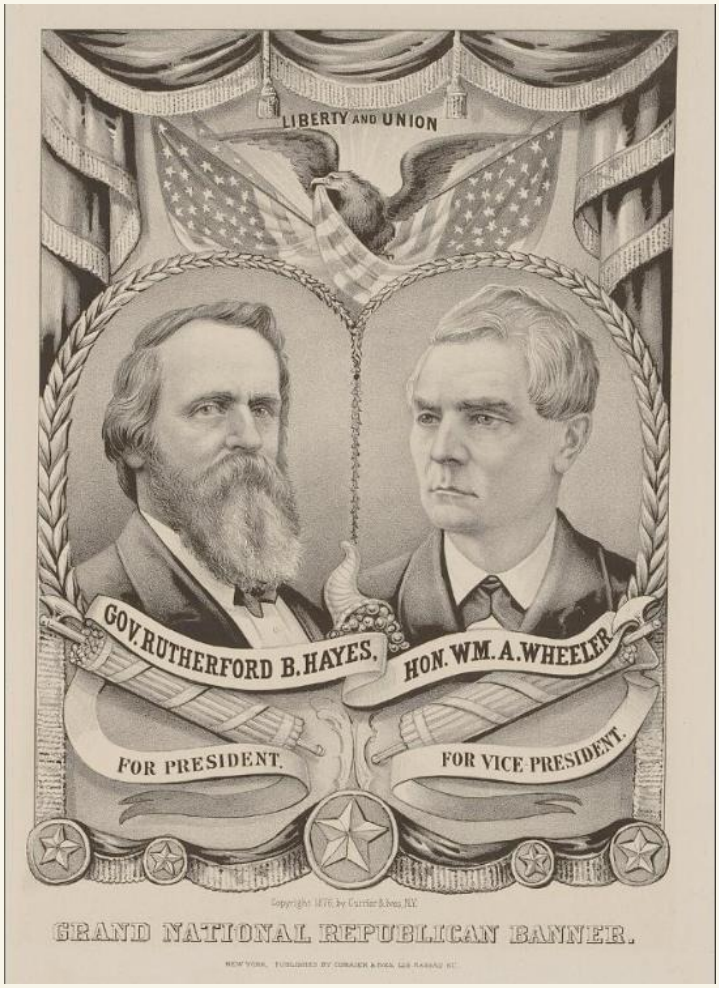
Historical Context

Campaign banners and portraits were sold in large numbers during presidential elections. Currier & Ives published versions for both parties.

This Republican banner shows the 1876 nominees, Rutherford B. Hayes of Ohio and William A. Wheeler of New York, framed by patriotic symbols.

Editorial note: The Norton collection's campaign piece is not identified in its listing. This reader substitutes a Republican campaign banner for the same ticket from an open collection (via Wikimedia Commons).

Primary Source Image



Currier & Ives, Grand National Republican Banner: Hayes and Wheeler, 1876.

Chicago Citations

Bibliography entry:

Currier & Ives. *Grand National Republican Banner, 1876*. Lithograph. New York: Currier & Ives, 1876. Via Wikimedia Commons.

Footnote citation:

Currier & Ives, *Grand National Republican Banner, 1876*, lithograph (New York, 1876).

Shortened citation:

Currier & Ives, *Grand National Republican Banner*.

PRIMARY SOURCE P15.90

Letter of Acceptance of the Republican Nomination for the Presidency (excerpt)

Rutherford B. Hayes · Columbus, Ohio, July 8, 1876

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Months before the election, Hayes promised a conciliatory southern policy.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Nominees in the nineteenth century did not give acceptance speeches; they issued public letters setting out their views.

In his letter Hayes promised civil service reform and a single term, and pledged a southern policy that would bring "the blessings of honest and capable local self-government" while protecting the rights of all citizens.

Editorial note: This letter predates the election dispute. The text follows the Teaching American History transcription.

Document Text

[. . .]

The declaration of principles by the Cincinnati Convention makes no announcement in favor of a single Presidential term. I do not assume to add that declaration; but believing that the restoration of the civil service, to the system established by Washington and followed by the early Presidents, can best be accomplished by an Executive who is under no temptation to use the patronage of his office, to promote his own re-election, I desire to perform what I regard as a duty, in stating now my inflexible purpose, if elected, not to be a candidate for election to a second term.

[. . .]

The resolution of the Convention on the subject of the permanent pacification of the country, and the complete protection of all its citizens in the free enjoyment of all their constitutional rights, is timely and of great importance. The condition of the Southern States attracts the attention and commands the sympathy of the people of the whole Union. In their progressive recovery from the effects of the war, their first necessity is an intelligent and honest administration of the government, which will protect all classes of citizens in all their political and private rights. What the South most needs is peace, and peace depends upon the supremacy of law. There can be no enduring peace, if the constitutional rights of any portion of the people are habitually disregarded. A division of political parties, resting merely upon distinctions of race, or upon sectional lines, is always unfortunate, and may be disastrous. The welfare of the South, alike with that of every other part of the country, depends upon the attractions it can offer to labor, to immigration, and to capital. But laborers will not go, and capital will not be ventured, where the Constitution and the laws are set at defiance, and distraction, apprehension and alarm take the place of peace-loving and law-abiding social life. All parts of the Constitution are sacred, and must be sacredly observed the parts that are new no less than the parts that are old. The moral and material prosperity of the Southern States can be most effectually advanced by a hearty and generous recognition of the rights of all, by all a recognition without reserve or exception.

With such a recognition fully accorded, it will be practicable to promote, by the influence of all legitimate agencies of the General Government, the efforts of the people of those States, to obtain for themselves the blessings of

honest and capable local government.

If elected, I shall consider it not only my duty, but it will be my ardent desire to labor for the attainment of this end.

Let me assure my countrymen of the Southern States that if I shall be charged with the duty of organizing an Administration, it will be one which will regard and cherish their truest interests the interests of the white, and of the colored people both, and equally; and which will put forth its best efforts in behalf of a civil policy, which will wipe out forever the distinction between the North and South in our common country.

With a civil service organized upon a system which will secure purity, experience, efficiency, and economy, a strict regard for the public welfare, solely in appointments, and the speedy, thorough and unsparing prosecution and punishment of all public officers who betray official trusts; with a sound currency; with education unsectarian and free to all; with simplicity and frugality in public and private affairs; and with a fraternal spirit of harmony pervading the people of all sections and classes, we may reasonably hope that the second century of our existence as a Nation will, by the blessing of God, be pre-eminent as "an era of good feeling," and a period of progress, prosperity, and happiness. Very Respectfully,

Your fellow citizen,

R.B.Hayes

Chicago Citations

Bibliography entry:

Hayes, Rutherford B. Letter Accepting the Republican Nomination for the Presidency, July 8, 1876. Teaching American History.

Footnote citation:

Rutherford B. Hayes, letter of acceptance, July 8, 1876, via Teaching American History, https://teachingamericanhistory.org/document/letter-of-acceptance-of-the-nomination-for-the-presidency/.

Shortened citation:

Hayes, letter of acceptance, July 8, 1876.

PRIMARY SOURCE P15.91

Letter to D. H. Chamberlain, Governor of South Carolina

Ulysses S. Grant · July 26, 1876

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	Grant condemns the Hamburg massacre but offers only limited federal help.
TREATMENT	Full public-domain text

Historical Context

On July 8, 1876, armed white men, many of them later organized as "Red Shirts," surrounded the Black militia company in the small town of Hamburg, South Carolina. After the militia surrendered, several Black men were murdered.

Governor Daniel H. Chamberlain, a Massachusetts-born Republican, asked Grant for help. Grant condemned the massacre as "cruel, blood-thirsty, wanton" and promised to support the governor within the limits of his authority.

Editorial note: The text follows the Teaching American History transcription.

Document Text

Dear Sir: I am in receipt of your letter of the 22d of July, and all the inclosures enumerated therein, giving an account of the late barbarous massacre at the town of Hamburg, S.C. The views which you express as to the duty you owe to your oath of office and to citizens to secure to all their civil rights, including the right to vote according to the dictates of their own consciences, and the further duty of the Executive of the nation to give all needful aid, when properly called on to do so, to enable you to ensure this inalienable right, I fully concur in. The scene at Hamburg, as cruel, blood-thirsty, wanton, unprovoked, and uncalled for, as it was, is only a repetition of the course which has been pursued in other Southern States within the last few years, notably in Mississippi and Louisiana. Mississippi is governed to-day by officials chosen through fraud and violence, such as would scarcely be accredited to savages, much less to a civilized and Christian people. How long these things are to continue, or what is to be the final remedy, the Great Ruler of the universe only knows; but I have an abiding faith that the remedy will come, and come speedily, and I earnestly hope that it will come peacefully. There has never been a desire on the part of the North to humiliate the South. Nothing is claimed for one State that is not fully accorded to all the others, unless it may be the right to kill negroes and Republicans without fear of punishment and without loss of caste or reputation. This has seemed to be a privilege claimed by a few States. I repeat again, that I fully agree with you as to the measure of your duties in the present emergency, and as to my duties. Go on–and let every Governor where the same dangers threaten the peace of his State go on–in the conscientious discharge of his duties to the humblest as well as the proudest citizen, and I will give every aid for which I can find law or constitutional power. A government that cannot give protection to life, property, and all guaranteed civil rights (in this country the greatest is an untrammeled ballot) to the citizen is, in so far, a failure, and every energy of the oppressed should be exerted, always within the law and by constitutional means, to regain lost privileges and protections. To long denial of guaranteed rights is sure to lead to revolution–bloody revolution, where suffering must fall upon the innocent as well as the guilty.

Expressing the hope that the better judgment and co-operation of citizens of the State over which you have presided so ably may enable you to secure a fair trial and punishment of all offenders, without distinction of race or color or previous condition of servitude, and without aid from the Federal Government, but with the promise of

such aid on the conditions named in the foregoing, I subscribe myself, very respectfully, your obedient servant,

U.S. Grant.

Chicago Citations

Bibliography entry:

Grant, Ulysses S. Letter to D. H. Chamberlain, July 26, 1876. Teaching American History.

Footnote citation:

Ulysses S. Grant to D. H. Chamberlain, July 26, 1876, via Teaching American History, https://teachingamericanhistory.org/document/letter-to-d-h-chamberlain-governor-of-south-carolina/.

Shortened citation:

Grant to Chamberlain, July 26, 1876.

PRIMARY SOURCE P15.92

Special Message to the Senate on the Hamburg Massacre

Ulysses S. Grant · July 31, 1876

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	The president describes Red Shirt terror in South Carolina in an official message to Congress.
TREATMENT	Full public-domain text

Historical Context

The Senate asked Grant for information on the killings at Hamburg, South Carolina. He sent Governor Chamberlain's correspondence with this message.

Grant called Hamburg a "disgraceful and brutal slaughter of unoffending men" and noted similar violence in Mississippi and Louisiana.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

To the Senate of the United States:

In response to the resolution of the Senate of July 20, 1876, calling upon the President to communicate to the Senate, if in his opinion not incompatible with the public interest, any information in regard to the slaughter of American citizens at Hamburg, S.C., I have the honor to submit the following inclosures, to wit:

No. 1. Letter of the 22d of July, 1876, from Governor D. H. Chamberlain, of South Carolina, to me.

No. 2. My reply thereto.

No. 3. Report of Hon. William Stone, attorney-general of South Carolina.

No. 4. Report of General H.W. Purvis, adjutant and inspector general of South Carolina.

No. 5. Copy of evidence taken before a coroner's jury investigating facts relating to the Hamburg massacre.

No. 6. Printed copy of statement by M. C. Butler, of South Carolina.

No. 7. Printed letter from the same to the editors of the Journal of Commerce.

No. 8. Copy of letter from Governor Chamberlain to the Hon. T. J. Robertson.

No. 9. An address to the American people by the colored citizens of Charleston, S.C.

No. 10. An address by a committee appointed at a convention of leading representatives of Columbia, S.C.

No. 11. Copy of letter of July 15, 1876, from the district attorney of Mississippi to the Attorney-General of the United States.

No. 12. Letter from same to same.

No. 13. Copy of report of a grand jury lately in session in Oxford, Miss.

These inclosures embrace all the information in my possession touching the late disgraceful and brutal slaughter of unoffending men at the town of Hamburg, S.C. My letter to Governor Chamberlain contains all the comments I

wish to make on the subject. As allusion is made in that letter to the condition of other States, and particularly to Louisiana and Mississippi, I have added to the inclosures letters and testimony in regard to the lawless condition of a portion of the people of the latter State.

In regard to Louisiana affairs, murders and massacres of innocent men for opinion's sake or on account of color have been of too recent date and of too frequent occurrence to require recapitulation or testimony here. All are familiar with their horrible details, the only wonder being that so many justify them or apologize for them.

But recently a committee of the Senate of the United States visited the State of Mississippi to take testimony on the subject of frauds and violence in elections. Their report has not yet been made public, but I await its forthcoming with a feeling of confidence that it will fully sustain all that I have stated relating to fraud and violence in the State of Mississippi.

U. S. GRANT.

Chicago Citations

Bibliography entry:

Grant, Ulysses S. "Special Message." July 31, 1876. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Ulysses S. Grant, "Special Message," July 31, 1876, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-1906.

Shortened citation:

Grant, special message, July 31, 1876.

PRIMARY SOURCE P15.93

Go South, Young Man

Thomas Nast · Harper's Weekly, December 2, 1876

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A Republican cartoonist accuses Democrats of trying to buy the disputed southern votes.
TREATMENT	Public-domain image

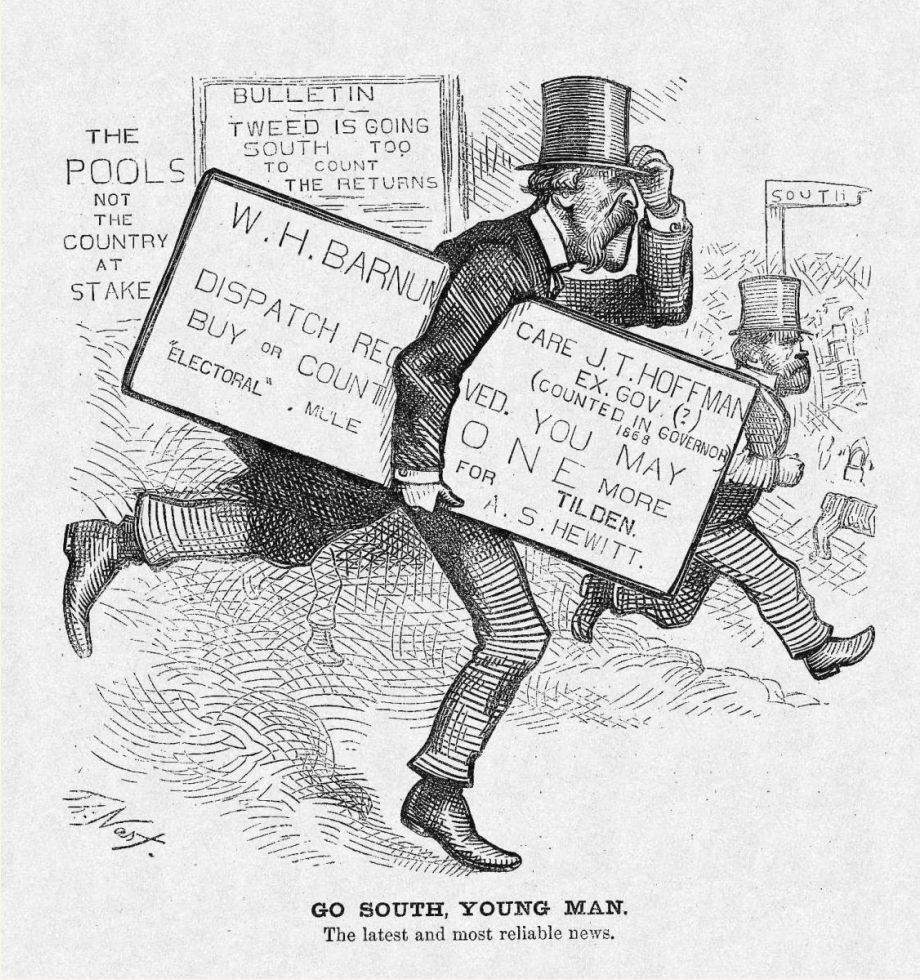
Historical Context

After the election of November 7, 1876, both parties sent "visiting statesmen" to the disputed southern states while the returning boards counted the votes.

Nast shows Democratic operatives, including party chairman Abram Hewitt's agents, hurrying south with offers to buy electoral votes for Tilden.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image



Thomas Nast, "Go South, Young Man," Harper's Weekly, December 2, 1876.

Chicago Citations

Bibliography entry:

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Footnote citation:

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PRIMARY SOURCE P15.94

"Governor Hayes' Policy" and "Chamberlain's Pretended Inaugural Address"

Anderson Intelligencer (Anderson, S.C.) · December 14, 1876

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A report of Hayes's private overtures to southern Democrats is evidence for a bargain predating the commission.
TREATMENT	Facsimile of newspaper columns

Historical Context

In early December 1876, with the election undecided, a New York *Herald* correspondent reported that Hayes had privately sought out southern Democrats, including L. Q. C. Lamar of Mississippi, and assured them he would end carpetbag rule if elected.

The same issue printed Chamberlain's inaugural address as governor, which the paper headlined as "brazen impudence," while Wade Hampton claimed the same office.

Editorial note: Facsimile of the newspaper page supplied by the instructor, cropped to the named article; the columns are set side by side to fit the page. Read down each column, then across. The *Herald* dispatch relies on unnamed sources and was not confirmed by Hayes.

Document Facsimile

GOVERNOR HAYES' POLICY.

A NEW AND IMPORTANT MOVE IN THE PRESIDENTIAL GAME.

Overtures to Southern Democrats—Senator Lamar to be tendered a Seat in the Cabinet.

Cincinnati Correspondence to the New York Herald.

CINCINNATI, O., Dec. 3, 1876.

The *Enquirer* published yesterday a despatch from Columbus giving, at some length, a rather curious story about some expressions of Governer Hayes in relation to his policy if he should become President. The story has not attracted much attention or belief here because of the quarter in which it appears, and because, also, of certain details which are incorrectly stated.

I am in position to give you a correct and accurate account of the whole matter, which was intended by Governor Hayes and his friends to be kept secret. As it has leaked out through somebody's indiscretion, some of the friends of the Governor now think it best to make the correct story public.

THE CORRECT STORY.

The Governor has never been in sympathy with those Republicans who pressed the Southern issue, and he has no sympathy at all with the carpet-baggers and adventurers like Governor Chamberlain in South Carolina or Governor Kellogg in Louisiana. He has waited impatiently for an opportunity to let honest Southern men know his real views, and assure them that they need not fear, if he should become President, that the abuses in the South, which general Grant has tolerated and encouraged, would be continued.

MR. LAMAR DECLINES.

After consultation with two or three of the safest advisers, he concluded that it would be well to see and confer with Mr. Lamar, of Mississippi, and that gentleman was written to by Mr. Halsted accordingly, and asked to stop in Cincinnati for a conversation on his way to Washington. When he got there Mr. Halsted informed him of Governor Hayes' desire to consult with him. Mr. Lamar was at first inclined to go to Columbus from here and meet Gov. Hayes, but on consideration thought such a meeting at this time unwise, as possibly committing both him and the Governor to matters which altered circumstances might make inconvenient. He said that he did not at this time wish to see Governor Hayes' hand, nor was he prepared, nor did he feel the time had come, to talk over Southern questions with him. He therefore declined in a courteous note, and went on his way hence to Washington.

THE GOVERNOR'S PROGRAMME.

Colonel Roberts, who is, I believe, managing editor of the New Orleans *Times*, and a gentleman of ability and reputation, was thereupon asked to go and see Governor Hayes, with a view to get at the Governor's ideas, so as to be able to communicate them to Mr. Lamar. Col. Roberts went from here to Columbus by appointment of Governor Hayes, and had a long conference with him at the Governor's house, and Governor Hayes explained to him very frankly his political programme. The conference was private, of course, and was intended to be kept so, but as an incorrect story has got out, it is now thought best by the friends of Governor Hayes to let the public know precisely what was said. It should be premised that the Governor is very well informed on Southern affairs, has made them a study, has friends in some Southern States, and did not need information from Col. Roberts.

WHAT GOVERNOR HAYES SAID.

He said to Mr. Roberts that he wished Mr. Lamar and also General Hampton and other Southern men like them to know and to be assured that he believed himself fairly elected to the Presidency; that he meant to be President, and to be his own man and have his own policy; that no person who had been prominently concerned in the administration of General Grant, whether in Washington or elsewhere, should have any office or power under his administration. He thought reform absolutely necessary, and impossible except by calling in new men and dropping the men now in power and place. About this he spoke, as it is known he feels, very positively.

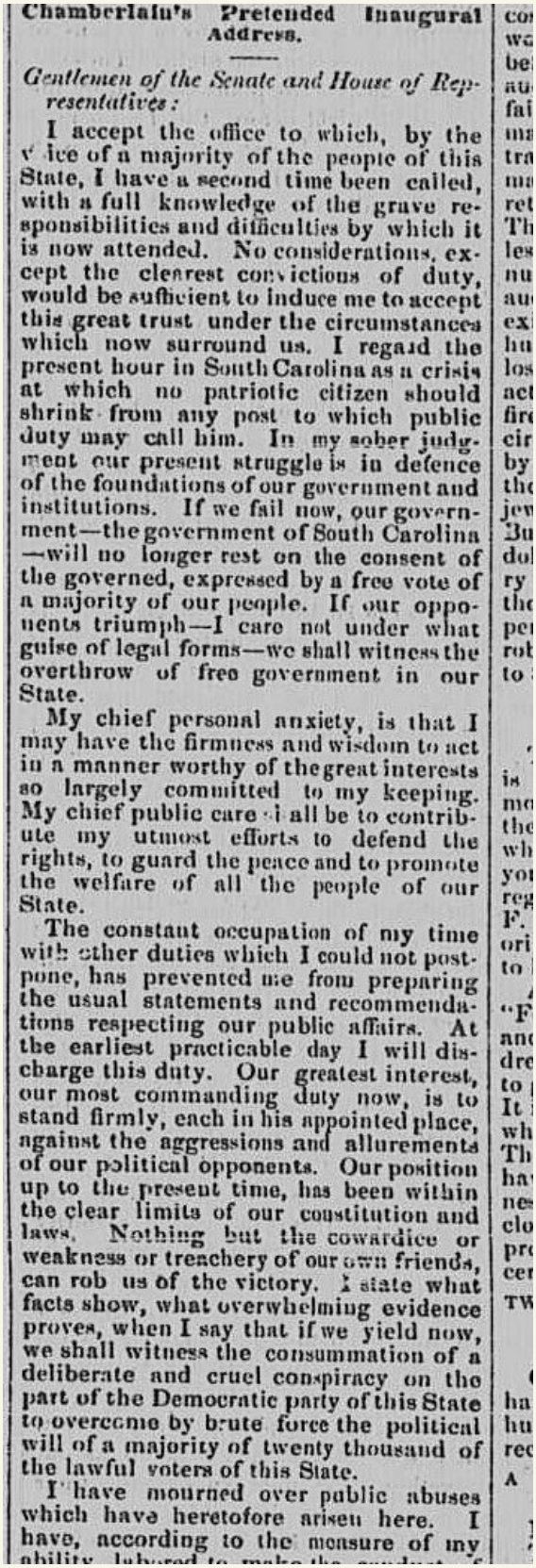
HAYES' SOUTHERN POLICY.

As to the South the Governor said that he desired to consult with such men as Lamar and General Hampton; that he thought Hampton had acted a noble part in recent events in South Carolina, for which the country owed him thanks; that if he became President he should wish to call Mr. Lamar into his Cabinet, and should not ask him, in that event, to abandon his present political relations; that he meant to frame his Southern policy on the advice of these two gentlemen; to make the Federal appointments in the Southern States upon their recommendations, and entirely of Southern men, considering this the only proper disposition of these offices. He said, frankly, that carpet-bag government had not been successful; that the complaints of the Southern people were just in this matter; that he should require absolute justice and fair play to the negro, but that he was convinced this could be got best and most surely by trusting the honorable and influential Southern whites, and putting the responsibility on them of maintaining peace and punishing outrages.

SYMPATHY WITH HAMPTON.

He expressed his strong sympathy with Hampton in South Carolina, and his opinion that the President had acted down there in a very ill-advised manner. Finally, Governor Hayes said that as soon as the electoral vote was declared, and his election thus publicly assured, he wished to have a private conference with Colonel Lamar and General Hampton, and would take measures to that end, believing that then they could see no objections to a consultation which had for its object the good of their own section and the harmonizing of differences which had gone so far that reconciliation

"Governor Hayes' Policy" (New York Herald dispatch), Anderson Intelligencer, December 14, 1876.



Chamberlain's Pretended Inaugural Address.

Gentlemen of the Senate and House of Representatives:

I accept the office to which, by the voice of a majority of the people of this State, I have a second time been called, with a full knowledge of the grave responsibilities and difficulties by which it is now attended. No considerations, except the clearest convictions of duty, would be sufficient to induce me to accept this great trust under the circumstances which now surround us. I regard the present hour in South Carolina as a crisis at which no patriotic citizen should shrink from any post to which public duty may call him. In my sober judgment our present struggle is in defence of the foundations of our government and institutions. If we fail now, our government—the government of South Carolina—will no longer rest on the consent of the governed, expressed by a free vote of a majority of our people. If our opponents triumph—I care not under what guise of legal forms—we shall witness the overthrow of free government in our State.

My chief personal anxiety, is that I may have the firmness and wisdom to act in a manner worthy of the great interests so largely committed to my keeping. My chief public care shall be to contribute my utmost efforts to defend the rights, to guard the peace and to promote the welfare of all the people of our State.

The constant occupation of my time with other duties which I could not postpone, has prevented me from preparing the usual statements and recommendations respecting our public affairs. At the earliest practicable day I will discharge this duty. Our greatest interest, our most commanding duty now, is to stand firmly, each in his appointed place, against the aggressions and allurements of our political opponents. Our position up to the present time, has been within the clear limits of our constitution and laws. Nothing but the cowardice or weakness or treachery of our own friends, can rob us of the victory. I state what facts show, what overwhelming evidence proves, when I say that if we yield now, we shall witness the consummation of a deliberate and cruel conspiracy on the part of the Democratic party of this State to overcome by brute force the political will of a majority of twenty thousand of the lawful voters of this State.

I have mourned over public abuses which have heretofore arisen here. I have, according to the measure of my ability, labored to make the conduct of

"Chamberlain's Pretended Inaugural Address," same page.

Chicago Citations

Bibliography entry:

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PRIMARY SOURCE P15.95

The Same Snap—"Reform" Slavery

Thomas Nast · Harper's Weekly, December 30, 1876

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast warns that Democratic "reform" means the return of slaveholders' power.
TREATMENT	Public-domain image

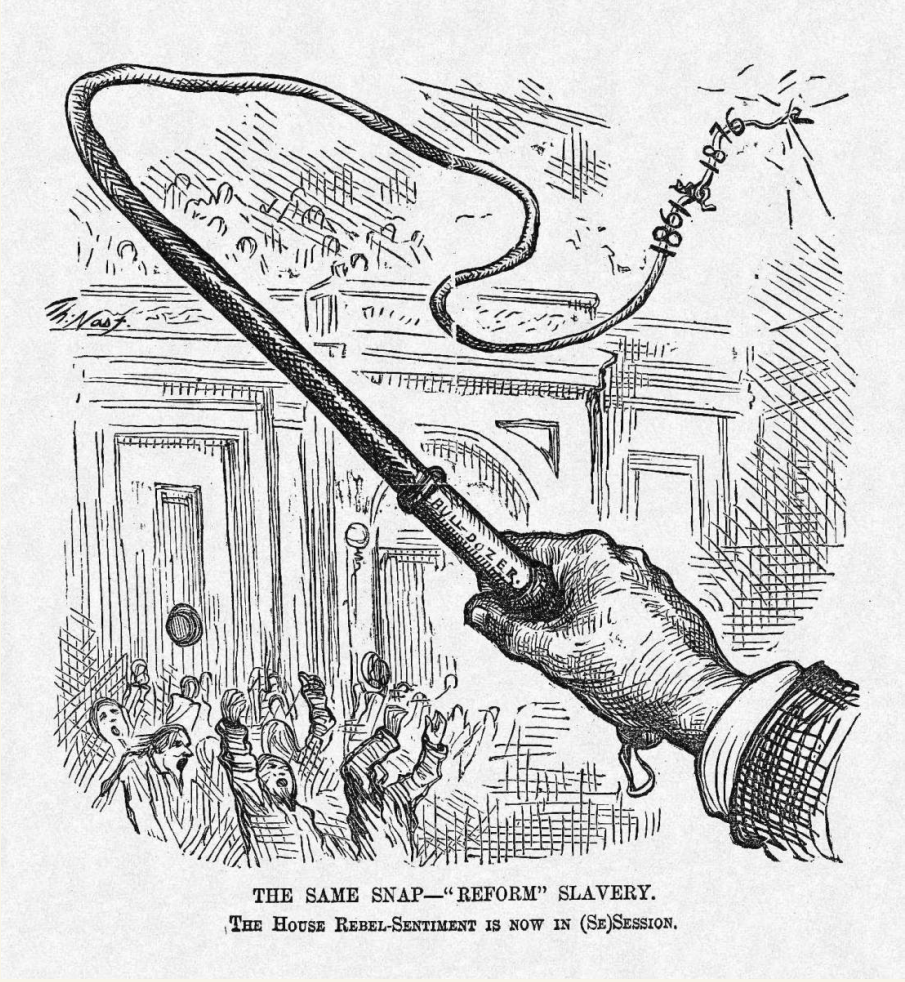
Historical Context

As the electoral dispute dragged on, Republicans warned that a Democratic victory would bring former Confederates back to power in Washington.

Nast draws a slave driver's whip labeled with dates from the slavery era to the present, cracking over a cheering crowd; the caption says the House is now in "(Se)Session."

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image



Thomas Nast, "The Same Snap—'Reform' Slavery," Harper's Weekly, December 30, 1876.

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PRIMARY SOURCE P15.96

"Hayes and Hampton," "South Carolina's Memorial," and the Newberry Resolutions

Newberry Herald (Newberry, S.C.) · January 10, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Reports of Hayes's assurances to a Hampton emissary appear beside white Democrats' defiance of federal power.
TREATMENT	Facsimile of newspaper columns

Historical Context

Thomas J. Mackey, a South Carolina judge and Republican who backed Hampton, visited Hayes in Ohio in December 1876 carrying a letter from Hampton. His account of the interview circulated widely.

The same page reported the memorial Hampton's government sent to Congress against the use of federal troops, and resolutions of a Newberry meeting recognizing Hampton as governor and Tilden as president-elect.

Editorial note: Facsimile of the newspaper page supplied by the instructor, cropped to the named article; the columns are set side by side to fit the page. Read down each column, then across. The paper spoke for white Democrats.

Document Facsimile

Hayes and Hampton.

Interview with Judge Mackey.

In an interview with Judge Mackey at Cincinnati, Ohio, by a reporter of the *Enquirer*. Judge Mackey said of affairs in South Carolina:

It is a struggle there between the white civilization of the nineteenth century and the barbarism of Africa augmented by the villainy of the carpet-baggers. The people of the North have hardly the faintest idea of the desperate struggle that the decent people of South Carolina, without regard to party, made to shake off the reign of Chamberlain and his thieving crew. To effect this object they were willing to sink even the success of the national Democratic ticket. Indeed so far was this idea carried that last September Judge Mackey advised the Democrats to withdraw their electoral ticket and concentrate their efforts on Hampton. The Democrats disregarded the advice. Judge Mackey also mapped out the course that Grant would pursue in the matter, and predicted that unless his advice was taken Federal soldiers would patrol the corridors of the State House in Columbia. "Our cup of misery was full when Corporal O'Flaherty, of Company I 18th United States Infantry, at the door of the State House, reviewed the decision of our Supreme Court."

"What was the direct object of your visit to Governor Hayes?" said the reporter.

The Judge paced the floor a moment or two in reflection, and then said: That Governor Hayes, who must have to decide as President of the United States questions vitally affecting the interests of South Carolina, in view of the conflicting governments there established, might know the situation from a Republican who had supported him with great ardor, and had addressed in his advocacy over one hundred Democratic meetings during the late canvass in South Carolina. Governor Hayes received me very kindly, he continued, and expressed the warmest interest in our condition in South Carolina. He also expressed warm admiration for the character and course of Governor Hampton, and trusted that he would maintain his peaceful attitude until the question as to which is the lawful government was authoritatively decided, which he hoped would be done in a peaceful manner. He stated that it was highly gratifying to him to perceive in the speech of General Hampton in the recent canvass most positive and explicit pledges that no attempt to abridge any of the legal rights of colored citizens of the State should ever be made with his sanction, but that if elected he would be the Governor of the whole people.

Governor Hayes also felt gratified at having read General Hampton's speech at Darlington, in October last where he declares that while he should cast his individual vote for Tilden as a citizen illustrious for his civic virtues and in his judgment pre-eminently fitted for the chief magistracy of this great republic, he cheerfully accorded to Governor Hayes all of the capacity and patriotic worth attributed to him by his most ardent supporters. Governor Hayes also stated that it would be improper for him to express any opinion as to which is the lawful government in South Carolina.

Judge Mackey then informed Governor Hayes that he had been carefully admonished by Governor Hampton, on parting with him at Columbia, S. C., to make no remark which should be open to the interpretation of any proposition looking to his (Hampton's) advocacy of the policy of declaring Governor Hayes to be elected President of the United States or of exacting of Governor Hayes any pledges to be fulfilled in that event. Judge Mackey also said that it would be an act of high disrespect to make any such suggestions, but he told Governor Hayes that Governor Hampton had frequently said that should Governor Hayes be seated in the Presidential chair he was willing to trust the cause of South Carolina to his just judgment and sense of public duty upon the evidence. Governor Hayes observed that he was not surprised at the liberal political views expressed by Hampton in his canvass, for he knew him to be in advance of other Southern leaders since the war upon the vital political issue of maintaining the right of citizen conferred upon the colored man by the fifteenth amendment. He said that he had occasion to refer to Hampton's advanced views on the subject in a speech which he (Hayes) delivered at Lebanon, Ohio.

Governor Hayes gave it as his opinion that there would be no armed conflict, whether he or Mr. Tilden was declared President of the United States. He thought that all suggestion looking to the determination of the Presidential issue by the sword would encounter the emphatic condemnation of the thinking men and leaders of both political parties. The Governor expressed his surprise that he should have been represented in many Southern papers during the canvass as being especially hostile to the people of the South, and as having advocated a harsh policy toward them since the war, and in proof of the contrary he instanced an extract from a letter written by him from Charlestown, West Virginia, in July of 1864, while there with his command.

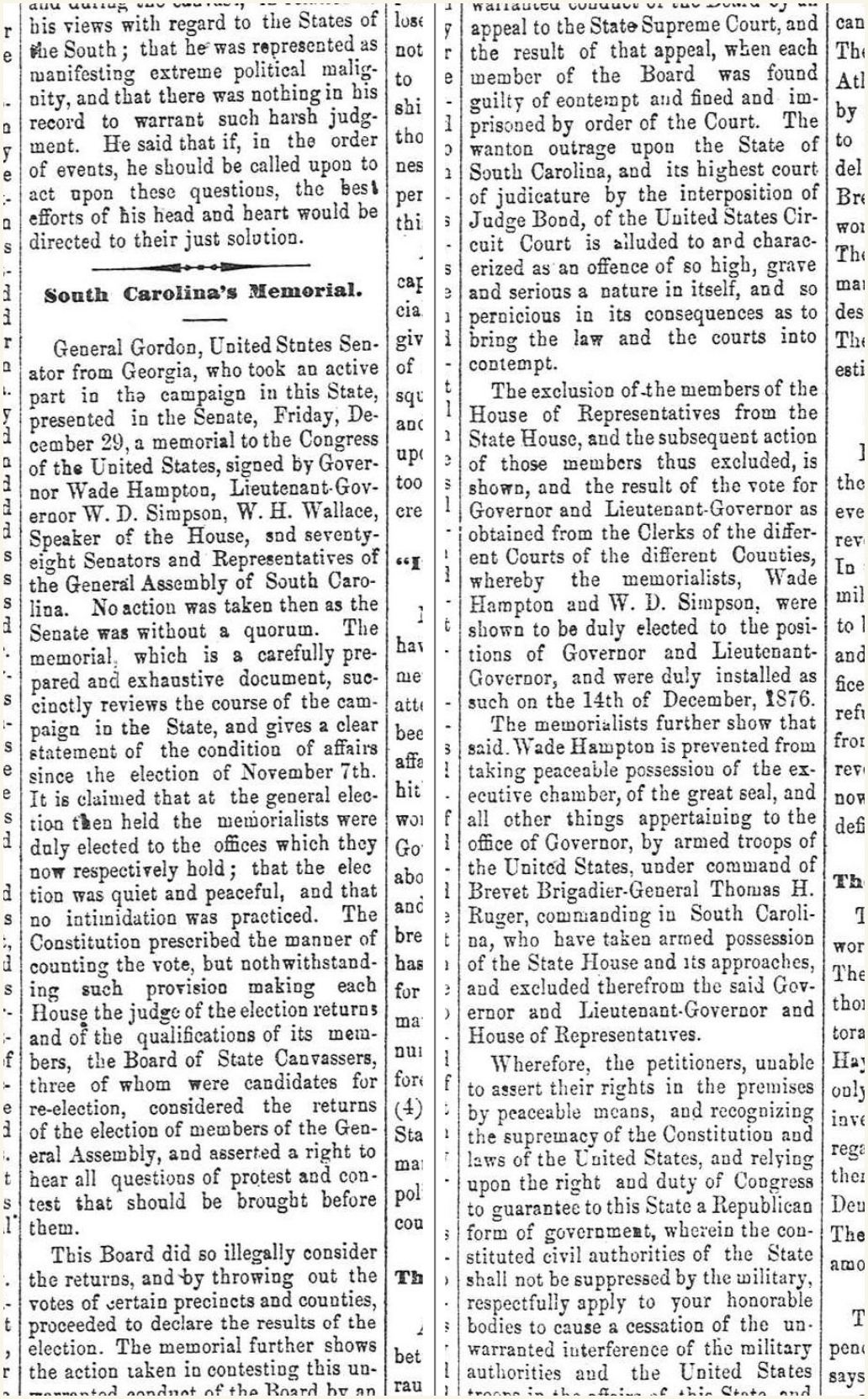
Judge Mackey, at the close of his interview with Governor Hayes, assured him that his visit to Ohio would enable him to inform his fellow-citizens of South Carolina of his race that his advent to the Presidency would bring no calamity to them, and that if he became President he would kindly entreat and gently rule them and so act as to strengthen their loyalty to the Union by an administration which, while sacredly guarding the rights of the humblest negro, will also be beneficent to the white people of the State, and would not foster governmental misrule or debauch the sanctity of any public trust; to all of which Governor Hayes smiled his assent. Judge Mackey asserts that, as a Republican, he knows that Hampton and his associates are ready to submit their cause to the judgments of the brave men to whom they surrendered at Appomattox Court House whatever may be their political faith.

When I presented Governor Hampton's letter to Governor Hayes, said Judge Mackey, he expressed his high gratification at the respectful consideration which it indicated on the part of Governor Hampton, (the letter contained the inaugural address,) and especially commended the tone of the letter as timely, in view of the belligerent utterances of some Democratic leaders of the North. Governor Hayes stated that he recognized in Governor Hampton a most potent leader in the Southern belt of States, in his relation to that element of the population recently arrayed in arms against the government, and said his influence in favor of peace would have weight in both sections.

Governor Hayes thought that a lamentable state of affairs had existed in South Carolina, but was satisfied that Governor Hampton's past course would insure a peaceful solution of the difficulties.

The Governor said that he had been subjected to gross misrepresentation, recently, by the partisan press, and during the canvass, in relation to his views with regard to the States of

"Hayes and Hampton: Interview with Judge Mackey," Newberry Herald, January 10, 1877.



his views with regard to the States of the South; that he was represented as manifesting extreme political malignity, and that there was nothing in his record to warrant such harsh judgment. He said that if, in the order of events, he should be called upon to act upon these questions, the best efforts of his head and heart would be directed to their just solution.

South Carolina's Memorial.

General Gordon, United Stntes Senator from Georgia, who took an active part in the campaign in this State, presented in the Senate, Friday, December 29, a memorial to the Congress of the United States, signed by Governor Wade Hampton, Lieutenant-Governor W. D. Simpson, W. H. Wallace, Speaker of the House, snd seventy-eight Senators and Representatives of the General Assembly of South Carolina. No action was taken then as the Senate was without a quorum. The memorial, which is a carefully prepared and exhaustive document, succinctly reviews the course of the campaign in the State, and gives a clear statement of the condition of affairs since the election of November 7th. It is claimed that at the general election then held the memorialists were duly elected to the offices which they now respectively hold; that the elec tion was quiet and peaceful, and that no intimidation was practiced. The Constitution prescribed the manner of counting the vote, but nothwithstanding such provision making each House the judge of the election returns and of the qualifications of its members, the Board of State Canvassers, three of whom were candidates for re-election, considered the returns of the election of members of the General Assembly, and asserted a right to hear all questions of protest and contest that should be brought before them.

This Board did so illegally consider the returns, and by throwing out the votes of certain precincts and counties, proceeded to declare the results of the election. The memorial further shows the action taken in contesting this unwarranted conduct of the Board by an appeal to the State Supreme Court, and the result of that appeal, when each member of the Board was found guilty of contempt and fined and imprisoned by order of the Court. The wanton outrage upon the State of South Carolina, and its highest court of judicature by the interposition of Judge Bond, of the United States Circuit Court is alluded to and characerized as an offence of so high, grave and serious a nature in itself, and so pernicious in its consequences as to bring the law and the courts into contempt.

The exclusion of the members of the House of Representatives from the State House, and the subsequent action of those members thus excluded, is shown, and the result of the vote for Governor and Lieutenant-Governor as obtained from the Clerks of the different Courts of the different Counties, whereby the memorialists, Wade Hampton and W. D. Simpson, were shown to be duly elected to the positions of Governor and Lieutenant-Governor, and were duly installed as such on the 14th of December, 1876.

The memorialists further show that said Wade Hampton is prevented from taking peaceable possession of the executive chamber, of the great seal, and all other things appertaining to the office of Governor, by armed troops of the United States, under command of Brevet Brigadier-General Thomas H. Ruger, commanding in South Carolina, who have taken armed possession of the State House and its approaches, and excluded therefrom the said Governor and Lieutenant-Governor and House of Representatives.

Wherefore, the petitioners, unable to assert their rights in the premises by peaceable means, and recognizing the supremacy of the Constitution and laws of the United States, and relying upon the right and duty of Congress to guarantee to this State a Republican form of government, wherein the constituted civil authorities of the State shall not be suppressed by the military, respectfully apply to your honorable bodies to cause a cessation of the unwarranted interference of the military authorities and the United States

"South Carolina's Memorial," same page.

NEWBERRY. S. C.,
Jan. 8th, 1877.

The citizens of Newberry met in the Court House. Col. Suber was called to the Chair, and E. P. Chalmers requested to act as Secretary. Col. Suber then stated the object of the meeting. O. L. Schumpert moved that a committee of twelve be appointed to draft Resolutions—adopted. The following were appointed a committee, viz: O. L. Schumpert, S. Pope, J. M. Baxter, G. G. Dewalt, Dr. Cannon, J. B. Smith, J. R. Spearman, Jos. D. Boston, H. B. Scott, Dr. R. C. Carlisle, A. J. Kilgore, Jacob Singley.

While the committee were preparing their report, Moorman and Johnstone were called upon for speeches, and they responded in short but able addresses.

The committee reported as follows:

The committee beg leave to report that they fully endorse the Preamble and Resolutions adopted at a meeting of the Conservative citizens of the city of Charleston held on the 21st day of December, A. D. 1876, and recommend them for the adoption of this meeting.

Adopted unanimously.

"*Resolved*, That the Conservative citizens of Newberry, Democrats and Republicans, do recognize Wade Hampton, and none other, as the lawful Governor of South Carolina. To him alone will they yield, as Governor, obedience and support, and to *him they pledge such aid and assistance, moral, financial and material, as may be required for the establishment and maintenance of the Constitutional Government of which he is the head.*

"*Resolved*, That we recognize W. D. Simpson, and none other, as the lawful Lieutenant-Governor of South Carolina; and that we recognize the House of which the Hon. W. H. Wallace is Speaker as the 'legally constituted House of Representatives of South Carolina.'

"*Resolved*, That D. H. Chamberlain, having been defeated at the polls as a candidate for re-election, and placed in office, upon the declaration of an illegal General Assembly, by the unwarrantable use of military force, is regarded by us as an usurper, and we here avow our unchangeable position, never to recognize him as Governor, and our inflexible determination to repudiate his every act, and every act of the pretended Lieutenant-Governor, and every act of the pretended General Assembly, as being without authority of law, null and void.

"*Resolved*, That while we, by these resolutions, assert our right and determination to be governed only by the officers whom the majority of the people have chosen, and while we are fixed in the purpose to oppose to the uttermost the efforts of D. H. Chamberlain and his associates to usurp the functions of government in this State, we expressly disclaim any intent to resist the execution of the processes of the United States Courts, however harsh they may seem, or to resist, under any circumstances, the military force of the United States.

"*Resolved*, That the pretended government of which D. H. Chamberlain is the head, has no power, force or authority in South Carolina save what is given to it by the continuous support and actual use of United States troops. It is the creature of political fraud and armed force. Without that armed force, it is as impotent as it is audacious and unlawful."

S. Pope offerred the following resolution—adopted:

Resolved, That we recognize Samuel J. Tilden and Thomas A. Hendricks, as having been legally elected President and Vice-President of the United States for the term of four years from the 4th day of March, A. D. 1877.

Thomas S. Moorman offered the following resolution—adopted:

Resolved, That this meeting heartily and fully endorses as true in fact and spirit the memorial of Wade Hampton, W. D. Simpson, W. H. Wallace and sixty-five members of the House of Representatives and thirteen members of the Senate of South Carolina, recently presented to Congress by Senator Gordon, and earnestly join in its application for such relief from "the unwarranted interference of the military authorities and the United States troops in the affairs of the State" and "from the unwarranted conduct of the United States authorities" therein set forth, as will secure the peaceful administration of the State affairs by the Hampton Government.

The Newberry HERALD, *Journal of Commerce*, *News and Courier* and *Register*, were requested to publish the proceedings.

C. H. SUBER, President.

E. P. CHALMERS, Secretary.

Proceedings of the Newberry meeting, January 8, 1877, same page.

Chicago Citations

Bibliography entry:

"Hayes and Hampton: Interview with Judge Mackey," "South Carolina's Memorial," and proceedings of a Newberry meeting. *Newberry Herald* (Newberry, SC), January 10, 1877, 2.

Footnote citation:

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Shortened citation:

"Hayes and Hampton."

PRIMARY SOURCE P15.97

A "Mexican" Scarecrow

Thomas Nast · Harper's Weekly, January 13, 1877

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast mocks Democratic threats of force as an empty "Mexican" scarecrow.
TREATMENT	Public-domain image

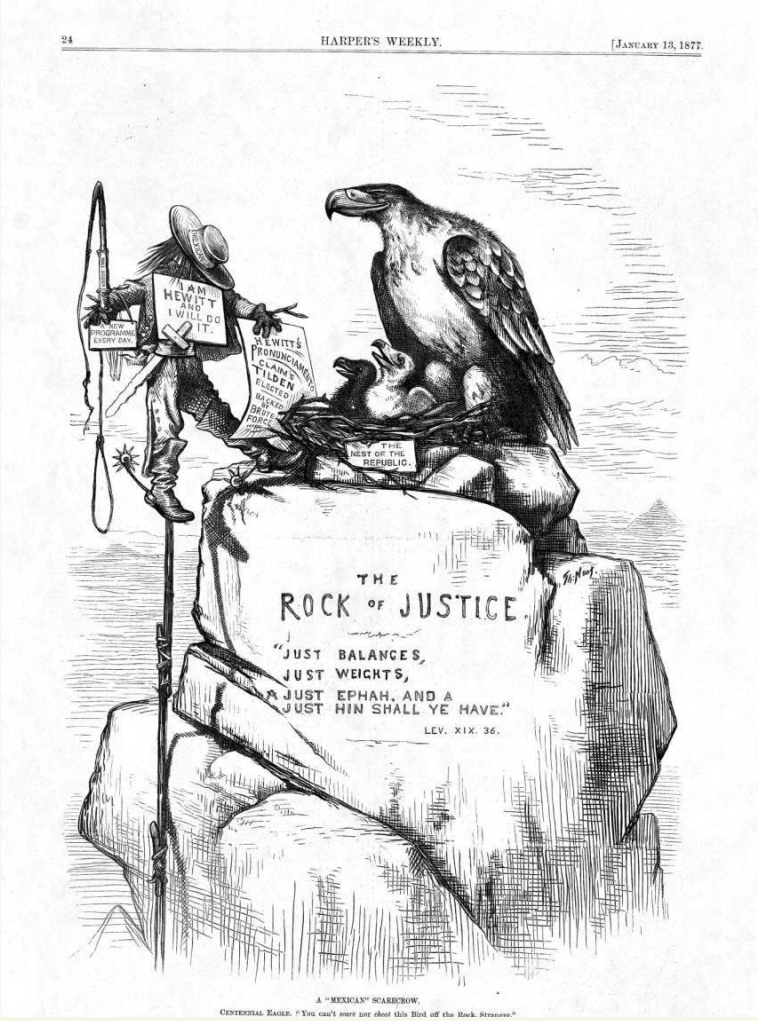
Historical Context

Some Democrats threatened that Tilden would be inaugurated by force if necessary, and Republicans compared them to the revolutionaries who regularly overturned Mexican governments.

Nast shows the American eagle on the "Rock of Justice," unmoved by a ragged Democratic scarecrow.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image



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PRIMARY SOURCE P15.98

Justice Brings Peace

Thomas Nast · Harper's Weekly, January 13, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast portrays a lawful settlement of the election as the path to peace.
TREATMENT	Public-domain image

Historical Context

As Congress worked toward an Electoral Commission, Nast placed this allegory on the cover of *Harper's Weekly*.

Justice, holding a sword and a child, stands with the Capitol behind her, while a defeated figure of war crouches in shadow.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

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PRIMARY SOURCE P15.99

Report of the Joint Committees on Counting the Electoral Vote

Joint Senate and House Committees · Harper's Weekly, February 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	The committees present the commission as a lawful institutional settlement, not a party bargain.
TREATMENT	Public-domain text, complete report

Historical Context

In December 1876 each house of Congress appointed a committee to devise a way to count the disputed electoral votes. Meeting jointly, the committees agreed on a bill to create an Electoral Commission.

Their report, signed by Republicans and Democrats alike, defended the plan as constitutional and fair and urged speedy passage to end the uncertainty.

Editorial note: The text is the HarpWeek transcription of the report as printed in *Harper's Weekly*, supplied by the instructor; misspellings of two committee members' names ("Speinger" for Springer, "M'Crarey" for McCrary) are reproduced as transcribed.

Document Text

The following is the report of the committees of the two Houses upon a method of counting the Presidential vote. The subject is so important that we print it in full:

"We have applied the utmost practicable study and deliberation to the subject, and believe that the bill now reported is the best attainable disposition of the different problems and disputed theories arising out of the late election. It must be obvious to every person conversant with the history of the country and with the formation and interpretation of the Constitution, that wide diversity of views and opinions touching the subject, not wholly coincident with the biased wishes of the members of political parties, would naturally exist. We have in this state of affairs chosen, therefore, not to deal with abstract questions save so far as they are necessarily involved in the legislation proposed. It is, of course, plain that the report of the bill implies that in our opinion legislation may be had on the subject in accordance with the Constitution; but we think that the law proposed is inconsistent with a few of the principal theories upon the subject. The Constitution requires that the electoral votes shall be counted upon a particular occasion. All will agree that the votes named in the Constitution are the constitutional votes of the States and no other, and when they have been found and identified, there is nothing left to be disputed or decided. All the rest is the mere clerical work of summing up the numbers, which being done, the Constitution itself declares the consequences. This bill, then, is only directed to ascertaining, for the purpose and in aid of the counting, what are the constitutional votes of the respective States; and whatever jurisdiction exists for such purposes, the bill only regulates the method of exercising it.

"The Constitution, our great instrument and security for liberty and order, speaks in the amplest language for all such cases in whatever aspect they may be presented. It declares that the Congress shall have power 'to make all laws which shall be necessary and proper for carrying into execution the foregoing powers and all other powers vested by the Constitution in the government of the United States, or any department or officer thereof.'

"The committee, therefore, think that the law proposed can not be justly assailed as unconstitutional by any one. For this reason we think it unnecessary, whatever may be our own individual views, to discuss any of the theories referred to. Our fidelity to the Constitution is observed when we find that the law we recommend is consistent with

that instrument. The matter, then, being a proper subject for legislation, the fitness of the means proposed becomes the next subject of consideration. Upon this we beg leave to submit a few brief observations. In all just governments, both public and private rights must be defined and determined by the law. This is essential to the very idea of such a government, and is the characteristic distinction between free and despotic systems. However important it may be whether one citizen or another shall be the Chief Magistrate for a period prescribed, upon just theories of civil institutions it is of far greater moment that the will of the people lawfully expressed in the choice of that officer shall be ascertained and carried into effect in a lawful way. It is true that in every operation of a government of laws, from the most trivial to the most important, there will always be the possibility that the result reached will not be the true one. The executive officer may not wisely perform his duty, the courts may not truly declare the law, and the legislative body may not enact the best laws. But in either case to resist the act of the Executive, the courts, or the Legislature, acting constitutionally and lawfully within their sphere, would be to set up anarchy in the place of government. We think, then, that to provide a clear and lawful means of performing a great and necessary function of government in a time of such public dispute is of far greater importance than the particular advantage that any man or party may in the course of events possibly obtain. But we have still endeavored to provide such lawful agencies of decision in the present case as shall be the most fair and impartial possible under the circumstances. Each of the branches of the Legislature and the Judiciary are represented in the tribunal in equal proportions. The composition of the judicial part of the commission looks to a selection from different parts of the republic, while it is thought to be free from any preponderance of supposable bias, and the addition of the necessary constituent part of the whole commission in order to obtain an uneven number is left to an agency the farthest removed from prejudice of any existing attainable one. It would be difficult, if not impossible, we think, to establish a tribunal that could be less the subject of party criticism than such a one. The principle of its constitution is so absolutely fair that we are unable to perceive how the most extreme partisan can assail it, unless he wishes to embark upon the stormy sea of unregulated procedure, hot disputes, and dangerous results that can neither be measured nor defined, rather than upon the fixed and regular course of law that insures peace and the order of society, whatever party may be disappointed in its hopes.

"The unfortunate circumstance that no provision had been made on the subject before the election has greatly added to the difficulty in dealing with it, inasmuch as many of the people of the country, members of the respective political parties, will, perhaps, look with jealousy upon any measure that seems to involve even the probability of the defeat of their wishes, but it has led the committee to feel that their members are bound by the highest duty in such a case to let no bias or party feeling stand in the way of a just, equal, and peaceful measure for extricating the question from the embarrassments that at present surround it.

"In conclusion, we respectfully beg leave to impress upon Congress the necessity of a speedy determination upon this subject. It is impossible to estimate the material loss the country daily sustains from the existing state of uncertainty. It directly and powerfully tends to unsettle and paralyze business, to weaken public and private credit, and to create apprehensions in the minds of the people that disturb the peaceful tenor of their ways and happiness. It does far more -- it tends to bring republican institutions into discredit, and to create doubts of the success of our form of government and of the perpetuity of the republic. All considerations of interest, of patriotism, and of justice unite in demanding of the law-making power a measure that will bring peace and prosperity to the country, and show that our republican institutions are equal to any emergency. And in this connection we can not refrain from expression of our satisfaction that your committee, composed of equal numbers of opposing parties, have fortunately been able to do what has been attempted in vain heretofore -- almost unanimously agree upon a plan considered by them all to be just, wise, and efficient.

"We accordingly recommend the proposed act to the patriotic and just judgment of Congress.

George F. Edmunds,
Frederick T. Frelinghuysen,

Roscoe Conkling,
A.G. Thurman,
T. F. Bayard,
M. W. Ransom,

Senate Committee.

H. B. Payne,
Eppa Hunton,
Abram S. Hewitt,
William M. Speinger,
George W. M'Crarey,
George F. Hoar,
George Willard,

House Committee."

Chicago Citations

Bibliography entry:

"Report of the Joint Committees on Counting the Electoral Vote." *Harper's Weekly*, February 1877, 82. HarpWeek, "Finding Precedent: Hayes vs. Tilden."

Footnote citation:

"Report of the Joint Committees on Counting the Electoral Vote," *Harper's Weekly*, February 1877, 82, via HarpWeek, https://elections.harpweek.com/09ver2controversy/Settlement.asp.

Shortened citation:

"Report of the Joint Committees."

PRIMARY SOURCE P15.100

Compromise—Indeed!

Thomas Nast · Harper's Weekly, January 27, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A Republican cartoonist attacks the commission bill as surrender to Democratic threats.
TREATMENT	Public-domain image

Historical Context

As Congress debated the Electoral Commission bill in January 1877, some Democrats threatened violence with the slogan "Tilden or Blood."

Nast's cartoon attacks the proposed commission as a surrender to such threats, showing a figure with "Tilden or Blood" confronting the Republican side.

Editorial note: Image reproduced via Wikimedia Commons.

Primary Source Image

Thomas Nast, "Compromise—Indeed!" *Harper's Weekly*, January 27, 1877.

Chicago Citations

Bibliography entry:

Nast, Thomas. "Compromise—Indeed!" Wood engraving. *Harper's Weekly*, January 27, 1877. Via Wikimedia Commons.

Footnote citation:

Thomas Nast, "Compromise—Indeed!" *Harper's Weekly*, January 27, 1877.

Shortened citation:

Nast, "Compromise—Indeed!"

PRIMARY SOURCE P15.101

Act Creating an Electoral Commission (excerpt)

U.S. Congress · January 29, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	The statute shows the institutional machinery that decided the election.
TREATMENT	Public-domain text, selected sections

Historical Context

Congress passed the Electoral Count Act with support from most Democrats and many Republicans. Each party expected the commission's independent member to favor its side.

The act created a commission of five senators, five representatives, and five Supreme Court justices, whose decisions on disputed returns would stand unless both houses rejected them. When Justice David Davis declined to serve, Justice Joseph Bradley, a Republican, took the fifteenth seat.

Editorial note: The text follows the Avalon Project transcription.

Document Text

[. . .]

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the Senate and House of Representatives shall meet in the hall of the House of Representatives, at the hour of one o'clock post meridian, on the first Thursday in February, anno Domini eighteen hundred and seventy-seven; and the President of the Senate shall be their presiding officer. Two tellers shall be previously appointed on the part of the Senate, and two on the part of the House of Representatives, to whom shall be handed, as they are opened by the President of the Senate, all the certificates, and papers purporting to be certificates, of the electoral votes, which certificates and papers shall be opened, presented, and acted upon in the alphabetical order of the States, beginning with the letter A; and said tellers having then read the same in the presence and hearing of the two houses shall make a list of the votes as they shall appear from the said certificates; and the votes having been ascertained and counted as in this act provided, the result of the same shall be delivered to the President of the Senate, who shall thereupon announce the state of the vote, and the names of the persons, if any, elected, which announcement shall be deemed a sufficient declaration of the persons elected President and Vice President of the United States, and, together with a list of the votes, be entered on the journals of the two houses. Upon such reading of any such certificate or paper when there shall be only one return from a State, the President of the Senate shall call for objections, if any. Every objection shall be made in writing, and shall state clearly and concisely, and without argument, the ground thereof, and shall be signed by at least one Senator and one Member of the House of Representatives before the same shall be received. When all objections so made to any vote or paper from a State shall have been received and read, the Senate shall thereupon withdraw and such objections shall be submitted to the Senate for its decision, and the Speaker of the House of Representatives shall, in like manner, submit such objections to the House of Representatives for its decision, and no electoral vote or votes from any State from which but one return has been received shall be rejected except by the affirmative vote of the two houses. When the two houses have voted, they shall immediately again meet, and the presiding officer shall then announce the decision of the question submitted.

SECTION 2. That if more than one return, or paper purporting to be a return from a State, shall have been received by the President of the Senate, purporting to be the certificates of electoral votes given at the last preceding election for President and Vice President in such State (unless they shall be duplicates of the same return,) all such returns and papers shall be opened by him in the presence of the two houses when met as aforesaid, and read by the tellers, and all such returns and papers shall thereupon be submitted to the judgment and decision as to which is the true and lawful electoral vote of such State, of a commission constituted as follows, namely: During the session of each house on the Tuesday next preceding the first Thursday in February, eighteen hundred and seventy-seven each house shall, by viva voce vote, appoint five of its members who with the five associate justices of the Supreme Court of the United States, to be ascertained as hereinafter provided, shall constitute a commission for the decision of all questions upon or in respect of such double returns named in this section. On the Tuesday next preceding the first Thursday in February, anno Domini eighteen hundred and seventy-seven, or as soon thereafter as may, be, the associate justices of the Supreme Court of the United States now assigned to the first, third, eighth, and ninth circuits shall select, in such manner as a majority of them shall deem fit, another of the associate justices of said court, which five persons shall be members of said commission, and the person longest in commission of said five justices shall be the president of said commission. The members of said commission shall respectively take and subscribe the following oath: "I,_____ _____ , do solemnly swear (or affirm, as the case may be) that I will impartially examine and consider all questions submitted to the commission of which I am a member, and a true judgment give thereon, agreeably to the Constitution and the laws: so help me God," which oath shall be filed with the Secretary of the Senate. When the commission shall have been thus organized, it shall not be in the power of either house to dissolve the same, or to withdraw any of its members; but if any such Senator or member shall die or become physically unable to perform the duties required by this act, the fact of such death or physical inability shall be by said commission, before it shall proceed further, communicated to the Senate or House of Representatives, as the case may be, which body shall immediately and without debate proceed by viva voce vote to fill the place so vacated, and the person so appointed shall take and subscribe the oath hereinbefore prescribed, and become a member of said commission, and, in like manner, if any of said justices of the Supreme Court shall die or become physically incapable of performing the duties required by this act, the other of said justices, members of the said commission, shall immediately appoint another justice of said court a member of said commission and, in such appointments, regard shall be had to the impartiality and freedom from bias sought by the original appointments to said commission, who shall thereupon immediately take and subscribe the oath hereinbefore prescribed, and become a member of said commission to fill the vacancy so occasioned. All the certificates and papers purporting to be certificates of the electoral votes of each State shall be opened, in the alphabetical order of the States as provided in section one of this act; and when there shall be more than cue such certificate or paper, as the certificate and papers from such State shall so be opened, (excepting duplicates of the same return,) they shall be read by the tellers, and thereupon the President of the Senate shall call for objections, if any. Every objection shall be made in writing, and shall state clearly and concisely, and without argument, the ground thereof, and shall be signed by at least one Senator and one member of the House of Representatives before the same shall be received. When all such objections so made to any certificate, vote, or paper from a State shall have been received and read, all such certificates, votes, and papers so objected to, and all papers accompanying the same, together with such objections, shall be forthwith submitted to said commission, which shall proceed to consider the same, with the same powers, if any, now possessed for that purpose by the two houses acting separately or together, and, by a majority of votes, decide whether any and what votes from such State are the votes provided for by the Constitution of the United States, and how many' and what persons were duly appointed electors in such State, and, may therein take into view such petitions, depositions, and other. papers, if any, as shall, by the Constitution and now existing law, be competent and pertinent in such consideration; which decision shall he made in writing, stating briefly the ground thereof, and signed by the members of said commission agreeing therein; whereupon the two houses shall again meet, and such decision shall be read and entered in the journal of each house, and the counting of the votes shall proceed in conformity

therewith, unless, upon objection made thereto in writing by at least five Senators and five members of the House of Representatives, the two houses shall separately concur in ordering otherwise, in which case such concurrent order shall govern. No votes or papers from any other State shall be acted upon until the objections previously made to the votes or papers from any State shall have been finally disposed of.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Congress. "An Act to Provide for and Regulate the Counting of Votes for President and Vice-President, and the Decision of Questions Arising Thereon, for the Term Commencing March Fourth, A.D. 1877." January 29, 1877. *United States Statutes at Large* 19:227. Avalon Project, Yale Law School.

Footnote citation:

Electoral Count Act, January 29, 1877, sec. [number], *Statutes at Large* 19:227, via Avalon Project, https://avalon.law.yale.edu/19th_century/elect01.asp.

Shortened citation:

Electoral Count Act, sec. [number].

PRIMARY SOURCE P15.102

Special Message to the Senate on the Electoral Count Act

Ulysses S. Grant · January 29, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Grant presents the Electoral Commission as a lawful way out of a national crisis.
TREATMENT	Full public-domain text

Historical Context

Grant signed the Electoral Count Act on January 29, 1877, and sent this message explaining his approval.

He described the danger the disputed election posed and praised the act as a lawful, constitutional way to settle it that both parties could accept.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

To the Senate of the United States:

I follow the example heretofore occasionally permitted of communicating in this mode my approval of the "act to provide for and regulate the counting of votes for President and Vice-President, and the decision of questions arising thereon, for the term commencing March 4, A. D. 1877," because of my appreciation of the imminent peril to the institutions of the country from which, in my judgment, the act affords a wise and constitutional means of escape.

For the first time in the history of our country, under the Constitution as it now is, a dispute exists with regard to the result of the election of the Chief Magistrate of the nation.

It is understood that upon the disposition of disputes touching the electoral votes cast at the late election by one or more of the States depends the question whether one or the other of the candidates for the Presidency is to be the lawful Chief Magistrate. The importance of having clearly ascertained, by a procedure regulated by law, which of the two citizens has been elected, and of having the right to this high office recognized and cheerfully agreed in by all the people of the Republic, can not be overestimated, and leads me to express to Congress and to the nation my great satisfaction at the adoption of a measure that affords an orderly means of decision of a gravely exciting question.

While the history of our country in its earlier periods shows that the President of the Senate has counted the votes and declared their standing, our whole history shows that in no instance of doubt or dispute has he exercised the power of deciding, and that the two Houses of Congress have disposed of all such doubts and disputes, although in no instance hitherto have they been such that their decision could essentially have affected the result.

For the first time the Government of the United States is now brought to meet the question as one vital to the result, and this under conditions not the best calculated to produce an agreement or to induce calm feeling in the several branches of the Government or among the people of the country. In a case where, as now, the result is involved, it is the highest duty of the lawmaking power to provide in advance a constitutional, orderly, and just method of executing the Constitution in this most interesting and critical of its provisions. The doing so, far from being a compromise of right, is an enforcement of right and an execution of powers conferred by the Constitution

on Congress.

I think that this orderly method has been secured by the bill, which, appealing to the Constitution and the law as the guide in ascertaining rights, provides a means of deciding questions of single returns through the direct action of Congress, and in respect to double returns by a tribunal of inquiry, whose decisions stand unless both Houses of Congress shall concur in determining otherwise, thus securing a definite disposition of all questions of dispute, in whatever aspect they may arise. With or without this law, as all of the States have voted, and as a tie vote is impossible, it must be that one of the two candidates has been elected; and it would be deplorable to witness an irregular controversy as to which of the two should receive or which should continue to hold the office. In all periods of history controversies have arisen as to the succession or choice of the chiefs of states, and no party or citizens loving their country and its free institutions can sacrifice too much of mere feeling in preserving through the upright course of law their country from the smallest danger to its peace on such an occasion; and it can not be impressed too firmly in the hearts of all the people that true liberty and real progress can exist only through a cheerful adherence to constitutional law.

The bill purports to provide only for the settlement of questions arising from the recent elections. The fact that such questions can arise demonstrates the necessity, which I can not doubt will before long be supplied, of permanent general legislation to meet cases which have not been contemplated in the Constitution or laws of the country.

The bill may not be perfect, and its provisions may not be such as would be best applicable to all future occasions, but it is calculated to meet the present condition of the question and of the country.

The country is agitated. It needs and it desires peace and quiet and harmony between all parties and all sections. Its industries are arrested, labor unemployed, capital idle, and enterprise paralyzed by reason of the doubt and anxiety attending the uncertainty of a double claim to the Chief Magistracy of the nation. It wants to be assured that the result of the election will be accepted without resistance from the supporters of the disappointed candidate, and that its highest officer shall not hold his place with a questioned title of right. Believing that the bill will secure these ends, I give it my signature.

U. S. GRANT.

Chicago Citations

Bibliography entry:

Grant, Ulysses S. "Special Message." January 29, 1877. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Ulysses S. Grant, "Special Message," January 29, 1877, American Presidency Project, https://www.presidency.ucsb.edu/documents/special-message-1606.

Shortened citation:

Grant, special message, January 29, 1877.

PRIMARY SOURCE P15.103

The Electoral Commission in Session in the United States Supreme Court Room

Frank Leslie's Illustrated Newspaper · February 24, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	An engraving shows the formal, court-like setting in which the disputed returns were argued.
TREATMENT	Public-domain image

Historical Context

The Electoral Commission met in the Supreme Court's chamber in the Capitol from February 1 to March 2, 1877, hearing lawyers for both parties argue over the disputed returns.

This engraving shows the commissioners seated at the bench before lawyers and spectators, presenting the proceedings as a solemn, court-like process.

Editorial note: Image reproduced via Wikimedia Commons.

Primary Source Image

"The Electoral Commission in Session in the United States Supreme Court Room," *Frank Leslie's Illustrated Newspaper*, February 24, 1877.

Chicago Citations

Bibliography entry:

"The Electoral Commission in Session in the United States Supreme Court Room, February 2d." Wood engraving. *Frank Leslie's Illustrated Newspaper*, February 24, 1877. U.S. Senate Collection.

Footnote citation:

"The Electoral Commission in Session," *Frank Leslie's Illustrated Newspaper*, February 24, 1877, U.S. Senate Collection, https://www.senate.gov/art-artifacts/historical-images/prints-engravings/38_00022_002.htm.

Shortened citation:

"Electoral Commission in Session."

PRIMARY SOURCE P15.104

Proceedings of the Electoral Commission: Votes on the Florida Electors (excerpt)

U.S. Electoral Commission · February 9, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	The commission's party-line votes show partisan institutions deciding each disputed state.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

In the 1876 election Democrat Samuel Tilden won the popular vote, but the electoral votes of Florida, Louisiana, and South Carolina (and one in Oregon) were disputed, with rival sets of returns. Congress created a fifteen-member Electoral Commission of senators, representatives, and Supreme Court justices to decide.

Florida was the first disputed state. The commission voted 8 to 7, along party lines, to accept the Republican electors. The same split decided every disputed state for Hayes.

Editorial note: The text follows the Internet Archive scan of the 1877 proceedings; OCR spacing errors have been kept.

Document Text

[. . .]

Mr. Commissioner HUNTON offered the following as a substitute : That the electors named in certificate No. 2, to wit, Wilkinson Call, J. E. Yonge, Robert Bullock, and Robert B. Hilton, are the four persons who were duly appointed electors by the State of Florida on the 7th day of November, 1876, and that their votes as certified in such certificate are the votes provided for by the Constitution of the United States.

The question being on the adoption of the substitute, it was de cided in the negative :

YEAS 7

NAYS 8

Those who voted in the affirmative were : Messrs. Abbott, Bayard, Clifford, Field, Hunton, Payne, and Thurman — 7.

Those who voted in the negative were : Messrs. Bradley, Edmunds, Frelinghuysen, Garfield, Hoar, Miller, Morton, and Strong— 8.

[. . .]

Mr. Commissioner GARFIELD offered the following resolutions :

Resolved, That the four persons, to wit, Frederick C. Humphreys, Charles H. Pearce, William A. Holden, and Thomas W. Long were duly appointed electors of President and Vice-President for the State of Florida, and that the votes cast by the aforesaid four persons are the votes provided for by the Constitution of the United States.

[. . .]

The question being on the adoption of the first resolution, it was decided in the affirmative :

YEAS 8

NAYS 7

Those who voted in the affirmative were : Messrs. Bradley, Ed munds, Frelinghuysen, Garfield, Hoar, Miller, Morton, and Strong — 8.

Those who voted in the negative were : Messrs. Abbott, Bayard, Clifford, Field, Hunton, Payne, and Thurman — 7.

[. . .]

Chicago Citations

Bibliography entry:

U.S. Electoral Commission. *Proceedings of the Electoral Commission Appointed under the Act of Congress Approved January 29, 1877*. Washington, DC: Government Printing Office, 1877. Internet Archive.

Footnote citation:

Proceedings of the Electoral Commission (Washington, DC: Government Printing Office, 1877), proceedings of February 9, 1877, https://archive.org/details/electoralcommission00presrich.

Shortened citation:

Proceedings of the Electoral Commission, February 9, 1877.

PRIMARY SOURCE P15.105

A Truce—Not a Compromise

Thomas Nast · Harper's Weekly, February 17, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A Republican cartoonist presents the Electoral Commission as a truce, not a bargain.
TREATMENT	Public-domain image

Historical Context

After the Electoral Count Act passed in January 1877, Thomas Nast pictured the arrangement in *Harper's Weekly*.

The cartoon's full title calls it "a truce—not a compromise, but a chance for high-toned gentlemen to retire gracefully from their very civil declarations of war," mocking Democrats who had threatened violence if Tilden was not seated.

Editorial note: Image reproduced from the Library of Congress (via Wikimedia Commons).

Primary Source Image

Thomas Nast, "A Truce—Not a Compromise," *Harper's Weekly*, February 17, 1877. Library of Congress.

Chicago Citations

Bibliography entry:

Nast, Thomas. "A Truce—Not a Compromise, but a Chance for High-Toned Gentlemen to Retire Gracefully from Their Very Civil Declarations of War." Wood engraving. *Harper's Weekly*, February 17, 1877. Library of Congress, LCCN 93510088.

Footnote citation:

Thomas Nast, "A Truce—Not a Compromise," *Harper's Weekly*, February 17, 1877, Library of Congress, LCCN 93510088.

Shortened citation:

Nast, "A Truce—Not a Compromise."

PRIMARY SOURCE P15.106

Ex-Judge David Davis (Now Senator) at Home

Thomas Nast · Harper's Weekly, February 17, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast marks the turn that gave Republicans an 8–7 majority on the commission.
TREATMENT	Public-domain image

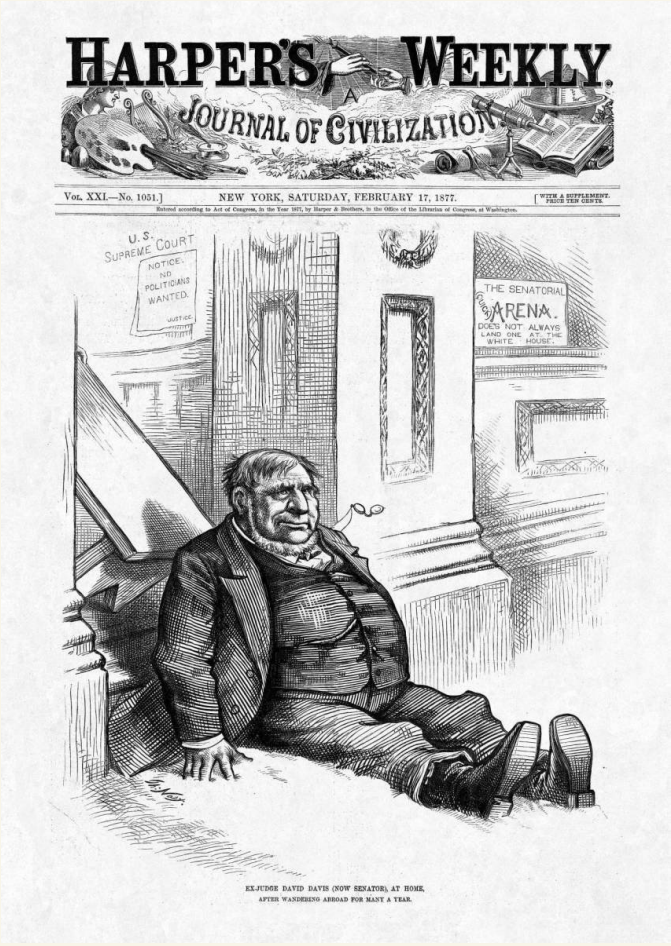
Historical Context

Supreme Court Justice David Davis of Illinois, an independent, was expected to be the fifteenth and deciding member of the Electoral Commission. Days before it was formed, the Illinois legislature elected him to the Senate, and he declined to serve.

Nast shows Davis sitting contentedly outside the Senate after "wandering abroad" between the parties. His replacement, Justice Joseph Bradley, was a Republican.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image



Thomas Nast, "Ex-Judge David Davis (Now Senator), at Home," Harper's Weekly, February 17, 1877.

Chicago Citations

Bibliography entry:

Nast, Thomas. "Ex-Judge David Davis (Now Senator) at Home" Wood engraving. *Harper's Weekly*, February 17, 1877.

Footnote citation:

Thomas Nast, "Ex-Judge David Davis (Now Senator) at Home," *Harper's Weekly*, February 17, 1877.

Shortened citation:

Nast, "Ex-Judge David Davis (Now Senator) at Home."

PRIMARY SOURCE P15.107

The Members of the Electoral Commission

Harper's Weekly (engraved from photographs by Brady) · February 17, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Portraits of the fifteen commissioners show the institution that decided the election.
TREATMENT	Public-domain image

Historical Context

The Electoral Commission had fifteen members: five senators, five representatives, and five justices of the Supreme Court. Eight were Republicans and seven Democrats.

Harper's Weekly printed engraved portraits of all fifteen, drawn from photographs by the Brady studio in Washington.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image

"The Members of the Electoral Commission," Harper's Weekly, February 17, 1877.

Chicago Citations

Bibliography entry:

"The Members of the Electoral Commission." Wood engraving from photographs by Brady. *Harper's Weekly*, February 17, 1877, 133.

Footnote citation:

"The Members of the Electoral Commission," *Harper's Weekly*, February 17, 1877, 133.

Shortened citation:

"Members of the Electoral Commission."

PRIMARY SOURCE P15.108

Washington Dispatch: The Foster-Matthews Letters

Wilmington Morning Star (North Carolina) · March 30, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Letters from Hayes's allies pledging home rule are evidence that promises were made.
TREATMENT	Public-domain text, selected excerpts (uncorrected newspaper OCR)

Historical Context

In late February 1877, as the electoral count neared its end, Representative Charles Foster and Stanley Matthews, both Ohio Republicans close to Hayes, wrote to southern Democrats John Young Brown of Kentucky and John B. Gordon of Georgia.

They pledged that Hayes would allow South Carolina and Louisiana to govern themselves. Brown published the letters in March, and newspapers across the country reprinted them as evidence of a bargain.

Editorial note: The text follows the uncorrected OCR of the newspaper page on DigitalNC. Many words are garbled (for example "in-'connecti6n"); these errors are reproduced as scanned.

Document Text

[. . .]

Washington, March 29. John Young Brown publishes the follow ing letters in-'connecti6n with a narrative of events pledging the President more strong ly than the letters themselves: House op Representatives,) F o, -v , t WASHnroTON, Feb. 26th. J Gentlemen: Referring to the conversa tion had with you yesterday, in which Gov. Hayes' policy as to the status of certain Southern States was discussed, we desire to say in leplyThat we cau assure you in the strongest possible manner of our great de sire to have adopted such a policy as will give to (he people of the States of South Carolina and Louisiana the right to control their own affairs in their own way, and to say further that we feel authorized from an acquaintance with and knowledge of Gov. Hayes and his views on this question, to pledge ourselves to you for him that such will be his policy. ' . Charles Foster. To Hon. Toha Young Brown and Hon. John B. Gordon. Washington City, Feb. 27, 1877. Gentlemen: Referring to the conversation had wirh you yesterday, in which Governor Hayes' policy as to the status of certain Southern States was discussed, we desire to say tint we can assure you in the strongest possible manner of our great desire to have him adopt such a policy as will give to the people of the States of South Carolina and Louisiana the right to control their own af fairs iu their own way, subject only to the Constitution of the United States and the laws made in pursuance thereof, and to say 1 Hi ther that from an acquaintance with and knowledge of Gov. Hayes and his views, we have the most complete confidence that such will be the policy of his administra tion. Respectfully, (Signed,) Stanley Matthews, Charles Foster. To Hon. John B. Gordon and Hon. John Young Brown.

[. . .]

Tne following letter was addressed to the President by Governor Hampton this morning: Willard's Hotel, Wadiing1on,lMarch 29th To the President Sir: Iu compliance with your invitation, I am here for the purpose of uniting my efforts with yours to the end of composing the political differences which how unhappily distract at this time the people of South Carolina. I beg you to believe that my anxiety to bring about the permanent pacification of that State, a pacification in which the rights of all shall be safe, and the interests of all shall be protected, is as

sincere as I feel assured is your own for the accomplishments of the same ends. My position for years past, in reference' to the political rights of colored citizens, and my solemn pledges given du ring the late canvass iu South Carolina, that under my administration all their rights should be absolutely secure, should furnish a sufficient guarantee of my sincer ity on these points, which appear to be the subject of special anxiety. I have the honor to ask at what hour it will be your pleasure to receive me. I am, sir, very respectfully, your obedi ent servant, Wade Hampton, Governor of South Carolina.

[. . .]

Chicago Citations

Bibliography entry:

"Washington." *Wilmington (NC) Morning Star*, March 30, 1877, 4. DigitalNC, North Carolina Newspapers.

Footnote citation:

"Washington," *Wilmington Morning Star*, March 30, 1877, 4, via DigitalNC, https://newspapers.digitalnc.org/lccn/sn84026537/1877-03-30/ed-1/seq-4/.

Shortened citation:

"Washington," *Wilmington Morning Star*, March 30, 1877.

PRIMARY SOURCE P15.109

The "Democ-Rats" Caught in the Presidential Trap

Joseph Keppler · Puck, February 28, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A rival cartoonist shows Democrats trapped by the commission they had agreed to.
TREATMENT	Public-domain image

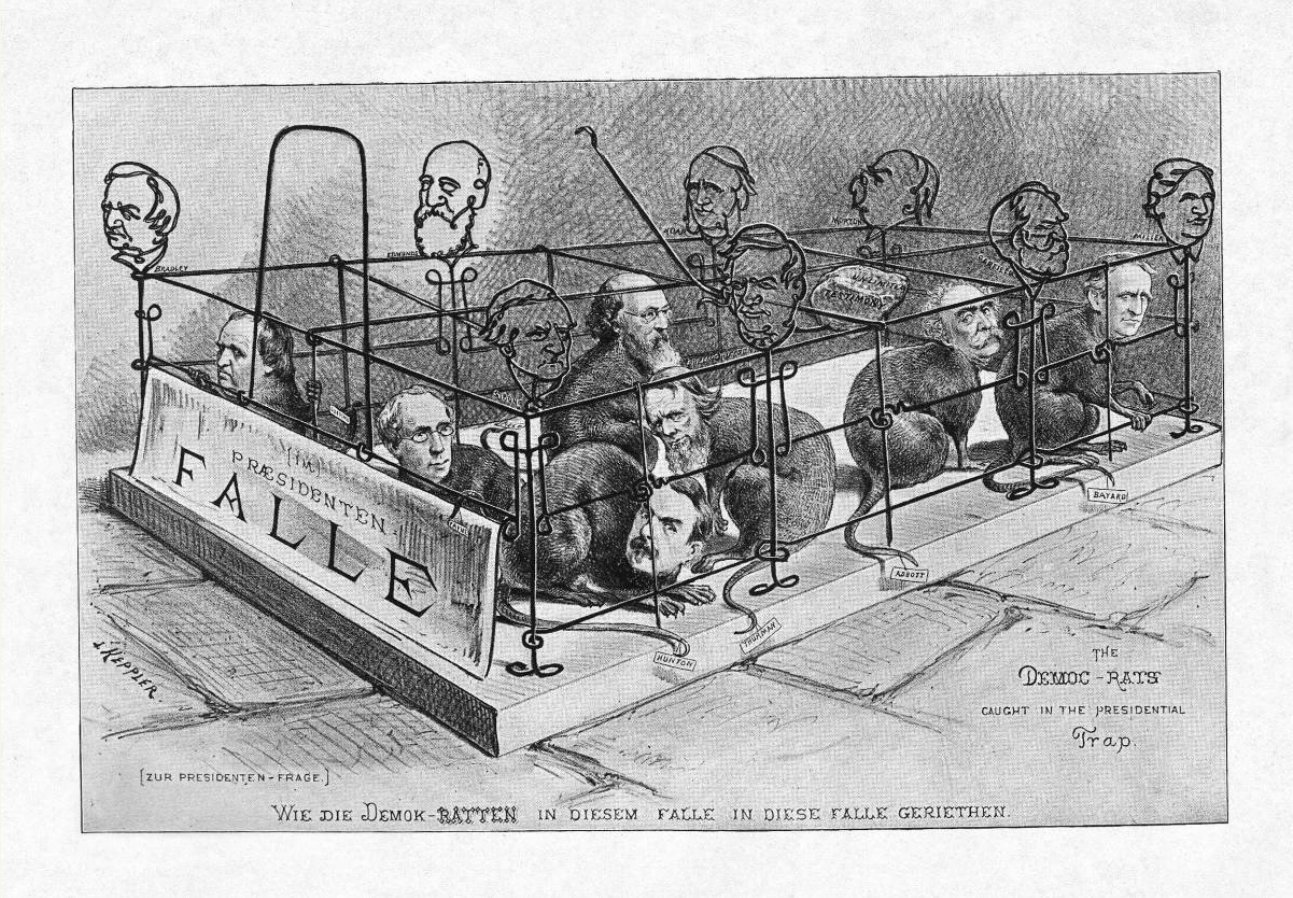
Historical Context

Joseph Keppler (1838–1894), an Austrian-born cartoonist, founded *Puck*, first in German and then in English. This cartoon appeared in the German edition, with a German caption.

Keppler shows Democratic leaders as rats caught in a trap labeled "Präsidenten-Falle" (presidential trap), the Electoral Commission they had helped create.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan). The German caption reads, roughly, "How the Democ-rats fell into this trap."

Primary Source Image



Joseph Keppler, "The 'Democ-Rats' Caught in the Presidential Trap," Puck, February 28, 1877.

Chicago Citations

Bibliography entry:

Keppler, Joseph. "Wie die Demok-Ratten in diesem Falle in diese Falle geriethen" (The "Democ-Rats" Caught in the Presidential Trap). Lithograph. *Puck* (German ed.), February 28, 1877.

Footnote citation:

Joseph Keppler, "The 'Democ-Rats' Caught in the Presidential Trap," *Puck* (German ed.), February 28, 1877.

Shortened citation:

Keppler, "Democ-Rats."

PRIMARY SOURCE P15.110

Inaugural Address (excerpt)

Rutherford B. Hayes · March 5, 1877

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Hayes announces a policy of local self-government for the South and credits the lawful tribunal for settling the dispute.
TREATMENT	Public-domain text, selected excerpts

Historical Context

Rutherford B. Hayes took the oath privately on March 3 and publicly on March 5, 1877, days after the Electoral Commission's decisions gave him every disputed electoral vote.

In his inaugural address Hayes promised to protect the rights of all citizens while restoring "local self-government" in the South. He also praised the Electoral Commission as a lawful way of settling the dispute.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

[. . .]

Many of the calamitous effects of the tremendous revolution which has passed over the Southern States still remain. The immeasurable benefits which will surely follow, sooner or later, the hearty and generous acceptance of the legitimate results of that revolution have not yet been realized. Difficult and embarrassing questions meet us at the threshold of this subject. The people of those States are still impoverished, and the inestimable blessing of wise, honest, and peaceful local self-government is not fully enjoyed. Whatever difference of opinion may exist as to the cause of this condition of things, the fact is clear that in the progress of events the time has come when such government is the imperative necessity required by all the varied interests, public and private, of those States. But it must not be forgotten that only a local government which recognizes and maintains inviolate the rights of all is a true self-government.

With respect to the two distinct races whose peculiar relations to each other have brought upon us the deplorable complications and perplexities which exist in those States, it must be a government which guards the interests of both races carefully and equally. It must be a government which submits loyally and heartily to the Constitution and the laws--the laws of the nation and the laws of the States themselves--accepting and obeying faithfully the whole Constitution as it is.

Resting upon this sure and substantial foundation, the superstructure of beneficent local governments can be built up, and not otherwise. In furtherance of such obedience to the letter and the spirit of the Constitution, and in behalf of all that its attainment implies, all so-called party interests lose their apparent importance, and party lines may well be permitted to fade into insignificance. The question we have to consider for the immediate welfare of those States of the Union is the question of government or no government; of social order and all the peaceful industries and the happiness that belongs to it, or a return to barbarism. It is a question in which every citizen of the nation is deeply interested, and with respect to which we ought not to be, in a partisan sense, either Republicans or Democrats, but fellow-citizens and fellowmen, to whom the interests of a common country and a common humanity are dear.

The sweeping revolution of the entire labor system of a large portion of our country and the advance of 4,000,000 people from a condition of servitude to that of citizenship, upon an equal footing with their former masters, could

not occur without presenting problems of the gravest moment, to be dealt with by the emancipated race, by their former masters, and by the General Government, the author of the act of emancipation. That it was a wise, just, and providential act, fraught with good for all concerned, is now generally conceded throughout the country. That a moral obligation rests upon the National Government to employ its constitutional power and influence to establish the rights of the people it has emancipated, and to protect them in the enjoyment of those rights when they are infringed or assailed, is also generally admitted.

The evils which afflict the Southern States can only be removed or remedied by the united and harmonious efforts of both races, actuated by motives of mutual sympathy and regard; and while in duty bound and fully determined to protect the rights of all by every constitutional means at the disposal of my Administration, I am sincerely anxious to use every legitimate influence in favor of honest and efficient local 'self'-government as the true resource of those States for the promotion of the contentment and prosperity of their citizens. In the effort I shall make to accomplish this purpose I ask the cordial cooperation of all who cherish an interest in the welfare of the country, trusting that party ties and the prejudice of race will be freely surrendered in behalf of the great purpose to be accomplished. In the important work of restoring the South it is not the political situation alone that merits attention. The material development of that section of the country has been arrested by the social and political revolution through which it has passed, and now needs and deserves the considerate care of the National Government within the just limits prescribed by the Constitution and wise public economy.

But at the basis of all prosperity, for that as well as for every other part of the country, lies the improvement of the intellectual and moral condition of the people. Universal suffrage should rest upon universal education. To this end, liberal and permanent provision should be made for the support of free schools by the State governments, and, if need be, supplemented by legitimate aid from national authority.

[. . .]

Chicago Citations

Bibliography entry:

Hayes, Rutherford B. "Inaugural Address." March 5, 1877. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Rutherford B. Hayes, "Inaugural Address," March 5, 1877, American Presidency Project, https://www.presidency.ucsb.edu/documents/inaugural-address-38.

Shortened citation:

Hayes, "Inaugural Address."

PRIMARY SOURCE P15.111

"Another Such Victory, and I Am Undone"—Pyrrhus

Thomas Nast · Harper's Weekly, March 24, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	Even a Republican cartoonist suggests the party's victory came at ruinous cost.
TREATMENT	Public-domain image

Historical Context

Hayes was inaugurated in March 1877, but the Republican Party emerged badly damaged, with its southern governments collapsing.

Nast draws the Republican elephant bandaged and on crutches, standing by a grave marked for the Democratic tiger, quoting the ancient king whose victory cost him his army.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image

Thomas Nast, "'Another Such Victory, and I Am Undone'—Pyrrhus," Harper's Weekly, March 24, 1877.

Chicago Citations

Bibliography entry:

Nast, Thomas. ""Another Such Victory, and I Am Undone"—Pyrrhus" Wood engraving. *Harper's Weekly*, March 24, 1877.

Footnote citation:

Thomas Nast, ""Another Such Victory, and I Am Undone"—Pyrrhus," *Harper's Weekly*, March 24, 1877.

Shortened citation:

Nast, ""Another Such Victory, and I Am Undone"—Pyrrhus."

PRIMARY SOURCE P15.112

The Times Are Ripening for a Lasting Peace

Thomas Nast · Harper's Weekly, March 31, 1877

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast welcomes Hayes's southern policy as the coming of peace.
TREATMENT	Public-domain image

Historical Context

In his first weeks Hayes signaled that he would withdraw federal support from the remaining Republican governments in South Carolina and Louisiana.

Nast shows a cherub before the Capitol breaking a sword, surrounded by abandoned weapons.

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image

Thomas Nast, "The Times Are Ripening for a Lasting Peace," Harper's Weekly, March 31, 1877.

Chicago Citations

Bibliography entry:

Nast, Thomas. "The Times Are Ripening for a Lasting Peace" Wood engraving. *Harper's Weekly*, March 31, 1877.

Footnote citation:

Thomas Nast, "The Times Are Ripening for a Lasting Peace," *Harper's Weekly*, March 31, 1877.

Shortened citation:

Nast, "The Times Are Ripening for a Lasting Peace."

PRIMARY SOURCE P15.113

Our Uncle Going to Take a Rest

Thomas Nast · Harper's Weekly, April 7, 1877

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Nast pictures a nation ready to stop attending to the South.
TREATMENT	Public-domain image

Historical Context

By April 1877 the electoral crisis was over and Hayes was preparing to withdraw troops from the southern statehouses.

Nast shows Uncle Sam in a nightcap going to bed beside signs reading "No Vacancies," "The Two Houses Closed," and "All Quiet on the Potomac," saying "The children are amused with their new Toys, and I will turn in."

Editorial note: Image from the copy supplied by the instructor (a HarpWeek scan; the HarpWeek watermark has been cropped where it appeared). Political cartoons argue a point of view.

Primary Source Image

Thomas Nast, "Our Uncle Going to Take a Rest," Harper's Weekly, April 7, 1877.

Chicago Citations

Bibliography entry:

Nast, Thomas. "Our Uncle Going to Take a Rest" Wood engraving. *Harper's Weekly*, April 7, 1877.

Footnote citation:

Thomas Nast, "Our Uncle Going to Take a Rest," *Harper's Weekly*, April 7, 1877.

Shortened citation:

Nast, "Our Uncle Going to Take a Rest."

PRIMARY SOURCE P15.114

"The Troops Removed" and "Chamberlain Abdicates"

Anderson Intelligencer (Anderson, S.C.) · April 12, 1877

TOC FIT	Chapter 15 · Essay prompt 15.5 (Was There a Compromise of 1877?)
WHY HERE	A local paper reports the end of Republican government in South Carolina right after the troops left.
TREATMENT	Facsimile of newspaper column

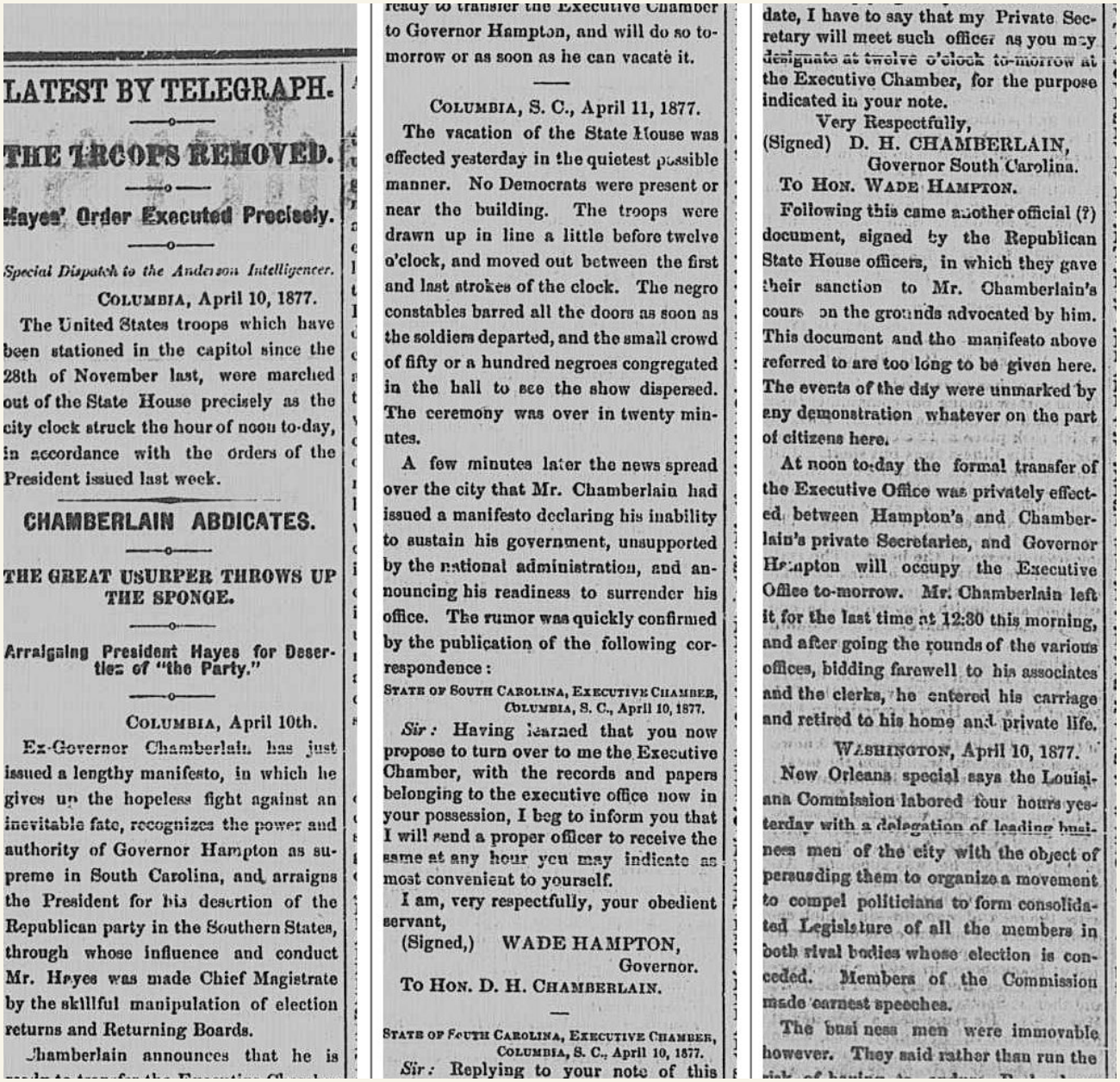
Historical Context

On April 10, 1877, on Hayes's orders, the federal troops guarding the South Carolina State House marched out at noon. Republican governor Daniel H. Chamberlain, without military support, gave up his claim, and Democrat Wade Hampton took control of the executive office.

The *Intelligencer*, a Democratic weekly, printed telegraph dispatches on the withdrawal, Chamberlain's surrender, and the notes between the two governors.

Editorial note: Facsimile of the newspaper page supplied by the instructor, cropped to the named article; the columns are set side by side to fit the page. Read down each column, then across. The paper was openly hostile to Chamberlain.

Document Facsimile



LATEST BY TELEGRAPH.

THE TROOPS REMOVED.

Hayes' Order Executed Precisely.

Special Dispatch to the Anderson Intelligencer.

COLUMBIA, April 10, 1877.

The United States troops which have been stationed in the capitol since the 28th of November last, were marched out of the State House precisely as the city clock struck the hour of noon to-day, in accordance with the orders of the President issued last week.

CHAMBERLAIN ABDICATES.

THE GREAT USURPER THROWS UP THE SPONGE.

Arraigning President Hayes for Desertion of "the Party."

COLUMBIA, April 10th.

Ex-Governor Chamberlain has just issued a lengthy manifesto, in which he gives up the hopeless fight against an inevitable fate, recognizes the power and authority of Governor Hampton as supreme in South Carolina, and arraigns the President for his desertion of the Republican party in the Southern States, through whose influence and conduct Mr. Hayes was made Chief Magistrate by the skillful manipulation of election returns and Returning Boards.

Chamberlain announces that he is ready to transfer the Executive Chamber to Governor Hampton, and will do so to-morrow or as soon as he can vacate it.

COLUMBIA, S. C., April 11, 1877.

The vacation of the State House was effected yesterday in the quietest possible manner. No Democrats were present or near the building. The troops were drawn up in line a little before twelve o'clock, and moved out between the first and last strokes of the clock. The negro constables barred all the doors as soon as the soldiers departed, and the small crowd of fifty or a hundred negroes congregated in the hall to see the show dispersed. The ceremony was over in twenty minutes.

A few minutes later the news spread over the city that Mr. Chamberlain had issued a manifesto declaring his inability to sustain his government, unsupported by the national administration, and announcing his readiness to surrender his office. The rumor was quickly confirmed by the publication of the following correspondence:

STATE OF SOUTH CAROLINA, EXECUTIVE CHAMBER, COLUMBIA, S. C., April 10, 1877.

Sir: Having learned that you now propose to turn over to me the Executive Chamber, with the records and papers belonging to the executive office now in your possession, I beg to inform you that I will send a proper officer to receive the same at any hour you may indicate as most convenient to yourself.

I am, very respectfully, your obedient servant,

(Signed,) WADE HAMPTON,
Governor.

To HON. D. H. CHAMBERLAIN.

STATE OF SOUTH CAROLINA, EXECUTIVE CHAMBER, COLUMBIA, S. C., April 10, 1877.

Sir: Replying to your note of this date, I have to say that my Private Secretary will meet such officer as you may designate at twelve o'clock to-morrow at the Executive Chamber, for the purpose indicated in your note.

Very Respectfully,

(Signed) D. H. CHAMBERLAIN,
Governor South Carolina.

To HON. WADE HAMPTON.

Following this came another official (?) document, signed by the Republican State House officers, in which they gave their sanction to Mr. Chamberlain's course on the grounds advocated by him. This document and the manifesto above referred to are too long to be given here. The events of the day were unmarked by any demonstration whatever on the part of citizens here.

At noon to-day the formal transfer of the Executive Office was privately effected between Hampton's and Chamberlain's private Secretaries, and Governor Hampton will occupy the Executive Office to-morrow. Mr. Chamberlain left it for the last time at 12:30 this morning, and after going the rounds of the various offices, bidding farewell to his associates and the clerks, he entered his carriage and retired to his home and private life.

WASHINGTON, April 10, 1877.

New Orleans special says the Louisiana Commission labored four hours yesterday with a delegation of leading business men of the city with the object of persuading them to organize a movement to compel politicians to form consolidated Legislature of all the members in both rival bodies whose election is conceded. Members of the Commission made earnest speeches.

The business men were immovable however. They said rather than run the

Anderson Intelligencer, April 12, 1877, page 2 (column).

Chicago Citations

Bibliography entry:

"Latest by Telegraph: The Troops Removed" and "Chamberlain Abdicates." *Anderson Intelligencer* (Anderson Court House, SC), April 12, 1877, 2.

Footnote citation:

"Chamberlain Abdicates," *Anderson Intelligencer*, April 12, 1877, 2.

Shortened citation:

"Chamberlain Abdicates."

PRIMARY SOURCE P15.115

Letter to Secretary of War George W. McCrary

Rutherford B. Hayes · April 20, 1877

TOC FIT	Chapter 15 · Essay prompts 15.1 (Why Did Reconstruction End?) and 15.5 (Was There a Compromise of 1877?)
WHY HERE	Hayes orders troops withdrawn on constitutional grounds, a document to test against claims of a secret bargain.
TREATMENT	Full public-domain text

Historical Context

Rutherford B. Hayes became president in March 1877 after a disputed election settled by an Electoral Commission. Two rival governments claimed power in Louisiana and in South Carolina, and federal troops near the statehouses kept the Republican governments in place.

In this letter Hayes ordered the troops near the Louisiana statehouse returned to their barracks, explaining that the dispute belonged to the state's own processes. Without federal protection, the Republican government collapsed within days.

Editorial note: The text follows the transcription at the American Presidency Project.

Document Text

Executive Mansion,
Washington, April 20, 1877.

Hon. Geo. W. McCrary,
Secretary of War,

Sir: Prior to my entering upon the duties of the Presidency there had been stationed, by order of my predecessor, in the immediate vicinity of the building used as a statehouse in New Orleans, La., and known as Mechanics' Institute, a detachment of United States infantry. Finding them in that place, I have thought proper to delay a decision of the question of their removal until I could determine whether the condition of affairs is now such as to either require or justify continued military intervention of the National Government in the affairs of the State.

In my opinion there does not now exist in Louisiana such domestic violence as is contemplated by the Constitution as the ground upon which the military power of the National Government may be invoked for the defense of the State. The disputes which exist as to the right of certain claimants to the chief executive office of that State are to be settled and determined, not by the Executive of the United States, but by such orderly and peaceable methods as may be provided by the constitution and the laws of the State.

Having the assurance that no resort to violence is contemplated, but, on the contrary, the disputes in question are to be settled by peaceful methods under and in accordance with law, I deem it proper to take action in accordance with the principles announced when I entered upon the duties of the Presidency.

You are therefore directed to see that the proper orders are issued for the removal of said troops at an early date from their present position to such regular barracks in the vicinity as may be selected for their occupation.

R. B. HAYES

Chicago Citations

Bibliography entry:

Hayes, Rutherford B. "Letter to Secretary of War George W. McCrary." April 20, 1877. American Presidency Project, edited by Gerhard Peters and John T. Woolley.

Footnote citation:

Rutherford B. Hayes to George W. McCrary, April 20, 1877, American Presidency Project, https://www.presidency.ucsb.edu/node/379125.

Shortened citation:

Hayes to McCrary, April 20, 1877.

PRIMARY SOURCE P15.116

A Georgia Plantation

David C. Barrow Jr. · Scribner's Monthly, April 1881

TOC FIT	Chapter 15 · Essay prompt 15.3 (Sharecropping: New Bondage or Compromise?)
WHY HERE	A planter's son describes the shift from gang labor to Black tenant farming with its own churches and schools.
TREATMENT	Public-domain text, complete article (from OCR transcription)

Historical Context

David C. Barrow Jr. (1852–1929), son of a large planter in Oglethorpe County, Georgia, later became chancellor of the University of Georgia. He described how his father's plantation had changed since 1860.

Under slavery the enslaved lived in quarters near the big house and worked in gangs under an overseer. By 1881 the land was divided among Black tenant families, most paying a fixed rent in cotton, who lived in scattered cabins, built their own church and school, and ran their own affairs.

Editorial note: Barrow wrote for a northern magazine audience and presents the arrangement favorably; the dialect passages are his. The text is HathiTrust's OCR as supplied by the instructor. The two plantation maps printed with the article are not reproduced. The Norton collection dates the article March 1881; it appeared in the April 1881 number.

Document Text

A GEORGIA PLANTATION.

That in many parts of the South (and notably the State of Georgia) the labor-relations of the two races are adjusting themselves and working out a solution of the dreaded "negro problem" in a practical way, has been known to all observant residents or visitors. The confident prophecies of the croakers that Southern plantations would go to waste, and that nothing but ruin lay before us, have proved the merest bosh. The enormous increase in the cotton crop of the South alone shows that the colored people, as free laborers, have done well, for it is not to be disputed that they form very nearly the same proportion of the laborers in the cotton fields that they did when they were slaves. I do not wish to be understood as stating a proportion in which free labor is to slave labor as the cotton crop since the war is to the cotton crop before the war. This is not true; the yield of cotton has been increased by other causes. But I do say that under no circumstances could worthless labor have produced the enormous increase in this crop.

In Georgia, the negro has adapted himself to his new circumstances, and freedom fits him as if it had been cut out and made for him. It is not true that the negroes have formed a restless, troublesome population, nor is it true that they are like a lot of huddled sheep, frightened at the approach of strange white men, in dread of the terrible Ku-klux. As far as I know, our philosophers have presented them in one or the other of these phases, according as the writer wished to show the dread which is felt by the country of the negro, or the terror which his surroundings inspire in him. Nothing can be further from either of these ideas than the facts of the case; and when we come to look at these, we find the solution to the whole difficulty at our very doors.

To make this plain, I shall endeavor to give some idea of the home life of our colored people as it really exists, and shall, for my purpose, take a Middle Georgia plantation, and tell what the negroes are doing on it, and how they live. I shall confine myself to the colored man as a farmer, for the reason that the mass of colored people of whom little is known are farmers.

In most cases there has been an entire change in the plan upon which our Georgia lands are worked, the change being entirely in favor of "local self-government as opposed to centralization of power." It is true that in some rare

instances large plantations are still worked under the direction of overseers, with labor hired for yearly, monthly, and daily wages, but, generally speaking, a tenant system prevails.

One of the first planters in Middle Georgia to divide his plantations into farms was Mr. Barrow, of Oglethorpe. The plantation upon which he now lives is the one which I wish to present as a fair exponent of negro tenant life in Georgia. This place contains about two thousand acres of land, and with the exception of a single acre, which Mr. Barrow has given to his tenants for church and school purposes, is the same size it was before the war. Here, however, the similarity ceases. Before the war everything on the place was under the absolute rule of an overseer (Mr. Barrow living then on another place). He it was who directed the laborers each day as to their work, and to him the owner looked for the well-being of everything on the place. Under him, and subject to his direction, the most intelligent and authoritative negroes were selected, whose duty it was to see that the overseer's orders were carried into effect. These head men, with us, were called foremen, and not drivers; in fact, though I was raised here in Georgia, my first acquaintance with the word driver, and the character which it presents in this connection, was had from one of Mayne Reid's tales. As will be seen by looking at the plot of the plantation, "as it was," all the negro houses were close together, forming "the quarter." The house in which the overseer lived was close to the quarter, lying between the quarter and the stables. This was always distinguished as "the house," and I have so marked it on the plot. It will appear that this arrangement of the buildings was the best that could be made, giving, as it did, the overseer the best opportunity for overlooking the property under his control. This has all been so changed that the place would now hardly be recognized by one who had not seen it during the past sixteen years.

The transformation has been so gradual that almost imperceptibly a radical change has been effected. For several years after the war, the force on the plantation was divided into two squads, the arrangement and method of working of each being about the same as they had always been used to. Each of these squads was under the control of a foreman, who was in the nature of a general of volunteers. The plantation was divided into two equal parts, and by offering a reward for the most successful planting, and thus exciting a spirit of emulation, good work was done, and the yield was about as great as it had ever been. Then, too, the laborers were paid a portion of the crop as their wages, which did much toward making them feel interested in it. There was no overseer, in the old sense of the word, and in his place a young man lived on the plantation, who kept the accounts and exercised a protecting influence over his employer's property, but was not expected to direct the hands in their work. The negroes used to call him "supertender," in order to express their sense of the change.

This was the first change made, and for several years it produced good results. After a while, however, even the liberal control of the foremen grew irksome, each man feeling the very natural desire to be his own "boss," and to farm to himself. As a consequence of this feeling, the two squads split up into smaller and then still smaller squads, still working for part of the crop, and using the owner's teams, until this method of farming came to involve great trouble and loss. The mules were ill-treated, the crop was frequently badly worked, and in many cases was divided in a way that did not accord with the contract. I have been told an amusing incident which occurred on a neighboring plantation: A tenant worked a piece of land, for which he was to pay one-fourth of the corn produced. When he gathered his crop, he hauled three loads to his own house, thereby exhausting the supply in the field. When, soon after, he came to return his landlord's wagon, which he had used in the hauling, the latter asked, suggestively:

"Well, William, where's my share of the corn?"

"You aint got none, sah," said William.

"Haven't got any! Why, wasn't I to have the fourth of all you made?"

"Yes, sah; but hit never made no fourth; dere wasn't but dess my three loads made."

Now, of course, this was an honest mistake, and while many equally honest and vexatious constantly occurred, I am constrained to say the tendency to divide on the same plan was frequent when there was no mistake. These and

other troubles led to the present arrangement, which, while it had difficulties in the way of its inception, has been found to work thoroughly well. Under it our colored farmers are tenants, who are responsible only for damage to the farm they work and for the prompt payment of their rent. On the plantation about which I am writing, all of the tenants are colored men, who farm on a small scale, only two of them having more than one mule. Indeed, the first trouble in the way of dividing up the plantation into farms was to provide the new-made tenants with mules. Up to this time their contracts had been such that they plowed with mules belonging to Mr. Barrow, and very few had bought mules of their own. This trouble was met by selling them mules on credit, and though the experiment looked risky at the time, the mules were paid for in almost every case. After this, the location of the houses caused considerable inconvenience, and so it was determined to scatter them. When the hands all worked together, it was desirable to have all of the houses in a central location, but after the division into farms, some of them had to walk more than a mile to reach their work; then, too, they began to "want more elbow-room," and so, one by one, they moved their houses on to their farms. I have made a plot of the place "as it is," showing how the houses are distributed. Wherever there is a spring, there they settle, generally two or three near together, who have farms hard by. When no spring is convenient, they dig wells, though they greatly prefer the spring. A little bit of a darky, not much taller than the vessel he is carrying, will surprise you by the amount of water he can tote on his head. I have seen a mother and three or four children pulling along uphill from the spring, their vessels diminishing in size as the children do, until the last little fellow would carry hardly more than two or three cupfuls.

I suppose nothing like one of these settlements is to be found elsewhere than in Georgia. The dwelling-house is an ordinary log-cabin, twenty feet square, the chimney built of sticks and dabbed over with mud; then there is a separate kitchen, which, in architectural design, is a miniature of the house,—in size approaches a chicken-coop,—and is really ridiculous in its pretentiousness. Off to one side are the out-houses, consisting of a diminutive stable, barely large enough to pack a small mule in, and a corn-crib and fodder-house, equally imposing. Every tenant has a cow—most of them several; and there is one old man—Lem Bryant—who is quite a Job in this respect. There is no law requiring stock to be kept up, and there is a large quantity of uncultivated land for pasture, so that the only cost connected with cattle is ten or fifteen dollars purchase money. An open pen, called the "cuppen," in this mild climate serves in place of cow-stables. On the opposite side from the lot, the house is flanked by the garden, surrounded by what is known as a "wattle" fence. This fence is made of split pine boards, "wattled" around three horizontal rails, fastened to posts, the first at the ground and the others respectively two and four feet above. Inseparable from this garden is a patch of "collord greens." The negroes think "collord greens, biled with plenty fat meat, hard to beat," when you are considering table delicacies. The only other noteworthy feature in connection with this home is the 'possum dog, who is the first to greet your approach. You will know him by the leanness of his body, the fierceness of his bark, and the rapidity of his retreat.

The labor of the farm is performed by the man, who usually does the plowing, and his wife and children, who do the hoeing, under his direction. Whenever they have heavy work to do they call on their neighbors, and receive willing aid. Their crops are principally corn and cotton, but they have patches of such things as potatoes, melons, and sorghum-cane, from which they make their sirup. They plant whatever they please, and their landlord interferes only far enough to see that sufficient cotton is made to pay the rent, which is seven hundred and fifty pounds of lint-cotton to each one-horse farm. The usual quantity of land planted is between twenty-five and thirty acres, about half of which is in cotton and the rest in corn and patches. An industrious man will raise three times the amount of his rent-cotton, besides making a full supply of corn, sirup, and other provisions, while really good farming would require about five times the rent to be raised in addition to the supply of provisions. Candor compels the admission that only a few tenants reach this standard of good farming; the others work sufficiently well to pay their rent, and make money enough to buy their clothes and spend at Christmas, and let the rainy days of the future take care of themselves. It is a point of honor with them to pay their rent, even if they find it necessary to mistake whose cotton they pay it with.

There is one misfortune which, to our Georgia tenant, dwarfs all others, and this comes when his mule dies. Thanks to mulish endurance, this does not often happen, but when it does, the owner invariably expresses himself "broke up." He has to buy another on time, and work hard and live close the next year in order to pay for him, or else make his crop with a steer. An enterprising colored man will buy the mule, but I have frequently known tenants to resort to the steer. Whenever they get into trouble of this kind, they remind their landlord in pathetic terms that he is their old master, and generally get off with the payment of half the rent.

The slight supervision which is exercised over these tenants may surprise those ignorant of how completely the relations between the races at the South have changed. Mr. Barrow lives on his plantation, and yet there are some of his tenants' farms which he does not visit as often as once a month, and this, too, because they do not need overlooking. Very many negro farmers are capable of directing the working of their own crops, and not a few object to directions. There are, on the other hand, many, in fact a large majority, who, while they know how their crops should be worked, are slow to think and act for themselves, and an occasional visit from the landlord does them much good.

One of the most intelligent colored men I know is Ben Thomas, the old foreman on this plantation, and the best farmer among the negroes on the place. I have secured Ben's contract for the past year, which reads as follows:

"By or before the 15th November, 1880, I promise to pay to David C. Barrow, 500 lbs. of white lint cotton, 40 bushels of cotton-seed, 25 bushels of corn and the shucks therefrom, and 500 lbs. of good fodder, as rent for land on Syll's Fork, during year 1880.
his
1st Jan., 1880. Ben x Thomas.
mark.
Witness: O. C. Watson."

It will be seen that this contract is nothing more than a memorandum of the amounts to be paid, expressed in the form of a promissory note. Very few of the negroes require any copy, or any written agreement; they have the land, they say. Ben's contract last year was exactly the same as this, and his crop, as near as I have been able to ascertain, was as follows:

5 bales Cotton, 2500 lbs. @ 11 cts. $275.00
Corn, 160 bush. @ 75 cts. 120.00
Fodder, 3000 lbs. @ $1.00 per hun. 30.00
Wheat, 30 bush. @ $1.00 ..... 30.00
Total $455.00

This crop was raised by himself, his wife, a son and daughter.

As one of the class who work not so wisely as well, Beckton Barrow is a good specimen. When the mules were divided out, upon the inauguration of the tenant system, Beck bought a large, fine young mule, promising to pay two hundred dollars for him. This was a big debt for a man whose earthly possessions consisted of a wife, two daughters, and a limited supply of provisions, but he paid it all off in two years, and since then he has been "well off," not to say rich. As soon as his mule was paid for, Beck seemed to dismiss further thought of economy, and if he knew what it meant, I have no doubt his motto would be dum vivimus vivamus. His contract is the same as Ben Thomas's, except that he pays one-fourth of his corn and fodder, instead of a stated amount. Under that contract, his last year's crop was as follows:

3 bales Cotton, 1500 lbs. @ 11 cts. $165.00
Corn, 200 bush. @ 75 cts. 150.00
Fodder, 3500 lbs. @ $1.00 per hun. 35.00
Total $350.00

At the risk of growing monotonous, I present one more crop, on account of some differences between it and the others. Handy Barrow pays as rent 750 pounds of cotton and sixty bushels cotton-seed, an increased amount of cotton, instead of corn. He is not so good a farmer as Ben Thomas, but his force is stronger, his father and mother assisting him. His crop was:

5 bales Cotton, 2500 lbs. @ 11 cts. $275.00
Corn, 180 bush. @ 75 cts. 135.00
Fodder, 3000 lbs. @ $1.00 per hun. 30.00
Wheat, 25 bush. @ $1.00 ..... 25.00
Sirup, 50 gals. @ 40 cts. 20.00
Total $485.00

The cane from which the sirup is made is very exhausting to land, and while landowners do not prohibit its cultivation, because it is such an important food crop, they discourage the negroes from raising it for sale, and for this reason Mr. Barrow charges one-fourth of the sirup extra, whenever it is made.

These estimates are as exact as can be had, for the reason that, as soon as the rent is paid, the tenant gives no further account of his crop; they are none of them very exact. The figures I have given are within the actual value of the crops, the prices being low, except for cotton, which is nearly correct, and several important items, cotton-seed for one, being omitted. The number of bales of cotton is correct, but the tenants frequently sell a part of their crop in the seed, and have what they call "rem[n]ents" left over, which are sold as loose cotton. Handy and Ben are among the best farmers on the plantation, and Beck is an average specimen.

I have a letter from Mr. Barrow, in which he says: "They make per annum, on a farm plowed with one horse, from eighty to two hundred and twenty bushels of corn, two to six bales of cotton, some of them as much as forty bushels of wheat; with oats, peas, potatoes, and other smaller crops."

All of these negroes raise hogs, and these, with chickens, of which they raise great numbers, constitute a large portion of their meat food. They generally have to buy some meat during the year, however, for which they pay in the fall.

The land of this plantation is rich, and the tenants are, perhaps, better off than in some other places, but an industrious negro will pay good rent for land and make money for himself almost anywhere in Middle Georgia.

The last census showed three white and one hundred and sixty-two colored people on this plantation. I mention this to show that there must be many children among our country negroes. The adage, "poor folks for children," finds no exception here. There is one woman on the place who has three babies, Shadrach, Meshach, and Abednego, and fine children they are, too, and well cared for in spite of the number. It was commonly thought that the negroes, when freed, would care very little for their children, and would let them die for want of attention, but experience has proved this surmise unfounded. On the contrary, I suppose they take as good care of them as do the same class of people anywhere.

It will be seen by reference to plot of the place "as it is," that one corner has been cut off, and a church and school-house built on it. This has been given to them so long as they use it for church and school purposes. The church building is forty by fifty feet, and is a frame house, the Lord's house being here, if not elsewhere, better than the people's. They have a membership of about two hundred, from the plantation and the country around, which is in charge of the Rev. Derry Merton, a colored man, who preaches there twice a month. He has had charge of this church nine or ten years, and has other churches under his care. For its support, the male members pay fifty cents and the females twenty-five cents per annum. In addition to their regular church services, they have a Sunday-school, with a membership of one hundred and fifty or more, which has a regular superintendent, one of the tenants on the place. They use regular lesson-papers and singing-books, and especially delight in singing. I believe, generally speaking, negroes in the country are Baptists; at any rate, those on this place are. To go under

the water is far more necessary to salvation, in their eyes, than anything else. There is a great tendency among them to become preachers, which, I fear, is induced as much by the desire to display their oratorical powers as by excess of piety.

Once a year, during August, there is a big meeting at Spring Hill church. From far and near friends come in, and all the houses of all the members are thrown open. They kill their pigs, kids, lambs, chickens, everything, by wholesale, and for three or four days they do little else but preach, sing, and eat. Fortunately their meeting comes at a time when very little work is to be done, so that the crops do not suffer. This August meeting, and the necessity of going under the water, are the bulwarks of their church.

Too great praise cannot be bestowed upon the earnestness which all negroes feel on the subject of education. Very soon after they were freed, these hands manifested a desire to establish a school, and Mr. Barrow gave them a site upon which they promptly built a school-house, and they have employed a teacher ever since. Free schools in Georgia last only about three months, but the negroes cheerfully pay their teacher the remainder of the year themselves. Quite a number who were grown when freed have since learned to read and write, and they all send their children. It is a strange fact that, even while they desire their children to be educated, many of them have a great prejudice against the profession of teaching. An old colored woman said to one of my sisters: "I tell you what, Miss Sallie, of all the lazy, good-for-nothin' trades, this here sittin' down in a cheer all day, with a book in your hand, hearing chillen say lessons, is the laziest." The latest romance of the plantation was the elopement of the school-teacher and the daughter of one of the old foremen. "Mr. Map" (so-called, I suppose, on account of his knowledge of geography) won the heart of "Ben's Mary," and sued for her hand. Very much to his surprise, the father not only refused, but it is said declared his intention of giving them both a good whipping the first time he caught them together, adding his opinion of the laziness and worthlessness of the suitor. As the old man would most likely have carried his threat into execution, the young couple had nothing left but a separation or an elopement. I think there was nothing against Map, except his occupation, and as he supported his wife, the old man soon relented and allowed them to return to the neighborhood.

I have thus briefly given some facts connected with the farm life of the colored people in Georgia. If I have made my descriptions true to life, they fit any place in this portion of the State, mutatis mutandis. They all live nearly the same way. Occasionally one is found who wishes to have more of this world's goods; such buy land and pay for it as they did for their mules, and work the same crops as these I have written about. As a people they are happy; they have become suited to their new estate, and it to them. I do not know of a single negro who has swelled the number of the "exodus." That they have improved, and continue to improve, seems beyond controversy. The one man on this plantation who, as a slave, gave most trouble, so much, in fact, that he was almost beyond control of the overseer, was Lem Bryant. Since he has been freed, he has grown honest, quiet, and industrious; he educates his children and pays his debts. Mr. Barrow asked him, one day, what had changed him so. "Ah, master!" he replied, "I'm free now; I have to do right."

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The Undoing of Reconstruction (excerpt)

William A. Dunning · Atlantic Monthly, October 1901 (reprinted 1904)

TOC FIT	Chapter 15 · Essay prompt 15.1 (Why Did Reconstruction End?)
WHY HERE	A founding text of the Dunning School shows how Reconstruction was remembered and taught for half a century.
TREATMENT	Public-domain text, selected excerpts (from OCR transcription)

Historical Context

William A. Dunning (1857–1922), a Columbia University professor, trained a generation of historians whose studies of Reconstruction dominated the field until the 1950s. The "Dunning School" portrayed Reconstruction as a corrupt failure imposed on the white South.

In this essay Dunning described how white southerners regained control of their state governments, and treated that outcome as a natural restoration. Historians have since rejected the Dunning School's racist assumptions.

Editorial note: This is historiography written in 1901, not a source from the Reconstruction years; read it as evidence of how the era was later interpreted. The text follows the Internet Archive scan of the 1904 reprint; a printer's signature mark has been removed.

Document Text

[. . .]

In July of 1870, when the law declaring Georgia entitled to representation in Congress was finally enacted, the process of reconstruction was, from the technical point of view, complete. Ten of the states which had seceded from the Union had been " made over " by a series of operations which involved, first, the creation in each of a new political people, in which the freedmen constituted an important element, and, second, the organization in each of a new government, in the working of which the participation of the blacks on equal terms with the whites was put under substantial guarantees. The leading motive of the reconstruction had been, at the inception of the process, to insure to the freedmen an effective protection of their civil rights, — of Hf e, liberty and property. In the course of the process, the chief stress came to be laid on the endowment of the blacks with full political rights, — with the electoral franchise and eligibility to office. And by the time the process was complete, a very important, if not the most important, part had been played by the desire and the purpose to secure to the Republican Party the permanent control of several Southern states in which hitherto such a political

organization had been unknown. This last motive had a plausible and widely accepted justification in the view that the rights of the negro and the " results of the war " in general would be secure only if the national government should remain indefinitely in Republican hands, and that therefore the strengthening of the party was a primary dictate of patriotism.

Through the operation of these various motives, successive and simultaneous, the completion of the reconstruction showed the following situation : (i) the negroes were in the enjoyment of equal political rights with the whites ; (2) the Republican Party was in vigorous life in all the Southern states, and in firm control of many of them ; and (3) the negroes exercised an influence in political affairs out of all relation to their intelligence or property, and, since so many of the whites were disfranchised, excessive even in proportion to their numbers. At the present day, in the same states, the negroes enjoy practically no political rights; the Republican Party is but the shadow of a name ; and the influence of the negroes in political affairs is nil. This contrast suggests what has been involved in the undoing of reconstruction.

[. . .]

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